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House of Representatives

The House met at 10 a.m. and was called to order by the Speaker pro tempore (Mr. NEWHOUSE).

DESIGNATION OF SPEAKER PRO TEMPORE

The SPEAKER pro tempore laid before the House the following communication from the Speaker:

WASHINGTON, DC,
April 14, 2015.

I hereby appoint the Honorable DAN NEWHOUSE to act as Speaker pro tempore on this day.

JOHN A. BOEHNER,
Speaker of the House of Representatives.

MORNING-HOUR DEBATE

The SPEAKER pro tempore. Pursuant to the order of the House of January 6, 2015, the Chair will now recognize Members from lists submitted by the majority and minority leaders for morning-hour debate.

The Chair will alternate recognition between the parties, with each party limited to 1 hour and each Member other than the majority and minority leaders and the minority whip limited to 5 minutes, but in no event shall debate continue beyond 11:50 a.m.

BRING OUR TROOPS HOME FROM AFGHANISTAN

The SPEAKER pro tempore. The Chair recognizes the gentleman from North Carolina (Mr. JONES) for 5 minutes.

Mr. JONES. Mr. Speaker, I am back on the floor today because, while we were home during the Easter break, there was a tragedy in Afghanistan that largely escaped the national news.

On April 8, Army medic John Dawson was shot and killed and eight other Americans were wounded by an Afghan soldier who opened fire on them. This tragedy is yet another example of the American blood spilled in Afghanistan.

Sadly, this kind of tragedy, an American soldier being killed by a supposed Afghan ally, is nothing new. The poster I have with me today is a picture of two little girls, Eden and Stephanie, who lived in my district for a time.

Their father, Sergeant Kevin Balduf, who was stationed at Camp Lejeune in my district, died in May of 2011 in Afghanistan, along with Lieutenant Colonel Benjamin Palmer, who also was stationed in my district at Marine Corps Air Station Cherry Point.

They were shot by an Afghan policeman they were training. The night before Sergeant Balduf died, he emailed his wife, Amy, and he said:

I don't trust them. I don't trust them. I don't trust any of them.

The next day, he was killed.

Mr. Speaker, last December, when Congress passed final appropriations for fiscal year 2015, it provided $4.1 billion for the Afghan National Security Forces and additional funding for development assistance. This is more money than the Afghan Government generates in a year.

The special inspector general for Afghan reconstruction, John Sopko, regularly produces reports of the rampant waste, fraud, and abuse of American taxpayer dollars in Afghanistan; yet we in Congress continue to spend billions in Afghanistan. To what end? Why are we going to spend billions of dollars and have troops in Afghanistan for 9 more years—for 9 more years, Mr. Speaker?

As Roger Simon, an editor with Politico, said in October 2014:

If you spent 13 years pounding money down a rathole with little to show for it, you might wake up one morning and say: ''Hey, I'm going to stop pounding money down this rathole.'' The United States Government wakes up every morning and says: ''The rathole is looking a little empty today. Let's pound a few more billion dollars down there.''

Mr. Speaker, that is sad for the American taxpayer who, tomorrow, many of the American taxpayers will pay their taxes to the Federal Government; and we, in Congress, will continue to take their tax money and spend billions over in Afghanistan with very little accountability for the American taxpayer. That is unacceptable.

When you look at the limbs and the death that is going on in Afghanistan, you wonder why someone, years ago, said that Afghanistan is the graveyard of empires. Yes, Mr. Speaker, America is headed for the graveyard in Afghanistan. I don't understand my colleagues in Congress.

Mr. Speaker, it is time to bring our troops home from Afghanistan once and for all. We have wasted billions of dollars and spilled so much American blood in a futile attempt to save a fractured country from itself. Afghanistan is truly the graveyard of empires that I just mentioned. It is time for Congress to lead the way and end our presence in Afghanistan.

May God continue to bless our men and women in uniform, and may God continue to bless America.

FREE AMIR HEKMATI NOW

The SPEAKER pro tempore. The Chair recognizes the gentleman from Michigan (Mr. KILDEE) for 5 minutes.

Mr. KILDEE. Mr. Speaker, I come to the floor today to bring up the case of my constituent, a young man by the name of Amir Hekmati. He is an American citizen, born and raised in the United States, grew up in my home town of Flint, Michigan, and served in the United States Marine Corps. He is a brother; he is a son.

Three and a half years ago, he traveled to Iran. His parents are of Iranian descent. He traveled to Iran to meet for the first time a grandmother that he had never seen, traveled under his own name, notified the government that he was going.

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After just a couple of weeks, he was apprehended, disappeared; and, after a few months later, it was revealed that he had been tried and convicted and sentenced to death.

A young man, an American, traveling under his own name in Iran, who had served in the United States Marine Corps, was sentenced to death simply for being an American in Iran that had served this country. He is an innocent man, and he continues to languish in Evin Prison.

I am here to make it clear that the Congress of the United States and the American people are watching the Iranian Government. If, in fact, Iran intends, as they purport to do, to try to take steps to join the international community, they cannot hold Americans like Amir Hekmati as political prisoners.

Members of Congress on both sides of the aisle, from JOHN LEWIS to DARRELL ISSA, have joined in the effort to raise awareness around Amir Hekmati's case. It is important that we never let this case fade into the woodwork.

I think about Amir the same way that I would think about it if my own son were being held in a prison on the other side of the world, and I know that every other Member of Congress who has been engaged in this effort feels the same way. He is one of us; he is our son, and he needs to be reunited with his family.

As we now are considering, I think, a really important moment where there have been negotiations to try to deal with Iran's nuclear aspirations—and personally, I support this direction, I support the direction the administration has gone in creating a framework through negotiation to make for a more peaceful world. It is very difficult for many of us in Congress, especially those of us who represent those few Americans being held in an Iranian prison, to view this agreement other than through the lens of that experience.

If Iran truly intends to try to rejoin the global community, they can make a very clear demonstration of their seriousness by releasing Amir Hekmati and the other Americans that they hold. We all can play a role in making that happen. I encourage everybody out there—Members of Congress, people who want to become engaged—to get to social media. Use #freeamir or #freeamirnow.

We know that the Iranian Government does pay attention to what the American people think—the Iranian citizens certainly do—and we know that we have to keep the pressure on right now. It is, as I said, very difficult for many of us who support the direction that this administration has taken these negotiations and really hope that it bears fruit, really hope that it creates an agreement that makes the world—and particularly that region—safer.

We can only really accept Iran as a member of the global community not just by entering into this agreement, but by them joining the world community by not being a nation that can take a young man who served his country, who grew up here, was the captain of his high school hockey team, simply wanted to go to see the country that his parents were born in, and to visit the grandmother that he had never met. To hold him as a political prisoner, as a chip in a geopolitical struggle, is beyond the pale; and it is something that can't be accepted.

Please, my friends, my colleagues, join me in continuing to raise your voices to make sure that not one day passes—especially during this period where we are considering this potentially historic agreement—not one day passes where Amir Hekmati, Jason Rezaian, Pastor Abedini, Mr. Levinson, that their cases, their names, are never forgotten.

A BALANCED BUDGET FOR A BETTER AMERICA

The SPEAKER pro tempore. The Chair recognizes the gentleman from Pennsylvania (Mr. THOMPSON) for 5 minutes.

Mr. THOMPSON of Pennsylvania. Mr. Speaker, on September 22, 2011, former Joint Chiefs of Staff Admiral Mike Mullen referred to our national debt as ''the single biggest threat to our national security.''

He was correct in his statement that the United States continues to suffer from overbearing debt and, unless immediate action is taken, future generations will face unsurmountable challenges.

No one wants a future where policymakers are forced to choose between discretionary programs, like roads and bridges or educating our children, when they continue to be crowded out by mandatory spending which accounts for more than two-thirds of our annual budget.

We need a strong social safety net. We need a strong national defense. We need an America where young learners can have access to a quality education and workers can receive the skills that they need to gain family-sustaining jobs and keep businesses thriving and competitive, both domestically and globally.

Unfortunately, aspirations for a more prosperous America are not going to be achieved until we begin to get out from underneath this burden of debt.

Mr. Speaker, since 2009, the Obama administration has added more than $7 trillion to our national debt, and today, we owe more than $18 trillion, an amount greater than the annual gross domestic product.

While bipartisan agreements have led to some successes since 2011, Congress must continue to put forth a blueprint that aims to reduce deficit spending and provide a path to long-term fiscal stability.

Recently, the House passed a strong budget resolution that aims to reduce spending by $5.5 trillion over 10 years to get a handle on erroneous regulations and mandates that impede job creation and promote true patient-centered healthcare solutions.

Mr. Speaker, the critics of this plan have unashamedly claimed that Republicans ''want to end Medicare as we know it.'' Well, those accusations could not be further from the truth. Unfortunately, these nearsighted individuals have focused more on partisan attacks rather than looking at the long-term challenges that we, as a country, face together.

According to the nonpartisan Congressional Budget Office, the Medicare hospital trust fund will be insolvent by 2030, which is closer than we all would like to admit.

The House Republican proposal presents a plan to save, strengthen, and secure Medicare for today's seniors and tomorrow's retirees. It makes no changes for those in or near retirement, provides future seniors with premium support, and will result in actual savings for both beneficiaries and taxpayers.

The do-nothing alternative will only serve to break promises this country has made to our seniors and places us on a road to rationing, where beneficiaries will be burdened with arbitrary caps to medically necessary procedures and care.

Mr. Speaker, I am in no way claiming this blueprint is perfect, but please be assured that I was not elected to sit idle or squander an opportunity to ensure that our great country can continue to support promises that we have made.

Moving forward, as the House and Senate begin to conference and work out the details between each Chamber's respective budgets, I will remain committed to ensuring a strong national security, economic competitiveness, and an atmosphere that fosters positive growth throughout Pennsylvania and across our great country.

We have been given an opportunity to strengthen this great Nation. Let us work toward that end, rather than vilify those who look to provide us options. Our children and future generations of Americans deserve as much.

□ 1015

APRIL 16—D.C. EMANCIPATION DAY: HONOR WITH THE VOTE AND WITH STATEHOOD

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from the District of Columbia (Ms. NORTON) for 5 minutes.

Ms. NORTON. Mr. Speaker, during the next 3 days, I will be coming to the floor, leading up to Thursday, April 16—D.C. Emancipation Day. That is the day that Abraham Lincoln emancipated the slaves in the District of Columbia before slaves nationwide were emancipated.

Now, no resident of the District of Columbia is a slave today as in 1863,

but at the same time, the residents of the District of Columbia are not as free as the other residents of our country—our fellow Americans. In the District of Columbia, we commemorate D.C. Emancipation Day, not only to honor our forebears but to demand equal treatment from our country for the citizens who live in the Nation's Capital.

Mr. Speaker, the citizens who live right here in the belly of freedom do not have the same rights as other Americans although they pay the same taxes and more taxes—I will argue tomorrow and show you the figures—than any other Americans. They endure undemocratic interference even with their local budget—a budget for which the Federal Government, for which the Congress, contributes not one penny—and yet that local budget comes before this body without the Member who represents the local citizens—the Member whose local budget is at issue cannot vote.

As astounding as those elements of statehood are, perhaps none is more dishonorable than the continued sacrifices of Americans who live in the Nation's Capital without having the same representation as other Americans. We are known, perhaps, in the Nation's Capital by ''no taxation without representation.'' If there is anything by which we could be better known, it is by those who have fought and died since the war that created the United States of America, itself. Who would believe what those figures show?

In World War I, more casualties than from three States. In World War II—now, this is one city of which we are speaking—more casualties than from four States. By the time we get to the Korean war, more casualties than from eight States of the Union. All of that is disproportionate, Mr. Speaker. Finally, when we get to the last great war of the 20th century, the Vietnam war, more casualties from the District of Columbia than from 10 States.

Thousands have died—all without a vote—and yet D.C. citizens have secured the vote everywhere they have fought for their country. They secured the vote for the people of Iraq. They secured the vote for the people of Afghanistan. They secured the vote for citizens throughout Europe and the Mideast. But here, to this day in 2015—more than 150 years after Lincoln freed the first slaves in the District of Columbia—the residents of the District of Columbia are still not free. They will not be free until they become citizens of the 51st State of the United States and until their war dead are honored as the war dead of other States are honored—by going to war on the vote of the people, including of their own Representative, coming back, and being able to vote themselves.

So, Mr. Speaker, on this first day of D.C. Emancipation Week, I ask that the D.C. war dead be honored and that those from the District of Columbia who serve our Nation today be honored with the vote and with statehood.

HONORING PREVENT CHILD ABUSE KENTUCKY

The SPEAKER pro tempore. The Chair recognizes the gentleman from Kentucky (Mr. BARR) for 5 minutes.

Mr. BARR. Mr. Speaker, I rise today in recognition of Child Abuse Prevention Month and to highlight the important work of Prevent Child Abuse Kentucky.

This organization is on the front lines to make sure that Kentucky's children are raised in a safe, loving home and are not abused, mistreated, or neglected. Their staff of eight train thousands of people annually. Their parent education groups, offered in every region of our Commonwealth, serve more than 10,000 people every year. Thousands of pinwheels will blanket the Commonwealth of Kentucky this month, all with the hopes of drawing awareness of child abuse and neglect in our communities, and there is much work to do.

According to the most recent national statistics on child abuse, an estimated 1,520 children died from abuse and neglect in the United States, and that was in 2013 alone. An estimated 679,000 children were victims of abuse and neglect, and those are unique instances. Children in the first year of their lives had the highest rate of victimization, that of 23.1 per 1,000 children in the national population of the same age. Just under 80 percent of reported child fatalities as a result of abuse and neglect were caused by one or more of the child victim's parents.

This is a personal cause for me. As the father of two girls and as the former president of the board of directors for Prevent Child Abuse Kentucky, I am incredibly proud of the great work that this group is doing for Kentucky children all year long. I hope all of my colleagues will join me in thanking Prevent Child Abuse Kentucky and similar organizations around the country as we recognize the critical work of these important groups and as we recognize the importance of National Child Abuse Prevention Month.

THE AMERICAN PEOPLE ARE ASKING FOR A NEW TRADE MODEL

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from Ohio (Ms. KAPTUR) for 5 minutes.

Ms. KAPTUR. Mr. Speaker, the American people are being kept in the dark by the Obama administration regarding the Trans-Pacific Partnership.

So much secrecy forces us to ask an important question: Have any of our past free trade agreements really been net positive for our Nation and helped our workers? The answer is ''no.''

Whether you look at the NAFTA accord with Mexico and Canada, where we are in huge deficit, if you look at the Korean agreement, if you look at basic trade with nations like Japan, which remains a closed market, every single agreement is all negative.

Since 1976, our country has lost 47.5 million jobs due to trade deficits resulting from free trade agreements. During that time, we have accumulated a trade deficit of more than $9.5 trillion. What a drag that is on GDP. These growing trade deficits that outsource our wealth and weaken our economy devastate communities. Carrying a massive trade deficit has hindered economic growth and has limited our economic recovery by nearly 16 percent just in this past year alone. More and more people are slipping away from the middle class as a result, with inequality at the highest levels since the 1920s. Millions of Americans are losing faith in the possibility of upward mobility.

Let's ask ourselves: What have past trade deals brought Americans?

Just since NAFTA, Americans have lost in the manufacturing sector 5 million jobs, and that is just since the early 1990s—one of every four. More than 57,000 manufacturing facilities have closed—57,000. Washing machines that used to be made in Newton, Iowa—Maytag—now are imported from Monterrey, Mexico. Hoppy bicycles that used to be made in Celina, Ohio, are now imported from Asia. Ohio knows well the cost of fast-track trade agreements that ship out good jobs and ''Made in the USA'' brands.

Since NAFTA, our trade balance with Mexico and Canada has gone from a $5 billion annual surplus, creating jobs here in 1993, to a deficit of $177 billion today. That translates into three-quarters of a million more lost jobs—750,000 more lost jobs—just with Canada and Mexico.

The quality of life for Americans has been declining under these agreements. Middle class America is shrinking as businesses have closed production and have moved overseas. Three out of every five displaced U.S. manufacturing workers have been forced to take a pay cut in order to secure any kind of job, and one out of three workers experiences a pay cut of more than 20 percent. These are among the luckiest workers, as frequently laid off workers over the age of 40 can't even find replacement work.

This is not just a problem for America. Workers in other countries are caught too, as one worker described to me, ''like a lobster in a cage, crawling over one another just to survive,'' contributing to unspeakable poverty and waves of desperate immigration to the United States from countries south of our border and elsewhere.

Clearly, NAFTA was a failure for America's workers. If we look at the Korean trade deal, which they said would be the salvation, it has worked exactly in reverse. We have already lost 75,000 more jobs to imports coming into our country from Korea. The exports going out have been just a trickle. In fact, our exports to Korea have gone down by 7.5 percent. The Korean agreement was hailed as a wonderful opportunity for the American economy, something we just could not pass

up. Well, take a look at what has happened. We imported 1,288,546 vehicles from Korea in 2014 and only exported 34,186. There are 40 times more imports coming into our country than exports going out. The Korean free trade agreement has been a failure for American workers too.

With these Trans-Pacific Partnership negotiations continuing to advance, America should ask: Could it possibly be a good deal for American workers?

We already have colossal trade deficits with some of the countries with which the negotiations are occurring—with Malaysia, with Vietnam, and, obviously, with Japan. The prospective TPP partners use protectionism and currency manipulation to gain unfair advantage, and, in some cases, they fail to regulate appalling labor conditions. These nations will not deliver on the promises made in support of TPP.

History should teach us that we need a new trade model. America doesn't need more job-outsourcing trade deals. The executive branch and, specifically, the National Security Council better start paying attention to the harm it causes when it forgets its global strategies have created undue harm here in the homeland. The people in the United States are asking for a new trade model that creates jobs and economic growth in our country again—I might say robust economic growth—for which the American people have been waiting for almost three decades.

TIME TO ADDRESS THE CRITICAL FUNDING SHORTFALL FOR OUR TRANSPORTATION NEEDS

The SPEAKER pro tempore. The Chair recognizes the gentleman from Oregon (Mr. BLUMENAUER) for 5 minutes.

Mr. BLUMENAUER. Mr. Speaker, this week on Capitol Hill, there are hundreds and hundreds of people from around the country who are delivering a message: that America is falling apart and is falling behind, and it is time for us to address the critical funding shortfall for our transportation needs.

They could not have picked a better time to come to Capitol Hill. The 10-month extension of the surface transportation legislation is set to expire in 6 weeks. It is the latest in a series of 23 short-term extensions. No nation ever became great planning its infrastructure 9 months at a time.

The Republican budget—passed last month—again proposes to cut transportation spending, which is already inadequate, 30 percent over the next 10 years despite hearing from local governments, business, labor that the Federal Government should be larger in its contribution, not smaller.

□ 1030

The unwillingness to face reality got us to where we are today, falling apart, falling behind. The country that used to have the finest infrastructure in the world was recently rated 17th, and we are falling further behind.

The gas tax hasn't been increased since 1993, and it has lost nearly 40 percent of its purchasing power. We can't pay for transportation in 2015 with 1993 dollars, but it is interesting that action has taken place on a number of different levels. Over a dozen Senators have been talking about raising the gas tax. Some of my Republican colleagues in the House have agreed that raising the gas tax is the right thing to do.

When I introduced House Resolution 680 in February that would phase in a 3-year, 15-cent gas tax increase, I was joined by the U.S. Chamber of Commerce, the AFL–CIO, truckers, AAA, transit, local government, contractors, and bicyclists—it is the broadest coalition you will see on any major issue—all saying to Congress, Stand up and do the right thing. A gas tax increase is the only solution that is dedicated, sustainable for the long term, and big enough to do the job.

Mr. Speaker, it is interesting that, while Congress continues to dither, people at the State level are taking action in anticipation that the Federal partnership will be there. Two years ago, I was told it was impractical; it would never fly politically.

Well, what we have seen in the last 2 years, that 13 States—including 7 Republican States—have raised the gas tax. Of the State legislators that voted to increase the gas tax, 98 percent of them were reelected—I would note, a better percentage than the Senate Democrats running for reelection in the last election.

With the support of Congress, this broad coalition, we can actually step up, revitalize the economy. We can strengthen communities. We can put hundreds of thousands of Americans to work at family wage jobs in every State in the Union.

Mr. Speaker, in 1982, Ronald Reagan gave his Thanksgiving Day address, where he pointed out that the gas tax hadn't been raised in over 20 years. He pointed out needs for critical maintenance and construction. He pointed out that raising the gas tax would create hundreds of thousands of family wage jobs. Ronald Reagan called on Congress to come back and more than double the gas tax. Ronald Reagan and Speaker Tip O'Neill and Congress did just that, and America was the better for it.

There is no reason that this Congress cannot demonstrate the foresight and courage of President Reagan and the Congress over 30 years ago and show the fortitude that has been shown in States around the country who are betting that we are going to be there working with them.

I sincerely hope that my colleagues listen to the hundreds of men and women on Capitol Hill telling this story from the perspective of unions, local government, and business. The needs are there. Congress needs to act. The public deserves no less.

TAX FAIRNESS AND TAX EQUITY

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from Tennessee (Mrs. BLACKBURN) for 5 minutes.

Mrs. BLACKBURN. Mr. Speaker, I appreciate the recognition and the opportunity to revise and extend my remarks and to address the body of the House.

Mr. Speaker, as my colleagues all know, this is the week that the American people will strike that check to the Internal Revenue Service to pay their taxes. Now, what has ended up happening through the years, as this tax that came on our books about 100 years ago and was to be a 1 percent temporary tax, has grown and grown and grown, and it continues to eat a greater share of our incomes.

I hear from constituents every single day—every single day—about the unfairness and the overreach of the IRS. They are so fed up with this because what they observe is government continues to grow and the bureaucracy continues to grow, and what happens? It just takes away bits and pieces of our freedom every time that bureaucracy expands.

That is the reason that this week we in the House have set aside time to make certain that we are addressing those concerns that we hear from our constituents. This is a week where we are going to talk about tax fairness, tax equity, and also about overreach, which comes from a government that refuses to live within its means and continues to take more out of the pockets of hard-working taxpayers who are fighting and working so hard to live within their means. I think there basically is something immoral about taxpayers working so hard to live within their means and sending money to a government that refuses to live within its means.

Now, there are some things that we can do to address this issue and things that we ought to be doing, and we are. One is to look at a permanent repeal of the death tax. I am so pleased that Chairman RYAN and Chairman BRADY are bringing these bills forward.

The other that I want to talk specifically about for a few minutes is H.R. 622. This is a bill that I am the lead cosponsor on with Congressman KEVIN BRADY and one that is very important to my State of Tennessee, just as it is to the other States—Texas, Florida, Washington State, Nevada—that don't have a State income tax but that choose to fund their government off of other taxes, sales tax. What this legislation does is to make permanent the ability of citizens, taxpayers in those States to deduct their sales tax, their State and local sales tax from their Federal income tax filing.

Now, this is an issue Congressman BRADY and I have been working on since 2003, and that year we were successful in having the ability to deduct that sales tax restored to your State income tax, your Federal income tax

filing. That is why you now have lines 5a and 5b on those forms.

This is the reason that I became so interested in this issue. When I was a State senator in Tennessee, I led not a 4-day or 4-week or 4-month, but a 4-year battle against implementation of a State income tax in my State—4 full years. It was quite a fight. The people of the State of Tennessee worked with me to make certain that we would remain State income tax-free.

Now, of course, they wanted that State income tax to pay for a health care plan. It had been the test case for HillaryCare. It was known as TennCare. That program of government-run health care exceeded the expectations of its budget by not 100 percent; it quadrupled in cost over a 5-year period of time. So Tennesseeans learned in 2000, 2001, and 2002 the message and the lesson of what a State income tax would do, how it would take more money out of their pocket.

As I came to Congress in 2003, one of the very first things we did was to put attention on restoring this deductibility. It is an important bill. I congratulate Congressman BRADY, Chairman BRADY for his work on it. I thank him for his partnership on the issue. I encourage my colleagues to vote for H.R. 622.

WEAR RED TO REMEMBER

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from New York (Mrs. CAROLYN B. MALONEY) for 5 minutes.

Mrs. CAROLYN B. MALONEY of New York. Mr. Speaker, I rise today to ask for a moment of remembrance for the girls of Nigeria. I believe, and people all around the world believe, that we can and should do more to bring our girls home, the girls who have already suffered so much.

Late on the evening of April 14, in the northeast corner of Nigeria, young girls were attending a government-sponsored secondary school when they heard gunshots. Soon after, they saw men on motorbikes entering the school compound. The men told them that they were policemen, but they were lying. The men gathered all the girls together, some 276 of them. They were mostly Christian girls between the ages of 16 and 18. Then more men came, fighters, and the one guard ran away. The men began shouting, and the girls realized that they were captured by Boko Haram.

As most know by now, Boko Haram is a homegrown Islamist insurgency. Roughly translated, their name means, ''Western education is forbidden.'' In the eyes of the men, the girls had committed a grave sin of seeking an education. According to a report by Human Rights Watch, the birthplace of Boko Haram is Borno State in northeastern Nigeria, a place of great poverty. Estimates by Human Rights Watch suggest that more than 7,000 civilians have died at their hands, and the fatalities are just part of the horror.

To the anguish of the girls' families, some meet a fate even worse than death. Women and girls abducted by Boko Haram are forced to marry insurgent fighters, converted to Islam, and endure beatings and psychological abuse, forced labor, and rape in captivity, and the terror will last a lifetime. The terror group has now abducted more than 500 young women and girls since 2009.

Back in Nigeria that night, some of the terrified girls were forced into a truck and taken away. Others marched into the jungle. That night and the coming months a handful of them—57 of them—escaped, and reports are that some of them have died.

Now, after nearly a year of inaction, the Nigerian Army along with forces from Chad, Niger, and Cameroon have mounted an offensive against the terrorists and have retaken territory, but still the Nigerian Army says they have no clue where the girls are.

As I speak, there are over 200 frightened, abused, and desperate girls somewhere in the jungle hoping against hope that they are not forgotten. Today, April 14, marks 1 year since the girls were taken, 1 year in captivity, 1 year in terror.

Though I am glad to see that Nigeria's immediate neighbors have begun providing assistance, I believe it is time for us to call on all African leaders to do more, to come together, to provide resources, to provide manpower to unite and fight against Boko Haram. We here in America have a role to play. I encourage everyone to do whatever they can, small or large, to bring our girls home and to keep the pressure up.

Consider for a moment how thousands of terrorists who comprise ISIS and Boko Haram have had such success in recruiting people from distant lands to pledge their lives to their murderous cause by using social media platforms. Well, we are the people who created social media, and we are the billions. Can we not do better than them, pursuing a cause of mercy, not murder? Let us, the billions, overwhelm their hate with our hope. Let's defeat their violence with our vision of a better world.

I hope you will consider that you will do one small thing to help. Consider joining one of the global schoolgirl marches taking place across the world on this day. Tweet out your call to bring our girls home. Post something on Facebook, or you can join me in the purple and red ribbon campaign of remembrance. Tonight the Empire State Building in New York City will light up in red and purple in remembrance of the girls. Purple is the color of violence against women, red of bring back our girls. There will be a march from the United Nations to the Empire State Building to thank them for remembering.

Let each of us find some way that we can help to bring these girls home. If we don't, the violence will continue. If you don't stand up and fight back, they will continue abducting, murdering, raping, and killing young girls.

I call upon everyone to do what they can—particularly, the African leaders—to stand up and fight back against Boko Haram.

RECESS

The SPEAKER pro tempore. Pursuant to clause 12(a) of rule I, the Chair declares the House in recess until noon today.

Accordingly (at 10 o'clock and 45 minutes a.m.), the House stood in recess.

□ 1200

AFTER RECESS

The recess having expired, the House was called to order by the Speaker at noon.

PRAYER

The Chaplain, the Reverend Patrick J. Conroy, offered the following prayer:

Dear God, we give You thanks for giving us another day.

Bless abundantly the Members of this people's House. During this season of new growth, may Your redemptive power help them to see new ways to productive service, fresh approaches to understanding each other, especially those across the aisle, and renewed commitment to solving the problems facing our Nation.

May they and may we all be transformed by Your Grace and better reflect the sense of wonder, even joy, at the opportunities to serve that are ever before us.

May all that is done this day be for Your greater honor and glory.

Amen.

THE JOURNAL

The SPEAKER. The Chair has examined the Journal of the last day's proceedings and announces to the House his approval thereof.

Pursuant to clause 1, rule I, the Journal stands approved.

PLEDGE OF ALLEGIANCE

The SPEAKER. Will the gentleman from Ohio (Mr. CHABOT) come forward and lead the House in the Pledge of Allegiance.

Mr. CHABOT led the Pledge of Allegiance as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

ELECTING MEMBERS TO CERTAIN STANDING COMMITTEES OF THE HOUSE OF REPRESENTATIVES

Ms. FOXX. Mr. Speaker, by direction of the House Republican Conference, I

send to the desk a privileged resolution and ask for its immediate consideration.

The Clerk read the resolution, as follows:

H. RES. 199

Resolved, That the following named Members be, and are hereby, elected to the following standing committees of the House of Representatives:

COMMITTEE ON HOMELAND SECURITY: Mr. Meehan, to rank immediately after Mr. Marino.

COMMITTEE ON RULES: Mr. Byrne and Mr. Newhouse.

Ms. FOXX (during the reading). Mr. Speaker, I ask unanimous consent that the resolution be considered as read.

The SPEAKER pro tempore (Mr. HARDY). Is there objection to the request of the gentlewoman from North Carolina?

There was no objection.

The resolution was agreed to.

A motion to reconsider was laid on the table.

COMMUNICATION FROM DISTRICT OFFICE MANAGER OF THE OFFICE OF THE 18TH CONGRESSIONAL DISTRICT OF ILLINOIS

The SPEAKER pro tempore laid before the House the following communication from the District Office Manager of the Office of the 18th Congressional District of Illinois:

CONGRESS OF THE UNITED STATES,
Washington, DC, April 8, 2015.

Hon. JOHN A. BOEHNER,
Speaker, House of Representatives,
Washington, DC.

DEAR MR. SPEAKER: This is to notify you formally pursuant to rule VIII of the Rules of the House of Representatives that I have been served with a grand jury subpoena for testimony issued by the United States District Court for the Central District of Illinois.

I have determined that compliance with the subpoena is consistent with the privileges and rights of the House.

Sincerely,

BRYAN RUDOLPH,
District Office Manager.

COMMUNICATION FROM STAFF MEMBER OF THE OFFICE OF THE 18TH CONGRESSIONAL DISTRICT OF ILLINOIS

The SPEAKER pro tempore laid before the House the following communication from a Staff Member of the Office of the 18th Congressional District of Illinois:

MARCH 31, 2015.

Hon. JOHN A. BOEHNER,
Speaker, House of Representatives,
Washington, DC.

DEAR MR. SPEAKER: This is to notify you formally, pursuant to rule VIII of the Rules of the House of Representatives, that I have been served with a grand jury subpoena for testimony, issued by the U.S. District Court for the Central District of Illinois.

After consultation with counsel, I will make the determinations required by rule VIII.

Sincerely,

SARAH ROGERS.

COMMUNICATION FROM STAFF MEMBER OF THE OFFICE OF THE 18TH CONGRESSIONAL DISTRICT OF ILLINOIS

The SPEAKER pro tempore laid before the House the following communication from a Staff Member of the Office of the 18th Congressional District of Illinois:

MARCH 31, 2015.

Hon. JOHN A. BOEHNER,
Speaker, House of Representatives,
Washington, DC.

DEAR MR. SPEAKER: This is to notify you formally, pursuant to rule VIII of the Rules of the House of Representatives, that I have been served with a grand jury subpoena for testimony, issued by the U.S. District Court for the Central District of Illinois.

After consultation with counsel, I will make the determinations required by rule VIII.

Sincerely,

DAYNE LAHOOD.

COMMUNICATION FROM STAFF MEMBER OF THE OFFICE OF THE 18TH CONGRESSIONAL DISTRICT OF ILLINOIS

The SPEAKER pro tempore laid before the House the following communication from a Staff Member of the Office of the 18th Congressional District of Illinois:

MARCH 31, 2015.

Hon. JOHN A. BOEHNER,
Speaker, House of Representatives,
Washington, DC.

DEAR MR. SPEAKER: This is to notify you formally, pursuant to rule VIII of the Rules of the House of Representatives, that I have been served with a grand jury subpoena for testimony, issued by the U.S. District Court for the Central District of Illinois.

After consultation with counsel, I will make the determinations required by rule VIII.

Sincerely,

MARK ROMAN.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore. The Chair will entertain up to 15 requests for 1-minute speeches on each side of the aisle.

CONGRESS DESERVES VOTE ON IRAN DEAL

(Mr. WILSON of South Carolina asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. WILSON of South Carolina. Mr. Speaker, the President has put at risk the safety of American families and of America's allies, especially Israel and Arab nations, by entering into a meaningless framework with an untruthful regime.

Senator Joe Lieberman, in a recent op-ed in The Wall Street Journal, reminds President Obama that the sanctions he is conceding were put in place by a bipartisan coalition in Congress. The article by the former Democrat Senator explains to us of a powerful time in history when leaders of both parties worked together to ratify arms control agreements in Congress during the cold war. We did not neglect our constitutional principles then in the face of World War III, nor should we now for an agreement that will allow Iran to have nuclear weapons in the future.

Our Founding Fathers were purposefully unclear on the powers of foreign policy in order to prevent one person from ruling without restraint. President Obama should submit his agreement with Iran for congressional approval. I appreciate the bipartisan efforts of Senator BOB CORKER and Senator BOB MENENDEZ.

In conclusion, God bless our troops, and may the President, by his actions, never forget September the 11th in the global war on terrorism.

EQUAL PAY DAY

(Mr. HIGGINS asked and was given permission to address the House for 1 minute.)

Mr. HIGGINS. Mr. Speaker, today, on Equal Pay Day, we call attention to the fact that American women who work full time are paid only 78 percent of what men earn. For women of color, the discrepancy is worse.

This pay gap will cost a 25-year-old woman $34,000 over the next 5 years. Over her career, she will lose $431,000 relative to men. Women make up nearly half of the American workforce. Underpaying half of our workers hurts women, hurts families, and hurts the economy. In New York, we have the smallest pay gap among the States, but women in New York still earn only 86 cents for every dollar a man is paid. We can do much better.

When President Kennedy signed the Equal Pay Act, which requires equal pay for equal work, women's pay was 59 percent of men's. We have made progress, but time has exposed loopholes that hinder the law.

I call on the House to pass Congresswoman DELAURO's Paycheck Fairness Act, which would close these loopholes and bring us closer to pay equity. Let's act now to make equal pay for equal work a reality.

COMMEMORATING PRESIDENT LINCOLN'S DEATH

(Mr. MOOLENAAR asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. MOOLENAAR. Mr. Speaker, this week marks the 150th anniversary of the tragic day an assassin's bullet took President Abraham Lincoln's life.

There is no greater challenge than leading a nation through an armed conflict against itself, one that divides families and longtime friends.

When responding to criticism of his efforts to save the Union, President Lincoln said, ''If the end brings me out all right, what is said against me won't

amount to anything. If the end brings me out wrong, 10 angels swearing I was right would make no difference.''

History has vindicated President Lincoln, and now, as War Secretary Edwin Stanton said, he ''belongs to the ages.''

Through solemn, humble, and steadfast leadership, he guided our Nation through the crisis—the horrific period of conflict between Fort Sumter and Appomattox. Sustained by faith, he stood on principle to preserve our country, to correct a nation's moral failing, and to lead a government of, by, and for the people ever closer toward a more perfect Union.

President Lincoln gave his life—his last full measure of devotion—for our country, and he will forever be remembered for his heroic work to preserve our United States of America.

EQUAL PAY DAY

(Mr. KILDEE asked and was given permission to address the House for 1 minute.)

Mr. KILDEE. Mr. Speaker, today is Equal Pay Day, which is the day that symbolizes, more than 3 months into the year, that women's wages have finally caught up to what men were paid last year.

Women deserve equal pay for equal work. It is outrageous that in 2015 a woman is still paid less for the same job that a man does. Pay discrimination is wrong. It hurts millions of hard-working families, and it hinders the growth of our economy.

That is why I and many of my colleagues have reintroduced the Paycheck Fairness Act—to ensure that women earn the same pay as men for doing the same work, to ensure that our wives, our sisters, our daughters, our granddaughters are treated fairly in the workplace for doing the same job that the man sitting right next to them does.

Our country should be building an economy that works for everyone so that women and their families can save, buy a home, send their kids to college, and save for retirement. Equal pay for equal work should not ever be a partisan issue. It is my hope, Mr. Speaker, that we will allow a vote on the floor of the House of Representatives for this very important legislation.

IN MEMORY OF LAUREN HILL

(Mr. CHABOT asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. CHABOT. Mr. Speaker, it is with a heavy heart that I come to the floor to speak today.

Last Friday, Lauren Hill, a basketball player at Mount St. Joseph University in Cincinnati, succumbed in her battle with DIPG, a rare form of inoperable brain cancer.

Following her tragic diagnosis, Lauren became an inspiration to an awful lot of people. After miraculously and courageously playing in her first college basketball game last November, she dedicated her remaining days to combating this dreadful disease, raising more than $1 million for pediatric cancer research.

While we are obviously saddened by the news of Lauren's passing, I would prefer to focus on just how blessed we have been to witness Lauren's courage and her resiliency and her grace in the face of insurmountable odds. She has touched and inspired our community and, in fact, our Nation.

Mr. Speaker, I am also deeply grateful to Lauren's family for their willingness to share her story with the rest of us. Our thoughts and our prayers are with them as they grieve the loss of such a remarkable young woman.

ASPEN INSTITUTE PRIZE FOR COMMUNITY COLLEGE EXCELLENCE

(Mr. KILMER asked and was given permission to address the House for 1 minute.)

Mr. KILMER. Mr. Speaker, I rise today to congratulate Olympic College for being named a top 10 finalist for the Aspen Institute Prize for Community College Excellence.

Olympic College has earned a reputation as a place that opens doors to opportunity. Whether creating opportunities for future healthcare practitioners, leading a world-class apprenticeship program with the Puget Sound Naval Shipyard, or the multitude of other great programs it provides, OC prepares folks for success in school and in life.

This recognition from the Aspen Institute is a testament to OC's president, David Mitchell; to the college's talented faculty and staff; and, importantly, to the students. It is also evidence of the incredible partnerships OC has developed with local employers, with 4-year universities, and with the community.

The record of success is astonishing. Get this: OC has the highest graduation rate of any community college in the State of Washington as 90 percent of students who enter a trades program at OC complete it, and 100 percent are placed in jobs.

I am proud to represent some amazing community colleges, including OC, that have been proven successful in getting people ready to take that next step, whether that is starting a 4-year degree or finding a quality job. I extend to them my congratulations.

FAIRNESS TO VETERANS ACT

(Mr. FITZPATRICK asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. FITZPATRICK. Mr. Speaker, as Congress begins to take up the critical and long overdue discussion of long-term infrastructure investment, it is important that we utilize one of our greatest resources—our Nation's veterans.

Right now, there are over 380,000 veteran-owned construction firms across the United States, including thousands in my home State of Pennsylvania. These veteran-owned businesses are primed to play a vital role in the rebuilding of our Nation's roads and bridges. However, right now, when it comes to Federal transportation contracts, we are failing to recognize their full potential.

That is why I have introduced the bipartisan Fairness to Veterans Act in an effort to level the playing field by providing veterans access to existing preferences. Fairness to veterans is a simple idea that says, if any group is going to get special treatment from our government, it should be those who have served in our Armed Forces.

I am proud to have the support of veterans advocacy organizations like the American Legion, local veterans groups, and a bipartisan band of lawmakers in advancing this legislation. I encourage each one of my colleagues to join us as a cosponsor and ensure that we are fighting for and are fair to our Nation's veterans.

□ 1215

THE NATION'S INFRASTRUCTURE NEEDS REPAIR

(Mr. DEFAZIO asked and was given permission to address the House for 1 minute.)

Mr. DEFAZIO. Mr. Speaker, 45 days from today, temporary funding for the surface transportation trust fund expires. Despite the fact that we have 140,000 bridges that need repair or replacement, 40 percent of the road surface needs substantial investment, and a $70 billion backlog in our mass transit systems for a state of good repair, the support drops to zero in 45 days. We need an unimaginable amount of money to fund that for the next 5 years. We need $120 billion.

Where could we find $120 billion? Well, tomorrow the Republicans are going to repeal the remains of the estate tax. That is that two one-hundredths of 1 percent of estates that are worth more than $10 million, under the Republican plan, will pay no taxes when they leave that money to their kids—no taxes. It costs $270 billion to give that tax relief to two one-hundredths of 1 percent of the families in this country.

How about we spend that money rebuilding the Nation's infrastructure, put hundreds of thousands of people to work, benefit all of America with better roads, with safe bridges, with transit systems that don't kill people because of their state of bad repair? Even the wealthy might benefit from that, although they don't use the system because they fly above it in their helicopters and they don't notice from the backseat of their limousines.

ENJOY SOME GOOD EXERCISE FOR A GREAT CAUSE

(Ms. ROS-LEHTINEN asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. ROS-LEHTINEN. Mr. Speaker, I rise to bring attention to a wonderful event taking place this Sunday, April 19, in south Florida, the 15th annual Miami Walk Now for Autism Speaks. According to the CDC, over 3 million individuals in our great country are impacted by an autism spectrum disorder. There have been dramatic scientific advances in our understanding of autism over just the past 5 years, but we must ensure that progress toward effective treatment and a cure continues.

The Miami Walk along with others taking place across our wonderful country will raise vital funds to help support important research and family services—research and services. I urge everyone to get out of the house, enjoy some good exercise for a great cause in sunny south Florida this weekend, and participate in the Miami Walk Now for Autism Speaks.

JOIN ME IN SUPPORTING THE EQUALITY FOR ALL RESOLUTION

(Mr. CARSON of Indiana asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. CARSON of Indiana. Mr. Speaker, I rise today to draw attention to the Equality for All resolution, which declares that gay, lesbian, and transgendered people should be protected from discrimination under the law.

Earlier this month, Mr. Speaker, I watched as my State, the great Hoosier State of Indiana, enacted the Religious Freedom and Restoration Act, giving businesses the right to refuse service based on sexual orientation and gender identity.

Over the last few weeks, Mr. Speaker, I have heard from businesses, religious organizations, community leaders, and countless concerned citizens. It is clear, Mr. Speaker, that the vast majority of Americans oppose this kind of discrimination; yet in 2015, it is still legal in over 30 States to discriminate in the workplace, to refuse to sell or rent a home or to turn someone away from your business just because they are gay, lesbian, bisexual, or transgender, Mr. Speaker.

As elected representatives, we have responsibility to show America that we are better than this. I encourage all of my colleagues to join us in supporting the Equality for All resolution.

VOTERS WANT MORE DEPORTATIONS

(Mr. SMITH of Texas asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. SMITH of Texas. Mr. Speaker, a recent public opinion poll shows that the American people repudiate President Obama's immigration policies. The new Rasmussen Reports national survey found that 62 percent believe the Federal Government is not doing enough to deport illegal immigrants, up 10 points from a year ago. This is the American people's response to the President's executive amnesty orders.

Furthermore, over half feel that illegal immigrants with children born in the U.S. should not be exempt from being sent home. Also, 54 percent think that a child of an illegal immigrant parent should not automatically become a citizen, and an overwhelming 83 percent do not feel illegal immigrants should get government services.

The American people know that illegal immigration is not in America's best interest.

WOMEN NEED EQUAL PAY

(Mrs. CAPPS asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Mrs. CAPPS. Mr. Speaker, I rise today because across the United States women continue to earn less than men for an equal day's work. In fact, women, on average, make 78 cents for every dollar earned by men. For African American and Latina women, those numbers drop even lower. Even nurses, my profession, who many thought were immune to the pay gap, experience this gender discrepancy, often resulting in men who are nurses being paid thousands of dollars more a year than women.

This disparity has real consequences. A woman's economic health has a ripple effect on her family and on our local economies. That is why I am proud to be an original cosponsor of the Paycheck Fairness Act. This critical bill would strengthen the 52-year-old Equal Pay Act by closing loopholes and ensuring that women are paid equal wages for equal work.

Today, on Equal Pay Day, I urge our House leadership to bring the Paycheck Fairness Act to the floor for a vote because we know that when women succeed, America succeeds.

PARKINSON'S AWARENESS MONTH

(Mr. BILIRAKIS asked and was given permission to address the House for 1 minute.)

Mr. BILIRAKIS. Mr. Speaker, I rise today to recognize Parkinson's Awareness Month.

People close to me have been impacted by Parkinson's disease. For me, it is personal. I am proud to serve as a cochair of the Parkinson's Caucus. It is just another way that I can get involved.

Sadly, there is no cure for Parkinson's disease. Treatment is available, but it is often costly or marginally effective. This is not acceptable, as far as I am concerned.

People tell me, Just increase funding at NIH. In the early 2000s, we did; we doubled the budget at NIH, but we didn't double the cures. In addition to adequate funding, we need to think critically about structural changes in our healthcare system. We need to rethink what we are doing and how we are doing it. The 21st Century Cures initiative is giving us an opportunity to find new cures and treatments for people living with rare and chronic conditions like Parkinson's disease.

EQUAL PAY DAY

(Ms. FRANKEL of Florida asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. FRANKEL of Florida. Mr. Speaker, today is Equal Pay Day, which marks how far into the following year a woman must work, on average, to earn as much as a man earned the previous year.

Mr. Speaker, in our great Nation of opportunity, no woman should be making less than her male colleagues for doing similar work, yet in our country women still earn, on average, 78 cents for each dollar earned by a man doing a comparable job.

Discrimination hurts the pocketbook as well as the heart. Equal pay isn't just about fairness. It is about mothers putting food on the table for their children and saving for their own retirement security. That is why Congress must act now, to bring the Paycheck Fairness Act to the floor for a vote and give the victims of gender bias in the workplace the tools they need to seek justice.

MAKE A RIPPLE, CHANGE THE WORLD

(Mr. YODER asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. YODER. Mr. Speaker, I rise today to honor the memory of three people who were victims of a horrific shooting that took place in Overland Park, Kansas, 1 year ago.

On April 13, 2014, the lives of Reat Underwood, William Corporon, and Terri Lamanno were tragically cut short as a self-described anti-Semite opened fire at the Jewish Community Center and Village Shalom retirement community in Overland Park, killing all three victims. But rather than divide our community, this hate-filled act of unspeakable violence has turned into love, faith, and kindness to one another and has caused a groundswell of unity to show that Kansas is a State where people of all religions can call home.

One hero from that day was Mindy Corporon. Mindy lost both her father and her son on the same day. Mindy has been a symbol for courage, as she has turned her loss and pain into kindness and understanding in our community.

Mr. Speaker, now 1 year later Mindy, this week, is helping lead a program entitled SevenDays: Make a Ripple, Change the World. It is a week full of events to encourage every citizen to be a force for goodness and kindness and unity in our community and in the world; and in doing so, it is a reminder that each of us can make a ripple and help change the world.

REMEMBERING IRVING SMOLENS

(Ms. CLARK of Massachusetts asked and was given permission to address the House for 1 minute.)

Ms. CLARK of Massachusetts. Mr. Speaker, I rise to recognize Irving Smolens: a soldier, a father, a husband, an American hero. And I am very proud to call him my friend.

Irving Smolens was a World War II veteran who survived D-Day, where he served with the U.S. Army 4th Infantry Division. He came home just short of his 21st birthday in 1945 to a country he loved deeply, and he helped build a community in Melrose, Massachusetts.

Irving took his experiences from the darkest moments of our past and advocated for a better, more peaceful world. Up until he left us on Saturday at the age of 90, you could still catch up with Irving at the Melrose schools, where he would recount stories of the Allied invasion in World War II for hundreds of middle schoolers at our assemblies, and he taught thousands in our classrooms.

He recently became a chevalier with the French Legion of Honor, and he was a regular at Democratic events and campaigns. He served as president of the Temple Beth Shalom in Melrose, and he was an avid jazz enthusiast and sports fan. He watched every one of the 19 innings of last week's Red Sox-Yankees game.

He was quick to pen a letter to the Boston Globe and recently took to blogging in his late eighties and to social media. Not only did he comment on politics, but he helped reconnect veterans' families with their fathers' histories.

This past fall, 70 years after Irving stepped onto the beaches of Normandy to fight the Nazis, he returned. This time he would be met by both the American President and the French President in recognition of his valor and patriotism. He was seen by a journalist, who said after the President had delivered a long speech, he was stopped by an old soldier who gave him a piece of his mind. When the journalist caught up with Irving and asked what he had to say to President Obama, Irving replied: ''I thanked him for keeping us out of war.''

Our thoughts and prayers are with Irving and his family, especially his wife, Edith, and daughter, Karen. We are so proud to have known him and for his service.

□ 1230

HONORING RACHAEL BEVILL

(Mr. GUINTA asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. GUINTA. Mr. Speaker, I rise today to honor an incredible young Granite Stater who had the distinct honor of being chosen to represent New Hampshire in the Cherry Blossom Princess Program.

Rachael Bevill, a senior at George Washington University in Washington, D.C., and a resident of Merrimack, New Hampshire, embodies all the qualities of a great leader.

As a student at Merrimack High School, Rachael served as class secretary and a member of her student council. Rachael also excels and competes at a State and nationwide level for public speaking and writing, placing third in both the VFW's Americanism essay contest and the Voice of Democracy speech competition.

Currently, Rachael is studying biomedical engineering. Inspired by two of her siblings who have autism, Rachael aims to design nanotechnology and regenerative medicine to make the lives of future generations with similar challenges much easier.

It is ambitious, bright, and altruistic young people like Rachael that provide such great hope for our Nation's future. I congratulate her.

ONE-YEAR ANNIVERSARY OF ABDUCTION OF CHIBOK SCHOOLGIRLS BY BOKO HARAM

(Ms. WILSON of Florida asked and was given permission to address the House for 1 minute.)

Ms. WILSON of Florida. Mr. Speaker, today marks 1 year since the abduction of the Chibok schoolgirls in Nigeria—1 year, 365 days, nonstop—by Boko Haram.

UNICEF is reporting that 800,000 children have been forced to flee Boko Haram's campaign of violence in Nigeria. Their Missing Childhoods reports that most of the girls remain in captivity, scores more of their peers have since gone missing, and the number of children who are displaced is staggering. The one bright spot is many of the girls have escaped, and 10 of them are in Virginia.

When I went to Nigeria and met with those girls, I said: What can we do to help you?

They said: We want to go to school.

As a school principal, that made me proud because education is the key to all of the Nation's ills; and, in spite of their trials and tribulations, they still wanted to go to school.

Boko Haram means Western education is sin, so we must support our girls and lift them up and let them know that we love them.

Boko Haram has reached out to ISIS, and ISIS has responded. A marriage between Boko Haram and ISIS is a marriage made in hell.

Tweet, tweet, tweet #bringbackourgirls. Tweet, tweet, tweet #followrepwilson. Tweet, tweet all day long.

ADVISORY COUNCILS

(Mr. ROUZER asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. ROUZER. Mr. Speaker, it is important we regularly meet with constituents in order to have a variety of viewpoints and experience to draw upon as we work towards the betterment of our country.

This past district work period, we held advisory council meetings with interested citizens from across North Carolina's Seventh Congressional District. These advisory councils represent different sectors within our community throughout the district, including ag, small business, veterans and defense, law enforcement, homeland security, health care, and education.

There was one theme that continually emerged during these meetings, and the message was clear: we must reduce the burdens of an overly intrusive Federal Government while making improvements in those areas where government has a legitimate and constitutional responsibility, such as our transportation and infrastructure needs.

I look forward to working with these distinguished men and women who have agreed to serve on our advisory councils. Their insights into issues that affect our district, our State, and our Nation are invaluable; and I thank them for their desire and willingness to serve in this capacity.

PROVIDING FOR CONSIDERATION OF H.R. 650, PRESERVING ACCESS TO MANUFACTURED HOUSING ACT OF 2015, PROVIDING FOR CONSIDERATION OF H.R. 685, MORTGAGE CHOICE ACT OF 2015, AND PROVIDING FOR ADOPTION OF S. CON. RES. 11, CONCURRENT RESOLUTION ON THE BUDGET, FISCAL YEAR 2016

Mr. SESSIONS. Mr. Speaker, by direction of the Committee on Rules, I call up House Resolution 189 and ask for its immediate consideration.

The Clerk read the resolution, as follows:

H. RES. 189

Resolved, That upon adoption of this resolution it shall be in order to consider in the House the bill (H.R. 650) to amend the Truth in Lending Act to modify the definitions of a mortgage originator and a high-cost mortgage. All points of order against consideration of the bill are waived. The bill shall be considered as read. All points of order against provisions in the bill are waived. The previous question shall be considered as ordered on the bill and on any amendment thereto to final passage without intervening motion except: (1) one hour of debate equally divided and controlled by the chair and ranking minority member of the Committee on

Financial Services; and (2) one motion to recommit.

SEC. 2. Upon adoption of this resolution it shall be in order to consider in the House the bill (H.R. 685) to amend the Truth in Lending Act to improve upon the definitions provided for points and fees in connection with a mortgage transaction. All points of order against consideration of the bill are waived. The bill shall be considered as read. All points of order against provisions in the bill are waived. The previous question shall be considered as ordered on the bill and on any amendment thereto to final passage without intervening motion except: (1) one hour of debate equally divided and controlled by the chair and ranking minority member of the Committee on Financial Services; and (2) one motion to recommit.

SEC. 3. The House hereby (1) takes from the Speaker's table the concurrent resolution (S. Con. Res. 11) setting forth the congressional budget for the United States Government for fiscal year 2016 and setting forth the appropriate budgetary levels for fiscal years 2017 through 2025; (2) adopts an amendment in the nature of a substitute consisting of the text of House Concurrent Resolution 27, as adopted by the House; and (3) adopts such concurrent resolution, as amended.

The SPEAKER pro tempore. The gentleman from Texas is recognized for 1 hour.

Mr. SESSIONS. Mr. Speaker, for the purpose of debate only, I yield the customary 30 minutes to the gentleman from Massachusetts (Mr. MCGOVERN), my friend, pending which I yield myself such time as I may consume. During consideration of this resolution, all time yielded is for the purpose of debate only.

GENERAL LEAVE

Mr. SESSIONS. Mr. Speaker, I ask unanimous consent that all Members have 5 legislative days to revise and extend their remarks.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Texas?

There was no objection.

Mr. SESSIONS. Mr. Speaker, I rise today in support of a rule and the underlying bills that make it easier for hard-working families to purchase a home.

I would like to be perfectly clear from the outset. These bills are about increasing access to affordable housing. They are about helping middle class men and women in our country gain a little bit better footing to help them along their American Dream, and that is why we are here today.

What we are trying to do is get the government out of the way so that more Americans can purchase the homes of their choice. These bills are about achieving the American Dream of owning your own home. That brings us closer to why we are here today. We are here to help families who want to own their own home and to live the American Dream.

The administration's Big Government regulations have made it harder for American families to own a home, so we are here to empower them, instead of rules and regulations by Washington bureaucrats.

The ball of red tape coming out of Washington grows daily, and day by day, it spreads beyond the housing market. It ties the hands of families who want to own their own home, as well as the hands of business that want to hire new employees and investors that want to fund the next new big idea to make America stronger and better and to build jobs.

Modest, reasonable regulation does have its place; overregulation does not. Overregulation stifles economic growth. It gets in the way and makes it harder for families to pull themselves not only out of poverty, but it keeps them from gaining the footing to get into the middle class. Ultimately, unreasonable regulation destroys a shot that people have at the American Dream.

The problem with overregulation is that it is everywhere. This administration enjoys and relishes the opportunity to inflict themselves on every part of the American economy because they believe Washington knows best. Well, we just can't live this way and have people have their say and whack at the American Dream, also.

Unfortunately, overregulation is like the weeds in the backyard; they have to be removed. One by one, that is how you gain accomplishment. That is what happened yesterday when the chairman of the Financial Services Committee, Chairman JEB HENSARLING from Dallas, Texas, brought some reasonable opportunities to the Rules Committee for us to consider.

What are we doing here today? We are removing just a few of the regulatory weeds that were promulgated by the Consumer Financial Protection Bureau, or CFPB. These mortgages that we are talking about have rules that make it harder for low- and moderate-income Americans to qualify for a mortgage—harder.

They negatively impact consumers and community banks who offer the majority of these loans to middle class Americans, and it makes them outside of the ability that people have to get them because of the high cost of regulation.

These costs are passed on to consumers who, once again, are victims to an overzealous regulatory regime who stated that they were there to help the consumer in the first place.

Mr. Speaker, we are here today because we have a bipartisan piece of legislation that has gained over the last few years more people who understand the issues—not only those in the Financial Services Committee, but across Congress—and we are here today because of what is a good bill to remove a few weeds from the garden one at a time. Chairman HENSARLING has given us that chance today.

Mr. Speaker, I reserve the balance of my time.

Mr. MCGOVERN. Mr. Speaker, I want to thank the distinguished chairman of the Rules Committee, Mr. SESSIONS, for the customary 30 minutes, and I yield myself such time as I may consume.

(Mr. MCGOVERN asked and was given permission to revise and extend his remarks.)

Mr. MCGOVERN. Mr. Speaker, 2 weeks ago, before we left for our district work period, this House worked in a responsible and bipartisan way to permanently fix the sustainable growth rate formula.

Unfortunately, we return to the floor this week with legislation intended to further undermine the Dodd-Frank financial reform law and give huge tax breaks to the wealthiest Americans by repealing the estate tax without even finding an offset, thereby increasing our deficit.

What we should be doing today, Mr. Speaker, is considering legislation to strengthen financial protection for consumers, create jobs, and ensure the continuation of our economic recovery; or, in honor of Equal Pay Day, we should debate and vote on the Paycheck Fairness Act to ensure that women get paid for equal work.

A full-time working woman still earns significantly less than what a man earns for comparable work. It turns out that women earn nearly 25 cents less than a man for doing the same work. Achieving equal pay for women should be the top of our priority list, but, unfortunately, this Republican majority has denied us a vote on this critical issue.

Today, instead, we will consider two pieces of legislation under a closed process to roll back important Dodd-Frank consumer protections.

H.R. 650, the Preserving Access to Manufactured Housing Act, strips from manufactured homeowners critical protections enacted by Congress as part of the Dodd-Frank financial reform law.

Manufactured homes are an important affordable housing option for many low- and moderate-income families, especially families living in rural areas. It is critical that these homeowners are able to have access to the same consumer protections afforded to consumers with traditional mortgages.

H.R. 685, the Mortgage Choice Act, would allow mortgages with higher fees to improperly qualify for the qualified mortgage standards established by the Consumer Financial Protection Bureau. By removing affiliated title insurance fees from the 3 percent cap established by the CFPB, creditors could be incentivized to direct borrowers to expensive affiliates.

Passage of this legislation could ultimately drive up the cost of mortgages, limit competition in the marketplace, and undo borrower protections.

□ 1245

A coalition of civil rights organizations, including the Center for Responsible Lending, the Leadership Conference on Civil and Human Rights, the NAACP, and I could go on and on and on, has urged the House to reject these bills, as they ''could trigger the return of predatory lending, irresponsible underwriting, excessive fees, and the lax

regulatory environment that sparked the housing crisis.''

Now, Mr. Speaker, I know that my friends in the majority don't like the Dodd-Frank financial reform law. They have made countless attempts to overturn the commonsense provisions contained in the law that protect consumers and work to prevent another financial crisis.

But I don't think anybody in this House should want to set the stage for another financial crisis, and I have serious concerns about the process being used by the majority to repeal Dodd-Frank.

My friend, the ranking member on the Financial Services Committee, MAXINE WATERS, has worked in good faith with the majority on legislation to make technical corrections to Dodd-Frank and other bipartisan updates. In fact, just yesterday, this House passed several pieces of legislation from the Financial Services Committee with overwhelming support from both sides of the aisle.

But the two bills that we are considering today fall far short of that goal. Mr. Speaker, after the passage of a clean Homeland Security bill and the SGR fix, I had hoped that bipartisan cooperation in legislating would be contagious. I was wrong.

Today, the Republicans are back to their old ways of bringing up ''my way or the highway bills'' that will be brought to the floor under a closed rule and then vetoed by the President.

I urge my colleagues to defeat this rule and the underlying legislation.

Mr. Speaker, I reserve the balance of my time.

Mr. SESSIONS. Mr. Speaker, the gentleman is going to have just his opportunity today because I am sure we are going to vote on this.

I would like to advise the gentleman that I have no speakers. We spent a couple of hours yesterday in the Rules Committee fully debating this, understanding this bipartisan bill, and so I want to advise the gentleman that I will allow him to use the time. I would like to ask if he has any speakers.

Mr. MCGOVERN. I do.

Mr. SESSIONS. Mr. Speaker, I reserve the balance of my time.

Mr. MCGOVERN. Mr. Speaker, I yield myself such time as I may consume.

In honor of Equal Pay Day, if we defeat the previous question, which I will ask Members to vote ''no'' on, we will offer an amendment to the rule that will allow the House to consider the Paycheck Fairness Act.

In this day and age, it is an outrage that women in the United States still make less compared to men for the same work. This bill will help close that pay gap, empower women, and ensure that they get the respect and the compensation that they deserve.

When we talk about paycheck fairness, Mr. Speaker, we also should remember that this is not just a women's issue; it is a family issue. Families increasingly rely on women's wages to make ends meet, and with less take-home pay, women have less for the everyday needs of their families, from groceries to rent to child care to doctors' visits.

This is discrimination that exists in the United States of America, and we in this Chamber have an opportunity to end it.

We cannot get the Republicans in this House to allow us to have an up-or-down, clean vote on this, so this is the only means available to us. At least have a debate on the Paycheck Fairness Act.

Mr. Speaker, I yield 3 minutes to the gentlewoman from Massachusetts (Ms. CLARK).

Ms. CLARK of Massachusetts. Mr. Speaker, I thank my colleague from Massachusetts.

Congress often talks about strengthening the middle class and growing our economy. For many years now, we have had an opportunity to pass a commonsense bill that will actually help us do just that. It was the very first bill that I cosponsored.

The Paycheck Fairness Act ensures equal pay for equal work and will help us end wage discrimination for half of our workforce.

Recent reports tell us that, given current trends, pay equity between women and men will not be achieved until 2058. We shouldn't have to wait until our children are ready to retire before women are finally paid what they are worth.

Women are losing hundreds of thousands of dollars over their lifetime due to wage discrimination. And for women of color, it is an even worse situation. African American women, on average, earn only 64 cents, and Latinas, on average, earn only 56 cents for every dollar earned by White men.

When women aren't paid what they are worth, that means less money for their families, less money for child care, less money for gas and groceries, and less money to help them prepare for the future.

When wage discrimination persists, women and their families are less able to contribute to the economy, and that hurts all of us. Ending wage discrimination for our workforce is just common sense. That is why today, on Equal Pay Day, I urge my colleagues to recommit to restoring the middle class and growing our economy by supporting the Paycheck Fairness Act.

Mr. SESSIONS. Mr. Speaker, I hope the gentlewoman recognizes she needs to be talking to the White House probably most of all. During the last few years, every time this issue comes up, we refer to White House pay and equity among women who work at the White House, compared to their colleagues, and so this might just be one of those bills that the White House would veto because they could follow what they choose but maybe they wouldn't want this to be the law, or maybe they would want this to be the law so they could correct what they do at the White House for equal pay for equal work, women among their colleagues.

Mr. Speaker, I reserve the balance of my time.

Mr. MCGOVERN. Mr. Speaker, I yield myself such time as I may consume.

I don't think we have any other speakers here.

Mr. Speaker, I ask unanimous consent to insert the text of the amendment that I would like to offer in the RECORD, along with extraneous materials, immediately prior to the vote on the previous question.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Massachusetts?

There was no objection.

Mr. MCGOVERN. Again, I will remind my colleagues that if we could defeat the previous question, we will bring up the Paycheck Fairness Act. It has been somewhat of a puzzlement to me that it has been so difficult, in this Republican-controlled House, to bring up legislation that would outlaw and end discrimination against women, and that is what this is.

When a woman is working at the same job a man is and getting paid less for that same work, that is discrimination, and there is no way around that fact. And we have the opportunity, in this House, and in the Senate, to end it.

But yet we can't get this bill to the floor for the kind of up-or-down, clean vote that we have been looking for for now quite a long time.

As I mentioned, Mr. Speaker, this is not just a women's issue; it is a family issue. We are all talking about how this economy is not recovering as fast as we would like it to. We all like to talk about how we wish that people would earn a little bit more in their paychecks.

Well, here is one way to do it. Make sure women get paid what they deserve, what they have earned. This should not be a controversial issue. This should not be something that requires that we can't get a vote on the floor.

So we are now kind of relying on this procedural motion, by defeating the previous question, to try to at least get a debate on this and to try to get at least some people on record as saying we ought to have an up-or-down vote on this.

As far as the underlying bill is concerned, Mr. Speaker, the underlying bill that we are considering here today, again, I would urge my colleagues to vote ''no'' on this rule because it is a closed rule, and they are two bills that would undermine the Dodd-Frank financial reform legislation.

Let me remind my colleagues why we have the Dodd-Frank legislation to begin with, and that is because we saw what the excesses of some in the financial industry had done. Our economy almost was ruined because of those excesses, and consumer rights were routinely trampled on.

So we passed, in my opinion, a moderate and sensible kind of check on

some of these financial institutions—that is the Dodd-Frank legislation. My colleagues on the other side of the aisle, and again, it is a puzzlement to me, have spent almost every waking moment that they have trying to undo that, trying to take away protections for consumers, trying to take away protections for small businesses, for homeowners. It doesn't make any sense. It doesn't make any sense at all.

So, Mr. Speaker, again I would urge my colleagues to vote ''no'' on the previous question, and I would urge them to vote ''no'' on this closed rule.

Again, just to make this point crystal clear, the Equal Pay Act that we are talking about is nothing more than an attempt to end what continues to be a discriminatory practice in the United States. Nobody should be defending a practice that allows women to get paid less than men for doing the same job. That is discrimination, pure and simple, and we ought to bring that to an end.

So I would urge my colleagues to vote ''no'' on the previous question and ''no'' on the rule.

Mr. Speaker, I yield back the balance of my time.

Mr. SESSIONS. Mr. Speaker, I want to thank the gentleman from Massachusetts. He had to sit through the long hearing yesterday, and it was a most interesting one.

I yield myself such time as I may consume.

I want to point out that the Rules Committee asked Members and their offices to submit any ideas and amendments regarding this bill, and none were submitted. That is why we have a closed rule. That is why H.R. 685, the Mortgage Choice Act, and H.R. 650, Preserving Access to Manufactured Housing Act, are both under a closed rule because we tried to make it available to as many Members as chose, and no one took us up on it.

Mr. Speaker, we are here because we have two Members who have worked hard in committee, they have worked hard over the last few years as new, young members of this Republican majority, BILL HUIZENGA from Michigan and STEPHEN FINCHER from Tennessee, who worked very diligently inside the Financial Services Committee over the years and have brought these bills back to us.

This is not their first appearance. We now have a Senate, however, that we believe will take up these bills.

Republicans are committed to reducing the regulatory burden that makes it harder for families to get homes. In this case, it may be manufactured housing, it may be directly aimed at the middle class. It may help people a lot. The answer is, yes, it does. And that is why we are doing this.

We are taking our time today because the middle class of this country deserves a right for us to pay attention to them. And community banks, small banks back home that people walk into, see the same people, day after day, year after year, who live in these communities, community bankers are there to help grow not only the middle class but also rural America and the areas that oftentimes are in agriculture areas, perhaps in the areas where there is a lot of energy exploration.

People choose to have their own roof over their own head and need a chance to get a loan, need a chance to take care of their families.

So, look, we are willing to keep working out and reaching out to Democrats. This is a bipartisan bill, and we are willing to do whatever it takes so that individuals and families can help realize this American Dream.

Mr. MCGOVERN. Will the gentleman yield?

Mr. SESSIONS. I yield to the gentleman from Massachusetts.

Mr. MCGOVERN. I wonder if the gentleman would be kind enough to allow me to reclaim the balance of my time because I had yielded back, and two of our speakers have just shown up.

Mr. SESSIONS. Mr. Speaker, I reserve the balance of my time.

Mr. MCGOVERN. Mr. Speaker, I ask unanimous consent to reclaim the balance of the time I yielded back.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Massachusetts?

There was no objection.

Mr. MCGOVERN. Mr. Speaker, I yield 3 minutes to the gentlewoman from Connecticut (Ms. DELAURO).

Ms. DELAURO. Mr. Speaker, I rise to ask Members to defeat the previous question so that the gentleman from Massachusetts (Mr. MCGOVERN) can offer an amendment for the House to immediately consider the Paycheck Fairness Act.

Three weeks ago, I reintroduced the Paycheck Fairness Act. My bill would finish the job started by the Equal Pay Act some 50 years ago. It would end pay secrecy across the board. It would require employers to prove that pay disparities are not based on gender, and passing the bill would give teeth to a very, very simple principle: men and women in the same job deserve the same pay.

The Paycheck Fairness Act has passed the House twice already, with bipartisan support I might add. It has come just two votes shy of passing in the other body.

President Obama has called on us to pass it. More crucially still, the American people know the importance of paycheck fairness.

In October, a Gallup poll asked Americans to identify the top issue facing women in the workplace. Equal pay was, by far, the most common response among men as well as women.

All across the country today, working families are in trouble. Their wages are stagnant. They are in jobs that just don't pay them enough to be able to pay their bills. They are struggling to heat their homes and to feed their children.

Equal pay is a crucial part of the solution to this problem, since women are more than half of the workforce. Two-thirds of us are breadwinners for our families. Lower pay for women means less gas in the car, less food on the table, less money in the college fund, and less spending to support our economy.

Today is yet another Equal Pay Day. What Equal Pay Day means is that it has taken 104 days for the average woman's earnings to catch up with what the average man made last year. That is exactly 104 days too long.

Fifty-two years since the Equal Pay Act became law, a woman still only makes 78 cents, on average, for every dollar earned by a man. The gap has barely changed in over a decade.

For women of color the disparities are wider still. Their Equal Pay Day will not arrive until May or June.

Even in nursing, a profession that is more than 90 percent female, a study last month showed that men earned $5,100 more per year, on average, than women when controlling for education, experience, and other factors.

Clearly, we must do more to close the gender pay gap. President Obama and the Department of Labor have shown the way by taking action to protect women who work for Federal contractors. It is now time that we in the Congress act to extend real, enforceable pay equity protection to all women.

Equal pay for equal work is the right thing to do. It is the smart thing to do. It, in fact, would reflect what today's economy is all about with women being in the workplace overwhelmingly. It is time to make it a reality for all Americans, and I ask my colleagues to defeat the previous question.

I thank the gentleman from Massachusetts.

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Mr. SESSIONS. Mr. Speaker, I reserve the balance of my time.

Mr. MCGOVERN. Mr. Speaker, I yield 2 minutes to the gentleman from Colorado (Mr. POLIS), my distinguished colleague on the Rules Committee.

Mr. POLIS. I thank both the gentleman from Texas as well as the gentleman from Massachusetts for the time.

Mr. Speaker, I rise in support of Equal Pay Day.

Today, April 14, marks the day in which women's earnings from January 2014 have reached men's earnings in 2014 alone.

In one of the wealthiest, most progressive countries in the world, women still find themselves 3½ months behind men in wage disbursement. That means that for every dollar earned by men in the United States, only 78 cents are earned by women. For a woman working full time over the span of her career, that means a total loss of $430,000, nearly $500,000. Non-White, disabled, and LGBT women fare even worse, with some making as little as 56 cents to every dollar earned by men in comparable positions.

I am proud to join my colleagues today in recognition of the fact that this disparity is not only antiquated, but economically regressive and morally indefensible.

It has been proven time and time again that increasing pay for women has a direct and immediate impact on improving our economy and the health of American families. Fairly compensating women is not only the right thing to do, but it would increase consumer demand, create jobs, and raise the GDP.

Today, on Lilly Ledbetter's birthday, it is time for Congress to act to enable women to support America's children and families and end this crippling drag on our Nation's economic prosperity and moral stain on our country. It is time we play our part in ending the gender gap.

Mr. SESSIONS. Mr. Speaker, I am delighted that the gentleman was able to have these two additional bright speakers, including the gentleman from the Rules Committee, Mr. POLIS. So things worked out very well.

I want to thank my dear friend from Massachusetts (Mr. MCGOVERN) who asked for this, and I believe that I have responded in-kind.

I reserve the balance of my time.

Mr. MCGOVERN. Mr. Speaker, let me, first of all, thank the chairman of the Rules Committee for his courtesy and generosity in allowing two of my colleagues who feel very strongly about these issues to have an opportunity to speak. I am very, very grateful. So, as a reward, I am not going to say anything else other than to urge my colleagues to vote ''no'' on the previous question and vote ''no'' on the rule.

I yield back the balance of my time.

Mr. SESSIONS. Mr. Speaker, once again, the relationship that the gentleman and I share is very good. We spend hours a week with each other, and we know that occasionally we have different speakers come, and I am delighted that I was able to give him that opportunity.

Mr. Speaker, as I began closing a minute ago, let's take a step in the right direction right now, right here today. Let's take these two bills that came directly from the gentleman from Tennessee (Mr. FINCHER) and the gentleman from Michigan (Mr. HUIZENGA) at the urging of the Financial Services Committee. I believe this is the right thing to do on, I believe, an overwhelmingly bipartisan basis of that committee.

I urge my colleagues to support this rule and the underlying bill.

The material previously referred to by Mr. MCGOVERN is as follows:

AN AMENDMENT TO H. RES. 189 OFFERED BY MR. MCGOVERN OF MASSACHUSETTS

At the end of the resolution, add the following new sections:

SEC. 4. Immediately upon adoption of this resolution the Speaker shall, pursuant to clause 2(b) of rule XVIII, declare the House resolved into the Committee of the Whole House on the state of the Union for consideration of the bill (H.R. 1619) to amend the Fair Labor Standards Act of 1938 to provide more effective remedies to victims of discrimination in the payment of wages on the basis of sex, and for other purposes. General debate shall be confined to the bill and shall not exceed one hour equally divided and controlled by the chair and ranking minority member of the Committee on Education and the Workforce. After general debate the bill shall be considered for amendment under the five-minute rule. All points of order against provisions in the bill are waived. At the conclusion of consideration of the bill for amendment the Committee shall rise and report the bill to the House with such amendments as may have been adopted. The previous question shall be considered as ordered on the bill and amendments thereto to final passage without intervening motion except one motion to recommit with or without instructions. If the Committee of the Whole rises and reports that it has come to no resolution on the bill, then on the next legislative day the House shall, immediately after the third daily order of business under clause 1 of rule XIV, resolve into the Committee of the Whole for further consideration of the bill.

SEC. 5. Clause 1(c) of rule XIX shall not apply to the consideration of H.R. 1619.

THE VOTE ON THE PREVIOUS QUESTION: WHAT IT REALLY MEANS

This vote, the vote on whether to order the previous question on a special rule, is not merely a procedural vote. A vote against ordering the previous question is a vote against the Republican majority agenda and a vote to allow the Democratic minority to offer an alternative plan. It is a vote about what the House should be debating.

Mr. Clarence Cannon's Precedents of the House of Representatives (VI, 308–311), describes the vote on the previous question on the rule as ''a motion to direct or control the consideration of the subject before the House being made by the Member in charge.'' To defeat the previous question is to give the opposition a chance to decide the subject before the House. Cannon cites the Speaker's ruling of January 13, 1920, to the effect that ''the refusal of the House to sustain the demand for the previous question passes the control of the resolution to the opposition'' in order to offer an amendment. On March 15, 1909, a member of the majority party offered a rule resolution. The House defeated the previous question and a member of the opposition rose to a parliamentary inquiry, asking who was entitled to recognition. Speaker Joseph G. Cannon (R–Illinois) said: ''The previous question having been refused, the gentleman from New York, Mr. Fitzgerald, who had asked the gentleman to yield to him for an amendment, is entitled to the first recognition.''

The Republican majority may say ''the vote on the previous question is simply a vote on whether to proceed to an immediate vote on adopting the resolution . . . [and] has no substantive legislative or policy implications whatsoever.'' But that is not what they have always said. Listen to the Republican Leadership Manual on the Legislative Process in the United States House of Representatives, (6th edition, page 135). Here's how the Republicans describe the previous question vote in their own manual: ''Although it is generally not possible to amend the rule because the majority Member controlling the time will not yield for the purpose of offering an amendment, the same result may be achieved by voting down the previous question on the rule. . . . When the motion for the previous question is defeated, control of the time passes to the Member who led the opposition to ordering the previous question. That Member, because he then controls the time, may offer an amendment to the rule, or yield for the purpose of amendment.''

In Deschler's Procedure in the U.S. House of Representatives, the subchapter titled ''Amending Special Rules'' states: ''a refusal to order the previous question on such a rule [a special rule reported from the Committee on Rules] opens the resolution to amendment and further debate.'' (Chapter 21, section 21.2) Section 21.3 continues: ''Upon rejection of the motion for the previous question on a resolution reported from the Committee on Rules, control shifts to the Member leading the opposition to the previous question, who may offer a proper amendment or motion and who controls the time for debate thereon.''

Clearly, the vote on the previous question on a rule does have substantive policy implications. It is one of the only available tools for those who oppose the Republican majority's agenda and allows those with alternative views the opportunity to offer an alternative plan.

Mr. SESSIONS. Mr. Speaker, I yield back the balance of my time, and I move the previous question on the resolution.

The SPEAKER pro tempore. The question is on ordering the previous question.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Mr. MCGOVERN. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 9 of rule XX, the Chair will reduce to 5 minutes the minimum time for any electronic vote on the question of adoption.

The vote was taken by electronic device, and there were—yeas 239, nays 183, not voting 9, as follows:

[Roll No. 148]

YEAS—239

Abraham	Conaway	Graves (LA)
Aderholt	Cook	Graves (MO)
Allen	Costello (PA)	Griffith
Amash	Cramer	Grothman
Amodei	Crawford	Guinta
Babin	Crenshaw	Guthrie
Barletta	Culberson	Hardy
Barr	Curbelo (FL)	Harper
Barton	Davis, Rodney	Harris
Benishek	Denham	Hartzler
Bilirakis	Dent	Heck (NV)
Bishop (MI)	DesJarlais	Hensarling
Bishop (UT)	Diaz-Balart	Herrera Beutler
Black	Dold	Hice, Jody B.
Blackburn	Duffy	Hill
Blum	Duncan (SC)	Holding
Bost	Duncan (TN)	Hudson
Boustany	Ellmers (NC)	Huelskamp
Brady (TX)	Emmer (MN)	Huizenga (MI)
Brat	Farenthold	Hultgren
Bridenstine	Fincher	Hunter
Brooks (AL)	Fitzpatrick	Hurd (TX)
Brooks (IN)	Fleischmann	Hurt (VA)
Buchanan	Fleming	Issa
Buck	Flores	Jenkins (KS)
Bucshon	Forbes	Jenkins (WV)
Burgess	Fortenberry	Johnson (OH)
Byrne	Foxx	Johnson, Sam
Calvert	Franks (AZ)	Jolly
Carter (GA)	Frelinghuysen	Jones
Carter (TX)	Garrett	Jordan
Chabot	Gibbs	Joyce
Chaffetz	Gibson	Katko
Clawson (FL)	Gohmert	Kelly (PA)
Coffman	Goodlatte	King (IA)
Cole	Gosar	King (NY)
Collins (GA)	Gowdy	Kinzinger (IL)
Collins (NY)	Granger	Kline
Comstock	Graves (GA)	Knight

Labrador
LaMalfa
Lamborn
Lance
Latta
LoBiondo
Long
Love
Lucas
Luetkemeyer
Lummis
MacArthur
Marchant
Marino
Massie
McCarthy
McCaul
McClintock
McHenry
McKinley
McMorris Rodgers
McSally
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Newhouse
Noem
Nugent
Nunes
Olson
Palazzo
Palmer
Paulsen
Pearce
Perry
Pittenger
Pitts
Poe (TX)
Poliquin
Pompeo
Posey
Price, Tom
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Ros-Lehtinen
Roskam
Ross
Rothfus
Rouzer
Royce
Russell
Salmon
Sanford
Scalise
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Stefanik
Stewart
Stivers
Stutzman
Thompson (PA)
Thornberry
Tiberi
Tipton
Trott
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin
Zinke

NAYS—183

Adams
Aguilar
Ashford
Beatty
Becerra
Bera
Beyer
Bishop (GA)
Blumenauer
Bonamici
Boyle, Brendan F.
Brady (PA)
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cooper
Costa
Courtney
Crowley
Cuellar
Cummings
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
DelBene
DeSaulnier
Deutch
Dingell
Doggett
Doyle, Michael F.
Duckworth
Edwards
Engel
Eshoo
Esty
Farr
Fattah
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Graham
Grayson
Green, Al
Green, Gene
Grijalva
Gutiérrez
Hahn
Hastings
Heck (WA)
Higgins
Himes
Honda
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kirkpatrick
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lee
Levin
Lewis
Lieu, Ted
Lipinski
Loebsack
Lofgren
Loudermilk
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maloney, Carolyn
Maloney, Sean
Matsui
McCollum
McDermott
McGovern
McNerney
Meeks
Meng
Moore
Moulton
Murphy (FL)
Nadler
Napolitano
Neal
Nolan
Norcross
O'Rourke
Pallone
Pascrell
Payne
Pelosi
Perlmutter
Peters
Peterson
Pingree
Pocan
Polis
Price (NC)
Quigley
Rangel
Rice (NY)
Richmond
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Schrader
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Sherman
Sinema
Sires
Slaughter
Speier
Swalwell (CA)
Takai
Takano
Thompson (CA)
Thompson (MS)
Titus
Tonko
Torres
Tsongas
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Welch
Wilson (FL)
Yarmuth

NOT VOTING—9

Bass
DeSantis
Ellison
Hanna
Hinojosa
Roybal-Allard
Ruiz
Ryan (WI)
Smith (WA)

□ 1333

Mr. SCOTT of Virginia changed his vote from ''yea'' to ''nay.''

Mr. HULTGREN changed his vote from ''nay'' to ''yea.''

So the previous question was ordered.

The result of the vote was announced as above recorded.

Stated against:

Mr. HINOJOSA. Mr. Speaker, on rollcall No. 148, had I been present, I would have voted "no."

The SPEAKER pro tempore. The question is on the resolution.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

RECORDED VOTE

Mr. McGOVERN. Mr. Speaker, I demand a recorded vote.

A recorded vote was ordered.

The SPEAKER pro tempore. This is a 5-minute vote.

The vote was taken by electronic device, and there were—ayes 237, noes 185, not voting 9, as follows:

[Roll No. 149]

AYES—237

Abraham
Aderholt
Allen
Amash
Amodei
Babin
Barletta
Barr
Barton
Benishek
Bilirakis
Bishop (MI)
Bishop (UT)
Black
Blackburn
Blum
Bost
Boustany
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Buchanan
Buck
Bucshon
Burgess
Byrne
Calvert
Carter (GA)
Carter (TX)
Chabot
Chaffetz
Clawson (FL)
Coffman
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Cook
Costello (PA)
Cramer
Crawford
Crenshaw
Culberson
Curbelo (FL)
Davis, Rodney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Dold
Duffy
Duncan (SC)
Duncan (TN)
Ellmers (NC)
Emmer (MN)
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Garrett
Gibbs
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Griffith
Grothman
Guinta
Guthrie
Hardy
Harper
Harris
Hartzler
Heck (NV)
Hensarling
Herrera Beutler
Hice, Jody B.
Hill
Holding
Hudson
Huelskamp
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Issa
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, Sam
Jolly
Jones
Jordan
Joyce
Katko
Kelly (PA)
King (IA)
King (NY)
Kinzinger (IL)
Kline
Knight
Labrador
LaMalfa
Lamborn
Lance
Latta
LoBiondo
Long
Loudermilk
Love
Lucas
Luetkemeyer
Lummis
MacArthur
Marchant
Marino
McCarthy
McCaul
McClintock
McHenry
McKinley
McMorris Rodgers
McSally
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Newhouse
Noem
Nugent
Nunes
Olson
Palazzo
Palmer
Paulsen
Pearce
Perry
Pittenger
Pitts
Poe (TX)
Poliquin
Pompeo
Posey
Price, Tom
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Ros-Lehtinen
Roskam
Ross
Rothfus
Rouzer
Royce
Russell
Salmon
Sanford
Scalise
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Stefanik
Stewart
Stivers
Stutzman
Thompson (PA)
Thornberry
Tiberi
Tipton
Trott
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Westmoreland
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin
Zinke

NOES—185

Adams
Aguilar
Ashford
Beatty
Becerra
Bera
Beyer
Bishop (GA)
Blumenauer
Bonamici
Boyle, Brendan F.
Brady (PA)
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cooper
Costa
Courtney
Crowley
Cuellar
Cummings
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
DelBene
DeSaulnier
Deutch
Dingell
Doggett
Doyle, Michael F.
Duckworth
Edwards
Engel
Eshoo
Esty
Farr
Fattah
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Gibson
Graham
Grayson
Green, Al
Green, Gene
Grijalva
Gutiérrez
Hahn
Hastings
Heck (WA)
Higgins
Himes
Hinojosa
Honda
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kirkpatrick
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lee
Levin
Lewis
Lieu, Ted
Lipinski
Loebsack
Lofgren
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maloney, Carolyn
Maloney, Sean
Massie
Matsui
McCollum
McDermott
McGovern
McNerney
Meeks
Meng
Moore
Moulton
Murphy (FL)
Nadler
Napolitano
Neal
Nolan
Norcross
O'Rourke
Pallone
Pascrell
Payne
Pelosi
Perlmutter
Peters
Peterson
Pingree
Pocan
Polis
Price (NC)
Quigley
Rangel
Rice (NY)
Richmond
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Schrader
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Sherman
Sinema
Sires
Slaughter
Speier
Swalwell (CA)
Takai
Takano
Thompson (CA)
Thompson (MS)
Titus
Tonko
Torres
Tsongas
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Welch
Wilson (FL)
Yarmuth

NOT VOTING—9

Bass	Huizenga (MI)	Ryan (WI)
Ellison	Roybal-Allard	Smith (WA)
Hanna	Ruiz	Whitfield

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore (during the vote). There are 2 minutes remaining.

□ 1353

Mr. JEFFRIES changed his vote from ''aye'' to ''no.''

Mrs. COMSTOCK, Ms. MCSALLY, and Mr. KATKO changed their vote from ''no'' to ''aye.''

So the resolution was agreed to.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

PERSONAL EXPLANATION

Mr. RYAN of Wisconsin. Mr. Speaker, during the course of the week, I was absent for legislative business; had I been present, I would have cast the following votes: rollcall 145—H.R. 1259—On Motion to Suspend the Rules and Pass—''yes,'' rollcall 146—H.R. 1265—On Motion to Suspend the Rules and Pass—''yes,'' rollcall 147—H.R. 1480—On Motion to Suspend the Rules and Pass—''yes,'' rollcall 148—H. Res. 189—On Ordering the Previous Question—''yes,'' rollcall 149—H. Res. 189—On Agreeing to the Resolution—''yes.''

Ms. ROYBAL-ALLARD. Mr. Speaker, I was unavoidably detained and was not present for two roll call votes on Tuesday, April 14, 2015. Had I been present, I would have voted in this manner: rollcall Vote No. 148—Motion on Ordering the Previous Question on the Rule—''no,'' rollcall Vote No. 149—On Agreeing to the Resolution—''no.''

The SPEAKER pro tempore. Pursuant to House Resolution 189, Senate Concurrent Resolution 11, as amended, is considered as adopted.

APPOINTMENT OF CONFEREES ON S. CON. RES. 11, CONCURRENT RESOLUTION ON THE BUDGET, FISCAL YEAR 2016

Mr. TOM PRICE of Georgia. Mr. Speaker, pursuant to clause 1 of rule XXII, and at the direction of the Committee on the Budget, I offer a motion.

The SPEAKER pro tempore. The Clerk will report the motion.

The Clerk read as follows:

Mr. Price of Georgia moves that the House take from the Speaker's table Senate Concurrent Resolution 11, with the House amendment thereto, insist on the House amendment, and request a conference with the Senate thereon.

The SPEAKER pro tempore. The gentleman from Georgia is recognized for 1 hour.

Mr. TOM PRICE of Georgia. Mr. Speaker, I yield myself such time as I may consume.

I will remind my colleagues that, the week before we left for our Easter break, the House passed a budget in this Chamber and that the Senate passed a budget as well, and this motion does something very simple. It simply says that we will work to combine the best features of those two resolutions: to restrain the size and the scope of government, to reduce spending, and to balance the budget without raising taxes.

I yield back the balance of my time, and I move the previous question on the motion.

The previous question was ordered.

The SPEAKER pro tempore (Mr. POE of Texas). The question is on the motion offered by the gentleman from Georgia (Mr. TOM PRICE).

The motion was agreed to.

A motion to reconsider was laid on the table.

MOTION TO INSTRUCT OFFERED BY MR. VAN HOLLEN

Mr. VAN HOLLEN. Mr. Speaker, I have a motion to instruct at the desk.

The SPEAKER pro tempore. The Clerk will report the motion.

The Clerk read as follows:

Mr. Van Hollen moves that the managers on the part of the House at the conference on the disagreeing votes of the two Houses on the resolution S. Con. Res. 11 be instructed—

(1) to recede from its disagreement with the Senate with respect to section 363 of S. Con. Res. 11 (relating to the requirement for earned paid sick time to address the health needs of workers and their families); and

(2) to recede from subsection (c)(3) of section 808 of the House Amendment (relating to changing the current Medicare program, and replacing it with premium support payments).

The SPEAKER pro tempore. Pursuant to clause 7 of rule XXII, the gentleman from Maryland (Mr. VAN HOLLEN) and the gentleman from Georgia (Mr. TOM PRICE) each will control 30 minutes.

The Chair recognizes the gentleman from Maryland.

Mr. VAN HOLLEN. Mr. Speaker, I yield myself such time as I may consume.

The House has passed a budget. It is a budget that is wrong for America. It does not reflect our country's priorities, and it does not reflect our values. What it says to the American people is work harder and take home less. That is the House budget. We also have the Senate budget. The Senate budget is also wrong for America. The Senate budget also says to the American people work harder and take home less. That is the message.

When you have got a House budget that is wrong for America and a Senate budget that is wrong for America, both which say to the country ''work harder and take home less,'' the midpoint between the two—or any point between the two—is also wrong for America and also says to the American people work harder and take home less.

Now, why do I say that both the House and the Senate budgets say ''work harder and take home less''?

It is because, amazingly, they both actually increase the tax burden on working families. How? They actually phase out the increase in the child tax credit, which helps working families. They phase out the increase, or get rid of the increase, in the earned income tax credit. They entirely get rid of the higher education deduction. These are deductions that families use to help make college more affordable. They get rid of the Affordable Care Act tax credits, which help millions of Americans afford health insurance. They are squeezing hard-working, middle class families.

At the same time, the House budget calls for a big tax cut for folks at the very high end of the income scale—for millionaires. If you look at the Romney-Ryan tax plan, which this budget green-lights—sort of paves the way for—it would call for a one-third cut in the top tax rate. That is a huge windfall for the wealthiest in the country in the same budget that is increasing the tax burden on working families.

What else do the Republican budgets do?

They disinvest in America. They slash way below the lowest historical levels in recorded history the amount that we invest in the categories of the budget that help our kids' educations—early education, K–12, special education. They devastate that part of the budget that is used to invest in innovation and in scientific research, things that have helped power our economy.

□ 1400

Their budget assumes that the transportation trust fund will run dry in a few months. That is not accounted for within their budget numbers.

So that is what the Republican budgets do, both the House budget and the Senate budget. There is no way to remedy those problems in conference because any point between those two is bad for America.

The only way to remedy it would be if we were able to instruct the conferees to adopt the House Democratic budget proposal that we put forward a few weeks ago which actually provides additional tax relief to working families. It significantly increases the child and dependent care tax credit, so if you are a working family and want to make sure your child is in quality health care, you are going to get a little bit more tax relief; or if you have an elderly loved one at home that you want to make sure has quality care, you get a little more tax relief. If you are a two-worker family, we scale back the marriage penalty. So the Democratic budget actually provides more tax relief for working Americans while the Republican budget provides tax increases to working families.

The Democratic budget also invests in our future—in our kids' education, in scientific research, in transportation—by closing a lot of the tax breaks in the Code that actually encourage American companies to move jobs and capital overseas. We get rid of those loopholes and say let's invest the money here in America. That is what the Democratic budget does. The rules don't permit us to instruct the conferees to do the right thing and adopt that alternative which does reflect the

values and priorities of people around the country.

There are two little things where the Senate budget is actually minusculely better than the House budget, but they are important things. They are important things that passed in the Senate with a large Democratic vote and some Republican Senators as well.

One is a provision to say let's provide a fund, let's provide room in the budget for earned paid sick leave so that moms and dads who have kids who are sick at home don't have to choose between forgoing their income and caring for their kid at home. They don't have to choose between worrying about making their rent payment or their mortgage payment or their grocery bill payment on time and making sure their kids are cared for when they are sick. That is part of the Senate budget. So we are asking our colleagues to instruct the conferees to at least adopt that one little glimmer of good news in the Senate budget.

The other difference relates to the House proposal to turn Medicare into a voucher program at the end of the budget window. What does that plan do? What it does is it shifts the risks of higher costs within the Medicare system onto the backs of seniors, and the Congressional Budget Office has shown that for those seniors who choose to remain in the traditional Medicare program, their premiums would go up significantly. That is what the House budget does. It voucherizes the Medicare program. The Senate budget does not. So we are asking our colleagues to accept the Senate version which is not good when it comes to Medicare generally, but at least on this one point is better than the House bill.

Mr. Speaker, that is our motion to instruct. I wish we could instruct the conferees to adopt the Democratic budget proposal which, as I said, says to working families: We hear you; we know you are working harder than ever; we know you feel like you are on a treadmill; we know a lot of you feel like you are falling behind; and we have a budget to help you.

The Republican budget doesn't do that. It doesn't help at all. But at least maybe, in these two little things, we can send a signal today that we understand that working families are struggling, and we want to make sure that we do something to help them.

I reserve the balance of my time.

Mr. TOM PRICE of Georgia. Mr. Speaker, I yield myself such time as I may consume.

Our friends on the other side of the aisle seem to be so stuck in their Washington ways that they can't, they just can't see or recognize a positive solution when one is presented. I remind my colleague on the other side of the aisle that we are mired in the worst recovery, economic recovery in the modern era—the worst economic recovery in the modern era—slowest. In fact, there are fewer people working right now, Mr. Speaker, than there were when the recession began. That is what the other side has brought us. They want to double down on these policies. The American people clearly understand that there is a better way. There are positive solutions that we ought to be putting in place.

I want to talk specifically about the Medicare proposal because the distortion and mischaracterization of the positive patient-centered solution that we have put forward in the area of Medicare continues over and over and over from our friends on the other side, and it really doesn't contribute to the important work, the important conversation that we must have as a nation.

The fact of the matter, Mr. Speaker, is that, as you know and the American people know, the Medicare program is going broke. That is not Representative PRICE saying that. That is not me saying that. That is the Medicare actuaries, the folks who are charged with letting us know, as a nation, how the program is doing from a financial standpoint. What they say is that it is not doing very well, and it is getting worse and worse and worse. In fact, in 2030, the fact of the matter is that the program will not be able to provide the services that have been promised to seniors.

So the solution for our friends on the other side is what? Do nothing. Stick your head in the sand. Don't worry about that. Don't pay any attention to that man behind the curtain. Nothing. Under their plan, seniors in this country are destined to inherit, in a very short period of time, a Medicare program that doesn't provide the services promised.

I can tell you, Mr. Speaker, that as a formerly practicing physician, folks are concerned. I hear from my medical colleagues daily—literally, daily—the concerns that they have about our healthcare system, and especially about the Medicare program and about the challenges that exist because of governmental intervention and because of the rules and the regulations that are heaped upon more rules and more regulations to make it more difficult for them to even care for patients.

So what do we believe is the appropriate thing to do? We think we ought to save and strengthen and secure Medicare. That is the right solution. So in spite of the mischaracterization of our friends on the other side about the proposal that we put forward, it is, indeed, to save and strengthen and secure Medicare. The fact of the matter is seniors understand and appreciate that, and they desire us, as a body, to come together and solve that challenge, solve that challenge together. So I invite my friends to join us in working together for a positive solution.

Further, I do want to thank my colleague for bringing this motion to the floor today because this is an important debate that we are having. The debate is very fundamental. It is about how we are to build a stronger nation, how we are to provide greater opportunity for all Americans.

What we believe is that we recognize that the economy is not moving as it should, that wages are stagnant, that the economy is underperforming. At the very least, our friends on the other side ought to admit that we can do better. So it is a bit troubling to see that the policies that they continue to champion look remarkably similar to the sorts of policies that have been tried and, frankly, failed over the past 6 years. While our Nation has piled up trillions of dollars of more debt, our economy hasn't grown as it should. In fact, this has been, as I mentioned, the worst recovery in the modern era, leaving millions of Americans still struggling simply to make ends meet.

Our budget is a balanced budget, Mr. Speaker. We adopted a plan that would grow our economy, that would empower individuals, that would empower families and job creators in our local communities, all the while holding Washington accountable and protecting our Nation. Our budget, as you will recall, Mr. Speaker, balances in less than 10 years, and it does so without raising taxes, in contrast to the budget of our friends on the other side of the aisle and the President's budget, I might add, that never, ever, ever gets to balance.

We reduce spending at the governmental level by $5.5 trillion over a 10-year period of time, higher than any previous budget proposal. We call for a fairer and simpler Tax Code to promote job creation and a healthy economy. We repeal ObamaCare in its entirety, all of its taxes and regulations and its mandates so that we can put in place patient-centered health care, putting patients and families and doctors in charge of health care, not Washington, D.C., expanding the opportunity for access to quality, affordable health coverage. As I mentioned, we have a plan to save and strengthen and secure Medicare and Medicaid, things that are absolutely vital for the American people, and they understand that.

Our budget provides for a strong national defense, through robust funding of troop training and equipment and compensation. We promote innovation and flexibility in the area of Medicaid so that we can save that program, provide flexibility in the area of nutrition assistance and education and other programs. Our budget proposes to cut waste and eliminate redundancies and end the practice of Washington picking winners and losers in our economy, all the while calling for reforms to our Nation's regulatory system to improve transparency and effectiveness and efficiency and accountability.

Mr. Speaker, we have endorsed an optimistic vision, a vision for America's future by credibly—credibly—addressing our fiscal and economic challenges so that we can deliver real results for the American people. Since both the House and the Senate have passed our respective budgets, we must now work

together to iron out any differences that there may be between the two, and we need to come to an agreement for a unified fiscal year 2016 budget.

This conference committee is the next vital step in the days to come, and we will sit down and discuss how to advance these positive solutions in order to secure more economic growth and opportunity, hold Washington accountable, promote patient-centered health care, and ensure a strong national defense. We look forward to working with the Senate and the House Conference Committee and follow that with passage in this Congress of a unified budget to balance the budget in this Nation in less than 10 years.

I reserve the balance of my time.

Mr. VAN HOLLEN. Mr. Speaker, I yield myself such time as I may consume.

I would remind my colleague that when President Obama was sworn in, we were losing 780,000 jobs per month—per month. We were in a nosedive. It took a little while to climb out of that deep valley, but we have now had 61 consecutive months of positive job growth—12.1 million jobs, longest streak in history. So job growth is coming back. We have got a ways to go, no doubt about it. We need to do even better. That is why I don't understand a Republican budget that the Congressional Budget Office tells us will slow down economic growth in the next couple years. That is what the nonpartisan budget pros tell us: it will slow down economic growth. Our Republican colleagues say we don't have enough, and yet they have got a budget that the Congressional Budget Office says the next couple of years are going to slow it down just as we are continuing to grow at record levels.

They also have a budget, as I indicated, that says to people who are out there working hard: You are going to get squeezed even harder on your take-home pay. You are working harder than ever, but you know what? We are going to actually increase the tax burden on working families.

Now, let me say a little thing about this Medicare voucher plan. The way to reduce our healthcare costs is to move toward a system that rewards the delivery of value rather than volume in our healthcare system. And in fact, one of the great untold success stories we know over the last couple years has been because we have begun to move in that direction; we have saved trillions of dollars, over a trillion dollars, without sacrificing quality of care.

The problem with the Medicare voucher plan is it doesn't improve health care by changing the incentives to move toward more value and more quality rather than quantity and volume; it actually saves Medicare money by shifting the risk of higher costs onto seniors. In fact, the Congressional Budget Office says that under their plan, those who choose to stay in the fee-for-service system would pay 50 percent more in terms of premiums. So that is the real-world impact of that proposal.

Now, what are the priorities of our Republican colleagues? We keep hearing that this is a balanced budget. It just isn't so. This is a phony argument. This budget says it is repealing the Affordable Care Act, and yet it only claims balance because of the revenues generated from the Affordable Care Act they claim to repeal. That would make Enron accountants blush.

What else? This Thursday in this House we are scheduled to vote on a proposal to get rid of the estate tax on estates for couples of over $10 million—$10 million. That is about 5,500 people a year. A cruise ship fits more people than that.

□ 1415

Here is what it does. For all of the estates in the country, let's just be clear what the Republican budget looks out for and what the bill they are bringing to the floor this week looks out for.

Blue, the 99.85 percent, are the estates that already are not impacted at all. The bill they are bringing to the floor of the House this week is for that teeny little sliver of red, .15 percent of estates.

That is what the Republican budget is all about, and that is what they are looking out for in a budget that cuts our kids' education funding, cuts our investment in scientific research, and increases the tax burden on working families. That is what this is all about.

Guess what, this estate tax cut for estates of couples over $10 million is not factored into the Republican budget. That loses $268 billion in revenue over the next 10 years. That is not accounted for in the budget they are talking about today.

Two days from today, they are going to bring to the floor a bill that busts their own budget. That is pretty amazing, and the claim that it balances is just a phony claim.

Finally, while it is providing those big tax breaks to estates of over $10 million, it doesn't close a single tax loophole for the purpose of reducing the deficit—not one, not for corporate jets, not for hedge fund managers, not one tax loophole closed, when they claim they want to reduce the deficit.

When you dig a little deeper, Mr. Speaker, this Republican budget is wrong for the country. It is great for folks who have already climbed that ladder. Most people who climb the ladder want to keep that ladder there, so more people can climb up, but this is a budget where people who climbed it just yanked the ladder up and said: We're on the top. Forget about the rest.

Mr. Speaker, I am very pleased to yield 3 minutes to the gentlewoman from Wisconsin (Ms. MOORE), one of the people who will be designated as one of my fellow conferees.

Ms. MOORE. Mr. Speaker, I could just sit down and say I agree with everything that the gentleman has said, but I want to add my voice to this debate and rise to support the Democratic motion to instruct conferees.

As Mr. VAN HOLLEN has said, there are provisions in the Senate version that are very, very worthy of our adopting. There is the reserve fund on paid sick leave, and it also rejects the House provision on Medicare premium support, the vouchers.

I have been a member of this Budget Committee for over 5 years, and I can tell you that, while I have an appetite for leftovers, this has just been warmed over too many times. This budget is just another variation of the same themes that we have seen in the past several years.

What is this thing? The majority party has recommitted themselves to benefit the wealthiest 1 percent of Americans while balancing the budget on the backs of the poor.

Now, I know there are many people—unfortunately, on both sides of the aisle—who are not all that concerned about the poor. They figure that the poor have done this to themselves; but what has the middle class done to deserve being hollowed even more while we provide tax breaks for the wealthiest two-tenths of 1 percent?

What have hard-working men and women and cities and mayors all over this country done so that we just ignore infrastructure improvements, ignore devolving money to the States, all in the name of providing tax breaks for the richest of the rich?

Now, the commonsense approach would be to adopt our Democratic motion to instruct conferees, and it would be very much in league with the bipartisan actions we have seen over in the Senate. It has been historic, miraculous, to see 61 Senators—both Senators from my State, both parties—voting to establish a deficit neutral reserve fund to allow workers to earn paid sick leave. It is a filibuster-proof majority over there.

Paid sick leave is good for Americans, the 13 million working men and women who don't have paid sick leave when they need it. Millions are unable to take care of their sick kids, their parents, or their spouses because they can't afford to do it.

Workers have agonizing choices when their kids fall ill. Nearly a quarter of working adults have reported that they have lost or come close to losing their job, Mr. Speaker, for taking sick time.

The SPEAKER pro tempore. The time of the gentlewoman has expired.

Mr. VAN HOLLEN. Mr. Speaker, I yield the gentlewoman an additional 1 minute.

Ms. MOORE. I will use it expeditiously.

I mean, 3½ days of pay loss is equivalent to a month of groceries. People can't afford to do it. It is not just good for people, it is good for our economy as well. People won't use the emergency room as much. There are 1.3 million emergency room visits every year

because we don't have sick leave. People won't come to work and pass communicable diseases with paid sick leave.

Again, the Medicare voucher is just a sham, Mr. Speaker. Senior citizens and people with disabilities rely on this for their health security. I guess the Republicans have said it time and again that they would like to see Medicare wither on the vine, and adopting the provisions in the House budget will in fact accomplish that.

I urge my colleagues to vote for the motion to instruct conferees.

Mr. TOM PRICE of Georgia. Mr. Speaker, I am pleased to yield 5 minutes to the gentleman from Georgia (Mr. WOODALL), a member of the Budget Committee and Rules Committee.

Mr. WOODALL. Mr. Speaker, I want to thank my chairman for yielding me the time.

I have a great deal of respect for the gentleman from Maryland. I am just categorically opposed to the motion to instruct, but it is good that we are down here doing motions to instruct. Because what we have an opportunity to do, Mr. Speaker, for the first time since I was elected to this body 4 years ago, is to send House Members and Senate Members together and actually establish a budget of the United States.

Mr. Speaker, I wasn't teasing. I was elected 4 years and 4 months ago, and this is the first time that we have been able to come together—and not just on a budget, but on a balanced budget—under the idea that it might be immoral to pay for our benefits today on the backs of our children yet to be born, that that might just be the wrong thing to do.

Mr. Speaker, in particular, in this motion to instruct, what troubles me is the attempt to do away with the Medicare premium support program that we have been working so hard to establish.

If anyone has a mom or dad who is on Medicare, if anybody is on Medicare themselves, they have experienced two things. They have experienced going into the doctor's office and questioning some provision of benefits, asking the question about whether or not this should be provided, whether or not this is the right cost, and they have had a physician say, they have had a hospital attendant say: What do you care? Medicare is going to pick that up.

You know it is true. Every single person has had that happen in their family, and the result of that is a Medicare Program that will not be there for us.

Mr. Speaker, I don't know if everybody across the country knows, but everybody in this Chamber knows that most American families pay more in Medicare and Social Security taxes than they do in income taxes. The highest tax burden on most American families is not the income tax; it is the tax we pay for the promise that Social Security and Medicare will be there for us when we need it the most.

There is only one budget we have got to vote on in this town that solves that Medicare issue, that says: You know what, we know the program is going to go bankrupt, and we know there are no easy solutions, but we are going to make the tough decisions today. We are not going to put it off until tomorrow.

My friend from Maryland said he wished the rules were different so that we could just substitute the Democratic budget for the budget that was passed in this House. Of course, that budget raised taxes by $2 trillion and did nothing to solve this problem—nothing to solve this problem.

The Medicare premium support system holds the promise of keeping the commitments that we have made to every single working American through the Medicare and Social Security Programs.

If you didn't want to take tough votes, don't run for Congress. If you didn't want to be in the solutions business, you just wanted to be in the blame business, don't run for Congress.

If you want to be in the business of restoring the faith of the folks who pay that heavy tax burden, that the promises we make today will be there for them tomorrow, there is but one budget on Capitol Hill that fills that need, and this House had the wisdom to pass it. This House had the wisdom to pass it, Mr. Speaker.

I am so proud that, when we had an opportunity to either kick the can down the road or make the tough decisions, we said, Not on our watch will we break more of these promises. It is all done by giving patients more choice. Imagine that radical idea: give patients choice in their medical decisions.

Folks love their Medicare, Mr. Speaker, but they don't love it as much as they love their Medicare Advantage. Have you seen those numbers? Folks love their Medicare Advantage. For the first time in Medicare history, we gave patients choice. It is the most popular program in Medicare.

For reasons unbeknownst to me, this administration has been trying to stomp the life out of that program since the day it was elected, but the program persists because the American people love it.

You want to talk about doubling down on something, Mr. Speaker; we are doubling down on patient choice. We are doubling down on the idea that, if you put Americans in charge of their own healthcare decisions, they will make better decisions than the government will on their behalf.

We cannot fail at this. We cannot fail. We owe America a balanced budget, and we owe America the confidence that the promises we made in exchange for the highest tax bill that they pay will be there for them when they retire.

Mr. VAN HOLLEN. Mr. Speaker, I yield myself such time as I may consume.

My friend and colleague from Georgia mentioned tough choices. It is interesting that the Republican budget chooses not to cut one corporate tax break for the purpose of reducing the deficit. Apparently, that is too touch of a choice for our Republican colleagues—not to close the corporate tax break, not to cut the tax break that benefits hedge fund managers.

They don't cut a single one of those tax breaks to help reduce our deficit, but they do want to increase the premiums on seniors who choose to stay in the traditional Medicare Program.

They may call it a choice, but for most Americans, if I say your premium is going to go up 50 percent, yeah, you can choose to have your premium go up, or you can go somewhere else.

That is not a heck of a real choice for most seniors who are struggling financially. Sure, it is a pay-to-stay plan, but you have got to pay a lot more in premiums, according to the Congressional Budget Office. It is not according to me; this is according to the nonpartisan Congressional Budget Office.

The Democratic budget does make the decision to close some of those special interest tax breaks to help reduce the long-term deficit, so we don't have to increase the costs and risks to seniors on Medicare, so we don't have to increase the cost on student loans and start charging students interest while they are still in college. No, we don't do that.

□ 1430

They are right. We think those are the right decisions that we made not to increase the costs of student loans and not to increase the costs and risks to seniors on Medicare.

Yes, we choose to cut some of those special interest tax breaks instead. And we certainly don't think that we should be providing another big tax break to those estates in the country worth more than $10 million.

Mr. Speaker, I am really pleased now to yield 3 minutes to the gentleman from Kentucky (Mr. YARMUTH), another person who is going to be designated a conferee, a member of the Budget Committee.

Mr. YARMUTH. Mr. Speaker, I thank my friend from Maryland for yielding.

I like to read the comic strip in the paper every day, ''The Wizard of Id,'' and, to me, the budgets that we have seen coming out of the House and Senate are kind of like ''The Wizard of Id'' budgets. He cast a magic spell, he went ''poof,'' and all of a sudden we have created a balanced budget that is going to solve all this Nation's problems in the next 10 years. I don't think there are many gullible people out there who actually believe that will be the case.

But we know some things for certain in this budget. We know that many, many important government investments are going to be cut beyond any reasonable limit, and to dangerous limits.

We know, for instance, that within a matter of months, the highway trust fund is going to run out of money. We

have $2 trillion worth of unmet infrastructure needs currently on the drawing board. These two budgets cut funding to make up some of that incredibly necessary infrastructure work.

This budget slashes money for innovation, for research. The one greatest advantage this country has in the global economy is our innovative talent. This budget says we can wait for that. Not in this world that is moving 100 miles an hour. We can't wait for that. Every time we cut research we are setting back, again, our greatest advantage for years.

As my colleague from Maryland mentioned, education: devastating cuts to Head Start, K–12 education, the one thing that can guarantee a hard-working American family's children the opportunity to succeed and have a life that they dream about.

So I fully support our motion to instruct. I think we deal with two problems that clearly face us and face working families throughout our country: the ability to actually care for yourself if you are sick, or your family member, and not lose income, something virtually every industrialized nation has. We can do that.

When my friend from Georgia talked about making hard choices, this is an easy choice. Let's not worry about too many of the hard choices. Let's make the easy ones that can help.

We can do comprehensive immigration reform, which is contemplated in the Democratic budget. That not only helps reduce the deficit, it solves one of our most daunting national challenges. We could do that. That would be an easy choice.

But we do have hard choices to make. The Republicans want to voucherize the Medicare system. They say it creates choice. It also puts insurance companies back in charge of seniors' health care. I am not sure American seniors look forward to that scenario.

So we want to go in a different direction, again, providing sick leave so that people can take care of their families without losing their income, and also involving doing away with the Medicare voucher system.

We think that this will help make the budget a better budget. It is still a disastrous budget, but I urge that we accept the motion to instruct.

Mr. TOM PRICE of Georgia. Mr. Speaker, I am pleased to yield 3 minutes to the gentleman from California (Mr. MCCLINTOCK), a wonderfully contributing member of the Budget Committee.

Mr. MCCLINTOCK. Mr. Speaker, I was recently asked, What one issue keeps you up at night? I answered in an instant, Our government's debt: a debt that has doubled in just 8 years, a debt that now exceeds the size of our entire annual economy, a debt that is generating interest costs that are now eating us alive, roughly a quarter-trillion dollars a year just to rent the money that we have already spent.

The Congressional Budget Office warns us, in 10 years, interest costs will exceed our entire defense spending if we continue down the road we are on.

Admiral Mullen wasn't just blowing smoke when he said that, in his professional military judgment, the greatest threat to our national security was our national debt, because before you can provide for the common defense and promote the general welfare, you have to be able to pay for it, and the ability of our country to do so is coming into grave doubt.

For 4 years, this House had passed budgets that put our Nation back on the path to fiscal solvency and began paying down this enormous debt that is sapping our prosperity and threatening our futures. For 4 years, the Senate simply refused to act and, as the gentleman from Georgia said, we just kicked the can down the road.

Well, last November's election changed that. Now the Senate has also passed a budget that balances in 10 years.

Now, for the first time in many years, we have the fleeting opportunity to invoke a conference process and put this Nation back on the road to solvency. Time is not our friend, and we don't have much of it left.

The conference committee must have full latitude to act on a budget that both Houses can agree to, and the Democratic motion would hamstring that conference.

My friend from Maryland, on behalf of the House Democrats, says this budget isn't right for America. Well, America needs to know that the Democratic budget never balances. It would continue our country down the road of debt and doubt and despair that we have been on during these long, cold years.

The gentleman from Maryland criticizes premium support to save Medicare. Well, Americans need to know that the Medicare trustees themselves are screaming this warning at us, that, without reform, Medicare will bankrupt within 15 years. That means if you are 50 years or younger, it won't be there for you.

When the Democrats say don't reform Medicare, what they mean is they are quite all right with that system collapsing on an entire generation of Americans.

Mr. Speaker, all that stands between this Nation and the road to solvency and recovery is the conference process that can produce a plan to balance the budget, and all that stands against that, an unfettered conference process, is this motion.

As I said, we don't have much time left.

The SPEAKER pro tempore. The time of the gentleman has expired.

Mr. TOM PRICE of Georgia. I yield an additional 30 seconds to the gentleman.

Mr. MCCLINTOCK. With my remaining time, let me suggest that, with the time our country has left, we do something worthy of our time here, that we balance our budget, redeem our debt, and save our country.

Mr. VAN HOLLEN. Mr. Speaker, I yield myself such time as I may consume.

I would just make two points. The first, as I mentioned earlier, one of the great untold success stories of the Affordable Care Act reforms, as well as other reforms in the health care system in recent years, is that we have dramatically reduced the cost of health care on a per capita basis.

In other words, the increased costs per person of health care have been dramatically slowed down, according to the Congressional Budget Office, which has helped save Medicare and other health care programs over $1 trillion. That is the right way to do it, by realigning the incentives so we are rewarding value in our Medicare system, not volume, as opposed to the Republican voucher plan, which saves money by shifting the risk onto seniors.

The other point—and we have talked about this over and over—it just ain't so that the Republican budget balances. Again, it requires the revenue from the Affordable Care Act, that amount of revenue, in order to balance, at the same time they say they are getting rid of it.

Two days from now, they are going to add over $268 billion to the deficit by getting rid of the estate tax for estates over $10 million. That is not accounted for in their budget. It puts their budget out of balance.

Mr. Speaker, I reserve the balance of my time.

Mr. TOM PRICE of Georgia. Mr. Speaker, I am pleased to yield 3 minutes to the gentleman from South Carolina (Mr. SANFORD), another member of the Budget Committee.

Mr. SANFORD. Mr. Speaker, I thank the chairman. I would join in urging my colleagues to defeat this Democratic motion to instruct the conferees, and I do so very much tied to the working families that I talked to back home because working families back home believe in balancing the checkbook. They have to do it every day in their lives.

What they say to me is, Why in the world can't you guys do the same up in Washington, D.C.?

In that regard, if we were to go the other route—I mean, keep in mind, the President's budget proposed going from running structural $500 billion a year deficits to $1.1 trillion a year deficits. This is moving in the wrong direction if we go with the instructions.

I think that when I talk to working families back home, what they tell me is we have got to deal with problems as they come along. Doing nothing is not an option.

So when there is a hole in the roof, they are out there with tin or they are out there with shingles and they are, in fact, repairing the roof. When there is a problem with the septic tank, they are out there with a shovel, digging and trying to fix it.

In the same regard, I think what the committee and what the conference

have come up with with regard to looking at a way of saving Medicare could be very, very instructive. As has already been noted, within 15 years, the actuaries say that the Medicare fund will be out of money. Doing nothing is, indeed, not an option.

I think philosophically you have got to look at this and say, Did Medicare D work? It has worked. This is giving choice.

So, in essence, 50 million seniors get to decide the future of Medicare versus 15 unelected bureaucrats in Washington, D.C.

Finally, I would say, what is important about this, I think, from the standpoint of working families, what they tell me is that borrowing from Peter to pay for Paul never works. It doesn't work in their budgets at home; it shouldn't work in Washington, D.C.

Yet, with this proposal to come up with paid sick leave, a lot of people would love that, but it ought to be addressed at the State level. States run on balanced budget requirements. A number of States could come in with proposals to that effect, but if we do it here in Washington, D.C., at the very time when we are running structural $500 billion deficits, it means that we are handing the bill off to the kids to pay for this. We are, indeed, borrowing from Peter to pay for Paul.

It is for those very reasons that I urge defeat of the Democratic motion to instruct.

Mr. VAN HOLLEN. Mr. Speaker, I reserve the balance of my time.

Mr. TOM PRICE of Georgia. Mr. Speaker, how much time remains?

The SPEAKER pro tempore. The gentleman from Georgia has 12½ minutes remaining. The gentleman from Maryland has 5½ minutes remaining.

Mr. TOM PRICE of Georgia. Who has the right to close, Mr. Speaker?

The SPEAKER pro tempore. The gentleman from Maryland has the right to close.

Mr. TOM PRICE of Georgia. May I inquire as to whether or not the gentleman has any more speakers?

Mr. VAN HOLLEN. I do not. I am prepared to close.

Mr. TOM PRICE of Georgia. Mr. Speaker, I yield myself such time as I may consume.

I appreciate the comments that have been made by my colleagues to bring into focus the positive solutions that we have been working for with our budget. I reluctantly oppose the motion to instruct, as it compromises the ability of the conference committee to fashion the best possible solution.

I will say, Mr. Speaker, however, that the distortions that have been presented, I think they have gone past frustrating the American people. They anger the American people about the distortion of positions here in Washington. The American people are smarter than that.

Our side of the aisle, we are interested in making certain that we assist all Americans, every single American, so that he or she has the greatest opportunity to realize the greatest amount of success in their own dreams, in their own lives, in the way that they deem to be most appropriate, not with Washington dictating to them what they must do.

□ 1445

I want to touch on a couple of very specific issues that have been mentioned by my friend from Maryland and others on the other side of the aisle.

Our balanced budget proposal gets to balance within a 10-year period of time. It does so without raising taxes, and it increases growth. Now, the growth is important, Mr. Speaker, and our friends mentioned it on the other side of the aisle, as if the policies that have been in place over the past 6 years had some magical solution that they increased growth in this country.

Well, the fact of the matter, Mr. Speaker, is that as we see it in this chart—this is from the Congressional Budget Office, the nonpartisan Congressional Budget Office, as my friend from Maryland says. These are the projections of growth that the Congressional Budget Office has had over the last 4 years.

Four years ago, 3.0 percent. The average, Mr. Speaker, as you all well know, is about 3.3 percent over the last 40 years, growth in this country. That is in the economy, growing every year, 3.3 percent on average. And the projection 4 years ago was that it would be 3 percent. Three years ago, it was down to 2.9 percent; 2 years ago, 2.5 percent; this year, 2.3 percent. This is lost jobs, lost opportunity, fewer dreams realized all because of the policies coming out of Washington, D.C., and our friends on the other side want to double down on those policies.

Our proposal, our budget that gets to balance—which our friends on the other side of the aisle and their budget never does; the President's budget never gets to balance; something that folks back home can't do. They can't do it in their personal lives. They can't do it in their businesses. Our budget gets to balance and increases growth—increases growth—because that is what we have got to do. We have got to increase growth in this economy so that more dreams can be realized, more jobs can be created, wages can be increased. The way you increase wages is to increase the vitality of the economy, not have Washington dictate it to people.

And then this tired old characterization of our proposal to save and strengthen and secure Medicare and the way that it is characterized is to voucherize it. Well, this is nonsense, Mr. Speaker, and the American people know it.

What we propose to do is to save Medicare, not allow it to die on the vine, which is what our friends on the other side of the aisle apparently want to do. Because when you read their policies, they don't do anything to address the insolvency of Medicare that is coming in a very short period of time—not according to me, but according to the Medicare trustees—and what that means is that patients, seniors, won't be able to get provided the services that they have been promised. That is not the right thing to do, Mr. Speaker.

Our friends on the other side talk about all the tax loopholes, and goodness knows we have been for cutting tax loopholes and closing tax loopholes before closing tax loopholes was cool. We just can't get out and get folks to rally to the cause in a positive way from our friends on the other side of the aisle.

My friend from Maryland knows that the way that that is fashioned is in the Ways and Means Committee. It is not in the Budget Committee. The Budget Committee lays out the vision, lays out the plan, lays out the parameters that are able to be utilized. As my friend from Maryland knows, the Ways and Means Committee is actively working right now—actively working right now—on appropriate tax reform.

It was the tax reform proposal that was put forward by our side of the aisle last year that demonstrated our willingness and desire to close loopholes and to end special treatments through the Tax Code. We believe everybody ought to be treated equally in the Tax Code, not have Washington picking winners and losers, which is what our friends on the other side tend to desire.

Then again, this distorted notion about healthcare costs and where healthcare costs are going right now. Healthcare costs are down. That is right, Mr. Speaker. Who are they down for? They are down for the Federal Government. Who are they not down for? The American people. That is who they are not down for.

What we have done with the President's healthcare program is to shift huge costs—huge costs—to the American people. If you are an individual out there, you make $30,000, $40,000, $50,000 right now, and the coverage that you are able to purchase right now—because ObamaCare has a deduction, has a deductible in your health plan of between $6,000 and $12,000, which countless Americans have right now. Let me suggest, Mr. Speaker, that you don't have health coverage because you can't afford the deductible. But that is the proposal that our friends on the other side of the aisle embrace. That is the one that they want to put forward.

And who are they harming? They are harming the American people, and the American people know it. They know there is a better solution. They know that there is a better way. There is a positive way, a patient-centered solution manner to be able to get health care back on track, and that is what we propose in the area of health care.

With that, Mr. Speaker, I think I have got one more speaker who is desirous of coming to the floor, so I will reserve the balance of my time.

Mr. VAN HOLLEN. Well, Mr. Speaker, I am going to continue to reserve the balance of my time.

Mr. TOM PRICE of Georgia. Let me inquire, once again, Mr. Speaker, if I may, of how much time remains on each side.

The SPEAKER pro tempore. The gentleman from Georgia has 6 minutes remaining. The gentleman from Maryland has 5 minutes remaining.

Mr. TOM PRICE of Georgia. Well, as I await one of our Members who is heading to the floor to share his concerns about the motion to instruct, let me just revisit, once again, the positive solutions that we have put forward in our budget.

This is a balanced budget for a stronger America. It is a budget that gets to balance within a 10-year period of time and does so without raising taxes. It recognizes that the American people have realized not the full glory of ObamaCare yet, but they have seen enough. And they recognize that it is harming not just their health care; it is harming the economy.

So we repeal all of ObamaCare—yes, all of it, taxes, regulations, mandates, all of it—and we do so, again, not just because it is harming the economy, but, as a formerly practicing physician, I can tell you it is harming the health care of the American people.

We eliminate the Independent Payment Advisory Board. Mr. Speaker, as you know, that is the 15-member panel that was prescribed for by the Affordable Care Act, by ObamaCare, that stipulates to physicians whether or not they are going to pay the doctor for services rendered to seniors not just before the fact of the care being provided, but after the fact, harming the ability of seniors to be able to access quality care in this country.

We provide for a strong national defense, the resources necessary for a strong national defense, and do so at a level above the President's level.

We secure our future in the area of Medicare and Medicaid and provide an idea for how we make certain that the Social Security disability trust fund does not go broke and moves forward in a positive way.

We restore the issue of Federalism, increasing choices and opportunity for the American people at the local level, whether it is in Medicaid or nutrition assistance or in the area of education or other programs.

And then finally, Mr. Speaker, we cut waste and corporate welfare and improve accountability. We do so by ending the practice of Washington picking winners and losers. We call for reform for the regulatory system so that we increase transparency and efficiency and effectiveness and accountability.

It is a positive solution, a positive solution that the American people have been crying out for. They have been crying out for not just solutions here, but leadership here in Washington.

My colleagues on our side of the aisle have talked about how enthusiastic they are about the opportunity to have the Senate and the House come together, come together for a positive solution in the area of budget process and budget activity. So I am pleased that the gentleman from Maryland brought the motion to instruct forward. As I say, I reluctantly have to oppose it because I think it compromises and ties the hands of individuals within the conference committee.

I urge a ''no'' vote on the motion to instruct, and I yield back the balance of my time.

Mr. VAN HOLLEN. Mr. Speaker, I yield myself the balance of my time.

First of all, the Republican budget doesn't balance. You can't claim the revenues from the Affordable Care Act at the same time you claim to repeal the Affordable Care Act. You can't claim balance and then 2 days later bring to the floor of the House a bill that provides tax breaks to American estates over $10 million that is not accounted for in the budget that you claim balanced. So it doesn't balance.

It actually does increase the tax burden on working families. How? Again, it gets rid of the increase in the child tax credit; it gets rid of the bump-up in the earned income tax credit; it eliminates the Affordable Care Act tax credits; and it eliminates the higher education deduction that helps families afford to send their kids to college. So, in fact, it is increasing the tax burden on working families.

Who is it not increasing the tax burden on? Folks at the very, very top.

The chairman of the committee talks about economic growth. We need economic growth. History has taught us that economic growth comes when you have a country where the hard work of Americans and increased worker productivity is translated into higher pay and benefits so they can go out and spend money on goods and services, and the economy and everybody can move forward together.

What we have got in this budget is the same old-same old. This is trickle-down economics all over again. This is based on the theory that has been disproven in the real world, that you grow the economy by cutting tax rates for millionaires. We tried that in the early 2000s. What happened? Surprise, surprise. The incomes of folks at the very top went up. Incomes of everybody else, flat. What else went up? Deficits went up.

The chairman says the Republican budget is a budget for all Americans. Two days from today they are going to bring to the floor a bill that gets rid of the estate tax for estates over $10 million, 0.15 percent, about 5,500 American families. As I said earlier, you can put more people on a cruise ship. That is who the Republican budget looks after.

Now, look. The Democratic budget, it takes the opposite approach. It actually provides tax relief for working families. Yes, we do close some tax breaks for special interests to help reduce our long-term deficit.

We also call for increasing the minimum wage for millions of Americans who are working hard every day, yet at the end of the year, the amount they earn still puts them below the Federal poverty level. That is not right.

We also call for equal pay for equal work. Today is Equal Pay Day. Today represents the number of days since the end of last year, the number of days more that women have to work to achieve the same pay as men in the workplace. That is not right, and the Democratic budget addresses that issue.

We also say it is not right that corporations should be able to cut their employee pay or cut their workforce and still get a tax deduction for CEO and executive bonuses over $1 million. Right? Pay your CEOs whatever bonus you want, pay your executives whatever bonus you want, but for goodness' sake, why should they get a tax deduction for those bonuses if they are not increasing the pay of their own workers? That is not right. That is what the Democratic budget says: we should get rid of that inequity and actually use the Tax Code not to incentivize corporate jets, but actually to incentivize greater pay for more workers.

And this motion to instruct also says, for goodness' sake, let's do what the Senate agreed to do. Let's do what the Senate agreed to do. Let's call for an earned paid sick leave provision so that families don't have to say that, in order to take care of a sick loved one at home, they have to forgo the paycheck that allows them to pay their rent and the mortgage and put food on the table.

And yes, we do not believe that you should turn Medicare into a voucher plan. We have put forward proposals for reform to move toward a system that rewards value over volume.

By the way, Mr. Speaker, despite passing on the risks of higher health care costs to seniors through that plan, there is not a shred of evidence that that plan in this particular budget will actually do anything in the end to help Medicare other than to shift that burden onto seniors.

So the Republican budget is the wrong way to go for the country. It is a budget based on a failed ideology that somehow we are going to grow our economy through trickle-down economics, top-down, trickle-down. That failed our economy.

Let's have an economy based on broadly shared prosperity. Let's reject the Republican budget, accept the motion to instruct, and ultimately adopt the Democratic alternative.

I yield back the balance of my time.

The SPEAKER pro tempore. All time for debate has expired.

Without objection, the previous question is ordered on the motion to instruct.

There was no objection.

The SPEAKER pro tempore. The question is on the motion to instruct.

The question was taken; and the Speaker pro tempore announced that the noes appeared to have it.

Mr. VAN HOLLEN. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, further proceedings on this question will be postponed.

□ 1500

PRESERVING ACCESS TO MANUFACTURED HOUSING ACT OF 2015

Mr. FINCHER. Mr. Speaker, pursuant to House Resolution 189, I call up the bill (H.R. 650) to amend the Truth in Lending Act to modify the definitions of a mortgage originator and a high-cost mortgage, and ask for its immediate consideration in the House.

The Clerk read the title of the bill.

The SPEAKER pro tempore. Pursuant to House Resolution 189, the bill is considered read.

The text of the bill is as follows:

H.R. 650

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Preserving Access to Manufactured Housing Act of 2015''.

SEC. 2. MORTGAGE ORIGINATOR DEFINITION.

Section 103 of the Truth in Lending Act (15 U.S.C. 1602) is amended—

(1) by redesignating the second subsection (cc) and subsection (dd) as subsections (dd) and (ee), respectively; and

(2) in paragraph (2)(C) of subsection (dd), as so redesignated, by striking ''an employee of a retailer of manufactured homes who is not described in clause (i) or (iii) of subparagraph (A) and who does not advise a consumer on loan terms (including rates, fees, and other costs)'' and inserting ''a retailer of manufactured or modular homes or its employees unless such retailer or its employees receive compensation or gain for engaging in activities described in subparagraph (A) that is in excess of any compensation or gain received in a comparable cash transaction''.

SEC. 3. HIGH-COST MORTGAGE DEFINITION.

Section 103 of the Truth in Lending Act (15 U.S.C. 1602) is amended—

(1) by redesignating subsection (aa) (relating to disclosure of greater amount or percentage), as so designated by section 1100A of the Consumer Financial Protection Act of 2010, as subsection (bb);

(2) by redesignating subsection (bb) (relating to high cost mortgages), as so designated by section 1100A of the Consumer Financial Protection Act of 2010, as subsection (aa), and moving such subsection to immediately follow subsection (z); and

(3) in subsection (aa)(1)(A), as so redesignated—

(A) in clause (i)(I), by striking ''(8.5 percentage points, if the dwelling is personal property and the transaction is for less than $50,000)'' and inserting ''(10 percentage points if the dwelling is personal property or is a transaction that does not include the purchase of real property on which a dwelling is to be placed, and the transaction is for less than $75,000 (as such amount is adjusted by the Bureau to reflect the change in the Consumer Price Index))''; and

(B) in clause (ii)—

(i) in subclause (I), by striking ''or'' at the end; and

(ii) by adding at the end the following:

''(III) in the case of a transaction for less than $75,000 (as such amount is adjusted by the Bureau to reflect the change in the Consumer Price Index) in which the dwelling is personal property (or is a consumer credit transaction that does not include the purchase of real property on which a dwelling is to be placed) the greater of 5 percent of the total transaction amount or $3,000 (as such amount is adjusted by the Bureau to reflect the change in the Consumer Price Index); or''.

The SPEAKER pro tempore. The gentleman from Tennessee (Mr. FINCHER) and the gentlewoman from California (Ms. WATERS) each will control 30 minutes.

The Chair recognizes the gentleman from Tennessee (Mr. FINCHER).

GENERAL LEAVE

Mr. FINCHER. Mr. Speaker, I ask unanimous consent that all Members have 5 legislative days in which to revise and extend their remarks and submit extraneous materials on the bill under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Tennessee?

There was no objection.

Mr. FINCHER. Mr. Speaker, I yield myself as much time as I may consume.

Mr. Speaker, before I start, I want to thank Chairman HENSARLING and the leadership that he has shown in his ability to work with us and allow us to do these commonsense pieces of legislation that help our districts all over this country, especially my home State of Tennessee and the Eighth Congressional District. So I just want to definitely make sure I thank him for his leadership and support.

Mr. Speaker, I am pleased to be the sponsor of H.R. 650, the Preserving Access to Manufactured Housing Act. Access to affordable housing is of vital importance to families in my district and all across the United States. Unfortunately, due to CFPB mortgage regulations that do not reflect the unique nature of the manufactured home sales process, access to financing for manufactured homes is in serious jeopardy.

Manufactured housing serves as a critical option for those who cannot otherwise afford to buy a home. Homes are commonly available at lower monthly payments than what it costs to rent. And the average price of a manufactured home is less than $43,000, compared to an average price of $177,000 for a site-built home. Almost three-quarters of families living in manufactured homes have annual incomes under $40,000.

But this important source of homeownership for American families is being threatened by current high-cost mortgage rules that are too inflexible and often lead to the denial of financing for certain homes, particularly those that are lower priced, more affordable options.

Since the CFPB's Home Ownership and Equity Protection Act ''high cost'' rules consider cost as a percentage of a loan, smaller size loans, like manufactured home loans, often violate points and fee caps. Manufactured home loans are typically associated with fixed interest rates, full amortization, shorter loan terms, and the absence of alternative features, such as balloon payments, negative amortization, no down payment loans, et cetera, to allow them to satisfy conservative and prudent underwriting standards, and H.R. 650 won't change this.

Because of the resulting ''high-cost'' designation and increased lender liability associated with it, some lenders have stopped making manufactured housing loans altogether, and others have stopped originating loans under $20,000. Many community owners have said that their tenants are being forced to sell their homes well below market value to cash buyers because potential buyers can't find financing. These below-market sales don't just hurt sellers; they hurt every homeowner in the community who feels a huge loss on the equity of their home.

Additionally, since the CFPB's rule on the loan originator definition has gone into effect, retailers have been forced to stop providing technical assistance to consumers during the process of home buying. This bill modifies the definition of high-cost loans so that manufactured housing loans are not unfairly swept under the high-cost loan designation simply due to their size.

Mr. Speaker, this bill would help ensure the availability of financing options for manufactured homes while preserving the necessary consumer protections in the Dodd-Frank Act and the SAFE Act. Let me say that one more time. This bill would help ensure the availability of financing options for manufactured homes while preserving the necessary consumer protections in the Dodd-Frank Act and the SAFE Act.

H.R. 650 not only preserves Dodd-Frank's core consumer protections, but it helps consumers by restoring access to financing. Such financing enables working families and retirees to obtain housing that is much cheaper than renting or conventional home mortgage options.

CFPB, HUD, and State oversight of manufactured lending will continue. Consumers will continue to have the wide range of mortgage protections established by Dodd-Frank, including the QM ''ability to repay'' requirement, the prohibition on steering incentives, the prohibition against steering a consumer to a loan that has predatory characteristics, the prohibition on mandatory arbitration, loan term disclosure requirements, and the other State and Federal laws.

This bill is about ensuring access to affordable housing, especially in rural America, where rental properties are not as abundant as in urban areas. This bill enjoys broad bipartisan support by groups including the National Association of Realtors, the Mortgage Bankers Association, the Manufactured Housing Institute, the National Organization of African Americans in Housing, the National Association of Federal Credit

Unions, the National Association of Mortgage Professionals, the California Association of Mortgage Professionals, and numerous manufactured housing State associations.

This bill, Mr. Speaker, is a compromise from last year's bipartisan bill. In an effort to gain even more support on both sides of the aisle, we introduced a bipartisan compromise again this Congress. This is not a Democrat or a Republican issue. It is an affordability of housing issue for rural America. We cannot forget about rural America, Mr. Speaker. These are my constituents and the constituents of many folks here who serve in this body.

So, Mr. Speaker, I urge my colleagues today to support this. With that, I reserve the balance of my time.

Ms. MAXINE WATERS of California. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise today in opposition to H.R. 650, which would undermine the Dodd-Frank Wall Street Reform Act and eliminate consumer protections for some of the country's most vulnerable borrowers.

Mr. Speaker, the talking points describe this bill as one that preserves access to manufactured housing. But the reality is that we have learned this bill is a solution to a problem that does not exist. We agreed that this issue needed additional study last year, and reports we have received from the Consumer Financial Protection Bureau, the manufactured housing industry, and the Center for Public Integrity have all shown us that this measure would not create access to affordable housing but would instead allow an incredibly profitable industry to make even more money by charging exorbitant interest rates and fees to low-income borrowers.

The industry itself asserts that it has been growing and is highly profitable even with the Dodd-Frank mortgage protections in place. In fact, according to its trade association, the manufactured housing industry recorded shipment increases in every month of 2014. The Manufactured Housing Association for Regulatory Reform found that 2014 marked a ''fifth consecutive year of annual industry production increases.''

Even one of the world's investors, Berkshire Hathaway Chairman Warren Buffet, has been touting the post-Dodd-Frank profitability of manufactured housing. In a letter to his shareholders, he pointed out that Clayton Homes, Berkshire's highly profitable manufacturing housing subsidiary, earned a total of $558 million in 2014—an increase of 34 percent over 2013. Yes, that is a 34 percent increase, even after the Dodd-Frank rules were in place.

Unfortunately, Mr. Speaker, this is the same Clayton Homes that was the subject of a recent Seattle Times-Center for Public Integrity joint investigation that found this manufactured housing empire profits in every imaginable way—from producing the housing, to selling the housing, to originating loans that take advantage of vulnerable consumers and leave them virtually no way to refinance.

So, Mr. Speaker, I insert this article into the RECORD. This, again, is a scathing article that was produced by The Seattle Times.

[From the Seattle Times and The Center for Public Integrity, April 7, 2015]

THE MOBILE-HOME TRAP: HOW A WARREN BUFFETT EMPIRE PREYS ON THE POOR

EPHRATA, GRANT COUNTY.—After years of living in a 1963 travel trailer, Kirk and Patricia Ackley found a permanent house with enough space to host grandkids and care for her aging father suffering from dementia. So, as the pilot cars prepared to guide the factory-built home up from Oregon in May 2006, the Ackleys were elated to finalize paperwork waiting for them at their loan broker's kitchen table.

But the closing documents he set before them held a surprise: The promised 7 percent interest rate was now 12.5 percent, with monthly payments of $1,100, up from $700.

The terms were too extreme for the Ackleys. But they'd already spent $11,000, at the dealer's urging, for a concrete foundation to accommodate this specific home. They could look for other financing but desperately needed a space to care for her father.

Kirk's construction job and Patricia's Wal-Mart job together weren't enough to afford the new monthly payment. But, they said, the broker was willing to inflate their income in order to qualify them for the loan. ''You just need to remember,'' they recalled him saying, ''you can refinance as soon as you can.''

To their regret, the Ackleys signed.

The disastrous deal ruined their finances and nearly their marriage. But until informed recently by a reporter, they didn't realize that the homebuilder (Golden West), the dealer (Oakwood Homes) and the lender (21st Mortgage) were all part of a single company: Clayton Homes, the nation's biggest homebuilder, which is controlled by its second-richest man—Warren Buffett.

Buffett's mobile-home empire promises low-income Americans the dream of homeownership. But Clayton relies on predatory sales practices, exorbitant fees, and interest rates that can exceed 15 percent, trapping many buyers in loans they can't afford and in homes that are almost impossible to sell or refinance, an investigation by The Seattle Times and Center for Public Integrity has found.

Berkshire Hathaway, the investment conglomerate Buffett leads, bought Clayton in 2003 and spent billions building it into the mobile-home industry's biggest manufacturer and lender. Today, Clayton is a many headed hydra with companies operating under at least 18 names, constructing nearly half of the industry's new homes and selling them through its own retailers. It finances more mobile-home purchases than any other lender by a factor of six. It also sells property insurance on them and repossesses them when borrowers fail to pay.

Berkshire extracts value at every stage of the process. Clayton even builds the homes with materials—such as paint and carpeting—supplied by other Berkshire subsidiaries.

More than a dozen Clayton customers described a consistent array of deceptive practices that locked them into ruinous deals: loan terms that changed abruptly after they paid deposits or prepared land for their new homes; surprise fees tacked on to loans; and pressure to take on excessive payments based on false promises that they could later refinance.

Former dealers said the company encouraged them to steer buyers to finance with Clayton's own high-interest lenders.

Under federal guidelines, most Clayton mobile-home loans are considered ''higher-priced.'' Those loans averaged 7 percentage points higher than the typical home loan in 2013, according to a Times/CPI analysis of federal data, compared to just 3.8 percentage points for other lenders.

Buyers told of Clayton collection agents urging them to cut back on food and medical care or seek handouts in order to make house payments. And when homes got hauled off to be resold, some consumers already had paid so much in fees and interest that the company still came out ahead. Even through the Great Recession and housing crisis, Clayton was profitable every year, generating $558 million in pre-tax earnings in 2014.

The company's tactics contrast with Buffett's public profile as a financial sage who values responsible lending and helping poor Americans keep their homes.

Berkshire Hathaway spokeswoman Carrie Soya and Clayton spokeswoman Audrey Saunders ignored more than a dozen requests by phone, email and in person to discuss Clayton's policies and treatment of consumers. In an emailed statement, Saunders said Clayton helps customers find homes within their budgets and has a ''purpose of opening doors to a better life, one home at a time.''

FIRST, A DREAM

As Buffett tells it, his purchase of Clayton Homes came from an ''unlikely source'': Visiting students from the University of Tennessee gave him a copy of founder Jim Clayton's self-published memoir, ''First a Dream,'' in early 2003. Buffett enjoyed reading the book and admired Tim Clayton's record, he has said, and soon called CEO Kevin Clayton, offering to buy the company.

''A few phone calls later, we had a deal,'' Buffett said at his 2003 shareholders meeting, according to notes taken at the meeting by hedge-fund manager Whitney Tilson.

The tale of serendipitous dealmaking paints Buffett and the Claytons as sharing down-to-earth values, antipathy for Wall Street and an old-fashioned belief in treating people fairly. But, in fact, the man who brought the students to Omaha said Clayton's book wasn't the genesis of the deal.

''The Claytons really initiated this contact,'' said Al Auxier, the Tennessee professor, since retired, who chaperoned the student trip after fostering a relationship with the billionaire.

CEO Kevin Clayton, the founder's son, reached out to Buffett through Auxier, the professor said in a recent interview, and asked whether Buffett might explore ''a business relationship'' with Clayton Homes.

At the time, mobile-home loans had been defaulting at alarming rates, and investors had grown wary of them. Kevin Clayton was seeking a new source of cash to relend to homebuyers. He knew that Berkshire Hathaway, with its perfect bond rating, could provide it as cheaply as anyone. Later that year, Berkshire Hathaway paid $1.7 billion in cash to buy Clayton Homes.

Clayton provided more than half of new mobile-home loans in eight states. In Texas, the number exceeds 70 percent. Clayton has more than 90 percent of the market in Odessa, one of the most expensive places in the country to finance a mobile home.

To maintain its down-to-earth image, Clayton has hired the stars of the reality-TV show ''Duck Dynasty'' to appear in ads.

The company's headquarters is a hulking structure of metal sheeting surrounded by

acres of parking lots and a beach volleyball court for employees, located a few miles south of Knoxville, Tenn. Next to the front door, there is a slot for borrowers to deposit payments.

Near the headquarters, two Clayton sales lots sit three miles from each other. Clayton Homes' banners promise ''$0 CASH DOWN.'' TruValue Homes, also owned by Clayton, advertises ''REPOS FOR SALE.'' Other nearby Clayton lots operate as Luv Homes and Oakwood Homes. With all the different names, many customers believe that they're shopping around.

House-sized banners at dealerships reinforce that impression, proclaiming they will ''BEAT ANY DEAL.'' In some parts of the country, buyers would have to drive many miles past several Clayton-owned lots, to reach a true competitor.

GUIDED INTO COSTLY LOANS

Soon after Buffett bought Clayton Homes, he declared a new dawn for the moribund mobile-home industry, which provides housing for some 20 million Americans. Lenders should require ''significant down payments and shorter-term loans,'' Buffett wrote.

He called 30-year loans on mobile homes ''a mistake,'' according to notes Tilson took during Berkshire Hathaway's 2003 shareholders meeting.

''Home purchases should involve an honest-to-God down payment of at least 10% and monthly payments that can be comfortably handled by the borrower's income,'' Buffett later wrote. ''That income should be carefully verified.''

But in examining more than 100 Clayton home sales through interviews and reviews of loan documents from 41 states, reporters found that the company's loans routinely violated the lending standards laid out by Buffett.

Clayton dealers often sold homes with no cash down payment. Numerous borrowers said they were persuaded to take on outsized payments by dealers promising that they could later refinance. And the average loan term actually increased from 21 years in 2007 to more than 23 years in 2009, the last time Berkshire disclosed that detail.

Clayton's loan to Dorothy Mansfield, a disabled Army veteran who lost her previous North Carolina home to a tornado in 2011, includes key features that Buffett condemned.

Mansfield had a lousy credit score of 474, court records show. Although she had seasonal and part-time jobs, her monthly income often consisted of less than $700 in disability benefits. She had no money for a down payment when she visited Clayton Homes in Fayetteville, N.C.

Vanderbilt, one of Clayton's lenders, approved her for a $60,000, 20-year loan to buy a Clayton home at 10.13 percent annual interest. She secured the loan with two parcels of land that her family already owned free and clear.

The dealer didn't request any documents to verify Mansfield's income or employment, records show. Mansfield's monthly payment of $673 consumed almost all of her guaranteed income. Within 18 months, she was behind on payments and Clayton was trying to foreclose on the home and land.

Many borrowers interviewed for this investigation described being steered by Clayton dealers into Clayton financing without realizing the companies were one and the same. Sometimes, buyers said, the dealer described the financing as the best deal available. Other times, the Clayton dealer said it was the only financing option.

Kevin Carroll, former owner of a Clayton-affiliated dealership in Indiana, said in an interview that he used business loans from a Clayton lender to finance inventory for his lot. If he also guided homebuyers to work with the same lender, 21st Mortgage, the company would give him a discount on his business loans—a ''kickback,'' in his words.

Doug Farley, who was a general manager at several Clayton-owned dealerships, also used the term ''kickback'' to describe the profit-share he received on Clayton loans until around 2008. After that, the company changed its incentives to instead provide ''kickbacks'' on sales of Clayton's insurance to borrowers, he said.

Ed Atherton, a former lot manager in Arkansas, said his regional supervisor was pressuring lot managers to put at least 80 percent of buyers into Clayton financing. Atherton left the company in 2013.

During the most recent four-year period, 93 percent of Clayton's mobile-home loans had such costly terms that they required extra disclosure under federal rules. Among all other mobile-home lenders, fewer than half of their loans met that threshold.

Customers said in interviews that dealers misled them to take on unaffordable loans, with tactics including last-minute changes to loan terms and unexplained fees that inflate loan balances. Such loans are, by definition, predatory.

''They're going to assume the client is unsophisticated, and they're right,'' said Felix Harris, a housing counselor with the nonprofit Knoxville Area Urban League.

Some borrowers felt trapped because they put up a deposit before the dealer explained the loan terms or, like the Ackleys, felt compelled to swallow bait-and-switch deals because they had spent thousands to prepare their land.

PROMISE DENIED

A couple of years after moving into their new mobile home, Kirk Ackley was injured in a backhoe rollover. Unable to work, he and his wife urgently needed to refinance the costly 21st Mortgage loan they regretted signing.

They pleaded with the lender several times for the better terms that they originally were promised, but were denied, they said. The Ackleys tried to explain the options to a 21st supervisor: If they refinanced to lower payments, they could stay in the home and 21st would get years of steady returns. Otherwise, the company would have to come out to their rural property, pull the house from its foundation and haul it away, possibly damaging it during the repossession.

They both recall being baffled by his reply: ''We don't care. We'll come take a chainsaw to it—cut it up and haul it out in boxes.''

Nine Clayton consumers interviewed for this story said they were promised a chance to refinance. In reality, Clayton almost never refinances loans and accounts for well under 1 percent of mobile-home refinancings reported in government data from 2010 to 2013. It made more than one-third of the purchase loans during that period.

Of Washington's 25 largest mobile-home lenders, Clayton's subsidiaries ranked No. 1 and No. 2 for the highest interest rates in 2013. Together, they ranked eighth in loans originated.

''If you have a decrease in income and can't afford the mortgage, at least a lot of the big companies will do modifications,'' said Harris, the Knoxville housing counselor. ''Vanderbilt won't even entertain that.'' In general, owners have difficulty refinancing or selling their mobile homes because few lenders offer such loans. One big reason: Homes are overpriced or depreciate so quickly that they generally are worth less than what the borrower owes, even after years of monthly payments.

Ellie Carosa, of Napavine, Lewis County, found this out the hard way in 2010 after she put down some $40,000 from an inheritance to buy a used home from Clayton priced at about $65,000.

Clayton sales reps steered Carosa, who is 67 years old and disabled, to finance the unpaid amount through Vanderbilt at 9 percent interest over 20 years.

One year later, Carosa was already having problems—peeling paint and failing carpets—so she decided to have a market expert assess the value of her home. She hoped to eventually sell the house so the money could help her granddaughter, whom she adopted as her daughter at age 8, attend a local college to study music. Carosa was stunned to learn that the home was worth only $35,000, far less than her original down payment. ''I've lost everything,'' Carosa said.

'RUDEST, MOST CONDESCENDING' AGENTS

Berkshire's borrowers who fall behind on their payments face harassing, potentially illegal phone calls from a company rarely willing to offer relief.

Carol Carroll, a nurse living near Bug Tussle, Ala., began looking for a new home in 2003 after her husband had died, leaving her with a 6-year-old daughter. Instead of a down payment, she said, the salesman assured her she could simply put up two acres of her family land as collateral.

In December 2005, Carroll was permanently disabled in a catastrophic car accident in which two people were killed. Knowing it would take a few months for her disability benefits to be approved, Carroll said, she called Vanderbilt and asked for a temporary reprieve. The company's answer: ''We don't do that.''

However, Clayton ratcheted up her property-insurance premiums, eventually costing her $803 more per year than when she started, she said. Carroll was one of several Clayton borrowers who felt trapped in the company's insurance, often because they were told they had no other options. Some had as many as five years' worth of expensive premiums included in their loans, inflating the total balance to be repaid with interest. Others said they were misled into signing up even though they already had other insurance. Carroll has since sold belongings, borrowed money from relatives and cut back on groceries to make payments. When she was late, she spoke frequently to Clayton's phone agents, whom she described as ''the rudest, most condescending people I have ever dealt with.'' It's a characterization echoed by almost every borrower interviewed for this story.

Consumers say the company's response to pleas for help is an invasive interrogation about their family budgets, including how much they spend on food, toiletries and utilities.

Denise Pitts, of Knoxville, Tenn., said Vanderbilt collectors have called her multiple times a day, with one suggesting that she cancel her Internet service, even though she home-schools her son. They have called her relatives and neighbors, a tactic other borrowers reported.

After Pitts' husband, Kirk, was diagnosed with aggressive cancer, she said, a Vanderbilt agent told her she should make the house payment her ''first priority'' and let medical bills go unpaid. She said the company has threatened to seize her property immediately even though the legal process to do so would take at least several months.

Practices like contacting neighbors, calling repeatedly and making false threats can violate consumer-protection laws in Washington, Tennessee and other states.

Last year, frequent complaints about Clayton's aggressive collection practices led Tennessee state officials to contact local housing counselors seeking information about

their experiences with the company, according to two people with knowledge of the conversations.

TREATED LIKE CAR OWNERS

Mobile-home buyers who own their land sites may be able to finance their home purchases with real-estate mortgages, which give them more federal and state consumer protections than the other major financing option, a personal-property loan. With conventional home mortgages, companies must wait 120 days before starting foreclosure. In some states, the foreclosure process can take more than a year, giving consumers a chance to save their homes.

Despite these protections, two-thirds of mobile-home buyers who own their land end up in personal-property loans, according to a federal study. These loans may close more quickly and have fewer upfront costs, but their rates are generally much higher. And if borrowers fall behind on payments, their homes can be seized with little or no wanting.

Those buyers are more vulnerable because they end up being treated like car owners instead of homeowners, said Bruce Neas, an attorney who has worked for years on foreclosure and manufactured-housing issues in Washington state.

Tiffany Galler was a single mother living in Crestview, Fla., in 2005 when she bought a mobile home for $37,195 with a loan from 21st Mortgage. She later rented out the home.

After making payments over eight years totaling more than the sticker price of the home, Galler lost her tenant in November 2013 and fell behind on her payments. She arranged to show the home to a prospective renter two months later. But when she arrived at her homesite, Galler found barren dirt with PVC pipe sticking up from the ground.

She called 911, thinking someone had stolen her home.

Hours later, Galler tracked her repossessed house to a sales lot 30 miles away that was affiliated with 21st. It was listed for $25,900.

CLAYTON WINS CONCESSIONS

The government has known for years about concerns that mobile-home buyers are treated unfairly. Little has been done.

Fifteen years ago, Congress directed the Department of Housing and Urban Development to examine issues such as loan terms and regulations in order to find ways to make mobile homes affordable. That's still on HUD's to-do list.

The industry, however, has protected its interests vigorously. Clayton Homes is represented in Washington, DC, by the Manufactured Housing Institute (MHI), a trade group that has a Clayton executive as its vice chairman and another as its secretary. CEO Kevin Clayton has represented MHI before Congress.

MHI spent $4.5 million since 2003 lobbying the federal government. Those efforts have helped the company escape much scrutiny, as has Buffett's persona as a man of the people, analysts say.

''There is a Teflon aspect to Warren Buffett,'' said James McRitchie, who runs a widely read blog, Corporate Governance.

Still, after the housing crisis, lawmakers tightened protections for mortgage borrowers with a sweeping overhaul known as the Dodd-Frank Act, creating regulatory headaches for the mobile-home industry. Kevin Clayton complained to lawmakers in 2011 that the new rules would lump in some of his company's loans with ''subprime, predatory'' mortgages, making it harder for mobile-home buyers ''to obtain affordable financing.''

Although the rules had yet to take effect that year, 99 percent of Clayton's mobile-home loans were so expensive that they met the federal government's ''higher-priced'' threshold.

Dodd-Frank also tasked federal financial regulators with creating appraisal requirements for risky loans. Appraisals are common for conventional home sales, protecting both the lender and the consumer from a bad deal.

Clayton's own data suggest that its mobile homes may be overpriced from the start, according to comments it filed with federal regulators. When Vanderbilt was required to obtain appraisals before finalizing a loan, company officials wrote, the home was determined to be worth less than the sales price about 30 percent of the time.

But when federal agencies jointly proposed appraisal rules in September 2012, industry objections led them to exempt loans secured solely by a manufactured home.

Then Clayton pushed for more concessions, arguing that manufactured-home loans tied to land should also be exempt. Paul Nichols, then-president of Clayton's Vanderbilt Mortgage, told regulators that the appraisal requirement would be costly and onerous, significantly reducing ''the availability of affordable housing in the United States.''

In 2013, regulators conceded. They will not require a complete appraisal for new manufactured homes.

Ms. MAXINE WATERS of California. The investigation found that Clayton locked one disabled veteran in Tennessee, Dorothy Mansfield, into an expensive loan even though the required monthly payment would leave her only $27 to cover the rest of her living costs. Other borrowers were quoted inexpensive loan terms only to see interest and fees skyrocket once they had put down a nonrefundable deposit—or paid out large amounts of money to prepare their land for installation of the home. Just like subprime borrowers in the financial crisis, many looking to purchase manufactured housing were convinced to take out high-cost loans because they were sold false promises that they would be able to refinance to lower rates in the future.

Former Clayton salespeople have blown the whistle. They are coming forward, and they are talking. They have attested that they have pressured consumers to use Clayton-affiliated financing even if it wasn't the best deal, and some even received kickbacks for putting customers into more expensive loans.

If enacted, H.R. 650 would allow abusive lenders to charge up to nearly 14 percent interest before consumer protections are triggered, more than four times what the average borrower is paying on a home loan. There is not one Member of Congress who would pay or is paying 14 percent interest, 12, 13, 11 percent interest. This is outrageous.

In the coming years, this number could very well grow to 16 percent, 17 percent, and likely 18 percent as interest rates rise back to normal. Even worse, the bill would also make it legal for Clayton sales personnel to steer borrowers toward high-cost loans—loans from other parts of the Clayton conglomerate—that are not in their interest—a practice we banned for all loan originators after the financial crisis.

Mr. Speaker, when it comes to manufactured housing, consumers are already exposed to significant risk: high interest rates, the inability to refinance, and in many cases, depreciation that starts as soon as the manufactured home is sold. Today, we consider a measure that would even further roll back key protections.

This measure would do away with a number of protections current law affords to many high-cost loans such as stiffer penalties for bad actor lenders, additional disclosures for investors and consumers who purchase high-cost mortgages, mandatory counseling so borrowers would know what they are getting into, and even the ability of borrowers to have their loan rescinded if lenders don't follow the law. They would lose all of these protections.

As the Consumer Financial Protection Bureau noted in their study of the manufactured housing industry, the individuals who apply for loans for manufactured housing ''include consumers that may be considered more financially vulnerable and, thus, may particularly stand to benefit from strong consumer protections.'' And now, in addition to the CFPB's report, we have investigative reporting that puts names, faces, and individual stories of woe to the CFPB's description of market practices and policy failures.

Finally, the Obama administration has said that they ''strongly oppose'' this bill because it would ''put lowest income and economically vulnerable consumers at significant risk of being subjected to predatory lending and being steered into more expensive loans even when they qualify for lower cost alternatives.''

Rolling back consumer protections amidst evidence that the manufactured housing industry needs more oversight is a dangerous giveaway to a sector that already profits handsomely at the expense of vulnerable borrowers.

□ 1515

Mr. Speaker and Members, I would urge my colleagues to oppose this legislation.

I reserve the balance of my time.

Mr. FINCHER. Mr. Speaker, I yield myself 1 minute.

I enter into the RECORD a letter from Mr. Barney Frank back in 2011, a former chairman and former ranking member of our committee, on this issue:

Thank you for your thoughtful letter about the negative impact of the Financial Reform bill on manufactured housing. I'm very proud of the work I have done with the manufactured housing industry for years and was regretful to realize that we did have this problem. I do not think it is necessary to include manufactured housing as part of our effort to prevent abusive mortgage practices, and I am now working with my staff to see if we can find a way to make a change that would deal with the problem you currently point out.

Mr. Speaker, so much of what the ranking member, my colleague on the other side of the aisle is saying—we are

not messing with those parts of the bill that strengthen protections. All we are doing is fixing the unintended consequences that happened with the Dodd-Frank bill being so big.

With that, I yield 5 minutes to the gentleman from Texas (Mr. NEUGEBAUER), my good friend, the chairman of the Financial Institutions Subcommittee.

Mr. NEUGEBAUER. Mr. Speaker, I thank the gentleman from Tennessee.

This bill isn't about profits; it is about providing an opportunity for American families to have housing choices.

H.R. 650 is an important bill for communities in my district, the Texas 19th District, and communities across America. For most of my career, I was in a home building business. For many small communities in my district, the town would make efforts to go out and work to recruit a new employer.

Oftentimes, this could be a manufacturer, cotton, or dairy production facility. This goal was to help develop the economy and provide job opportunities for the folks. However, in many of these communities, there is already a limited amount of housing stock available.

In order for these communities to grow, you have to have sufficient housing availability to attract those businesses. You can't grow your community if folks don't have a place to live, and so the manufactured housing industry has been an integral part of providing housing for rural America. Unfortunately, under the new mortgage rules coming out of CFPB, the manufactured housing industry is facing some pretty significant headwinds and regulatory obstacles.

Last summer, I had the opportunity to go and visit a manufactured housing dealer in my district. The dealer began by telling me stories of family after family that were unable to serve because of the new mortgage restrictions.

For some of these young families, this is the first home that they may own. It may be a manufactured home worth only $15,000 or $20,000, and they are very proud of it. Unfortunately, today, many of the families in rural America have run out of places to turn to achieve the American Dream and own an affordable home.

Today, I want to address the issue of consumer protection. When consumer protection starts limiting consumer choices, then we have gone too far.

Unfortunately, I think many of the CFPB rules have gone too far. They are not only negatively impacting the consumers, but we also have a duty to make sure that the people we represent have the opportunities to make their own financial decisions about their housing and not the Federal Government and not one agency to make that decision for them.

This bill, H.R. 650, makes important corrections to the definition of a mortgage originator under the Truth in Lending Act. It is a bipartisan bill that ensures low- and moderate-income families have access to credit for the purchase of affordable homes.

It ensures that the CFPB rules are properly calibrated and don't consider small-balance manufactured home loans as high-cost loans under the Housing Ownership and Equity Protection Act.

For those reasons, I thank Mr. FINCHER and the bipartisan sponsors for their work on this bill, and I support its final passage.

I just want to mention that, when you look at a lot of these small communities—and it has been mentioned, Well, sometimes, people can rent, or they can own; and, in some cases, people say, you know—and rightfully so—that, sometimes, manufactured housing is a lower cost of housing for some of those people.

Let me say this: in some of these communities, it is not about whether you have a choice to rent or to own; in some cases, there is just not adequate housing stock in those communities.

If you want to choke a little small community across America, you take away the ability to provide housing. That is one of the main infrastructures for any community to grow. In many of these communities, there hasn't been a new house built in those communities in 30 or 40 years.

What you are saying to those small communities, because we are so intent in protecting Americans and we don't trust them to make their own decisions, we are just going to take away any opportunity that those small communities have to prosper and grow in the future.

Now, I don't think that is what the Founding Fathers of this country intended. They intended for this to be the land of opportunity. If we continue to do these kinds of things, we take away the opportunities of Americans that want to live in those communities.

Mr. Speaker, I encourage passage of this.

Ms. MAXINE WATERS of California. Mr. Speaker, I think it is important for people to know that that letter that was read was back in 2011, and that was prior to the Consumer Financial Protection Bureau's very investigative reporting.

I yield 3 minutes to the gentlewoman from Alabama (Ms. SEWELL).

Ms. SEWELL of Alabama. Mr. Speaker, I thank Ranking Member WATERS.

Today, I stand in support of H.R. 650, the Preserving Access to Manufactured Housing Act. Manufactured housing serves as an affordable and sustainable housing option for roughly 22 million Americans. In my State of Alabama, more than 300,000 families reside in manufactured housing, which comprises in excess of 14 percent of the State's housing market.

In districts like mine, where we face tremendous economic disparities and suppressed rental markets, manufactured housing must remain an option. Oftentimes, it is the only safe and affordable mortgage option available to families.

Without this bill, working families and retirees with poor credit or limited income can't obtain credit at all and are forced into more expensive housing options; and, in some parts of my district, the more rural parts of my district, the only option for many is manufactured housing.

H.R. 650 makes a simple but necessary adjustment to these thresholds to enable lenders to fully meet the demand for affordable, responsible loans for manufactured homes.

In many ways, Mr. Speaker, this bill is an acknowledgement that manufactured housing is different from regular dwelling housing. It is, in fact, not real property, but personal property, more like a car than it is like a home.

The fact of the matter is I believe that Dodd-Frank did not anticipate—was an unintended consequence of Dodd-Frank—that manufactured housing would get wrapped into the regulatory scheme for dwelling homes.

In fact, most of the lenders are not loan originators, as it would be in the mortgage context; rather, they are lenders giving limited options—I should say giving families, working families, the only option in many, many of the jurisdictions, the rural communities, that I represent.

With all due respect, I don't see this as a predatory lending bill. This is all about access to affordability. I, like the ranking member, strongly advocate against predatory lending, would not be supportive of an industry that preys upon the most vulnerable in the community.

In fact, many of my constituents represent vulnerable communities. Instead, I really see this as an opportunity for them, many of the communities I represent, to have affordable housing at all.

It is with that that I ask my colleagues on both sides of the aisle to consider H.R. 650 as an opportunity for rural communities all across America to have, as a viable option, manufactured housing.

I want to repeat something that was very important. In no way does this bill take away consumer protections. The consumer protections that were established by Dodd-Frank are really important.

The SPEAKER pro tempore. The time of the gentlewoman has expired.

Ms. MAXINE WATERS of California. I yield the gentlewoman an additional 30 seconds.

Ms. SEWELL of Alabama. The consumers will continue to have the wide range of consumer protections that Dodd-Frank affords and which I think many of us agree with.

Steering would be prohibited. We would still have truth-in-lending disclosures, which are critically important, and loan-term disclosures that are critically important; and the prohibitation against mandatory arbitration and other State laws are not affected.

I see this not as a predatory lending bill, but an access to affordable housing bill, and I ask my colleagues to support H.R. 650.

Mr. FINCHER. Mr. Speaker, I would like to thank the gentlewoman from Alabama for supporting the legislation.

I yield such time as he may consume to the gentleman from Kentucky (Mr. BARR).

Mr. BARR. Mr. Speaker, I thank the gentleman for yielding, and I want to thank the gentleman from Tennessee for his leadership on this very important issue, Mr. FINCHER, for being a champion for affordability of housing and manufactured housing in particular.

I want to thank all of my colleagues who are supporting this important legislation that I had cosponsored, the Preserving Access to Manufactured Housing Act, and it is a bipartisan bill, and that is important.

Affordable manufactured housing is a key source of housing for many of our constituents, particularly those living in rural areas, including my district in central and eastern Kentucky, many of those individuals who could not otherwise afford to buy or even rent a home.

Unfortunately, due to the regulatory requirements of the Dodd-Frank Act, many lenders have stopped offering loans for manufactured houses. The loans in question are generally fixed-rate, fixed-termed, fully amortized, small-dollar loans that have nothing in common with the bad mortgage loans that brought down the housing market in 2008; yet the Consumer Financial Protection Bureau has treated retailers of manufactured homes as ''mortgage originators,'' despite the fact that they do not originate loans.

Furthermore, the small-dollar amounts of manufactured housing triggers high-cost regulatory controls since points and fees represent a proportionally larger share of a small-dollar loan than a larger 30-year mortgage on real property.

These definitions increase the regulatory and liability burdens on retailers and lenders, driving them from the market and resulting in higher costs and reduced choice for prospective home buyers.

In fact, due to the increased lender liability associated with this mortgage designation, some manufactured housing lenders have stopped making manufactured home loans entirely, and others have stopped originating manufactured home loans under $20,000, which is a typical price point.

The legislation before us today does nothing to roll back existing protections against predatory lending, as has been said previously by my friend on the other side of the aisle, Congresswoman SEWELL.

H.R. 650 merely clarifies the definitions for mortgage originators in high-cost loans to correct an unfortunate consequence of these regulations that the Federal Government will be protecting homeowners right out of their homes.

This legislation will reduce the bureaucratic red tape, increase access to affordable manufactured housing for American families, and let me just conclude by saying this in response to some of the arguments made by the ranking member. She made the point that manufactured home sales are increasing. Well, that is not an argument against this legislation.

On the contrary, it underscores the extent to which Americans are relying on manufactured housing in the Obama economy and the need to preserve access to lower-priced, more affordable homes, homes such as manufactured homes, which commonly are available at lower monthly payments than what it cost even to rent. It also reinforces the need for this legislation because we need to preserve access to affordable housing.

This argument, this canard that this is somehow rolling back consumer protections for lower-income homeowners, this is not true at all. This legislation does nothing to roll back consumer protections. I simply do not define consumer protection as a law that tries to protect people in a way that makes access to housing completely unreachable. That is not consumer protection.

I urge my colleagues on both sides of the aisle to support this bipartisan piece of legislation that preserves access to affordable housing and preserves commonsense consumer protections.

Ms. MAXINE WATERS of California. Mr. Speaker, I think it is important for me to correct statements that have been made more than once by the opposite side of the aisle about consumer protections.

H.R. 650 would remove consumer protections afforded to borrowers of high-priced mortgage loans under the Home Ownership and Equity Protection Act, as enhanced by Dodd-Frank, for manufactured housing loans that currently receive such protections.

□ 1530

Those protections include:

Prior to making a high-cost mortgage, the lender must receive written certification that the consumer has received counseling from a HUD-approved counselor or State agency. That would be out. Restrictions on loan terms for high-cost mortgages, including the loan payments currently only allowed in very limited circumstances; prepayment penalties banned; a limitation of due-on-demand features of loans; creditors banned from recommending default on an existing loan to be refinanced by a high-cost mortgage; no fees can be charged by services or creditors to modify or renew or extend a high-cost mortgage; late fees capped at 4 percent of past due payments and the pyramiding of fees banned; no fees for borrowers to receive a payoff statement; charges that qualify for points and fees cannot be financed into principal balance; a ban on issuing two loans in order to evade HOEPA coverage by splitting fees and rates.

All of these are protections that would be eliminated.

Mr. Speaker, I yield 2 minutes to the gentleman from Missouri (Mr. CLEAVER).

Mr. CLEAVER. Mr. Speaker, I would argue that the fact that home sales are increasing for manufactured homes is even more of a reason for us to want to be protective of some kind of an industry that is growing.

I represent areas in which there are a number of manufactured homes throughout the rural parts of Missouri that are included in the Fifth Congressional District. I am a capitalist. I believe that people ought to be able to make money. I think they ought to make money in the manufactured home industry, and I would like for them to make money in the Fifth Congressional District.

Yet I think that everyone in here would agree that we have all had questions about what happens when a car is purchased and the driver drives it around the corner and loses about $1,200 in depreciation. Nobody I have ever met or had a conversation with said, Oh, I understand that. The car depreciates almost as soon as you sign the note. What happens is that this is an unintended reason for more, I think, congressional oversight of this particular industry because these homes also lose value like automobiles. Let me give you an example from the Seattle study. This is sad, and I will try and do this quickly, Mr. Speaker.

Tiffany Galler is a single mother who was living in Florida in 2005. She bought a mobile home for $37,165. With the loan she purchased from 21st Mortgage, she then rented the home out. She made payments for 8 years, payments totaling more than the sticker price of the home. Galler lost her tenant in November of 2013, and she fell behind on her payments. She arranged to show the home to a prospective renter 2 months later, but when she arrived at her home site, Ms. Galler found barren dirt with PVC pipe sticking up from the ground. She called 911, thinking someone had stolen her home, but she found out later that her home was 30 miles away and was up for sale for $25,900.

The SPEAKER pro tempore. The time of the gentleman has expired.

Ms. MAXINE WATERS of California. I yield the gentleman an additional 30 seconds.

Mr. CLEAVER. That is a real reason for us not only to look at this industry but to protect people as it is growing.

Mr. FINCHER. Mr. Speaker, I yield 2 minutes to the gentleman from Texas (Mr. WILLIAMS), my good friend.

Mr. WILLIAMS. I thank the gentleman from Tennessee for his leadership on this issue.

Mr. Speaker, I rise today in support of H.R. 650, a bipartisan piece of legislation that would make commonsense changes to Dodd-Frank and restore

clarity to a market that has been hit hard by unnecessary regulations.

Texas builds or manufactures over 25 percent of the Nation's new manufactured homes—almost 12,000 last year. To put that in perspective, Texas is home to 19 manufacturing facilities with an average of 185 skilled workers per factory. At a time when our Nation is still recovering from the financial crisis of 2008, now is the time to free small businesses from harmful regulations that only hurt hard-working Americans. I cannot emphasize enough how important it is to have access to affordable financing for manufactured homes, especially in central Texas, where the average home price for a manufactured home is $60,000.

The one-size-fits-all regulatory approach under the CFPB is clearly not working. Instead of protecting potential consumers, the CFPB has, once again, gotten it wrong. Treating lending products for manufactured housing as high cost and predatory clearly will not protect consumers, but it will reduce access to small balance loans.

With increased lender liabilities, obtaining a high-cost mortgage has become nearly impossible. Having critical resources for low- to moderate-income families is vital in many parts of rural America. By passing the Preserving Access to Manufactured Housing Act, Congress can correct one of the many unintended consequences of the Dodd-Frank Act. This bill is fair, and this bill is logical. It must pass. I urge its immediate passage.

In God we trust.

Ms. MAXINE WATERS of California. Mr. Speaker, I yield 2 minutes to the gentlewoman from Arizona (Ms. SINEMA).

Ms. SINEMA. Thank you, Ranking Member WATERS, for yielding.

Mr. Speaker, manufactured housing is a key form of affordable housing in my State, particularly in rural and underserved communities. More than 300,000 families in Arizona live in manufactured homes. Manufactured homes provide an affordable housing choice for many low- and moderate-income families.

Existing manufactured home owners and potential buyers are negatively impacted by current regulations. These rules inadvertently curtail a consumer's ability to access manufactured home loans or to receive effective assistance in the manufactured home buying process. These regulations unintentionally create situations where borrowers are not allowed to be matched with lenders who can help them in a timely and efficient manner.

For example, if a Realtor in Arizona works with a veteran who wants to use his or her VA eligibility to purchase a home, the Realtor connects the veteran with a number of lenders who offer VA home loans. Due to the current restrictions placed on retail salespeople, the process is different if a veteran shops for a manufactured home.

Manufactured home sale centers have a marketing table where lenders place marketing and lending materials. Manufactured home salespeople cannot assist veterans in finding lenders. Instead, when a veteran enters the home center, she is instructed to go to the table and sift through the countless brochures and loan programs by herself to determine which lender is best. There may be a dozen different lenders' information displayed on this table. As you can imagine, this is a very daunting and discouraging process for most borrowers, especially for first-time home buyers.

Had the salesperson simply been able to point the veteran in the direction of a lender that offers VA loans, the veteran would have been taken care of immediately and would have been able to have made an informed and confident decision.

H.R. 650 will remedy the unintended consequences of current regulations, providing potential home buyers with more options, better advice, and more confidence when buying a new home.

The bill also amends the definition of a ''high-cost mortgage'' and corresponding thresholds to ensure that consumers of small balance mortgage loans will have the opportunity to access mortgage credit. I would encourage my colleagues to join me in supporting this important legislation.

Mr. FINCHER. Mr. Speaker, I yield such time as he may consume to the gentleman from Arkansas (Mr. HILL).

Mr. HILL. Thank you, Mr. FINCHER, for yielding on this important measure, and thank you for your leadership.

Mr. Speaker, it pains me to stand in opposition to my friend, the ranking member of the committee, and in support of H.R. 650, but I believe that H.R. 650 is a commonsense bill that actually preserves financing options for manufactured homes while preserving and maintaining consumer protections.

I want to add too that my friend from Missouri noted the health of the industry, and I would like to provide a countercomment on that. In the last decade alone—this very tough economic decade that we have had—there has been an 80 percent decline in the production of manufactured housing in the country. Some 160 plants have closed, and there has been a loss of some 200,000 jobs. Therefore, this industry is important to our Nation. As a percentage of total housing units, in my home State of Arkansas, we have 170,000 units, which is some 13 percent of housing units in our State—one of the largest percentages in the country.

For many years, I was a community banker with offices in the Mississippi Delta region of Arkansas. For many of our families, especially in rural areas, manufactured housing is not only the best option for housing, but it is the best option for clean, safe, modern, and affordable housing. Often, due to low volumes in these kinds of towns, it is the only option, as many of my colleagues have noted.

However, under the new mortgage rules issued by the Consumer Financial Protection Bureau, many of these manufactured housing loans are now automatically considered high cost and, therefore, would subject both the consumers to higher costs and the lenders to greater liability. Therefore, many of my old colleagues in community banking offer fewer loans, and that impacts hard-working, low- to moderate-income families across Arkansas and particularly in rural America, families whose only objective is to own a home, to have the dream of homeownership.

The Director of the CFPB has acknowledged that its rules may, in fact, have this issue of constraining credit, but as the executive director of Arkansas Manufactured Housing Association said in a recent letter:

Most low-income Arkansas families don't have the luxury when it comes to their mortgage options, and many of our member businesses won't last through a few more years of decline in sales.

Mr. Speaker, I submit this letter for the RECORD.

ARKANSAS MANUFACTURED HOUSING ASSOCIATION,

Hon. FRENCH HILL,

House of Representatives, Longworth House Office Building, Washington, DC.

DEAR CONGRESSMAN HILL: Congratulations on your election to Congress representing Arkansas' 2nd District and on your selection to the House Financial Services Committee.

During the campaign, we visited briefly about how the implementation of 'The Dodd-Frank Act' (and the avalanche of additional regulation created by the Act) hinders job creation and increases the cost of financial services for Arkansas consumers and businesses. More specifically, we discussed how 'Dodd-Frank' has adversely impacted the members of the Arkansas Manufactured Housing Association (AMHA) and their customers—low-to-moderate income homebuyers throughout the state.

Over the past year, the Consumer Financial Protection Bureau (CFPB) has implemented a number of final rules, issued interpretations of those rules, and clarifications of the interpretations of those rules—all in defense of practices that continue to disrupt consumer lending for low-to-moderate income homebuyers, particularly to purchasers in predominantly rural markets like Arkansas.

At Congressional hearing about the Dodd-Frank's 'Ability to Repay' (ATR) and 'Qualified Mortgage' (QM) rules, one of the CFPB's key witnesses testified that the Bureau recognizes ''. . . that concerns about liability under the Dodd-Frank Act's 'Ability-To-Repay' requirement might cause creditors to constrain their lending—particularly in the first few YEARS after the rule takes effect.''

In response to that statement—on behalf of an industry which over the past decade has experienced an 80 percent decline in new home production; the closure of more than 160 manufacturing facilities; and the loss of more than 200,000 American jobs—I would say that most low-to-moderate income Arkansas families don't have the luxury of taking a 'wait and see approach' when it comes to their mortgage options and that many of our member businesses won't last through another 'few YEARS' of decline in production and sales.

Throughout its continued rulemaking, the CFPB has demonstrated a fundamental lack of understanding about manufactured home lending. And, through the implementation of rules like ATR and QM, the Bureau has created additional challenges for manufactured

home purchasers and lenders wishing to offer mortgage loans on manufactured homes.

As you are undoubtedly aware, lenders which provide specific mortgage products for the manufactured home industry (particularly personal property type 'home only' [chattel] loans), community banks and other financial institutions will likely offer fewer manufactured home loan options if such loans are not able to be classified as 'qualified mortgages'. The liability created by Dodd-Frank on such loans (classified as 'high cost' or 'high priced') will prevent most institutions from offering these loans to hard-working Arkansas families.

You also know that manufactured home loans tend to be lower balance loans. And, while the cost of origination for a $50,000 manufactured home loan may be the same as the cost of origination for a $250,000 'site-built' home loan in 'real dollars'—that origination cost (when considered against the lower-balance loan total) will more readily cause that lower-balance loan to fall outside the parameters of a 'qualified mortgage'.

The loss of mortgage options for paycheck-to-paycheck wage earners seeking to attain 'The American Dream of Home Ownership'—particularly in a state where the median annual household income is around $40,000—will keep many Arkansas families living in rental units or dependent upon government assistance programs for their housing needs.

The manufactured home industry is asking for your immediate assistance with industry-specific legislation to amend the provisions of Dodd-Frank which are restricting the availability of credit needed by those seeking to purchase manufactured housing. H.R. 650—The Preserving Access to Manufactured Housing Act—would revise the high-cost mortgage triggers for manufactured home loans and make clarifications to the loan originator definition as it applies to manufactured home retailers and their salespeople.

On behalf of the members of the Arkansas Manufactured Housing Association (AMHA) and the customers that we serve, I would respectfully request that you become a co-sponsor of H.R. 650.

Thank you for your consideration of this issue of great importance to the manufactured housing industry and our customers—the low-to-moderate income families of Arkansas. Feel free to contact me if you have questions about this request.

Sincerely,

J.D. HARPER,
Executive Director,
Arkansas Manufactured Housing Association.

Mr. HILL. Regarding consumer protection, I agree with my colleagues that this bill does not weaken any current laws. It protects consumer access to affordable credit; it preserves the consumer's choice; it helps Americans achieve financial independence; and it prevents the CFPB rules from overprotecting low-income consumers out of the option of a manufactured home.

H.R. 650 is about protecting the American Dream of homeownership. I am proud to support this bipartisan bill. I think it is common sense.

Mr. FINCHER. Mr. Speaker, may I inquire as to how much time is left on both sides?

The SPEAKER pro tempore. The gentleman from Tennessee has 10½ minutes remaining, and the gentlewoman from California has 13 minutes remaining.

Ms. MAXINE WATERS of California. Mr. Speaker, I yield myself such time as I may consume.

Members, I reiterate that H.R. 650 would remove consumer protections afforded to borrowers of high-priced mortgage loans under the Home Ownership and Equity Protection Act, as enhanced by Dodd-Frank, for manufactured housing loans that currently receive such protections, and I read off some of those protections.

I further want to share that these lenders want to be able to originate these high-priced loans at 14 percent and even more when the interest rates change, but they want this bill to change the definition of a ''mortgage originator'' so that the licensing and antisteering requirements of Dodd-Frank would not apply to manufactured housing.

Not only are they going for protection for higher priced loans and higher fees, they want to change the definition so they don't look like they are originating loans, and they don't want to come under the law in terms of what we require for protection for higher priced loans.

Mr. Speaker, I yield 3 minutes to the gentleman from Texas (Mr. AL GREEN).

Mr. AL GREEN of Texas. I thank the Honorable MAXINE WATERS for continuing to be a champion for people who have been taken advantage of. She has a rich history of fighting for those who are not in a position to fight for themselves.

Mr. Speaker, I guess there will be a question of ''Who are you going to believe?'' Will it be MAXINE WATERS, who has for decades been fighting for the least, the last, and the lost? MAXINE WATERS, who is known across the length and breadth of this country as a champion for poor people, for people who purchase manufactured homes?

MAXINE WATERS has said—and I concur with her—that this bill will create an opportunity for people to take advantage of those who are living at a level of life wherein what they pay for a home must be what they can afford, and they cannot afford to lose that home.

□ 1545

This is why she is so concerned, and I join her in this notion, that there is predatory lending taking place if this bill passes. If this bill passes, people will be allowed to steer people into homes that will have higher interest rates. If this bill passes, there will be people who will need counseling but will not get the counseling that they need to help them maintain home ownership. If this bill passes, we will go back to prepayment penalties. If this bill passes, we will not be able to bring back these protections and safeguards that have been instated under Dodd-Frank. We will eliminate them, and they will be gone forever.

We need to think before we act and before we vote. This is an important vote for those who are not going to be able to stand up and fight for themselves, but I thank God that we have got the Honorable MAXINE WATERS on the floor of the U.S. House of Representatives standing here today to stand up for them.

So who are you going to believe? There seems to be a difference of opinion. When you have differences in opinions, you look to see who has been doing what and for how long. She has been fighting for these kinds of rights that we are talking about today since she has been in the Congress of the United States of America. I am proud to stand with the Honorable MAXINE WATERS.

I think that if we pass this bill, we will continue to do what many want to do, but in an incremental salami way. We will continue to slice away at Dodd-Frank. We will continue to do what those who can't repeal it in full would do in part, and that is eliminate the protections for consumers.

Mr. FINCHER. I reserve the balance of my time.

Ms. MAXINE WATERS of California. Mr. Speaker and Members, before the next Members rise to speak on this bill, I would just like to remind everybody that this amount of interest rate that they will be getting on these loans, should this bill pass, is 10 percent above the prime rate; and from 14 percent it could go up to maybe 18 percent. There is no Member of Congress who would pay that kind of interest rate on a home loan or manufactured housing or anything else, but we are asking the most vulnerable in our society that are targeted to pay this kind of entry rate in the interest of getting credit.

I yield 3 minutes to the gentleman from Maryland (Mr. SARBANES).

Mr. SARBANES. Mr. Speaker, I thank the gentlelady for yielding. I want to congratulate her as well on her amazing advocacy on behalf of consumers across this country and her leadership on the Committee on Financial Services.

Mr. Speaker, here we are again forced to ask the question: Who calls the shots here in Washington and in Congress and on Capitol Hill? We shouldn't have to ask that question. It should be the people that call the shots. It should be everyday Americans that call the shots here, but unfortunately it is big money on Wall Street that continues to call the shots. It is big money that is leaning on Congress to water down, once again, the Dodd-Frank rules in ways that will harm consumers. With the mortgage crisis barely in our rearview mirror, the hidden hand of Wall Street is intent on rolling back critical consumer protections and stripping away important reforms that have been made to our mortgage market.

Exhibit A for today—and I say ''for today'' because there has actually been dozens of exhibits of this kind of legislation that have come forth over the last few months authored by Wall Street interests. But Exhibit A for today is called Preserving Access to Manufactured Housing Act, H.R. 650. Preserving access; it sounds good, but

it is a wolf in sheep's clothing. That is how they title these things around here.

This legislation would roll back critical consumer protections for our Nation's most vulnerable families, undermining a simple proposition that the owners of manufactured homes deserve the same protections as traditional homeowners; specifically, the legislation would cause interest rates to spike and would reintroduce conflict of interest into the manufactured home market.

By the way, Mr. Speaker, later on today we will see Exhibit B for today. That is called the Mortgage Choice Act, H.R. 685. That is legislation that would scrap vital consumer protections put in place by Dodd-Frank to prevent unscrupulous lenders from steering consumers into higher fee mortgages. That is what is going on around here.

Of all the areas in need of Congress' attention, the Republican majority has chosen to once again focus on giveaways to the Wall Street crowd. American consumers deserve better than that, and I urge my colleagues to vote against H.R. 650 and later against H.R. 685.

Mr. FINCHER. Mr. Speaker, I yield 4 minutes to the gentleman from Texas (Mr. HENSARLING), the chairman of our committee, and I again want to thank him for his leadership on this issue.

Mr. HENSARLING. Mr. Speaker, I thank the gentleman for yielding, but more importantly, I thank him for his leadership, and I thank him for standing up for so many of the downtrodden, the low- and moderate-income Americans from sea to shining sea who want to realize some piece of the American Dream—they want to own a home.

Now, maybe it is not going to be quite as nice as a home that some Member of Congress might live in, you know, but it is going to be their home. In this case, it is going to be a manufactured home. I can say for many of the people who live, Mr. Speaker, in the Fifth District of Texas, if it weren't for manufactured housing, they wouldn't have a house.

As the gentleman from Tennessee so eloquently said as this legislation was being marked up in our committee, there are so many on the left and the far left who want to protect consumers right out of their homes. That is shameful, Mr. Speaker. It is absolutely shameful. They should have the same equal opportunity to own a home as any Member of this body, and yet my friends on the other side of the aisle would take it away from them. No, they have got a bumper sticker slogan here. You know, they have got Dodd-Frank; we are going to aim at Wall Street. But when they aim at Wall Street, they are hitting Main Street. They are hitting Main Street, and low- and moderate-income Americans are suffering.

We have bank after bank after bank after credit union after credit union, we are talking community financial institutions who are saying, without the legislation of the gentleman from Tennessee, they have got to get out of the business. You know what that means, Mr. Speaker? It means people lose their opportunity to own that first home, which might just be a manufactured house.

First Arkansas Bank and Trust, we heard from them:

> Our bank has a long history of helping consumers, especially those who, for some reason, cannot qualify for secondary market financing at the time. Due to the fact that this type of financing is now overly burdened by the qualified mortgage standards, we have ceased this type of financing.

I heard from the Central Maine Credit Union. And, by the way, we haven't mentioned Goldman Sachs and J.P. Morgan. No, these are community financial institutions, Mr. Speaker.

I am sorry. This comes from Five County Credit Union:

> Since October of 2010, Five County has no longer been offering mobile home loans to its members due to the Federal legislation.

First National Bank of Milaca. I hope I am pronouncing this right, but given that it isn't a money center bank on Wall Street, we are a little less familiar with its name. This is in Minnesota.

> The high price mortgage rules have caused my bank to reduce the number of real estate mortgages we make on certain type houses, specifically mobile homes.

I could go on and on. I have got a stack of these, Mr. Speaker. That is why the gentleman from Tennessee, with his able leadership, has brought forth legislation—bipartisan legislation, I might add; bipartisan, almost half of the Democrats on our committee supported it.

The ranking member supported it before she was against it. I don't quite understand the change of mind. The need is still as great. People are still suffering. The low- and moderate-income Americans have been falling behind. Here is a chance to let them have an opportunity to get into a mobile home. But, no, no, no, no, no, we have got a Wall Street bumper sticker slogan here, and it doesn't matter who is going to get hurt.

Well, it does matter. It matters a lot, Mr. Speaker. We need to ensure that every American, regardless of their income, in a competitive, transparent, innovative capital market, that they have the opportunity to finance that mobile home. Every American should have that opportunity.

The SPEAKER pro tempore. The time of the gentleman has expired.

Mr. FINCHER. I yield the gentleman an additional 1 minute.

Mr. HENSARLING. Every single American should have that opportunity, and it is the gentleman from Tennessee who is hearing their voices and is representing their voices on the House floor today.

Again, I want to thank him for his leadership and thank him for the thousands and thousands across the Fifth District of Texas that I have the privilege and honor of representing that, just because they are low income, he knows—he knows—they still deserve that chance for the American Dream. He is fighting for their American Dream.

This was compromise language, Mr. Speaker. This is not the bill I wanted; it is not the bill he wanted. It was compromise language. In fact, the ranking member supported even a broader provision in the previous Congress. But what has happened is, yet again, the left hand doesn't always know what the far left hand is doing; and the far left hand has decided that all of a sudden we are going to aim at Wall Street banks, and it doesn't matter if any person working at a Walmart or working at a Whataburger loses their chance at the American Dream.

That has to stop. We need to support the legislation of the gentleman from Tennessee. I urge the House to adopt it.

Ms. MAXINE WATERS of California. I yield 2 minutes to the gentlelady from Illinois (Ms. SCHAKOWSKY).

Ms. SCHAKOWSKY. Mr. Speaker, it is interesting that the gentleman just described this as a consumer protection bill for people who live in manufactured housing. We are talking about trailer homes. But yet the National Manufactured Home Owners Association is opposing this bill, along with the Alliance for a Just Society, Americans for Financial Reform, the Center for American Progress, the Center for Responsible Lending, Consumer Action, Corporation for Enterprise Development, Empire Justice, Financial Protection Law Center, the Housing Assistance Council, the Leadership Conference on Civil and Human Rights, the National Consumer Law Center, National Council of La Raza, National Fair Housing Alliance, North Carolina Justice Center, U.S. Public Interest Research Group. Are these the far left that he is talking about, the people who actually represent folks that live in the kind of housing that he is saying that he wants to protect?

Nearly 7 years ago, our housing collapse resulted in more than 5 million foreclosures and 10 million jobs lost, and so we enacted Dodd-Frank to reform Wall Street, to improve consumer protections against crippling loans and the creation of the Consumer Financial Protection Bureau. The two bills, H.R. 650 and H.R. 685, would strip many of these consumer protections, would allow higher fees and reduce consumer protections and permit some of the most abusive and deceptive practices that trapped borrowers into unaffordable loans. Those protections were hard earned, and they were clearly justified. Eliminating them would put us back in the same situation that led to the worst recession since 1929.

This bill, H.R. 650, would weaken consumer protections for manufactured home loans. This is a bad bill, and I urge my colleagues to vote ''no.''

Mr. FINCHER. I reserve the balance of my time.

Ms. MAXINE WATERS of California. Mr. Speaker, could you tell me how much time we have left?

The SPEAKER pro tempore. The gentlewoman from California has 4 minutes remaining. The gentleman from Tennessee has 5½ minutes remaining.

Ms. MAXINE WATERS of California. I yield 2 minutes to the gentleman from Washington (Mr. HECK).

□ 1600

Mr. HECK of Washington. Mr. Speaker, I cannot tell you how thrilled I am to hear that the chair of the committee has seen the light and will follow the lead of the gentleman from Tennessee, and I am looking forward to him signing on to Congressman FINCHER's Export-Import Bank reauthorization bill.

In fact, I wish I could stand here and support this in the name of consumer protection, but it isn't. When we had this hearing, the most common thread was that we needed more information about what is happening out here.

Well, unfortunately, since that hearing, we have received more information. Indeed, The Seattle Times ran an unbelievably in-depth article detailing some of the worst practices among manufactured home lenders, some of those practices which contributed to the subprime bubble and meltdown: not verifying borrowers' income, pushing borrowers into unaffordable loans, aggressive debt collection, driving up costs through hidden add-ons, overappraising homes, all of these things.

If you do nothing else, read this essay, which I flat predict today—write it down—is going to win a Pulitzer Prize. Write it down.

It has been suggested that lenders could not make a living were they held to 8 points over prime, but that doesn't square with reality. What is reality? Take out the largest lender, who averages 7 points over prime, average all the rest, and it is 3.8 percent over prime.

Don't tell me lenders can't make a living in the manufactured home market unless they are given 10 points over prime. They are making a living. In fact, they could double it and still be approximately what the single largest does.

This bill is about relaxing an awful lot of consumer protections among our most vulnerable population, requirements to do housing counseling, a ban on teaser rates, early provision of disclosures, large font statement of the consumers' rights.

This bill would go backwards on those measures and would expose the most vulnerable among us to exploitation. As a consequence, I would urge my colleagues to vote ''no'' on H.R. 650 in the name of consumer protection.

Mr. FINCHER. Mr. Speaker, I continue to reserve the balance of my time.

Ms. MAXINE WATERS of California. Mr. Speaker, I yield myself such time as I may consume.

My colleagues on the opposite side of the aisle keep telling us how everybody who would make money on the most vulnerable population is somehow suffering. They are suffering because somehow they are not able to make these loans because they cannot be guaranteed the profits that they want to get.

Let me again just share some information with you. Clayton Homes, the largest U.S. mobile home manufacturer, as well as the two biggest mobile home lenders, 21st Mortgage Corporation and Vanderbilt Mortgage and Finance, are owned by Berkshire Hathaway, an amazingly profitable company whose shares trade for $215,000 each.

Berkshire Hathaway profited to the tune of $19.87 billion, or 12,092 per share, in 2014. The CEO of Berkshire Hathaway is Mr. Warren Buffett, the third richest man in the world.

Even though the CFPB's rule on manufactured housing was effective in January 2014, again, Clayton Homes profited to the tune of $558 million in 2014, up from $416 million in 2013 and $255 million in 2012. Why do we need to provide this industry with more regulatory relief when they are already thriving?

Note that these profits come on the backs of some of America's lowest income households. In fact, 84 percent of the industry's customers make less than the U.S. median household income.

Clayton, again, is a large conglomerate of companies operating under at least 18 names, constructing nearly half of the industry's new homes and selling them through its own retailers. Many consumers think they are shopping around, not realizing that it is just different dealers with different names, all operating under the Clayton umbrella.

Let me just wrap this up by saying that this bill is absolutely a giveaway. It is my friends on the opposite side of the aisle deciding that it is more important to allow this industry to charge exorbitant interest rates and fees to this vulnerable population than it is to try and do something about reform.

We went through a recession—almost a depression—in this country because of the way loan initiators came up with these exotic products. You want to take us right back to that kind of situation.

I would ask my colleagues to vote ''no'' on this bill. It is not needed, and it is absolutely predatory.

I yield back the balance of my time.

Mr. FINCHER. Mr. Speaker, I yield myself such time as I may consume.

I am going to finish up and just hit on several accusations that have been made by my friends on the other side of the aisle. Before I do, I will read a statement from the ranking member last Congress—this was back in May 2014—on H.R. 1779, which was the bill before the compromise, which had interest rates at 14 percent, not capped at 10 above prime.

But I'm going to support the bill, and I'm supporting the bill because I have been embracing opportunities to support rural communities.

In the same vein, I'm going to support this bill, even though I have some questions about it, because, again, I want my legislators here, my friends, my colleagues, rather, who are from rural areas that are trying hard to make sure that they provide opportunities and they realize the problems of their constituents, I want them to know that we can work together on rural and urban problems, without always being opposed simply because it's urban or simply because it's rural.

Now, that is before the compromised language, Mr. Speaker. Now, that language is significantly less. Once again, we are not doing away with the protections that Dodd-Frank makes sure that apply to folks all over districts all over our country.

Think about this. I go home every weekend. I live in a little place called Frog Jump. It is a real place in west Tennessee. My county is Crockett County, a very rural county that doesn't have a stoplight in our county, not a red light in our county. We are that small, 12,000, 13,000 people.

I go home to my constituents, the folks in my district, and they tell me: FINCHER—a lot of them call me by my last name—FINCHER, we are trying to buy a mobile home—a manufactured home—and we are happy with the price, we have been happy with all of the terms of the conditions of the manufactured home that we are trying to buy; but, FINCHER, we can't buy one because Washington has gotten in the way. We are happy with the price; we are happy with the terms; we are happy with the product, but bureaucrats and politicians in Washington seem to think they know more than we know here in Crockett County.

Now, Mr. Speaker, my colleagues on the other side of the aisle, it is almost like, Do as we say, but don't do as we do. It is almost like they are totally against Americans having the right to choose for themselves and make the decisions for themselves, so Members of Congress should sit high on their horse, know nothing about the industry, nothing about how this is going to impact not the people at the top, Mr. Speaker.

If my colleagues are so opposed to making an income and making wealth and growing our businesses and making a profit—this doesn't hurt Warren Buffett. It hurts the people in Frog Jump and Dyersburg and Knoxville, all around this country. We somehow must get back to working for the people back home and not listening to the special interest groups.

They have been citing a story in a newspaper somewhere—I don't know where—that put all of these accusations out. We are not lessening the role of Dodd-Frank when it comes to consumer protections with this bill. All we are doing is making sure that Americans, Mr. Speaker, can have access to credit and they can own a home for themselves and not be told what to do by Washington politicians.

I urge my colleagues on both sides of the aisle—this is a bipartisan bill—please, please don't be scared by the President's veto threat yesterday and try to vote for the constituents back home in our districts that desperately need this legislation to pass.

Mr. Speaker, I yield back the balance of my time.

The SPEAKER pro tempore (Mr. DUNCAN of Tennessee). All time for debate has expired.

Pursuant to House Resolution 189, the previous question is ordered on the bill.

The question is on the engrossment and third reading of the bill.

The bill was ordered to be engrossed and read a third time, and was read the third time.

The SPEAKER pro tempore. Pursuant to clause 1(c) of rule XIX, further consideration of H.R. 650 is postponed.

MESSAGE FROM THE PRESIDENT

A message in writing from the President of the United States was communicated to the House by Mr. Brian Pate, one of his secretaries.

MORTGAGE CHOICE ACT OF 2015

Mr. HUIZENGA of Michigan. Mr. Speaker, pursuant to House Resolution 189, I call up the bill (H.R. 685) to amend the Truth in Lending Act to improve upon the definitions provided for points and fees in connection with a mortgage transaction, and ask for its immediate consideration in the House.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 685

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Mortgage Choice Act of 2015''.

SEC. 2. DEFINITION OF POINTS AND FEES.

(a) AMENDMENT TO SECTION 103 OF TILA.—Section 103(bb)(4) of the Truth in Lending Act (15 U.S.C. 1602(bb)(4)) is amended—

(1) by striking ''paragraph (1)(B)'' and inserting ''paragraph (1)(A) and section 129C'';

(2) in subparagraph (C)—

(A) by inserting ''and insurance'' after ''taxes'';

(B) in clause (ii), by inserting '', except as retained by a creditor or its affiliate as a result of their participation in an affiliated business arrangement (as defined in section 2(7) of the Real Estate Settlement Procedures Act of 1974 (12 U.S.C. 2602(7))'' after ''compensation''; and

(C) by striking clause (iii) and inserting the following:

''(iii) the charge is—

''(I) a bona fide third-party charge not retained by the mortgage originator, creditor, or an affiliate of the creditor or mortgage originator; or

''(II) a charge set forth in section 106(e)(1);''; and

(3) in subparagraph (D)—

(A) by striking ''accident,''; and

(B) by striking ''or any payments'' and inserting ''and any payments''.

(b) AMENDMENT TO SECTION 129C OF TILA.—Section 129C of the Truth in Lending Act (15 U.S.C. 1639c) is amended—

(1) in subsection (a)(5)(C), by striking ''103'' and all that follows through ''or mortgage originator'' and inserting ''103(bb)(4)''; and

(2) in subsection (b)(2)(C)(i), by striking ''103'' and all that follows through ''or mortgage originator)'' and inserting ''103(bb)(4)''.

SEC. 3. RULEMAKING.

Not later than the end of the 90-day period beginning on the date of the enactment of this Act, the Bureau of Consumer Financial Protection shall issue final regulations to carry out the amendments made by this Act, and such regulations shall be effective upon issuance.

The SPEAKER pro tempore. Pursuant to House Resolution 189, the gentleman from Michigan (Mr. HUIZENGA) and the gentlewoman from California (Ms. MAXINE WATERS) each will control 30 minutes.

The Chair recognizes the gentleman from Michigan.

GENERAL LEAVE

Mr. HUIZENGA of Michigan. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and submit extraneous materials on the bill under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Michigan?

There was no objection.

Mr. HUIZENGA of Michigan. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise today in support of my bill, H.R. 685, the Mortgage Choice Act.

As someone who has worked in the housing industry, this is a very important issue to me and, more importantly, to all of our constituents across the country.

Last year, the qualified mortgage—or QM—ability to repay rule as mandated by the Dodd-Frank Wall Street Reform Act went into effect. Nobody has a problem with that, but the QM rule is the primary means for mortgage lenders to satisfy its ''ability to repay'' requirements.

Additionally, Dodd-Frank provides that a QM, or qualified mortgage, may not have points and fees in excess of 3 percent of the total loan amount.

As it is ambiguously defined currently, ''points and fees'' include, among other charges, fees paid to affiliated, but not unaffiliated, title companies, and amounts of insurance and taxes held in escrow.

As a result of this confusing and problematic definition, many affiliated loans, particularly those made to low- and moderate-income borrowers would not qualify as QMs and would be unlikely to be made or would only be available at higher rates due to heightened liability risks. Consumers would lose the ability to take advantage of the convenience and market efficiencies and choice offered by one-stop shopping.

I, along with my good friend Representative GREGORY MEEKS from New York, reintroduced H.R. 685, a strong, bipartisan bill that would modify and clarify the way that these points and fees are calculated. This legislation is very narrowly focused to promote access to affordable mortgage credit without overturning the important consumer protections and sound underwriting required under Dodd-Frank's ''ability to repay'' provisions.

Having been a licensed Realtor and coming out of that industry, it didn't take those of us who had been in the industry long to see that there was significant problems with the structure of what had led to the housing crisis in the last number of years.

I tell the story oftentimes of the first closing that I did, where a check was slid across the desk the table to the seller and then a check was slid across the table to the buyer. The closing agent really didn't even know what to say.

It was the first time that they were starting to get into these zero down or even 120 percent loan to values, is what was happening.

□ 1615

I thought to myself, this is not going to end well, and that is the case. We need to have that tightened-up system.

But I think it is important to know that we have some issues with that Dodd-Frank provision. This is one of those.

I do also believe, Mr. Speaker, that it is important to note that when we first introduced this bill in 2012, in the last Congress, it looked substantially different. However, working with my colleagues on the other side of the aisle, I made the decision to make the changes necessary to gain their support of the legislation. As a result, it has been a truly bipartisan effort at every step of the way in the legislative process.

That is why this very legislation unanimously passed both the House Financial Services Committee and the House of Representatives last Congress. In fact, as we dealt with this bill again, the new bill, H.R. 685, it passed out of committee 43–12, after, I think, some had decided that they were going to be against it after they were for it.

It seems that the White House and others on Capitol Hill have decided that, rather than taking care of consumers, and rather than trying to make the bill work, they have decided that it is a citadel that cannot be breached, and not a jot or a tittle of Dodd-Frank can be changed. Otherwise, they label it as bailouts and helping out Wall Street and all these other things.

The real truth of the matter is, Mr. Speaker, we are trying to make sure that real Americans can obtain the American Dream and buy and own their own home.

Specifically, our bill, H.R. 685, would provide equal treatment for affiliated title fees and title companies and clarify the treatment of insurance held in escrow.

When things are held in escrow, they don't belong to the owner, they don't

belong to the bank or the title company that is holding it. All they are doing is holding them to then pay for that insurance bill that is going to be coming due. They pay for the insurance or the property taxes that may be coming up.

What happens, when someone writes that check every month, they are putting a twelfth of that total payment every month into that escrow. And it just begs to be clarified.

These commonsense changes will promote access to affordable mortgage credit for low- and moderate-income families and first-time homeowners by ensuring that safer, properly underwritten mortgages pass the QM test.

Whether or not you support Dodd-Frank overall, or specifically within this area, it is clear the law is going to require some tweaks to ensure qualified borrowers aren't locked out of homeownership and the beneficial features of a qualified mortgage.

The QM represents the safest, best underwritten mortgage availability on the market. It is the gold standard, Mr. Speaker. We should want more people getting QMs, not fewer.

Quite frankly, this is something that we should all agree on and, as I pointed out, we did last term. Our bill doesn't touch any of the CFPB's strict underwriting criteria. It doesn't in any way suspend a lender's legal requirement to determine that a borrower has the ability to repay that loan.

Mr. Speaker, this body has the opportunity to help more Americans realize a portion of that American Dream, as we talked about.

You know what the best part of it is, Mr. Speaker? We don't need to pass a grandiose law or decree. All we need to do is work in a bipartisan manner. I think the American people are begging for that, and here is an opportunity to do that. We have done it, and to reform a burdensome regulation that is negatively impacting our constituents is something that we should all strive for.

So I would like to thank my colleague, Representative MEEKS, along with many of the others on both my side of the aisle and the other side of the aisle who have worked tirelessly to help fix this flawed provision currently being implemented in Dodd-Frank.

I urge my colleagues to vote in support of H.R. 658 and help make the dreams of their constituents come true and a reality by ensuring that all consumers have greater access to mortgage credit and more choices and credit providers.

Mr. Speaker, I reserve the balance of my time.

Ms. MAXINE WATERS of California. Mr. Speaker, I yield myself as much time as I may consume.

Mr. Speaker, I rise today in opposition to H.R. 685, the so-called Mortgage Choice Act, which would roll back protections for home buyers, make mortgages more expensive, undermine Dodd-Frank, and undo the important work of the Consumer Financial Protection Bureau.

As its title indicates, the Mortgage Choice Act would affect choice, but in the wrong way. It would invite a return to a recent time when hard-working Americans were choosing whether to pay for medication or their mortgage, a time when they were faced with choosing between sleeping at a homeless shelter or spending one more night in the car.

These choices were and still are being made by many of those who suffered as a result of the financial crisis, a crisis that was caused in large part by predatory mortgages.

During this time, lenders often piled on excessive upfront fees by exploiting the opaque pricing and sales system for settlement services, like title insurance, which too often left borrowers without the information necessary to shop around or negotiate for lower prices.

They cared little about whether the borrower had the ability to repay the loan over the life of the mortgage because they raked in upfront fees at the point of origination.

Just to make it clear, anyone who has bought a home, who has got involved with negotiating for a mortgage would understand very clearly what we are talking about. We are going to focus on title fees, but there are a lot of fees up front that would-be homeowners are asked to pay for, including appraisal fees and inspection fees.

So during the subprime meltdown and the crisis that we had, we determined that there were many of the mortgage lenders, the originators, who were just piling on these fees. This is in addition to the downpayments they were making, and so they were making more money.

Because they were making more money, this is what caused many of our homeowners to lose these homes, because they were paying too much up front and they were being gouged with these predatory loans.

In response, the Dodd-Frank Act entrusted the CFPB with the responsibility of ensuring that lenders and their affiliated companies were restrained from charging excessive fees.

What are we talking about?

We are simply talking about mortgage lenders and originators who owned other companies like title companies, or who were affiliated with other companies like title companies. And why were they affiliated?

They were affiliated, or they owned these companies, so that they could make more money, because these affiliated companies would mark up the price of these fees and, basically, kick back to the originator some money.

One way the CFPB achieved this was through a standard known as a qualified mortgage, which, among other things, placed a 3 percent cap on upfront fees. What they simply said was, You can't just keep charging any old thing that you want to. It doesn't make good sense that people are ending up paying 5 percent, 6 percent and on and on in these upfront fees. So we are going to put a cap on for 3 percent of upfront fees.

These 3 percent fee caps include those paid to affiliates. Don't forget, these are these companies that are owned by the originator, or affiliated with them. This 3 percent fee cap includes, again, those paid to affiliates of the lender for services such as, again, property appraisals, settlement services, and title insurance.

It is these fees that pose the greatest risks to consumers since they invite lenders to steer borrowers directly to their affiliates without open competition and with higher prices.

So, simply, what the originators were doing was saying, okay, this is who we are going to get you to pay money to for these services that you need in order to get this loan. They didn't ask you if you knew a title company. They didn't invite the independent companies in to compete. They just simply steered the borrowers into these affiliated companies.

In the past, creditors have offered incentives like reduced office rent, bonuses, commissions, or other financial perks in exchange for business referrals.

Though Dodd-Frank banned these type of kickbacks, some creditors are circumventing them by buying or creating businesses so they can profit by referring their customers to their affiliated service providers. It is worse than referral. They just write it up, and the borrower doesn't even know that they had an opportunity to shop around.

Others, like J.P. Morgan and Wells Fargo, recently settled cases of wrongdoing within the past year for engaging in a kickback scheme with an affiliated title company.

But instead of strengthening this ban on kickbacks, today, this House considers legislation that would actually incentivize these cozy relationships which increase creditors' profits at the expense of consumers. In some cases, these referral financial incentives are as much as half of the premiums home buyers pay.

Buying a home is a complex venture. How many among us who own homes have really ever shopped around for title insurance? I imagine very few.

Consumers should not have to be worried that their service providers are colluding to scam borrowers. Instead, they should be competing to provide them the best prices.

H.R. 685 would undermine the CFPB's definition of affiliated services by removing title insurance fees charged by affiliates of the lender from the 3 percent cap. As a result, creditors will actually be encouraged to direct borrowers to expensive affiliates, codifying a system of kickbacks in our laws. This is not only detrimental to consumers but to small businesses that provide unaffiliated title insurance.

So what they are basically saying is, We don't like it that you have had reform in the law. We don't like it that

you have discovered that these kickback schemes go on. We don't like it that you now know that some of these originators, these lenders, own some of these businesses.

We want them to be able to charge as much in fees as they can get. Let them gouge, or let them simply write in companies that they know will pay them more money for getting this business.

So we have said, in the Consumer Financial Protection Bureau, that this should be limited to 3 percent. That is enough. You don't need to take more from the consumers.

Title insurance is already an uncompetitive market, and State protections are often weak and, at times, nonexistent. This measure will, ironically, ensure even fewer choices for consumers because consumers rarely know that other options exist.

As a result, they will often simply rely on what they are kind of forced to do or made to do, or the recommendations of their lender, who, under H.R. 685, can simply refer them to affiliated entities who can then charge excessive fees without regard for the 3 percent cap.

Mr. Speaker, a diverse coalition, ranging from the NAACP and the National Council of La Raza to the Center for American Progress and the Center for Responsible Lending, have all voiced their opposition to this so-called Mortgage Choice Act.

The Obama administration has pledged to veto the measure because it ''risks eroding consumer protections and returning the mortgage market to the days of careless lending.''

We need only reflect on the 2008 mortgage crisis to understand that lenders too often focused on profiting from upfront payments through points and fees, rather than taking care to originate loans whose value derives from long-term performance.

I am alarmed at how short our memories have become. It has barely been 5 years since the worst of the crisis subsided, and we are already welcoming a return to the abusive practices that contributed to the subprime meltdown.

□ 1630

This measure will drive up the cost of mortgages, limit competition, and ultimately hurt consumers, so I sincerely urge my colleagues to oppose it.

Mr. Speaker and Members, I have spent hours with consumers begging for loan modifications, trying to save their homes. They didn't know what they were signing up for when they signed on the dotted line, for many of these mortgages were simply gouging them, simply telling them that they could get refis anytime they wanted. They didn't know that when they were told: Don't worry about how much money you make, we can fix that; don't worry about whether or not we are going to be able to not only refinance, but we can give you this for interest only; and on and on and on, with all of these exotic products. And they certainly didn't know about all of the fees that they were paying up front. They didn't understand that they should have had some options. They should have had some choices, but they didn't have; they didn't have because these lenders were just putting them into paying companies that they were affiliated with, that they were going to make more money off of.

This is shameful. I don't know why we are spending our time in the Congress of the United States trying to gouge consumers and trying to put us back where we were with the subprime meltdown and the crisis that was created.

We have a lot of things we should be attending to. There are a lot of concerns that our consumers have out there. Our consumers are concerned about jobs and job creation. They are concerned about pay equity. They are concerned about homelessness. They are concerned that we have the housing, to attend to those who have jobs that cannot afford to pay the price of rental housing. They are concerned that if they want to buy a home that they will be treated fairly, that they will not be gouged, that they will not be taken advantage of.

We know that when you buy a home, you have a stack of papers this high to sign. We also know that if you are well off, you can get your lawyer, you can get your representatives to read through these papers and help you get the best mortgage. We know that Members of Congress know how to negotiate, know how to bargain, know how to get the best loans, know how to shop around; but not all of our consumers are that fortunate, not all of them are prepared, and they listen to what they are told by their lenders.

I want to tell you, the business that we are involved in here with this bill where we are trying to say forget about that 3 percent cap, let these lenders charge as much as they can get, let them gouge the consumers—this is wrong. This should not be done by Members who are sent here to represent all of our constituents, all of our consumers, and more than that, the more vulnerable of them, those who don't have high-priced lobbyists in the Halls of Congress, those who can't even get their Members of Congress to return their telephone calls if they have a complaint. We should be here dealing with the real issues of the day, not using our influence and our time to simply fatten the pockets of those who would gouge our constituents.

Mr. Speaker, I reserve the balance of my time.

Mr. HUIZENGA of Michigan. Mr. Speaker, I yield 1 minute to the gentleman from California (Mr. MCCARTHY).

Mr. MCCARTHY. I thank the gentleman for yielding.

Mr. Speaker, first off, I will not be long. I know you have a number of Members who want to speak for this bill.

Before I begin, I want to thank Financial Services Committee Chairman HENSARLING for all the good work he and his committee have been doing not only on this bill, but on numerous bills this week. This whole week, the House will be voting on bills to promote a healthier economy, preserve consumer choice, and help people become financially independent.

You know, Mr. Speaker, it is an ironic thing here in Washington when some laws that are passed hurt more than they actually help. I truly think everyone in this body wants to do what is best for the American people, but that is not how things always turn out.

There are some in this body who, whenever a problem comes around, their gut reaction is to add more regulations, costs, and red tape. For some reason, they think paperwork can solve all of our problems, and that is exactly what happened with Dodd-Frank. Washington tried to solve a problem by regulating the big guys, but all they succeeded in doing is hurting the little guys.

When you look around, who is getting hurt most by Dodd-Frank? It is credit unions and community banks. More importantly, it is lower income families who can't get the loans they need because one-size-fits-all regulations are blocking them.

We need to give people in this country and the institutions that serve them space to live and space to grow. The Mortgage Choice Act and so many of the bills that we will see on the floor this week help open up that space.

I want to thank the gentleman from Michigan, Representative HUIZENGA, for being a champion of this legislation to give the American people the room they need to achieve their dreams.

So let's get behind the American people and help them reach financial independence by supporting this bill.

Ms. MAXINE WATERS of California. Mr. Speaker, I have no further requests for time.

I reserve the balance of my time.

Mr. HUIZENGA of Michigan. Mr. Speaker, I yield 2 minutes to the gentleman from North Carolina (Mr. MCHENRY), the vice chairman of our committee.

Mr. MCHENRY. Mr. Speaker, I want to thank my colleague from Michigan (Mr. HUIZENGA) for his hard work on this piece of legislation. It is well crafted and is a very important reform that the American people need to understand and appreciate.

What the American people understand is that Washington regulations are preventing them, Americans, from realizing the dream of homeownership. These arbitrary, Washington-created barriers are keeping young people, recently married couples, and low- and middle-income Americans from accessing mortgages they need to own a home. That is wrong.

Right now, consumers are bearing the brunt of regulatory overreach

under Dodd-Frank. According to the most recent housing data, the U.S. homeownership rate is now the lowest that it has been in 20 years. Young homeowners are being hit particularly hard. For example, in my district, in Buncombe County, in Asheville, the number of young homeowners fell to a level not seen since the year 2000. That is unacceptable.

Combine these figures with recent reports indicating serious distress in the credit markets, and it becomes clear that young, lower-, and middle-income Americans are being squeezed out of the dream of homeownership.

It is important to note that this bill will not do a number of things. Nothing in this bill undoes the Dodd-Frank requirement that lenders ascertain a borrower's ability to pay, nor does the bill in any way change the strict underwriting standards that the CFPB has set for qualified mortgages. Instead, this bill simply allows more loans to fit under the current limitation on points and fees, thereby expanding access to credit at a time when credit is still very tight. It also provides clarity to the calculation of points and fees which allow more loans to meet the requirement of qualified mortgages.

These are very important reforms, very necessary reforms, and are good for American homeownership. I congratulate my colleague for crafting this fine piece of legislation.

I urge my colleagues to support the bill.

Ms. MAXINE WATERS of California. Mr. Speaker, I will continue to reserve the balance of my time.

Mr. HUIZENGA of Michigan. Mr. Speaker, I would like to inquire as to the amount of time on both sides.

The SPEAKER pro tempore. The gentleman from Michigan has 20 minutes remaining. The gentlewoman from California has 16½ minutes remaining.

Mr. HUIZENGA of Michigan. Mr. Speaker, with that, I yield 2 minutes to the gentleman from Michigan (Mr. TROTT), a new colleague of ours.

Mr. TROTT. Mr. Speaker, I want to thank the gentleman from Michigan for the opportunity to cosponsor and to speak in favor of H.R. 685.

There is no question that Dodd-Frank is making the dream of homeownership more difficult for many Americans. There are a myriad of unintended consequences that were created by this regulation, and the problems are largely the result of an overreach by the Federal Government and poorly thought-out rules, rules which, in many cases, were written by people that may or may not know the difference between mortgagee and mortgagor.

The Mortgage Choice Act addresses a problem created by the qualified mortgage rule. The qualified mortgage rule treats the cost of title insurance differently depending on whether the title insurance agency is affiliated with the lender. The distinction is nonsensical. In many States like Michigan, the title insurance cost is regulated by an insurance commissioner or through a filed rate; consequently, the cost of insurance in most States is typically the same regardless of whether the title agency is an affiliate or not.

The current definition of points and fees is not only illogical, but it also increases the cost of mortgage credit by making lending less efficient and less profitable. It also reduces the mortgage options that are available to consumers; and it generally makes credit less available, which, in turn, stifles the ability of hard-working Americans to buy a home.

The one thing that the current definition of points and fees does do, however, is it gives the Consumer Financial Protection Bureau a reason to hire more staff to run around the country and audit and impose sanctions on lenders, sanctions which ultimately hurt consumers and the lending industry.

I ask my colleagues to support the Mortgage Choice Act, as it truly will afford consumers more choices as they pursue their dream of homeownership.

Ms. MAXINE WATERS of California. Mr. Speaker, I will continue to reserve the balance of my time.

Mr. HUIZENGA of Michigan. Mr. Speaker, I yield such time as he may consume to the gentleman from Texas (Mr. HENSARLING), the chairman of our committee.

Mr. HENSARLING. Mr. Speaker, I thank the gentleman from Michigan for his leadership on our committee and for his leadership in bringing this bill through our committee on a strong bipartisan vote.

I have got to tell you, Mr. Speaker, it is with great pride that the House Financial Services Committee just a couple of weeks ago voted out 11 different bills to help American families achieve that coveted goal of financial independence, and part and parcel of that quest, that dream, is the dream of homeownership.

Regrettably, there are some people within this body who believe in bipartisanship more in theory than they do in practice. I regret those who supported a bill before they were against it, but that is where we are here today, Mr. Speaker.

What we are really about here is trying to ensure that low- and moderate-income people do not have their Federal Government protect them out of their homes, and what we have seen is bad and dumb regulation out of Washington do just that.

The goal of consumer protection ought to be to help empower consumers to buy homes they can afford to keep, that we have competitive, transparent, innovative markets that are vigorously policed for forced and fraud and deceptive advertising. That is the vision we have on this side of the aisle, and, frankly, it is at least a vision that some Members on that side of the aisle have as well.

So, Mr. Speaker, this is an incredibly modest—it is still important, but an incredibly modest bill. By definition, if it is bipartisan, it is going to be modest.

I am somewhat shocked that under our rules and procedures that this wouldn't be on the suspension calendar. And in fact, in the last Congress, there wasn't one single vote cast to object to this bill from the gentleman from Michigan (Mr. HUIZENGA), the chairman of our Monetary Policy and Trade Subcommittee, a real leader on our committee on housing opportunity for low-and moderate-income Americans—not a single dissenting vote. But I guess that was before, again, the left hand knew what the far left hand was doing. And now, all of a sudden, we have entered yet another fact-free zone and we are having all this incredible verbiage about Wall Street, when all this bill is doing is leveling the playing field between those firms that would be affiliated and those that would not so that consumers can have a few more choices and benefit from lower cost as they try to get their American Dream.

If we followed the logic of the far left, McDonald's could serve you a burger, but they could no longer serve you fries. You would have to go across the street to Burger King for your fries there. I guess National Tire and Battery would have to be ''National Tire.'' They couldn't sell you a battery anymore. Consumers would be protected and not have their choices recognized. I guess the phone company could no longer offer you a discount on Internet and cable and phone put together because, my lord, those are affiliations, Mr. Speaker; and apparently the far left wants to ensure that American consumers are stripped of their economic liberty to make choices for themselves, to be able to get discounts when products are put together. I don't understand it.

□ 1645

We are trying to ensure that low- and moderate-income Americans have convenience, that they have choice, and that they have lower prices. The Truth in Lending Act will apply and should apply. We have to protect consumers against force, fraud, and deception, but we have got to quit protecting consumers right out of their homes.

So again, I want to thank the gentleman from Michigan (Mr. HUIZENGA) for doing everything he can to help this segment of our American population. So often we hear the left and far left talk about affordable housing. Once again, it is something they recognize in theory; it is just not anything they want to support in practice.

This is an affordable housing bill. This is an affordable housing bill. Consumers will have choice under this bill, thus, the name. So we know that talk is cheap, but, unfortunately, votes tend to be expensive. This started out as such a bipartisan piece of legislation, but then somebody said: Oh, my Lord, this is a clarification or modification

of Dodd-Frank, and Dodd-Frank is something that came down from Mount Sinai. It was chiseled into stone tablets.

Former Chairman Frank, who chaired our committee, doesn't seem to believe that. He came before our committee and testified at least a half a dozen different ideas he had for amending his own signature legislation. Yet there are those on the far left who would hurt the most vulnerable in our society, who would deny them fundamental economic liberties to choose the mortgages they want to allow them their American Dream of homeownership. That is not right. That is not fair. That is not economic justice.

That is why, Mr. Speaker, it is so critical—so critical today—that we support H.R. 685. It was designed to be a bipartisan bill. It should be a bipartisan bill, and I urge every single Member to adopt it.

I thank the gentleman from Michigan for his leadership.

Ms. MAXINE WATERS of California. Mr. Speaker, with all due respect to my chairman, Mr. HENSARLING, this debate is not about McDonald's, it is not about Burger King, and it is not about the National Tire and Battery Company. This is about our constituents who want to be homeowners, who are gouged, who are misled, and who are steered into companies that are going to provide kickbacks for their loan originators.

We need to get rid of some of these myths. The myth that we have heard today is we need H.R. 685 to ensure access to credit for low-income households. Well, let's talk about the facts.

The cost of title insurance is opaque. Borrowers are responsible for paying for title insurance, but title insurance pricing is basically negotiated between the lender and the title insurance company. The pricing and sales system is completely nontransparent, making it impossible for borrowers to shop for better prices on title insurance. In addition, when borrowers spend money on inflated title insurance premiums, it makes homeownership less sustainable. High title insurance prices mean borrowers have less money to put toward a down payment or to put toward improvements to their home.

Even The Wall Street Journal agrees. Here is a quote from an article from March 28, 2014: ''Title insurance can cost hundreds of dollars for modest houses and thousands for multimillion-dollar properties. Yet many home buyers don't focus on the product, or the price, until they sit down at the closing.''

The article went on to describe that ''upstart insurers and agencies are challenging the status quo.'' Two insurers are ''marketing directly to consumers on the Internet, offering online quotes to home buyers who plug in basic information about the property, such as location, purchase price and loan amount. And they are offering savings of up to 35 percent off what established firms charge.''

But these upstart companies have had a hard time in securing market share because they don't have the profits to afford to offer kickback-like arrangements.

The CFPB has taken reasonable steps on the affiliated title insurance issue, carefully considering the industry comments in their proposed rule and deciding that the harm to consumers was too great to exclude affiliated title. The inclusion of title insurance, qualified mortgage points, and fee caps serves to limit title insurance pricing from even greater excesses.

As Professor Adam Levitin of Georgetown University, a Democratic witness at the hearing on H.R. 685, concluded: ''To the extent that we are concerned about ensuring greater availability of credit to consumers, exempting title insurance from the HOEPA and QM point and fee caps is a terrible idea as it virtually guarantees that consumers will be gouged with increased title insurance costs which make homeownership more expensive.''

Make no mistake; Wall Street always argues that consumer protection will hurt access to credit when they want to stop those efforts dead in their tracks. In fact, we heard these same arguments in the early 2000s as the industry lobbied against consumer protection. In 2007, Representatives Brad Miller and Mel Watt introduced, or reintroduced from 2004, a bill supported by consumer groups to curb predatory lending practices which also would have held financial companies that securitize mortgages liable for certain violations. That bill eventually was included in Dodd-Frank as title XIV of the bill. But remember that Bear Stearns spent $500,000 lobbying against Miller's bill and another piece of proposed mortgage legislation right up until the investment bank cratered in March of 2008.

Simply, in wrapping up this debate, it is clear that there should be a cap on fees. It is clear that when consumers try and sit down at a closing and try to do the best job that they can to protect their dollars so that they can have money left to fix up the house that they are trying to buy or they can have enough money to ensure that they are able to make the mortgages, they don't want to be steered in ways that some of these loan originators have done and continue to do. They don't want to be steered to affiliated businesses who will simply kick back some of those profits to the lender who sent them to them in the first place.

So, Mr. Speaker, I would ask my colleagues on the opposite side of the aisle to just consider what you are spending your time on. Consider whom you are advocating for. Consider that you are advocating for people who are making lots of money. They don't really need your advocacy. They do very well because they have got high-paid lobbyists walking the halls of Washington, D.C., following us around from our offices to the toilets. Consider that if this time were better spent really supporting the reforms in Dodd-Frank and supporting the Consumer Financial Protection Bureau, we would be doing a better job for our constituents than coming in here trying to protect the biggest and the richest firms who are doing very well out there.

Don't forget, prior to Dodd-Frank, there was no real protection for consumers. That is why we have the Consumer Financial Protection Bureau. They are doing a great job; and they are providing us with the research, they are providing us with the investigations, and they are providing us with the information that we should be using to protect consumers rather than coming on this floor and in our committees trying to denounce them, trying to make sure that they are not able to do business, trying to defund them, trying to discredit them, and trying to do everything that they can to keep them from being effective. The Consumer Financial Protection Bureau is just about that: protecting our consumers in ways that they were not protected before we had the great subprime meltdown and the great crisis that was created in this country.

We should all be trying to do our very best not to return to 2008, not to return to a time where we were destroying communities, where boarded-up homes for blocks and blocks and blocks in communities were driving down the value of other homes in those communities. We should be trying to do everything that we can to make sure that we care about homeownership.

I hear from the other side of the aisle that somehow we don't care about people owning homes. But what I really hear when I listen to that is that they don't care what price they have to pay in order to get in a home; they don't care if they are gouged with high fees; they don't care if they are extended credit that they can't afford; they don't care that they are going to lose these homes; and finally, they don't really care whether or not they are going to get modifications so that they can stay in the homes.

As a matter of fact, many of our consumers who have tried their very best to save their homes have been turned down by the very financial institutions that put them in the position that they happen to be in. Many of those financial institutions we bailed out, and we have gotten nothing in return for much of those bailouts that we have done.

So we have an opportunity to respect not only our constituents and our consumers, but to respect the fact that we have finally evolved to the point where we have reforms.

I know and I hear from time to time that somehow we on this side of the aisle believe that the Dodd-Frank reforms are cast in concrete, that there can be no modifications, no changes. Well, you heard the chairman say that we passed out 11 bills. We passed out, in a bipartisan way, bills that some of

us kind of held our nose and passed out because we wanted to show that maybe these particular bills were not that harmful and maybe weren't harmful and that we could work in a bipartisan way even though some of them questioned some of the work that had been done in Dodd-Frank.

I have said and many other members of the committee on my side of the aisle have said that we are willing to make technical corrections; we are willing to make some modifications that make good sense, but we are not willing to destroy the reform that we did, that we worked so hard for. Dodd-Frank is extremely important, and we should be about this business of implementing these reforms so that we can protect our consumers.

I am taken aback and I am surprised that many of our Members who are here advocating for the rich lenders, for the people who caused the problem in the first place, can go back home and look their consumers in the eye and tell them they are really working for them, they are really working to make sure that they can own a home. They don't really know, and I don't think that many of those are going back and saying: Well, let me tell you what I did today. I made sure that there was no cap on fees and that the lenders can charge whatever they want working with the affiliated companies; and this cap at 3 percent that they have come up with in Dodd-Frank reforms doesn't make good sense, and they should be able to charge you whatever they want to charge you.

I don't think that we have Members who are here on this floor today that are advocating that we get rid of these caps and that we allow these lenders to have these relationships with the affiliated companies where they keep steering the business into them, steering the business into them.

How many of those who are advocating have asked the lenders: How much money are you making back on these loans, on these fees that you are allowing the affiliateds to charge them? Do you really get a share in those profits? Do you really get a kickback? If so, let's have some transparency. Let's shine some light on how much money you are making. I bet you one thing. I bet you none of them will tell you: We are not making any money. We are just doing this because, well, we are just doing it because, oh, we think that this is a better way to do it.

So I am asking my colleagues in this House to reject this legislation. We have been on this floor today on two important bills, one on manufactured housing where, again, we have advocates on the opposite side of the aisle who would like to see the manufactured housing industry make more money on the poorest of people, on the most vulnerable in our society. They would like to charge interest rates above prime interest, 10 percent above prime interest. As we have stated, when the interest rates begin to rise, this means that it can go beyond 14 percent to 15, 16, 17, and 18 percent.

□ 1700

We don't know how high it could go; yet the time that we have spent advocating for the richest of the rich who are in this business to be able to gouge these poor people and the time that we are spending again on another bill that would allow the richest of the rich to gouge poor homeowners who don't know and don't understand all these fees that they are being charged and the fact that we have a cap that they want to remove, why are they spending their time representing those who really don't need their representation?

I would ask my colleagues to reject both of these bills. I would ask my colleagues to stand up for the least of these. I would ask my colleagues to make sure they remember the lessons of 2008, and they are reminded of the fact that not only are families destroyed, but whole communities have been destroyed by what took place with this subprime meltdown and this crisis that took us into a recession, almost a depression.

We can't forget these lessons; we can't afford to forget these lessons. We are Representatives of the people. Representatives of the people don't act that way. Representatives of the people don't forget. They do everything in their power to make sure that they provide a safety net, that they provide some protection, that they look out for them, that they are their voice inside this place where we are making public policy, that the public policy includes them, that the public policy does not forget them, that the public policy is not the public policy that is designed and supported by the richest 1 percent in this country, but really, the public policy comes out of the voices of all of those who have been sent here from all over this Nation from some of the richest communities to some of the poorest communities.

We talk about jobs and the need for the creation of jobs, but I don't hear the opposite side of the aisle talking about that. I don't hear them talking about how we can create really more housing opportunities for those who want to buy and for those who have to rent.

I don't hear any talk about what we can do to provide economic development in this country, how we can repair the infrastructure, make sure that our bridges are working, that our water systems are working, that our roads are in good shape. I don't hear that. I hear time being spent on how we can help the richest of those who don't need our voice, who don't need our help.

It is time to stop this madness. It is time to call it what it is. It is time to ask: Why is it that the richest of the folks in the businesses in this country who have so many paid lobbyists, who are up and down these halls every day, get so much representation? Why is it they have so much influence? Why is it they have been able to direct the public policy in ways that the average citizen cannot do?

I want to tell you—you talk about the middle class. Yes, there is an erosion of the middle class because of the way that the middle class is not really represented. We allude to the representation, but it is really not here.

I ask my colleagues to reject this legislation, to not allow anybody on this floor to tell them that this is in the best interest of consumers because it is not.

Mr. Speaker, I yield back the balance of my time.

Mr. HUIZENGA of Michigan. Mr. Speaker, I yield myself such time as I may consume.

I appreciate the opportunity to come and to try to clarify some of the assertions and confused claims that have been thrown out here.

My family has been involved in construction since the 1930s—the 1930s. I will never forget the day—it was a Thursday—when I pulled up right down the street from my home and I saw my cousin's business that they now own that my dad and uncle and grandfather had started.

It is a ready-mix concrete company. Literally, all the guys' trucks were there, all their pickups. It is a small company. It is about 12 or 15 people that work there. Every single one of those cement trucks were parked in the yard, the exact place that they should not be.

I found out later that we had trucks on the way to construction sites that were turned around and came back. That is seared into my memory. I have no interest in going back to where we had been. In fact, I was one of those warning about the practices before serving in this body.

Frankly, if those who were serving in this body who wrote Dodd-Frank had actually talked to a few of the people involved in the industry, they might have understood what the interaction is between the buyer, the seller, the construction agent, the closer, the people that are providing title insurance.

The simple fact is that there is not an understanding of how this system works. We may have a common goal of serving consumers. We have very different visions about how that needs to be done.

As I said, there has been lots of assertions and sort of confused claims thrown around. Many of them, frankly, are problems completely unrelated to what this is, and I am not sure how the activity of the Transportation Committee relates exactly to what our work is on the Financial Services Committee, but I think it is an old adage: when you are losing, you keep talking. That is what has been happening here on the floor for those that have been watching.

The assertion that weak and nonexistent State regulations are out

there is just amazing to me, especially in California. I am betting the insurance commissioner in California would be surprised at this assertion, since California is one of the 47 States that regulates title insurance. RESPA laws, disclosure requirements written into law, transparency is a key element in this.

I was a licensed Realtor when agency disclosure first came in. This was in the midnineties. You had to declare whether you were a buyer's agent, a seller's agent, a transactional coordinator. There have been real changes, positive changes, that have happened for the consumer in that industry over the last 20 to 25 years.

The irony in this particular situation is that affiliated companies, those companies that may have been started by the same people—that is the definition, by the way. I might be a small-business owner who owns a real estate company, and I start another company dealing with title insurance. That now, because that is on my personal tax form, is an affiliated company. I can't do or charge what an unaffiliated company could do.

Now, I might buy the argument that was made earlier that these companies can just charge whatever they want to charge, but I could only buy that if my friends on the other side of the aisle would be willing to apply equally the law. The law does not apply equally here. It does not do what they claim that they are trying to do.

The other element that has been talked about a little bit—this is so ridiculous; it strikes me. It is like saying I can't shop at Walmart or at a Meijer store in our area or other places because they sell fresh produce and electronics and hardware. I need to go to a hardware store to go pick up my nails; I need to go to the corner grocer to go pick up my lettuce, and, by the way, if I want to get a flat screen TV, I have got to go somewhere else.

This is about consumers having choices and abilities to utilize a streamline. Those costs need to be disclosed, first of all. Those costs oftentimes are regulated, the vast majority of the times are regulated by the States; yet it just is a clunky system that does not work in the design of Dodd-Frank.

The assertion that any change of Dodd-Frank somehow benefits or is anticonsumer or benefits somebody on Wall Street, go and talk to those owners of those small companies in all of our States, go and talk to them about what their Wall Street affiliation is.

This bill is, frankly, widely viewed as unrealistic and unworkable. It is time that we face that reality and we change some of the elements of this. This is a modest, modest change.

In fact, it is so modest, frankly, Mr. Speaker, that our previous speaker had supported the bill, had supported it when it was in committee, had supported it when it was on the House floor, certainly did not object to it, and I guess maybe I could say supported it because, on August 1 of 2014, she, along with 12 of her colleagues—including one who has gone on to the Senate—12 Democrats signed a letter to Senator HARRY REID requesting him to take my bill up.

Mr. Speaker, I insert for the RECORD the letter.

CONGRESS OF THE UNITED STATES,
HOUSE OF REPRESENTATIVES,
Washington, DC, August 1, 2014.

DEAR MAJORITY LEADER REID, CHAIRMAN JOHNSON AND MEMBERS OF THE SENATE COMMITTEE ON BANKING, HOUSING, AND URBAN AFFAIRS: On June 9, the House passed the Mortgage Choice Act (H.R. 3211), on the suspension calendar without objection. Senators Manchin and Johanns introduced a companion bill, S. 1577 in October, but it has not yet been considered. We support the Mortgage Choice Act because of our concern about lower-income consumers' access to credit and their ability to select the mortgage and title insurance providers of their choice.

Passage of H.R. 3211 represents the fourth time that the House has approved virtually identical legislation without objection. In 2007 and 2009, a Democratic House majority passed essentially the same provision in the Miller-Watt-Frank anti-predatory lending legislation, and then a third time as part of the House's version of the Dodd-Frank Wall Street Reform and Consumer Protection Act in 2010.

The Mortgage Choice Act simply excludes the cost of title insurance from the definition of points and fees under the Truth in Lending Act regardless of whether a title insurance agent is affiliated with a mortgage lender or not. It also clarifies that funds held in escrow for the payment of property insurance do not count as ''points and fees.'' The legislation is needed to ensure that smaller loans to creditworthy low and moderate-income consumers can select the mortgage lender and title insurance provider of their choice and obtain a ''qualified mortgage,'' the gold standard for all mortgages.

The bill authorizes the Consumer Financial Protection Bureau to implement rules governing the exclusion of reasonable title insurance charges from ''points and fees.'' It preserves the Bureau's strong enforcement authority to require transparency and disclosure of affiliations and charges under the Real Estate Settlement Procedures Act (RESPA). In fact, the CFPB has been vigorous in its pursuit of RESPA violations, ranging from minor disclosure errors to kick-backs for referrals by an unaffiliated title company.

We urge you and the entire Senate to quickly adopt the Mortgage Choice Act to improve access to credit, enhance competition among title insurance providers, and reinforce the CFPB's authority to define what title insurance costs qualify as excludable ''points and fees.''

Sincerely,

David Scott, Maxine Waters, Emanuel Cleaver, Henry Cuellar, Daniel T. Kildee, Jim McDermott, Patrick Murphy, Gerald E. Connolly, Michael F. Doyle, Betty McCollum, Gregory W. Meeks, Gary C. Peters, Members of Congress.

Mr. HUIZENGA of Michigan. My bill and Congressman Meek's bill was a good bill last Congress, and it is a good bill this Congress because it has not changed at all. It has not changed at all.

To quote it, she urged the Senate to ''quickly adopt the Mortgage Choice Act,'' a bill that would ''improve access to credit'' and ''enhance competition among title insurance providers.''

Frankly, Mr. Speaker, my colleague was right last time, and she should be right in this Congress. Unfortunately, we are seeing that—I am afraid politics may have leaked in. The administration has issued a veto threat, and I think we may have seen why some of this change of heart has happened.

I am, frankly, disheartened for the American people that Presidential politics have already leaked into what this body should be doing, which is representing people, which is making sure that they are getting the best end of the stick, not the sharp end of the stick.

Frankly, Dodd-Frank has delivered the sharp end of the stick, intentionally or unintentionally, way too many times. It is our job to go and fix it and to make sure that the consumers, that our constituents, are getting the best service that they possibly can.

With that, Mr. Speaker, I would like to urge all of my colleagues to join so many of us in a bipartisan fashion who support this bill, who believe that this is the right time and the right bill to rectify this problem, and to get on with it. I request all of my colleagues to support H.R. 685.

I yield back the balance of my time.

The SPEAKER pro tempore. All time for debate has expired.

Pursuant to House Resolution 189, the previous question is ordered on the bill.

The question is on the engrossment and third reading of the bill.

The bill was ordered to be engrossed and read a third time, and was read the third time.

The SPEAKER pro tempore. The question is on the passage of the bill.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Ms. MAXINE WATERS of California. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, further proceedings on this question will be postponed.

PRESERVING ACCESS TO MANUFACTURED HOUSING ACT OF 2015

The SPEAKER pro tempore. Pursuant to clause 1(c) of rule XIX, further consideration of the bill (H.R. 650) to amend the Truth in Lending Act to modify the definitions of a mortgage originator and a high-cost mortgage, will now resume.

The Clerk read the title of the bill.

MOTION TO RECOMMIT

Ms. MAXINE WATERS of California. Mr. Speaker, I have a motion to recommit at the desk.

The SPEAKER pro tempore. Is the gentlewoman opposed to the bill?

Ms. MAXINE WATERS of California. Yes, I am opposed to the bill in its current form.

The SPEAKER pro tempore. The Clerk will report the motion to recommit.

The Clerk read as follows:

Ms. Maxine Waters of California moves to recommit the bill H.R. 650 to the Committee on Financial Services with instructions to report the same back to the House forthwith, with the following amendment:

Add at the end the following:

SEC. 4. PROTECTING CONSUMERS FROM EXCESSIVE HOUSING COSTS AND PREDATORY LENDERS.

No person or lender that has been found to have engaged in unfair, deceptive, predatory, or abusive lending practices, or convicted of mortgage fraud under Federal or relevant State law may make use of the amendments made by this Act.

Mr. HENSARLING (during the reading). Mr. Speaker, I reserve a point of order.

The SPEAKER pro tempore. A point of order is reserved.

The Clerk will read.

The Clerk continued to read.

The SPEAKER pro tempore. Pursuant to the rule, the gentlewoman from California is recognized for 5 minutes in support of her motion.

Ms. MAXINE WATERS of California. Mr. Speaker, this is the final amendment to the bill which will not kill the bill or send it back to committee. If adopted, the bill will immediately proceed to final passage as amended.

I know Democrats and Republicans don't agree on much, but there is one thing we can be united in saying. It is that we should not reward criminal behavior.

□ 1715

We cannot let people who are out there making obscene profits by ripping off low-income Americans use that money to buy influence that rolls back consumer protection laws.

That is why I am introducing this amendment that bans bad actors from receiving any benefit from these new provisions. If the House accepts this amendment, companies that break the law will not be rewarded by being handed a weaker set of standards.

These weaker standards do away with a number of protections current law affords to high-cost loans. They include stiffer penalties for bad actor lenders and additional disclosures for investors and consumers who purchase high-cost mortgages, as well as mandatory counseling so borrowers know what they are getting into and even the ability of borrowers to have their loans rescinded if lenders don't follow the law.

We know it is needed because we know there is fraud out there. I have submitted for the RECORD an investigation by The Seattle Times and the Center for Public Integrity, which, while shocking, is not in the least bit surprising to those of us who have been paying close attention to the predatory practices that often plague low- and middle-income home buyers. The article details a wide array of unfair, deceptive, predatory, and abusive lending practices, such as housing manufacturers steering low-income borrowers into expensive, high-interest financing arrangements with companies that they also own.

If this amendment were to pass today, any company that engaged in this kind of practice or any company that was convicted of mortgage fraud under Federal or State law would be prohibited from taking advantage of these loosened standards.

Some may argue that, like current law, this amendment will hurt the industry. I am not concerned. The Manufactured Housing Association for Regulatory Reform found that 2014 marked the fifth consecutive year of annual industry production increases. Meanwhile, mobile home manufacturing giant Clayton Homes, owned by Berkshire Hathaway, profited to the tune of $558 million in 2014—more than double its earnings from just 2 years earlier.

This amendment is for veterans like Dorothy Mansfield, who should be honored for her sacrifice to this country. Instead, she was targeted just 18 months after being steered into a predatory market she couldn't afford. Mansfield was facing foreclosure. It is for Active-Duty servicemembers whose homes were illegally foreclosed upon while they were battling overseas, or for their families who were overcharged as they remained at home. It is for low-income borrowers who, like all of us, are at a disadvantage when they negotiate their first home loans with companies that have probably negotiated hundreds just that week.

For many, the American Dream of homeownership has turned into a nightmare as they determine how to put food on the table and gas in the car while dealing with the loans that they have been steered into but cannot afford.

So, if we are going to remove these basic protections for veterans and servicemembers, for low-income borrowers, and for many others, let's at least do everything we can to protect them from the predators and the fraudsters we have learned about. I urge my colleagues to support this amendment.

I yield back the balance of my time.

Mr. HENSARLING. Mr. Speaker, I withdraw my reservation of a point of order.

The SPEAKER pro tempore. The reservation of the point of order is withdrawn.

Mr. HENSARLING. Mr. Speaker, I claim the time in opposition to the gentlewoman's motion.

The SPEAKER pro tempore. The gentleman from Texas is recognized for 5 minutes.

Mr. HENSARLING. Mr. Speaker, I am just now seeing this motion to recommit, but there are a number of areas that, frankly, make very little sense to me.

The motion to recommit uses the phrase ''has been found.'' I don't know what that means. The CFPB can enter into consent orders. Does that mean this has been ''found''? Often, consent orders are entered into without any admission of liability or culpability.

Next, we have the term ''predatory.'' We won't find this term otherwise in title X of Dodd-Frank. What does it mean? We don't know what it means.

How about ''abusive''? We know the CFPB is at least charged with coming up with a definition. They have not come up with a definition yet.

We have been told that some practices that might be totally legal for the market for some consumers might be abusive to others. What does that mean?

Again, Mr. Speaker, what we are trying to do here is help low- and moderate-income Americans have the housing opportunities that the rest of us have.

What we really ought to be on guard against are predatory voting practices that deny people their ability to live in a mobile home. What we really ought to be targeting is abusive voting practices that deny people lower closing costs in order to deal with points and fees from affiliated firms. That is what we really ought to be on guard for, Mr. Speaker.

I would urge all Members to reject this motion to recommit. Regrettably, it is just one more method by which the left will say that they are trying to help the poor, beleaguered consumers, except, again, they are going to protect them right out of their homes. They are going to assault their fundamental economic liberties. They are going to take away their choices.

True consumer protection comes from having competitive, innovative, transparent markets that are accessible to all Americans—equal opportunity to access these markets and then vigorously police them for force and fraud and deception. Do not trample on the basic freedom of the American consumers to choose the mortgages that are right for their families. That is wrong, Mr. Speaker. It is unfair. It is economic injustice. It is predatory legislating. It is abusive legislating. It has to stop here. Let's reject the motion to recommit.

I yield back the balance of my time.

The SPEAKER pro tempore. Without objection, the previous question is ordered on the motion to recommit.

There was no objection.

The SPEAKER pro tempore. The question is on the motion to recommit.

The question was taken; and the Speaker pro tempore announced that the noes appeared to have it.

Ms. MAXINE WATERS of California. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 and clause 9 of rule XX, this 15-minute vote on the motion to recommit will be followed by 5-minute votes on passage of H.R. 650, if ordered; passage of H.R. 685, and the motion to instruct conferees on Senate Concurrent Resolution 11.

The vote was taken by electronic device, and there were—yeas 184, nays 239, not voting 8, as follows:

[Roll No. 150]

YEAS—184

Adams
Aguilar
Ashford
Beatty
Becerra
Bera
Beyer
Bishop (GA)
Blumenauer
Bonamici
Boyle, Brendan F.
Brady (PA)
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cooper
Costa
Courtney
Crowley
Cuellar
Cummings
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
DelBene
DeSaulnier
Deutch
Dingell
Doggett
Doyle, Michael F.
Duckworth
Edwards
Engel
Eshoo
Esty
Farr
Fattah
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Graham
Grayson
Green, Al
Green, Gene
Grijalva
Gutiérrez
Hahn
Hastings
Heck (WA)
Higgins
Himes
Hinojosa
Honda
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson, E. B.
Jones
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kirkpatrick
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lee
Levin
Lewis
Lieu, Ted
Lipinski
Loebsack
Lofgren
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maloney, Carolyn
Maloney, Sean
Matsui
McCollum
McDermott
McGovern
McNerney
Meeks
Meng
Moore
Moulton
Murphy (FL)
Nadler
Napolitano
Neal
Nolan
Norcross
O'Rourke
Pallone
Pascrell
Payne
Pelosi
Perlmutter
Peters
Peterson
Pingree
Pocan
Polis
Price (NC)
Quigley
Rangel
Rice (NY)
Richmond
Roybal-Allard
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Schrader
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Sherman
Sinema
Sires
Slaughter
Speier
Swalwell (CA)
Takai
Takano
Thompson (CA)
Thompson (MS)
Titus
Tonko
Torres
Tsongas
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Welch
Wilson (FL)
Yarmuth

NAYS—239

Abraham
Aderholt
Allen
Amash
Amodei
Babin
Barletta
Barr
Barton
Benishek
Bilirakis
Bishop (MI)
Bishop (UT)
Black
Blackburn
Blum
Bost
Boustany
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Buchanan
Buck
Bucshon
Burgess
Byrne
Calvert
Carter (GA)
Carter (TX)
Chabot
Chaffetz
Clawson (FL)
Coffman
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Cook
Costello (PA)
Cramer
Crawford
Crenshaw
Culberson
Curbelo (FL)
Davis, Rodney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Dold
Duffy
Duncan (TN)
Ellmers (NC)
Emmer (MN)
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Garrett
Gibbs
Gibson
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Griffith
Grothman
Guinta
Guthrie
Hanna
Hardy
Harper
Harris
Hartzler
Heck (NV)
Hensarling
Herrera Beutler
Hice, Jody B.
Hill
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Issa
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, Sam
Jolly
Jordan
Katko
Kelly (PA)
King (IA)
King (NY)
Kinzinger (IL)
Kline
Knight
Labrador
LaMalfa
Lamborn
Lance
Latta
LoBiondo
Long
Loudermilk
Love
Lucas
Luetkemeyer
Lummis
MacArthur
Marchant
Marino
Massie
McCarthy
McCaul
McClintock
McHenry
McKinley
McMorris Rodgers
McSally
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Newhouse
Noem
Nugent
Nunes
Olson
Palazzo
Palmer
Paulsen
Pearce
Perry
Pittenger
Pitts
Poe (TX)
Poliquin
Pompeo
Posey
Price, Tom
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Ros-Lehtinen
Roskam
Ross
Rothfus
Rouzer
Royce
Russell
Ryan (WI)
Salmon
Sanford
Scalise
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Stefanik
Stewart
Stivers
Stutzman
Thompson (PA)
Thornberry
Tiberi
Tipton
Trott
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin
Zinke

NOT VOTING—8

Bass
Duncan (SC)
Ellison
Johnson (GA)
Joyce
Ruiz
Smith (WA)
Weber (TX)

□ 1748

Mr. CONAWAY, Mrs. MIMI WALTERS of California, Messrs. SHUSTER, WITTMAN, REICHERT, LUETKEMEYER, MEEHAN, and FORTENBERRY, and Mrs. BLACK changed their vote from ''yea'' to ''nay.''

Messrs. SIRES, CLYBURN, ASHFORD, SWALWELL of California, and RUSH changed their vote from ''nay'' to ''yea.''

So the motion to recommit was rejected.

The result of the vote was announced as above recorded.

The SPEAKER pro tempore. The question is on the passage of the bill.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Mr. FINCHER. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. This will be a 5-minute vote.

The vote was taken by electronic device, and there were—yeas 263, nays 162, not voting 6, as follows:

[Roll No. 151]

YEAS—263

Abraham
Aderholt
Allen
Amash
Amodei
Ashford
Babin
Barletta
Barr
Barton
Benishek
Bilirakis
Bishop (GA)
Bishop (MI)
Bishop (UT)
Black
Blackburn
Blum
Bost
Boustany
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Buchanan
Buck
Bucshon
Burgess
Byrne
Calvert
Carney
Carter (GA)
Carter (TX)
Chabot
Chaffetz
Clawson (FL)
Clay
Coffman
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Cook
Cooper
Costa
Costello (PA)
Cramer
Crawford
Crenshaw
Cuellar
Culberson
Curbelo (FL)
Davis, Rodney
DeFazio
Delaney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Dold
Duffy
Duncan (TN)
Ellmers (NC)
Emmer (MN)
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Garrett
Gibbs
Gibson
Gohmert
Goodlatte
Gosar
Gowdy
Graham
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Griffith
Grothman
Guinta
Guthrie
Hanna
Hardy
Harper
Harris
Hartzler
Heck (NV)
Hensarling
Herrera Beutler
Hice, Jody B.
Hill
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Issa
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, Sam
Jolly
Jordan
Joyce
Katko
Kelly (PA)
Kind
King (IA)
King (NY)
Kinzinger (IL)
Kirkpatrick
Kline
Knight
Labrador
LaMalfa
Lamborn
Lance
Latta
LoBiondo
Long
Loudermilk
Love
Lucas
Luetkemeyer
Lummis
MacArthur
Marchant
Marino
Massie
McCarthy
McCaul
McClintock
McHenry
McKinley
McMorris Rodgers
McSally
Meadows
Meehan
Meeks
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Moulton
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Newhouse
Noem
Nugent
Nunes
Olson
Palazzo
Palmer
Paulsen
Pearce
Perry
Peters
Peterson
Pittenger
Pitts
Poe (TX)
Poliquin
Polis
Pompeo
Posey
Price, Tom
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (NY)
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Ros-Lehtinen
Roskam
Ross
Rothfus
Rouzer
Royce
Russell
Ryan (WI)
Salmon
Sanford
Scalise
Schweikert
Scott, Austin
Scott, David
Sensenbrenner
Sessions
Sewell (AL)
Sherman
Shimkus
Shuster
Simpson
Sinema
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Stefanik
Stewart
Stivers
Stutzman
Thompson (PA)
Thornberry
Tiberi
Tipton
Trott
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin
Zinke

NAYS—162

Adams
Aguilar
Bass
Beatty
Becerra
Bera
Beyer
Blumenauer
Bonamici
Boyle, Brendan F.
Brady (PA)
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capps
Capuano

Cárdenas
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Cleaver
Clyburn
Cohen
Connolly
Conyers
Courtney
Crowley
Cummings
Davis (CA)
Davis, Danny
DeGette
DeLauro
DelBene
DeSaulnier
Deutch
Dingell
Doggett
Doyle, Michael F.
Duckworth
Edwards
Engel
Eshoo
Esty
Farr
Fattah
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Grayson
Green, Al
Green, Gene
Grijalva
Gutiérrez
Hahn
Hastings
Heck (WA)
Higgins
Himes
Hinojosa
Honda
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson, E. B.
Jones
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lee
Levin
Lewis
Lieu, Ted
Lipinski
Loebsack
Lofgren
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maloney, Carolyn
Maloney, Sean
Matsui
McCollum
McDermott
McGovern
McNerney
Meng
Moore
Murphy (FL)
Nadler
Napolitano
Neal
Nolan
Norcross
O'Rourke
Pallone
Pascrell
Payne
Pelosi
Perlmutter
Pingree
Pocan
Price (NC)
Quigley
Rangel
Richmond
Roybal-Allard
Ruppersberger
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Schrader
Scott (VA)
Serrano
Sires
Slaughter
Speier
Swalwell (CA)
Takai
Takano
Thompson (CA)
Thompson (MS)
Titus
Tonko
Torres
Tsongas
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Welch
Wilson (FL)
Yarmuth

NOT VOTING—6

Duncan (SC)
Ellison
Johnson (GA)
Ruiz
Rush
Smith (WA)

□ 1755

So the bill was passed.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

MORTGAGE CHOICE ACT OF 2015

The SPEAKER pro tempore. The unfinished business is the vote on passage of the bill (H.R. 685) to amend the Truth in Lending Act to improve upon the definitions provided for points and fees in connection with a mortgage transaction, on which the yeas and nays were ordered.

The Clerk read the title of the bill.

The SPEAKER pro tempore. The question is on the passage of the bill.

This is a 5-minute vote.

The vote was taken by electronic device, and there were—yeas 286, nays 140, not voting 5, as follows:

[Roll No. 152]

YEAS—286

Abraham
Aderholt
Aguilar
Allen
Amash
Amodei
Ashford
Babin
Barletta
Barr
Barton
Beatty
Benishek
Bilirakis
Bishop (GA)
Bishop (MI)
Bishop (UT)
Black
Blackburn
Blum
Bost
Boustany
Boyle, Brendan F.
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Buchanan
Buck
Bucshon
Burgess
Bustos
Byrne
Calvert
Carter (GA)
Carter (TX)
Chabot
Chaffetz
Clawson (FL)
Coffman
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Connolly
Cook
Cooper
Costa
Costello (PA)
Cramer
Crawford
Crenshaw
Cuellar
Culberson
Curbelo (FL)
Davis, Rodney
Delaney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Dingell
Dold
Doyle, Michael F.
Duckworth
Duffy
Duncan (TN)
Ellmers (NC)
Emmer (MN)
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foster
Foxx
Franks (AZ)
Frelinghuysen
Garamendi
Garrett
Gibbs
Gibson
Gohmert
Goodlatte
Gosar
Gowdy
Graham
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Green, Al
Griffith
Grothman
Guinta
Guthrie
Hanna
Hardy
Harper
Harris
Hartzler
Heck (NV)
Hensarling
Herrera Beutler
Hice, Jody B.
Hill
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Issa
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, Sam
Jolly
Jordan
Joyce
Katko
Kelly (PA)
Kildee
Kind
King (IA)
King (NY)
Kinzinger (IL)
Kirkpatrick
Kline
Knight
Labrador
LaMalfa
Lamborn
Lance
Latta
Lawrence
Lipinski
LoBiondo
Loebsack
Long
Loudermilk
Love
Lucas
Luetkemeyer
Lummis
MacArthur
Maloney, Sean
Marchant
Marino
Massie
McCarthy
McCaul
McClintock
McCollum
McHenry
McKinley
McMorris Rodgers
McSally
Meadows
Meehan
Meeks
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Moulton
Mullin
Mulvaney
Murphy (FL)
Murphy (PA)
Neugebauer
Newhouse
Noem
Nolan
Norcross
Nugent
Nunes
Olson
Palazzo
Palmer
Pascrell
Paulsen
Pearce
Perry
Peters
Peterson
Pittenger
Pitts
Poe (TX)
Poliquin
Pompeo
Posey
Price, Tom
Quigley
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (NY)
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Ros-Lehtinen
Roskam
Ross
Rothfus
Rouzer
Royce
Ruppersberger
Russell
Ryan (WI)
Salmon
Sanford
Scalise
Schrader
Schweikert
Scott, Austin
Scott, David
Sensenbrenner
Sessions
Sherman
Shimkus
Shuster
Simpson
Sinema
Sires
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Stefanik
Stewart
Stivers
Stutzman
Thompson (PA)
Thornberry
Tiberi
Tipton
Titus
Trott
Turner
Upton
Valadao
Visclosky
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Westmoreland
Whitfield
Williams
Wilson (FL)
Wilson (SC)
Wittman
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin
Zinke

NAYS—140

Adams
Bass
Becerra
Bera
Beyer
Blumenauer
Bonamici
Brady (PA)
Brown (FL)
Brownley (CA)
Butterfield
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Conyers
Courtney
Crowley
Cummings
Davis (CA)
Davis, Danny
DeFazio
DeGette
DeLauro
DelBene
DeSaulnier
Deutch
Doggett
Edwards
Engel
Eshoo
Esty
Farr
Fattah
Frankel (FL)
Fudge
Gabbard
Gallego
Grayson
Green, Gene
Grijalva
Gutiérrez
Hahn
Hastings
Heck (WA)
Higgins
Himes
Hinojosa
Honda
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Jones
Kaptur
Keating
Kelly (IL)
Kennedy
Kilmer
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lee
Levin
Lewis
Lieu, Ted
Lofgren
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maloney, Carolyn
Matsui
McDermott
McGovern
McNerney
Meng
Moore
Nadler
Napolitano
Neal
O'Rourke
Pallone
Payne
Pelosi
Perlmutter
Pingree
Pocan
Polis
Price (NC)
Rangel
Richmond
Roybal-Allard
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Scott (VA)
Serrano
Sewell (AL)
Slaughter
Speier
Swalwell (CA)
Takai
Takano
Thompson (CA)
Thompson (MS)
Tonko
Torres
Tsongas
Van Hollen
Vargas
Veasey
Vela
Velázquez
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Welch
Yarmuth

NOT VOTING—5

Duncan (SC)
Ellison
Ruiz
Rush
Smith (WA)

□ 1803

Ms. JACKSON LEE changed her vote from ''yea'' to ''nay.''

So the bill was passed.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

PERSONAL EXPLANATION

Mr. RUSH. Mr. Speaker, I inadvertently missed rollcall Votes 151 and 152. Had I been present I would have voted "no."

APPOINTMENT OF CONFEREES ON S. CON. RES. 11, CONCURRENT RESOLUTION ON THE BUDGET, FISCAL YEAR 2016

MOTION TO INSTRUCT OFFERED BY MR. VAN HOLLEN

The SPEAKER pro tempore. The unfinished business is the vote on the motion to instruct on the concurrent resolution (S. Con. Res. 11) setting forth the congressional budget for the United States Government for fiscal year 2016 and setting forth the appropriate budgetary levels for fiscal years 2017 through 2025, offered by the gentleman from Maryland (Mr. VAN HOLLEN), on which the yeas and nays were ordered.

The Clerk will redesignate the motion.

The Clerk redesignated the motion.

The SPEAKER pro tempore. The question is on the motion to instruct.

This will be a 5-minute vote.

The vote was taken by electronic device, and there were—yeas 187, nays 239, not voting 5, as follows:

[Roll No. 153]

YEAS—187

Adams
Aguilar
Ashford
Bass
Beatty
Becerra
Bera
Beyer
Bishop (GA)
Blumenauer
Bonamici
Boyle, Brendan F.
Brady (PA)
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
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Cicilline
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Costa
Courtney
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Cuellar
Cummings
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Delaney
DeLauro
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Dingell
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Honda
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Jackson Lee
Jeffries
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Johnson, E. B.
Jones
Kaptur
Katko
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
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Kirkpatrick
Kuster
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Larsen (WA)
Larson (CT)
Lawrence
Lee
Levin
Lewis
Lieu, Ted
Lipinski
Loebsack
Lofgren
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maloney, Carolyn
Maloney, Sean
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Richmond
Roybal-Allard
Ruppersberger
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Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Schrader
Scott (VA)
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Sewell (AL)
Sherman
Sinema
Sires
Slaughter
Speier
Swalwell (CA)
Takai
Takano
Thompson (CA)
Thompson (MS)
Titus
Tonko
Torres
Tsongas
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Welch
Wilson (FL)

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Abraham
Aderholt
Allen
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Amodei
Babin
Barletta
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Bishop (MI)
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Black
Blackburn
Blum
Bost
Boustany
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Buchanan
Buck
Bucshon
Burgess
Byrne
Calvert
Carter (GA)
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Davis, Rodney
Denham
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Dold
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Farenthold
Fincher
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Flores
Forbes
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Foxx
Franks (AZ)
Frelinghuysen
Garrett
Gibbs
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Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
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Joyce
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Lamborn
Lance
Latta
LoBiondo
Long
Loudermilk
Love
Lucas
Luetkemeyer
Lummis
MacArthur
Marchant
Marino
Massie
McCarthy
McCaul
McClintock
McHenry
McKinley
McMorris Rodgers
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Newhouse
Noem
Nugent
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Olson
Palazzo
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Renacci
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Rigell
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Rohrabacher
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Rooney (FL)
Ros-Lehtinen
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Royce
Russell
Ryan (WI)
Salmon
Sanford
Scalise
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Stefanik
Stewart
Stivers
Stutzman
Thompson (PA)
Thornberry
Tiberi
Tipton
Trott
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yarmuth
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin
Zinke

NOT VOTING—5

Duncan (SC)
Ellison
Ruiz
Smith (WA)

□ 1812

Mr. POE of Texas changed his vote from ''yea'' to ''nay.''

So the motion to instruct was rejected.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

Stated for:

Mr. YARMUTH. Mr. Speaker, during rollcall 153 of the Motion to Instruct Conferees on S. Con. Res. 11, I inadvertently voted "no". I intended to vote "yes" and spoke in favor of the motion during floor debate earlier today.

The SPEAKER pro tempore. Without objection, the Chair appoints the following conferees on Senate Concurrent Resolution 11:

Messrs. TOM PRICE of Georgia, ROKITA, DIAZ-BALART, Mrs. BLACK, Messrs. MOOLENAAR, VAN HOLLEN, YARMUTH, and Ms. MOORE.

There was no objection.

REPORT ON RESOLUTION PROVIDING FOR CONSIDERATION OF H.R. 622, STATE AND LOCAL SALES TAX DEDUCTION FAIRNESS ACT OF 2015; PROVIDING FOR CONSIDERATION OF H.R. 1105, DEATH TAX REPEAL ACT OF 2015; AND PROVIDING FOR CONSIDERATION OF H.R. 1195, BUREAU OF CONSUMER FINANCIAL PROTECTION ADVISORY BOARDS ACT

Mr. STIVERS, from the Committee on Rules, submitted a privileged report (Rept. No. 114–74) on the resolution (H. Res. 200) providing for consideration of the bill (H.R. 622) to amend the Internal Revenue Code of 1986 to make permanent the deduction of State and local general sales taxes; providing for consideration of the bill (H.R. 1105) to amend the Internal Revenue Code of 1986 to repeal the estate and generation-skipping transfer taxes, and for other purposes; and providing for consideration of the bill (H.R. 1195) to amend the Consumer Financial Protection Act of 2010 to establish advisory boards, and for other purposes, which was referred to the House Calendar and ordered to be printed.

□ 1815

REMEMBERING LAUREN HILL

(Mr. WENSTRUP asked and was given permission to address the House for 1 minute.)

Mr. WENSTRUP. Mr. Speaker, I rise today to honor the life of a young woman and brave college athlete taken from us too soon. Her name is Lauren Hill.

Many in Cincinnati know Lauren Hill's story of strength and resolve. Lauren stood as an inspiration to us all. Her dream was to play college basketball, and she committed to the Mount St. Joseph's women's team. Then cancer struck.

Lauren was diagnosed with an inoperable brain tumor. Too many of us know the devastating feeling when a loved one receives a cancer diagnosis. Knowing that her days were limited, Lauren didn't let it stand in her way. She took her fight to the court. She played with a purpose. Her purpose was for others, not for herself.

Although she passed away last Friday at the age of 19, she has left a legacy of hope for a cure. As thousands came to see Lauren play and to support her mission, she raised over $1 million through her nonprofit, a nonprofit to find cures for those that follow in her footsteps.

Lauren Hill, you are an inspiration to the world. Number 22, God bless you.

REMEMBERING OFFICER MICHAEL JOHNSON

(Ms. LOFGREN asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. LOFGREN. Mr. Speaker, I rise to offer condolences to the family and friends of Officer Michael Johnson of the San Jose Police Department, who was killed in the line of duty on March 24, 2015, when he responded to a 911 call and was shot by a disturbed man armed with a rifle.

Mike graduated from the San Jose Police Academy on June 15, 2001. Over his 14-year career, Mike served as a patrolman, court liaison, prescription drug fraud specialist, and, most recently, a field training officer in charge of mentoring young cadets.

Like other officers, Mike recognized the inherent danger in wearing his badge and responding to calls, but he accepted these risks and ultimately gave his life serving his community.

He is survived by his wife, Nikki; parents, Daniel Johnson and Katherine Decker; step-parents, Dann Decker and Penny Johnson; sister, Jamie Radack; a niece and nephew; his grandmother; and his in-laws. I hope they take solace in knowing that our entire community is in mourning with them. The San Jose PD is in mourning. The city of San Jose is in mourning. This Congress is in mourning.

IN HONOR OF OFFICER MICHAEL JOHNSON

Mr. Speaker, I rise today with my colleagues, Congresswoman ANNA ESHOO, Congressman MIKE HONDA, and Congressman ERIC SWALLWELL, to offer our deepest condolences to the family and friends of Officer Michael Johnson, a courageous and dedicated officer of the San Jose Police Department who was killed in the line of duty on March 24, 2015, when he responded to a 911 call and was shot by a suicidal man armed with a rifle.

Mike, a 14-year veteran of the department, was known in the community for his kindness and compassion. He grew up in San Jose, graduating from Gunderson High School in 1995. His siblings knew before he did that he was bound to follow in the footsteps of his father, Daniel Johnson, who was a military police officer for the United States Army and who later joined the Calaveras County Sheriff's Department. Mike graduated from the San Jose Police Academy on June 15, 2001.

He saw himself as a protector. At Mike's memorial service, San Jose Police Department Chief Larry Esquivel said Mike was everything he looks for in an officer: a warrior and a guardian when needed, but also empathetic and eager to engage the community. His easy-going, mild-mannered demeanor and exemplary career made him an effective officer.

Over his 14-year career, Mike served as a patrolman, court liaison, prescription drug fraud specialist, and, most recently, a field training officer in charge of mentoring young cadets. He was also assigned to the covert response unit because of his skill as an expert marksman and his reputation as a model officer. He was known as one of the most skilled marksmen on the force; he medaled often at the Police and Fire Games and was set to be inducted in the competition's hall of fame. He specifically volunteered to be a field-training officer for the department, which was his assignment when he responded to the fateful 911 call.

Mike was active in San Jose, as is his family. He and his wife Nikki planned to raise a family there. His mother, Katherine Decker, became active in making their neighborhood a better place and now serves on the executive board of the VEP Community Association, a neighborhood group that represents more than 2,000 families in Blossom Valley. Outside of work, Mike enjoyed practicing and teaching jujitsu. He had earned his black belt in 2008, served as an instructor at his dojo, and particularly enjoyed teaching jujitsu to kids.

At the memorial service, Mike's sister, Jamie Radack, said that Mike always lived life to the fullest, and took a "go big or go home" attitude to everything he did. He didn't just play chess in high school, she said; he captained the chess team. He didn't just scuba dive; he dove with great white sharks at the Farallon Islands. This passion extended to the love he showed to his family, and also to the dedication with which he served the police department. Like other officers, Mike recognized the inherent danger in wearing his badge and responding to calls. But he accepted these risks.

At approximately 6:48 p.m. on March 24, Officer Michael Johnson was among the first on scene responding to an apartment complex on Senter Road. The police had received a 911 call regarding an unstable man who was armed and threatening to harm himself and his family. Mike and three other officers carefully approached the home, knowing that each step placed them closer to danger, but also closer to protecting a family and a community. The officers were met with gunfire by the man, and Mike was fatally wounded.

Michael Johnson was 38 years old. He had married his wife Nikki in a civil ceremony on August 3, 2013, and was planning a formal wedding ceremony on August 29, 2015. Mike is survived by his wife Nikki, parents Daniel Johnson and Katherine Decker, step-parents Dann Decker and Penny Johnson, sister Jamie Radack, a niece and nephew, his grandmother and his in-laws. I hope they take solace in knowing that the entire community is mourning with them. We are heartbroken by Mike's passing, but inspired by the way he lived his life and protected others. We will remember his dedication, and strive to contribute as fully to our community as he did through his service.

SUICIDE DRONES—IRAN

(Mr. POE of Texas asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. POE of Texas. Mr. Speaker, while Iran pretends to want peace peace, it continues to prepares for war war. While the administration was negotiating a deal regarding Iran's nuclear weapons, Iran was developing new war technology.

Iranian news sources indicate that since 2014, Iran has been developing combat suicide drones. This technology uses drones as suicide weapons to destroy jet aircraft, helicopters, and even warships. The drone development includes drones that elude radar, have tracking devices, and fly for hours with a long range.

The Iranian Supreme Leader even stated while the nuclear weapon negotiations were taking place that he wants to destroy the United States.

Suicide drones are yet one more example that Iran is determined to have military dominance in the Middle East. Iran wants to annihilate Israel and the United States. The United States should not be disillusioned by the Iranian ruse claiming it wants peace.

The best hope for the world is for the people of Iran to rid themselves of the warlord mullahs and replace them with a rational, nonaggressive government.

And that is just the way it is.

EQUAL PAY DAY

(Mr. LANGEVIN asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. LANGEVIN. Mr. Speaker, I rise today in honor of Equal Pay Day.

It is an absolute shame that, in the United States, women earn, on average, 78 cents of every dollar that a man makes. For women of color, this gap is even worse: 64 cents for African American women and 56 cents for Latinas.

Mr. Speaker, the pay gap is harming working families in every State, but it is particularly harmful in the two-thirds of families where women are the primary breadwinners. Lower paychecks mean less money for groceries, rent, child care, and other family necessities.

Mr. Speaker, I am proud to be an original cosponsor of the Paycheck Fairness Act, which will make it easier for women to win pay discrimination cases and harder for companies to justify unequal salaries. Mr. Speaker, I urge all of my colleagues to cosponsor this bill with me.

DEVEREUX'S AUTISM ASSESSMENT CENTER

(Mr. COSTELLO of Pennsylvania asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. COSTELLO of Pennsylvania. Mr. Speaker, I rise today to congratulate Devereux, a national nonprofit behavioral health care organization, on the opening of their new Autism Assessment Center in Downingtown.

The center is designed to help families get access to an autism spectrum disorder assessment and diagnostic services. It will help families facing the uncertainties of an autism diagnosis and will also help individuals from birth live with the challenges that autism can bring.

With more children than ever now being diagnosed, experts agree that early diagnosis and intervention for autism is critically important. Currently, receiving access to diagnostic testing can involve waiting lists up to 18 months. That is why facilities, such as Devereux, can provide an important service to Chester County and the greater Delaware Valley region.

I am excited to soon be taking a tour of the facilities and want to thank

President Robert Kreider, Vice President Carol Oliver, the board of directors, administration, staff, and volunteers at Devereux, all of whom provide compassion and excellence in care and advocacy for so many who may be disabled but, indeed, are very able—able to live meaningful, productive lives filled with laughter, learning, and productivity thanks in part to the good work done, day in, day out, at Devereux.

HOUSE WILL PROTECT TAXPAYERS AND REIN IN THE IRS

(Mr. THOMPSON of Pennsylvania asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. THOMPSON of Pennsylvania. Mr. Speaker, with April 15 quickly approaching, this week the House of Representatives will be taking action and voting on a number of bills to ease the pain for American taxpayers.

Across Pennsylvania's Fifth Congressional District, I have heard from constituents expressing their ongoing anxieties when it comes to the complexity of our Federal Tax Code.

Mr. Speaker, there are more than 4 million words in the Tax Code and only 462 words in the Bill of Rights. This country is long overdue for a more simplified Tax Code.

This week, the House is considering legislation to ensure IRS transparency, repeal the immoral and oppressive death tax, and pass a taxpayer bill of rights. Mr. Speaker, I urge my colleagues on both sides of the aisle to support these commonsense measures to protect the American taxpayer.

CERTIFICATION OF RESCISSION OF CUBA'S DESIGNATION AS A STATE SPONSOR OF TERRORISM—MESSAGE FROM THE PRESIDENT OF THE UNITED STATES (H. DOC. NO. 114–26)

The SPEAKER pro tempore (Mr. TROTT) laid before the House the following message from the President of the United States; which was read and, together with the accompanying papers, referred to the Committee on Foreign Affairs and ordered to be printed:

To the Congress of the United States:

I transmit herewith a report to the Congress with respect to the proposed rescission of Cuba's designation as a state sponsor of terrorism.

BARACK OBAMA.

THE WHITE HOUSE, *April 14, 2015.*

THE TAX CODE

The SPEAKER pro tempore. Under the Speaker's announced policy of January 6, 2015, the gentleman from Florida (Mr. JOLLY) is recognized for 60 minutes as the designee of the majority leader.

Mr. JOLLY. Mr. Speaker, I appreciate the opportunity tonight to address my colleagues, to address the American people on the eve of one of the most concerning days for many Americans, that of tax day, April 15.

My previous colleague alluded to measures that we will bring up this week on behalf of the American people, and I look forward to having an honest and constructive debate about the bills this week, our national tax policy.

But listen; this is a very human and uniquely American moment this evening, as many people are overwhelmed with the deadline that they face tomorrow to submit their taxes. I think it is safe to say that an appropriate word of many Americans this evening and into tomorrow is one of resentment.

There is resentment for many reasons. For many, it is simply the complexity of our Tax Code, that today, in 2015, our Tax Code is so complex that many people struggle with compliance or, for those with resources, have to turn around and spend their hard-earned resources to hire a professional simply to understand the laws and the Code that we have implemented here in Washington, D.C. For others, the resentment is about the amount of taxes they pay, and this is across all income spectrums. The resentment is related to the fact that they question how their taxpayer dollars ultimately are resourced, are spent, are obligated by this body.

Some studies have shown that as recently as 2012 over $100 billion was spent in the areas of waste, fraud, and abuse—taxpayer dollars, not Washington's dollars, but taxpayer dollars that we each remit responsibly to our government, that we entrust our government to spend wisely, responsibly, to invest in the right priorities for the Nation, but also to ensure that the business of government runs exactly as that, as a business, an efficient business. So there is frustration by many people. And yet, even worse, the system is designed today to obfuscate responsibility.

Think about it. We live in a generation today where, for the majority of Americans, your taxes are withheld from your paycheck. The generation that enters the workforce today simply knows that if they are to be paid $100, it is not really $100, that there is money taken out of it. That wasn't always the case. Until World War II, we didn't withhold. In fact, it was in 1943 when Congress passed and the administration enacted the Current Tax Payment Act that began to withhold.

Now, there are a lot of arguments to be made for why we withhold—ensure the responsible flow of taxes to government—but understand what that very simple measure did. It began to slowly remove the American taxpayer, the American citizen, from the actual act of remitting, of paying for the government that they have. It made it slightly harder to recognize the responsibility that the money that is being sent to Washington every time there is money withheld from your paycheck, that in fact that is the taxpayers' money.

Instead, we have generations that have come up just assuming that you are paid $100, but you only get $80 or $90. Well, that is just the way the system works and there is money coming out of it, as opposed to making that $100 and having to remit a check to your government and then hold that government responsible.

□ 1830

I know this sounds like a crazy notion in 2015, but it is an important context for the conversation we have in terms of the amount of taxes that are placed upon the American people and the expectation for the level of responsibility of our government to actually spend those resources.

This is a very real conversation. This was brought to me just last evening by a woman who owns her own firm, her own practice, and is married to a husband who likewise owns his own firm, his own practice.

Now, in that situation, this couple is responsible actually for writing that check, for paying what we call estimated taxes each quarter, and then, at the end of the year, reconciling whether they paid enough or not. For that couple, it is a very real experience.

It is very different from a majority of Americans who are employed by an employer, and, in fact, the money is withheld because, for that couple, every quarter—every quarter—they have a conversation around the kitchen table about the amount of taxes that they are sending to their government, the amount that they are resigning over to government and what they expect in services in return. That creates a certain efficiency, a certain accountability. It is a very interesting question.

Mr. Speaker, it also leads to how much should that check be that this couple writes in estimated taxes? This is an area of broad debate, and it can be a constructive debate. What is the right marginal tax rate is something that people of differing political positions obviously have deeply held convictions.

I can tell you this, though: we live in a world where the average American is subjected to multiple taxing authorities. Consider this: we often think in this body only of your Federal marginal income tax rate and the contribution that individuals make to Social Security and Medicare and other mandatory programs.

In Washington, you might have a debate that focuses solely on what is the appropriate marginal tax rate. Well, in State capitols around the country, you have State governments having that same debate, but there is a gap.

Rarely would Washington ever consider what is the State tax obligation in a specific State, and rarely would a specific State worry about what the marginal tax rate is of the Federal

Government and then extrapolate that out to taxing authorities at the local and municipal level, your school board, your water authority, energy taxes, utility taxes, and car taxes.

Mr. Speaker, think about all of the taxes that a single individual is responsible for paying; yet we have no tax ombudsman that represents the taxpayer before all of these taxing authorities.

We have no collective assessment of what is the total tax burden of a single individual, not just from Washington, but from your marginal income taxes to your mandatory contribution to entitlement programs to your State taxes to your sales taxes to your water taxes, utility taxes, school taxes, and car taxes. What is that total tax burden?

On the eve of April 15, I think it is appropriate to have a conversation about what is the total tax burden that any one individual should be subjected to, not the marginal income tax at the Federal level, not whether it should be progressive or flat, not whether it should be simpler, fairer, or flatter—which, certainly, I think every Member of this body would agree to—but what is the total tax obligation that any one individual should be subjected to?

Ultimately, Mr. Speaker, taxes, fiscal issues, tax issues, are freedom issues. How much do we as government collectively, of all forms, ask for an individual to resign over to government to make decisions for them? That payment of taxes, that resignation of resources by the individual to a governing authority, those taxing issues are actually freedom issues. How much does it leave for the individual to have discretion as to the decisions they get to make for themselves?

I have actually introduced legislation, H.R. 144, called the Alternative Maximum Tax. It is a very simple proposition. It says that no one individual should have to give to government collectively more than they get to keep for themselves.

Think about it. What is the moral justification for why in the United States, this great land of liberty, this country that was founded on the notion that freedom is granted not to government to be disbursed to individuals, but freedom is granted by our Creator to our individuals, and as individuals, we get to decide how much liberty we resign over to government?

If that is the case, if our Nation was founded on this remarkable notion that freedom is first granted to the people, how can anybody, how could we ever argue that an individual should then have to resign over more than half of their income, more than half of their resources, to government collectively?

Now, understand, this isn't simply a conversation about the marginal tax rate at the Federal level. This is saying from State to local to Federal to water district to utility district, what is the total taxation of any one individual? That ultimately is a freedom issue.

The legislation I introduced actually does exactly that. It says an individual is able to add up every single one of these taxes, and, if they hit a threshold of 50 percent, they hit a maximum tax. We have an alternative minimum tax in the country.

It says if you fully comply with our Tax Code and you qualify for tax deductions and tax credits, but Washington decides you didn't quite contribute enough, then we are going to hit you with an alternative minimum tax and say: Too bad, we don't like your math; we need more money from you.

Well, why don't we have an alternative maximum tax to protect the taxpayer? I will be honest with you. Marginal tax rates, as I mentioned, are something for political debate. I think 50 percent is way too high. I would like to see that number come down because I do believe it is a matter of freedom.

This legislation, H.R. 144, I will tell you the political strategy behind it and the absolute transparency, it is to beg the question, to ask the question, the very simple question: Should any one individual have to give to government more than they keep for themselves? It is a moral question, I believe, in 2015.

We also this week, in looking for solutions on behalf of the American people, will consider other commonsense proposals. One of them would make permanent the sales tax deduction. One in five Americans live in States that do not have an income tax but do have a sales tax. The State of Florida is one of them.

For that one in five Americans, a sales tax deduction is very important. Think about it. Income taxes at the State level are deductible on your Federal tax return; but, if you live in a State that, instead of having income taxes has sales taxes, shouldn't that be deducted just the same?

The principle behind a State income tax deduction on your Federal return is it is recognizing, as I discussed in the max tax, that if an individual is already paying and contributing a certain amount to their State for government operations, then it would not be appropriate to tax those dollars. We allow the deduction of State income taxes from your Federal tax return. We should likewise allow the sales tax.

Now, Mr. Speaker, this is something that, unfortunately, does not have a permanent place in the Tax Code. Later this week, we will consider—and I believe the House will approve—H.R. 622, to make permanent the State and local sales tax deduction.

We also will vote on H.R. 1105, which would ensure the elimination of the death tax—the death tax. Think about this. A nation that says you may have already paid money on your income, but the day you die and leave it for your family, your family has to pay another tax on that, it is as outrageous as it is insulting, and it is a very simple measure that we will consider this week to repeal that.

We do have, across the country tonight, a lot of concerned and, frankly, angry constituents probably in every single congressional district. Tax policy and budget policies, we have seen, can be very divisive.

As a Congress and as a nation, it is appropriate that we begin to have a national dialogue about how we can do better, how we can do better on behalf of the individual taxpayer because the current system doesn't work. We know that.

There is a reason that everybody has different ideas about tax reform. Well, just as we should be doing on so many other matters in this Congress, let's bring a package to the House floor.

Let the House work its will on behalf of the American people that we are elected to represent. Let's give voice to the American people that we represent and have an honest and constructive dialogue about the future of tax policy. We owe it to the American people to do our job.

Mr. Speaker, on the night of April 14, when so many people are working tirelessly simply to comply with complex regulations and laws that have been enacted by this body through multiple administrations and multiple parties—no one party bears all responsibility—but we know we have burdened the American people tonight, so let us, as we consider these bills later this week, do our job on behalf of the American people and recognize this burden that has created such resentment.

Moving forward, let's bring a tax package to the floor. Let's have an honest debate between the two sides of the aisle and do what is right on behalf of the American people.

Mr. Speaker, I am thankful for the opportunity this evening.

I yield back the balance of my time.

OPENING OUR EYES TO THE EPIDEMIC OF POLICE VIOLENCE IN AMERICA

The SPEAKER pro tempore. Under the Speaker's announced policy of January 6, 2015, the gentleman from New York (Mr. JEFFRIES) is recognized for 60 minutes as the designee of the minority leader.

GENERAL LEAVE

Mr. JEFFRIES. Mr. Speaker, I ask unanimous consent that all Members be given 5 legislative days to revise and extend their remarks.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from New York?

There was no objection.

Mr. JEFFRIES. Mr. Speaker, once again, we are moved and compelled to come to the House floor to deal with the seemingly unending problem of police violence in America. Over the last year, we have seen a parade of horribles, examples of police violence caught on video for all of America to see.

We are compelled to ask the question: What more does Congress need to see in order to understand that we have got a problem that requires Democrats

and Republicans, people in the House and the Senate, working in partnership with the President to address?

I certainly am of the view that the overwhelming majority of law enforcement officers are hard-working individuals who are there to protect and serve their community; but how can we continue to turn a blind eye to the fact that police violence all across America essentially has presented an epidemic of injustice that we have got to deal with in a free and democratic society?

What more does the Congress need to see? We have seen 12-year-old Tamir Rice gunned down by a police officer in what many view as a driveby shooting. Tamir Rice didn't present any danger to the officer who simply pulled up and really, without warning, shot him dead to the ground, based on a call that had been made that someone seemed to have a toy gun.

Of course, in New York City, Eric Garner was strangled to death with the use of a choke hold employed by a police officer, despite the fact that, for the previous 20 years, choke holds had been unauthorized as part of the policy of the NYPD.

Eleven different times, Eric Garner, a father of six, said that he couldn't breathe, and on 11 different occasions, the officers who were there failed to respond to Mr. Garner's pleas for help. As a result, he was killed on a New York City street for all the world to see; then a grand jury fails to indict even on simple assault.

Now, of course, we have got the tragedy of Walter Scott, someone who was killed running away from a police officer after having been tased. It is not clear to me that, if a courageous bystander hadn't captured that incident on video, the officer responsible for killing Walter Scott may be patrolling the streets of South Carolina today. What more does Congress need to see to realize that we have got a problem that needs to be addressed?

Mr. Speaker, I am thankful that several of my colleagues in government are here, including the assistant Democratic leader, who has got a tremendous history of combating injustice before he got to Congress and his two decades-plus in serving the people of South Carolina in Congress.

Let me yield to the distinguished gentleman from the great State of South Carolina, the assistant Democratic leader, JAMES CLYBURN.

(Mr. CLYBURN asked and was given permission to revise and extend his remarks.)

Mr. CLYBURN. Mr. Speaker, I want to thank my friend Mr. JEFFRIES.

I visited with the family of Walter Scott. I attended his funeral; and, not long after the services were over, I was approached by two women who identified themselves as mothers of two young men who had suffered unusual and unnecessary brutality at the hands of the officer who perpetrated the unnecessary shooting of Walter Scott.

□ 1845

Both these women said to me that, throughout the North Charleston community, there is significant apprehension as to whether or not they could accept or expect any kind of relief for the pain that they are suffering.

I remained in Charleston over the weekend. On Sunday evening, I saw that the mayor of North Charleston, Mayor Summey; the chief of police of North Charleston, Chief Driggers; along with the sheriff of Charleston County, attended the healing services that took place at Calvary Baptist Church there in Charleston.

I applaud them—the mayor, the chief, and the sheriff—for responding to these three families, and there may be others, but in a way that makes us all proud.

I am hopeful that, after this weekend and some subsequent occurrences, that Congress would take a long, hard look at whether or not there is a role for us to play in responding to what seems to be an epidemic. I applaud those in the South Carolina Legislature, most especially Senator Marlon Kimpson, for his authorship of body camera legislation.

I thank the various newspapers, most recently this morning, The State newspaper, for endorsing this concept, saying that it is something that the legislature in South Carolina should authorize and fund.

Now, there are a lot of police departments that are too small to raise the necessary funds, and a lot of them are so big that the cost might be prohibitive. To that, I want to say, Mr. JEFFRIES, as I thank you, Congressman SCOTT, and Congressman RICHMOND, as well as Congressmen GOWDY and LABRADOR, for all the work you are doing trying to pull together a piece of comprehensive legislation that will reform our judicial criminal system in a way that would make things much better going forward.

Please, I ask, take a look at whether or not it is time for us here in the Congress to make the funds available so that all local police departments can afford to do something that I think will address a national problem.

I also believe that the time has come for us to maybe mandate from this level the body cameras I think Congresswoman CORINNE BROWN and Congressman EMANUEL CLEAVER have both proposed legislation in this area. Let's take a look at their legislation. Hopefully, your task force will take a look at their legislation and see whether or not we can incorporate that legislation authorization, as well as the funding going forward.

Now, I want to thank the Attorney General and the FBI Director for proposing that we deal with this issue of data collection. That is going to be very important as we take a look at these issues and these incidents and to see whether or not it is time for us to do something at the national level to deal with data collection.

That, too, is an expense. In fact, that is something these departments would have a problem with in terms of size, where they are so big they can't afford it or too small to raise the funds, and maybe we can find a way to help fund the storage of this data so that we can create a better climate.

Now, before I close, I want to say something that I get beaten up a lot for raising this issue, but I feel strongly about it. I am not easily intimidated, and I refuse to be bullied.

Therefore, I want to say once again, whoever is funding the activities of the American Legislative Exchange Council, they are funding the kind of legislation, stand your ground, that creates vigilante activity in this country. It is clear that is what is formed from that legislation.

They are also funding legislation that is suppressing voters; and when you suppress voters, you are, in fact, ruining activity at the community level that I think is very, very important.

They are also funding the bleaching and stacking of legislative and congressional districts, all of which I believe add to the creation of a venomous climate throughout our country.

I started my professional career as a public school teacher teaching history. I have studied the history of our great country, and I have taught it. I can say that it is clear to me that a lot of the legislation that is being proposed today, a lot of the activities that we are experiencing today, we went through this before.

I would ask anybody who may be interested in the subject to just take a look at what occurred in this great country between 1872 and those new constitutions that went in place throughout the South in 1895. You will see that, through that 23-year period, the same kind of vigilante activity, all done under the heading of Jim Crow laws, the same activity with a different label is what we are beginning to see today.

I would hope that all the people here in this Congress and around the country will really take stock of who we are, where we are, and let us do what is necessary to move our country to common ground for all of its great citizenry.

Thank you so much.

Mr. JEFFRIES. I thank the assistant leader, Mr. CLYBURN, for his eloquent articulation, both of the history of police violence and oppressive laws and statutes done on the color of State law designed to undermine the constitutional principle of equal protection under the law, as well as for suggesting some of the things that we can consider doing to improve this situation, one of which will be to make sure that we capture police encounters on video in a manner that benefits all involved so we can have a real understanding of what took place during the encounter.

New York City has begun an experimental program placing body cameras in a few of the precincts throughout

New York City, including the 75th precinct in the east New York community that I represent.

In talking to the commander of the precinct, the officers, while many were initially skeptical, eventually embraced the presence of body cameras for a variety of reasons, one of which is that it often defuses an aggressive encounter because the officers, upon approaching a situation when they are wearing a body camera, are now required to say to the individual citizens they are confronting: This confrontation or this exchange is going to be recorded.

What the officers have found is that, in many instances, that will defuse a situation that otherwise might go in the other direction.

Body cameras are something that should be considered. In fact, many law enforcement officers in departments across the country who have gone down this road have embraced it as technology that benefits the law enforcement community, in addition, of course, to making sure justice takes place when a police officer crosses the line.

It is now my distinct privilege to yield to a new member of the Congressional Black Caucus, as well as the House of Representatives, who has already distinguished herself in terms of being a passionate advocate for justice and for progressive change in this country.

That is the gentlewoman from the Garden State right next door to New York, Congresswoman BONNIE WATSON COLEMAN.

Mrs. WATSON COLEMAN. Thank you very much to my esteemed colleague from New York.

I am new to Congress, and I have had quite a few occasions to come to the floor and talk about issues that are very pressing to my community and to me. I stand here as an African American woman who represents the State of New Jersey, but I stand here as a wife, a mother, a sister, an aunt, and a cousin to African American men.

In that capacity, each and every day that one of them leaves our presence and leaves their home, I wonder if they will come back safely. I know they mean no one any harm, but I don't know that the police that they might encounter would see that in them as I do.

My community has cried out for a long period of time that there has been injustice and there has been harm and danger and needless deaths facing our young men and even some of our young women.

As a matter of fact, Mr. CLYBURN mentioned the issue of data collection as being such an important element here in helping us to find our way. I noted that The Washington Post said that, out of thousands of fatal interactions between the police and citizens, only 54 officers have been charged, and of those, most were cleared and acquitted.

We need better data collection; we need greater accountability, and we, obviously, need greater justice because, in those instances, the majority of these officers are going back into the streets, patrolling these communities, and those people who are in charge of them are still in charge of them and are still performing what should be a public service.

□ 1900

I understand that not every case that we are encountering is as clear-cut as the one we just encountered with Officer Slager. I understand that there are other cases that have resulted in other findings. I do not understand how some of these findings could have occurred given the things that we have actually seen.

I stand here recognizing that this Congress can, indeed, help these local police departments with things such as body cameras. In the cost-benefit analysis, is a life worth enough to invest in them for the police departments? I say ''yes,'' but there are other things that, I think, Congress should be considering and on which, I think, we should be leading the way in the discussion.

One of those is that there are consequences that should not only be felt by the officer who was actively engaged in the misfortune, such as in the Slager case or even in the Brown case in Ferguson; but what about those individuals who knowingly participated in the policies that ended up creating this disparity in our society, this injustice in our society? They are given the opportunity to walk away. They are given the opportunity to retire. They are given the opportunity to resign. They are given the opportunity to move on with their lives and to benefit from the pensions and other benefits that have been accrued by the number of years they have been working as public servants, even though it is clearly demonstrated that their service was not to the public. There need to be consequences that need to be addressed with regard to that also.

There is a lot that needs to be done. We can see it, but we can no longer be silent on it. Congress does have a role here. Congress has a responsibility to ensure that the laws of this country are protecting all of our citizens. We need to do things like invest in body cameras, not just to catch those who are doing these things which are harmful to our community but to protect the good policemen who are sometimes the subject of complaints that aren't verified. I honestly believe that those who don the blue uniform do so with the expectation and the desire to protect, preserve, and to serve, but those who do not and those who allow those who do not to continue to do what they are doing need to be accountable.

I look forward to working with my esteemed colleague who is in charge of this Special Order hour and with all of those who are working to ensure that there is justice, safety, and security and that, as a mother, I don't have to worry, that, as a wife, I don't have to worry, that, as a sister, as an aunt, as a cousin, and as a friend, I don't have to worry every time a Black man who is associated with me leaves my home.

Mr. JEFFRIES. I thank the distinguished gentlewoman from New Jersey for her very eloquent and passionate remarks.

Mr. Speaker, one of the things that we clearly have to grapple with in this country is the fact that the criminal justice system is broken, and there are many components to that. We have got a situation in which far too often a police officer crosses the line, engages in unlawful conduct, and is not held accountable for that conduct. What kind of incentive does that create for good conduct to take place moving forward if, in the overwhelming majority of instances when police officers cross the line, such as in the Eric Garner case, a grand jury or a local prosecutor will often fail to hold them accountable?

The other problem that we have got to address is of overcriminalization in America, of mass incarceration. If you look at some of these encounters that have taken place and that have gone wrong and that have resulted in tragedy, they often have begun with what was, really, overly aggressive, unnecessary policing strategy being deployed to tackle, at best, nuisance-like activity.

Eric Garner is dead today because he was selling loose cigarettes, and someone at One Police Plaza gave the order to aggressively police this activity. Crime is down in New York, but there are still a couple hundred homicides committed every year. There is still some gang activity. There are still some assaults taking place. But we want to use police resources to aggressively go after someone who is selling loose, untaxed cigarettes?

That is an overcriminalization problem connected to broken windows policing. Walter Scott is dead today because he had a broken taillight. Four children are without a father because Walter Scott had a broken taillight. We have got to evaluate this overly aggressive policing strategy connected to the phenomenon of mass incarceration.

I am pleased to have had the opportunity in this Congress to have worked closely with someone who is one of the leaders in the House of Representatives and in the Capitol in dealing with our broken criminal justice system and who works closely with colleagues on the other side of the aisle, like TREY GOWDY and JASON CHAFFETZ and others, who are interested in trying to figure out, collectively, how we can make America a fairer, more efficient place in terms of our criminal justice system.

Let me now yield to the distinguished gentleman from the great State of Louisiana, who represents the wonderful city of New Orleans. We refer to him, of course, as the ''franchise'' because of his prolific baseball

abilities, but he is also one of the most talented legislators here in the Capitol. I yield to my good friend, the Honorable CEDRIC RICHMOND.

Mr. RICHMOND. Thank you, Representative JEFFRIES, for allowing us to address this most important issue.

Mr. Speaker, as we talk about it today and as members of the Congressional Black Caucus address this country and address this Chamber, let me just start with: this is not a Black problem; it is not an African American problem; it is not a Hispanic problem; and it is not a minority problem. This is an American problem that is eroding the fabric and the core of who we are and what makes us exceptional. As we talk about police violence and as we assess it, we try to figure out if we have a few bad apples or whether this is a systematic problem that needs to be addressed. I prefer to believe that it is the former—a few bad apples who need attention. With that, I will use an example.

Representative JEFFRIES, I am sure you know that we had a police shooting in the New Orleans airport a couple of weeks ago when a man who was otherwise peaceful lacked medical attention and was paranoid and went to the airport and intended to do harm. In fact, he did do harm, but in the process, Lieutenant Heather Sylve had no choice in this situation but to fire, to discharge her firearm, and she killed Richard White. She had no choice, and she saved many lives. I would like to believe that there are more Heather Sylves out there than what we are seeing on the news every day. Yet the preponderance of what we are seeing every day is of shootings that are not justified.

When we talk about what we can do, body cameras won't stop the event from happening; but like red light cameras and these automated traffic tickets, what they do is change behavior because, hopefully, officers will realize that there is nothing done under the cloud of darkness anymore, that whether it is body cameras or civilians standing up and recording the interaction, whatever you do will be recorded to show an independent version of what is going on. Maybe—just maybe—that will change behavior and make officers just take notice that today is not yesterday and that you can't do the things that you used to do.

As we address it, one of the things we can also look at is the diversity of these police departments and at the diversity of the FBI, the DEA, and the ATF. Those departments and those police forces and those law enforcement organizations should reflect in their makeup the great diversity in this country. U.S. attorneys in this country should stand and fight for civil rights violations just as they do the headline-grabbing public corruption and all of the other things that they focus on.

We have the new cases, but I have old cases in New Orleans. After Katrina, I had Henry Glover. An officer on a second-floor balcony shot him dead with a sniper rifle, saying that he posed an imminent threat to that officer on the second floor. Not only was he shot and killed but the police took the body, in an abandoned car, to a levee and burned it. If we get past Henry Glover, we can go to the Danziger Bridge, where officers engaged in a firefight with six civilians. Today, we learned all of them were unarmed, and none of them fired on the police. Two of those civilians were killed.

This is a very hard conversation to have. It is a conversation that we have to have because the longer we ignore it the longer it will fester. The urban communities have been singing this song and have been reporting this for years and years and years, and it is not until new technology that we see that this was not a fabrication but a concerned community that was watching their sons and their fathers be killed at the hands of law enforcement.

We are part of the greatest body on Earth, which is the United States Congress, and we can solve problems when we have the will because, as my grandmother always said, Where there is a will, there is a way. It is time for Congress to dig up that will to make this country a more perfect Union. We all know that it is not perfect—it was not perfect when it was created, and it is not perfect today—but with the courage of legislators like Representative JEFFRIES from New York, Representative JOHNSON from Georgia, who will speak next, and with the will of strong legislators who are not afraid to have an ugly conversation, we can wrap our hands around this, and we can make our streets safe for everyone because all lives do matter.

I think that it is time that both Republicans and Democrats and Whites and Blacks sit down and say that this is unacceptable, because the hate and the disgust and the hurt that is growing in African American and urban communities around this country is playing out to be justified.

The only thing that I can hope and pray for, Representative JEFFRIES, is that we are bigger and that we are better than that as a country. I look forward to working with you, and I look forward to working with this Congress to find solutions to these problems so that we do not have to bury another father or another son whose life was snatched from him by the hands of either an inexperienced officer or, worse than that, by an officer who just had ill intentions.

Every day, good people put on that uniform and go out and risk their lives to make sure that our communities are safe, that our children get to and from school, that our husbands and wives get to work and get home. They do that every day, risking their lives, and they sacrifice much so that we can be safe. We need to make sure that we root out those bad apples to make sure that it doesn't happen to any more families.

Mr. JEFFRIES. I thank the distinguished gentleman from New Orleans for his thoughtful and eloquent exposition of the situation and for pointing out that, while this is not an easy conversation for us to have around the police's use of excessive force, often resulting in the deaths of unarmed individuals such as Walter Scott and Eric Garner, it is a necessary one if we are going to continue our march toward a more perfect Union.

I now yield to another distinguished member of the Judiciary Committee, who has taken an active role within the Congressional Black Caucus and beyond to introduce progressive pieces of legislation that are designed to address this problem. He is the distinguished gentleman from Georgia, Representative HANK JOHNSON.

□ 1915

Mr. JOHNSON of Georgia. I thank my colleague, Congressman JEFFRIES from New York, for organizing this very important Special Order.

Thank you, Mr. Speaker, for hosting this.

We are here to talk about a very important subject, the extrajudicial killing of Black males in America. It seems to be an epidemic, but it is really not. It is just simply the fact that we are hearing more about it. We are hearing more about the deaths that are occurring. We are seeing with our very eyes, looking at video, we are seeing that some of these killings appear to be unjustified. When we understand that we are seeing what has been going on for a long time but which has not been addressed, we understand that if we don't do something to address the problem, then these killings will continue.

Now, why is it that we have what appear to be unjustified homicides of African American males at the hands of law enforcement repeated daily? In the 108 days or so since the Michael Brown killing in Ferguson, we have heard of so many African American males losing their lives. It is very disturbing.

Why is it that it continues to happen? Well, I would submit, Congressman JEFFRIES, that one of the reasons is because there seems to be two systems of justice involved: one for police officers and the other for civilians. It seems that there has been a reluctance to prosecute police officers when their actions go across the line.

Now, you, as well as I, know that most of the law enforcement people, law enforcement officers out there, male and female, top to bottom, from the East to the West, are good people honestly trying to do a good job, and their job is to protect and serve us. A lot of times we make it very dangerous and we make it very hard for them to do their job; but that is their job, to protect us and to serve us.

When one of us goes astray, when one of us runs away, that doesn't give a license to a police officer to pull out a gun and stop the individual, shooting them in the back. It has happened

more than once. It has happened more than twice. It has happened frequently. Sometimes we don't hear about it because the person is injured and there is no video. Other times there is video, and the person is killed, and we find out about that and we see it. But I would submit to you that it happens far too regularly, and it happens without any penalty for misconduct.

Now, I have said that most of our law enforcement officers are seeking to do the best job that they can be, but nobody is perfect and they err sometimes; and when you err and you do it and you violate the criminal law, then you should be prosecuted yourself.

So I want to take this opportunity to commend the officials in North Charleston who immediately, when they saw the video, they saw the evidence, they didn't waste any time, they didn't try to cover up or hide, they went and did the right thing. They charged the officer just as they would have charged a civilian had a civilian shot someone and it appeared to be unjustified.

I will give you an example in my State of Georgia where, on New Year's morning, 3 a.m. in the morning, one of our local police chiefs was asleep in the bed next to his companion, who happened to be his ex-wife, and due to some problems that he heard, he went and grabbed his service revolver. He went downstairs to check on some noise but didn't find any disturbance. He came back upstairs, put the gun, according to his testimony or his statement, on the bed, and then went to sleep with his wife beside him, his ex-wife. He was awakened to a gun firing, and his wife, his ex-wife ended up being shot in the back. He called the police to report that ''I have shot my wife.'' He was not arrested. He has not been arrested to this day, although about a month ago the solicitor who handles misdemeanor cases—excuse me. The prosecutor, the district attorney who handles felony cases said that he intended to take the case to a grand jury to ask for a misdemeanor indictment against the officer.

But there are two different systems of treatment, two systems of justice: one for the police, because if he had not been a police officer under those circumstances he would have been arrested right there that same night, charged with a felony, and he would have been forced—after being arrested, he would have had to get a lawyer to have to break the case down into something like a misdemeanor, if he was fortunate to have a good lawyer, if he could afford one.

So, when these kind of things happen and people don't get charged, then it is a license for other officers to be reckless themselves; and so what we have had is a cascade of reckless behavior which has resulted in people being killed and there being no penalty, and so it just continues. That is why it is important for Congress to take action.

There are things that we can do here on the Federal level, and Congressman JEFFRIES, I know that you have been working on some of these measures. I have been working on some, too. I will tell you, body cameras is a step in the right direction.

Mr. JEFFRIES. The gentleman raised a very important point that I want to make sure is not lost, and then I certainly look forward to you articulating some of the things you have been working on in terms of legislative proposals.

But most of us, most folks in America do believe that police officers generally are entitled to the benefit of the doubt in the context of a police encounter because of the inherent dangerousness of what law enforcement officers do. Certainly the former mayor of the city of New York famously said—this is Rudolph Giuliani:

In every case, I am going to give police officers the benefit of the doubt.

But there is peril in the misapplication of that standard because if it goes too far, as the gentleman points out, there are some who believe that even if I cross the line, there will be no accountability. And in this particular case what was so chilling about the video, after Walter Scott is gunned down, is that this officer, not knowing that this entire encounter was covered on video, felt that he could drop something next to the body of Walter Scott and presumably, in his mind, that would be part of the narrative that he would use to get himself exonerated because he understood that he would be entitled to the benefit of the doubt. In the absence of video, in this particular case he could potentially have gotten away with murder.

So I thank the gentleman for raising that point. We have got to have a real conversation. In America, yes, the overwhelming majority of law enforcement officers are hard-working individuals dedicated to protecting and serving; but there is a problem with the misapplication of the benefit of the doubt standard in every instance because, in the absence of video, you may allow some officers who have crossed the line to get away with being held unaccountable. That is a terrible thing for justice and for encouraging proper behavior moving forward. I thank the distinguished gentleman.

Mr. JOHNSON of Georgia. Thank you for yielding again.

I will also note, Congressman JEFFRIES, that in watching that video of the shooting in the back of the gentleman a week ago, what I saw was another police officer who arrived at the scene as the subject officer walked back, or actually ran or trotted back to the body. And as the video was slowed down in slow motion, you could see something coming out of his hand landing next to the victim, and it is thought that the item that he picked up, that the video shows that he picked up, was a taser; and it appears that it was the taser that was then dropped beside the body of the victim with the other officer looking at the scene as it unfolded.

So I would think it is reasonable to assume that that officer, the first one to arrive at the scene, who happened to be an African American it looked to me, apparently, I would think that it is reasonable to assume that he saw the officer deposit that item, which I believe to be the taser, beside the victim.

So what does that tell us? It tells us that there is a thin blue line over which law enforcement officers do not step. They protect each other. When they see wrongdoing, they do not call it out; they do not expose it. So when that happens, Congressman, it impugns the character of all law enforcement. If law enforcement is operating under that mentality, that we see no evil, hear no evil, and certainly will not speak of it if we do hear or see it, that reinforces the systemic problems that we obviously have in law enforcement insofar as it relates to African American males.

Our lives do matter. It is important that if law enforcement officers as a group are to uphold the standards of their profession, they must step across that blue line when they see something that another law enforcement officer does which is illegal or that is not within the bounds of propriety. They must police themselves.

Mr. JEFFRIES. I thank Representative JOHNSON for raising a very important point. This is a difficult conversation. I understand it. It is not easy to have a conversation about law enforcement conduct that crosses the line into illegality, but we have got to ask the question: Is there a blue wall of silence that exists such that good officers who observe inappropriate conduct engaged in by bad officers are afraid to speak the truth about encounters that take place that cross the line?

If, in fact, there is this blue wall of silence, I ask the question: How can that be good for our democracy when it means that a victim of police violence in most instances will never get equal protection under the law consistent with the 14th Amendment because of this almost impenetrable blue wall of silence?

□ 1930

As we have this conversation about what we are going to do about police violence, it should be a Democratic conversation and a Republican conversation, a Black, a White, a Latino, and an Asian conversation, a blue State conversation—it happened in New York—a red State conversation—it happened in South Carolina. This is an American problem.

I thank the distinguished gentleman for raising this issue. It is a difficult one, but we weren't sent here to the United States Congress to run away from difficult issues when it is impacting the people we represent. We have got to run toward difficult issues and try to confront them.

Mr. JOHNSON of Georgia. That thin blue line or that blue wall of silence is not a good thing for a democracy; it is

not a good thing for freedom. The truth is that, when one's freedom is taken away, it affects potentially all of us in having our freedoms taken away.

The truth is that all Americans are at risk when bad actors in law enforcement are allowed to act badly and with impunity. All Americans are at risk.

I know that, Congressman JEFFRIES, you represent New York, and I know that when the two officers lost their lives at the hand of a bad guy who ambushed and killed two innocent police officers in New York, thousands of police officers came to the funeral to see off their fallen brothers, as they should do. Many other Americans watched on TV.

I was, quite frankly, greatly disturbed when the police officers—some of the New York officers—turned their backs on the civilian head of the city of New York. They turned their backs to the mayor as he was speaking at the funeral, a sign of disrespect for civilian authority.

That attitude contributes to the thinking of some law enforcement officers that it is okay and that whatever they do is acceptable. The police organizations must come to grips with the fact that they have a responsibility to do the right thing when one of their own does the wrong thing. They have a responsibility to do so.

I know that many, many police departments don't pay their officers very well. Civil servants, in general, are not paid commensurate with the value of their services to the people that they are serving, and police are no different than that.

Police officers have the same concerns that we have, that civilians have. Sometimes, they have problems at home with their wives. They have problems with their children. They have bills to pay. They might be a little bit behind. They have a lot of pressure.

I think we should do a little more in the area of mental health evaluation and counseling and help for our officers. We should encourage them to come forward if they are hurting. It should be a part of the culture of law enforcement that you are not too big and not too powerful to be able to ask for the help that you need. Our society should be willing to give them that help, and we should be willing to pay for it as well.

This issue of Black males being killed by police officers, there are no simple solutions. There are a number of solutions that can help make this situation better. That is why we in Congress and others in State legislatures and city councils and county commissions should be discussing this issue.

We should be trying to do what is necessary to break down the systemic problems that have led to this result and to do something about those problems, to get those problems alleviated and eventually eliminated.

I am so happy that you have seen, Congressman JEFFRIES, the need for this to be a topic of discussion, and I deeply appreciate the opportunity to come here and to participate in this discussion with you. I will let you know that I am looking forward to continuing to work with you as we do what we know that we need to do in order for Congress to address this issue.

Mr. JEFFRIES. I thank the gentleman from Georgia for his continued leadership and involvement in this issue in trying to bring about resolution.

As we prepare to close, let me, again, make clear that, in my view and the view of, I believe, many throughout this body and across this country, we know that the police officers—the overwhelming majority of law enforcement officials—go to work every day trying to do the right thing.

It is a difficult job; but, because you have the capacity to take a life, we have got to make sure that, when you exercise deadly force, that it is deployed only in circumstances where it is absolutely necessary, not a choke hold resulting in the strangulation of someone who is selling untaxed cigarettes, who pleads for his life 11 times and is killed on video for all of his six children to see.

We don't want to see deadly force used when someone who has been tased is running away. The Supreme Court said in 1985 that you can't use deadly force to stop a fleeing felon. Walter Scott wasn't even a felon. He stopped him because he had a broken taillight.

We just want to make sure that, in America, there is a balance between effective law enforcement on the one hand and a healthy respect for the Constitution and for civil rights and for equal protection under the law for everyone on the other. That is our objective.

Mr. Speaker, I yield back the balance of my time.

Ms. EDDIE BERNICE JOHNSON of Texas. Mr. Speaker, on April 4, 2015 in North Charleston, South Carolina, following a traffic stop in broad daylight, Walter Scott was fatally shot by police officer Michael Slager. This tragedy once again brings to the forefront an issue that continues to plague communities nationwide—the alarming rate of African American deaths at the hands of law enforcement officers. Particularly troubling about this tragedy, is the video footage showing the officer firing eight times as Walter Scott is running away.

Walter Scott was a human whose life had value. He was a father, a brother, a son and a friend. His status as an American citizen gave him the right to due process. He should not have been killed by a police officer who acted, without authority, as judge, jury and executioner.

Time and again, African American families have grieved over their fathers, brothers, husbands and sons, who have been taken too soon by officers deputized with the power to protect them. The frequency of these tragedies continues to play into the deeply painful narrative that black life is not valued in this country. When I think of Walter Scott, I think of Edward Garner, Anthony Baez, Amadou Diallo, Anthony Lee, and Oscar Grant. I think of their grieving families and their lost futures. I am deeply saddened that the list of unarmed black men killed by police continues to grow.

Where do we go from here?

I would echo the words of Albert Einstein: "the world will not be destroyed by those who do evil, but by those who watch them without doing anything." We must all act to protect the lives of our friends and neighbors. As a country, we must commit to recognizing the humanity in others. Before we identify with any race, religion, gender, or sexual preference, we are all human.

It is not likely that, in the absence of Mr. Feidin Santana's cell phone video, Michael Slager would ever face criminal charges. It is not likely that the investigators who investigate the police would have concluded that the officer's account of the shooting was fabricated. It is likely that, in the absence of one bystander's courage, Walter Scott would have been villainized and the police officer who gunned him down would have gotten away with murder. From this point forward, we must all have the courage to speak up and confront injustice.

LEAVE OF ABSENCE

By unanimous consent, leave of absence was granted to:

Mr. DUNCAN of South Carolina (at the request of Mr. MCCARTHY) for today and the balance of the week on account of a family emergency.

ADJOURNMENT

Mr. JEFFRIES. Mr. Speaker, I move that the House do now adjourn.

The motion was agreed to; accordingly (at 7 o'clock and 39 minutes p.m.), under its previous order, the House adjourned until tomorrow, Wednesday, April 15, 2015, at 10 a.m. for morning-hour debate.

EXECUTIVE COMMUNICATIONS, ETC.

Under clause 2 of rule XIV, executive communications were taken from the Speaker's table and referred as follows:

1073. A letter from the Under Secretary, Personnel and Readiness, Department of Defense, transmitting a letter on the approved retirement of General Janet C. Wolfenbarger, United States Air Force, and her advancement to the grade of general on the retired list; to the Committee on Armed Services.

1074. A letter from the Under Secretary, Personnel and Readiness, Department of Defense, transmitting a letter on the approved retirement of Lieutenant General Thomas W. Travis, United States Air Force, and his advancement to the grade of lieutenant general on the retired list; to the Committee on Armed Services.

1075. A letter from the Under Secretary, Personnel and Readiness, Department of Defense, transmitting a letter on the approved retirement of Lieutenant General Salvatore A. Angelella, United States Air Force, and his advancement to the grade of lieutenant General on the retired list; to the Committee on Armed Services.

1076. A letter from the Under Secretary, Personnel and Readiness, Department of Defense, transmitting a letter on the approved

retirement of Lieutenant General Brooks L. Bash, United States Air Force, and his advancement to the grade of lieutenant general on the retired list; to the Committee on Armed Services.

1077. A letter from the Under Secretary, Personnel and Readiness, Department of Defense, transmitting a letter on the approved retirement of Lieutenant General Judith A. Fedder, United States Air Force, and her advancement to the grade of lieutenant general on the retired list; to the Committee on Armed Services.

1078. A letter from the Under Secretary, Personnel and Readiness, Department of Defense, transmitting authorization for ten officers to wear the insignia of the grade of major general or brigadier general, as indicated, in accordance with 10 U.S.C. 777; to the Committee on Armed Services.

1079. A letter from the Under Secretary, Department of Defense, transmitting the Department's Evaluation of the TRICARE Program for FY 2015, pursuant to Sec. 717 of the National Defense Authorization Act for FY 1996, Pub. L. 104-106, as amended by Sec. 714 of the National Defense Authorization Act for FY 2013, Pub. L. 112-239; to the Committee on Armed Services.

1080. A letter from the Chairman, Federal Deposit Insurance Corporation, transmitting the 2014 report to Congress on the Office of Minority and Women Inclusion, pursuant to Sec. 342(e) of the Dodd-Frank Wall Street Reform and Consumer Protection Act; to the Committee on Financial Services.

1081. A letter from the Director, Office of Public and Congressional Affairs, National Credit Union Administration, transmitting the annual report to Congress of the Office of Minority and Women Inclusion for calendar year 2014, in accordance with Sec. 342 of the Dodd-Frank Wall Street Reform and Consumer Protection Act; to the Committee on Financial Services.

1082. A letter from the Director, Regulations and Policy Management Staff, FDA, Department of Health and Human Services, transmitting the Department's final rule — Advisory Committee; Anti-Infective Drugs Advisory Committee [Docket No.: FDA-2009-N-0443] received April 8, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

1083. A letter from the Assistant Secretary for Legislation, Department of Health and Human Services, transmitting the FY 2014 report on user fee collections and related expenses, as required by the Generic Drug User Fee Amendments of 2012; to the Committee on Energy and Commerce.

1084. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Approval and Promulgation of Air Quality Implementation Plans; State of Montana Second 10-Year Carbon Monoxide Maintenance Plan for Billings [EPA-R08-OAR-2012-0352; FRL-9925-51-Region 8] received March 27, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

1085. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Approval and Promulgation of Air Quality Implementation Plans; State of Montana Second 10-Year Carbon Monoxide Maintenance Plan for Great Falls [EPA-R08-OAR-2012-0353; FRL-9925-50-Region 8] received March 27, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

1086. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — National Oil and Hazardous Substances Pollution Contingency Plan (NCP); Amending the NCP for Public Notices for Specific Superfund Activities [EPA-HQ-SFUND-2014-0620; FRL-9924-66-OSWER] (RIN: 2050-AG76) received March 27, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

1087. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Approval and Promulgation of Federal Implementation Plan for Oil and Natural Gas Well Production Facilities; Fort Berthold Indian Reservation (Mandan, Hidatsa and Arikara Nation), North Dakota; Correction [EPA-R08-OAR-2012-0479; FRL-9923-70-Region 8] received March 27, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

1088. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's withdrawal of a direct final rule — Approval and Promulgation of Implementation Plans; New Mexico; Transportation Conformity and Conformity of General Federal Actions [EPA-R06-OAR-2011-0938 FRL-9925-86-Region 6] received April 10, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

1089. A letter from the Secretary, Department of Commerce, transmitting a report certifying that the export of the listed items to four different end users in the People's Republic of China is not detrimental to the U.S. space launch industry, pursuant to Sec. 1512 of the Strom Thurmond National Defense Authorization Act for FY 1999 (Pub. L. 105-261), as amended by Sec. 146 of the Omnibus Consolidated and Emergency Supplemental Appropriations Act for FY 1999 (Pub. L. 105-277), and the President's September 29, 2009 delegation of authority (74 Fed. Reg. 50,913 (Oct. 2, 2009)); to the Committee on Foreign Affairs.

1090. A letter from the Secretary, Department of the Treasury, transmitting as required by Sec. 401(c) of the National Emergencies Act, 50 U.S.C. 1641(c), and Sec. 204(c) of the International Emergency Economic Powers Act, 50 U.S.C. 1703(c), and pursuant to Executive Order 13313 of July 31, 2003, a six-month periodic report on the national emergency with respect to persons who commit, threaten to commit, or support terrorism that was declared in Executive Order 13224 of September 23, 2001; to the Committee on Foreign Affairs.

1091. A letter from the Secretary, Department of the Treasury, transmitting as required by Sec. 401(c) of the National Emergencies Act, 50 U.S.C. 1641(c), and Sec. 204(c) of the International Economic Powers Act, 50 U.S.C. 1703(c), transmitting a six-month periodic report on the national emergency with respect to Syria that was declared in Executive Order 13338 of May 11, 2004; to the Committee on Foreign Affairs.

1092. A letter from the Secretary, Department of the Treasury, transmitting as required by Sec. 401(c) of the National Emergencies Act, 50 U.S.C. 1641(c), and Sec. 204(c) of the International Emergency Economic Powers Act, 50 U.S.C. 1703(c), a six-month periodic report on the national emergency with respect to the Central African Republic that was declared in Executive Order 13667 of May 12, 2014; to the Committee on Foreign Affairs.

1093. A letter from the Superintendent, Executive Secretary, Roosevelt Campobello International Park Commission, transmitting the Fifty-first Annual Report of the Roosevelt Campobello International Park Commission's year-end audit of the Commission's financial records as of December 31, 2014; to the Committee on Foreign Affairs.

1094. A letter from the Secretary, Department of Commerce, transmitting a listing of two vacant positions within the Department of Commerce that require Presidential appointment and Senate confirmation; to the Committee on Oversight and Government Reform.

1095. A letter from the Chairman, Federal Deposit Insurance Corporation, transmitting the Corporation's FY 2014 annual report, pursuant to Sec. 203 of the Notification and Federal Employee Antidiscrimination and Retaliation Act of 2002 (No FEAR Act), Pub. L. 107-174; to the Committee on Oversight and Government Reform.

1096. A letter from the Secretary, Federal Trade Commission, transmitting the Commission's FY 2014 annual report, as required by Sec. 203 of the Notification and Federal Employee Antidiscrimination and Retaliation Act of 2002, Pub. L. 107-174; to the Committee on Oversight and Government Reform.

1097. A letter from the Chairman, Nuclear Regulatory Commission, transmitting the Commission's FY 2014 annual report, pursuant to Sec. 203 of the Notification and Federal Employee Antidiscrimination and Retaliation Act of 2002 (No FEAR Act), Pub. L. 107-174; to the Committee on Oversight and Government Reform.

1098. A letter from the Senior Procurement Executive, Office of Acquisition Policy, General Services Administration, transmitting the Administration's interim rule — Federal Acquisition Regulation; Federal Acquisition Circular 2005-81; Introduction [Docket No.: FAR 2015-0051, Sequence 1] received April 10, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Oversight and Government Reform.

1099. A letter from the General Counsel and Senior Policy Advisor, Office of Management and Budget, Executive Office of the President, transmitting a report pursuant to the Federal Vacancies Reform Act of 1998 regarding a vacancy in a Senate-confirmed position in the Office of Management and Budget; to the Committee on Oversight and Government Reform.

1100. A letter from the Chief Judge, Superior Court of the District of Columbia, transmitting the Family Court 2014 Annual Report, pursuant to the District of Columbia Family Court Act of 2001 (Pub. L. 107-114); to the Committee on Oversight and Government Reform.

1101. A letter from the Chairman, U.S. Merit Systems Protection Board, transmitting the Board's FY 2014 annual report, pursuant to Sec. 203 of the Notification and Federal Employee Antidiscrimination and Retaliation Act of 2002 (No FEAR Act), Pub. L. 107-174; to the Committee on Oversight and Government Reform.

1102. A letter from the Deputy Assistant Administrator for Regulatory Programs, NMFS, Office of Sustainable Fisheries, National Oceanic and Atmospheric Administration, transmitting the Administration's temporary rule — Magnuson-Stevens Fishery Conservation and Management Act Provisions; Fisheries of the Northeastern United States; Northeast Groundfish Fishery; Fishing Year 2014; Interim Gulf of Maine Cod Management Measures; Correction [Docket No.: 141002822-5169-03] (RIN: 0648-BE56) received April 8, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Natural Resources.

1103. A letter from the Deputy Assistant Administrator for Regulatory Programs, NMFS, National Oceanic and Atmospheric Administration, transmitting the Administration's final rule — Fisheries of the Caribbean, Gulf of Mexico, and South Atlantic; Shrimp Fishery of the Gulf of Mexico; Amendment 16 [Docket No.: 140903744-5258-02] (RIN: 0648-BE46) received April 8, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Natural Resources.

1104. A letter from the Director, Office of Sustainable Fisheries, NMFS, National Oceanic and Atmospheric Administration, transmitting the Administration's temporary rule — Fisheries of the Exclusive Economic Zone Off Alaska; Pacific Cod by Vessels Using Pot Gear in the Central Regulatory Area of the Gulf of Alaska [Docket No.: 130925836-4174-02] (RIN: 0648-XD714) received April 8, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Natural Resources.

1105. A letter from the Assistant Administrator for Fisheries, NMFS, National Oceanic and Atmospheric Administration, transmitting the Administration's final rule — Magnuson-Stevens Act Provisions; Fisheries Off West Coast States; Pacific Coast Groundfish Fishery; 2015-2016 Biennial Specifications and Management Measures; Amendment 24 [Docket No.: 140904754-5188-02] (RIN: 0648-BE27) received April 8, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Natural Resources.

1106. A letter from the Acting Director, Office of Sustainable Fisheries, NMFS, National Oceanic and Atmospheric Administration, transmitting the Administration's temporary rule — Fisheries of the Exclusive Economic Zone Off Alaska; Pacific Cod in the Western Aleutian Islands District of the Bering Sea and Aleutian Islands Management Area [Docket No.: 131021878-4158-02] (RIN: 0648-XD780) received April 8, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Natural Resources.

1107. A letter from the Deputy Assistant Administrator for Regulatory Programs, NMFS, National Oceanic and Atmospheric Administration, transmitting the Administration's final rule — Fisheries of the Exclusive Economic Zone Off Alaska; Groundfish of the Gulf of Alaska; Groundfish of the Bering Sea and Aleutian Islands Off Alaska [Docket No.: 140218151-5171-02] (RIN: 0648-BD98) received April 8, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Natural Resources.

1108. A letter from the Acting Director, Office of Sustainable Fisheries, NMFS, National Oceanic and Atmospheric Administration, transmitting the Administration's temporary rule — Fisheries of the Caribbean, Gulf of Mexico, and South Atlantic; Coastal Migratory Pelagic Resources of the Gulf of Mexico and South Atlantic; 2015 Commercial Run-Around Gillnet Closure [Docket No.: 101206604-1758-02] (RIN: 0648-XD731) received April 8, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Natural Resources.

1109. A letter from the Acting Director, Office of Sustainable Fisheries, NMFS, National Oceanic and Atmospheric Administration, transmitting the Administration's temporary rule — Fisheries of the Exclusive Economic Zone Off Alaska; Pacific Cod by Trawl Catcher Vessels in the Western Regulatory Area of the Gulf of Alaska [Docket No.: 140918791-4999-02] (RIN: 0648-XD823) received April 8, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Natural Resources.

1110. A letter from the Acting Director, Office of Sustainable Fisheries, NMFS, National Oceanic and Atmospheric Administration, transmitting the Administration's temporary rule — Fisheries of the Caribbean, Gulf of Mexico, and South Atlantic; Snapper-Grouper Resources of the South Atlantic; Trip Limit Reduction [Docket No.: 130312235-3658-02] (RIN: 0648-XD733) received April 8, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Natural Resources.

1111. A letter from the Director, Office of Sustainable Fisheries, NMFS, National Oceanic and Atmospheric Administration, transmitting the Administration's temporary rule — Fisheries of the Northeastern United States; Summer Flounder Fishery; Quota Transfer [Docket No.: 140117052-4402-02] (RIN: 0648-XD799) received April 8, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Natural Resources.

1112. A letter from the Chairman, Federal Maritime Commission, transmitting the 53rd Annual Report covering the activities of the Commission for FY 2014, pursuant to Sec. 103(e) of the Reorganization Plan No. 7 of 1961, and Sec. 208 of the Merchant Marine Act, 1936, 46 U.S.C. 306(a); to the Committee on Transportation and Infrastructure.

1113. A letter from the Vice President, Government Relations, Tennessee Valley Authority, transmitting the Authority's Statistical Summary for FY 2014; to the Committee on Transportation and Infrastructure.

1114. A letter from the Chief, Publications and Regulations Branch, Internal Revenue Service, transmitting the Service's final and temporary regulations — Allocation of Controlled Group Research Credit [TD 9717] (RIN: 1545-BL77) received April 10, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Ways and Means.

1115. A letter from the Chief, Publications and Regulations Branch, Internal Revenue Service, transmitting the Service's IRB only rule — EPCRS Update Relating to Plans with Automatic Contribution Features (Rev. Proc. 2015-28) received April 10, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Ways and Means.

1116. A letter from the Staff performing the duties of the Assistant Secretary, Legislative Affairs, Department of Defense, transmitting additional legislative proposals from the Department of Defense as a follow up to an earlier transmittal of a request for enactment of proposed legislation titled the ''National Defense Authorization Act for Fiscal Year 2016''; jointly to the Committees on Armed Services, Financial Services, Ways and Means, Foreign Affairs, Education and the Workforce, Veterans' Affairs, and the Judiciary.

REPORTS OF COMMITTEES ON PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XIII, reports of committees were delivered to the Clerk for printing and reference to the proper calendar, as follows:

Mr. CHAFFETZ: Committee on Oversight and Government Reform. H.R. 1562. A bill to prohibit the awarding of a contract or grant in excess of the simplified acquisition threshold unless the prospective contractor or grantee certifies in writing to the agency awarding the contract or grant that the contractor or grantee has no seriously delinquent tax debts, and for other purposes (Rept. 114–72). Referred to the Committee of the Whole House on the state of the Union.

Mr. CHAFFETZ: Committee on Oversight and Government Reform. H.R. 1563. A bill to amend title 5, United States Code, to provide that individuals having seriously delinquent tax debts shall be ineligible for Federal employment, and for other purposes (Rept. 114–73, Pt. 1). Referred to the Committee of the Whole House on the state of the Union.

Mr. STIVERS: Committee on Rules. House Resolution 200. Resolution providing for consideration of the bill (H.R. 622) to amend the Internal Revenue Code of 1986 to make permanent the deduction of State and local general sales taxes; providing for consideration of the bill (H.R. 1105) to amend the Internal Revenue Code of 1986 to repeal the estate and generation-skipping transfer taxes, and for other purposes; and providing for consideration of the bill (H.R. 1195) to amend the Consumer Financial Protection Act of 2010 to establish advisory boards, and for other purposes (Rept. 114–74). Referred to the House Calendar.

DISCHARGE OF COMMITTEE

Pursuant to clause 2 of rule XIII, the Committee on House Administration discharged from further consideration. H.R. 1563 referred to the Committee of the Whole House on the state of the Union.

PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XII, public bills and resolutions of the following titles were introduced and severally referred, as follows:

By Mr. LOUDERMILK (for himself, Mr. SMITH of Texas, Mr. SENSENBRENNER, Mr. JOHNSON of Ohio, Mr. BRIDENSTINE, and Mrs. COMSTOCK):

H.R. 1764. A bill to provide for the designation of the United States Chief Technology Officer; to the Committee on Oversight and Government Reform, and in addition to the Committee on Science, Space, and Technology, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mrs. HARTZLER:

H.R. 1765. A bill to require the Administrator of the Federal Emergency Management Agency to submit a report regarding certain plans regarding assistance to applicants and grantees during the response to an emergency or disaster; to the Committee on Transportation and Infrastructure.

By Mr. PITTENGER:

H.R. 1766. A bill to amend the Equal Credit Opportunity Act to repeal a small business loan data collection requirement; to the Committee on Financial Services.

By Mr. ROE of Tennessee (for himself, Mr. KLINE, and Mr. TOM PRICE of Georgia):

H.R. 1767. A bill to amend the National Labor Relations Act to require that lists of employees eligible to vote in organizing elections be provided to the National Labor Relations Board; to the Committee on Education and the Workforce.

By Mr. KLINE (for himself, Mr. ROE of Tennessee, and Mr. TOM PRICE of Georgia):

H.R. 1768. A bill to amend the National Labor Relations Act with respect to the timing of elections and pre-election hearings and the identification of pre-election issues; to the Committee on Education and the Workforce.

By Mr. BENISHEK (for himself, Mr. HONDA, and Ms. ESTY):

H.R. 1769. A bill to establish in the Department of Veterans Affairs a national center for research on the diagnosis and treatment of health conditions of the descendants of veterans exposed to toxic substances during service in the Armed Forces that are related to that exposure, to establish an advisory board on such health conditions, and for other purposes; to the Committee on Veterans' Affairs, and in addition to the Committee on Armed Services, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mrs. BLACKBURN (for herself, Mr. WELCH, Mr. BURGESS, and Mr. UPTON):

H.R. 1770. A bill to require certain entities who collect and maintain personal information of individuals to secure such information and to provide notice to such individuals in the case of a breach of security involving such information, and for other purposes; to the Committee on Energy and Commerce.

By Mr. MULLIN:

H.R. 1771. A bill to amend title XIX of the Social Security Act to count portions of income from annuities of a community spouse as income available to institutionalized spouses for purposes of eligibility for medical assistance, and for other purposes; to the Committee on Energy and Commerce.

By Mr. CARNEY (for himself, Mr. GIBSON, Mrs. WATSON COLEMAN, Mr. DENT, Mr. FATTAH, Mr. LOBIONDO, Mr. CARTWRIGHT, Mr. MEEHAN, Mr. NORCROSS, Mr. COSTELLO of Pennsylvania, Mr. FRELINGHUYSEN, Mr. SMITH of New Jersey, Mr. BRENDAN F. BOYLE of Pennsylvania, Mr. FITZPATRICK, Mr. BRADY of Pennsylvania, and Mr. MACARTHUR):

H.R. 1772. A bill to direct the Secretary of the Interior to establish a nonregulatory program to build on and help coordinate funding for restoration and protection efforts of the 4-State Delaware River Basin region, and for other purposes; to the Committee on Natural Resources, and in addition to the Committee on Transportation and Infrastructure, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. MARCHANT (for himself and Mr. KIND):

H.R. 1773. A bill to amend the Harmonized Tariff Schedule of the United States to exempt from duty residue of bulk cargo contained in instruments of international traffic previously exported from the United States; to the Committee on Ways and Means.

By Mr. GRIFFITH (for himself and Mr. BLUMENAUER):

H.R. 1774. A bill to provide for the rescheduling of marihuana, the medical use of marihuana in accordance with State law, and the exclusion of cannabidiol from the definition of marihuana, and for other purposes; to the Committee on Energy and Commerce, and in addition to the Committee on the Judiciary, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. EDWARDS (for herself, Mr. CONNOLLY, Ms. NORTON, Ms. MOORE, Mr. DELANEY, Mr. CARTWRIGHT, Mr. CÁRDENAS, Mr. HECK of Washington, Ms. JUDY CHU of California, Mr. ISRAEL, Mrs. LAWRENCE, Mr. VAN HOLLEN, Ms. ESTY, Ms. JACKSON LEE, Mr. COHEN, Mr. PRICE of North Carolina, Mr. KILMER, Mr. RUSH, and Mr. QUIGLEY):

H.R. 1775. A bill to establish centers of excellence for innovative stormwater control infrastructure, and for other purposes; to the Committee on Transportation and Infrastructure, and in addition to the Committee on Science, Space, and Technology, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. GRAYSON (for himself and Mr. CARTWRIGHT):

H.R. 1776. A bill to amend title 31, United States Code, to provide for automatic continuing resolutions; to the Committee on Appropriations.

By Mr. CHAFFETZ (for himself and Mr. CUMMINGS):

H.R. 1777. A bill to amend the Act of August 25, 1958, commonly known as the ''Former Presidents Act of 1958'', with respect to the monetary allowance payable to a former President, and for other purposes; to the Committee on Oversight and Government Reform.

By Ms. BONAMICI:

H.R. 1778. A bill to amend the Internal Revenue Code of 1986 and the Consumer Financial Protection Act of 2010 to regulate tax return preparers and refund anticipation payment arrangements, and for other purposes; to the Committee on Ways and Means, and in addition to the Committee on Financial Services, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. YARMUTH (for himself and Mr. REICHERT):

H.R. 1779. A bill to reauthorize the Runaway and Homeless Youth Act; and for other purposes; to the Committee on Education and the Workforce, and in addition to the Committee on the Judiciary, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. SEWELL of Alabama (for herself and Mr. KIND):

H.R. 1780. A bill to amend the Internal Revenue Code of 1986 to enhance the dependent care tax credit, and for other purposes; to the Committee on Ways and Means.

By Ms. SEWELL of Alabama (for herself, Mr. BYRNE, Mr. RYAN of Ohio, Mr. VAN HOLLEN, Mr. RUIZ, Mr. CROWLEY, and Mr. CARNEY):

H.R. 1781. A bill to amend the Internal Revenue Code of 1986 to allow employers a credit against income tax for wages paid to employees who participate in qualified apprenticeship programs; to the Committee on Ways and Means.

By Mr. SMITH of New Jersey (for himself, Ms. ROS-LEHTINEN, Mr. DIAZ-BALART, Mr. SIRES, Mr. CURBELO of Florida, Mr. LANCE, Mr. MACARTHUR, Mr. MEADOWS, Mr. FRELINGHUYSEN, and Mr. LOBIONDO):

H.R. 1782. A bill to promote human rights in Cuba, urge the Cuban Government to meet certain human rights milestones, and for other purposes; to the Committee on Foreign Affairs.

By Mr. GENE GREEN of Texas:

H.R. 1783. A bill to establish the Buffalo Bayou National Heritage Area in the State of Texas, and for other purposes; to the Committee on Natural Resources.

By Ms. JENKINS of Kansas (for herself, Mr. TONKO, Mr. KINZINGER of Illinois, and Mr. RANGEL):

H.R. 1784. A bill to enable hospital-based nursing programs that are affiliated with a hospital to maintain payments under the Medicare program to hospitals for the costs of such programs; to the Committee on Ways and Means.

By Mr. LATTA (for himself, Mr. COOPER, and Mrs. BLACKBURN):

H.R. 1785. A bill to amend the Energy Policy and Conservation Act to provide for the recognition of voluntary verification programs for air conditioning, furnace, boiler, heat pump, and water heater products; to the Committee on Energy and Commerce.

By Mrs. CAROLYN B. MALONEY of New York (for herself, Mr. NADLER, Mr. KING of New York, Mr. GIBSON, Mr. TONKO, Mr. HANNA, Mr. KATKO, Ms. SLAUGHTER, Mr. HIGGINS, Mr. FITZPATRICK, Mr. CONNOLLY, Mr. POCAN, Ms. LOFGREN, Mr. LANCE, Ms. CLARKE of New York, Mr. RANGEL, Mr. CROWLEY, Mr. SERRANO, Mr. ENGEL, Mrs. LOWEY, Mr. SEAN PATRICK MALONEY of New York, Mr. GRIJALVA, Mr. VARGAS, Mr. SMITH of New Jersey, Ms. STEFANIK, Mr. COLLINS of New York, Mr. LARSON of Connecticut, Mr. COURTNEY, Ms. DELAURO, Mr. HIMES, Ms. ESTY, Ms. NORTON, Ms. SCHAKOWSKY, Mr. MCGOVERN, Mr. MACARTHUR, Mr. PALLONE, Mr. SIRES, Mr. PASCRELL, Mrs. WATSON COLEMAN, Mr. ZELDIN, Mr. ISRAEL, Miss RICE of New York, Mr. MEEKS, Ms. MENG, Ms. VELÁZQUEZ, Mr. JEFFRIES, Mr. CÁRDENAS, Mr. LOBIONDO, Mr. LYNCH, Mr. REED, Mr. MURPHY of Florida, Mr. PAYNE, and Mrs. CAPPS):

H.R. 1786. A bill to reauthorize the World Trade Center Health Program and the September 11th Victim Compensation Fund of 2001, and for other purposes; to the Committee on Energy and Commerce, and in addition to the Committees on the Budget, and the Judiciary, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. NORTON:

H.R. 1787. A bill to amend the Fair Labor Standards Act of 1938 to prohibit discrimination in the payment of wages on account of sex, race, or national origin, and for other purposes; to the Committee on Education and the Workforce.

By Mr. PAULSEN (for himself and Mr. KIND):

H.R. 1788. A bill to amend the Internal Revenue Code of 1986 to increase the alternative tax liability limitation for small property and casualty insurance companies; to the Committee on Ways and Means.

By Mr. PAYNE (for himself, Ms. NORTON, Mr. RUSH, Mr. CONNOLLY, Ms. SLAUGHTER, and Mrs. WATSON COLEMAN):

H.R. 1789. A bill to ensure the safety of DOT-111 tank cars by improving standards for new tank cars and upgrading existing tank cars, and for other purposes; to the Committee on Transportation and Infrastructure, and in addition to the Committee on Homeland Security, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. SCHAKOWSKY:

H.R. 1790. A bill to amend the Internal Revenue Code of 1986 to modify the treatment of foreign corporations, and for other purposes; to the Committee on Ways and Means.

By Mr. SENSENBRENNER (for himself and Mr. CONYERS):

H.R. 1791. A bill to amend the patent law to promote basic research, to stimulate publication of scientific documents, to encourage collaboration in scientific endeavors, to improve the transfer of technology to the private sector, and for other purposes; to the Committee on the Judiciary.

By Mr. STEWART:

H.R. 1792. A bill to amend the Federal Land Policy and Management Act of 1976 to authorize the Secretary of the Interior to enter into cooperative agreements with States to provide for State management of grazing permits and leases; to the Committee on Natural Resources.

By Mr. STEWART:

H.R. 1793. A bill to provide a categorical exclusion under the National Environmental Policy Act of 1969 to allow the Director of the Bureau of Land Management and the Chief of the Forest Service to remove Pinyon-Juniper trees to conserve and restore the habitat of the greater sage-grouse and

the mule deer; to the Committee on Natural Resources, and in addition to the Committee on Agriculture, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mrs. HARTZLER (for herself, Mr. FLORES, and Mr. MEADOWS):

H.J. Res. 44. A joint resolution disapproving the action of the Council of the District of Columbia in approving section 3(a) of the Human Rights Amendment Act of 2014; to the Committee on Oversight and Government Reform.

By Ms. FRANKEL of Florida (for herself, Ms. DELAURO, Ms. MATSUI, Ms. EDWARDS, Ms. NORTON, Ms. SPEIER, Mr. HASTINGS, Mr. VARGAS, Ms. BROWN of Florida, Ms. BORDALLO, Mr. CONYERS, Ms. WASSERMAN SCHULTZ, Ms. MCCOLLUM, Mr. TONKO, Ms. CLARKE of New York, Ms. DELBENE, Ms. SCHAKOWSKY, Mr. RANGEL, Mr. PETERS, Ms. WILSON of Florida, Mr. BRADY of Pennsylvania, Mr. LANGEVIN, Mr. LOWENTHAL, Ms. MOORE, Mr. CÁRDENAS, Mr. GRIJALVA, Ms. HAHN, Ms. KELLY of Illinois, Ms. CLARK of Massachusetts, Mr. POCAN, Mr. PAYNE, Mrs. KIRKPATRICK, Mrs. DAVIS of California, Mr. SCHIFF, Mr. KEATING, Ms. PINGREE, Mrs. DINGELL, Mr. SARBANES, Mrs. BUSTOS, Ms. SLAUGHTER, Mr. CARTWRIGHT, Mr. MCGOVERN, Mrs. CAPPS, Ms. TSONGAS, Ms. JACKSON LEE, Ms. SEWELL of Alabama, Mr. BRENDAN F. BOYLE of Pennsylvania, Mr. TAKAI, Ms. SINEMA, Ms. LEE, Ms. JUDY CHU of California, Mr. LEVIN, Mr. KIND, Mr. MEEKS, Ms. KUSTER, Mrs. LAWRENCE, Mrs. TORRES, Mr. VAN HOLLEN, Mr. LEWIS, Mrs. CAROLYN B. MALONEY of New York, Mr. HUFFMAN, Ms. MICHELLE LUJAN GRISHAM of New Mexico, Mr. RUSH, Mr. SHERMAN, Ms. ESTY, Ms. LORETTA SANCHEZ of California, Ms. LINDA T. SÁNCHEZ of California, Mr. SCOTT of Virginia, Mr. CICILLINE, Mr. YARMUTH, Ms. FUDGE, Mr. O'ROURKE, Mr. FOSTER, Ms. BASS, Mr. GARAMENDI, Ms. ESHOO, Mr. BERA, Mr. MURPHY of Florida, Ms. KAPTUR, Mr. JOHNSON of Georgia, Mr. BEYER, Ms. ADAMS, Mr. SMITH of Washington, Mr. NOLAN, Mr. TED LIEU of California, Mrs. BEATTY, Mr. COOPER, Mr. HINOJOSA, Mr. KENNEDY, Mr. GALLEGO, Mr. THOMPSON of California, Mr. PERLMUTTER, Mrs. WATSON COLEMAN, Mr. WELCH, Mr. BLUMENAUER, Mr. MCDERMOTT, Mr. DELANEY, Mr. CARNEY, Mr. COHEN, Ms. BONAMICI, Ms. CASTOR of Florida, Mr. MCNERNEY, Mr. RYAN of Ohio, Mr. KILDEE, Mr. AL GREEN of Texas, Mr. CONNOLLY, Ms. MENG, Mr. HIGGINS, Mr. TAKANO, Mr. ISRAEL, Mr. SERRANO, Mr. CARSON of Indiana, Ms. GABBARD, Mr. COSTA, Mrs. LOWEY, Mr. POLIS, Mr. LYNCH, Ms. DEGETTE, Mr. QUIGLEY, Mr. CASTRO of Texas, Ms. TITUS, Ms. BROWNLEY of California, Mr. SEAN PATRICK MALONEY of New York, Mr. HONDA, Mr. FARR, Mr. KILMER, and Ms. LOFGREN):

H. Con. Res. 35. Concurrent resolution recognizing the significance of Equal Pay Day to illustrate the disparity between wages paid to men and women; to the Committee on Oversight and Government Reform.

By Ms. SPEIER (for herself, Ms. BASS, Mr. BLUMENAUER, Ms. BROWNLEY of California, Mrs. DAVIS of California, Ms. DELBENE, Mr. DEUTCH, Mr. ELLISON, Ms. ESTY, Mr. FARR, Mr. GRIJALVA, Mr. GUTIÉRREZ, Mr. HIGGINS, Mr. HONDA, Mr. KILDEE, Ms. LEE, Mr. TED LIEU of California, Mr. LOWENTHAL, Mrs. CAROLYN B. MALONEY of New York, Mr. MCDERMOTT, Ms. MCCOLLUM, Mr. MURPHY of Florida, Mrs. NAPOLITANO, Mr. PETERS, Mr. POCAN, Ms. SCHAKOWSKY, Mr. SCHIFF, Mr. SHERMAN, Mr. SIRES, Mr. SMITH of Washington, Mr. TAKANO, Ms. TSONGAS, Ms. VELÁZQUEZ, Mr. WELCH, and Mr. SEAN PATRICK MALONEY of New York):

H. Con. Res. 36. Concurrent resolution expressing the sense of Congress that conversion therapy, including efforts by mental health practitioners to change an individual's sexual orientation, gender identity, or gender expression, is dangerous and harmful and should be prohibited from being practiced on minors; to the Committee on Energy and Commerce.

By Ms. FOXX:

H. Res. 199. A resolution electing Members to certain standing committees of the House of Representatives; considered and agreed to. considered and agreed to.

MEMORIALS

Under clause 3 of Rule XII,

13. The SPEAKER presented a memorial of the House of Representatives of the Commonwealth of Kentucky, relative to House Resolution No. 226, urging the Department of Defense and the Army to take action to support the military and civilian personnel serving at Fort Knox and Fort Campbell by reconsidering proposed cuts to these important military installations; to the Committee on Armed Services.

PRIVATE BILLS AND RESOLUTIONS

Under clause 3 of rule XII,

Mr. BARLETTA introduced a bill (H.R. 1794) to authorize the transfer of certain items under the control of the Omar Bradley Foundation to the descendants of General Omar Bradley; which was referred to the Committee on Armed Services.

CONSTITUTIONAL AUTHORITY STATEMENT

Pursuant to clause 7 of rule XII of the Rules of the House of Representatives, the following statements are submitted regarding the specific powers granted to Congress in the Constitution to enact the accompanying bill or joint resolution.

By Mr. LOUDERMILK:

H.R. 1764.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 18:

The Congress shall have power to make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States, or in any Department of Officer thereof.

By Mrs. HARTZLER:

H.R. 1765.

Congress has the power to enact this legislation pursuant to the following:

Article I: Section 8: Clause 3 The United States Congress shall have power

''To regulate Commerce with foreign Nations, and among the several States, and with the Indian Tribes.''

By Mr. PITTENGER:

H.R. 1766.

Congress has the power to enact this legislation pursuant to the following:

The explicit power of Congress to regulate commerce in and among the states, as enumerated in Article 1, Section 8, Clause 3, the Commerce Clause, of the United States Constitution.

Additionally, Article 1, Section 7, Clause 2 of the Constitution allows for every bill passed by the House of Representatives and the Senate and signed by the President to be codified in to law; and therefore implicitly allows Congress to repeal any bill that has been passed by both chambers and signed in to law by the President.

By Mr. ROE of Tennessee:

H.R. 1767.

Congress has the power to enact this legislation pursuant to the following:

Article I, section 8, clause 3 of the Constitution of the United States

By Mr. KLINE:

H.R. 1768.

Congress has the power to enact this legislation pursuant to the following:

Article I, section 8, clause 3 of the Constitution of the United States

By Mr. BENISHEK:

H.R. 1769.

Congress has the power to enact this legislation pursuant to the following:

The United States Constitution, Article 1, Section 8

By Mrs. BLACKBURN:

H.R. 1770.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8 provides that Congress has the authority ''to make all Laws, which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States or in any Department or Officer thereof.''

By Mr. MULLIN:

H.R. 1771.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 18

By Mr. CARNEY:

H.R. 1772.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 18

The Congress shall have Power *** To make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by the Constitution in the Government of the United States, or in any Department or Officer thereof.

Article I, Section 8, Clause 3

The Congress shall have Power *** To regulate Commerce with foreign Nations, and among the several States, and with the Indian Tribes.

By Mr. MARCHANT:

H.R. 1773.

Congress has the power to enact this legislation pursuant to the following:

This trade related bill is addressed under the Constitution's Commerce Clause; Article 1, Section N. 8, Clause 3 of the U.S. Constitution, which gives Congress the power ''to regulate commerce with foreign nations, and among the several states, and with the Indian tribes.''

By Mr. GRIFFITH:

H.R. 1774.

Congress has the power to enact this legislation pursuant to the following:

This bill is enacted pursuant to the power granted to Congress under Article I, Section 8 of the United States Constitution.

By Ms. EDWARDS:

H.R. 1775.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section I.

All legislative Powers herein granted shall be vested in a Congress of the United States, which shall consist of a Senate and House of Representatives.

By Mr. GRAYSON:

H.R. 1776.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8 of the Constitution of the United States.

By Mr. CHAFFETZ:

H.R. 1777.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 18 of the United States Constitution

By Ms. BONAMICI:

H.R. 1778.

Congress has the power to enact this legislation pursuant to the following:

1) Art. I, Sec. 8, Cl. 1

2) Amdt. XVI

By Mr. YARMUTH:

H.R. 1779.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8 of the Constitution of the United States

By Ms. SEWELL of Alabama:

H.R. 1780.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 1 and the sixteenth amendment

By Ms. SEWELL of Alabama:

H.R. 1781.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 1 and the sixteenth amendment

By Mr. SMITH of New Jersey:

H.R. 1782.

Congress has the power to enact this legislation pursuant to the following:

Article I, section 8 of the Constitution

By Mr. GENE GREEN of Texas:

H.R. 1783.

Congress has the power to enact this legislation pursuant to the following:

Clause 2 of Section 3 of Article IV of the Constitution:

The Congress shall have Power to dispose of and make all needful Rules and Regulations respecting the Territory or other Property belonging to the United States; and nothing in this Constitution shall be so construed as to Prejudice any Claims of the United States, or of any particular State.

By Ms. JENKINS of Kansas:

H.R. 1784.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8:

The Congress shall have Power To lay and collect Taxes, Duties, Imposts and Excises, to pay the Debts and provide for the common Defense and general Welfare of the United States.

By Mr. LATTA:

H.R. 1785.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 3

To regulate Commerce with foreign Nations, and among the several States, and with the Indian Tribes;

By Mrs. CAROLYN B. MALONEY of New York:

H.R. 1786.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 3: The Congress shall have Power * * * To regulate Commerce with foreign Nations, and among the several States, and with the Indian Tribes.

By Ms. NORTON:

H.R. 1787.

Congress has the power to enact this legislation pursuant to the following:

clauses 3 and 18 of section 8 of article I of the Constitution.

By Mr. PAULSEN:

H.R. 1788.

Congress has the power to enact this legislation pursuant to the following:

Clause 1 of Section 8 of Article I of the United States Constitution.

By Mr. PAYNE:

H.R. 1789.

Congress has the power to enact this legislation pursuant to the following:

The constitutional authority on which this bill rests is the power of Congress to make rules for the government and regulation of the land and naval forces, as enumerated in Article I, Section 8, Clause 14 of the United States Constitution

By Ms. SCHAKOWSKY:

H.R. 1790.

Congress has the power to enact this legislation pursuant to the following:

Congress has the power to enact this legislation pursuant to the following:

Article I, Section VIII.

By Mr. SENSENBRENNER:

H.R. 1791.

Congress has the power to enact this legislation pursuant to the following:

Clause 8 of Section 8, Article I

By Mr. STEWART:

H.R. 1792.

Congress has the power to enact this legislation pursuant to the following:

''The Congress shall have power to dispose of and make all needful Rules and Regulations respecting the Territory or other Property belonging to the United States; and nothing in this Constitution shall be so construed as to Prejudice any Claims of the United States, or of any particular State.'' Article IV, Section 3, paragraph 2

By Mr. STEWART:

H.R. 1793.

Congress has the power to enact this legislation pursuant to the following:

''To make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States or or in any Department or Officer thereof.'' Article I, Section 8

By Mr. BARLETTA:

H.R. 1794.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8 of the Constitution of the United States.

By Mrs. HARTZLER:

H.J. Res. 44.

Congress has the power to enact this legislation pursuant to the following:

Article I: Section 8: Clause 17 The United States Congress shall have power

''To exercise exclusive Legislation in all Cases whatsoever, over such District (not exceeding ten Miles square) as may, by Cession of particular States, and the Acceptance of Congress, become the Seat of Government of the United States, and to exercise like Authority over all Places purchased by the Consent of the Legislature of the State in which the same shall be, for the Erection of Forts, Magazines, Arsenals, dock-Yards, and other needful Buildings.''

ADDITIONAL SPONSORS

Under clause 7 of rule XII, sponsors were added to public bills and resolutions, as follows:

H.R. 29: Mr. SANFORD.

H.R. 91: Mr. PALAZZO, Mr. DUNCAN of Tennessee, Mr. BRADY of Pennsylvania, Mr. JONES, Mr. COOPER, and Mr. RIBBLE.

H.R. 93: Mr. SIRES.

H.R. 131: Mr. BROOKS of Alabama, Mr. SALMON, Mr. MOONEY of West Virginia, Mr. LAMALFA, Mr. CARTER of Texas, Mr. DUNCAN of South Carolina, Mr. BLUM, Mr. BARR, Mr. LATTA, Mr. GROTHMAN, Mr. COLE, and Mrs. MILLER of Michigan.

H.R. 169: Ms. STEFANIK.

H.R. 170: Ms. STEFANIK.

H.R. 204: Mr. AUSTIN SCOTT of Georgia.

H.R. 213: Mr. REICHERT, Mr. SMITH of Washington, Mr. HONDA, and Mr. LARSEN of Washington.

H.R. 223: Mr. BISHOP of Michigan.

H.R. 228: Mr. GUINTA.

H.R. 231: Mr. NUGENT and Mr. YOHO.

H.R. 235: Mr. AUSTIN SCOTT of Georgia, Mr. BROOKS of Alabama, Mr. MOONEY of West Virginia, Mr. BOST, and Mr. SCHWEIKERT.

H.R. 242: Mr. BERA, Mrs. CAPPS, and Mr. LIPINSKI.

H.R. 266: Mr. DUNCAN of South Carolina.

H.R. 282: Mr. HUFFMAN.

H.R. 317: Mr. PETERS.

H.R. 320: Mr. CHABOT.

H.R. 344: Ms. WILSON of Florida.

H.R. 348: Mr. YOUNG of Alaska.

H.R. 359: Mr. JOYCE, Mr. COSTELLO of Pennsylvania, and Mr. LOBIONDO.

H.R. 427: Mr. BUCK.

H.R. 445: Mr. RENACCI.

H.R. 456: Mr. GIBSON.

H.R. 465: Mr. COLE.

H.R. 472: Mr. MACARTHUR.

H.R. 484: Mr. COSTELLO of Pennsylvania.

H.R. 495: Mr. HUFFMAN.

H.R. 504: Ms. CASTOR of Florida, Mr. MCKINLEY, and Mr. KINZINGER of Illinois.

H.R. 523: Mr. MCDERMOTT, Mr. RANGEL, and Mr. DAVID SCOTT of Georgia.

H.R. 532: Mr. SMITH of Washington, Ms. MOORE, Ms. LOFGREN, Ms. CLARK of Massachusetts, Ms. WILSON of Florida, and Mr. SEAN PATRICK MALONEY of New York.

H.R. 540: Mr. SANFORD.

H.R. 542: Mr. NOLAN, Mr. LOEBSACK, Mr. DENT, and Ms. PINGREE.

H.R. 565: Mr. PASCRELL.

H.R. 571: Mr. MURPHY of Pennsylvania.

H.R. 581: Mr. MURPHY of Pennsylvania.

H.R. 587: Ms. WILSON of Florida.

H.R. 592: Mr. HECK of Nevada, Mrs. NAPOLITANO, Ms. STEFANIK, and Mrs. TORRES.

H.R. 600: Mr. UPTON and Ms. HERRERA BEUTLER.

H.R. 606: Mr. YOUNG of Indiana and Mr. RENACCI.

H.R. 619: Mr. POCAN and Mr. ELLISON.

H.R. 625: Mr. MCKINLEY.

H.R. 628: Mr. HIMES, Ms. PINGREE, and Mr. SENSENBRENNER.

H.R. 632: Mr. BLUMENAUER, Mr. NEAL, Mr. HONDA, Mr. CAPUANO, Mr. ROSS, Ms. CLARKE of New York, Mr. MOULTON, Mr. LOEBSACK, and Mr. LUETKEMEYER.

H.R. 649: Mr. CONYERS.

H.R. 653: Mr. CARTWRIGHT, Mr. PAYNE, Mr. LIPINSKI, and Ms. GABBARD.

H.R. 662: Mr. JORDAN.

H.R. 681: Mr. PERLMUTTER.

H.R. 699: Mr. MOONEY of West Virginia, Mr. WESTMORELAND, Mr. NEAL, and Mrs. TORRES.

H.R. 729: Mr. PETERS and Mr. BEYER.

H.R. 746: Ms. TSONGAS, Mr. KENNEDY, Mr. BEYER, Mr. PALLONE, and Mrs. NAPOLITANO.

H.R. 748: Mr. RANGEL and Mrs. LAWRENCE.

H.R. 758: Mr. BUCK.

H.R. 767: Mr. POLIQUIN, Mr. VEASEY, and Mr. PETERS.

H.R. 771: Mrs. ELLMERS of North Carolina and Mr. PAULSEN.

H.R. 781: Mr. HUFFMAN.

H.R. 784: Ms. LOFGREN, Mr. KENNEDY, and Mr. MACARTHUR.

H.R. 785: Mr. BEYER and Mr. SERRANO.

H.R. 799: Mr. BENISHEK.

H.R. 815: Mr. KELLY of Pennsylvania and Mr. RUPPERSBERGER.

H.R. 817: Mr. HUFFMAN.
H.R. 822: Mr. KINZINGER of Illinois, Mr. LUETKEMEYER, and Mr. HUFFMAN.
H.R. 825: Mrs. BROOKS of Indiana and Mrs. MILLER of Michigan.
H.R. 829: Mrs. BEATTY and Ms. WILSON of Florida.
H.R. 831: Mr. THOMPSON of Mississippi.
H.R. 836: Mr. POMPEO, Mr. SHIMKUS, Mr. FARENTHOLD, Mrs. BLACK, Mr. DUNCAN of South Carolina, Mr. YOUNG of Alaska, Mr. HULTGREN, Mr. CURBELO of Florida, Mr. LATTA, and Mr. TOM PRICE of Georgia.
H.R. 845: Ms. MICHELLE LUJAN GRISHAM of New Mexico.
H.R. 846: Mr. HUFFMAN, Mr. CONNOLLY, and Mr. NEAL.
H.R. 868: Mr. YOHO, Mr. COOPER, Mr. GIBSON, and Mr. VEASEY.
H.R. 885: Mr. KIND, Mr. GRAYSON, Mr. MCDERMOTT, Mr. SCHIFF, Mr. BEN RAY LUJÁN of New Mexico, and Mr. DAVID SCOTT of Georgia.
H.R. 915: Mr. WELCH, Mr. VAN HOLLEN, Mrs. WATSON COLEMAN, Mr. TED LIEU of California, Mr. ENGEL, Mr. YARMUTH, Ms. WILSON of Florida, Ms. SLAUGHTER, Ms. JUDY CHU of California, Mrs. LAWRENCE, and MR. BEYER.
H.R. 921: Mr. DAVID SCOTT of Georgia.
H.R. 928: Mr. JODY B. HICE of Georgia, Mr. KNIGHT, Mr. KATKO, Ms. MCSALLY, Mr. ABRAHAM, and Mr. TROTT.
H.R. 931: Ms. NORTON.
H.R. 940: Mr. WALDEN, Mr. WESTERMAN, Mr. NEWHOUSE, Mr. THORNBERRY, and Mr. COLLINS of New York.
H.R. 956: Ms. JUDY CHU of California and Mr. MACARTHUR.
H.R. 973: Mr. MULLIN, Mr. WALDEN, and Ms. LOFGREN.
H.R. 976: Mr. TOM PRICE of Georgia, Mr. ABRAHAM, Mr. HENSARLING, and Mr. BROOKS of Alabama.
H.R. 980: Ms. GRAHAM.
H.R. 985: Mrs. MILLER of Michigan, Mr. WEBSTER of Florida, and Mr. RYAN of Ohio.
H.R. 986: Mr. WESTERMAN, Mr. JORDAN, Mr. GROTHMAN, and Mr. COLE.
H.R. 1013: Mr. PERLMUTTER.
H.R. 1033: Ms. WILSON of Florida.
H.R. 1041: Mr. ROHRABACHER.
H.R. 1062: Mrs. ROBY, Mr. GUTHRIE, Mr. WALBERG, Mr. COLLINS of New York, Mr. ROGERS of Alabama, and Mr. MICA.
H.R. 1067: Mrs. LAWRENCE.
H.R. 1075: Mr. FRANKS of Arizona.
H.R. 1087: Mr. COHEN and Mr. DIAZ-BALART.
H.R. 1089: Mr. POLIS, Mr. PERLMUTTER, and Mr. HINOJOSA.
H.R. 1117: Mr. HASTINGS and Mr. HARDY.
H.R. 1121: Mr. RANGEL and Mr. PAYNE.
H.R. 1125: Mr. DELANEY.
H.R. 1147: Mr. SALMON.
H.R. 1150: Mr. KING of New York, Mr. GOWDY, Mr. HILL, Mr. NEUGEBAUER, Mr. KILMER, and Mr. CULBERSON.
H.R. 1154: Mr. JORDAN.
H.R. 1160: Mr. HANNA.
H.R. 1162: Mr. GRAYSON and Mr. WESTERMAN.
H.R. 1170: Mr. POCAN.
H.R. 1190: Mr. CARTER of Texas, Mr. SENSENBRENNER, Mr. EMMER of Minnesota, and Mr. THOMPSON of Mississippi.
H.R. 1197: Ms. CLARKE of New York, Mr. KENNEDY, Mr. JOHNSON of Ohio, Mr. POLIS, and Mr. HUFFMAN.
H.R. 1202: Mr. DEFAZIO, Mr. YOUNG of Alaska, Mr. BLUMENAUER, and Ms. BROWNLEY of California.
H.R. 1206: Mr. FLORES.
H.R. 1209: Mr. RIBBLE, Mr. HANNA, Mr. STIVERS, Ms. DELBENE, Mr. AMODEI, Mr. LARSON of Connecticut, Mr. GRIJALVA, Mr. DEFAZIO, Mr. JOHNSON of Ohio, Mr. HASTINGS, Ms. LEE, Mr. POLIS, and Mr. HECK of Nevada.
H.R. 1210: Mr. CURBELO of Florida, Mr. WILSON of South Carolina, Mr. PEARCE, and Mr. COLLINS of New York.
H.R. 1211: Ms. SLAUGHTER and Mr. HASTINGS.
H.R. 1220: Mr. MCGOVERN, Mr. BLUMENAUER, Mr. GRAVES of Missouri, Mr. PETERS, Ms. PINGREE, Mr. MEEHAN, Ms. SCHAKOWSKY, Mr. ROONEY of Florida, Mr. BRADY of Pennsylvania, Mr. SMITH of New Jersey, Mr. HIGGINS, Mr. JOHNSON of Georgia, Mr. RODNEY DAVIS of Illinois, and Mr. SCHRADER.
H.R. 1247: Mr. ELLISON and Mr. THOMPSON of Mississippi.
H.R. 1270: Mr. MILLER of Florida and Mr. POMPEO.
H.R. 1271: Mr. SWALWELL of California and Mr. RANGEL.
H.R. 1274: Ms. LOFGREN, Ms. ESHOO, Mr. LOEBSACK, Mr. BRADY of Pennsylvania, and Mr. CONNOLLY.
H.R. 1287: Mr. PALAZZO.
H.R. 1288: Mr. MEADOWS, Mr. COURTNEY, Mr. CONNOLLY, Mr. HASTINGS, Mr. MCDERMOTT, Mr. JOHNSON of Georgia, Ms. LINDA T. SÁNCHEZ of California, Mr. HANNA, Mr. DEFAZIO, Mr. RANGEL, Mr. PRICE of North Carolina, Ms. BORDALLO, Ms. EDDIE BERNICE JOHNSON of Texas, and Mr. LOBIONDO.
H.R. 1293: Mr. HIGGINS, Mr. RUSH, Mr. CONYERS, Mrs. BEATTY, Mr. DEUTCH, Mr. JOHNSON of Ohio, Ms. NORTON, and Mr. PAYNE.
H.R. 1299: Mrs. BLACKBURN.
H.R. 1300: Mr. NUNES and Mr. TURNER.
H.R. 1301: Mr. AMODEI, Mr. HANNA, Mr. CRAMER, Mr. GIBSON, Mr. ROONEY of Florida, Mr. GOODLATTE, and Mr. WESTERMAN.
H.R. 1308: Mr. TAKANO, Mr. RUSH, Mrs. NAPOLITANO, Mr. POCAN, and Ms. JUDY CHU of California.
H.R. 1310: Mr. GUTIÉRREZ, Ms. SLAUGHTER, and Mr. MEEKS.
H.R. 1312: Mr. LOEBSACK and Mr. BISHOP of Georgia.
H.R. 1318: Ms. DELBENE and Mr. HECK of Washington.
H.R. 1331: Mrs. LAWRENCE and Mr. RIBBLE.
H.R. 1332: Ms. FOXX and Mr. GROTHMAN.
H.R. 1346: Mr. POLIS.
H.R. 1347: Mr. POLIS.
H.R. 1375: Ms. BROWN of Florida, Ms. HAHN, and Mr. RANGEL.
H.R. 1382: Mr. THOMPSON of California.
H.R. 1384: Mr. SARBANES, Mr. ELLISON, Mrs. LAWRENCE, Mr. MCDERMOTT, Mr. COLE, Ms. LOFGREN, Mr. ROONEY of Florida, Mr. COLLINS of New York, Mr. KLINE, and Mr. LARSON of Connecticut.
H.R. 1387: Mr. MESSER and Mr. CARTER of Georgia.
H.R. 1388: Mr. CRAMER, Mr. HUELSKAMP, and Mr. BUCK.
H.R. 1389: Mr. WILSON of South Carolina and Mr. HULTGREN.
H.R. 1391: Ms. WILSON of Florida and Mr. CICILLINE.
H.R. 1404: Mr. TAKAI.
H.R. 1413: Mr. ROUZER.
H.R. 1421: Mr. TED LIEU of California
H.R. 1434: Mrs. TORRES.
H.R. 1439: Mr. BEYER and Mr. CÁRDENAS.
H.R. 1441: Mr. KATKO.
H.R. 1453: Mr. WESTERMAN.
H.R. 1462: Mr. KENNEDY, Mr. LANCE, and Mrs. COMSTOCK.
H.R. 1465: Mr. KING of New York.
H.R. 1466: Mr. DESAULNIER, Ms. LEE, Mr. JONES, Mr. DEFAZIO, and Mr. NEAL.
H.R. 1477: Ms. ESHOO.
H.R. 1479: Mr. BURGESS.
H.R. 1492: Ms. MATSUI, Mr. TONKO, Mrs. WATSON COLEMAN, Mr. FARR, Ms. JACKSON LEE, and Mr. BEYER.
H.R. 1496: Mr. RANGEL.
H.R. 1503: Mr. QUIGLEY and Mr. LOEBSACK.
H.R. 1508: Mr. BROOKS of Alabama.
H.R. 1516: Mrs. BLACK, Mr. KILDEE, Mr. BARR, Mr. PALAZZO, Ms. DELAURO, Mr. KELLY of Pennsylvania, Ms. SLAUGHTER, Mr. ELLISON, Mr. LARSON of Connecticut, Mr. LANGEVIN, Ms. PINGREE, Mr. PASCRELL, and Mr. DOGGETT.
H.R. 1519: Mr. MCGOVERN, and Ms. DELBENE.
H.R. 1531: Mr. HUFFMAN, Mr. WELCH, Ms. KELLY of Illinois, Ms. NORTON, Mr. POCAN, Mr. LOWENTHAL, Mr. JOYCE, Mr. GRIJALVA, Mr. TIPTON, Mr. JONES, and Mr. COLE.
H.R. 1534: Mr. QUIGLEY and Mr. POCAN.
H.R. 1545: Mr. NOLAN.
H.R. 1546: Mr. BARR.
H.R. 1559: Mr. BURGESS, Mr. CURBELO of Florida, Mr. QUIGLEY, Mr. POCAN, Mr. YOUNG of Alaska, Mr. KENNEDY, Mr. KILMER, Mr. HUFFMAN, and Mr. CONAWAY.
H.R. 1562: Mr. CARTER of Texas.
H.R. 1563: Mr. CARTER of Texas.
H.R. 1571: Mrs. CAROLYN B. MALONEY of New York, Mr. ELLISON, Mr. LANCE, Mr. RANGEL, Mr. LARSEN of Washington, Mr. KENNEDY, and Mr. HECK of Nevada.
H.R. 1589: Mr. KELLY of Pennsylvania.
H.R. 1598: Mr. BEYER, Ms. ESTY, Mr. ISRAEL, Mrs. KIRKPATRICK, Mr. MCGOVERN, Mr. MURPHY of Florida, Mr. PETERS, Mr. POLIS, Miss RICE of New York, Mr. QUIGLEY, Mr. BLUMENAUER, and Mr. VEASEY.
H.R. 1600: Mr. WITTMAN, Ms. LOFGREN, Ms. JACKSON LEE, Mr. TAKANO, Mrs. COMSTOCK, Ms. ROYBAL-ALLARD, Mr. POCAN, Mr. KILDEE, and Mr. HUFFMAN.
H.R. 1602: Mr. DEFAZIO.
H.R. 1605: Mr. JORDAN, Mr. BUCK, and Mr. MCCLINTOCK.
H.R. 1607: Mr. HONDA and Mr. DESAULNIER.
H.R. 1608: Ms. BROWN of Florida, Ms. CLARK of Massachusetts, Mr. DEFAZIO, Ms. DELAURO, Ms. DELBENE, Ms. ESHOO, Mr. GRAYSON, Mr. HANNA, Ms. HERRERA BEUTLER, Mr. ISRAEL, Mr. JOHNSON of Georgia, Mr. KELLY of Pennsylvania, Mr. KILMER, Mr. LARSEN of Washington, Mr. LEWIS, Ms. NORTON, Mr. PASCRELL, Mr. PRICE of North Carolina, Mr. ROE of Tennessee, Mr. SMITH of Washington, Mr. THOMPSON of California, Mr. WHITFIELD, Mr. COSTELLO of Pennsylvania, Mr. EMMER of Minnesota, Mr. BARLETTA, Mr. HECK of Washington, Mr. CARTWRIGHT, and Mr. WEBSTER of Florida.
H.R. 1612: Mr. FRANKS of Arizona and Mr. HECK of Nevada.
H.R. 1619: Mr. O'ROURKE, Ms. BORDALLO, Mr. SABLAN, and Mr. SMITH of New Jersey.
H.R. 1624: Mr. LATTA, Mr. WHITFIELD, Mrs. WAGNER, and Mr. CARTER of Georgia.
H.R. 1627: Mr. CRENSHAW.
H.R. 1632: Mr. MURPHY of Florida, Ms. MOORE, and Mr. POLIS.
H.R. 1642: Mr. MEADOWS, Mr. WALKER, Mr. HUDSON, Mr. MCHENRY, Mr. ROUZER, Mrs. ELLMERS of North Carolina, Mr. PITTENGER, Ms. FOXX, Mr. HOLDING, and Mr. PRICE of North Carolina.
H.R. 1654: Mrs. BROOKS of Indiana and Mr. WALBERG.
H.R. 1664: Mr. MESSER and Mr. MCCLINTOCK.
H.R. 1666: Mr. PAULSEN.
H.R. 1674: Ms. CLARKE of New York, Ms. BROWN of Florida and Ms. MOORE.
H.R. 1676: Mr. MCGOVERN and Ms. JUDY CHU of California.
H.R. 1681: Mr. PERLMUTTER, Mr. LAMBORN, Mr. TIPTON, Mr. POLIS, Mr. ROONEY of Florida, and Ms. DEGETTE.
H.R. 1684: Mr. DOLD, Mr. LANCE, and Mr. JOYCE.
H.R. 1692: Mr. CAPUANO.
H.R. 1707: Mr. DEFAZIO.
H.R. 1709: Mr. HUFFMAN.
H.R. 1710: Mr. HUFFMAN.
H.R. 1714: Mr. LOBIONDO.
H.R. 1732: Mr. WEBSTER of Florida, Mr. DUNCAN of Tennessee, Mr. ASHFORD, Mr. GOODLATTE, Mr. TIPTON, Mrs. BROOKS of Indiana, Mr. COLLINS of New York, Mr. VALADAO, and Mr. BLUM.

H.R. 1734: Mr. LATTA, Mr. BUCSHON, and Mr. PETERSON.

H.R. 1739: Mr. LAMBORN.

H.R. 1752: Mr. SMITH of New Jersey.

H.J. Res. 9: Mr. SMITH of Missouri.

H.J. Res. 22: Mr. MURPHY of Florida.

H.J. Res. 23: Mr. KEATING.

H.J. Res. 25: Ms. WILSON of Florida.

H.J. Res. 42: Mr. PALMER and Mr. JODY B. HICE of Georgia.

H. Con. Res. 17: Mr. DUNCAN of South Carolina, Mr. WESTMORELAND, and Mr. PALAZZO.

H. Con. Res. 19: Mr. LUETKEMEYER.

H. Con. Res. 23: Mr. DESAULNIER.

H. Con. Res. 28: Ms. JENKINS of Kansas, Mr. NUGENT, and Mrs. COMSTOCK.

H. Con. Res. 30: Mr. CICILLINE, Mr. WALZ, and Ms. DELBENE.

H. Res. 54: Mr. AGUILAR, Mr. HURT of Virginia, Mr. AL GREEN of Texas, Mr. GENE GREEN of Texas, Mr. SHERMAN, Ms. MAXINE WATERS of California, Mr. SEAN PATRICK MALONEY of New York, Mrs. LOWEY, Mr. LIPINSKI, Ms. GRAHAM, Mr. CLEAVER, Mr. COSTA, Ms. FUDGE, Miss RICE of New York, Mr. VAN HOLLEN, Ms. PINGREE, Mrs. CAROLYN B. MALONEY of New York, Mr. VELA, Mr. GUTIÉRREZ, and Mr. KENNEDY.

H. Res. 110: Mr. DIAZ-BALART.

H. Res. 130: Mrs. LOWEY, Mr. TED LIEU of California, Mr. PASCRELL, Mr. CONYERS, Mr. COHEN, Mr. MURPHY of Florida, Ms. WILSON of Florida, Mr. BRADY of Pennsylvania, Mr. HONDA, Mr. LIPINSKI, Ms. WASSERMAN SCHULTZ, Ms. BROWN of Florida, Mr. JEFFRIES, Mr. GRAYSON, Mr. RYAN of Ohio, Mr. DEUTCH, Mr. SWALWELL of California, Mr. LEVIN, Mr. SEAN PATRICK MALONEY of New York, Mr. CARTWRIGHT, Mr. SIRES, Mr. QUIGLEY, Ms. MENG, Ms. ESTY, Mr. PALLONE, Mr. MCGOVERN, Mr. BRENDAN F. BOYLE of Pennsylvania, Mr. ISRAEL, Mr. LANCE, Mr. COLE, Mr. POMPEO, Mr. ROKITA, Mr. DENHAM, Mr. SHUSTER, Mr. PERRY, Mr. MURPHY of Pennsylvania, Mrs. COMSTOCK, Mr. DENT, Ms. JENKINS of Kansas, and Mr. GIBSON.

H. Res. 154: Mr. HARDY, Mr. SMITH of New Jersey, and Ms. ROYBAL-ALLARD.

H. Res. 174: Mr. HANNA.

H. Res. 177: Mr. MCGOVERN.

H. Res. 188: Mr. VEASEY.

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PROCEEDINGS AND DEBATES OF THE *114th* CONGRESS, FIRST SESSION

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Senate

The Senate met at 10 a.m. and was called to order by the President pro tempore (Mr. HATCH).

PRAYER

The Chaplain, Dr. Barry C. Black, offered the following prayer:

Let us pray.

Eternal Spirit, thank You for sustaining us with Your steadfast love and unchanging mercy. Without Your compassion, all of our efforts would be in vain. Your wondrous deeds keep us secure.

May our lawmakers remember that true greatness comes through service. May they embrace their accountability to You to be responsible stewards of the opportunities You provide them each day. Lord, strengthen them in their challenging work, reminding them often of the fragility of life. Empower them to trust You without wavering.

We pray in Your great Name. Amen.

PLEDGE OF ALLEGIANCE

The President pro tempore led the Pledge of Allegiance, as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

RECOGNITION OF THE MAJORITY LEADER

The PRESIDING OFFICER (Mr. COTTON). The majority leader is recognized.

SENATE AGENDA

Mr. MCCONNELL. Mr. President, this week looks to be a busy one in the Senate. We have a lot of important legislation to consider. We are hoping our friends across the aisle will work with us to do so in an expeditious manner. For instance, we will begin the process of finishing our work on the balanced budget before the Senate, which the Senate passed just before Easter. Passing that balanced budget was a big moment for the new Senate. For years, the budget process was ignored almost entirely in this Chamber, and the idea of a balanced budget passing was basically unthinkable. But now the Senate is under new management. Things are changing. Soon we will conference with the House to work out a final budget that will be passed by the full Congress. That is just the latest example of Congress getting back to work. I know a lot of Americans are happy to see that.

But the budget is far from the only item on the Senate's near-term agenda. The Senate will soon consider bipartisan legislation that is designed to ensure that seniors on Medicare don't lose access to their doctors. It is a solution to a broken Medicare payment system that has vexed congressional leaders of both parties for years. It would mean an end to the annual exercise of Congress passing a temporary fix to the problem one year and then coming right back to the very same cliff the next year without actually solving the underlying problem.

So the fact that we have a bipartisan reform bill here is significant in itself. The fact that it passed the House overwhelmingly is even more significant. It doesn't mean the legislation is perfect. It doesn't mean we won't have some disagreements about it. But I do think the bill deserves a vote, and it is my hope that the Senate will soon take one.

We will also continue to work to pass the bipartisan Justice for Victims of Trafficking Act. It is legislation designed to prevent women and children from being sold into modern-day slavery. It was reported out of the Judiciary Committee with the support of every single Democrat, and the Senate took up this bill with the consent of every single Democrat. There is no reason they should now turn around and filibuster this antislavery bill at this point. As a victims advocate put it, Senate Democrats should stop choosing a phantom problem over real victims.

A large, bipartisan majority of the Senate has voted repeatedly to end a very regrettable Democratic filibuster of this antislavery bill. It will only take a few more votes from our friends across the aisle to bring hope to children in chains and women suffering in the shadows. So we have been reaching out to our friends to work with them to end this Democratic filibuster of human rights legislation. The Senate should pass this bipartisan bill right away, and as soon as that happens, we will turn to the Loretta Lynch nomination.

Committees in the new Senate are also working hard to advance more bipartisan legislation. We already saw the Intelligence Committee vote 14 to 1 to approve bipartisan legislation aimed at protecting the personal and financial information of middle-class Americans from cyber criminals. Over in the Finance Committee, we see the top Republican and the top Democrat continue to discuss the best way forward to increase American exports with new trade legislation. Today, we will see another product of negotiations between a top committee Republican and a top committee Democrat—legislation aimed at reforming our education system—considered in the Health, Education, Labor, and Pensions Committee. We hope to bring all of these issues to the Senate floor for debate in the very near future.

Another important bipartisan bill that will be considered by committee today is the Iran Nuclear Agreement Review Act. The Foreign Relations Committee is set to mark that up today. The legislation is supported by a large number of Democrats, and it is no wonder why. The bill is aimed at giving Congress and the American people a say—a say—in reviewing and approving an international agreement

● This "bullet" symbol identifies statements or insertions which are not spoken by a Member of the Senate on the floor.

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with such wide-ranging consequences. And the American people should have a say.

The interim agreement we saw from the administration would not only allow Iran to continue to enrich uranium and retain thousands of centrifuges but also allow it to continue researching and developing even more advanced centrifuges. In other words, it seems more like an agreement built around Iran's terms rather than a plan to advance what should be our national goal, which is ending Iran's nuclear program.

It is a matter of great concern not just to our country but to the entire world. The concerns of our allies and partners with regard to Iran's aggressive behavior throughout the Middle East were made clear when I recently led a Senate delegation to Israel, Jordan, Iraq, and Afghanistan.

This is a gravely important matter, and the American people aren't just spectators here; they and the representatives they elect deserve a seat at the table too. Today's bipartisan action in the Foreign Relations Committee will help ensure they do.

As I mentioned earlier, there will be a lot of activity in the Senate this week on a range of issues. It is good for the functioning of the Senate, but it also helps underline one clear point: The new Congress is back to work again on behalf of the American people.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. REID. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

RECOGNITION OF THE MINORITY LEADER

The PRESIDING OFFICER. The Democratic leader is recognized.

NATIONAL EQUAL PAY DAY

Mr. REID. Mr. President, people at home cannot see it, but every desk here on the Senate floor has a name on it. Mine says ''Mr. REID.'' Right behind me is one that says ''Mrs. MURRAY.'' To my right is one that says ''Mr. MCCONNELL.'' Why do I mention this? Today is National Equal Pay Day, a day that symbolizes how far into 2015 American women must work to earn what their male counterparts earned in 2014. That day is today. Women basically worked for nothing until today. This pay disparity between men and women doing the same work is known as the wage gap. Unlike the desks here in the Chamber, the wage gap does not bear a visible stamp of ownership, but make no mistake—Republicans in Congress absolutely own the wage gap. Their names are all over it. The Republicans' refusal to address income disparities makes them responsible for the additional 3 months and 14 days that American women work to earn what their male counterparts earn doing the exact same work at the exact same time.

Who are these working American women who are being forced to work for months just to catch up on wages? They are our daughters, our wives, our granddaughters, and our neighbors. Republicans' repeated filibusters of equal pay legislation makes them responsible for working women in our families having to make due on 78 cents for every dollar their male counterparts make.

Democrats have tried repeatedly to pass Senator MIKULSKI's Paycheck Fairness Act, which would take away the disparity. It is pretty simple: If a man and a woman do the same work—no different—they should be paid the same amount of money. Very simple. We repeatedly tried to pass this simple legislation. This legislation provides working American women with the tools they need to close the wage gap. Yet, time and time again, Republicans have stonewalled this most basic issue of fairness. Five years ago, the Republicans filibustered the Paycheck Fairness Act. Two years later, the Republicans did the same thing. Last year, they blocked the bill two times. Just last month in the budget debate, Senator MIKULSKI gave the Republicans another chance. Once again, the Republicans blocked it. Five times in 5 years Republicans have blocked equal pay for women. Five times in 5 years Republicans have told their very own sisters, daughters, and wives, and, of course, their grandchildren that they are not interested in fixing this unfair income disparity. That is why I say the Republicans own the wage gap. They own it.

Today, as we recognize Equal Pay Day, I hope my Republican colleagues come to their senses and address this injustice which is hurting millions of American families.

American women deserve equal pay for equal work. My daughter deserves equal pay for equal work.

Would the Presiding Officer announce the business of the day.

RESERVATION OF LEADER TIME

The PRESIDING OFFICER. Under the previous order, the leadership time is reserved.

MORNING BUSINESS

The PRESIDING OFFICER. Under the previous order, there will now be a period of morning business, with Senators permitted to speak therein for up to 10 minutes each.

The assistant Democratic leader.

ILLINOIS TORNADOES

Mr. DURBIN. Mr. President, last week on Thursday, the evil forces of nature struck in Fairdale, IL. Since that moment of terrible loss—two lives and many injuries, terrible property destruction—we have seen the better angels of our nature come forward.

This is an all-too-common picture in my part of the world in central Illinois and downstate Illinois. This is the devastation from a tornado of dramatic power and strength. Two twisters—one of them a category EF–4, with wind speeds of up to 200 miles an hour—tore through DeKalb and Ogle Counties and badly damaged the towns of Fairdale and Rochelle last Thursday evening. That picture tells part of the story of the tornadoes' path, where giant trees were uprooted, homes ripped from their foundations. The damage is stunning.

Sadly, two women, neighbors who lived in Fairdale, lost their lives in the event. Geraldine Schultz and a close friend and neighbor, Jacklyn Klosa, both fell victim to the tornado that struck their homes. Neighbors say the two friends were inseparable in life and both departed life at the same moment.

The tight-knit communities of Fairdale and Rochelle are pulling together today to help victims sort through the rubble. One tornado tracked a 25-mile continuous path from near Rochelle through Fairdale, to near Belvidere.

This is a photo of what was, until Thursday, a popular restaurant in the town of Rochelle, IL, about 80 miles from Chicago. Twelve people, including diners and staff, were inside Grubsteakers Restaurant when the tornado struck. It was a miracle. Everybody made it into the basement just in time before the twister hit. They all survived, though they were trapped in the basement for an hour and a half waiting for rescue crews to clear them.

A few people had to be treated for cuts and bruises. Everyone was covered in thick dust that had blown from overhead, but they lived through it, a terrible, terrifying ordeal. On Friday I spoke and again on Saturday with the director, the head of the Illinois Emergency Management Agency, James Joseph. Governor Rauner was out at the scene the next day after the tornado. We sent our staff there to monitor any possible Federal assistance that might be coordinated with the State and local effort.

We are continuing to gather the information together to see if there is a possibility of Federal help, but I have been very wary because of two recent experiences in Illinois—in Washington, IL, and Harrisburg—where tornado damage there looked so devastating and still did not meet the threshold qualification for Federal assistance.

When I spoke with Rochelle Mayor Chet Olson, and DeKalb County board chairman Mark Pietrowski, I told them to do their homework and keep track of their expenses but that it was a long shot for Federal help. I made it clear the delegation and I stand ready to help in any way we can, particularly working with the Governor.

As is so often the case when a disaster such as this strikes, the first responders, friends, and family members wasted no time rushing to the aid of people whose homes and businesses were damaged. I have no doubt the people in Fairdale, Rochelle, and all of the other areas that were struck will clean up and rebuild. They will mourn the loss of life, they will heal the wounds of those who were injured, and they will start tomorrow to make another day.

For the families of the women who lost their lives and for everybody who lost homes and property, our thoughts are with you.

I yield the floor and suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

RECESS

The PRESIDING OFFICER. Under the previous order, the Senate stands in recess until 11:30 a.m.

Thereupon, the Senate, at 10:36 a.m., recessed until 11:31 a.m. and reassembled when called to order by the Presiding Officer (Mr. FLAKE).

The PRESIDING OFFICER. The Senator from Wyoming is recognized.

OBAMACARE

Mr. BARRASSO. Mr. President, tomorrow is April 15. April 15 is a date that causes a great deal of stress and anxiety for hard-working American taxpayers. For millions of American families, this year is going to be worse than ever before. The Obama health care law, ObamaCare, is making tax day harder for Americans.

American taxpayers who were forced into the ObamaCare system—well, they are having to fill out even more forms this year than in the past, so many forms that the Internal Revenue Service can then enforce all of the President's health care mandates. It is a complicated and burdensome process.

President Obama promised that buying health insurance through ObamaCare was going to be as easy as buying a television on Amazon. Well, why didn't the President ever say it was going to be so difficult to satisfy the IRS? Why didn't the President say that hard-working American taxpayers would have to fill out pages and pages of forms just to find out if they had actually paid the right amount for their health insurance? Why didn't the President say that people who changed jobs during the year might have to pay hundreds or thousands of dollars to the IRS?

That doesn't happen when you buy a television on Amazon. Amazon tells you the price, and that is what you pay. Amazon doesn't make you fill out the forms on April 15; Amazon doesn't demand more money from you after the amount you paid. But that is what is happening to millions of Americans across the country. Taxes were already too complicated. Now, because of ObamaCare, it is much worse.

For this year's tax filing season, the IRS released seven new forms that people might have to fill out to comply with the new health care law. The instructions alone for these forms are 46 pages long.

A married couple with 2 children might have to enter numbers and other information into 133 individual boxes on just 1 of the new ObamaCare tax forms. A family could spend more time filling out one of these forms than they used to spend filling out their entire tax returns in the past.

So for people who go through all of this effort, the results actually still can be terrifying.

CNN ran a report earlier this year about the problem. The headline was: ''I have to pay back my ObamaCare subsidy.'' They told the story of Janice Riddle from Los Angeles. She got an ObamaCare subsidy last year. Then when she got a new job, she forgot to tell the IRS about the new job. They sort of knew because she was getting paid from the new job and she was paying taxes, but she didn't actually alert the IRS about it from the standpoint of ObamaCare. So when she was doing taxes this year, she learned she has to pay back the entire amount of the subsidy, more than $5,000.

She told CNN:

> I'm in shock . . . but I have no choice. Do I want to argue with the IRS or the Obama administration?

Well, Janice is not alone. The Obama administration says as many as 7.5 million families in America will have to reconcile their ObamaCare subsidies on their taxes for 2014 when they have the filing deadline tomorrow.

According to a study by the Kaiser Family Foundation, last month only 4 percent of all the families who qualified for a subsidy got the right amount. So the Kaiser Family Foundation did a study last month, and what they have come out with is only 4 percent of all the families across the country who qualified for a subsidy got the right amount. The study found that half of all U.S. households that were eligible for a subsidy would have to pay back some of it with their taxes this year. The average amount they are going to have to pay back is $794.

One of those people who just found out he owes the government so much money is Rob Tuck from Dublin, CA. According to an article last week by the Associated Press, he said he had expected to actually get a refund for his taxes—a refund of $400 for his taxes from his work last year. It turns out his refund has been almost wiped out—wiped out—to repay some of the subsidy he got to buy an expensive ObamaCare policy. He changed jobs during the year. He got a little extra income. In America, that should be a good thing, you get extra income. Well, not for him. It came with a large pricetag from the government. He said he enrolled in the plan to avoid the tax penalties of being uninsured, and he says that now he feels penalized by the Obama administration anyway.

Another person who is feeling penalized by the President's health care law is Bill Preus of St. Petersburg, FL. He was quoted in the same Associated Press article last week. This man was only on ObamaCare for 3 months. After that time, he went onto Medicare. Well, there was poor coordination between the ObamaCare Web site, healthcare.gov, and his insurance company. Because of that, he may have to pay the IRS close to $4,000.

Now, the man used to own an insurance agency, and, according to the article, he said he is used to complexity, but he said he never has seen anything like this. He told the Associated Press: ''It's a total mess.''

His tax preparer and the IRS both told him—his tax preparer and the IRS—that the best thing to do was to file an incomplete return so it would trigger an audit and then they could sort things out.

Is that the President's idea of his health care plan being as easy to use as buying a TV on Amazon? This man has to go through an IRS audit. That is what they are hoping for, to get audited by the IRS. Apparently, that is the easiest way for Washington to figure out its own rules. It is outrageous.

When the President, in the past, has been asked about the health care law, he said it is actually working better than he expected. What did he expect when people are telling stories such as these?

The President's health care law is more than 2,000 pages long. It paid for thousands of IRS agents—people to investigate American taxpayers to make sure they comply with all the law's destructive and expensive mandates. But all of that complexity has become a disaster. This law has been bad for patients, it has been bad for providers, and as we reach the IRS filing deadline tomorrow, it is clear this law is terrible for taxpayers.

This isn't what Democrats promised, and it is not what the American people wanted. People didn't want more red-tape, more stress. They just wanted the care they need from a doctor they choose at lower costs. That is what Republicans in the Senate are working to give them. We can do it without more IRS audits. We can do it without a 2,000-page law. We can do it without making tax day harder for Americans. We can do it without all the negative side effects of ObamaCare.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. THUNE. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

NUCLEAR AGREEMENT WITH IRAN, SGR AND HUMAN TRAFFICKING LEGISLATION

Mr. THUNE. Mr. President, on April 2, President Obama unveiled a nuclear agreement with Iran. The purpose of the administration's negotiations with Iran was simple: Prevent Iran from acquiring a nuclear weapon. But the agreement the Obama administration seems to have arrived at cast doubts on whether the administration will be able to achieve that goal. The framework does not shut down a single nuclear facility in Iran. It does not destroy a single centrifuge in Iran. It doesn't stop research and development on Iran's centrifuges. And it allows Iran to keep a substantial part of its existing stockpile of enriched uranium.

It is not surprising that Members of both parties are concerned about this agreement. Democrats and Republicans are worried because it appears the administration is not trying to stop Iran from acquiring a nuclear weapon but simply trying to manage when Iran will develop one. Again and again during the process Secretary Kerry and the President seemed to forget that the goal of the negotiation was not a deal for its own sake but a deal that would actually stop Iran from developing nuclear weapons.

American priorities were sacrificed for the sake of getting an agreement. In the process, the administration may have ensured that the deal they finally arrived at is too weak to achieve its goal.

The stakes on this one are very high. The deal we are talking about here is not a trade agreement. It is not a land dispute. It is not a negotiation over water rights. It is a question of whether a tyrannical oppressive regime that has backed terrorists and announced its intention of taking the country of Israel off the map should get access to the most apocalyptic weapons known to man.

The deal we arrive at in the coming months will shape the Middle East for decades to come, and the cost of failure will be nothing less than a nuclear arms race in the Middle East. Imagine for a second what it would be like to have a nuclear-armed Middle East.

Right now we are already witnessing a quasi-proxy war in Yemen with Iran supporting the Houthis and a Saudi Arabia-led coalition bombing the Houthis and supporting the ousted government. Imagine that same scenario if both major powers had nuclear weapons at their disposal. Make no mistake, that is the type of situation we could be facing if we fail to stop Iran from obtaining a nuclear weapon, not to mention the threat that our ally Israel would be facing.

Today the Senate Foreign Relations Committee is set to mark up a bipartisan Iran bill for consideration by the full Senate. The Iran Nuclear Agreement Review Act of 2015 would give Congress 60 days to approve or disapprove any final agreement. This legislation would ensure the American people, through their representatives in Congress, have a voice in any final agreement with Iran.

Given the fact the ramifications of this agreement will last well beyond the Obama administration, it is essential the American people have a voice in this process, which makes congressional review indispensable. This bill would also ensure Iran is held accountable for upholding its end of the agreement by requiring the President to evaluate Iran's compliance every 90 days.

This legislation has broad bipartisan support, and I believe it will quickly pass the Senate. I am hopeful the President will listen to the concerns the American people have expressed and ensure they are addressed before any final agreement is reached.

Every Member of Congress would like to see the President successfully conclude a deal with Iran that would prevent Iran from developing a nuclear weapon, but the President needs to remember that a deal is only acceptable if it achieves that goal. If we can't secure a deal that will prevent a nuclear-armed Iran, then we should step back from the negotiating table and reimpose the sanctions that were so successful in driving Iran to the table in the first place. Anything less than a verifiable, accountable, and enforceable deal with Iran is a failure.

One bright spot in this Iran debate has been the bipartisan cooperation I just mentioned that has characterized the Iran Nuclear Agreement Review Act. This is a trend we are seeing a lot more of in the Republican-led Senate. There was the bipartisan Keystone bill, the bipartisan legislation to prevent suicide among veterans, the bipartisan legislation to reauthorize the Terrorism Risk Insurance Program, the bipartisan legislation to increase penalties for perpetrators and provide restitution for victims of child pornography, and now there is the bipartisan Iran bill.

This week we have another bipartisan agreement. Today, Congress will vote to repeal the flawed sustainable growth rate formula that has been used to calculate doctors' Medicare reimbursements since its enactment in 1997. This formula was supposed to control spending, but it never worked effectively. Since 2003, Congress has had to patch the formula regularly to ensure that physicians are paid a reasonable amount for their services.

In all, there have been 17 patches or short-term fixes—Band-Aids, if you will—enacted over the last 12 years. The bipartisan solution that is being considered on the Senate Floor today repeals this flawed formula permanently and replaces it with a payment system that focuses on quality, not quantity. It also puts in place the first significant reforms in Medicare in a long time.

Without reforms, the Medicare trust fund will be insolvent as soon as 2030, leaving seniors without access to the care they have been promised. The bipartisan agreement we are passing today starts the process of strengthening Medicare and putting it on a more sustainable path going forward so that the current generation of seniors as well as future generations can enjoy the benefits they have been promised.

With the return of bipartisanship and regular order we have had here over the first few months of the Republican-led Senate, I am disappointed the Democrats are continuing to obstruct a bill that should be the most obviously bipartisan bill we have taken up all year. The Justice for Victims of Trafficking Act would provide law enforcement with additional resources to combat the scourge of human trafficking and increase the resources available to trafficking victims.

This bill was cosponsored by 12 Democrats, in addition to 21 Republicans, and it appeared to have strong bipartisan support for passage. In fact, it was reported out of the Judiciary Committee unanimously.

Unfortunately, Members of the Democratic Party's most extreme wing decided to fixate on a funding restriction in the bill that has been a routine part of appropriations bills and spending bills around here for decades. The Hyde amendment reflects the sentiments of a majority of Americans. That is the funding restriction that I referred to. The sentiment of a majority of Americans is that the Federal Government shouldn't be using taxpayer dollars to pay for abortions. It has been the consensus view around here literally since 1976.

It is unfortunate the leftwing of the Democratic Party has taken the extreme step of holding up relief for victims of human trafficking over language that simply maintains a status quo—the status quo that has been in place around here since 1976.

Every year thousands of innocent victims—most frequently women and children—are trafficked within the borders of the United States. Many of these victims are children who are bought and sold to feed the twisted desires of sexual predators. Others are forced into lives of slave labor, compelled to work in the shadows without the protection of the law. Rescuing these innocent victims and ensuring their captors are punished must be a priority.

The Justice for Victims of Trafficking Act has been endorsed by 200 advocacy groups, including the NAACP, the National Center for Missing and Exploited Children, Rights4Girls, the National Association to Protect Children, the Fraternal

Order of Police, and the National Conference of State Legislatures. It provides new tools for law enforcement and new help for trafficking victims.

It is time for the Democrats to stop obstructing this legislation and to allow the Senate to pass this bill—a bipartisan achievement and something that is much needed and long overdue. There is a crisis in this country that needs to be addressed. We can do something about it. We ought to do it, and we ought to do it now.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. LEE. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER (Mr. JOHNSON). Without objection, it is so ordered.

SGR LEGISLATION

Mr. LEE. Mr. President, we are here today because our Medicare status quo is not working and it hasn't been working for a long time.

For decades, Medicare has been on a path to insolvency. In 1997, Congress attempted to impose some fiscal discipline on the program by creating the sustainable growth rate or SGR. This is a budget-enforcing mechanism that calls for annual adjustments to the amounts physicians are reimbursed for treating Medicare patients.

The SGR was originally billed as a permanent solution to Medicare's unsustainable fiscal trajectory. The idea was to restrain Medicare spending by linking physician reimbursements to a target amount based on the general performance of the economy as a whole.

While this may have seemed like a good idea at the time—when the economy was relatively strong and stable and growing—it quickly lost its appeal when we went into the 2001 recession just a few years later.

The plan also suffered from the central planners' fatal conceit that trusts bureaucracies, rather than consumer preferences and real price pressures, to determine the cost of a particular good or service. As it turns out, the actual cost of medical goods and services and the practice patterns of physicians do not necessarily align with the health of the economy or the predictions of government bureaucrats.

So each year since 2003, the SGR formula has called for cuts to physician payments, and each year—often several times each year—Congress has passed legislation to temporarily prevent the reimbursement reductions from kicking in.

While these so-called doc fix bills have yielded some modest savings as new spending has traditionally been offset with cuts elsewhere in the budget, they have not restrained the quickening pace of Medicare spending. While they have successfully avoided cuts to doctors' pay, they have put the Medicare system in a near constant state of uncertainty and instability, leaving Medicare doctors and their patients hanging in the balance.

America's physicians and America's seniors deserve better than this, but they also deserve better than the bill before us today—H.R. 2, the Medicare Access and CHIP Reauthorization Act of 2015.

Congress has long wanted to repeal the SGR—and with good reason—but this is not the way to do it. Not only does the House bill double down on Medicare's broken price control model, but it does so, according to the Congressional Budget Office, while adding $141 billion to the Federal debt over the next decade.

Let's look first at the policy implications of the underlying bill.

The new payment scheme proposed in this bill is simply more of the same inefficient form of central planning that further embeds Washington bureaucracy into every aspect of our health care system. It continues the role of the Federal Government as price setter, rather than the price taker, in the free market. It also inflates the administration's power as the regulator and compliance officer.

The principal change proposed by H.R. 2 is to move from a Medicare payment system based on volume to one based on bureaucratic measures of quality and value, but we already know this doesn't work because it is the same policy introduced under ObamaCare that requires physicians to comply with established government guidelines and stick to rigid, one-size-fits-all best practices or pay a penalty.

Instead, we should be freeing the health care community from heavy-handed regulation and constant intrusive bureaucratic scrutiny. Doing so is the only way to allow doctors to develop individualized quality treatment plans for each of their patients and to unleash innovation in the delivery of health care.

But with the current doc fix expiring tomorrow and Medicare physicians facing a 21-percent pay cut, there is not enough time to reopen the bill and rewrite it with better policies. But there is—there is—enough time to address the fiscal irresponsibility of this bill.

That is why I am offering an amendment to this bill that would simply require Congress to pay for that $141 billion under its normal pay-as-you-go budget rules—rules that this bill explicitly exempts itself from in section 525 of the bill. The pay-as-you-go budgeting rules, which share bipartisan support in Congress and the White House, wouldn't force us to offset the new spending immediately. Rather, we would have until the end of the year to find these savings and 10 years in which to achieve them.

My amendment would not delay or change anything else in the bill. Doctors and seniors wouldn't notice any difference. It would just require Congress to budget for the costs, just as we promised we would.

Indeed, just 2 weeks ago, the Senate passed a 10-year balanced budget, stating specifically that any SGR patch or repeal would not add to the deficit. So passing this bill in its current form would not only be irresponsible, it would be dishonest. It would be inconsistent with what we have just said with the budget.

We have known for a long time that Medicare cannot survive without structural changes to its price control system, and we know this bill, H.R. 2, does not contain such reforms. They aren't there. According to a report issued last week by Medicare's actuaries, ''Under the new payment system, most doctors will see cuts in 2025.''

The only way to put Medicare on a sound fiscal footing is to make it work for America's doctors and for America's seniors. To do that, we need to work toward replacing the centralized price-fixing system of the status quo with a functional consumer market that empowers seniors' access to the high-quality, individualized health care they deserve, and that enables doctors to do what they do best, which is provide the very best medical treatment in the entire world.

This is my goal. I believe this is a goal widely shared within this Chamber. But we can't deceive ourselves: To get there, we must be responsible with the public trust and we must be honest with ourselves. To that end, I implore my colleagues to support this amendment.

To put it very simply, paying for this new spending is the right thing to do, and we just passed a budget promising that we would do it. My amendment does nothing more than hold us to that very promise.

Thank you, Mr. President.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. LEE. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

RECESS

Mr. LEE. Mr. President, I ask unanimous consent that the Senate stand in recess as under the previous order.

There being no objection, the Senate, at 12:28 p.m., recessed until 2:15 p.m. and reassembled when called to order by the Presiding Officer (Mr. PORTMAN).

The PRESIDING OFFICER. The Senator from Texas is recognized.

SGR LEGISLATION

Mr. CORNYN. Mr. President, hopefully this afternoon we will take up a

very important piece of legislation coming over from the House of Representatives that received an overwhelming vote of Republicans and Democrats alike—a package negotiated at the highest levels of the House leadership between Speaker BOEHNER and his staff and NANCY PELOSI and her staff.

What could it be that brings the political parties and the leaders of the parties in the House together to try to build a consensus and come up with a solution? Well, it is really to right a wrong or remedy a mistake Congress made back in 1997. Basically, at that time, Congress decided, in order to save money on health care costs, it would begin periodically to cut the amount of money that was reimbursed to health care providers—primarily doctors and hospitals. That is how Congress thought way back then we were going to save money.

What has happened in 17 of the 18 times these cuts will have been implemented? Well, Congress has realized it was a mistake. Here is the problem. When you tell doctors in rural parts of Texas ''You are going to earn 20 percent less to treat a Medicare patient tomorrow than you did today,'' well, what they are going to decide is ''Can I afford to keep my doors open? Can I afford to pay the bills? And maybe I can't afford to see any more Medicare patients.'' When doctors simply refuse or are unable to afford to see Medicare patients, then our seniors lack access to health care they need and they deserve.

So in very difficult, contentious times politically, I think this so-called sustainable growth rate—or doc fix—bill I am alluding to which is over here from the House and which I hope we will vote on this afternoon actually represents a commonsense solution to one of our big challenges and certainly will get Congress out of this embarrassing position of every 6 months to a year or so having to come back and backfill and fix a problem we ourselves created back in 1997.

Hopefully, we will be able to pass this legislation and get it done and give physicians and health care providers the certainty they need about the reimbursement rates under Medicare and thus will allow more of them to see more seniors and provide them health care benefits under Medicare.

Now, some people may say: Well, this bill is not perfect. They would be right. It is not perfect. But actually there is no such thing as a perfect piece of legislation, particularly when it is the product of bipartisan negotiations where both sides had to give in a little in order to get to an agreement. But I do commend Speaker BOEHNER and Leader PELOSI for working in a bipartisan way and producing something that has received resounding support from the House of Representatives.

As I said, this legislation provides our health care professionals with a predictable expectation for reimbursement rates—an idea that has, sadly, only been a dream for many physicians in Texas and across the country and one that Congress can now and should make a reality.

But this legislation also does something else very significant. It not only addresses the reimbursement rate of doctors, it also introduces other changes to Medicare that will help reduce the deficit over the long term—not just for the next 10 years but 20 years out and beyond.

Now some people might say: Well, if Congress passes this legislation now, can't they come back and undo it next year? The pattern has actually been when there have been negotiated bipartisan agreements on things as important as Medicare and Social Security that they tend to stick and they tend to stay in place. So I believe that while this negotiation certainly was no easy task and while it is a modest first step, the good news is it does represent real meaningful entitlement reform—something the President of the United States said he supports and something now that both parties here in Washington and Congress have been able to support.

This bill does make important strides on a difficult issue. When I said a moment ago it is not perfect, let me explain exactly what I mean by that. Not all of this bill is paid for. Today I plan on offering an amendment that would keep our country from growing into greater debt by offering a pay-for for this piece of legislation.

How would we do that? Well, my amendment—which I hope, again, we will vote on this afternoon in a series of as many as eight votes and final passage of the bill—would repeal the individual mandate from ObamaCare. That would, according to the Congressional Budget Office, free up literally close to $400 billion that could then be used to satisfy the deficit for this so-called doc fix.

Many have rightly demanded an offset for the bill. I am very sympathetic to that, and my amendment is designed to address it, because—as the Presiding Officer knows, given his long service not only in the Bush administration, at OMB, and in the Congress as well as the Senate—we have to do something about the long-term debt and unfunded liabilities of the Federal Government. I am amazed almost daily about the lack of urgency. Perhaps that is because interest rates are relatively low and we are not feeling the drain of debt service payments to our country's creditors because they buy our debt and they demand to be paid interest or debt service on that debt. When interest rates begin to creep back up again, as they invariably will, that is going to put a real dent in everything from national security to the safety net programs that we all believe are important. So my amendment will repeal the individual mandate in ObamaCare and help pay for this appropriate fix in doctor reimbursement rates in Medicare.

You may ask, well, isn't that a pretty dramatic or controversial thing to do, to repeal the individual mandate in ObamaCare? I asked my staff to go back and get some quotes from a candidate running for President in 2008, who happens to be the current occupant of the White House. Here is what then-Senator Obama said on February 28, 2008, on one TV show:

> Here's the concern. If you haven't made it affordable, how are you going to enforce a mandate. I mean, if a mandate was the solution, we can try that to solve homelessness by mandating everybody to buy a house.

Well, as the Presiding Officer knows, the President actually said when we passed ObamaCare—frankly, without my support and the support of this side of the aisle—the President claimed it would lower health care premiums by $2,500 a year for a family of four. That has proven not to be the case. But quite clearly, the President himself, when he was running for office in 2008, opposed the individual mandate.

Here is another quote from CNN in 2008. This is Senator Obama running for President. He said:

> In some cases there are people who are paying fines and they still can't afford it, so now they are worse off than they were. They don't have health insurance and they are paying a fine.

That is what the individual mandate is all about, as you know. I will go on with the quote. ''And in order for you to force people to get health insurance, you've got to have a very harsh, stiff penalty.''

So President Obama, back when he was candidate Obama, back when he was Senator Obama, opposed the individual mandate. All my amendment would do would be to repeal the individual mandate and allow us to obtain a savings to pay for this legislation.

I will read one more quote, because I find the irony pretty rich. Senator Obama said—and this was when he was running against then-Senator Clinton, who apparently is now again running for President. Senator Obama said in 2008:

> She believes that we have to force people who don't have health insurance to buy it, otherwise there will be a lot of people who don't get it. I don't see those folks, and I think that it is important for us to recognize that if you're going to mandate the purchase of insurance and it's not affordable, then there's going to have to be some enforcement mechanism that government uses. And they may charge people who already don't have healthcare fines or have to take it out of their paychecks. And that I don't think is helping those without health insurance.

So my amendment that would offer to pay for this bill would repeal the mandate that then-Senator Obama, candidate for President, was so critical of. It would repeal a tax on the American people that coerces our citizens into purchasing health care they apparently don't want or they wouldn't otherwise buy but for the threat of government coercion.

The better way to do it, in my view, is to make health care more affordable,

not to make it more expensive and say if you don't buy the government-approved care—even if you don't want what it provides—then we are going to coerce you to do it. We are going to penalize you for it. This is bad for America and hurts people instead of giving them the helping hand they need when it comes to health care.

We are going to have a lot more to say about how we need to repeal and replace ObamaCare with more affordable health insurance that gives people access to the doctors and services they want and need. But on the present bill, no one denies the need for a long-term permanent solution to the way we pay health care providers under Medicare. So for the benefit of physicians, our seniors, and the American people, we need to do this, but we also need to find a way to pay for it.

I am hoping we pass this legislation today. I believe the current provision expires at midnight tonight. It is important that we stop kicking the can down the road and we allow our family doctors to do what we want them to do most, which is to focus on what they do best and what our families need the most. At the same time, it will ensure seniors access to the care they need. Such a meaningful solution is long overdue.

Mr. President, I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Ms. STABENOW. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER (Mr. LANKFORD). Without objection, it is so ordered.

The Senator from Michigan.

LYNCH NOMINATION

Ms. STABENOW. Mr. President, I think the American people deserve to see the contrast between how nominees were treated in the last decade, during the Bush administration, versus how they are treated in this decade, during the Obama administration.

When former President Bush nominated John Ashcroft to be U.S. Attorney General, it was controversial. I was one of 42 Democrats who opposed the nomination. Yet it only took 42 days for John Ashcroft to get a vote on confirming his appointment because neither I nor other Democrats stood in the way and blocked actually having a vote.

Now, I agree that was a different time, where filibusters were not used every single day on every single issue, unfortunately. But I remember that at that time our Republican colleagues came to the floor and said: Elections have consequences. When a President is elected, he or she has the opportunity to put forward their nominees and have a vote. Day after day people came to the floor and said: Just let us vote. Just let us vote. And we did let the vote happen.

As of today, President Obama's nominee for Attorney General, Loretta Lynch, has waited 157 days and counting, and we intend to count the days. In fact, since the Judiciary Committee reported Loretta Lynch's nomination out of committee, she has now waited longer for a vote on the Senate floor than the last seven attorneys general combined—seven attorneys general combined. She has waited longer than seven attorneys general combined.

The U.S. Senate has the constitutional responsibility to provide advice and consent to the President as it relates to his appointments. That is a serious responsibility and we are not asking that someone vote yes if they want to vote no. They have a right to vote no. We have had enough Members now come forward that it is clear she actually has the votes. We have had enough Members indicate they would support her that we know we could get a vote on the floor and that she would, in fact, be confirmed as the Attorney General. But everyone has the right to state their piece, to vote as their conscience would have them vote. Unfortunately, our Republican colleagues have so far withheld the respect given to other Presidents—to President Bush. They have withheld that from this President.

If this is frustrating to me, I can only imagine how frustrating it is to Loretta Lynch, who I know is eager to get on with the work of our Nation's top law enforcement official. I had the opportunity to meet with Ms. Lynch in early December. She impressed me with her passion for upholding the rule of law and her belief that law enforcement could be a partner in building stronger and more cohesive communities. I talked to her about how the Justice Department could play a role in supporting ethnic diversity in communities such as Detroit and Flint and other communities across Michigan.

Loretta Lynch understands the devastating effect racial profiling has had on the relationship between the police and the public, which is why I am pleased to learn of her support for police body cameras and so many other policies that would help in that regard. In addition, she understands the threat posed by those who would intimidate Americans from participating in elections.

I regret Loretta Lynch has not yet been granted the opportunity to play her role in promoting access to the polls and preventing groups from being disenfranchised. I regret our FBI, with all it must do for the safety and security of Americans, does not have a permanent Attorney General to direct it. I regret there is not a permanent Attorney General to advise prosecutors about actions to take against banks that commit fraud against homeowners. I regret our Republican colleagues are continuing to perform the same stunts in the majority as they did in the minority: to govern by holding government functions hostage.

Those who oppose the nomination have every right to vote no, every right to fight to defeat this nomination, but if they continue to refuse to give the advice and counsel and perform the duty they are sworn to uphold under the Constitution and continue to block a simple vote on a nomination from the President of the United States for Attorney General of this country, they are doing a disservice, I believe, to our country.

We have heard so often from people they are so tired of Congress obstructing and not acting. I would urge colleagues to get on about the business of a nomination that has been held on this floor for too long—too long—and 157 days is too long. It does a disservice to all of us to see this continue. We need Loretta Lynch as our Attorney General.

We have a lot of business to conduct in the Senate and a lot of very important topics coming up. We need to get about the business of allowing this vote. However it goes is how it goes. We have indicated, we have the votes if we are allowed to vote, but everyone has a right to express themselves. Let us put in place a competent, strong Attorney General for the country and then move on to other serious issues that we have to address in the Senate. It is time to vote.

Mr. President, I yield the floor.

The PRESIDING OFFICER. The Senator from Alabama.

SGR LEGISLATION

Mr. SESSIONS. Mr. President, I have been a strong advocate and a believer that it is time for us to fix the physicians' payment method for Medicare and Medicaid—for the providing of health care by doctors—and put it on a permanent basis right now.

We have 17 times passed last-minute legislation to avoid what now would be a 21-percent cut in doctors' reimbursement rates for doing Medicare work. That is not acceptable. We need to end that. They do not need to be worried every year whether or not Congress is going to cut their pay. In fact, they cannot do the work with a 20-percent cut. They will not do it, they can't do it financially, and it would be devastating to Medicare. I believe that, and I think all of us believe in that.

The 17 different times when this issue has come up since 2003 we have paid for it. Republicans in particular have insisted that we will find the money through some sort of other reduction in government spending and move that over to pay for this critical need, without which Medicare would collapse.

I thought now that we want to do it permanently, it should be done in a way that is financially sound and does not add to the debt and has good policy in it.

Some of my colleagues have already talked about the policy that would be

in this legislation. I am not prepared to be a big critic of that. I am sure it could be done in different ways. My focus right now is just based on my experience from the Committee on the Budget and the spending we are doing in Congress to try to get the thing done right. It must be paid for.

The bill to be advanced today contains over 250 pages. It was rushed through the House of Representatives with the promises that ''it pays for all new future spending'' and ''it offsets all new spending.'' Well, both of those statements are not true. That is just not true. The bill is not paid for and it does not offset the new spending.

Because of a desire to get this fixed, an attempt was made by the House so the Senate, on the night we completed work on the budget at 3 a.m. before recess, would pass this bill without even having a good official score—at least not one we were able to examine over a period of time—and without any knowledge of what was in the bill. Senator MCCONNELL and Members of the Congress said: No, we are not going to rush this through—$200-something billion in expenditures over 10 years—at 3 a.m. in the morning with nobody having had a chance to look at it.

We had some 700 amendments filed to the Budget Act so we didn't pass it that night. It has been moved forward now, and we have a deadline tonight. Presumably, if we don't fix something tonight, physicians will begin to see cuts in their pay. Of course, too often that is what happens around here. Too often a bill that is not sound financially is moved at the very last minute and Members are told: If you don't pass it now, then something bad is going to happen. In this case, doctors, whom we respect and admire and need, are not going to be able to get the pay they deserve and have been receiving, and they are going to be hurt by these cuts.

Well, there are opportunities to extend this. We could pass legislation this afternoon, tonight, that would extend this for a period of time, if need be, but the reason we are at the end, the last minute, is because it was designed that way.

Only days after passing the Senate budget, that we were proud to see balanced with a $3 billion surplus, we are talking about passing new legislation that would add $174 billion to the debt over the next 10 years. Another estimate shows that over 20 years it is a $500 billion addition to the debt of the United States—one-half of a trillion dollars.

The bill violates the Budget Act. The Budget Control Act, which we passed in 2011, set a limit on how much spending could occur. There may be as many as eight—let me repeat, eight—violations of budget rules that are involved in this legislation. The Committee on the Budget is looking at this, and these are the numbers it may violate.

One, it likely violates section 302(f) of the Congressional Budget Act by spending in excess of the budget allocation of the Committee on Finance for the next fiscal year, over the next 5 years, and over the next 10 years.

Two, it may violate section 311(a)(2)(A) of the Congressional Budget Act by spending $7.4 billion in excess of the aggregate spending top line agreed to for fiscal year 2015—this year we are in.

Three, it likely violates the Senate pay-go rules. The bill increases the on-budget deficit by $74 billion over both the 5- and 10-year budget periods, thus exceeding the balance on the Senate pay-go scorecard.

Four, H.R. 2 increases short-term deficits. Over the 10-year budget window it would increase deficits by $141 billion.

Now, $141 billion and $174 billion, what is the difference? Well, when you spend $141 billion more than you are supposed to over 10 years, financed by deficit spending, all of that money, every penny of it, is borrowed in order to be spent, which means you have to pay interest on the money you borrow. So it is not $141 billion, it is $174 billion. That includes the interest on the $141 billion over 10 years that has been accumulated and will continue to accumulate in the next decade and the decade after that.

Five, the bill increases long-term deficits.

Six, it may violate section 306 of the Congressional Budget Act by including language that falls within the jurisdiction of the Committee on the Budget that has not been reported or discharged from the Committee on the Budget.

Seven, it likely violates section 303(a) of the Budget Act by creating new spending in a fiscal year without a budget resolution.

Eight, it may violate section 401 of the Budget Act by creating new entitlement spending during the fiscal year.

We tried to contain ourselves, and one of the things we rightly did was to create a budget violation aimed to prevent the creation of new entitlement programs during the current fiscal year.

So these are not technical violations, as it might appear to some. They are mechanisms by which the crafters of the Budget Act deliberately tried to contain the Senate from figuring out ways to gimmick and get around spending limits. They created all these steps, each one based on history, for the most part in order to stop abuses. So it violates these provisions because it spends more money than we are supposed to be able to spend and more than what we agreed to spend.

So H.R. 2 increases long-term deficits. According to the nonpartisan Congressional Budget Office's letter to Speaker BOEHNER, enacting this bill in its current form would increase the Nation's long-term deficits. Long-term deficits are those deficits created after the first 10 years of the current budget window.

A lot of times they will write a bill so it looks as if it is OK for 10 years, knowing that in the future it will add to the debt. But nobody cares about that. So we made a budget point of order to try to identify long-term abuses—a good provision, I submit.

About a month or so ago we had before the Budget Committee, a professor from Boston University, I believe, who talked about the real threat to America's financial condition. He said that we are on an unsustainable path, that we cannot continue on this path, and that it will result in financial dislocation and damage to America. And the most important thing to consider is this: What will a piece of legislation do to the long-term liabilities of the United States? Does it add to our unfunded liabilities or not? We need to be reducing our unfunded liabilities because they are so great—hundreds of trillions of dollars—and those unfunded liabilities financially threaten the very future of America.

This adds to that. We need to be figuring out ways to reduce the unfunded liabilities. I thought that is what our goal was. That is why we passed a budget that balances.

According to the Congressional Budget Office's analysis, ''taken as a whole, H.R. 2 would raise federal costs relative to current law in the second decade after enactment.''

In other words, it increases the deficit in the second decade. Some have tried to argue that in the second decade there is extra money coming in, in some way, and it will all be paid for—not so.

So let me explain. In its report to Speaker BOEHNER, the report that was used by the House as it proceeded to vote on this bill, the Congressional Budget Office indicated that not only would H.R. 2 increase short-term deficits by $141 billion over the next 10 years but it would also increase long-term deficits over both, the first and second 10-year windows. The Committee for a Responsible Federal Budget estimates that this legislation would add a half trillion dollars to the debt in the next 20 years.

Half a trillion is real money—$500 billion. We are struggling right now to figure out how we can permanently fix our highway bill so we have a long-term highway bill that is paid for. We need about $10 billion, $15 billion a year to achieve that. We are seeing a reduction in gasoline revenues. Congress wants to spend more than that, and we are looking for that money. This is over $500 billion over 20 years, and $174 billion over 10. These are huge sums of money.

The Federal highway bill is now under $50 billion a year. Federal aid to education is about $100 billion a year. This is just indicative of how much we are overspending.

The Office of the Actuary at CMS—the chief financial officer at the Centers for Medicare and Medicaid Services—is responsible for conducting and

directing the actuarial program for CMS and directing the development and analysis of health care financing issues.

On April 9, Mr. Spitalnic released a review of the estimated financial effects of this legislation. Analysis conducted by the Heritage Foundation actuaries indicates that the drafters of the bill actually double-counted funds. While the bill anticipates higher premiums for Medicare Parts B and D and cuts to Medicare Part A, those savings would be $55 billion and $32 billion, respectively.

Medicare Part A is the trust fund American working people's money goes into off their paychecks every week. So most Americans believe they pay for Medicare. And they do, for the most part, although we are now taking in less money than is going out to a significant degree.

So what did this bill do? This bill cuts the expenditures for Medicare Part A, the trust fund part, and it claims that money—$32 billion and $55 billion, respectively—is now available to spend on the physicians to pay for their fix. But the physicians' Medicare part—when you go to a doctor and Medicare pays for that—that is not trust fund money. That is general revenue Treasury money.

So what has happened? They are cutting the reimbursements of hospitals and doctors. They claim it won't affect the benefits accrued to people who need health care, but it probably will. To cut the cost of providers of health care services, in effect, reduces the benefits that actually go to the patient.

So how does that money get from the trustees of Medicare—who are supposed to manage this program and take the money in that comes off our paychecks and goes to Medicare—to paying for something outside of Medicare Part A?

They take an oath to be responsible and faithful to the trust as trustees of Medicare. They don't give it to the U.S. Treasury. They loan it. There is a debt instrument. The money is loaned to them and the Federal Government pays interest. That is where we get the 30-some odd billion dollars in interest over 10 years—part of it.

The money that is being used to fund the portion that they claim is actually paid for I say is not paid for. The Congressional Budget Office has told us this technique is double counting. The money cannot be used to benefit Medicare and, at the same time, fund a new expenditure. We really have to watch this. It is something I have come to realize is one of the biggest gimmicks the Senate uses.

When ObamaCare was passed—on December 23, the night before it passed, we got a letter from the Congressional Budget Office at my request. I read it on the floor on December 24, the day the bill passed. It said, I think, there was $400 billion, $500 billion in double-counted money they said was available to fund the Affordable Care Act.

Colleagues, we have got to be careful. A country goes broke by managing money this way—huge sums of money.

Beyond this gimmick, CMS Actuary Spitalnic goes on to say that H.R. 2 raises ''important long-range concerns that would almost certainly need to be addressed by future legislation.''

When the bill's 5 percent annual bonuses in physician payments expire as scheduled in 2024—9 years from today—a major payment cut from most physicians would follow the next year, according to his report. The payment structure would also be troublesome in years with high inflation. So, in essence, by 2024, another round of doc fixes would be needed. In other words, not only does this bill add massively to the debt and engage in—I hate to say this—improper accounting, but it also fails to even provide the long-term solution it promises. It promises we are going to have a permanent fix of the payments of physicians. But this bill is not a permanent fix, and within 9 years we are going to be back in a situation that is unacceptable and has to be dealt with again by spending more money. By making these cuts in the outyears, the real costs are hidden.

We have a proposal that provides increases for doctors for the next 9 years and then begins to show reductions, and it claims, somehow, that this is going to pay for it. But Congress is not going to allow those reductions to take place either, because we are not going to be cutting doctors 5 percent a year for any 1 year, most likely.

It is not too late to make things right. The bill needs to go through regular order. It hasn't gone through our committee in the Senate. The House said the bill was going through the regular order. It hasn't gone through the regular order. It hasn't been through a committee where members have the chance to offer amendments. It is coming up on the floor. We are hardly having any amendments. I understand maybe we will have three amendments on each side. That is a pretty minuscule discussion when it supposedly has to be passed in a day. So the discussions will take place at midnight tonight.

Colleagues, we have to understand the importance of what we are doing. This legislation adds almost $200 billion to the debt in the next 10 years. It breaks our past commitment and the precedent we have established to pay for these doc fixes. In fact, I have been most insistent that before we put the extra money for the physicians, we find a pay-for—some responsible reduction in spending elsewhere—so we can set priorities and pay for the doctors. This is substantially abandoned in this legislation. I think it disregards Congress's commitment to honest accounting, the principles that we have established about how to accurately calculate the cost of legislation. It breaks the budget we had agreed to in 2011—the spending reductions in the Budget Control Act—and it violates the budget the Senate just passed a couple of weeks ago.

We need to think this through. I hate to object because I truly believe we need to take care of physicians' payments. It is absolutely wrong, and Congress has been negligent in failing to address this for years. It has been over a decade that we haven't dealt responsibly with this.

So I salute the House colleagues for saying we are going to develop a bill that fixes this over time. Unfortunately, it is not a permanent fix, as I originally thought it would be, but, it is also not a responsible fix, a grownup fix. The kind of action for which the American people depend on Congress, and hope to see, is not occurring because this bill adds to the debt.

We want to do something. We want to fix the doctors' problem, but we don't want to cut spending anywhere else.

Faced with that difficult choice, this legislation—at least to a two-thirds degree—does what we too often do: We just spend the money, commit to spending the money, and then add it to our credit card. We add it to the debt that is $18 trillion now and growing dramatically, producing for us an annual interest payment of $220 billion and putting us on a path—according to the Congressional Budget Office—of an almost $900 billion interest payment in 10 years. I believe that is not good management of the people's business.

I appreciate the opportunity to share these grim remarks and to lament the difficult situation in which we find ourselves. I do believe the Lee amendment will fix this. Maybe other amendments will, too. But we certainly need to step forward and make sure we don't continue down this path.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. WYDEN. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER (Ms. AYOTTE). Without objection, it is so ordered.

Mr. WYDEN. Madam President, I ask unanimous consent to speak in morning business for up to 15 minutes.

The PRESIDING OFFICER. Without objection, it is so ordered.

MEDICARE ACCESS AND CHIP REAUTHORIZATION ACT

Mr. WYDEN. Madam President, it is my hope that soon the Senate will be about to start voting on legislation that in one fell swoop will improve health care for millions of Americans. This discussion should start with a Medicare milestone. That milestone is abolishing once and for all the outdated, inefficiency-rewarding, commonsense-defying system of paying physicians under the Medicare Program.

As my colleague from New Hampshire knows, what I am talking about in the technical lingo of health care is the SGR, the sustainable growth rate. It is a horrendously flawed formula for paying doctors and providers who treat our Medicare patients. Yet despite this very sour pedigree, it has dominated much of the discussion about Medicare since 1997.

I wish we had put this flawed reimbursement system in the dustbin of history last year. As some of my colleagues know, I had sought to do that, along with the support of others. But I think now we have reached the point, on a bipartisan basis, where we have a chance for seniors and their providers to cross the victory line and be better off and have a better system for all Americans.

I thought I would take a minute or two before discussing some of the other health care efforts that I hope will go forward today to describe how this happens. A little over a year ago, there was not much reason to think we would not just keep passing this leaky boat. That is essentially what the Senate had been doing for years and years with this flawed program.

In fact, I remember one of our younger Members of this body was where the Presiding Officer of the Senate is sitting. I said: At this rate, we are probably going to be on patch No. 70 or 80 by the time we get around to really fixing this. So people were not very optimistic a little over a year ago. Since then, however, since that 17th patch, we saw Members on both sides of the aisle saying: It is time to start getting serious and getting traction for a permanent repeal-and-replace of this flawed reimbursement system.

In January of this year, momentum finally began to grow. In other words, we used that period in 2014 as a springboard. Discussions began with Speaker BOEHNER and Leader PELOSI. Their discussions were really based on the bipartisan, bicameral framework that was developed in 2014 when leaders in the other body and the Senate got together: Finance Members, Ways and Means Members, the Energy and Commerce Members. The combination of that work and Speaker BOEHNER and Leader PELOSI coming together leads us to where I hope we will be here before long, and that is, once and for all abolishing this flawed reimbursement system.

If we did not take this action—and in effect it really has to be done now—without taking people through the root canal work of how the reimbursement system works at the Medicare center, what is called CMS, we do know that if Congress does not intervene, we would see physicians cut 21 percent. That would, in my view, cast a very strong shadow over our ability to serve America's older people. I mean, particularly in the rural areas of this country, we have a lot of those practices that serve older people walking on an economic tightrope right now. They are trying to figure out how to pay the staff and pay for equipment and lighting and everything else. A 21-percent cut would be enough, in my view, to really put some of those small rural practices out of business. So it was the judgment of this bicameral group that worked through 2014, that Leader PELOSI and Speaker BOEHNER picked up on this year, to come up with a very different kind of model to replace the Medicare reimbursement system that was so flawed, the SGR, with a merit-based incentive payment that rewards those who provide high-quality, high-value care. That, in my view, is how we get the best value for America's seniors who, of course, want to get the right amount of care at the right time. They want it to be of high quality.

A major part of this legislation will, in my view, help to promote better coordination of care. American health care is so fragmented and so strewn, kind of hither and yon, very often a senior can be treated by a variety of providers. No one really rides point on it. The senior ends up in the hospital emergency room.

At that point, when providers say: Who should we be in contact with? The senior is not even sure of all of the people, particularly if that senior has multiple chronic conditions—perhaps diabetes and a heart problem—the senior will not even know the array of providers they have seen, let alone have someone coordinate their care.

The good thing about this reform is it promotes that kind of care coordination. Also, physicians, as part of this, will have clear incentives to enter alternative payment models that are going to promote team services, services where there is a team of health care providers. It will require more Medicare transparency, more information about various services that are provided to older people so that there is some sunlight on this incredibly complicated system, particularly the Medicare Program that takes over $500 billion a year and spends it in a way that has not been particularly transparent.

I want to thank Senator GRASSLEY for working with me closely on this for a number of years.

Finally, this legislation also makes permanent what is called the QI Program, again fancy health care lingo for an important program that pays the premiums, the outpatient premiums, for low-income older people. I think that is especially important, because it says for older people, particularly those of modest income, that there is going to be some assistance for the outpatient services, what is called Part B, which are so critical in terms of keeping older people out of long-term care facilities.

My guess would be in New Hampshire and Oregon—like in my home State of Oregon—having that kind of assistance for low-income people in the community is really key to avoiding institutional care.

I do want to note that I think all of us are going to say this bill does not meet the test of perfection. I happen to believe the bill would have been stronger had this body been involved in all of the negotiations. But clearly to have a milestone for Medicare—and that is what I think you get when you eliminate what really pretty much is a fraud. The Medicare reimbursement system has been honored more in the breach than in the observance. Every year it is waived, it is patched. I think to replace it with what I have described really is something that when the history of Medicare is written, people are going to look back and say: This was an important day. These were sensible changes. Improving care coordination, putting a new focus on quality, data transparency, coordination of health care teams, the kinds of things that this proposal does, are very much in the interests of seniors, providers, and taxpayers. I think this day will be remembered for making a very important contribution in the history of Medicare.

I do want to mention several other amendments that I hope will be offered. I also feel very strongly about the need for this legislation to reaffirm and strengthen health care in America for our most vulnerable children. There are more than 100,000 of these youngsters in my home State alone. I am talking about the Children's Health Care Insurance Program, what is known as CHIP. My hope is we will have a chance here to vote to expand on what the other body has done and have a children's health program that will be extended for 4 years and not just 2.

The CHIP program has the support of almost 40 Governors. They span the philosophical spectrum. They have achieved such strong support because these Governors who are right on the front lines with a program that involves very close coordination by the Federal Government and the State governments want some certainty and predictability. They don't want vulnerable kids and their families to be in limbo.

So I am very hopeful that amendment will be offered and that it will get the support of our colleagues.

Third, I hope there will be an amendment to improve health care for women. I believe we have all followed this debate that I think is needlessly divisive. There are so many Senators who want to find common ground to improve health care.

We have gotten bogged down and somehow virtually all the bills now seem to be a magnet for a debate about abortion. My colleague, Senator MURRAY, wishes to offer a very important amendment to expand health care services and the availability of reproductive health services for women, community-based care. I am very hopeful that will be offered as well.

Finally, on a bipartisan basis, Senators CARDIN and COLLINS wish to offer legislation to really set aside what are

very outdated approaches with respect to how Medicare provides services, therapy services, for our citizens. We are talking about physical therapy, occupational therapy, services with respect to speech.

Senators CARDIN and COLLINS want to get rid of these arbitrary therapy caps. I am very hopeful their amendment will be able to be offered as well.

One last point, on a matter that is not health care related, this legislation carries an additional program that is particularly important to the people whom I represent, and that is the Secure Rural Schools Program would be extended for 2 years.

I wrote this law in 2000 with our former colleague, the Senator from Idaho, Mr. Craig, because in most of our States—States where the Federal Government owns much of the lands, heavily forested—as a result of changes in environmental policy and other changes, a lot of these rural communities didn't have the money they needed for schools, roads, law enforcement, and basic services.

We have extended it since 2000. We have had testimony indicating we are going to need that safety net for some time, even as you try to get the harvest up in a sustainable way.

I am very pleased this program, an economic lifeline to rural communities across Oregon and other States, is going to be extended for 2 years. I think that provides us an opportunity to come up with fresh strategies, both with respect to the safety net.

I would like to—in the future, in the Senate Budget Committee—support it. I believe my colleague, the Presiding Officer, was interested to link Secure Rural Schools with the Land and Water Conservation Program and the PILT Program. We have bipartisan support for that.

I would like to see us use these 2 years to strengthen the safety net and get the harvest up in a sustainable way.

I wanted to make mention of that before I wrap up.

In closing, I think the health legislation—that I hope will be voted on shortly—represents one of those rare moments on a major issue.

I mean, I would go so far as to say—having worked with older people since my days with the Gray Panthers—I think what we are doing with the abolition of this outdated Medicare reimbursement system is laying the foundation for what will be the future of Medicare. The future of Medicare is not going to be what it was about in the 1960s when it began—a senior in New Hampshire might need the hospital for a serious injury, maybe they would see a physician, get Medicare Part B if they broke their ankle. The future of Medicare is going to be about dealing with chronic disease. It is going to be about diabetes, cancer, heart disease, and stroke.

The reality is that Medicare has not kept up with the times. I think it is worth noting that in the big debate about the Affordable Care Act, chronic disease was hardly mentioned at all, not by anybody. That is going to be the foundation of Medicare for the future. More than 90 percent of the Medicare dollars in the future, based on the challenge of dealing with older people with these chronic conditions, is going to be about chronic disease.

The reality is, when you abolish this flawed Medicare reimbursement system and start promoting coordinated care, what would happen in the State of New Hampshire is you would start seeing teams—perhaps a nurse, a physician, a pharmacist—a team in New Hampshire or in Oregon come together, particularly where there aren't the Medicare Advantage plans, and say we can give, as our colleague from Georgia noted not long ago, Senator ISAKSON, better care at lower cost and do it for what is likely to be the type of health care services that dominates Medicare in the future, which is chronic disease. We will be better able to tackle that with the abolition of SGR.

So my hope is shortly we will vote to take that action that I believe constitutes a Medicare milestone, reaffirms our commitment to America's youngsters, improves health care services for women—from one end of America to another—and gets rid of this outdated system of therapy caps that are restricting what those who need physical therapy, occupational therapy, and others could get.

This could finally be a punctuation mark in this, the 50th year of Medicare, and an opportunity for all Senators to see that they were part of adopting a fresh set of policies to provide a brighter and healthier future for all our people.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. HATCH. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. HATCH. Madam President, I want to mention what Speaker BOEHNER said about this bill we are about to look into—the CHIP bill and the SGR, the physicians' payment bill. Speaker BOEHNER said:

> Unless the Senate passes the House-passed ''doc fix'' bill, significant cuts to physicians' payments will begin tomorrow. The House legislation passed with overwhelming bipartisan support, and we do not plan to act again, so we urge the Senate to approve the House-passed bill without delay.

He summed it up pretty well. The fact is this has been a long ordeal that a lot of us have worked on for a long time, a lot of people on Capitol Hill. If we can pass this bill tonight, it will be a major accomplishment and we can go back to the child health insurance bill.

I remember standing here on the floor with Ted Kennedy on the other side passing a bill that brought a lot of angst to a lot of people but which has helped millions of children who were deprived of good health care. So this is a very important bill and I hope we don't foul it up. I don't think we will.

Madam President, I stand today in support of H.R. 2, the Medicare Access and CHIP Reauthorization Act of 2015. If enacted, this legislation would repeal and replace the Medicare sustainable growth rate, or SGR. That is the formula called the sustainable growth rate. It will extend the CHIP program for an additional 2 years—a program that has worked very well—and will put in place much needed reforms to the Medicare Program—something that hasn't happened in a long time.

This bill represents more than 2 years of hard work on both sides of the Capitol. It passed overwhelmingly in the House of Representatives with 392 votes. I expect it will also get broad bipartisan support here in the Senate. It certainly has to.

We have all grown tired of the seemingly endless cycle of passing temporary SGR patches year after year after year. It is not a new problem. It is one we have been dealing with for a long time.

A little over 2 years ago, a group of leaders from both the House and the Senate set out to fix this problem once and for all. As I mentioned yesterday, I was part of this group, as was former chairman of the Committee on Finance, Max Baucus. Together Senator Baucus and I worked with the leaders on the relevant House committees to craft legislation that would repeal and replace the SGR with an improved payment system that rewards quality, efficiency, and innovation. That legislation, which we reported out of the Committee on Finance by voice vote in late 2013, formed the basis of the legislation before us today.

I want to compliment the House for the great work they have done on this bill. I have to give a lot of credit to them. It is my hope we will act quickly to pass this bipartisan, bicameral legislation and send it to the President's desk as soon as possible.

This legislation demonstrates what Congress is truly capable of when Members work together. We all talk about the need for more bipartisanship in Washington. This bill can be a template for how things should work around here.

It also represents a step forward in the effort to reform our Nation's entitlement programs. As I mentioned, to go along with the permanent SGR fix, the bill includes a meaningful downpayment on Medicare reform. These reforms include a limitation on so-called Medigap first-dollar coverage, more robust means testing for Medicare Parts B and D, and program integrity provisions that will strengthen Medicare's ability to fight fraud.

Clearly, these reforms by themselves won't fix all of Medicare's fiscal problems. Indeed, much more work needs to

be done. But like many of my colleagues, I have been pushing for entitlement reform for years. During all that time I have seen politics and fear get in the way of progress. With this bill we have a chance to, at the very least, take a meaningful step forward—a bipartisan step, no less—in the effort to secure the safety net for future generations. Any Senator who, like me, supports entitlement reforms will welcome the changes we have made in this bill.

I am not here to say the bill is perfect. It is certainly not. But as the saying goes, we should not make the perfect the enemy of the good. This is a good bill. Once again, it passed in the House with a huge bipartisan majority and it is supported by groups across the health care spectrum. I ask unanimous consent to have printed in the RECORD a list of groups supporting this legislation at the conclusion of my remarks.

As it stands right now, in less than 12 hours doctors all over the country will face a 21-percent cut in Medicare reimbursements. In other words, we are out of time. We need to pass this legislation and we need to do it now. In fact, it is encouraging to see that even Members on the other side of the aisle support this good policy now, and I am proud of them for doing so.

Let's get this done. I hope all of my colleagues will join me in supporting H.R. 2.

I repeat what Speaker BOEHNER said today:

Unless the Senate passes the House-passed ''doc fix'' bill, significant cuts to physicians' payments will begin tomorrow. The House legislation passed with overwhelming bipartisan support, and we do not plan to act again, so we urge the Senate to approve the House-passed bill without delay.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

H.R. 2, THE MEDICARE AND CHIP REAUTHORIZATION ACT (MACRA)

LETTERS OF SUPPORT

Alliance for Academic Internal Medicine (AAIM), Alliance of Specialty Medicine, AMDA The Society for Post-Acute and Long-Term Care Medicine American Academy of Allergy, Asthma, and Immunology (AAAAI), America's Essential Hospitals, American Action Forum, American Congress of Obstetricians and Gynecologists (ACOG), American Health Care Association, American Hospital Association, American Medical Association, American Academy of Dermatology Association, American Academy of Family Physicians, American Academy of Neurology (AAN), American Academy of Pediatrics, American Academy of Physician Assistants, American Association of Clinical Endocrinologists (AACE), American Association of Neurological Surgeons/Congress of Neurological Surgeons, American Association of Nurse Anesthetists, American Association of Nurse Practitioners (AANP) American Academy of Ophthalmology.

American Association of Orthopedic Surgeons, American Association for the Study of Liver Diseases (AASLD), American College of Allergy, Asthma and Immunology (ACAAI), American College of Cardiology (ACC), American College of Chest Physicians (CHEST), American College of Gastroenterology, American College of Physicians (ACP), American College of Radiology, American College of Rheumatology (ACR), American College of Surgeons, American Gastroenterological Association (AGA), American Geriatrics Society (AGS), American Health Care Association (AHCA), American Medical Society for Sports Medicine (AMSSM), American Medical Student Association, American Osteopathic Association (AOA).

American Psychological Association Practice Organization (APAPO), American Society for Blood and Marrow Transplantation (ASBMT), American Society of Clinical Oncology, American Society for Gastrointestinal Endoscopy (ASGE), American Society of Hematology (ASH), American Society of Nephrology (ASN), American Society for Radiation Oncology (ASTRO), American Thoracic Society (ATS), Americans for Tax Reform, Association of American Medical Colleges, Association of Departments of Family Medicine, Association of Family Medicine Residency Directors, Aurora Health Care, Billings Clinic, Bipartisan Policy Center, California Hospital Association, California Medical Association, Catholic Health Association of the United States, Center for American Progress (CAP).

Center for Law and Social Policy (CLASP), Children's Hospital Association, College of American Pathologists, Council of Osteopathic Student Government Presidents (COSGP), Digestive Health Physicians Association, Endocrine Society (ES), Essentia Health, Families USA, Federation of American Hospitals, Fight Crime: Invest in Kids, Grace-Marie Turner for the Galen Institute, Greater New York Hospital Association (GNYHA), Gundersen Health System, HealthCare Association of New York State, Healthcare Leadership Council, Healthcare Quality Coalition, HealthPartners, HealthSouth, Hospital Sisters Health System, Iowa Medical Society.

Infectious Diseases Society of America (IDSA), Latino Medical Student Association Midwest, Let Freedom Ring, Louisiana Rural Health Association, LUGPA, March of Dimes, Marshfield Clinic Health System, Mayo Clinic, McFarland Clinic PC, Medical Group Management Association, Mercy Health, Military Officers Association of America (MOAA), Minnesota Hospital Association, Minnesota Medical Association, National Association of Community Health Centers, National Association of Psychiatric Health Systems, National Association of Spine Specialists, National Association of Urban Hospitals, National Coalition on Health Care, National Retail Federation, North American Primary Care Research Group, Novo Nordisk.

Oregon Association of Hospitals and Health Systems, Premier healthcare alliance, ReadyNation, Renal Physicians Association, Rural Wisconsin Health Cooperative, Society for Adolescent Health and Medicine (SAHM), Society of Critical Care Medicine (SCCM), Society of General Internal Medicine (SGIM), Society of Teachers of Family Medicine, Student National Medical Association, Student Osteopathic Medical Association, Tennessee Medical Association, Texas Medical Association, The 60 Plus Association, ThedaCare, The Hospital & Healthsystem Association of Pennsylvania, The National Committee for Quality Assurance (NCQA), The Society of Interventional Radiology, VHA Inc., Wisconsin Collaborative for Healthcare Quality, Wisconsin Health and Educational Facilities Authority, Wisconsin Hospital Association, Wisconsin Medical Society.

Mr. HATCH. Madam President, I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. WHITEHOUSE. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER (Mr. GARDNER). Without objection, it is so ordered.

Mr. WHITEHOUSE. I ask unanimous consent to speak in morning business for up to 15 minutes.

The PRESIDING OFFICER. Without objection, it is so ordered.

CLIMATE CHANGE

Mr. WHITEHOUSE. Mr. President, the distinguished majority leader, the senior Senator from Kentucky, is resolutely opposed to any serious conversation about climate change. Under his leadership, the Republican Party in the Senate has exactly zero legislation for addressing carbon pollution in any serious way. The majority leader has even written to Governors around the country urging defiance of the climate change regulations of the U.S. Government, namely, the Environmental Protection Agency's forthcoming clean power plan to cut presently unregulated carbon pollution from our powerplants.

I thought I should take a look at what Kentucky is doing about climate change. It turns out that Kentucky is already crafting a plan for complying with President Obama's clean power plan. Why are they doing that? In a statement, the Kentucky Energy and Environment Cabinet said it was because ''the overwhelming majority of our stakeholders are telling us to make preparations to submit a plan.''

The overwhelming majority of Kentucky stakeholders are telling the State of Kentucky to submit a plan. Kentucky has an energy and environment secretary. His name is Dr. Len Peters. Dr. Peters does not mock or disparage the EPA. Indeed, he praised the EPA at a recent national climate change conference for the flexibility and openness of its rulemaking process. Dr. Peters began his talk by saying, ''I'm from Kentucky and I'm not a climate science denier.''

Setting aside compliance with the administration's clean power plan, Kentucky actually had its own climate action plan, written all the way back in 2011. The Kentucky climate action plan sets forth more than 40 actions to address climate change. It would reduce Kentucky's greenhouse gas emissions by 1.3 billion metric tons between 2011 and 2030.

The Kentucky Department of Fish and Wildlife within that climate action plan has its wildlife action plan. The wildlife action plan opens its chapter on climate change by quoting the Intergovernmental Panel on Climate Change. Around here a lot of fun is sometimes made of the Intergovernmental Panel on Climate Change, at

least on the other side of the aisle. But Kentucky's Department of Fish and Wildlife quotes them as follows: ''[W]arming of the climate system is unequivocal.''

That is the Commonwealth of Kentucky, quoting the Intergovernmental Panel on Climate Change.

The Kentucky wildlife action plan goes on to report that—and I will quote it again—''Climate change has the potential to exacerbate existing conservation threats . . . in Kentucky by altering both terrestrial and aquatic systems.''

As you know, I am from the Ocean State. I am very concerned about what climate change is doing to our oceans and what it is doing to our coasts. Kentucky is landlocked. So imagine my surprise to read the Kentucky wildlife action plan's discussion of sea level rise. Sure enough, it is in there. Here is what the Kentucky wildlife action plan says about sea level rise: ''With the predicted increases in severity of hurricanes and tropical storms, coupled with potential shoreline losses in Florida and throughout the eastern seaboard, people may begin migrations inland,'' it says. It continues, ''If and when these events occur, Kentucky may experience human population growth unprecedented to the Commonwealth.''

That is Kentucky's statement on this. I hope the majority leader will appreciate why I am so insistent that we tackle this climate change problem when his own home State projects that people in our coastal States will be so grievously affected by climate change that we may have to flee to landlocked Kentucky.

The State government of Kentucky is not alone. Kentucky's cities—Lexington, Louisville, Frankfurt, Bowling Green, and Villa Hills—have signed the U.S. Mayors Climate Protection Agreement, quoting the city of Lexington, ''to act locally to reduce the impacts of climate change by lowering (manmade) greenhouse gas emissions.''

Lexington, KY, actually proudly notes that the Sierra Club has designated Lexington a cool city for signing the U.S. mayors agreement. Maybe in time the Sierra Club will designate Kentucky's senior Senator a cool Senator. Here is hoping.

Even fossil fuel companies in Kentucky get it. Columbia Gas of Kentucky has a climate change link on its Web site that says ''Meeting the Climate Challenge.'' Columbia Gas of Kentucky pledges to ''address climate change issues through business activities which promote sustained economic growth in a manner consistent with [our] environmental obligations.'' Columbia Gas of Kentucky also pledges to ''promote adoption of reasonable policies addressing climate change,'' including ''appropriately crafted legislation on climate change.'' Regrettably, their Kentucky Senators have responded with exactly no legislation on climate change, appropriate or otherwise.

Local Kentucky news station WFPL brought on a climate scientist from NASA not too long ago who said that scientists have exhaustively studied the numerous signs of climate change—the warming oceans, the melting glaciers, the changing temperatures—and narrowed it down, and the only culprit to explain what is happening is increases in mankind's carbon emissions. The NASA scientist on the Kentucky radio station compared it to the TV show ''CSI.'' He said, ''We've looked at all the different suspects . . . and there's only one suspect that's still in the picture,'' and that is human carbon emissions.

Kentucky Woodlands Magazine reports that ''the world is changing right before our eyes. . . . our natural systems are changing as a result of a warming climate.'' Indeed, the author says that ''we are experiencing some of the 'predicted' effects today.'' They include an observed shift in Kentucky wildflower seasons. The article warns that ''climate change is happening as you read this article,'' and it describes the result as ''global climate weirdness.''

One thing we know about Kentucky is that it is renowned for its horses. So I turned to Horse & Rider magazine and found an article on climate change and horses' health. The article noted climate change's effects, including ''more intense extreme weather events and the altered timing, intensity and distribution of precipitation.''

Horse & Rider magazine asked the question of ''how climate change might affect our horses' health.'' For the answer to that question, Horse & Rider magazine turned to Dr. Craig Carter of—guess what—the University of Kentucky, who said, ''It's a scary thing to watch.'' Because ''climate change affects all forms of life,'' he said, ''mosquitoes, ticks, flies and other insects are moving northward'' in describing how that move affects crops and trees and disease vectors such as West Nile virus. This University of Kentucky expert cited specific concerns for equine health, but he also offered this reminder: ''It's not just horses (and people) at risk; crops are being affected, as are trees, due to beetle infestations. Climate change affects all forms of life.''

Since so many of my Senate colleagues say they are not scientists, I concluded my Kentucky review where scientists gather: at Kentucky's universities. Paul Vincelli is a professor at the University of Kentucky Cooperative Extension Service. He says:

> In the scientific community, it is widely accepted that the global climate is changing and the human activities which produce greenhouse gases are a principal cause. Greenhouse gases have a strong capacity to trap heat in the lower atmosphere, even though they are present at trace concentrations.

Dr. Vincelli concludes:

> This trapped heat is driving many of the recent changes in the Earth's climate, including rising temperatures in the oceans, on Earth's surface, and in the lower atmosphere.

Dr. Vincelli, University of Kentucky.

Another University of Kentucky summary produced by Vincelli and his colleagues says this:

> Scientific evidence that our global climate is warming is abundant . . . Practicing scientists consider the evidence of human-induced global warming to be extremely strong.

The University of Kentucky climate summary said:

> In fact, 97 to 98 percent of the most knowledgeable experts—scientists who actively publish research papers in climate science—are convinced that global warming is occurring and is caused primarily by human activities.

They go on to note that ''a consensus of 97 to 98 percent . . . is remarkable.''

That summary adds the following warning:

> Regardless of what you may read on blogs or in the media, there is almost no meaningful scientific controversy on these points.

There is just the controversy here in Congress.

Let's now move on to Kentucky State University. Kentucky State University is pleased to appoint a climate change fellowship to ''engage college students in climate change education and action'' and to provide ''in-depth training on climate change, how to best teach the basics of climate change.'' Maybe a little of that around here might be in order.

Over at Western Kentucky University, they host the Kentucky Climate Center, which is the State climate office for Kentucky, on their campus in Bowling Green.

Eastern Kentucky University offers concentrations in environmental sustainability and stewardship, including courses on global climate change, and its Environmental Research Institute's Web site on climate change links you right to the IPCC work on climate change that is so often derided here in Congress. Obviously, Eastern Kentucky University doesn't think the U.N. Intergovernmental Panel on Climate Change is unreliable.

Northern Kentucky University does even better. Former Northern Kentucky University president James Votruba signed the American College and University Presidents' Climate Commitment, pledging Northern Kentucky University to ''an initiative in pursuit of climate neutrality,'' i.e., having ''no net greenhouse gas emissions,'' if necessary by ''using carbon offsets or other measures to mitigate the remaining emissions.'' In 2010, Northern Kentucky University adopted an action plan calling on every department and all members of the Northern Kentucky University community to do their part to help the university achieve carbon neutrality by 2050.

My tour of Kentucky's great centers of higher learning leads me to one last Kentucky university—one that is unique in that its Web page display of

notable alumni includes none other than our distinguished majority leader, Senator MCCONNELL. This is the University of Louisville.

The University of Louisville goes out of its way to expose its students to the reality of climate change. Professor Keith Mountain is chair of the University of Louisville Department of Geography and Geosciences. He has lectured on ''Stewardship in a Time of Global Climate Change,'' a talk about ''how climate change is a measurable reality and how people have contributed to the trends.'' That is the chair of the University of Louisville Department of Geography and Geosciences.

The University of Louisville has also brought in Lonnie Dupre, ''mountain climber, polar explorer, and a climate change activist,'' to describe for University of Louisville students ''his personal witness of the detrimental effects of global climate change over 25 years of polar exploring.'' They brought in prize-winning ecologist Diana Wall for a University of Louisville Biology Department lecture series to talk about ''fragile soil systems and their role in climate change.''

University of Louisville students have been involved, too, in Climate Change Teach-Ins, where students, faculty, and staff join together ''to inform, inspire and educate others about the climate change crisis.'' One student concluded, ''The university needs more events similar to the teach-in to raise awareness about climate change.'' I hope they will consider raising awareness among their alumni as well.

Let me close this discussion with two slides that were prepared for Kentucky's Governor's Conference on Energy and the Environment for a presentation on ''Kentucky and the President's Climate Action Plan.'' This is a depiction of our country's energy mix broken out by renewables, natural gas, coal, petroleum, hydroelectric, and nuclear. We can see there are a lot of layers in the cake. This layer represents coal in the U.S. energy mix as of 2012. This is Kentucky's energy mix. As we can see, it is a black wall of coal. Even Wyoming, which produces more than four times as much coal as Kentucky, has a more diverse energy mix than this. Could they do better? I think so.

There is a song called ''Warm Kentucky Sunshine.'' Kentucky has a town named Sunshine. There is even a cocktail called a Kentucky Sunshine. But we would never know it from their energy mix. That is one of the reasons that Kentucky's efforts to prepare for the Clean Power Plan are so promising.

So before our distinguished majority leader, the senior Senator from Kentucky, asks all of the other States to throw in the towel on conforming to the U.S. Government's plan for dealing with carbon pollution, I would ask that he acknowledge that his own State recognizes climate change as a problem and as an opportunity and that Kentucky is trying to do something about it.

As to the possibilities, ask Senator GRASSLEY, whose State has 28 percent wind energy. Look at Kentucky's mix. Iowa has 28 percent wind energy.

As to the possibilities, the distinguished majority leader could ask his deputy majority leader, Senator CORNYN of Texas, whose home State has more than 10 percent wind energy and a solar industry providing more than 330 megawatts, more than 7,000 jobs, and rapid growth.

I hope Kentucky doesn't decide to change its present course and to throw in the towel without even trying. We can do this.

I yield the floor.

The PRESIDING OFFICER. The Senator from Maryland.

SGR LEGISLATION

Mr. CARDIN. Mr. President, I am hopeful—and most of us are—that soon we will be able to consider Medicare legislation that has passed the House of Representatives. It is probably best known as the SGR permanent fix.

The SGR, which is a payment system that affects physicians under the Medicare system, is badly broken. On 17 previous occasions we have extended the current policy in order to make sure that physicians don't get an automatic cut that would deny many Medicare beneficiaries access to their physicians. These are pretty extreme measures.

We all understand that it is time to permanently fix this—not just to eliminate the problem but to substitute a payment system that encourages physicians to provide high quality care and to deal with incentives that reduce the volume of care. And that is what the legislation that passed the House of Representatives does.

It fixes the problem on a permanent basis. I am certainly hopeful we can get that enacted shortly because it already passed the deadline in regard to when the current patch expired. The bill also provides for an extension for the Children's Health Insurance Program. I do hope we can provide a longer extension than the 2 years that is provided in the House bill. I know there will be amendments offered to deal with that.

I want to talk about an amendment I will be offering. I am not sure how much time will be available when a consent arrangement is entered into—which I hope will be soon—to consider this. It is an amendment I am offering with Senator VITTER. It is a bipartisan amendment. In previous Congresses, we have had many of my Republican colleagues who have joined me, we have had many of my Democratic colleagues. This should be, I hope, a noncontroversial amendment we can adopt.

What it does is provide a permanent fix, as we do for physicians, for the physical therapy cap. I was in the House of Representatives in 1997 when we passed the Balanced Budget Act of 1997. I was on the Ways and Means Committee. I remember a chairman's mark coming to us. For the first time there was a cap placed on physical therapy services.

I asked the chairman of the committee why was this being done. There was absolutely no policy reason whatsoever for imposing an arbitrary cap on the amount of physical therapy services. When you think about it, what it does is discriminate against those who have the greatest needs, those who have severe needs, those who have a stroke or traumatic brain injury or a spinal cord injury or managing Parkinson's disease, multiple sclerosis, arthritis.

These are the individuals who run up against the cap and therefore could be denied the ability to deal with their needs, causing them, in many cases, to incur much greater costs. It makes no sense whatsoever, the therapy cap.

For that reason, on a pretty regular basis, we have extended the revised policy. Twelve times we have done it to prevent the implementation of the therapy cap. We have acknowledged the negative consequences that would result from the imposition of such limits. In 2009, a report issued by the Medicare Payment Advisory Committee, MEDPAC, it was estimated that the therapy cap, if enforced without an exception process, could harm 931,000 Medicare beneficiaries.

So we have an identical situation on the therapy cap as we do with the SGR physician reimbursement issue. That is why historically these two measures have always been moved together in tandem. What my amendment will do, cosponsored by Senator VITTER, is permanently fix the therapy cap issue by replacing the arbitrary limits on outpatient rehab therapy services with a more rational system which will require prior authorizations in certain circumstances.

So we fix it permanently, as we do the physicians' reimbursement issue. I do not need to tell the Presiding Officer that we do not always have an opportunity to get legislation done here. I do think we have a chance—an excellent chance—that this bill we will be taking up is going to be signed by the President in the next few days.

This is our opportunity to get several matters taken care of. The therapy cap cries out for that type of attention. So I would urge my colleagues, when this amendment comes up—it is cosponsored by a large number of my colleagues. As I already mentioned, Senator VITTER, who is my cosponsor. On the Democratic side, we have both Senator REID and Senator REED, Senator WHITEHOUSE, Senator HIRONO, Senator CASEY, Senator SHAHEEN, Senator MENENDEZ, Senator MIKULSKI, Senator BROWN, Senator STABENOW, Senator LEAHY, Senator CANTWELL, Senator BENNET, Senator BOOKER.

I could mention many of my Republican colleagues who have joined me in the past in the repeal of the therapy

cap that are expressing an interest to help in this regard. I hope I will have their support on this amendment. Let's get it done. I think it is important for Medicare beneficiaries to know they are not at risk of losing the opportunity for their physician to treat them under the Medicare system.

If we do not take care of the SGR problem, that is a real, real concern of Medicare beneficiaries, as to whether their physicians will be available for them. The same thing is true with the therapy cap. Let's remove this uncertainty. Let's get it fixed. We have the opportunity to do that. So I would urge my colleagues to support my efforts that are supported by AARP and many of the outside groups.

Let's vote for the SGR bill but also vote for the amendment I will offer with Senator VITTER that will permanently fix the therapy cap. We will have a chance to do that I hope either later tonight or tomorrow.

I yield the floor and suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. CARPER. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

TRIBUTE TO FEDERAL EMPLOYEE MATTHEW O'NEILL

Mr. CARPER. Mr. President, I do not know if I am going to be able to have time to get into this. For the last several months this year, I have been taking time 1 day a month to talk a bit about an employee in the Department of Homeland Security. Of all the Departments in the Federal Government—the largest Department—it has the lowest morale. We have been working hard with them to do something about that.

We are doing small things that nonetheless is to remind everybody that folks in the Department of Homeland Security, in some cases, risk their lives, invest their lives in trying to make sure we have a life and a good life and a safe life. They are worthy of our praise. What I am going to do tonight—unless I get run off the floor because of other business—I want to talk about one of them.

As the Presiding Officer knows, the Department was recently the center of a budget battle on Capitol Hill. For weeks, it was unclear if the Department was going to face a shutdown, another short-term continuing resolution or receive the full-year funding they needed. Fortunately, Congress did its job and sent a clean funding bill for the rest of the fiscal year to the President's desk.

The employees are grateful for that and certainly I am as well. While the Department's employees and leadership can now return to their focus on keeping America safe from threats our country faces, we should not ignore the harm the latest debate inflicted on the already low morale of employees at the Department.

More than 200,000 men and women work for the Department of Homeland Security, really just to do one mission; that is, to create a safe, secure, and resilient place where the American way of life can thrive. Many of those employees, again as I said earlier, put their lives on the line every single day.

Whether these employees are securing our borders, securing our skies, responding to natural disasters or bolstering our defenses in the cyber world, few other Federal agencies and employees touch the lives of so many Americans on a daily basis more than do the employees of the Department of Homeland Security. There is no question that they deserve to be treated better than the way Congress has been treating them lately.

That is one of the reasons why over the past few months I have been coming to the floor to recognize the work of at least a few of the many exemplary Department of Homeland Security employees.

In February, I spoke about Ramiro Garza, Jr., a Border Patrol agent at U.S. Customs and Border Protection. I had the opportunity to meet Mr. Garza early in February in McAllen, TX, while on a visit to the Mexican border in South Texas with Senators RON JOHNSON and BEN SASSE. In the past summer, Mr. Garza played an instrumental role in quickly setting up an emergency operations center and processing facility, which he now runs, to help Customs and Border Protection better manage unaccompanied minors and families apprehended along the southern border.

Today, I rise to speak about another dedicated and outstanding employee of the Department of Homeland Security. His name is Matthew O'Neill. Matthew is employed as a special agent within the U.S. Secret Service.

Over the past several months, there have been incidents, including some as recently as this month, that have again raised serious questions about the Agency and its ability to fulfill its responsibilities. The Agency's leadership is still addressing these incidents and taking steps to implement reforms to improve the Agency from the inside out.

So while it is important for us to usher in a new chapter for the U.S. Secret Service, it is important also that we shine some light on some brave men and women at the Agency who continue to serve our country and carry out their missions with distinction. Special Agent Matthew O'Neill is one of the many hard-working public servants whose day-to-day work deserves special recognition.

We live in a world that has become increasingly digitized. Nearly all Americans, including Members of this Chamber and me, are spending more and more of our time online, whether it is to do our banking, our shopping, communicating with loved ones or simply getting our work done on a day-to-day basis.

Americans' ability to go online in a safe and secure environment is at the core of Special Agent O'Neill's work. You see, agents in the U.S. Secret Service are not only responsible for protecting the President, the First Family, and other dignitaries as well, some agents, such as Special Agent O'Neill, do their work in cyber space—not outer space but cyber space. And there in that cyber space are criminals who are elusive, and the threats they pose to us are sophisticated and many.

Put simply, Agent O'Neill's job is to target cyber criminals taking aim at the American consumer, businesses, and our national community online.

Financial crime has evolved dramatically in the nearly 20 years since Special Agent O'Neill began his career with the Secret Service. Not that long ago, criminals would go to a bank, perhaps maybe a jewelry store or a convenience store, to steal money and maybe some other valuables.

Today, they don't even need to go outside to steal items of great value from businesses, from the Federal Government or from the rest of us consumers and regular citizens. Criminals just need access to the Internet. These data breaches are disruptive to our economy. They cause worry and confusion for millions of American consumers and for businesses. But thanks to his dedication and expertise, Special Agent O'Neill has helped the Federal Government to try to stay ahead of the curve and keep our most sensitive information and our property secure.

Special Agent O'Neill is originally from Dumfries, VA. He graduated from James Madison University in Harrisonburg, VA—that makes him a Duke—before joining his career with the Secret Service in 1998 in the New Haven, CT, office. From 2003 to 2007, he served in the Vice Presidential and Special Services Division in Washington, DC.

However, it is while serving in his current role, one primarily performed in cyber space, that Special Agent O'Neill has become one of the top cyber warriors defending our security online. In this position, he has helped to lead a number of complex transnational cyber crime investigations. These investigations have focused on crimes ranging from hacks into check-out lanes at brick-and-mortar stores to the online sale of stolen, personally identifiable information, such as Social Security numbers.

In one investigation, Special Agent O'Neill identified Web site portals that sold the personal information of approximately 30 million Americans to other cyber criminals, potentially putting victims at risk for identity theft or credit card fraud or worse.

To uncover the criminals running and participating in this scheme, Special Agent O'Neill sought and executed

over a dozen Federal search warrants, made numerous undercover purchases, and painstakingly examined nearly 40,000 emails.

As a result of an extensive investigation, Special Agent O'Neill was able to trace the source of the stolen data to an individual in South Vietnam. In 2013, the culprit was arrested for his crimes. Since the investigation, Special Agent O'Neill has been able to identify and arrest over 20 other criminals who worked in conjunction with the culprit by illicitly purchasing the stolen data.

In addition to breaking up that complex network, Special Agent O'Neill's work has also thwarted attacks involving everyday transactions, saving businesses and saving consumers from financial harm. For example, he played a critical role in identifying, tracking, and identifying three Romanian nationals who were planning to hack into the computer system of a major fast food franchise with more than 25,000 restaurants in the United States.

Time and again, Special Agent O'Neill's supervisors and colleagues have noted his commitment and dedication to duty, including his willingness to work at all hours of the day and night to track criminals who use the Internet with malicious intent.

In 2012, he was recognized as the Investigator of the Year by the International Association of Financial Crimes Investigators. In 2013, he was honored by the Secret Service as its Special Agent of the Year for his efforts, and in 2014, he received the Department of Homeland Security Secretary's Meritorious Service Award.

But Special Agent O'Neill's service doesn't end with his work at the Department of Homeland Security. When he is not combatting cyber crime, he is serving his neighbors and community by volunteering for a local charity that provides financial assistance to families dealing with cancer. The charity also provides scholarship money for the continuing education of oncology nurses.

I thank Special Agent O'Neill's family for sharing him with his community and his Nation. We are a safer country because of him.

In closing, the actions taken by Special Agent Matthew O'Neill attest to this critically important work done by thousands of individuals across the Department of Homeland Security every single day. These men and women are courageous, dedicated, and exemplary Federal employees who selflessly serve our country year in and year out.

Like Special Agent Matthew O'Neill, these unsung heroes and heroines walk among us every day, protecting us from the unknown or from the unexpected. And more often than not, the good work they do goes unnoticed—but not today.

Special Agent O'Neill, thank you. Thank you for your dedication to this country. Thank you for your tireless service to all of us.

I suggest the absence of a quorum.

The PRESIDING OFFICER (Mr. DAINES). The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. MCCONNELL. I ask unanimous consent that at 7:10 p.m., the Senate proceed to the consideration of H.R. 2, which was received from the House, and that the only amendments in order be the following: Cornyn amendment No. 1114, repeal individual mandate; Democratic amendment No. 1115, extend SCHIP; Lee amendment No. 1116, motion to strike; Democratic amendment No. 1117, women's health; Cotton amendment No. 1118, fee schedule; Democratic amendment No. 1119, therapy; that following the use or yielding back of time, the Senate vote in relation to the amendments in the order listed, that all amendments except the Cotton and Lee amendments be subject to a 60-vote affirmative threshold for adoption, the bill then be read a third time and the Senate vote on passage of the bill, as amended, if amended; further, that there be 2 minutes equally divided between the votes and that the votes after the first be 10 minutes in length.

The PRESIDING OFFICER. Is there objection?

Mr. REID. Mr. President, reserving the right to object, the reason we are not moving forward more quickly is we first had to get some of the holds lifted, and we were able to do that on both sides, and we wanted to make sure there would be no cuts in the physicians payments.

We thought if we finished this by early sometime tomorrow, noon or thereabouts, that the payments would not be cut but we don't have that assurance yet. So we are going to have to go ahead. If something comes from the Office of Management and Budget or the White House that that would not happen, we can allow people to go to the events they have around town.

In the meantime, I agree with the Republican leader, we should go forward. If something happens during some of these votes so we can finish them tomorrow, fine. But in the meantime, to protect not only the physicians but their patients, we should move forward on this legislation now.

I have no objection.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. MCCONNELL. Mr. President, just briefly, the point to remember here is that at midnight, roughly 5 hours from now, CMS will begin to cut payments to doctors who treat Medicare patients. If we do not act tonight, these cuts of 21 percent will be real.

I yield the floor.

MEDICARE ACCESS AND CHIP REAUTHORIZATION ACT OF 2015

The PRESIDING OFFICER. Under the previous order, the Senate will proceed to the consideration of H.R. 2, which the clerk will report by title.

The senior assistant legislative clerk read as follows:

A bill (H.R. 2) to amend title XVIII of the Social Security Act to repeal the Medicare sustainable growth rate and strengthen Medicare access by improving physician payments and making other improvements, to reauthorize the Children's Health Insurance Program, and for other purposes.

The PRESIDING OFFICER. The majority whip.

AMENDMENT NO. 1114

Mr. CORNYN. Mr. President, I call up my amendment and ask for its immediate consideration.

The PRESIDING OFFICER. The clerk will report.

The senior assistant legislative clerk read as follows:

The Senator from Texas [Mr. CORNYN] proposes an amendment numbered 1114.

The amendment is as follows:

(Purpose: To repeal the individual mandate)

At the appropriate place, insert the following:

SEC. ___. RESTORING INDIVIDUAL LIBERTY.

Sections 1501 and 1502 and subsections (a), (b), (c), and (d) of section 10106 of the Patient Protection and Affordable Care Act (and the amendments made by such sections and subsections) are repealed and the Internal Revenue Code of 1986 shall be applied and administered as if such provisions and amendments had never been enacted.

The PRESIDING OFFICER. Under the previous order, there will now be 2 minutes of debate equally divided prior to a vote in relation to amendment No. 1114, offered by the Senator from Texas, Mr. CORNYN.

The Senator from Texas.

Mr. CORNYN. Mr. President, Speaker BOEHNER and Leader PELOSI have negotiated a package which enjoyed broad bipartisan support in the House. The one missing element is a pay-for for the so-called doc fix, for the sustainable growth rate fix. What my amendment does is offer that pay-for so that this is a deficit-neutral bill if it is adopted.

In order to find that pay-for, we would repeal the individual mandate. The latest CBO score shows it would save as much as $400 billion. It hasn't been scored this year, so the number may be off a little bit, but there is more than an adequate amount of money to offset the deficit caused by this permanent doc fix.

I ask my colleagues to join me, along with then-Senator Barack Obama in 2008 in his campaign against Hillary Clinton, who when he was running for the Democratic nomination campaigned against the individual mandate.

Let's make that reality.

Mr. WYDEN. Mr. President, I urge colleagues to oppose this amendment. What Senator CORNYN seeks to do is to strike an idea that originally came

from the Heritage Foundation. If it is adopted, sick people will definitely sign up, healthy people will stay on the sidelines, premiums will skyrocket, according to the Congressional Budget Office, by as much as 20 percent, and start then what amounts to a death spiral for the affordability of American health care.

I urge my colleagues to oppose this amendment.

Mr. CORNYN. Mr. President, how much time remains?

The PRESIDING OFFICER. No time remains.

The question is on agreeing to the Cornyn amendment No. 1114.

Mr. CORNYN. I ask for the yeas and nays.

The PRESIDING OFFICER. Is there a sufficient second?

There appears to be a sufficient second.

The clerk will call the roll.

The legislative clerk called the roll.

Mr. DURBIN. I announce that the Senator from Delaware (Mr. COONS) is necessarily absent.

The PRESIDING OFFICER. Are there any other Senators in the Chamber desiring to vote?

The result was announced—yeas 54, nays 45, as follows:

[Rollcall Vote No. 137 Leg.]

YEAS—54

Alexander	Ernst	Murkowski
Ayotte	Fischer	Paul
Barrasso	Flake	Perdue
Blunt	Gardner	Portman
Boozman	Graham	Risch
Burr	Grassley	Roberts
Capito	Hatch	Rounds
Cassidy	Heller	Rubio
Coats	Hoeven	Sasse
Cochran	Inhofe	Scott
Collins	Isakson	Sessions
Corker	Johnson	Shelby
Cornyn	Kirk	Sullivan
Cotton	Lankford	Thune
Crapo	Lee	Tillis
Cruz	McCain	Toomey
Daines	McConnell	Vitter
Enzi	Moran	Wicker

NAYS—45

Baldwin	Heinrich	Nelson
Bennet	Heitkamp	Peters
Blumenthal	Hirono	Reed
Booker	Kaine	Reid
Boxer	King	Sanders
Brown	Klobuchar	Schatz
Cantwell	Leahy	Schumer
Cardin	Manchin	Shaheen
Carper	Markey	Stabenow
Casey	McCaskill	Tester
Donnelly	Menendez	Udall
Durbin	Merkley	Warner
Feinstein	Mikulski	Warren
Franken	Murphy	Whitehouse
Gillibrand	Murray	Wyden

NOT VOTING—1

Coons

The PRESIDING OFFICER. Under the previous order requiring 60 votes for the adoption of this amendment, the amendment is rejected.

The Senator from Colorado.

AMENDMENT NO. 1115

(Purpose: To protect and retain our Children's Health Insurance Program for 4 years (PRO-CHIP).)

Mr. BENNET. Mr. President, I call up amendment No. 1115.

The PRESIDING OFFICER. The clerk will report.

The legislative clerk read as follows:

The Senator from Colorado [Mr. BENNET], for himself, Mr. BROWN, Ms. STABENOW, Mr. WYDEN, Mr. CASEY, Mr. REID, Ms. WARREN, Mr. MENENDEZ, Mr. REED, Mrs. SHAHEEN, and Mr. WHITEHOUSE, proposes an amendment numbered 1115.

(The amendment is printed in today's RECORD under ''Text of Amendments.'')

Mr. BENNET. Mr. President, this amendment provides an additional 2 years of funding for the Children's Health Insurance Program, or CHIP. I wish to especially thank Senators BROWN, WYDEN, STABENOW, CASEY, and REID for their leadership on this amendment.

We have made great strides in recent years to ensure that Americans of all ages have access to quality health care, but a huge part of this success in increasing access for quality health care comes from CHIP, which provides insurance to low- and moderate-income children and pregnant women. We know CHIP works. The CHIP program serves more than 8 million children, including more than 115,000 in Colorado. This is health care they might not otherwise have.

Unfortunately, the House failed to take full advantage of this moment and this momentum for compromise and only extended funding for 2 years. CHIP is authorized through 2019. This amendment would extend it for 2 additional years.

The very physicians who would be helped by fixing the SGR would also see increased reimbursement when they treat these children instead of seeing millions of them lose access to affordable, comprehensive coverage.

I ask my colleagues to support this amendment.

I yield the floor.

The PRESIDING OFFICER. The Senator from Iowa.

Mr. GRASSLEY. Mr. President, remember that 212 Republicans and 180 Democrats supported H.R. 2. The decision to extend CHIP for 2 years with the current payment rate was part of the House bipartisan agreement. This amendment seeks to rewrite that amendment.

This amendment is not a vote to show who really cares more about children's health because H.R. 2 extends the CHIP program for 2 years. Everyone who supports the underlying bill is supporting children's health. If my colleagues oppose this amendment, they are no less a supporter of children's health than the 392 Members of the House who supported H.R. 2, including 180 Democrats and Leader PELOSI. Are my colleagues really saying that Leader PELOSI didn't care enough about kids in forging this agreement?

Mr. President, I rise in opposition to this amendment.

I am a supporter of the Children's Health Insurance Program having participated in the initial creation of CHIP in 1997 and the reauthorization started in 2007. And while I am a supporter of children's health, this is not a CHIP vote in a vacuum. This vote is in the context of the underlying bill and cannot be ignored.

An overwhelming majority of the House supported H.R. 2. 392 Members of the House vote for H.R. 2; 212 Republicans and 180 Democrats supported the bill. That is a sign of bipartisanship that is, on a major issue, extremely rare in the House.

The decision to extend CHIP for 2 years with the current payment rate was a part of the House bipartisan agreement. It is an agreement between House Republicans and House Democrats. This amendment seeks to rewrite that agreement.

So let's talk for a moment about what this amendment is not. This amendment is not a vote to show who cares more about children's health. H.R. 2 extends the CHIP program for 2 years. Everyone who supports the underlying bill is supporting children's health. Mr. President, 392 members of the House voted for this bill which extends CHIP for 2 years.

If you oppose this amendment, you are no less a supporter of children's health than the 392 Members of the House who supported H.R. 2 including 180 Democrats and Leader PELOSI. Are you really saying Leader PELOSI didn't care enough about kids in forging this agreement? Again, no one should accuse anyone who votes against this amendment as being insufficiently supportive of children's health.

I have also heard it said that Congress only authorizes 2 years now, there is little chance Congress will authorize two more years in 2017. That is a prediction, and as we all know, Congress can be hard to predict some times.

In two years, we will be back to consider CHIP. We will also be back to consider therapy caps, rural hospital programs, home visiting, the special diabetes program, and community health center funding, to name a few programs extended in this bill. The House agreement intentionally aligned these programs to be considered in tandem in 2017.

This amendment pulls one very specific provision out of that compromise. I have no concerns that CHIP can stand without the SGR. What we need to do is spend the next two years thinking about the future of health care coverage for children.

MAC-PAC has done some very good work examining what CHIP provides for children that is different than the private market. The pediatricians are in town this week for a conference, and as they will tell you, kids are not just little adults. Benefits and services need to be tailored to make sure that kids grow into healthy productive adults. This is something we need to settle in the next two years. It is something we can and should do. Voting against this amendment does nothing to jeopardize that process.

We have a choice here. We can pass the House bill without changes or we

can amend its bill and send it back to the House. I urge Senators to support the agreement and vote against this amendment.

I yield the floor.

The PRESIDING OFFICER. The Senator from Utah.

Mr. HATCH. Mr. President, the pending amendment, No. 1115, offered by Senator BENNET, would violate the Senate pay-go rule and increase the on-budget deficit over the 10-year period of fiscal years 2015 to 2024. Therefore, I raise a point of order against this measure pursuant to section 201(a) of S. Con. Res. 21, the concurrent resolution on the budget for fiscal year 2008.

The PRESIDING OFFICER. The Senator from Colorado.

Mr. BENNET. Mr. President, pursuant to section 904 of the Congressional Budget Act of 1974 and the waiver provisions of applicable budget resolutions, I move to waive all applicable sections of that act and applicable budget resolutions for purposes of the pending amendment, and I ask for the yeas and nays.

The PRESIDING OFFICER. Is there a sufficient second?

There is a sufficient second.

The question is on agreeing to the motion.

The clerk will call the roll.

The senior assistant legislative clerk called the roll.

The yeas and nays resulted—yeas 50, nays 50, as follows:

[Rollcall Vote No. 138 Leg.]

YEAS—50

Ayotte	Gillibrand	Nelson
Baldwin	Heinrich	Peters
Bennet	Heitkamp	Portman
Blumenthal	Heller	Reed
Booker	Hirono	Reid
Boxer	Kaine	Sanders
Brown	King	Schatz
Cantwell	Klobuchar	Schumer
Cardin	Leahy	Shaheen
Carper	Manchin	Stabenow
Casey	Markey	Tester
Collins	McCaskill	Udall
Coons	Menendez	Warner
Donnelly	Merkley	Warren
Durbin	Mikulski	Whitehouse
Feinstein	Murphy	Wyden
Franken	Murray	

NAYS—50

Alexander	Fischer	Paul
Barrasso	Flake	Perdue
Blunt	Gardner	Risch
Boozman	Graham	Roberts
Burr	Grassley	Rounds
Capito	Hatch	Rubio
Cassidy	Hoeven	Sasse
Coats	Inhofe	Scott
Cochran	Isakson	Sessions
Corker	Johnson	Shelby
Cornyn	Kirk	Sullivan
Cotton	Lankford	Thune
Crapo	Lee	Tillis
Cruz	McCain	Toomey
Daines	McConnell	Vitter
Enzi	Moran	Wicker
Ernst	Murkowski	

The PRESIDING OFFICER. On this vote, the yeas are 50, the nays are 50.

Three-fifths of the Senators duly chosen and sworn not having voted in the affirmative, the motion is rejected.

The point of order is sustained, and the amendment falls.

The Senator from Utah.

AMENDMENT NO. 1116

Mr. LEE. I call up my amendment No. 1116, which is at the desk.

The PRESIDING OFFICER. The clerk will report.

The senior assistant legislative clerk read as follows:

The Senator from Utah [Mr. LEE], for himself, Mr. SESSIONS, Mr. CRUZ, Mr. CRAPO, and Mr. SASSE, proposes an amendment numbered 1116.

The amendment is as follows:

(Purpose: To strike the provision excluding the budgetary effects of the Act from PAYGO requirements)

On page 261, strike line 21 and all that follows through page 262, line 4.

The PRESIDING OFFICER. The Senator from Utah.

Mr. LEE. Mr. President, just 2 weeks after the Senate passed a 10-year balanced budget, we find ourselves on the very brink of passing a bill that would promptly unbalance it. We find ourselves on the brink of passing a bill that would promptly unbalance the balanced budget we just passed to the tune of $141 billion over the next decade. This is exactly the kind of bait-and-switch behavior that has eroded the public's trust in Congress in recent years.

To honor the promises we made to each other and that we made to the American people, my amendment would simply subject H.R. 2 to the same pay-as-you-go budget rules that cover other spending bills in Congress. Paying for the new spending in this bill is the right thing to do, and we just passed a budget promising we would do exactly that. My amendment does nothing more than hold us to this very promise.

I implore my colleagues to join me in supporting this amendment.

The PRESIDING OFFICER. The Senator from Oregon.

Mr. WYDEN. Mr. President, I rise in opposition to the Lee amendment.

Colleagues, the Lee amendment is the bluntest possible instrument that would cut spending across government on every possible program. The SGR, the doctors reimbursement formula, has always been a fake. The $140 billion in this bill eliminates the budget fakery that Democrats and Republicans believe has gotten out of hand. The underlying bill gets rid of the budget fakery.

I urge colleagues on both sides of the aisle to reject the amendment, and I yield back.

Mr. LEE. Mr. President, I ask for the yeas and nays.

The PRESIDING OFFICER. Is there a sufficient second?

There appears to be a sufficient second.

The question is on agreeing to the amendment.

The clerk will call the roll.

The legislative clerk called the roll.

The result was announced—yeas 42, nays 58, as follows:

[Rollcall Vote No. 139 Leg.]

YEAS—42

Ayotte	Flake	Portman
Barrasso	Gardner	Risch
Blunt	Grassley	Roberts
Boozman	Hoeven	Rounds
Burr	Inhofe	Rubio
Coats	Isakson	Sasse
Corker	Johnson	Scott
Cotton	Kirk	Sessions
Crapo	Lankford	Shelby
Cruz	Lee	Sullivan
Daines	McCain	Thune
Enzi	Moran	Toomey
Ernst	Murkowski	Vitter
Fischer	Paul	Wicker

NAYS—58

Alexander	Franken	Murray
Baldwin	Gillibrand	Nelson
Bennet	Graham	Perdue
Blumenthal	Hatch	Peters
Booker	Heinrich	Reed
Boxer	Heitkamp	Reid
Brown	Heller	Sanders
Cantwell	Hirono	Schatz
Capito	Kaine	Schumer
Cardin	King	Shaheen
Carper	Klobuchar	Stabenow
Casey	Leahy	Tester
Cassidy	Manchin	Tillis
Cochran	Markey	Udall
Collins	McCaskill	Warner
Coons	McConnell	Warren
Cornyn	Menendez	Whitehouse
Donnelly	Merkley	Wyden
Durbin	Mikulski	
Feinstein	Murphy	

The amendment (No. 1116) was rejected.

The PRESIDING OFFICER (Mr. ROUNDS). The Senator from Washington.

AMENDMENT NO. 1117

(Purpose: To improve women's access to quality health care)

Mrs. MURRAY. Mr. President, I call up amendment No. 1117 and ask for its immediate consideration.

The PRESIDING OFFICER. The clerk will report.

The senior assistant legislative clerk read as follows:

The Senator from Washington [Mrs. MURRAY], for herself, Mr. WYDEN, Mr. BROWN, Ms. BALDWIN, Mr. BENNET, Mr. BLUMENTHAL, Mrs. BOXER, Ms. HIRONO, Ms. MIKULSKI, Mr. MENENDEZ, Mr. MURPHY, Mr. SANDERS, Ms. STABENOW, Mrs. SHAHEEN, Mr. FRANKEN, Mr. REID, Mr. WHITEHOUSE, Ms. CANTWELL, Ms. WARREN, and Mr. BOOKER, proposes an amendment numbered 1117.

(The amendment is printed in today's RECORD under ''Text of Amendments.'')

Mrs. MURRAY. Mr. President, many of us have been working for years to protect Medicare access for seniors, invest in our community health centers, and expand access to health care for our children. So I am glad Democrats and Republicans in the House were able to come together on these issues. But it is disappointing that in a bill which takes so many good bipartisan steps forward, Republicans have insisted on trying to score political points with their base on women's health.

The House SGR bill includes language that is just one more example of using women's health as a political football. It is redundant, and it is unnecessary.

I am offering an amendment tonight that shows we are making sure women have comprehensive access to health

care. It focuses on moving women's health care forward by providing a clean extension of community health care funding for 4 years, not 2, to provide certainty. It will invest $2 billion in safety net providers for women and their families through title X clinics. Finally, it will invest in strengthening the women's health care workforce to make sure women have access through their providers.

I hope my colleagues will support this amendment.

The PRESIDING OFFICER. The Senator's time has expired.

Mrs. MURRAY. I ask for the yeas and nays.

The PRESIDING OFFICER. Is there a sufficient second?

There appears to be a sufficient second.

The yeas and nays were ordered.

The PRESIDING OFFICER. The Senator from Utah.

Mr. HATCH. Mr. President, as has been mentioned repeatedly regarding the 10-day CMS hold, this 10-day CMS hold period will expire tonight. Doctors who serve our seniors will be facing a 21-percent cut.

Senator MURRAY's bill costs $21.1 billion over 10 years, and it is not offset. Therefore, the pending amendment, No. 1117, offered by Senator MURRAY, would violate the Senate pay-go rule and increase the on-budget deficit over the 10-year period of fiscal years 2015 to 2024. Therefore, I raise a point of order against this measure pursuant to section 201(a) of S. Con. Res. 21, the concurrent resolution on the budget for fiscal year 2008.

The PRESIDING OFFICER. The Senator from Washington.

Mrs. MURRAY. Mr. President, pursuant to section 904 of the Congressional Budget Act of 1974 and the waiver provisions of applicable budget resolutions, I move to waive all applicable sections of that Act and applicable budget resolutions for purposes of the pending amendment, and I ask for the yeas and nays.

The PRESIDING OFFICER. Is there a sufficient second?

There appears to be a sufficient second.

The question is on agreeing to the motion.

The clerk will call the roll.

The senior assistant legislative clerk called the roll.

The yeas and nays resulted—yeas 43, nays 57, as follows:

[Rollcall Vote No. 140 Leg.]

YEAS—43

Baldwin	Gillibrand	Murphy
Bennet	Heinrich	Murray
Blumenthal	Heitkamp	Nelson
Booker	Hirono	Peters
Boxer	Kaine	Reed
Brown	King	Reid
Cantwell	Klobuchar	Sanders
Cardin	Leahy	Schatz
Carper	Markey	Schumer
Coons	McCaskill	Shaheen
Durbin	Menendez	Stabenow
Feinstein	Merkley	Tester
Franken	Mikulski	Udall
Warner	Warren	Whitehouse
		Wyden

NAYS—57

Alexander	Enzi	Moran
Ayotte	Ernst	Murkowski
Barrasso	Fischer	Paul
Blunt	Flake	Perdue
Boozman	Gardner	Portman
Burr	Graham	Risch
Capito	Grassley	Roberts
Casey	Hatch	Rounds
Cassidy	Heller	Rubio
Coats	Hoeven	Sasse
Cochran	Inhofe	Scott
Collins	Isakson	Sessions
Corker	Johnson	Shelby
Cornyn	Kirk	Sullivan
Cotton	Lankford	Thune
Crapo	Lee	Tillis
Cruz	Manchin	Toomey
Daines	McCain	Vitter
Donnelly	McConnell	Wicker

The PRESIDING OFFICER. On this vote, the yeas are 43, the nays are 57.

Three-fifths of the Senators duly chosen and sworn not having voted in the affirmative, the motion is rejected. The point of order is sustained, and the amendment falls.

The Senator from Arkansas.

AMENDMENT NO. 1118

Mr. COTTON. Mr. President, I call up my amendment No. 1118.

The PRESIDING OFFICER. The clerk will report.

The legislative clerk read as follows:

The Senator from Arkansas [Mr. COTTON] proposes an amendment numbered 1118.

The amendment is as follows:

(Purpose: To provide steady updates of payment rates under the Medicare physician fee schedule)

Beginning on page 5, strike line 22 and all that follows through page 127, line 6, and insert the following:

(2) UPDATE OF RATES FOR 2015 AND SUBSEQUENT YEARS.—Subsection (d) of section 1848 of the Social Security Act (42 U.S.C. 1395w–4) is amended by striking paragraph (16) and inserting the following new paragraphs:

''(16) UPDATE FOR JANUARY THROUGH JUNE OF 2015.—Subject to paragraphs (7)(B), (8)(B), (9)(B), (10)(B), (11)(B), (12)(B), (13)(B), (14)(B), and (15)(B), in lieu of the update to the single conversion factor established in paragraph (1)(C) that would otherwise apply for 2015 for the period beginning on January 1, 2015, and ending on June 30, 2015, the update to the single conversion factor shall be 0.0 percent.

''(17) UPDATE FOR JULY THROUGH DECEMBER OF 2015.—The update to the single conversion factor established in paragraph (1)(C) for the period beginning on July 1, 2015, and ending on December 31, 2015, shall be 0.5 percent.

''(18) UPDATE FOR 2016 AND SUBSEQUENT YEARS.—The update to the single conversion factor established in paragraph (1)(C) for 2016 and each subsequent year shall be 0.5 percent.''.

Mr. COTTON. Mr. President, I want to replace the SGR permanently, but I also want to do it correctly. This bill has two payment models in the future. The first 4 years would give physicians a half-percent increase. In future years, though, CMS would be empowered to issue qualitative, subjective rules purporting to evaluate physician performance and patient outcomes.

My amendment would simply extend the half-percent increase indefinitely. I think there are many reasons to vote for this amendment. CMS has not effectively used a blunt bureaucratic tool, such as SGR, so we shouldn't give them a nuance tool; second, CMS itself predicts we are going to have future doc fixes, which is going to undermine the stability doctors and patients need; third, the complexity of the outyear model is going to further drive consolidation, especially for rural and independent doctors; and, finally, CBO estimates this bill saves $10 billion.

I urge a ''yes'' vote. Let us have a permanent doc fix that works for all doctors and patients.

The PRESIDING OFFICER. The Senator from Oregon.

Mr. WYDEN. Mr. President, I rise in opposition to this amendment. Today, the Medicare Program is a fee-for-volume system. The underlying bill junks this and turns out the lights on millions of users.

The underlying bill before the Senate says the future will be about rewarding value and good quality care for our Medicare patients. The Cotton amendment embraces the outdated status quo and says there is no need to coordinate care, no need to pay for value, no need to pay for quality for our Medicare patients. I urge my colleagues to oppose this amendment.

The PRESIDING OFFICER. The question is on agreeing to the amendment.

Mr. COTTON. I ask for the yeas and nays.

The PRESIDING OFFICER. Is there a sufficient second?

There appears to be a sufficient second.

The clerk will call the roll.

The legislative clerk called the roll.

The result was announced—yeas 11, nays 89, as follows:

[Rollcall Vote No. 141 Leg.]

YEAS—11

Boozman	Lee	Sessions
Cotton	Paul	Shelby
Cruz	Rubio	Vitter
Inhofe	Sasse	

NAYS—89

Alexander	Fischer	Murkowski
Ayotte	Flake	Murphy
Baldwin	Franken	Murray
Barrasso	Gardner	Nelson
Bennet	Gillibrand	Perdue
Blumenthal	Graham	Peters
Blunt	Grassley	Portman
Booker	Hatch	Reed
Boxer	Heinrich	Reid
Brown	Heitkamp	Risch
Burr	Heller	Roberts
Cantwell	Hirono	Rounds
Capito	Hoeven	Sanders
Cardin	Isakson	Schatz
Carper	Johnson	Schumer
Casey	Kaine	Scott
Cassidy	King	Shaheen
Coats	Kirk	Stabenow
Cochran	Klobuchar	Sullivan
Collins	Lankford	Tester
Coons	Leahy	Thune
Corker	Manchin	Tillis
Cornyn	Markey	Toomey
Crapo	McCain	Udall
Daines	McCaskill	Warner
Donnelly	McConnell	Warren
Durbin	Menendez	Whitehouse
Enzi	Merkley	Wicker
Ernst	Mikulski	Wyden
Feinstein	Moran	

The amendment (No. 1118) was rejected.

The PRESIDING OFFICER. The Senator from Maryland.

AMENDMENT NO. 1119

(Purpose: To repeal the therapy cap and provide for medical review of outpatient therapy services)

Mr. CARDIN. Mr. President, I call up amendment No. 1119.

The PRESIDING OFFICER. The clerk will report.

The legislative clerk read as follows:

The Senator from Maryland [Mr. CARDIN], for himself, Mr. VITTER, Mr. REID, Mr. WHITEHOUSE, Ms. HIRONO, Mr. CASEY, Mrs. SHAHEEN, Mr. MENENDEZ, Ms. MIKULSKI, Mr. BROWN, Ms. STABENOW, Mr. REED, Mr. LEAHY, Ms. CANTWELL, Mr. BENNET, Mr. BOOKER, Ms. WARREN, and Ms. KLOBUCHAR, proposes an amendment numbered 1119.

Mr. CARDIN. Mr. President, I ask unanimous consent that the reading of the amendment be dispensed with.

The PRESIDING OFFICER. Without objection, it is so ordered.

(The amendment is printed in today's RECORD under ''Text of Amendments.'')

Mr. CARDIN. Mr. President, I have explained this amendment a little earlier.

I ask unanimous consent that Senator KLOBUCHAR be added as a cosponsor of the amendment.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. CARDIN. This deals with the therapy cap on which we now have had 12 patches. It is almost the identical problem we have with the SGR, which is the underlying bill. It deals with seniors, Medicare beneficiaries, having access to therapy services, those who have had strokes, those who have serious issues and need rehab therapy.

The cap never made sense in 1997 when it was put into effect. It was not the right policy. We have had bipartisan support to correct this as we have the SGR, and my underlying amendment does that.

I ask my colleagues to support the amendment.

The PRESIDING OFFICER. The Senator from Utah.

Mr. HATCH. Mr. President, this bill is far from perfect, but we cannot let perfect be the enemy of the good on this bipartisan compromise that passed the House with almost 400 votes.

The House leadership has made it clear to us, they will not pass another package, and I don't blame them. Time is of the essence.

The therapy caps provision may not be the best policy, but it is in place to ensure there is a governor on unnecessary utilization and spending in the Medicare Program.

Congress should use the next 2 years to find a solution to this problem and work to pay for that solution, and I intend to do that. But to have that on this bill would be a catastrophe at the end of what has been a really, really very, very tough-fought bill all the way through.

The pending amendment, No. 1119, offered by Senator CARDIN would violate the Senate pay-go rule and increase the on-budget deficit over the 10-year period of fiscal years 2015 to 2024. Therefore, I raise a point of order against this measure pursuant to section 201(a) of S. Con. Res. 21, the concurrent resolution on the budget for fiscal year 2008.

The PRESIDING OFFICER. The Senator from Maryland.

Mr. CARDIN. Mr. President, pursuant to section 904 of the Congressional Budget Act of 1974 and the waiver provisions of applicable budget resolutions, I move to waive all applicable sections of that act and applicable budget resolutions for purposes of the pending amendment, and I ask for the yeas and nays.

The PRESIDING OFFICER. Is there a sufficient second?

There appears to be a sufficient second.

The question is on agreeing to the motion.

The clerk will call the roll.

The bill clerk called the roll.

The yeas and nays resulted—yeas 58, nays 42, as follows:

[Rollcall Vote No. 142 Leg.]

YEAS—58

Ayotte	Graham	Paul
Baldwin	Heinrich	Peters
Bennet	Heitkamp	Portman
Blumenthal	Hirono	Reed
Booker	Hoeven	Reid
Boxer	Kaine	Rounds
Brown	King	Sanders
Burr	Kirk	Schatz
Cantwell	Klobuchar	Schumer
Cardin	Leahy	Shaheen
Carper	Markey	Stabenow
Casey	McCaskill	Tester
Cassidy	Menendez	Udall
Collins	Merkley	Vitter
Coons	Mikulski	Warner
Donnelly	Moran	Warren
Durbin	Murkowski	Whitehouse
Feinstein	Murphy	Wyden
Franken	Murray	
Gillibrand	Nelson	

NAYS—42

Alexander	Ernst	McConnell
Barrasso	Fischer	Perdue
Blunt	Flake	Risch
Boozman	Gardner	Roberts
Capito	Grassley	Rubio
Coats	Hatch	Sasse
Cochran	Heller	Scott
Corker	Inhofe	Sessions
Cornyn	Isakson	Shelby
Cotton	Johnson	Sullivan
Crapo	Lankford	Thune
Cruz	Lee	Tillis
Daines	Manchin	Toomey
Enzi	McCain	Wicker

The PRESIDING OFFICER. On this vote, the yeas are 58, the nays are 42.

Three-fifths of the Senators duly chosen and sworn not having voted in the affirmative, the motion is rejected. The point of order is sustained, and the amendment falls.

The bill was ordered to a third reading and was read the third time.

The PRESIDING OFFICER. There is now 2 minutes of debate prior to a vote on final passage.

Mr. REED. Mr. President, I am pleased to see that after 12 years of temporary patches to delay cuts under the Sustainable Growth Rate, Congress is finally acting to reform the Medicare physician payment system for the long term. In so doing, we not only ensure access to care for seniors but also help improve the quality of care they receive through Medicare.

However, I am disappointed that the same certainty is not provided to children and families impacted by the Children's Health Insurance program, CHIP. This legislation extends funding for CHIP for 2 years and continues policies that encourage enrollment in the program. But it does not extend this critical funding for a much longer period of time, like the 4 years my colleagues and I have been urging for months. We are missing a crucial opportunity to ensure that children and pregnant women have access to comprehensive, affordable health insurance coverage for years to come. Currently, more than 10 million children benefit from this program. In 2 years, funding for this program will expire, putting children at risk of becoming uninsured once again. Moreover, the bill takes the same temporary approach with respect to the Maternal, Infant, and Early Childhood Home Visiting, MIECHV, program, Community Health Centers, and other initiatives.

I am also concerned that Medicare beneficiaries will see increases in out-of-pocket costs to help pay for the legislation. Faced with the threat of looming cuts to health care providers and the resulting risk of disruption of services should doctors withdraw from Medicare, we are being forced to instead choose to increase costs on seniors, rather than any number of offsets that could have asked the wealthiest Americans or corporations to pay a little more to ensure that Medicare is protected for everyone. Indeed, the majority in the other body insisted on paying for this bill, at least in part, by increasing these out-of-pocket costs. For a bill designed to protect access to health care for seniors, it should not turn around and then demand they pay more. We should be reaffirming our commitment to protecting Medicare beneficiaries and these cuts do just the opposite. With these provisions not taking effect until 5 years from now, I hope that gives us ample time to revisit this.

After years of disagreements on health care issues, it is good to see that we can move on this bill on a bipartisan basis. So while I have the reservations I have outlined, and will support amendments to address these issues, I will vote for this legislation.

The PRESIDING OFFICER. The Senator from Alabama.

Mr. SESSIONS. Mr. President, this legislation has not gone through the regular order in the Senate. It will add $174 billion to the debt. It is subject to seven different budget points of order. We have had a series of budget point of order votes where we have affirmed the budget and the responsibility we have to adhere to it. Let's do the right thing. Let's tell the House, which tried to send this bill over at 3:30 in the morning for us to pass right before we recessed after the budget votes, that, yes, we are absolutely committed to fixing the doctors' payments and in a responsible, long-term way, but it

needs to be paid for in a responsible, long-term way. Upholding the budget point of order does not kill the bill; it sends it back to committee to make sure it is fully paid for.

So let's not be afraid tonight. Let's say to our House colleagues: Colleagues, we agree with you on your vote, but we must pay for this bill.

The PRESIDING OFFICER. The Senator's time has expired.

Mr. SESSIONS. Mr. President, I need to make a budget point of order.

The PRESIDING OFFICER. There is still time remaining in favor of the bill.

Mr. SESSIONS. Mr. President, the pending measure, H.R. 2, the Medicare Access and CHIP Reauthorization Act of 2015, violates section 311(b) of the fiscal year 2009 budget resolution by causing a net increase in the long-term deficit in excess of $5 billion in the 10-year period of fiscal years 2025 through 2034. Therefore, I raise a point of order against this measure pursuant to section 311(b) of S. Con. Res. 70, the concurrent resolution on the budget for fiscal year 2009, and ask for the yeas and nays.

The PRESIDING OFFICER. The Senator from Utah.

Mr. HATCH. I yield back the time.

The PRESIDING OFFICER. The Senator from Utah.

Mr. HATCH. I move to waive all applicable sections of the Budget Act, and I ask for the yeas and nays.

The PRESIDING OFFICER. Is there a sufficient second?

There appears to be a sufficient second.

The question is on agreeing to the motion.

The clerk will call the roll.

The senior assistant bill clerk called the roll.

The yeas and nays resulted—yeas 71, nays 29, as follows:

[Rollcall Vote No. 143 Leg.]

YEAS—71

Alexander	Flake	Murkowski
Baldwin	Franken	Murphy
Bennet	Gillibrand	Murray
Blumenthal	Graham	Nelson
Blunt	Hatch	Paul
Booker	Heinrich	Peters
Boozman	Heitkamp	Reed
Boxer	Heller	Reid
Brown	Hirono	Roberts
Burr	Isakson	Rounds
Cantwell	Kaine	Sanders
Capito	King	Schatz
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Carper	Klobuchar	Shaheen
Casey	Leahy	Stabenow
Cassidy	Manchin	Tester
Cochran	Markey	Tillis
Collins	McCain	Udall
Coons	McCaskill	Warner
Corker	McConnell	Warren
Cornyn	Menendez	Whitehouse
Donnelly	Merkley	Wicker
Durbin	Mikulski	Wyden
Feinstein	Moran	

NAYS—29

Ayotte	Enzi	Johnson
Barrasso	Ernst	Lankford
Coats	Fischer	Lee
Cotton	Gardner	Perdue
Crapo	Grassley	Portman
Cruz	Hoeven	Risch
Daines	Inhofe	Rubio
Sasse	Shelby	Toomey
Scott	Sullivan	Vitter
Sessions	Thune	

The PRESIDING OFFICER. On this vote, the yeas are 71, the nays are 29.

Three-fifths of the Senators duly chosen and sworn having voted in the affirmative, the motion is agreed to. The point of order is not sustained, and the motion is agreed to.

The Senator from Utah.

Mr. HATCH. Mr. President, we will soon be voting on final passage of H.R. 2, the Medicare Access and CHIP Reauthorization Act of 2015.

As I mentioned earlier, this bill represents more than 2 years of hard work on both sides of the Capitol. And, it represents a real step forward for bipartisan health care policy. I am proud to have been one of the authors of this legislation and I look forward to what I believe we will see—the bill pass with bipartisan support.

I want to commend everyone who worked on this legislation. I particularly want to thank Senator Max Baucus who worked with me from the beginning on this effort here in the Senate. In addition, I would like to thank the current ranking member of the Finance Committee, Senator WYDEN for all his work. I also want to thank our colleagues on the House Energy and Commerce and Ways and Means Committees who also worked very hard in crafting this SGR fix.

As with any major legislative effort, there are a number of staffers—both current and former—who also deserve our thanks. From my own Finance Committee staff, I want to thank Dan Todd, Kristin Welsh, Erin Dempsey, Katie Simeon, Kim Brandt, and Becky Shipp for all of their hard work. I also want to thank my senior team—Jay Khosla, Chris Campbell, and Mark Prater. On the Democratic side of the committee, I want to thank Karen Fisher, David Schwartz, Matt Kazan, Juan Machado, Scott Levy, and Colin Goldfinch.

I also want to commend the efforts of Scott Raab and Monica Popp from the Senate Republican leadership offices.

In addition, from the House side, I specifically want to thank Charlotte Ivancic and Wendell Primus.

We have also gotten quite a bit of help from CBO in this effort. For that, I want to thank Lori Housman, Tom Bradley, and Holly Harvey.

CMS also provided vital technical assistance as we put this legislation together. For that, I'd like to thank Jennifer Druckman, Ira Burney, and Anne Scott.

And, of course, we couldn't have done without the help of the Legislative Counsels' offices, particularly John Goetcheus, Kelly Malone, Ruth Ernst, and Phil Lynch on the Senate side and Jessica Shapiro and Jessica Cross over in the House.

I wish to once again urge my colleagues to support this bill. It is a monumental achievement. It is legislation that has been long in the offing. I wish to thank everybody on both sides for the cooperation we have had. I just want to personally express my gratitude for being able to pass this bill.

The PRESIDING OFFICER. The Senator from Oregon.

Mr. WYDEN. Mr. President, I will be very brief. I think tonight is a milestone for the Medicare Program—a lifeline for millions of older people. That is because tonight the Senate is voting to retire the outdated, inefficiency-rewarding, commonsense-defying Medicare reimbursement system.

As Senator HATCH noted, it has been bipartisan; it has long been bipartisan. I think this is an important night for the Senate and it is going to be long remembered.

I yield the floor.

Mr. HATCH. Mr. President, I ask for the yeas and nays.

The PRESIDING OFFICER. Is there a sufficient second?

There appears to be a sufficient second.

The bill having been read the third time, the question is, Shall the bill pass?

The clerk will call the roll.

The bill clerk called the roll.

The result was announced—yeas 92, nays 8, as follows:

[Rollcall Vote No. 144 Leg.]

YEAS—92

Alexander	Feinstein	Moran
Ayotte	Fischer	Murkowski
Baldwin	Flake	Murphy
Barrasso	Franken	Murray
Bennet	Gardner	Nelson
Blumenthal	Gillibrand	Paul
Blunt	Graham	Peters
Booker	Grassley	Portman
Boozman	Hatch	Reed
Boxer	Heinrich	Reid
Brown	Heitkamp	Risch
Burr	Heller	Roberts
Cantwell	Hirono	Rounds
Capito	Hoeven	Sanders
Cardin	Inhofe	Schatz
Carper	Isakson	Schumer
Casey	Johnson	Shaheen
Cassidy	Kaine	Stabenow
Coats	King	Sullivan
Cochran	Kirk	Tester
Collins	Klobuchar	Thune
Coons	Lankford	Tillis
Corker	Leahy	Toomey
Cornyn	Manchin	Udall
Cotton	Markey	Vitter
Crapo	McCain	Warner
Daines	McCaskill	Warren
Donnelly	McConnell	Whitehouse
Durbin	Menendez	Wicker
Enzi	Merkley	Wyden
Ernst	Mikulski	

NAYS—8

Cruz	Rubio	Sessions
Lee	Sasse	Shelby
Perdue	Scott	

The bill (H.R. 2) was passed.

The PRESIDING OFFICER. The majority leader.

Mr. MCCONNELL. What is the pending business?

JUSTICE FOR VICTIMS OF TRAFFICKING ACT OF 2015—Resumed

The PRESIDING OFFICER. The clerk will report the pending business.

The senior assistant legislative clerk read as follows:

A bill (S. 178) to provide justice for the victims of trafficking.

Pending:

Portman amendment No. 270, to amend the Child Abuse Prevention and Treatment Act to enable State child protective services systems to improve the identification and assessment of child victims of sex trafficking.

Portman amendment No. 271, to amend the definition of ''homeless person'' under the McKinney-Vento Homeless Assistance Act to include certain homeless children and youth.

Vitter amendment No. 284 (to amendment No. 271), to amend section 301 of the Immigration and Nationality Act to clarify those classes of individuals born in the United States who are nationals and citizens of the United States at birth.

The PRESIDING OFFICER. The Senator from Ohio.

AMENDMENT NO. 271 WITHDRAWN

Mr. PORTMAN. Mr. President, in the interests of moving the human trafficking bill forward and with the understanding that these amendments could be offered later in the process, I withdraw my amendment No. 271.

The PRESIDING OFFICER. The amendment is withdrawn.

The Senator from Ohio.

AMENDMENT NO. 270 WITHDRAWN

Mr. PORTMAN. Mr. President, in addition, I withdraw my amendment No. 270.

The PRESIDING OFFICER. The amendment is withdrawn.

The majority leader.

AMENDMENT NO. 1120

Mr. MCCONNELL. Mr. President, I call up amendment No. 1120, which is at the desk.

The PRESIDING OFFICER. The clerk will report.

The bill clerk read as follows:

The Senator from Kentucky [Mr. MCCONNELL], for Mr. CORNYN, proposes an amendment numbered 1120.

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the reading of the amendment be dispensed with.

The PRESIDING OFFICER. Without objection, it is so ordered.

The amendment is as follows:

(Purpose: To strengthen the Justice for Victims of Trafficking Act by incorporating additional bipartisan amendments)

Strike section 101 and insert the following:

SEC. 101. DOMESTIC TRAFFICKING VICTIMS' FUND.

(a) IN GENERAL.—Chapter 201 of title 18, United States Code, is amended by adding at the end the following:

''§ 3014. Additional special assessment

''(a) IN GENERAL.—Beginning on the date of enactment of the Justice for Victims of Trafficking Act of 2015 and ending on September, 30 2019, in addition to the assessment imposed under section 3013, the court shall assess an amount of $5,000 on any non-indigent person or entity convicted of an offense under—

''(1) chapter 77 (relating to peonage, slavery, and trafficking in persons);

''(2) chapter 109A (relating to sexual abuse);

''(3) chapter 110 (relating to sexual exploitation and other abuse of children);

''(4) chapter 117 (relating to transportation for illegal sexual activity and related crimes); or

''(5) section 274 of the Immigration and Nationality Act (8 U.S.C. 1324) (relating to human smuggling), unless the person induced, assisted, abetted, or aided only an individual who at the time of such action was the alien's spouse, parent, son, or daughter (and no other individual) to enter the United States in violation of law.

''(b) SATISFACTION OF OTHER COURT-ORDERED OBLIGATIONS.—An assessment under subsection (a) shall not be payable until the person subject to the assessment has satisfied all outstanding court-ordered fines and orders of restitution arising from the criminal convictions on which the special assessment is based.

''(c) ESTABLISHMENT OF DOMESTIC TRAFFICKING VICTIMS' FUND.—There is established in the Treasury of the United States a fund, to be known as the 'Domestic Trafficking Victims' Fund' (referred to in this section as the 'Fund'), to be administered by the Attorney General, in consultation with the Secretary of Homeland Security and the Secretary of Health and Human Services.

''(d) TRANSFERS.—In a manner consistent with section 3302(b) of title 31, there shall be transferred to the Fund from the General Fund of the Treasury an amount equal to the amount of the assessments collected under this section, which shall remain available until expended.

''(e) USE OF FUNDS.—

''(1) IN GENERAL.—From amounts in the Fund, in addition to any other amounts available, and without further appropriation, the Attorney General, in coordination with the Secretary of Health and Human Services shall, for each of fiscal years 2016 through 2019, use amounts available in the Fund to award grants or enhance victims' programming under—

''(A) sections 202, 203, and 204 of the Trafficking Victims Protection Reauthorization Act of 2005 (42 U.S.C. 14044a, 14044b, and 14044c);

''(B) subsections (b)(2) and (f) of section 107 of the Trafficking Victims Protection Act of 2000 (22 U.S.C. 7105); and

''(C) section 214(b) of the Victims of Child Abuse Act of 1990 (42 U.S.C. 13002(b)).

''(2) GRANTS.—Of the amounts in the Fund used under paragraph (1), not less than $2,000,000, if such amounts are available in the Fund during the relevant fiscal year, shall be used for grants to provide services for child pornography victims under section 214(b) of the Victims of Child Abuse Act of 1990 (42 U.S.C. 13002(b)).

''(3) APPLICATION.—Amounts transferred from the Fund pursuant to this section for each of fiscal years 2016 through 2019 are subject to the requirements contained in Public Law 113–235 for funds for programs authorized under sections 330 through 340 of the Public Health Service Act (42 U.S.C. 254b–256).

''(f) TRANSFERS.—

''(1) IN GENERAL.—Effective on the day after the date of enactment of the Justice for Victims of Trafficking Act of 2015, on September 30 of each fiscal year, all unobligated balances in the Fund shall be transferred to the Crime Victims Fund established under section 1402 of the Victims of Crime Act of 1984 (42 U.S.C. 10601).

''(2) AVAILABILITY.—Amounts transferred under paragraph (1)—

''(A) shall be available for any authorized purpose of the Crime Victims Fund; and

''(B) shall remain available until expended.

''(g) COLLECTION METHOD.—The amount assessed under subsection (a) shall, subject to subsection (b), be collected in the manner that fines are collected in criminal cases.

''(h) DURATION OF OBLIGATION.—Subject to section 3613(b), the obligation to pay an assessment imposed on or after the date of enactment of the Justice for Victims of Trafficking Act of 2015 shall not cease until the assessment is paid in full.

''(i) AUTHORIZATION OF APPROPRIATIONS.—

''(1) WRITTEN CERTIFICATION.—Not later than September 30, 2016, and each September 30 thereafter, the Attorney General shall submit to Congress a written certification as to the total amount in the Fund.

''(2) AUTHORIZATION OF APPROPRIATIONS.—In any fiscal year for which a written certification submitted under paragraph (1) indicates the total amount in the Fund is less than $30,000,000, there is authorized to be appropriated to the Fund an amount equal to $30,000,000 minus the total amount indicated in the certification.''.

(b) TECHNICAL AND CONFORMING AMENDMENT.—The table of sections for chapter 201 of title 18, United States Code, is amended by inserting after the item relating to section 3013 the following:

''3014. Additional special assessment.''.

CLOTURE MOTION

Mr. MCCONNELL. Mr. President, I send a cloture motion to the desk.

The PRESIDING OFFICER. The cloture motion having been presented under rule XXII, the Chair directs the clerk to read the motion.

The senior assistant legislative clerk read as follows:

CLOTURE MOTION

We, the undersigned Senators, in accordance with the provisions of rule XXII of the Standing Rules of the Senate, do hereby move to bring to a close debate on the Cornyn amendment No. 1120 to S. 178, a bill to provide justice for the victims of trafficking.

Mitch McConnell, John Cornyn, Roy Blunt, Johnny Isakson, John Barrasso, Pat Roberts, Mike Crapo, Roger F. Wicker, Tom Cotton, James M. Inhofe, Tim Scott, Richard Shelby, John Thune, John Boozman, Chuck Grassley, James Lankford, Steve Daines.

The PRESIDING OFFICER. The Senator from Texas.

Mr. CORNYN. Mr. President, like every Member of this body, I am frustrated we haven't been able to reach an agreement to pass the bipartisan Justice for Victims of Trafficking Act.

So today—just now—we have offered a compromise amendment that provides a path forward on this important legislation. I want to express my gratitude to the majority leader for teeing up this amendment and this vote and helping us move forward to resolve this problem.

Briefly, this proposal would completely strike a provision in the underlying bill that Members on the other side have objected to regarding the application of the Hyde amendment. The proposal would replace this language with a provision negotiated by Leader PELOSI from H.R. 2, the so-called doc fix bill that we just passed overwhelmingly and that passed the House a few weeks ago 392 to 37—180 House Democrats supported this language in the House bill. The Pelosi language from this bill is similar to my proposal, in that it simply says that any funds used to provide services to human trafficking victims would be subject to the same requirements as funds under the Public Health Services Act. This would clarify that all money in the Domestic Trafficking Victims' Fund must be derived from the General Treasury, the routine and ordinary source of all Federal funding.

In other words, requirements placed upon funds under my bill would not be placed on money derived from criminal fees or penalties, something our Democratic friends seem to have some objection to, but they would only be placed upon money drawn from the General Treasury. This is exactly what Members on the other side have asked for.

Finally, as an additional measure of good faith, my proposal would also include an amendment drafted by Senator LEAHY, the ranking member of the Senate Judiciary Committee, that has been supported by every Democratic Member of that committee. This amendment would authorize the appropriation of additional funds into the Domestic Trafficking Victims' Fund.

Some Members on the other side of the aisle have filibustered this important legislation because they say they objected to language I included that references the Hyde amendment. I have now agreed to strike that language. They are also filibustering because they objected to attaching routine Hyde restrictions that have been the law of the land for nearly 40 years—the money that is outside of the General Treasury process. Now, I have agreed to change the language of my bill so the Domestic Trafficking Victims' Fund only includes money drawn from the General Treasury. I have also agreed to accept the amendment from Senator LEAHY that I previously opposed in the interest of trying to get to ''yes.''

I plan to speak more on this tomorrow, but I am hopeful that by finally making these changes, we can be met at least halfway by our friends across the aisle. I feel like we have continued to try to make changes in this legislation in an interest of giving them an opportunity to vote for a bill they said they all support but which they ultimately filibustered because of the objections I just addressed, and both of the major objections are addressed by this amendment and this legislation.

So I hope we can get to a resolution on this bill. The victims of human trafficking are typically young girls between the ages of 12 and 14 years old. This is justly called modern-day slavery, because these victims of human trafficking are literally enslaved and sold for sex or held for involuntary servitude against their will. Many of them come from other countries, but the vast majority of them come from right here in the United States of America.

We need to do something about this. This legislation does that ''something,'' and I think we have more than demonstrated good faith in trying to meet our colleagues' objections across the aisle by proposing language that works, that accomplishes the result but removes the objectionable language our colleagues across the aisle have seen fit to filibuster on.

Mr. President, I yield the floor.

The PRESIDING OFFICER. The Senator from Oregon.

MEDICARE ACCESS AND CHIP REAUTHORIZATION ACT

Mr. WYDEN. Mr. President, while my colleague is on the floor, I want to commend Senator CANTWELL for her superb work on this legislation. Senator CANTWELL has really been the leader in the effort to get the Secretary of Health and Human Services to look at alternative payment models in the Medicare Advantage Program. This is a hugely important program for us in the Northwest. It is also, by the way, very extensively used in Minnesota. I think my colleague from Washington State has done particularly important work in also looking, as part of this discussion, at what is called a value-based modifier.

Mr. President, I have some thank-yous to make—and I will be very brief—but before I do that, I ask unanimous consent to enter into a colloquy with Senator CANTWELL.

The PRESIDING OFFICER. Without objection, it is so ordered.

Ms. CANTWELL. I rise to talk about a provision in this legislation intended to move the health care payment system toward better outcomes and efficiency.

Physicians in my State and others are innovating by partnering with high-performing Medicare Advantage plans. This model can grant the health care provider significant accountability and ownership of a patient's health, with the result of achieving impressive health outcomes, reducing overlap and duplication, and saving money for everyone involved.

I was successful in including a provision in the bill requiring the Secretary of Health and Human Services to study integrating alternative payment models in the Medicare Advantage payment system. This study will also assess feasibility of including a value-based modifier.

I look forward to working with my Finance Committee colleagues in the future to promote the innovation and efficiency taking place in Medicare Advantage.

I ask that the distinguished ranking member of the Finance Committee work with me in the future toward these goals.

Mr. WYDEN. H.R. 2 moves the physician payment system from one that rewards volume to one that rewards value. I look forward to extending value-based policies across the entire spectrum of Medicare. I agree, it is important to reward all providers and all Medicare Advantage plans that provide high value and high quality care. I look forward to working with the Senator and the entire Finance Committee to achieve these goals.

Ms. CANTWELL. Thank you, Mr. President.

Mr. WYDEN. Just a couple of quick thank-yous, and then I want to let my colleague wrap up for our side.

It is pretty clear, Mr. President, that a bill of this magnitude does not happen by osmosis. It comes about because of scores of hearings, roundtables, briefings, and countless hours of staff time. I am just going to take a couple of minutes to thank some people who did so much to make this possible.

First, I thank Leader REID and his very capable health care staffer Kate Leone. When there is a big health care issue before the Senate, Kate Leone is the person you want to have in the trenches with you. I want to thank Senator REID, because during the short tenure in which I was the chair of the Senate Finance Committee, we started working closely together on reforming the Medicare reimbursement system, and his leadership is very much a part of the success of this evening.

Second, there was staff at the various congressional support agencies who provided technical assistance. We are talking about CMS, the Congressional Budget Office, the Congressional Research Service, legislative counsel, and the Medicare Payment Advisory Commission. I would also like to note the efforts made by Ira Burney, Anne Scott, and Jennifer Druckman in the CMS Office of Legislation and Tom Bradley and Lori Housman of the Congressional Budget Office.

I would also like to recognize Chairman HATCH and his very capable and dedicated staff. They worked many, many months on this issue, constantly reaching across the aisle—and former Hatch staffer, Dan Todd, current Hatch staffers Kristin Welsh and Erin Dempsey particularly deserve recognition.

I want to close by thanking my staff, our finance staff and personal staff, affectionately known as the health team. Some, such as Karen Fisher, Matt Kazan, Juan Machado, and former staffer David Schwartz have survived two Democratic chairmen and more doc fixes than they could possibly wish to remember. So this is an especially significant moment for them. Others, like Anne Dwyer, Hannah Hawkins, and Jennifer Phillips, provided invaluable insight and counsel along the way.

One last point, if I might. Having tried for years to specialize in health care, going back to the days when I was codirector of the Oregon Gray Panthers, I thought that over the years that I picked up a little bit with respect to health care policy and came to really understand the issues—not so much, particularly when I think about the extraordinary work of two very talented individuals in our office who have really been the leaders, in my view, on this SGR reform cause. One was our health chief Liz Jurinka. She deserves special notice for her persistent leadership, creativity, and focus and, secondly, her colleague, Jocelyn Moore, whom we had the good fortune—who came to us from Senator Rockefeller. She brings great expertise and years of experience to the field. Certainly, what I have learned from them, after a career of trying to specialize in these issues, has done so much to assist the committee, assist

me, and I want to express my gratitude to them.

The work of the bipartisan Finance Committee staff—through all its fits and starts—is what got us here today. I want to thank all of them, and I think it is very appropriate that my colleague from Washington State, Senator CANTWELL, who has done so much good work on these issues, is going to close today.

The PRESIDING OFFICER. The Senator from Washington.

Ms. CANTWELL. Mr. President, I thank the Senator from Oregon for his leadership on this legislation and on health care in general. I will always think of him as a Senator who has been an advocate for reforming our health care system and oftentimes wanting to move faster than everybody here.

I am with him and the Northwest is with him, and that is why tonight is really a very proud moment for him as the ranking member of this committee to see the monumental shift in the way we have been dealing with the payment system and the Medicare access system and the children's health care program. So tonight, hopefully, we will put behind us a long-debated issue of how physicians are paid, but it will also start us on a new path to make sure people in America are guaranteed better outcomes and a process by which we will help reduce the costs of health care by focusing on both the cost of health care and the outcomes. So my colleague entered into the RECORD tonight—and I want to thank him for that—a colloquy that addresses the issue of how those who are part of accountable care organizations who will be given the resources to focus on high-performing health care systems will be able to under this study equate exactly how well they can do and how well they should be rewarded in reducing costs and giving better outcomes.

My colleague from Oregon speaks of this because he and I come from a part of the country that literally delivers better outcomes in health care at lower costs than many other States in the United States of America. Our residents want to know why the rest of the country can't practice medicine the same way. We want those savings that you get from the health care system to be plugged in or used for other purposes. They could be part of tax reform even. But we also want the citizens of our State to get better health care. We want them to have better outcomes, and we think that moving off a fee-for-service system and onto a system that focuses on the outcome of patients is the best way for our country to move forward.

So this legislation before us today builds on that process we started in the Affordable Care Act, something that is called the value-based modifier that basically takes the fee-for-service system—when you think about it, fee for service is about volume, about ordering more tests—and we are saying we want physicians to be rewarded for the outcome and the good performance and the focus on whether the patient actually gets well or is given the best health care delivery.

In essence, the value modifier seeks to emulate the success Washington and Oregon have had and give us better, healthy outcomes for patients and lower costs. This year the value-based modifier is the beginning which physicians for the first time will see an adjustment. And building on that progress, Sylvia Burwell, the Secretary of Health and Human Services recently announced that Medicare would aim to tie 90 percent of their Medicare fee-for-service payments to quality or value initiatives by 2018. So this is tying half of all Medicare fee-for-service payments to an alternative payment model and helping us move forward on, again, focusing on outcomes.

I thank my colleague for entering into the colloquy the ongoing analysis that we need to do to continue to make changes on the health care system and congratulate him on the significant success of getting this bill done. It means we can spend more time focusing on efficiency, on quality, on the best way to compensate physicians but also keeping the focus on the patients and making sure they get better outcomes.

I thank the Presiding Officer, and I yield the floor.

Mr. President, I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. CORNYN. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

MORNING BUSINESS

Mr. CORNYN. Mr. President, I ask unanimous consent that the Senate be in a period of morning business, with Senators permitted to speak therein for up to 10 minutes each.

The PRESIDING OFFICER. Without objection, it is so ordered.

POSITIVE TRAIN CONTROL AND RAILROAD SAFETY

Mr. BLUMENTHAL. Mr. President, I wish to state my opposition to S. 650 in its current form. This legislation would extend the deadline for installation of Positive Train Control, PTC, by 5 years. I cannot agree with allowing such an extension without addressing so many other critical rail safety matters.

As Joe Boardman, the head of Amtrak and former FRA Administrator has said, ''PTC is the most important rail safety advancement of our time.'' The need for this technology was first brought to our attention over 45 years ago, sparked by a head-on train collision in Darien, CT in 1969. There have been many other horrible crashes since, and within the past decade alone, the National Transportation Safety Board has completed more than two dozen train accident investigations that took 65 lives and injured over 1,100 people—all of this, according to the NTSB, could have been prevented by PTC.

One of those horrific crashes occurred in 2008 in Southern California, and 25 lives were lost. PTC could have saved those lives. Accordingly, soon after that tragedy, Congress took real, thoughtful, substantive action and gave railroads more than 7 years to implement the life-saving technology of PTC. Since then, there have been other major accidents, such as the horrific crash of a Metro-North train in the Bronx in 2013 in which four lives were lost. Metro-North did not have PTC, and the NTSB has said the technology could have prevented those four deaths. Now, as we near the end of the 7 years, S. 650 gives railroads an extension of 5 more years—and then an option for 2 more after that. So, again, we must wait and risk continued loss of life as we further put off proven, life-saving technology.

There may be issues with the deadline, and we should have a discussion about those issues. We should also have a discussion about the many other issues with PTC. These include the need for resources for commuter railroads, the need for greater transparency for all railroads and the need for dedicated spectrum to ensure commuter railroads have bandwidth to operate PTC. S. 650 doesn't address these other issues. Rather, the bill just focuses on the deadline. I want to make sure the bill solves all the other problems.

In the Commerce, Science, and Transportation Committee, I filed amendments that actually address these other outstanding issues. I want to make sure funding is available for cash-strapped passenger railroads and commuter lines. I want to bolster transparency and make sure we know where railroads truly are in the implementation process. I want to make sure commuter railroads have the frequency they need to build out PTC, and I do not want any bill to move to the floor that ignores these needs and shortchanges our commuter railroads.

Another issue I hold with S. 650 is the bill's lack of attention to other serious safety concerns that should be addressed hand-in-hand with the shortcomings PTC works to resolve. Over the past few years, we have witnessed an onslaught of other rail safety issues spurred by far too many preventable accidents. Many of these accidents have happened on Metro-North, the commuter railroad serving Connecticut, the State I proudly represent. From mid-2013 into early 2014, we witnessed five major incidents on our commuter railroad. Then, again in February 2015, we witnessed another horrific incident in which six lives were

lost. These accidents have raised a host of other needs: cameras on trains, sufficient crew size, improved rail inspections, close-call reporting systems, redundant signal protection, alerters on rail cabs, speed restrictions, better Federal oversight, and safer highway-rail grade crossings.

In the committee, I filed amendments that also advance these reforms. Those reforms must be a part of any real rail safety discussion. If we are even to consider a PTC deadline extension, it is imperative we take up other well-known measures that can improve safety while we work toward full PTC implementation. I appreciate the commitment from the chairman and ranking member of the Commerce, Science, and Transportation Committee to work with me to advance these reforms. I also appreciate the committee including a modified version of one of my amendments in the bill that passed out of the committee. Although I withdrew my other amendments in the committee, I look forward to working with all of my colleagues to improve this bill further. I am confident that together we can achieve important reforms and truly advance safety for all who depend on rail.

EVERY CHILD ACHIEVES ACT OF 2015

Mr. ALEXANDER. Mr. President, I ask unanimous consent to have printed in the RECORD a copy of my opening remarks at the markup of the Every Child Achieves Act.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

EVERY CHILD ACHIEVES ACT OF 2015

We are meeting today to write legislation that will fix the problems with ''No Child Left Behind,'' the federal law causing confusion and anxiety in our country's 100,000 public schools.

Working together the last few months, Senator Murray and I have found a consensus about the urgent need to fix these problems as well as a remarkable consensus about how to fix them.

That consensus is this: Continue the law's important measurements of academic progress of students but restore to states, school districts, classroom teachers and parents the responsibility for deciding what to do about improving student achievement. This change should produce fewer tests and more appropriate ways to measure student achievement. It is the most effective path to advance higher state standards, better teaching, and real accountability.

We have drafted a bill based upon this consensus which we will offer as a starting point for our deliberations.

The problems with No Child Left Behind have been created by a combination of presidential action and congressional inaction. In 2001, President Bush and Congress enacted ''No Child Left Behind,'' requiring a total of 17 tests between reading, math and science during a child's elementary and secondary education. The results of these tests must be disaggregated and reported according to race, ethnicity, gender, disability and other measures so parents, teachers and the community could see which children are being left behind. The law also created federal standards for whether a school is succeeding or failing, what a state or school district must do about that failure, and whether a teacher was highly qualified to teach in a classroom.

If fixing No Child Left Behind were a standardized test, Congress would have earned a failing grade for each of the last seven years. ''No Child Left Behind'' expired in 2007 but Congress has been unable to agree on how to reauthorize it. As a result, the law's original requirements have stayed in place and gradually became unworkable. This has caused almost all of America's public schools to be classified as failing under the terms of the law. To avoid this bizarre result, President Obama's Education Secretary offered waivers from the terms of the law. But the Secretary required each of the 42 states currently operating under waivers to adopt certain academic standards, take prescribed steps to help failing schools, and to evaluate teachers in a defined way.

So much new federal control of local schools has produced a backlash against ''Common Core'' academic standards, teacher evaluation, and against tests in general. Governors and chief state school officers complain about federal overreach. Infuriated teachers say that the U.S. Department of Education has become a ''National Human Resources Department or, in effect, a national school board.''

In each of the last two Congresses, this Committee produced bills to fix No Child Left Behind. Basically, these bills divided our committee along party lines. Even so, two Congresses ago, Sens. Enzi, Kirk and I voted with the Democratic majority to report a bill out of committee so that the full senate could act. In the last Congress, the committee majority passed a partisan bill without any Republican votes, but I committed to support Chairman Harkin in taking the bill to the floor if there would be an open amendment process. Unfortunately, these bills never reached the senate floor.

In January, Sen. Murray suggested that the two of us work together to try to bridge the partisan divide and to recommend to the full committee a solution. I accepted her suggestion and I want to thank her for it. We have listened carefully to our senate colleagues, to teachers, principals, governors, chief state school officers, students and parents and the business and civil rights communities—and to each other.

I especially want to thank our staffs—Evan Schatz (pronounced SHOTS), Sarah Bolton, and Amanda Beaumont on Sen. Murray's staff, and David Cleary, Peter Oppenheim, and Lindsay Fryer on my staff—for their hard work and the way that they worked, trying to strip aside the rhetoric and look for real solutions. I believe they, and we, have succeeded in that.

We found that no issue stirred as much controversy as testing. Our proposal maintains the reading, math and science tests and disaggregated reporting requirements established in 2001. The more we studied the problem; the issue seems not to be the 17 federal tests. A third grader, for example, is required to take only one test in math and one in reading during one year. Denver Public Schools superintendent Tom Boasberg testified before the committee that he'd like to keep math and reading tests to a total of 4 hours a year—that's about what they are right now in Denver, according to our calculations.

Instead, the problem is the federal government's accountability system for what to do about the results of these tests. This federal accountability system has greatly contributed to the exploding number of state and local tests.

Because of this, our proposal would end federal test-based accountability and restore state and local responsibility for creating systems holding schools and teachers accountable. State accountability systems must meet limited federal guidelines, including challenging academic standards for all students, but the federal government is prohibited from determining or approving state standards or even incentivizing states into adopting specific standards. In other words, whether a state adopts Common Core is entirely that state's decision. This transfer of responsibility is why we believe our proposal will result in fewer and more appropriate tests.

Our proposal allows, but does not require, states to develop and implement teacher evaluation systems that link student achievement to teacher performance. States will be allowed to use federal funds to implement evaluations the way they see fit.

States will determine their lowest-performing schools and receive federal funds to assist those schools but the federal government will not mandate specific steps to fix those schools.

Sens. Murray and Isakson will propose and I will support an amendment for competitive planning grants to help states expand quality early childhood education by addressing the fragmentation of current early childhood federal, state, local, public and private programs.

In conclusion, I have this request for members of the committee: please exercise restraint and help us get to a result.

If we senators were students in a classroom, none of us would expect to receive a passing grade for unfinished work. Seven years is long enough to consider how to fix No Child Left Behind. The members of this committee are thoroughly familiar with the issues. Twenty of our 22 members were on the committee during the last Congress when we considered and reported a bill. Sixteen of our members were here in the previous Congress. Over the last 6 years and 3 months we have had 27 hearings on elementary and secondary education.

Knowing this, Sen. Murray and I have exercised restraint. Neither of us insisted on putting into our base bill every proposal about which we feel strongly, although we will offer some of these as amendments when we reach the senate floor. We know that to get a result we have to achieve consensus, which means more than sixty votes. We also know that in conference we will need to agree with the House of Representatives, which is of one political party, and then with the President, who is of another.

During our committee discussions, any germane amendment will be in order to the bipartisan agreement Sen. Murray and I will offer. Any amendment related to K–12 education will be in order on the senate floor. Nevertheless, I would ask each member of this committee to exercise restraint in search of a result. If we can agree on most things, let's put aside the other things until another debate and another day.

And I would ask one other thing: in offering your amendments, please keep in mind the advice we received earlier this year from Carol Burris, New York's 2013 High School principal of the Year:

''I ask that your committee remember that the American public school system was built on the belief that local communities cherish their children and have the right and responsibility, within sensible limits, to determine how they are schooled.

While the federal government has a very special role in ensuring that our students do not experience discrimination based on who they are or what their disability may be, Congress is not a National School Board.

Although our locally elected school boards may not be perfect, they represent one of the purest forms of democracy we have. Bad ideas in the small do damage in the small and are easily corrected. Bad ideas at the federal level result in massive failure and are far harder to fix.''

In other words, our well-intended guidance from Washington is usually not as effective as a decision made in the home, classroom, and community by those closest to the children.

What we heard over and over again from Democrats as well as Republicans was that while continuing measurements of academic progress are important in holding schools and teachers accountable, we should respect the judgments of those closest to the children and leave to them most decisions about how to help 3.4 million teachers help 50 million children in 100,000 public schools improve student achievement.

Fifty years ago on Palm Sunday, President Lyndon B. Johnson signed the first Elementary and Secondary Education Act. A good way to celebrate that anniversary is to fix the problems with the most recent version of the act so that all our children can have the best possible opportunity to learn what they need to know and be able to do in an increasingly complex world.

ADDITIONAL STATEMENTS

TRIBUTE TO BISHOP WALTER SCOTT THOMAS

● Mr. CARDIN. Mr. President, this Sunday, I will be honored and pleased to participate in a celebration of Bishop Walter Scott Thomas' 40th anniversary as pastor of the New Psalmist Baptist Church in Baltimore, MD. Bishop Thomas is one of the great leaders of the faith community in Baltimore. When he became pastor of New Psalmist Baptist Church in 1975, the congregation numbered 200 or so people. Today, the church has over 7,000 active members. There are Bible study classes held every day of the week, a 3-year discipleship program, leadership classes, and a school for future ministers. New Psalmist has a nationally televised broadcast, ''Empowering Disciples,'' that can be viewed locally on WJZ TV and on the Word Network. There are three worship services on Sundays and one on Wednesday. New Psalmist is committed to caring for community and for God's creation. Classes are held to teach members how to Go Green and conserve God's creation. Every year, the church helps over 500 families at Christmas, and feeds 100 disadvantaged families each month.

Bishop Thomas is known as a pastor's pastor. He makes himself available as a mentor and source of strength for other pastors. Ten years ago, 28 sons and daughters of the New Psalmist Baptist Church who pastor churches across the Nation gathered and voted unanimously to elect Bishop Thomas as president of Kingdom Association of Covenant Pastors and to the office of bishop. Later that year, Bishop Thomas was elevated to the office of bishop and presiding prelate of The Kingdom Association of Covenant Pastors. That historic occasion was held at the First Mariner Arena in front of over 10,000 people. The Kingdom Association of Covenant Pastors is a newly established association consisting of men and women who have been influenced by the ministry of New Psalmist Baptist Church and Bishop Thomas.

Bishop Thomas isn't content just to lead New Psalmist Baptist Church. He served as the president of the Hampton University Minister's Conference from 1999 to 2002. Under his leadership, conference attendance doubled. Bishop Thomas is also an inspirational author of books such as ''Spiritual Navigation for the 21st Century'' and ''Good Meat Makes Its Own Gravy''. He is the editor of ''Outstanding Black Sermons, Volume 4''. Bishop Thomas received his bachelor of science degree from the University of Maryland in economics. He earned his master of divinity degree from the Howard University School of Religion in Washington, DC and a doctor of ministry degree from Saint Mary's Seminary & University in Baltimore. In addition to his earned degrees, Bishop Thomas was bestowed with an honorary doctor of divinity degree from Virginia Seminary and Bethune Cookman College. Bishop Thomas and his wife and committed partner in ministry, Patricia, have three children, Joi, Walter Jr., and Joshua.

New Psalmist Baptist Church has a rich history that spans over 100 years. The church was founded by Rev. Junius Gray in 1899 as the Right Independent Freewill Baptist Church. The first members—fewer than 20 people—met in the basement of a house on Russell Terrace. In 1901, the church purchased and moved to a two-story building at 1102 Parrish Alley. In 1911, the church, renamed Psalmist Baptist Church, purchased and remodeled property at Riggs Avenue and Woodyear Street. Reverend Gray pastored Psalmist Baptist Church for 47 years.

Rev. Frederick C. Atkins was called to pastor Psalmist Baptist Church in June 1948. Under his leadership, membership grew and, because of that growth, the church purchased and moved to a new building at Druid Hill and North Avenues in 1954. The $56,000 mortgage was paid in full and burned in 1960 and the church was renamed the New Psalmist Baptist Church. Reverend Atkins served as pastor until his sudden death on March 16, 1974. Bishop Thomas, who was called to proclaim the Word of God in 1973 under the anointed leadership of Dr. Harold Carter, pastor of the New Shiloh Baptist Church in Baltimore, took over in 1975. In 1978, New Psalmist moved from Druid Hill and North Avenues to Cathedral and Franklin Streets. While in downtown Baltimore, New Psalmist grew tremendously. In 1994, New Psalmist broke ground and 2 years later, moved from Franklin and Cathedral Street to Old Frederick Road, a multi-million dollar worship center and ministry complex on 19 acres of land. The church continued to grow and in the fall of 2010, it moved into a brand new 4,000-seat worship facility.

New Psalmist Baptist Church is a vibrant and welcoming place. Past attendees have included the Reverend Martin Luther King, Jr., the Reverend Jesse Jackson, the Reverend T.D. Jakes, former President Bill Clinton in 1998, and then-Senator Barack Obama in 2007. New Psalmist Baptist Church members walk in faith and work together for the common good. The church provides job training and a fitness and health ministry; donates school supplies to children; ministers to the deaf, homeless, and prisoners and their families; hosts blood drives; partners with 12 schools across Maryland to help students, parents, and school staff members succeed in their educational mission; and is an accredited organization under the United Nations Environment Program, which seeks to create global policies that will protect our planet.

I encourage my Senate colleagues to join me in congratulating Bishop Thomas and his family and friends on his 40th pastoral anniversary at New Psalmist Baptist Church and sending along best wishes to all the members of New Psalmist who know, as President John F. Kennedy said at his inauguration 54 years ago, ''that here on earth God's work must truly be our own.''●

TRIBUTE TO DR. GLENN STEELE

● Mr. CASEY. Mr. President, I rise today to honor the career of Dr. Glenn Steele upon his retirement from Geisinger Health System. Teddy Roosevelt once said, ''Far and away the best prize that life has to offer is the chance to work hard at work worth doing.'' In his 14 years as CEO of Geisinger, Glenn Steele has been the embodiment of that idea.

Geisinger is located in Dansville, PA, and is the largest rural health services organization in the country, serving more than 3 million residents throughout 48 counties. Annually, Geisinger provides over $400 million in community support, helping to meet the needs of all Pennsylvanians in the area, regardless of their ability to pay. Under Dr. Steele, Geisinger has been a leader in delivery system reform, improving quality of care and population health while reducing cost.

Dr. Steele is a trailblazer in the health care field. With a medical degree from New York University School of Medicine and a doctorate in microbiology from Lund University in Sweden, Dr. Steele brings a unique perspective to managing a health care system. He has authored and coauthored over 460 scientific and professional articles and has been widely recognized for his investigations into the treatment of liver cancer and colorectal cancer surgery. He is also a visionary in the area of health care delivery and financing, one of the achievements for which Geisinger is most well-known. Since

2012, Dr. Steele has served on the U.S. Congressional Budget Office's panel of health advisors, cementing his reputation as a national leader.

Dr. Steele has earned numerous awards over the years. He was named to Modern Health Care's list of the 50 Most Influential Physician Executives five times and the list of the 100 Most Influential People in Health care five times. He received the CEO IT Achievement Award in 2006, American Hospital Association's Grassroots Champion Award in 2007, the American Hospitals Association's Health Research & Education Trust Award and the HFMA Board of Directors' Award in 2011. Most recently, he was named to the Becker's Hospital Review's list of ''40 of the Smartest People in Health care'' for his work in health care reform. He also received the 2014 Gail L. Warden Leadership Excellence Award, which recognizes people for innovative approaches to bringing high-value and accessible health care to their communities, permanently transforming and improving the field. That final award is a testament to Geisinger's legacy and sums up Dr. Steele's vision of health care.

On behalf of the people of Pennsylvania, I wish Glenn Steele well in this new chapter. I have no doubt he will continue transforming health care and changing and improving the lives of people and the communities where they live.●

RECOGNIZING JILL LISTI DANCE STUDIO

● Mr. VITTER. Mr. President, among the best ways to introduce the arts into our local communities is through small businesses. Small businesses have the opportunity to harness the talent of their communities, fostering a culture of creativity and innovation. Such is the case with this week's Small Business of the Week: Jill Listi Dance Studio of Lafayette, LA.

When Jill Listi began teaching dance classes at the age of 15, she could not imagine where her love of dance would lead her. Opening her own studio at the age of 21, Listi has gained a reputation for training world-class, award-winning dancers of all ages and styles. A 25-year certified member of the Dance Masters of America organization, Listi continually innovates with the art of dance at her Lafayette studio. Many of Listi's dance groups, dance lines, and dance productions have won platinum medals and overall high point awards at their respective contests. With over 30 years of teaching experience, Jill Listi Dance Studio boasts a diverse and well-trained staff. Well known in the world of dance and continually expanding their knowledge of technique and style, Listi's team continues to produce and inspire top-quality dancers. Many of Listi's dancers have gone on to dance professionally in the United States as well as in Europe.

Listi's dance studio is committed to providing opportunities in the arts to children and adults throughout Acadiana. The studio values the opportunity to introduce students to dance while instilling a firm foundation that promotes a respect and understanding for the art of dance. From professional dancer to first time student, Listi provides equal attention and instruction to all studio students. The Listi team believes that hard work produces achievement—a lesson that instills disciple in each studio student that translates into all aspects of life.

Congratulations again to Jill Listi Dance for being selected as Small Business of the Week. Thank you for being a champion for the arts in Louisiana.●

MESSAGES FROM THE PRESIDENT

Messages from the President of the United States were communicated to the Senate by Mr. Pate, one of his secretaries.

EXECUTIVE MESSAGES REFERRED

As in executive session the Presiding Officer laid before the Senate messages from the President of the United States submitting sundry nominations which were referred to the appropriate committees.

(The messages received today are printed at the end of the Senate proceedings.)

PRESIDENTIAL MESSAGE

REPORT TO THE UNITED STATES CONGRESS WITH RESPECT TO THE PROPOSED RESCISSION OF CUBA'S DESIGNATION AS A STATE SPONSOR OF TERRORISM—PM 13

The PRESIDING OFFICER laid before the Senate the following message from the President of the United States, together with an accompanying report and papers, which was referred to the Committee on Foreign Relations:

To the Congress of the United States:

I transmit herewith a report to the Congress with respect to the proposed rescission of Cuba's designation as a state sponsor of terrorism.

BARACK OBAMA.

THE WHITE HOUSE, *April 14, 2015.*

MESSAGES FROM THE HOUSE

At 10:03 a.m., a message from the House of Representatives, delivered by Mrs. Cole, one of its reading clerks, announced that the House has agreed to the following concurrent resolution, in which it requests the concurrence of the Senate:

H. Con. Res. 9. Concurrent resolution authorizing the use of Emancipation Hall in the Capitol Visitor Center for a ceremony as part of the commemoration of the days of remembrance of the victims of the Holocaust.

At 11:45 a.m., a message from the House of Representatives, delivered by Mrs. Cole, one of its reading clerks, announced that the House has passed the following bills, in which it requests the concurrence of the Senate:

H.R. 299. An act to amend the Federal Home Loan Bank Act to authorize privately insured credit unions to become members of a Federal home loan bank, and for other purposes.

H.R. 601. An act to amend the Gramm-Leach-Bliley Act to provide an exception to the annual privacy notice requirement.

H.R. 1259. An act to provide for an application process for interested parties to apply for an area to be designated as a rural area, and for other purposes.

H.R. 1265. An act to apply the requirements of the Federal Advisory Committee Act to the Bureau of Consumer Financial Protection.

H.R. 1367. An act to amend the Expedited Funds Availability Act to clarify the application of that Act to American Samoa and the Northern Mariana Islands.

H.R. 1480. An act to ensure access to certain information for financial services industry regulators, and for other purposes.

The message also announced that the House has agreed to the following concurrent resolution, in which it requests the concurrence of the Senate:

H. Con. Res. 34. Concurrent resolution authorizing the use of Emancipation Hall in the Capitol Visitors Center for a ceremony to present the Congressional Gold Medal to the American Fighter Aces.

MEASURES REFERRED

The following bills were read the first and the second times by unanimous consent, and referred as indicated:

H.R. 299. An act to amend the Federal Home Loan Bank Act to authorize privately insured credit unions to become members of a Federal home loan bank, and for other purposes; to the Committee on Banking, Housing, and Urban Affairs.

H.R. 601. An act to amend the Gramm-Leach-Bliley Act to provide an exception to the annual privacy notice requirement; to the Committee on Banking, Housing, and Urban Affairs.

H.R. 1259. An act to provide for an application process for interested parties to apply for an area to be designated as a rural area, and for other purposes; to the Committee on Banking, Housing, and Urban Affairs.

H.R. 1265. An act to apply the requirements of the Federal Advisory Committee Act to the Bureau of Consumer Financial Protection; to the Committee on Banking, Housing, and Urban Affairs.

H.R. 1367. An act to amend the Expedited Funds Availability Act to clarify the application of that Act to American Samoa and the Northern Mariana Islands; to the Committee on Banking, Housing, and Urban Affairs .

H.R. 1480. An act to ensure access to certain information for financial services industry regulators, and for other purposes; to the Committee on Banking, Housing, and Urban Affairs.

MEASURES DISCHARGED

The following bill was discharged from the Committee on Homeland Security and Governmental Affairs and referred as indicated:

S. 95. A bill to terminate the $1 presidential coin program; to the Committee on Banking, Housing, and Urban Affairs.

EXECUTIVE AND OTHER COMMUNICATIONS

The following communications were laid before the Senate, together with accompanying papers, reports, and documents, and were referred as indicated:

EC–1065. A message from the President of the United States, transmitting, pursuant to law, a report relative to the issuance of an Executive Order declaring a national emergency with respect to the unusual and extraordinary threat to the national security, foreign policy, and economy of the United States posed by the increasing prevalence and severity of malicious cyber-enabled activities originating from, or directed by persons located, in whole or in substantial part, outside the United States, received during adjournment of the Senate in the Office of the President of the Senate on April 1, 2015; to the Committee on Banking, Housing, and Urban Affairs.

EC–1066. A communication from the Secretary of the Treasury, transmitting, pursuant to law, a six-month periodic report on the national emergency with respect to the Central African Republic that was declared in Executive Order 13667 of May 12, 2014; to the Committee on Banking, Housing, and Urban Affairs.

EC–1067. A communication from the Secretary of the Treasury, transmitting, pursuant to law, a six-month periodic report on the national emergency with respect to Syria that was declared in Executive Order 13338 of May 11, 2004; to the Committee on Banking, Housing, and Urban Affairs.

EC–1068. A communication from the Senior Counsel for Regulatory Affairs, Department of the Treasury, transmitting, pursuant to law, the report of a rule entitled ''Department of the Treasury Acquisition Regulations; Technical Amendments'' (48 CFR Parts 1001, 1002, 1016, 1019, 1028, 1032, 1034, 1042, and 1052) received during adjournment of the Senate in the Office of the President of the Senate on April 8, 2015; to the Committee on Banking, Housing, and Urban Affairs.

EC–1069. A communication from the General Counsel and Senior Policy Advisor, Office of Management and Budget, Executive Office of the President, transmitting, pursuant to law, a report relative to a vacancy in the position of Deputy Director, Office of Management and Budget, received during adjournment of the Senate in the Office of the President of the Senate on April 8, 2015; to the Committee on the Budget.

EC–1070. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Secondary (C13-C17) Alkane Sulfonates; Exemption from the Requirement of a Tolerance'' (FRL No. 9923–64) received during adjournment of the Senate in the Office of the President of the Senate on April 7, 2015; to the Committee on Agriculture, Nutrition, and Forestry.

EC–1071. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Pyraclostrobin; Pesticide Tolerances'' (FRL No. 9925–02) received during adjournment of the Senate in the Office of the President of the Senate on April 7, 2015; to the Committee on Agriculture, Nutrition, and Forestry.

EC–1072. A communication from the President of the United States, transmitting, pursuant to law, a report relative to recommendations proposed by the Military Compensation and Retirement Modernization Commission; to the Committee on Armed Services.

EC–1073. A communication from the Under Secretary of Defense (Personnel and Readiness), transmitting a report on the approved retirement of Lieutenant General Brooks L. Bash, United States Air Force, and his advancement to the grade of lieutenant general on the retired list; to the Committee on Armed Services.

EC–1074. A communication from the Principal Deputy Under Secretary of Defense (Personnel and Readiness), transmitting the report of ten (10) officers authorized to wear the insignia of the grade of major general or brigadier general, as indicated, in accordance with title 10, United States Code, section 777; to the Committee on Armed Services.

EC–1075. A communication from the Executive Director, Federal Energy Regulatory Commission, transmitting, pursuant to law, the report of a rule entitled ''Annual Update of Filing Fees'' (RIN1902–AE97) received during adjournment of the Senate in the Office of the President of the Senate on April 8, 2015; to the Committee on Energy and Natural Resources.

EC–1076. A communication from the President of the United States, transmitting, pursuant to law, a recommendation that the Congress pass legislation making additions to the National Wilderness Preservation System and the National Wild and Scenic Rivers System that the Service proposed as part of the revised Comprehensive Conservation Plan and final environmental impact statement for the Arctic National Wildlife Refuge; to the Committee on Energy and Natural Resources.

EC–1077. A communication from the Executive Secretary, U.S. Agency for International Development (USAID), seven (7) reports relative to vacancies in the Agency for International Development (USAID), received during adjournment of the Senate in the Office of the President of the Senate on April 2, 2015; to the Committee on Foreign Relations.

EC–1078. A communication from the Director of Regulations Policy and Management Staff, Food and Drug Administration, Department of Health and Human Services, transmitting, pursuant to law, the report of a rule entitled ''Listing of Color Additives Exempt From Certification; Synthetic Iron Oxide'' (Docket No. FDA–2013–C–1008) received during adjournment of the Senate in the Office of the President of the Senate on March 31, 2015; to the Committee on Health, Education, Labor, and Pensions.

EC–1079. A communication from the Assistant Secretary for Legislation, Department of Health and Human Services, transmitting, pursuant to law, a report entitled ''Fiscal Year 2012 Report to Congress on Community Services Block Grant Discretionary Activities—Community Economic Development and Rural Community Development Programs''; to the Committee on Health, Education, Labor, and Pensions.

EC–1080. A communication from the Assistant Secretary for Legislation, Department of Health and Human Services, transmitting, pursuant to law, a report entitled ''Fiscal Year 2014 Performance Report to the President and Congress for the Biosimilar User Fee Act''; to the Committee on Health, Education, Labor, and Pensions.

EC–1081. A communication from the Assistant Secretary for Legislation, Department of Health and Human Services, transmitting, pursuant to law, a report entitled ''2012 Regional Partnerships Grants to Increase the Well-Being of and to Improve the Permanency Outcomes for Children Affected by Substance Abuse: First Annual Report to Congress''; to the Committee on Health, Education, Labor, and Pensions.

EC–1082. A communication from the Chairman of the National Health Care Workforce Commission, transmitting, pursuant to law, a report relative to the status of the Commission; to the Committee on Health, Education, Labor, and Pensions.

EC–1083. A communication from the Chairman of the Nuclear Regulatory Commission, transmitting, pursuant to law, the Commission's fiscal year 2014 annual report relative to the Notification and Federal Employee Antidiscrimination and Retaliation Act of 2002 (No FEAR Act); to the Committee on Homeland Security and Governmental Affairs.

EC–1084. A communication from the District of Columbia Auditor, transmitting, pursuant to law, a report entitled ''District of Columbia Agencies' Compliance with Fiscal Year 2015 Small Business Enterprise Expenditure Goals through the 1st Quarter of Fiscal Year 2015''; to the Committee on Homeland Security and Governmental Affairs.

EC–1085. A communication from the Director, Court Services and Offender Supervision Agency for the District of Columbia, transmitting, pursuant to law, the Agency's fiscal year 2014 annual report relative to the Notification and Federal Employee Antidiscrimination and Retaliation Act of 2002 (No FEAR Act); to the Committee on Homeland Security and Governmental Affairs.

EC–1086. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Revisions to the California State Implementation Plan; San Joaquin Valley Unified Air Pollution Control District; Quantification of Emission Reductions From Incentive Program'' (FRL No. 9924–69–Region 9) received during adjournment of the Senate in the Office of the President of the Senate on April 7, 2015; to the Committee on Environment and Public Works.

EC–1087. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Revisions to the California State Implementation Plan, Northern Sierra Air Quality Management District'' (FRL No. 9925–33–Region 9) received during adjournment of the Senate in the Office of the President of the Senate on April 7, 2015; to the Committee on Environment and Public Works.

EC–1088. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Response to Vacaturs of the Comparable Fuels Rule and the Gasification Rule'' (FRL No. 9923–12–OSWER) received during adjournment of the Senate in the Office of the President of the Senate on April 7, 2015; to the Committee on Environment and Public Works.

EC–1089. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Approval and Promulgation of Air Quality Implementation Plans; Virginia-Prevention of Significant Deterioration; Amendment to the Definition of 'Regulated NSR Pollutant' Concerning Particulate Matter'' (FRL No. 9925–96–Region 3) received during adjournment of the Senate in the Office of the President of the Senate on April 7, 2015; to the Committee on Environment and Public Works .

EC–1090. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Approval and Promulgation of Air Quality Implementation Plans; Pennsylvania; Redesignation of the Allentown Nonattainment Area to Attainment for the 2006

24-Hour Fine Particulate Matter Standard'' (FRL No. 9925–94–Region 3) received during adjournment of the Senate in the Office of the President of the Senate on April 7, 2015; to the Committee on Environment and Public Works; to the Committee on Environment and Public Works.

EC–1091. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Approval and Promulgation of Air Quality Implementation Plans; District of Columbia; Infrastructure Requirements for the 2008 Ozone, 2010 Nitrogen Dioxide, and 2010 Sulfur Dioxide National Ambient Air Quality Standards; Approval of Air Pollution Emergency Episode Plan'' (FRL No. 9925–93–Region 3) received during adjournment of the Senate in the Office of the President of the Senate on April 7, 2015; to the Committee on Environment and Public Works.

EC–1092. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Approval and Promulgation of Air Quality Implementation Plans; District of Columbia, Maryland, and Virginia; Attainment Demonstration for the 1997 8-Hour Ozone National Ambient Air Quality Standard for the Washington, DC–MD-VA Moderate Nonattainment Area'' (FRL No. 9925–27–Region 3) received during adjournment of the Senate in the Office of the President of the Senate on April 7, 2015; to the Committee on Environment and Public Works.

EC–1093. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Additional Air Quality Designations and Technical Amendment to Correct Inadvertent Error in Air Quality Designations for the 2012 Primary Annual Fine Particulate (PM2.5) National Ambient Air Quality Standards (NAAQS)'' (FRL No. 9925–76–OAR) received during adjournment of the Senate in the Office of the President of the Senate on April 7, 2015; to the Committee on Environment and Public Works.

EC–1094. A communication from the Chief of the Listing Branch, Fish and Wildlife Service, Department of the Interior, transmitting, pursuant to law, the report of a rule entitled ''Endangered and Threatened Wildlife and Plants; Taxonomy of the Hawaiian Monk Seal'' (RIN1018–BA73) received during adjournment of the Senate in the Office of the President of the Senate on April 1, 2015; to the Committee on Environment and Public Works.

EC–1095. A communication from the Director, Office of Regulations and Reports Clearance, Social Security Administration, transmitting, pursuant to law, the report of a rule entitled ''Revised Listings for Growth Disorders and Weight Loss in Children'' (RIN0960–AG28) received during adjournment of the Senate in the Office of the President of the Senate on April 7, 2015; to the Committee on Finance.

EC–1096. A communication from the Assistant Secretary for Legislation, Department of Health and Human Services, transmitting, pursuant to law, a report entitled ''Medicare National Coverage Determinations for Fiscal Year 2014'' ; to the Committee on Finance.

EC–1097. A communication from the Chief of the Publications and Regulations Branch, Internal Revenue Service, Department of the Treasury, transmitting, pursuant to law, the report of a rule entitled ''Announcement and Report Concerning Advance Pricing Agreements'' (Announcement 2015–11) received during adjournment of the Senate in the Office of the President of the Senate on April 1, 2015; to the Committee on Finance.

EC–1098. A communication from the Chief of the Publications and Regulations Branch, Internal Revenue Service, Department of the Treasury, transmitting, pursuant to law, the report of a rule entitled ''Reporting Airline Payment Amount Rollovers Under Public Law 113–243'' (Announcement 2015–13) received during adjournment of the Senate in the Office of the President of the Senate on April 1, 2015; to the Committee on Finance.

EC–1099. A communication from the Chief of the Publications and Regulations Branch, Internal Revenue Service, Department of the Treasury, transmitting, pursuant to law, the report of a rule entitled ''Instructions for Communications Pursuant to Section 1.1502–77'' (Rev. Proc. 2015–26) received during adjournment of the Senate in the Office of the President of the Senate on April 1, 2015; to the Committee on Finance.

EC–1100. A communication from the Chief of the Publications and Regulations Branch, Internal Revenue Service, Department of the Treasury, transmitting, pursuant to law, the report of a rule entitled ''No Rule for Refined Coal'' (Rev. Proc. 2015–29) received during adjournment of the Senate in the Office of the President of the Senate on April 1, 2015; to the Committee on Finance.

EC–1101. A communication from the Chief of the Publications and Regulations Branch, Internal Revenue Service, Department of the Treasury, transmitting, pursuant to law, the report of a rule entitled ''Modifications to Employee Plans Compliance Resolution System'' (Rev. Proc . 2015–27) received during adjournment of the Senate in the Office of the President of the Senate on April 1, 2015; to the Committee on Finance .

EC–1102. A communication from the Chief of the Publications and Regulations Branch, Internal Revenue Service, Department of the Treasury, transmitting, pursuant to law, the report of a rule entitled ''Period of Limitations on Assessment for Listed Transactions Not Disclosed Under Section 6011'' ((RIN1545–BH37) (TD 9718)) received during adjournment of the Senate in the Office of the President of the Senate on April 1, 2015; to the Committee on Finance.

EC–1103. A communication from the Chief of the Publications and Regulations Branch, Internal Revenue Service, Department of the Treasury, transmitting, pursuant to law, the report of a rule entitled ''Regulations Revising Rules Regarding Agency for a Consolidated Group'' ((RIN1545–BH31) (TD 9715)) received during adjournment of the Senate in the Office of the President of the Senate on April 1, 2015; to the Committee on Finance.

EC–1104. A communication from the Chief of the Publications and Regulations Branch, Internal Revenue Service, Department of the Treasury, transmitting, pursuant to law, the report of a rule entitled ''Certain Employee Remuneration in Excess of $1,000,000 under Internal Revenue Code Section 162(m)'' ((RIN1545–BI65) (TD 9716)) received during adjournment of the Senate in the Office of the President of the Senate on April 1, 2015; to the Committee on Finance.

EC–1105. A communication from the Chief of the Publications and Regulations Branch, Internal Revenue Service, Department of the Treasury, transmitting, pursuant to law, the report of a rule entitled ''Fringe Benefits Aircraft Valuation Formula'' (Rev. Rul. 2015–6) received during adjournment of the Senate in the Office of the President of the Senate on April 1, 2015; to the Committee on Finance.

EC–1106. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Airworthiness Directives; Airbus Airplanes'' ((RIN2120–AA64) (Docket No . FAA–2014–0139)) received during adjournment of the Senate in the Office of the President of the Senate on March 31, 2015; to the Committee on Commerce, Science, and Transportation.

EC–1107. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Airworthiness Directives; Airbus Airplanes'' ((RIN2120–AA64) (Docket No . FAA–2014–0484)) received during adjournment of the Senate in the Office of the President of the Senate on March 31, 2015; to the Committee on Commerce, Science, and Transportation.

EC–1108. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Airworthiness Directives; Airbus Airplanes'' ((RIN2120–AA64) (Docket No . FAA–2014–0189)) received during adjournment of the Senate in the Office of the President of the Senate on March 31, 2015; to the Committee on Commerce, Science, and Transportation.

EC–1109. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Airworthiness Directives; Airbus Airplanes'' ((RIN2120–AA64) (Docket No . FAA–2014–0620)) received during adjournment of the Senate in the Office of the President of the Senate on March 31, 2015; to the Committee on Commerce, Science, and Transportation.

EC–1110. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Airworthiness Directives; Bombardier, Inc. Airplanes'' ((RIN2120–AA64) (Docket No. FAA–2014–0491)) received during adjournment of the Senate in the Office of the President of the Senate on March 31, 2015; to the Committee on Commerce, Science, and Transportation.

EC–1111. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Airworthiness Directives; Bombardier, Inc. Airplanes'' ((RIN2120–AA64) (Docket No. FAA–2014–0653)) received during adjournment of the Senate in the Office of the President of the Senate on March 31, 2015; to the Committee on Commerce, Science, and Transportation.

EC–1112. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Airworthiness Directives; The Boeing Company Airplanes'' ((RIN2120–AA64) (Docket No. FAA–2014–0522)) received during adjournment of the Senate in the Office of the President of the Senate on March 31, 2015; to the Committee on Commerce, Science, and Transportation.

EC–1113. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Airworthiness Directives; The Boeing Company Airplanes'' ((RIN2120–AA64) (Docket No. FAA–2008–0561)) received during adjournment of the Senate in the Office of the President of the Senate on March 31, 2015; to the Committee on Commerce, Science, and Transportation.

EC–1114. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Airworthiness Directives; The Boeing Company Airplanes'' ((RIN2120–AA64) (Docket No. FAA–

2014–0347)) received during adjournment of the Senate in the Office of the President of the Senate on March 31, 2015; to the Committee on Commerce, Science, and Transportation.

EC–1115. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Airworthiness Directives; Sikorsky Aircraft Corporation (Sikorsky) Helicopters'' ((RIN2120–AA64) (Docket No. FAA–2015–0397)) received during adjournment of the Senate in the Office of the President of the Senate on March 31, 2015; to the Committee on Commerce, Science, and Transportation.

EC–1116. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Airworthiness Directives; CFM International S.A. Turbofan Engines'' ((RIN2120–AA64) (Docket No. FAA–2014–0521)) received during adjournment of the Senate in the Office of the President of the Senate on March 31, 2015; to the Committee on Commerce, Science, and Transportation.

EC–1117. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Airworthiness Directives; Bell Helicopter Textron Canada Helicopters'' ((RIN2120–AA64) (Docket No. FAA–2014–0070)) received during adjournment of the Senate in the Office of the President of the Senate on March 31, 2015; to the Committee on Commerce, Science, and Transportation.

EC–1118. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Airworthiness Directives; Flugzeugwerke Altenrheim AG (FFA) Airplanes'' ((RIN2120–AA64) (Docket No. FAA–2015–0536)) received during adjournment of the Senate in the Office of the President of the Senate on March 31, 2015; to the Committee on Commerce, Science, and Transportation.

EC–1119. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Airworthiness Directives; Short Brothers and Harlan Limited Airplanes'' ((RIN2120–AA64) (Docket No. FAA–2014–1001)) received during adjournment of the Senate in the Office of the President of the Senate on March 31, 2015; to the Committee on Commerce, Science, and Transportation.

EC–1120. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Airworthiness Directives; Rolls-Royce plc Turbofan Engines'' ((RIN2120–AA64) (Docket No. FAA–2014–0238)) received during adjournment of the Senate in the Office of the President of the Senate on March 31, 2015; to the Committee on Commerce, Science, and Transportation.

EC–1121. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Airworthiness Directives; Rolls-Royce plc Turbofan Engines'' ((RIN2120–AA64) (Docket No. FAA–2014–0561)) received during adjournment of the Senate in the Office of the President of the Senate on March 31, 2015; to the Committee on Commerce, Science, and Transportation.

EC–1122. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Establishment of Class E Airspace; Rogue Valley, OR'' ((RIN2120–AA66) (Docket No. FAA–2013–1055)) received during adjournment of the Senate in the Office of the President of the Senate on March 31, 2015; to the Committee on Commerce, Science, and Transportation.

EC–1123. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Establishment of Class E Airspace; Plainville, CT'' ((RIN2120–AA66) (Docket No. FAA–2014–0293)) received during adjournment of the Senate in the Office of the President of the Senate on March 31, 2015; to the Committee on Commerce, Science, and Transportation.

EC–1124. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Amendment of Class E Airspace; Manchester, NH'' ((RIN2120–AA66) (Docket No. FAA–2014–0601)) received during adjournment of the Senate in the Office of the President of the Senate on March 31, 2015; to the Committee on Commerce, Science, and Transportation.

EC–1125. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Establishment of Class E Airspace; Seattle, WA'' ((RIN2120–AA66) (Docket No. FAA–2014–0466)) received during adjournment of the Senate in the Office of the President of the Senate on March 31, 2015; to the Committee on Commerce, Science, and Transportation.

EC–1126. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Establishment of Class E Airspace; Bend, OR'' ((RIN2120–AA66) (Docket No. FAA–2014–0468)) received during adjournment of the Senate in the Office of the President of the Senate on March 31, 2015; to the Committee on Commerce, Science, and Transportation.

EC–1127. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Establishment of Class E Airspace; Spokane, WA'' ((RIN2120–AA66) (Docket No. FAA–2014–0467)) received during adjournment of the Senate in the Office of the President of the Senate on March 31, 2015; to the Committee on Commerce, Science, and Transportation.

EC–1128. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Establishment of Class E Airspace; Maxwell, CA'' ((RIN2120–AA66) (Docket No. FAA–2014–0870)) received during adjournment of the Senate in the Office of the President of the Senate on March 31, 2015; to the Committee on Commerce, Science, and Transportation.

EC–1129. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Establishment of Class E Airspace; Hazen, NV'' ((RIN2120–AA66) (Docket No. FAA–2014–0869)) received during adjournment of the Senate in the Office of the President of the Senate on March 31, 2015; to the Committee on Commerce, Science, and Transportation.

EC–1130. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Establishment of Class E Airspace; North Adams, MA'' ((RIN2120–AA66) (Docket No. FAA–2014–0805)) received during adjournment of the Senate in the Office of the President of the Senate on March 31, 2015; to the Committee on Commerce, Science, and Transportation.

EC–1131. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Establishment of Class E Airspace, and Amendment of Class D and E Airspace; Prescott, AZ'' ((RIN2120–AA66) (Docket No. FAA–2013–1020)) received during adjournment of the Senate in the Office of the President of the Senate on March 31, 2015; to the Committee on Commerce, Science, and Transportation.

EC–1132. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Standard Instrument Approach Procedures, and Takeoff Minimums and Obstacle Departure Procedures; Miscellaneous Amendments (109); Amdt. No. 3628'' (RIN2120–AA65) received during adjournment of the Senate in the Office of the President of the Senate on March 31, 2015; to the Committee on Commerce, Science, and Transportation.

EC–1133. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Standard Instrument Approach Procedures, and Takeoff Minimums and Obstacle Departure Procedures; Miscellaneous Amendments (18); Amdt. No. 3627'' (RIN2120–AA65) received during adjournment of the Senate in the Office of the President of the Senate on March 31, 2015; to the Committee on Commerce, Science, and Transportation.

EC–1134. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Standard Instrument Approach Procedures, and Takeoff Minimums and Obstacle Departure Procedures; Miscellaneous Amendments (57); Amdt. No. 3630'' (RIN2120–AA65) received during adjournment of the Senate in the Office of the President of the Senate on March 31, 2015; to the Committee on Commerce, Science, and Transportation.

EC–1135. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Standard Instrument Approach Procedures, and Takeoff Minimums and Obstacle Departure Procedures; Miscellaneous Amendments (100); Amdt. No. 3629'' (RIN2120–AA65) received during adjournment of the Senate in the Office of the President of the Senate on March 31, 2015; to the Committee on Commerce, Science, and Transportation.

EC–1136. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Amendment of VOR Federal Airway V–330 in the Vicinity of Mountain Home, Idaho'' ((RIN2120–AA66) (Docket No. FAA–2014–1112)) received during adjournment of the Senate in the Office of the President of the Senate on March 31, 2015; to the Committee on Commerce, Science, and Transportation.

EC–1137. A communication from the Management and Program Analyst, Federal

Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Modification of Air Traffic Service (ATS) Routes in the Vicinity of Baton Rouge, LA'' ((RIN2120–AA66) (Docket No. FAA–2014–1124)) received during adjournment of the Senate in the Office of the President of the Senate on March 31, 2015; to the Committee on Commerce, Science, and Transportation.

EC–1138. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Amendment of Restricted Areas R–3801A, R–3801B, and R–3801C; Camp Claiborne, LA'' ((RIN2120–AA66) (Docket No. FAA–2015–0265)) received during adjournment of the Senate in the Office of the President of the Senate on March 31, 2015; to the Committee on Commerce, Science, and Transportation.

EC–1139. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Revocation of Restricted Area R–2936, West Palm Beach, FL'' ((RIN2120–AA66) (Docket No. FAA–2015–0264)) received during adjournment of the Senate in the Office of the President of the Senate on March 31, 2015; to the Committee on Commerce, Science, and Transportation.

EC–1140. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Amendment of Restricted Area Boundary Descriptions; Cape Canaveral, FL'' ((RIN2120–AA66) (Docket No. FAA–2014–0875)) received during adjournment of the Senate in the Office of the President of the Senate on March 31, 2015; to the Committee on Commerce, Science, and Transportation.

EC–1141. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Air Carrier Contract Maintenance Requirements'' ((RIN2120–AJ33) (Docket No. FAA–2011–1136)) received during adjournment of the Senate in the Office of the President of the Senate on March 31, 2015; to the Committee on Commerce, Science, and Transportation.

EC–1142. A communication from the Acting Director, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Caribbean, Gulf of Mexico, and South Atlantic; Snapper-Grouper Resources of the South Atlantic; Trip Limit Reduction'' (RIN0648–XD733) received during adjournment of the Senate in the Office of the President of the Senate on April 8, 2015; to the Committee on Commerce, Science, and Transportation.

EC–1143. A communication from the Acting Director, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Caribbean, Gulf of Mexico, and South Atlantic; Coastal Migratory Pelagic Resources of the Gulf of Mexico and South Atlantic; 2015 Commercial Run-Around Gillnet Closure'' (RIN0648–XD731) received during adjournment of the Senate in the Office of the President of the Senate on April 8, 2015; to the Committee on Commerce, Science, and Transportation.

EC–1144. A communication from the Acting Director, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Exclusive Economic Zone Off Alaska; Pacific Cod in the Western Aleutian Islands District of the Bering Sea and Aleutian Islands Management Area'' (RIN0648–XD780) received during adjournment of the Senate in the Office of the President of the Senate on April 8, 2015; to the Committee on Commerce, Science, and Transportation.

EC–1145. A communication from the Director, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Exclusive Economic Zone Off Alaska; Pacific Cod by Vessels Using Pot Gear in the Central Regulatory Area of the Gulf of Alaska'' (RIN0648–XD714) received during adjournment of the Senate in the Office of the President of the Senate on April 8, 2015; to the Committee on Commerce, Science, and Transportation.

EC–1146. A communication from the Deputy Assistant Administrator for Regulatory Programs, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Exclusive Economic Zone Off Alaska; Groundfish of the Gulf of Alaska; Groundfish of the Bering Sea and Aleutian Islands Off Alaska'' (RIN0648–BD98) received during adjournment of the Senate in the Office of the President of the Senate on April 8, 2015; to the Committee on Commerce, Science, and Transportation.

EC–1147. A communication from the Deputy Assistant Administrator for Regulatory Programs, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Caribbean, Gulf of Mexico, and South Atlantic; Shrimp Fishery of the Gulf of Mexico; Amendment 16'' (RIN0648–BE46) received during adjournment of the Senate in the Office of the President of the Senate on April 8, 2015; to the Committee on Commerce, Science, and Transportation.

EC–1148. A communication from the Deputy Assistant Administrator for Regulatory Programs, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Magnuson-Stevens Fishery Conservation and Management Act Provisions; Fisheries of the Northeastern United States; Northeast Groundfish Fishery; Fishing Year 2014; Interim Gulf of Maine Cod Management Measures; Correction'' (RIN0648–XD715) received during adjournment of the Senate in the Office of the President of the Senate on April 8, 2015; to the Committee on Commerce, Science, and Transportation.

EC–1149. A communication from the Assistant Administrator for Fisheries, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Magnuson-Stevens Act Provisions; Fisheries Off West Coast States; Pacific Coast Groundfish Fishery; 2015–2016 Biennial Specifications and Management Measures; Amendment 24'' (RIN0648–BE27) received during adjournment of the Senate in the Office of the President of the Senate on April 8, 2015; to the Committee on Commerce, Science, and Transportation.

EC–1150. A communication from the Deputy Bureau Chief, Wireline Competition Bureau, Federal Communications Commission, transmitting, pursuant to law, the report of a rule entitled ''Protecting and Promoting the Open Internet'' ((GN Docket No. 14–28) (FCC 15–24)) received during adjournment of the Senate in the Office of the President of the Senate on April 7, 2015; to the Committee on Commerce, Science, and Transportation.

EC–1151. A communication from the Staff Director, U.S. Sentencing Commission, transmitting, pursuant to law, a report relative to the compliance of federal district courts with documentation submission requirements; to the Committee on the Judiciary.

REPORTS OF COMMITTEES

The following reports of committees were submitted:

By Mr. HATCH, from the Committee on Finance, without amendment:

S. 903. An original bill to amend the Internal Revenue Code of 1986 to improve access and administration of the United States Tax Court (Rept. No. 114–14).

S. 904. An original bill to amend the Internal Revenue Code of 1986 to remove bond requirements and extend filing periods for certain taxpayers with limited excise tax liability (Rept. No. 114–15).

S. 905. An original bill to amend the Internal Revenue Code of 1986 to increase the limitation on eligibility for the alternative tax for certain small insurance companies (Rept. No. 114–16).

S. 906. An original bill to amend the Internal Revenue Code of 1986 to modify the types of wines taxed as hard cider (Rept. No. 114–17).

S. 907. An original bill to amend the Internal Revenue Code of 1986 to prevent the extension of the tax collection period merely because the taxpayer is a member of the Armed Forces who is hospitalized as a result of combat zone injuries (Rept. No. 114–18).

S. 908. An original bill to amend the Internal Revenue Code of 1986 to provide for the deductibility of charitable contributions to agricultural research organizations, and for other purposes (Rept. No. 114–19).

S. 909. An original bill to amend the Internal Revenue Code of 1986 to exempt private foundations from the tax on excess business holdings in the case of certain philanthropic enterprises which are independently supervised, and for other purposes (Rept. No. 114–20).

S. 910. An original bill to amend the Internal Revenue Code of 1986 to clarify the special rules for accident and health plans of certain governmental entities, and for other purposes (Rept. No. 114–21).

S. 912. An original bill to amend the Internal Revenue Code of 1986 to exclude payments received under the Work Colleges Program from gross income, including payments made from institutional funds (Rept. No. 114–22).

S. 913. An original bill to amend the Internal Revenue Code of 1986 to provide an investment tax credit for waste heat to power technology (Rept. No. 114–23).

S. 914. An original bill to amend title 31, United States Code, to clarify the use of credentials by enrolled agents (Rept. No. 114–24).

S. 915. An original bill to amend the Internal Revenue Code of 1986 to exempt certain stock of real estate investment trusts from the tax on foreign investments in United States real property interests, and for other purposes (Rept. No. 114–25).

S. 916. An original bill to amend the Internal Revenue Code of 1986 to exclude certain compensation received by public safety officers and their dependents from gross income (Rept. No. 114–26).

S. 917. An original bill to amend the Internal Revenue Code of 1986 to equalize the excise tax on liquefied petroleum gas and liquefied natural gas (Rept. No. 114–27).

S. 918. An original bill to amend the Internal Revenue Code of 1986 to provide notice to charities and other nonprofit organizations before their tax-exempt status is automatically revoked (Rept. No. 114–28).

S. 919. An original bill to exclude from gross income certain clean coal power grants to non-corporate taxpayers (Rept. No. 114–29).

S. 920. An original bill to amend the Internal Revenue Code of 1986 to allow a credit against income tax for amounts paid by a spouse of a member of the Armed Forces for a new State license or certification required by reason of a permanent change in the duty station of such member to another State (Rept. No. 114–30).

By Mr. ENZI, from the Committee on the Budget:

Special Report entitled ''Review of Legislative Activity During the 113th Congress'' (Rept. No. 114–31).

By Mr. CORKER, from the Committee on Foreign Relations, with an amendment in the nature of a substitute:

S. 615. A bill to provide for congressional review and oversight of agreements relating to Iran's nuclear program, and for other purposes.

INTRODUCTION OF BILLS AND JOINT RESOLUTIONS

The following bills and joint resolutions were introduced, read the first and second times by unanimous consent, and referred as indicated:

By Mr. HATCH:

S. 903. An original bill to amend the Internal Revenue Code of 1986 to improve access and administration of the United States Tax Court; from the Committee on Finance; placed on the calendar.

By Mr. HATCH:

S. 904. An original bill to amend the Internal Revenue Code of 1986 to remove bond requirements and extend filing periods for certain taxpayers with limited excise tax liability; from the Committee on Finance; placed on the calendar.

By Mr. HATCH:

S. 905. An original bill to amend the Internal Revenue Code of 1986 to increase the limitation on eligibility for the alternative tax for certain small insurance companies; from the Committee on Finance; placed on the calendar.

By Mr. HATCH:

S. 906. An original bill to amend the Internal Revenue Code of 1986 to modify the types of wines taxed as hard cider; from the Committee on Finance; placed on the calendar.

By Mr. HATCH:

S. 907. An original bill to amend the Internal Revenue Code of 1986 to prevent the extension of the tax collection period merely because the taxpayer is a member of the Armed Forces who is hospitalized as a result of combat zone injuries; from the Committee on Finance; placed on the calendar.

By Mr. HATCH:

S. 908. An original bill to amend the Internal Revenue Code of 1986 to provide for the deductibility of charitable contributions to agricultural research organizations, and for other purposes; from the Committee on Finance; placed on the calendar.

By Mr. HATCH:

S. 909. An original bill to amend the Internal Revenue Code of 1986 to exempt private foundations from the tax on excess business holdings in the case of certain philanthropic enterprises which are independently supervised, and for other purposes; from the Committee on Finance; placed on the calendar.

By Mr. HATCH:

S. 910. An original bill to amend the Internal Revenue Code of 1986 to clarify the special rules for accident and health plans of certain governmental entities, and for other purposes; from the Committee on Finance; placed on the calendar.

By Mr. CASEY (for himself and Mr. TOOMEY):

S. 911. A bill to direct the Administrator of the Federal Aviation Administration to issue an order with respect to secondary cockpit barriers, and for other purposes; to the Committee on Commerce, Science, and Transportation.

By Mr. HATCH:

S. 912. An original bill to amend the Internal Revenue Code of 1986 to exclude payments received under the Work Colleges Program from gross income, including payments made from institutional funds; from the Committee on Finance; placed on the calendar.

By Mr. HATCH:

S. 913. An original bill to amend the Internal Revenue Code of 1986 to provide an investment tax credit for waste heat to power technology; from the Committee on Finance; placed on the calendar.

By Mr. HATCH:

S. 914. An original bill to amend title 31, United States Code, to clarify the use of credentials by enrolled agents; from the Committee on Finance; placed on the calendar.

By Mr. HATCH:

S. 915. An original bill to amend the Internal Revenue Code of 1986 to exempt certain stock of real estate investment trusts from the tax on foreign investments in United States real property interests, and for other purposes; from the Committee on Finance; placed on the calendar.

By Mr. HATCH:

S. 916. An original bill to amend the Internal Revenue Code of 1986 to exclude certain compensation received by public safety officers and their dependents from gross income; from the Committee on Finance; placed on the calendar.

By Mr. HATCH:

S. 917. An original bill to amend the Internal Revenue Code of 1986 to equalize the excise tax on liquefied petroleum gas and liquefied natural gas; from the Committee on Finance; placed on the calendar.

By Mr. HATCH:

S. 918. An original bill to amend the Internal Revenue Code of 1986 to provide notice to charities and other nonprofit organizations before their tax-exempt status is automatically revoked; from the Committee on Finance; placed on the calendar.

By Mr. HATCH:

S. 919. An original bill to exclude from gross income certain clean coal power grants to non-corporate taxpayers; from the Committee on Finance; placed on the calendar.

By Mr. HATCH:

S. 920. An original bill to amend the Internal Revenue Code of 1986 to allow a credit against income tax for amounts paid by a spouse of a member of the Armed Forces for a new State license or certification required by reason of a permanent change in the duty station of such member to another State; from the Committee on Finance; placed on the calendar.

By Mr. CARPER (for himself, Mr. COONS, Mr. BOOKER, Mr. MENENDEZ, Mr. CASEY, Mr. SCHUMER, and Mrs. GILLIBRAND):

S. 921. A bill to direct the Secretary of the Interior to establish a nonregulatory program to build on and help coordinate funding for restoration and protection efforts of the 4-State Delaware River Basin region, and for other purposes; to the Committee on Environment and Public Works.

By Mr. SANDERS:

S. 922. A bill to amend the Internal Revenue Code of 1986 to modify the treatment of foreign corporations, and for other purposes; to the Committee on Finance.

By Mr. GRAHAM (for himself, Mr. VITTER, Mr. THUNE, Mr. SCOTT, Mr. SESSIONS, and Mr. COATS):

S. 923. A bill to authorize the Secretary of Health and Human Services, acting through the Administrator of the Health Resources and Services Administration, to award grants on a competitive basis to public and private entities to provide qualified sexual risk avoidance education to youth and their parents; to the Committee on Health, Education, Labor, and Pensions.

By Mr. HELLER (for himself and Mr. WARNER):

S. 924. A bill to require the National Credit Union Administration to hold public hearings and receive comments from the public on its budget, and for other purposes; to the Committee on Banking, Housing, and Urban Affairs.

By Mrs. SHAHEEN:

S. 925. A bill to require the Secretary of the Treasury to convene a panel of citizens to make a recommendation to the Secretary regarding the likeness of a woman on the twenty dollar bill, and for other purposes; to the Committee on Banking, Housing, and Urban Affairs.

By Ms. BALDWIN (for herself and Mr. VITTER):

S. 926. A bill to amend the patent law to promote basic research, to stimulate publication of scientific documents, to encourage collaboration in scientific endeavors, to improve the transfer of technology to the private sector, and for other purposes; to the Committee on the Judiciary.

By Mr. MORAN (for himself and Mr. TESTER):

S. 927. A bill to provide regulatory relief for certain financial institutions, and for other purposes; to the Committee on Banking, Housing, and Urban Affairs.

By Mrs. GILLIBRAND (for herself, Ms. MURKOWSKI, Mr. KIRK, Mr. SCHUMER, Ms. WARREN, Mr. BLUMENTHAL, Mr. SANDERS, Mr. MENENDEZ, Mr. BOOKER, Mr. MURPHY, Ms. BALDWIN, Mrs. SHAHEEN, and Mr. CASEY):

S. 928. A bill to reauthorize the World Trade Center Health Program and the September 11th Victim Compensation Fund of 2001, and for other purposes; to the Committee on Health, Education, Labor, and Pensions.

By Mr. SHELBY:

S. 929. A bill to repeal the current Internal Revenue Code and replace it with a flat tax, thereby guaranteeing economic growth and fairness for all Americans; to the Committee on Finance.

By Mr. LEAHY (for himself, Mr. CASEY, Mr. MCCAIN, Mr. BLUNT, Ms. STABENOW, and Mr. COCHRAN):

S. 930. A bill to amend the Internal Revenue Code of 1986 to permanently extend and expand the charitable deduction for contributions of food inventory; to the Committee on Finance.

By Mr. LEAHY:

S. 931. A bill to amend the Internal Revenue Code of 1986 to provide that a deduction equal to fair market value shall be allowed for charitable contributions of literary, musical, artistic, or scholarly compositions created by the donor; to the Committee on Finance.

By Mr. LEAHY:

S. 932. A bill to amend the Internal Revenue Code of 1986 to provide a refundable tax credit for the installation of sprinklers and elevators in historic structures; to the Committee on Finance.

By Mr. ALEXANDER (for himself, Mr. ISAKSON, Mr. HATCH, Mr. CORNYN, and Mr. ROBERTS):

S. 933. A bill to amend the National Labor Relations Act with respect to the timing of elections and pre-election hearings and the identification of pre-election issues, and to require that lists of employees eligible to vote in organizing elections be provided to the National Labor Relations Board; to the Committee on Health, Education, Labor, and Pensions.

By Mr. FLAKE (for himself and Mr. CRAPO):

S. 934. A bill to amend the renewable fuel program under section 211(o) of the Clean Air Act to require the cellulosic biofuel requirement to be based on actual production, and for other purposes; to the Committee on Environment and Public Works.

By Mr. BOOKER:

S. 935. A bill to amend the Internal Revenue Code of 1986 and the Consumer Financial Protection Act of 2010 to regulate tax return preparers and refund anticipation payment arrangements, and for other purposes; to the Committee on Finance.

By Mr. BROWN:

S. 936. A bill to amend the Ohio & Erie Canal National Heritage Canalway Act of 1996 to repeal the funding limitation; to the Committee on Energy and Natural Resources.

By Mr. HATCH:

S. 937. A bill to amend the Federal Land Policy and Management Act of 1976 to authorize the Secretary of the Interior to enter into cooperative agreements with States to provide for State management of grazing permits and leases; to the Committee on Energy and Natural Resources.

By Mr. MENENDEZ:

S. 938. A bill to establish the America Star program within the Department of Labor, and for other purposes; to the Committee on Health, Education, Labor, and Pensions.

By Mr. FLAKE (for himself and Mr. BOOKER):

S. 939. A bill to require the evaluation and consolidation of duplicative green building programs within the Department of Energy; to the Committee on Energy and Natural Resources.

SUBMISSION OF CONCURRENT AND SENATE RESOLUTIONS

The following concurrent resolutions and Senate resolutions were read, and referred (or acted upon), as indicated:

By Mr. REID:

S. Res. 135. A resolution making minority party appointments for the 114th Congress; considered and agreed to.

ADDITIONAL COSPONSORS

S. 275

At the request of Mr. ISAKSON, the name of the Senator from New Hampshire (Ms. AYOTTE) was added as a cosponsor of S. 275, a bill to amend title XVIII of the Social Security Act to provide for the coverage of home as a site of care for infusion therapy under the Medicare program.

S. 313

At the request of Mr. GRASSLEY, the name of the Senator from Hawaii (Mr. SCHATZ) was added as a cosponsor of S. 313, a bill to amend title XVIII of the Social Security Act to add physical therapists to the list of providers allowed to utilize locum tenens arrangements under Medicare.

S. 358

At the request of Mrs. SHAHEEN, the name of the Senator from New Mexico (Mr. HEINRICH) was added as a cosponsor of S. 358, a bill to amend title 10, United States Code, to ensure that women members of the Armed Forces and their families have access to the contraception they need in order to promote the health and readiness of all members of the Armed Forces, and for other purposes.

S. 394

At the request of Mr. CASEY, the name of the Senator from Mississippi (Mr. WICKER) was added as a cosponsor of S. 394, a bill to amend the Internal Revenue Code of 1986 to permanently extend the 15-year recovery period for qualified leasehold improvement property, qualified restaurant property, and qualified retail improvement property.

S. 423

At the request of Mr. MORAN, the name of the Senator from Montana (Mr. DAINES) was added as a cosponsor of S. 423, a bill to amend the Gramm-Leach-Bliley Act to provide an exception to the annual written privacy notice requirement.

S. 502

At the request of Mr. LEE, the name of the Senator from Connecticut (Mr. BLUMENTHAL) was added as a cosponsor of S. 502, a bill to focus limited Federal resources on the most serious offenders.

S. 586

At the request of Mrs. SHAHEEN, the name of the Senator from Delaware (Mr. COONS) was added as a cosponsor of S. 586, a bill to amend the Public Health Service Act to foster more effective implementation and coordination of clinical care for people with pre-diabetes, diabetes, and the chronic diseases and conditions that result from diabetes.

S. 599

At the request of Mr. TOOMEY, the name of the Senator from West Virginia (Mrs. CAPITO) was added as a cosponsor of S. 599, a bill to extend and expand the Medicaid emergency psychiatric demonstration project.

S. 615

At the request of Mr. CORKER, the names of the Senator from Arizona (Mr. FLAKE), the Senator from Maryland (Mr. CARDIN), the Senator from West Virginia (Mrs. CAPITO), the Senator from Delaware (Mr. COONS), the Senator from Ohio (Mr. PORTMAN), the Senator from Pennsylvania (Mr. CASEY), the Senator from Kansas (Mr. ROBERTS), the Senator from New Jersey (Mr. BOOKER), the Senator from Mississippi (Mr. WICKER), the Senator from Virginia (Mr. WARNER), the Senator from Arkansas (Mr. BOOZMAN), the Senator from Texas (Mr. CRUZ), the Senator from Texas (Mr. CORNYN), the Senator from Colorado (Mr. GARDNER), the Senator from Utah (Mr. LEE), the Senator from Iowa (Mrs. ERNST), the Senator from Idaho (Mr. CRAPO), the Senator from Missouri (Mr. BLUNT), the Senator from Alabama (Mr. SESSIONS), the Senator from Pennsylvania (Mr. TOOMEY), the Senator from Iowa (Mr. GRASSLEY), the Senator from South Dakota (Mr. THUNE), the Senator from Oklahoma (Mr. LANKFORD), the Senator from Alaska (Mr. SULLIVAN), the Senator from Georgia (Mr. PERDUE), the Senator from Nebraska (Mrs. FISCHER), the Senator from Montana (Mr. DAINES), the Senator from Oklahoma (Mr. INHOFE) and the Senator from Georgia (Mr. ISAKSON) were added as cosponsors of S. 615, a bill to provide for congressional review and oversight of agreements relating to Iran's nuclear program, and for other purposes.

S. 637

At the request of Mr. CRAPO, the name of the Senator from Indiana (Mr. DONNELLY) was added as a cosponsor of S. 637, a bill to amend the Internal Revenue Code of 1986 to extend and modify the railroad track maintenance credit.

S. 662

At the request of Mr. HATCH, the name of the Senator from California (Mrs. BOXER) was added as a cosponsor of S. 662, a bill to amend title 17, United States Code, to ensure fairness in the establishment of certain rates and fees under sections 114 and 115 of such title, and for other purposes.

S. 707

At the request of Ms. AYOTTE, the name of the Senator from Pennsylvania (Mr. TOOMEY) was added as a cosponsor of S. 707, a bill to provide certain protections from civil liability with respect to the emergency administration of opioid overdose drugs.

S. 743

At the request of Mr. BOOZMAN, the names of the Senator from Minnesota (Ms. KLOBUCHAR), the Senator from West Virginia (Mrs. CAPITO) and the Senator from Minnesota (Mr. FRANKEN) were added as cosponsors of S. 743, a bill to amend title 38, United States Code, to recognize the service in the reserve components of the Armed Forces of certain persons by honoring them with status as veterans under law, and for other purposes.

S. 746

At the request of Mr. GRASSLEY, the name of the Senator from New Hampshire (Mrs. SHAHEEN) was added as a cosponsor of S. 746, a bill to provide for the establishment of a Commission to Accelerate the End of Breast Cancer.

S. 776

At the request of Mr. ROBERTS, the name of the Senator from West Virginia (Mrs. CAPITO) was added as a cosponsor of S. 776, a bill to amend title XVIII of the Social Security Act to improve access to medication therapy management under part D of the Medicare program.

At the request of Mrs. SHAHEEN, the name of the Senator from Delaware (Mr. COONS) was added as a cosponsor of S. 776, supra.

S. 801

At the request of Mr. ISAKSON, the name of the Senator from Idaho (Mr. RISCH) was added as a cosponsor of S. 801, a bill to amend the National Labor Relations Act to provide for appropriate designation of collective bargaining units.

S. 804

At the request of Mrs. SHAHEEN, the name of the Senator from Delaware

(Mr. COONS) was added as a cosponsor of S. 804, a bill to amend title XVIII of the Social Security Act to specify coverage of continuous glucose monitoring devices, and for other purposes.

S. 812

At the request of Mr. MORAN, the name of the Senator from Oklahoma (Mr. LANKFORD) was added as a cosponsor of S. 812, a bill to enhance the ability of community financial institutions to foster economic growth and serve their communities, boost small businesses, increase individual savings, and for other purposes.

S. 827

At the request of Ms. KLOBUCHAR, the name of the Senator from Oregon (Mr. MERKLEY) was added as a cosponsor of S. 827, a bill to amend the Communications Act of 1934 to ensure the integrity of voice communications and to prevent unjust or unreasonable discrimination among areas of the United States in the delivery of such communications.

S. 843

At the request of Mr. BROWN, the name of the Senator from New Hampshire (Mrs. SHAHEEN) was added as a cosponsor of S. 843, a bill to amend title XVIII of the Social Security Act to count a period of receipt of outpatient observation services in a hospital toward satisfying the 3-day inpatient hospital requirement for coverage of skilled nursing facility services under Medicare.

S. 860

At the request of Mr. THUNE, the name of the Senator from Montana (Mr. DAINES) was added as a cosponsor of S. 860, a bill to amend the Internal Revenue Code of 1986 to repeal the estate and generation-skipping transfer taxes, and for other purposes.

S. 862

At the request of Ms. MIKULSKI, the names of the Senator from Virginia (Mr. WARNER), the Senator from Missouri (Mrs. MCCASKILL), the Senator from New Jersey (Mr. MENENDEZ), the Senator from Montana (Mr. TESTER) and the Senator from Vermont (Mr. SANDERS) were added as cosponsors of S. 862, a bill to amend the Fair Labor Standards Act of 1938 to provide more effective remedies to victims of discrimination in the payment of wages on the basis of sex, and for other purposes.

S. 868

At the request of Mr. ISAKSON, the name of the Senator from Florida (Mr. NELSON) was added as a cosponsor of S. 868, a bill to establish a fund to make payment to the Americans held hostage in Iran, and to members of their families, who are identified as members of the proposed class in case number 1:00–CV–03110 (ESG) of the United States District Court for the District of Columbia, and for other purposes.

S. 875

At the request of Mrs. FISCHER, the names of the Senator from Maine (Ms. COLLINS) and the Senator from Iowa (Mrs. ERNST) were added as cosponsors of S. 875, a bill to amend the Fair Labor Standards Act of 1938 to strengthen equal pay requirements.

S. 898

At the request of Mr. KIRK, the names of the Senator from Alaska (Ms. MURKOWSKI), the Senator from Maryland (Ms. MIKULSKI) and the Senator from West Virginia (Mr. MANCHIN) were added as cosponsors of S. 898, a bill to amend the Public Health Service Act to provide for the participation of optometrists in the National Health Service Corps scholarship and loan repayment programs, and for other purposes.

S.J. RES. 10

At the request of Mr. CRUZ, the name of the Senator from Alabama (Mr. SESSIONS) was added as a cosponsor of S.J. Res. 10, a joint resolution disapproving the action of the District of Columbia Council in approving the Reproductive Health Non-Discrimination Amendment Act of 2014.

S.J. RES. 11

At the request of Mr. CRUZ, the name of the Senator from Alabama (Mr. SESSIONS) was added as a cosponsor of S.J. Res. 11, a joint resolution disapproving the action of the District of Columbia Council in approving the Human Rights Amendment Act of 2014.

S. CON. RES. 4

At the request of Mr. BARRASSO, the names of the Senator from North Carolina (Mr. BURR) and the Senator from Louisiana (Mr. VITTER) were added as cosponsors of S. Con. Res. 4, a concurrent resolution supporting the Local Radio Freedom Act.

S. RES. 130

At the request of Mr. BURR, the name of the Senator from Pennsylvania (Mr. TOOMEY) was added as a cosponsor of S. Res. 130, a resolution designating March 29, 2015, as ''Vietnam Veterans Day''.

S. RES. 133

At the request of Mr. UDALL, the name of the Senator from North Dakota (Ms. HEITKAMP) was added as a cosponsor of S. Res. 133, a resolution supporting the goals and ideals of National Public Health Week.

STATEMENTS ON INTRODUCED BILLS AND JOINT RESOLUTIONS

By Mr. LEAHY (for himself, Mr. CASEY, Mr. MCCAIN, Mr. BLUNT, Ms. STABENOW, and Mr. COCHRAN):

S. 930. A bill to amend the Internal Revenue Code of 1986 to permanently extend and expand the charitable deduction for contributions of food inventory; to the Committee on Finance.

Mr. LEAHY. Mr. President, millions of Americans are racing against the clock to meet tomorrow's midnight deadline to file their taxes. In the closing hours of the 113th Congress, we came together to approve legislation to extend for 1 year, just 1 year, several tax credits that are essential to small businesses and middleclass families. A 1 year extension of these tax credits was surely welcomed by many, but such a short extension leaves in place the uncertainty needed by so many families and small businesses as they look ahead to the coming year to plan large purchases, expansions, new home purchases, or even a family vacation. I hope that Congress will tackle meaningful tax reform legislation this year, so that we can protect hardworking families, hold corporations accountable, incentivize environmental protections, and encourage charitable giving.

So today, ahead of Tax Day, I am introducing three commonsense proposals, S. 930, S. 931, and S. 932, that will provide reasonable tax credits for such things as surplus food donations, art donations, and preservation of our historic buildings in communities and villages across the country.

The bipartisan Good Samaritan Hunger Relief Tax Incentive Extension Act expands upon a proven and effective tax incentive to encourage businesses and farms to donate surplus food to their local food banks. A 2011 study by the U.S. Department of Agriculture found that demand on food banks across the country has risen dramatically during and since the recent economic recession, with more than 50 million Americans living in food insecure households. Despite this, as much as 40 percent of the food that is produced, grown and transported in the United States goes unused as some businesses find it too costly to donate the excess food, amounting to 70 billion pounds of wasted food each year.

The Good Samaritan Hunger Relief Tax Incentive Act addresses this by permanently extending the same tax incentives to donate food now available to corporations to all businesses, including small businesses, farmers, ranchers and restaurant owners—many of whom often have large amounts of fresh food to donate. Since the most recent extension of this tax incentive through 2013, the restaurant industry alone experienced a 137 percent increase in the pounds of food donated. This bill—cosponsored by Senators COCHRAN, STABENOW, MCCAIN, CASEY, and BLUNT, is supported by many organizations including Feeding America, the American Farm Bureau Federation, the Food Marketing Institute, Grocery Manufacturers Association, the National Restaurant Association, Hunger Free Vermont, and the Vermont Food Bank.

The Artist-Museum Partnership Act was first introduced in 2000. This legislation would preserve cherished art works for the public by allowing artists to take a fair market deduction for works they donate to museums, libraries, colleges and other public institutions. Under current law, artists that donate their created work may only deduct the cost of supplies, while a collector of the same work that donates it

to qualified charitable institutions is allowed to take a tax deduction equal to the fair market value of the donated work.

Prior to 1969, artists and collectors alike were able to take a deduction equivalent to the fair market value of a work. Congress changed the law for artists more than 30 years ago in response to the perception that some taxpayers were taking advantage of the law by inflating the market value of self-created works. Since the law was changed with respect to artists, fewer and fewer of them have donated their works to museums and cultural institutions, while the government has cut down significantly on the abuse of fair market value determinations. The Artist-Museum Partnership Act would restore the law to pre-1969 and allow artists who donate their own paintings, manuscripts, compositions, or scholarly compositions to be subject to the same new rules that all taxpayers or collectors who donate such works follow.

The Artist-Museum Partnership Act is supported by such organizations as the Association of Art Museum Directors, American Alliance of Museums, Americans for the Arts, League of American Orchestras, OPERA America, Dance/USA, National Assembly of State Arts Agencies, the Vermont Arts Counsel, and the Shelburne Museum.

Finally, the Historic Downtown and Preservation and Access Act would create a refundable tax credit for the installation of fire sprinklers and elevators in older, multi-use buildings in historic downtowns. Each year fire destroys hundreds of vulnerable historic buildings that serve as the anchors of America's vibrant villages and downtowns, in many cases resulting in injury or loss of life. The Historic Downtown and Preservation and Access Act creates a 50 percent refundable tax credit capped at $50,000 to encourage the installation of upfront but costly sprinkler systems in order to help prevent the loss of life, reduce property damage, and decrease Federal expenditures on rebuilding efforts after these fires.

This bill also incentivizes the installation of elevators in order to encourage the use of upper story office, retail, and housing space in historic downtown buildings that would otherwise go unused due to inaccessibility. The new refundable tax credit, modeled after the State of Vermont's highly successful downtown historic tax credit, would allow private entities with little tax liability and nonprofits alike to install these important property and life-saving devices in historic buildings.

Congress must have a meaningful debate about how we can best reform, simplify, and streamline our complicated tax system. These are just a few of the proposals I hope Congress will consider in this debate. It is time we start working to incentivize programs that stand to best help our communities, rather than protect the wealthiest among us from paying their fair share.

Mr. MCCAIN. Mr. President, I am proud to be an original cosponsor of the Good Samaritan Hunger Relief Act of 2015, which was introduced today by Senator PATRICK LEAHY and cosponsored by Senators BOB CASEY, THAD COCHRAN, DEBBIE STABENOW, and ROY BLUNT.

This bipartisan bill would benefit food banks and hunger charities around the nation. At its core, the bill would provide tax incentives for small and medium business who donate food or resources to food banks. This means restaurants, farms, and other food providers can do even more in their local communities to help fight hunger.

Speaking for my state, I can tell you that hunger is a very real problem in Arizona. Currently about one in five Arizonans live below the poverty line. In some parts of the State, one-in-four children and one-in-seven seniors live in poverty—particularly on Indian reservations where unemployment rates approach 75 percent, and in minority communities. Often these individuals are left to wonder where their next meal will come from.

I am proud that Phoenix, Arizona is home to the world's first food bank, the St. Mary's Food Bank. Since its founding in 1967, St. Mary's has grown into a leading hunger organization and has distributed more than 700 million pounds of food to people all over Arizona.

I believe this bill's projected cost to the Treasury can be offset by reducing unnecessary and wasteful agriculture subsidies. I would encourage my colleagues to look at the most recent Farm Bill that was signed into law in 2013 and is projected to cost over $996 billion over the next 10 years. It is fraught with special interest farm subsidies that we could instead reduce or terminate and use the savings to pay for the important tax incentive programs provided by this bill.

For example, the Farm Bill includes crop insurance subsidies for tobacco products, which are estimated to cost taxpayers $33 million each year. It also provides for the USDA Market Access Program, which has long been criticized by taxpayer watchdogs as a form of corporate welfare because it spends roughly $200 million annually to subsidize advertising, market research and trade shows for large corporations overseas. The Farm Bill also includes an obscure set of USDA grants that subsidizes scientific research for large agriculture operations, such as $25 million earmarked for the study of the health benefits of lima beans and peas, and $1.3 million set-aside for genome sequencing of Christmas trees. Further, it calls for the creation of a USDA Catfish Office, which I have long criticized along with the Government Accountability Office and the Obama administration for being wasteful and duplicative of FDA's catfish inspection program and will ultimately cost the American taxpayer $14 million a year. These are just a few of the many wasteful Farm Bill programs that could be eliminated to offset the estimated costs of our proposed tax incentive legislation.

I encourage my colleagues to support this legislation and consider these and other Farm Bill spending offsets as the bill moves through the legislative process.

SUBMITTED RESOLUTIONS

SENATE RESOLUTION 135—MAKING MINORITY PARTY APPOINTMENTS FOR THE 114TH CONGRESS

Mr. REID of Nevada submitted the following resolution; which was considered and agreed to:

S. RES. 135

Resolved, That the following be the minority membership on the following committee for the remainder of the 114th Congress, or until their successors are appointed:

COMMITTEE ON FOREIGN RELATIONS: Mr. Cardin, Mrs. Boxer, Mr. Menendez, Mrs. Shaheen, Mr. Coons, Mr. Udall, Mr. Murphy, Mr. Kaine, and Mr. Markey.

COMMITTEE ON SMALL BUSINESS AND ENTREPRENEURSHIP: Mrs. Shaheen, Ms. Cantwell, Mr. Cardin, Ms. Heitkamp, Mr. Markey, Mr. Booker, Mr. Coons, Ms. Hirono, Mr. Peters.

AMENDMENTS SUBMITTED AND PROPOSED

SA 1114. Mr. CORNYN proposed an amendment to the bill H.R. 2, to amend title XVIII of the Social Security Act to repeal the Medicare sustainable growth rate and strengthen Medicare access by improving physician payments and making other improvements, to reauthorize the Children's Health Insurance Program, and for other purposes.

SA 1115. Mr. BENNET (for himself, Mr. BROWN, Ms. STABENOW, Mr. WYDEN, Mr. CASEY, Mr. REID, Ms. WARREN, Mr. MENENDEZ, Mr. REED, Mrs. SHAHEEN, Mr. WHITEHOUSE, Ms. BALDWIN, Mr. BLUMENTHAL, and Ms. MIKULSKI) proposed an amendment to the bill H.R. 2, supra.

SA 1116. Mr. LEE (for himself, Mr. SESSIONS, Mr. CRUZ, Mr. CRAPO, and Mr. SASSE) proposed an amendment to the bill H.R. 2, supra.

SA 1117. Mrs. MURRAY (for herself, Mr. WYDEN, Mr. BROWN, Ms. BALDWIN, Mr. BENNET, Mr. BLUMENTHAL, Mrs. BOXER, Ms. HIRONO, Ms. MIKULSKI, Mr. MENENDEZ, Mr. MURPHY, Mr. SANDERS, Ms. STABENOW , Mrs. SHAHEEN, Mr. FRANKEN, Mr. REID, Mr. WHITEHOUSE, Ms. CANTWELL, Ms. WARREN, and Mr. BOOKER) proposed an amendment to the bill H.R. 2, supra.

SA 1118. Mr. COTTON proposed an amendment to the bill H.R. 2, supra.

SA 1119. Mr. CARDIN (for himself, Mr. VITTER, Mr. REID, Mr. WHITEHOUSE, Ms. HIRONO, Mr. CASEY, Mrs. SHAHEEN, Mr. MENENDEZ, Ms. MIKULSKI, Mr. BROWN, Ms. STABENOW, Mr. REED, Mr. LEAHY, Ms. CANTWELL, Mr. BENNET, Mr. BOOKER, Ms. WARREN, and Ms. KLOBUCHAR) proposed an amendment to the bill H.R. 2, supra.

SA 1120. Mr. MCCONNELL (for Mr. CORNYN) proposed an amendment to the bill S. 178, to provide justice for the victims of trafficking.

TEXT OF AMENDMENTS

SA 1114. Mr. CORNYN proposed an amendment to the bill H.R. 2, to amend

title XVIII of the Social Security Act to repeal the Medicare sustainable growth rate and strengthen Medicare access by improving physician payments and making other improvements, to reauthorize the Children's Health Insurance Program, and for other purposes; as follows:

At the appropriate place, insert the following:

SEC. ___. RESTORING INDIVIDUAL LIBERTY.

Sections 1501 and 1502 and subsections (a), (b), (c), and (d) of section 10106 of the Patient Protection and Affordable Care Act (and the amendments made by such sections and subsections) are repealed and the Internal Revenue Code of 1986 shall be applied and administered as if such provisions and amendments had never been enacted.

SA 1115. Mr. BENNET (for himself, Ms. WARREN, Mr. MENENDEZ, Mr. REED, Mrs. SHAHEEN, Mr. WHITEHOUSE, Ms. BALDWIN, Mr. BLUMENTHAL, and Ms. MIKULSKI) proposed an amendment to the bill H.R. 2, to amend title XVIII of the Social Security Act to repeal the Medicare sustainable growth rate and strengthen Medicare access by improving physician payments and making other improvements, to reauthorize the Children's Health Insurance Program, and for other purposes; as follows:

Strike sections 301 through 304, and insert the following:

SEC. 301. 4-YEAR EXTENSION OF THE CHILDREN'S HEALTH INSURANCE PROGRAM.

(a) FUNDING.—

(1) IN GENERAL.—Section 2104(a) of the Social Security Act (42 U.S.C. 1397dd(a)) is amended—

(A) in paragraph (17), by striking ''and'' at the end; and

(B) by striking paragraph (18) and inserting the following new paragraphs:

''(18) for fiscal year 2015, $21,061,000,000;

''(19) for fiscal year 2016, $19,300,000,000;

''(20) for fiscal year 2017, $20,300,000,000;

''(21) for fiscal year 2018, $21,300,000,000; and

''(22) for fiscal year 2019, for purposes of making 2 semi-annual allotments—

''(A) $2,850,000,000 for the period beginning on October 1, 2018, and ending on March 31, 2019; and

''(B) $2,850,000,000 for the period beginning on April 1, 2019, and ending on September 30, 2019.''.

(2) PREVENTION OF DUPLICATE APPROPRIATIONS FOR FISCAL YEAR 2015.—Notwithstanding any other provision of law, insofar as funds have been appropriated under subsection (a)(18) or (m) of section 2104 of the Social Security Act (42 U.S.C. 1397dd), or under section 108 of the Children's Health Insurance Program Reauthorization Act of 2009 (Public Law 111–3), as such subsections and section are in effect on the day before the date of the enactment of this Act, to provide allotments to States under the State Children's Health Insurance Program established under title XXI of the Social Security Act (42 U.S.C. 1397aa et seq.) (whether implemented under title XIX, XXI, or both, of the Social Security Act) for fiscal year 2015—

(A) any amounts that are so appropriated that are not so allotted and obligated before the date of the enactment of this Act, are rescinded; and

(B) any amount provided for CHIP allotments to a State under this section (and the amendments made by this section) for such fiscal year shall be reduced by the amount of such appropriations so allotted and obligated before such date.

(b) ALLOTMENTS.—

(1) IN GENERAL.—Section 2104(m) of the Social Security Act (42 U.S.C. 1397dd(m)) is amended—

(A) in the subsection heading, by striking ''THROUGH 2015'' and inserting ''AND THEREAFTER'';

(B) in paragraph (2)—

(i) in the paragraph heading, by striking ''2014'' and inserting ''2018''; and

(ii) by striking subparagraph (B) and inserting the following new subparagraph:

''(B) FISCAL YEAR 2013 THROUGH 2018.—Subject to paragraphs (4) and (6), from the amount made available under paragraphs (16) through (21) of subsection (a) for each of fiscal years 2013 through 2018, respectively, the Secretary shall compute a State allotment for each State (including the District of Columbia and each commonwealth and territory) for each such fiscal year as follows:

''(i) REBASING IN FISCAL YEAR 2013 AND EACH SUCCEEDING ODD-NUMBERED FISCAL YEAR.—For fiscal year 2013 and each succeeding odd-numbered fiscal year, the allotment of the State is equal to the Federal payments to the State that are attributable to (and countable toward) the total amount of allotments available under this section to the State in the preceding fiscal year (including payments made to the State under subsection (n) for such preceding fiscal year as well as amounts redistributed to the State in such preceding fiscal year), multiplied by the allotment increase factor under paragraph (5) for such odd-numbered fiscal year.

''(ii) GROWTH FACTOR UPDATE FOR FISCAL YEAR 2014 AND EACH SUCCEEDING EVEN-NUMBERED FISCAL YEAR.—Except as provided in clause (iii), for fiscal year 2014 and each succeeding even-numbered fiscal year, the allotment of the State is equal to the sum of—

''(I) the amount of the State allotment under clause (i) for the preceding fiscal year; and

''(II) the amount of any payments made to the State under subsection (n) for such preceding fiscal year,

multiplied by the allotment increase factor under paragraph (5) for such even-numbered fiscal year.

''(iii) SPECIAL RULE FOR FISCAL YEAR 2016.—For fiscal year 2016, the allotment of the State is equal to the Federal payments to the State that are attributable to (and countable toward) the total amount of allotments available under this section to the State in the preceding fiscal year (including payments made to the State under subsection (n) for such preceding fiscal year as well as amounts redistributed to the State in such preceding fiscal year), but determined as if the last two sentences of section 2105(b) were in effect in such preceding fiscal year and then multiplying the result by the allotment increase factor under paragraph (5) for fiscal year 2016.'';

(C) in paragraph (3)—

(i) in the heading, by striking ''2015''and inserting ''2019'';

(ii) in subparagraph (A)—

(I) by striking ''paragraph (18)'' and inserting ''paragraph (22)''; and

(II) by striking ''section 108 of the Children's Health Insurance Program Reauthorization Act of 2009'' and inserting ''section 301(b)(2) of the Medicare Access and CHIP Reauthorization Act of 2015'';

(iii) in subparagraph (B), by striking ''paragraph (18)'' and inserting ''paragraph (22)'';

(iv) in subparagraph (C)—

(I) by striking ''2014'' each place it appears and inserting ''2018''; and

(II) by striking ''2015'' and inserting ''2019''; and

(v) in subparagraph (D)—

(I) in clause (i)—

(aa) in subclause (I), by striking ''subsection (a)(18)(A)'' and inserting ''subsection (a)(22)(A)''; and

(bb) in subclause (II), by striking ''section 108 of the Children's Health Insurance Program Reauthorization Act of 2009'' and inserting ''section 301(b)(2) of the Medicare Access and CHIP Reauthorization Act of 2015''; and

(II) in clause (ii)(II), by striking ''subsection (a)(18)(B)'' and inserting ''subsection (a)(22)(B)'';

(D) in paragraph (4), by striking ''2015'' and inserting ''2019'';

(E) in paragraph (6)—

(i) in subparagraph (A), by striking ''2015'' and inserting ''2019''; and

(ii) in the second sentence, by striking ''or fiscal year 2014'' and inserting ''fiscal year 2014, fiscal year 2016, or fiscal year 2018''; and

(F) in paragraph (8)—

(i) in the paragraph heading, by striking ''2015'' and inserting ''2019''; and

(ii) by striking ''for a period in fiscal year 2015'' and inserting ''for a period in fiscal year 2019''.

(2) ONE-TIME APPROPRIATION FOR FISCAL YEAR 2019.—There is appropriated to the Secretary of Health and Human Services, out of any money in the Treasury not otherwise appropriated, $16,700,000,000 to accompany the allotment made for the period beginning on October 1, 2018, and ending on March 31, 2019, under section 2104(a)(22)(A) of the Social Security Act (42 U.S.C. 1397dd(a)(22)(A)) (as added by subsection (a)(1)), to remain available until expended. Such amount shall be used to provide allotments to States under paragraph (3) of section 2104(m) of such Act (42 U.S.C. 1397dd(m)) (as amended by paragraph (1)(C)) for the first 6 months of fiscal year 2019 in the same manner as allotments are provided under subsection (a)(22)(A) of such section 2104 and subject to the same terms and conditions as apply to the allotments provided from such subsection (a)(22)(A).

(c) CHILD ENROLLMENT CONTINGENCY FUND.—

(1) IN GENERAL.—Section 2104(n) of the Social Security Act (42 U.S.C. 1397dd(n)) is amended—

(A) in paragraph (2)—

(i) in subparagraph (A)—

(I) in the matter preceding clause (i), by striking ''and (D)'' and inserting '', (D), and (E)''; and

(II) by striking clause (ii) and inserting the following:

''(ii) for each of—

''(I) fiscal years 2010 through 2014, such sums as are necessary for making payments to eligible States for such fiscal year, but not in excess of the aggregate cap described in subparagraph (B); and

''(II) fiscal years 2015 through 2018 (and for each of the semi-annual allotment periods for fiscal year 2019), such sums as are necessary for making payments to eligible States for such fiscal year or period.''; and

(ii) by striking subparagraph (B) and inserting the following:

''(B) AGGREGATE CAP.—The total amount available for payment from the Fund for each of fiscal years 2010 through 2014, taking into account deposits made under subparagraph (C), shall not exceed 20 percent of the amount made available under subsection (a) for the fiscal year. In the case of fiscal years 2015 through 2018 (and for each of the semi-annual allotment periods for fiscal year 2019), there shall be no limit on the amount available for payment from the Fund.'';

(iii) in subparagraph (D)—

(I) by inserting ''before fiscal year 2015'' after ''fiscal year or period''; and

(II) by striking ''for any succeeding fiscal year''; and

(iv) by adding at the end the following subparagraph:

''(E) TRANSFERS.—Notwithstanding any other provision of this title, the following amounts shall also be available, without fiscal year limitation, for making payments from the Fund:

''(i) UNOBLIGATED NATIONAL ALLOTMENT FOR FISCAL YEARS BEGINNING WITH FISCAL YEAR 2014.—

''(I) FISCAL YEAR 2014 ALLOTMENT.—As of December 31 of fiscal year 2015, the portion, if any, of the amount appropriated under subsection (a) for fiscal year 2014 that is unobligated for allotment to a State under subsection (m) for such fiscal year.

''(II) SUCCEEDING FISCAL YEAR ALLOTMENTS.—As of December 31 of fiscal year 2016, and each succeeding fiscal year, the portion, if any, of the amount appropriated under subsection (a) for the preceding fiscal year that is unobligated for allotment to a State under subsection (m) for such preceding fiscal year.

''(ii) UNEXPENDED ALLOTMENTS NOT USED FOR REDISTRIBUTION.—As of December 31 of fiscal year 2015, and as of November 15 of each succeeding fiscal year, the total amount of allotments made to States under subsection (a) for the second preceding fiscal year that is not expended or redistributed under subsection (f) during the period in which such allotments are available for obligation.

''(iii) UNEXPENDED PERFORMANCE INCENTIVE FUNDS.—As of January 1, 2016, and as of January 1 of each succeeding calendar year, the portion, if any, of the amount appropriated under section 2105(a)(3)(E)(iii) for the preceding fiscal year that is not expended or obligated under such section.''; and

(B) in paragraph (3)—

(i) in subparagraph (A)—

(I) by redesignating clauses (i) and (ii) as subclauses (I) and (II), respectively, and realigning the left margins accordingly;

(II) by striking ''If a State's'' and all that follows through ''2015,'' and inserting the following:

''(i) FOR FISCAL YEARS 2009 THROUGH 2014.—If a State's expenditures under this title in fiscal year 2009, fiscal year 2010, fiscal year 2011, fiscal year 2012, fiscal year 2013, or fiscal year 2014'';

(III) by striking ''or period'' each place it appears;

(IV) in subclause (II) (as so redesignated), by striking ''(or in which the period occurs)''; and

(V) by adding at the end the following clause:

''(ii) FOR FISCAL YEARS AFTER 2014.—

''(I) IN GENERAL.—For each of fiscal years 2015 through 2018 (and for each of the semi-annual allotment periods for fiscal year 2019), if the Secretary determines that a State is a shortfall State described in subclause (II) for that fiscal year or period, the Secretary shall pay to the State from the Fund, in addition to any other payments made to the State under this title for the fiscal year or period, an amount equal to the amount described in subclause (III).

''(II) SHORTFALL STATES DESCRIBED.—For purposes of this clause, with respect to a fiscal year or semi-annual allotment period, a shortfall State is a State for which the Secretary estimates, on the basis of the most recent data available to the Secretary, that the projected expenditures for the State and fiscal year or period under this title (including in the form of coverage described in paragraph (1) or (2) of section 2101, or both) will exceed the sum of—

''(aa) the amount of the State's allotments for any preceding fiscal year that remains available for expenditure and that will not be expended by the end of the immediately preceding fiscal year;

''(bb) the amount (if any) that will be redistributed to the State under subsection (f) for the fiscal year or period;

''(cc) the amount (if any) to be paid to the State in the first quarter of the fiscal year under section 2105(a)(3); and

''(dd) the amount of the State's allotment for the fiscal year or period.

''(III) AMOUNT DESCRIBED.—With respect to a State and fiscal year or period, the amount described in this subclause is equal to the amount by which the projected expenditures for the State under this title for the fiscal year or period (estimated by the Secretary on the basis of the most recent data available to the Secretary) exceed the sum determined under subclause (II) for the State and fiscal year or period.

''(IV) RETROSPECTIVE ADJUSTMENT.—The Secretary may adjust the determinations made under this clause with respect to a State and fiscal year or period as necessary on the basis of the amounts reported by States not later than November 30 of the succeeding fiscal year, as approved by the Secretary.'';

(ii) in subparagraph (B)(ii), by striking ''(or semi-annual period occurring in a fiscal year)'';

(iii) in subparagraph (C)—

(I) in the matter preceding clause (i), by striking ''subparagraph (A)(ii)'' and inserting ''subparagraph (A)(i)(II)''; and

(II) in clause (ii), by striking ''(or semi-annual period occurring in a fiscal year)''; and

(iv) in subparagraph (G), by inserting ''the expenditures under the State child health plan and'' after ''regarding''.

(2) CONFORMING AMENDMENT.—Section 2104(f)(2)(A)(ii) of the Social Security Act (42 U.S.C. 13957dd(f)(2)(A)(ii)) is amended by inserting ''only in the case of a fiscal year before fiscal year 2015,'' before ''the amount''.

(d) EXTENSION AND UPDATE OF PERFORMANCE INCENTIVE PAYMENTS.—

(1) EXTENSION THROUGH FISCAL YEAR 2019.—Section 2105(a)(3) of the Social Security Act (42 U.S.C. 1397ee(a)(3)) is amended—

(A) in subparagraph (A)—

(i) by striking ''2013'' and inserting ''2019''; and

(ii) in the second sentence, by inserting '', except that payment under this paragraph may be made to a State for fiscal year 2014 as a single payment not later than December 31, 2015'' before the period;

(B) in subparagraph (E)—

(i) in clause (ii)—

(I) by striking subclause (I) and inserting the following:

''(I) UNOBLIGATED NATIONAL ALLOTMENT FOR FISCAL YEARS 2009 THROUGH 2013.—As of December 31 of fiscal year 2009, and as of December 31 of each succeeding fiscal year through fiscal year 2013, the portion, if any, of the amount appropriated under section 2104(a) for such fiscal year that is unobligated for allotment to a State under section 2104(m) for such fiscal year or set aside under subsection (a)(3) or (b)(2) of section 2111 for such fiscal year.'';

(II) in subclause (III), by striking ''2013'' and inserting ''2014'';

(ii) by redesignating clause (iii) as clause (iv); and

(iii) by inserting after clause (ii) the following new clause:

''(iii) APPROPRIATION FOR FISCAL YEARS 2015 THROUGH 2019.—Out of any money in the Treasury not otherwise appropriated, there are appropriated $500,000,000 for each of fiscal years 2015 through 2019 for making payments under this paragraph. Amounts appropriated for a fiscal year under this clause shall remain available for making payments under this paragraph until January 1 of the following fiscal year. Any amounts of such appropriations that remain unexpended or unobligated as of such date shall be transferred and made available for making payments under section 2104(n).''; and

(C) in subparagraph (F)(iii), by striking ''2013'' and inserting ''2019''.

(2) UPDATED PERFORMANCE INCENTIVE CRITERIA FOR FISCAL YEARS 2015 THROUGH 2019.—Section 2105(a) of the Social Security Act (42 U.S.C. 1397ee(a)) is amended—

(A) in paragraph (3)(A), by inserting ''or (5)'' after ''paragraph (4)'';

(B) in paragraph (4)—

(i) in the heading, by inserting ''FISCAL YEARS 2009 THROUGH 2014'' after ''FOR CHILDREN''; and

(ii) in the matter preceding subparagraph (A), by striking ''for a fiscal year if'' and inserting ''for fiscal years 2009 through 2014 if''; and

(C) by adding at the end the following new paragraph:

''(5) ENROLLMENT AND RETENTION PROVISIONS FOR CHILDREN FOR FISCAL YEAR 2015 AND SUCCEEDING FISCAL YEARS.—

''(A) IN GENERAL.—For purposes of paragraph (3)(A), a State meets the condition of this paragraph for fiscal year 2015 and any succeeding fiscal year if it is implementing at least 4 of the enrollment and retention provisions specified in subparagraph (B) (treating each clause as a separate enrollment and retention provision) throughout the entire fiscal year.

''(B) ENROLLMENT AND RETENTION PROVISIONS.—The enrollment and retention provisions specified in this subparagraph are the following:

''(i) CONTINUOUS ELIGIBILITY.—The State has elected the option of continuous eligibility for a full 12 months for all children described in section 1902(e)(12) under title XIX under 19 years of age, as well as applying such policy under its State child health plan under this title.

''(ii) EXPRESS LANE ELIGIBILITY.—The State is implementing the option described in section 1902(e)(13) under title XIX as well as, pursuant to section 2107(e)(1), under this title.

''(iii) PRESUMPTIVE ELIGIBILITY.—The State provides medical assistance to children during a presumptive eligibility period by implementing section 1920A under title XIX as well as, pursuant to section 2107(e)(1), under this title, and ensures that such period begins with the determination by any qualified entity that the family income of the child does not exceed the applicable level of income eligibility under the State plan. A State shall not satisfy this provision if the only type of entity recognized by the State as a qualified entity is a hospital that has elected to be a qualified entity under section 1902(a)(47)(B).

''(iv) PREMIUM ASSISTANCE FOR EMPLOYER-SPONSORED PLANS.—The State has opted to offer a premium assistance subsidy for qualified employer-sponsored coverage by implementing section 1906A under title XIX or the option described in section 2105(c)(10) under this title.

''(v) ELIMINATION OF WAITING PERIODS.—The State does not impose a waiting period for coverage of any individual under the State child health plan and ensures that no waiting period applies in the case of coverage provided to any individual eligible for coverage under the State child health plan through coverage purchased by the State under section 2105(c)(3) or employer-sponsored coverage subsidized by the State under section 1906A of title XIX or section 2105(c)(10) of this title.

''(vi) AUTOMATED TRACKING OF COST SHARING OR LOWER CAP ON COST SHARING.—In the

case of a State child health plan that imposes premiums, deductibles, cost sharing, or similar charges that could (as determined by the Secretary) cause families that include an individual receiving assistance under the plan to have out-of-pocket expenses that exceed the limit imposed under section 2103(e)(3)(B), the State has either—

''(I) established, or, in the case of a State child health plan that provides child health assistance through managed care entities or organizations, required such entities or organizations to coordinate with the State agency responsible for implementing the State child health plan under this title in establishing—

''(aa) an electronic process for tracking such expenses that does not rely on documentation provided by the individual or the family; and

''(bb) a system for notifying each such family of the aggregate monthly or quarterly limits on out-of-pocket expenses applicable to the family under section 2103(e)(3)(B) and explaining to each such family that no such expenses shall be imposed on any individual in the family for the remainder of any month or quarter with respect to which the family has reached the applicable aggregate monthly or quarterly family limit imposed under such section; or

''(II) elected to eliminate deductibles, copayments, coinsurance, or other forms of cost-sharing (other than premiums) imposed under this title with respect to any individual receiving coverage under the State child health plan.

''(vii) REAL-TIME ELIGIBILITY DETERMINATIONS THROUGH THE USE OF ENHANCED DATA SOURCES.—With respect to applications and renewals for medical assistance under title XIX or child health assistance under this title for a fiscal year, the State meets the following criteria for all income determinations made using modified adjusted gross income under section 1902(e)(14)(A):

''(I) The State relies on enhanced data sources (which may include, but shall not be limited to, the data sources available under section 1137 or the federal Data Services Hub) to make the determinations.

''(II) In the case of initial applications, the State makes at least 50 percent of the determinations within 24 hours of receiving the application. If a State successfully makes the required minimum percentage of timely determinations for a fiscal year, such State shall not receive credit for meeting this provision in any subsequent fiscal year unless the State makes a percentage of timely income determinations that is at least 5 percentage points higher (or, if at least 75 percent of the State's determinations in a previous fiscal year were timely, 1 percentage point higher) than the percentage that the State achieved in the last fiscal year in which the State received credit for meeting this provision.

''(III) In the case of renewals, the State makes at least 50 percent of the determinations within 24 hours of receiving the renewal. If a State successfully makes the required minimum percentage of timely determinations for a fiscal year, such State shall not receive credit for meeting this provision in any subsequent fiscal year unless the State makes a percentage of timely income determinations that is at least 5 percentage points higher (or, if at least 75 percent of the State's determinations in a previous fiscal year were timely, 1 percentage point higher) than the percentage that the State achieved in the last fiscal year in which the State received credit for meeting this provision.

''(viii) ELIMINATION OF PREMIUMS OR RETROACTIVE REINSTATEMENT UPON PREMIUM PAYMENT.—The State has elected to either—

''(I) impose no premiums for coverage under the State child health plan; or

''(II) in the case of an individual whose coverage under the State child health plan has been terminated for failure to make premium payments, provide assistance to such individual for purposes of immediate reenrollment of the individual upon payment of outstanding premiums, with coverage retroactive to the beginning of the most recent month for which an outstanding premium has been paid, and shall not impose any waiting period or fee as a condition of such reenrollment.''.

(e) EXTENSION OF QUALIFYING STATES OPTION.—Section 2105(g)(4) of the Social Security Act (42 U.S.C. 1397ee(g)(4)) is amended—

(1) in the paragraph heading, by striking ''2015'' and inserting ''2019''; and

(2) in subparagraph (A), by striking ''2015'' and inserting ''2019''.

(f) EXTENSION OF CERTAIN PROGRAMS AND DEMONSTRATION PROJECTS.—

(1) QUALITY CARE FOR CHILDREN DEMONSTRATION PROJECT.—Section 1139A(d)(1) of the Social Security Act (42 U.S.C. 1320b–9a(d)(1)) is amended in the matter before subparagraph (A) by inserting '', and during the period of fiscal years 2016 through 2019, the Secretary shall award not more than 10 grants,'' before ''to States''.

(2) CHILDHOOD OBESITY DEMONSTRATION PROJECT.—Section 1139A(e)(8) of the Social Security Act (42 U.S.C. 1320b–9a(e)(8)) is amended by inserting '', and $25,000,000 for the period of fiscal years 2015 though 2019'' after ''2014''.

(3) PEDIATRIC QUALITY MEASURES PROGRAM.—Section 1139A(i) of the Social Security Act (42 U.S.C. 1320b–9a(i)) is amended in the first sentence by inserting before the period at the end the following: '', and there is appropriated for each of fiscal years 2016 through 2019, $45,000,000 for the purpose of carrying out this section (other than subsections (e), (f), and (g)).''.

(4) OUTREACH AND ENROLLMENT GRANTS; NATIONAL CAMPAIGN.—Section 2113 of the Social Security Act (42 U.S.C. 1397mm) is amended—

(A) in subsection (a)(1), by striking ''2015'' and inserting ''2019''; and

(B) in subsection (g), by inserting '', and $80,000,000 for the period of fiscal years 2016 through 2019, to remain available until expended,'' after ''2015''.

(g) EXPRESS LANE ELIGIBILITY.—Section 1902(e)(13)(I) of the Social Security Act (42 U.S.C. 1396a(e)(13)(I)) is amended by striking ''September 30, 2015'' and inserting ''September 30, 2019''.

(h) AUTHORITY TO USE INCOME DETERMINATION MADE UNDER CERTAIN PROGRAMS.—Section 1902(e)(14) of the Social Security Act (42 U.S.C. 1396a(e)(14)) is amended—

(1) in subparagraph (A), in the first sentence, by striking ''subparagraph (D)'' and inserting ''subparagraphs (D) and (J)''; and

(2) by adding at the end the following new subparagraph:

''(J) USE OF INCOME DETERMINATION MADE UNDER CERTAIN OTHER PROGRAMS.—

''(i) IN GENERAL.—For purposes of determining income eligibility for medical assistance under the State plan or under any waiver of such plan, a State may use a determination of income made by—

''(I) the State program funded under part A of title IV; or

''(II) the supplemental nutrition assistance program established under the Food and Nutrition Act of 2008.

''(ii) SUNSET.—Clause (i) shall not apply after September 30, 2019.''.

SA 1116. Mr. LEE (for himself, Mr. SESSIONS, Mr. CRUZ, Mr. CRAPO, and Mr. SASSE) proposed an amendment to the bill H.R. 2, to amend title XVIII of the Social Security Act to repeal the Medicare sustainable growth rate and strengthen Medicare access by improving physician payments and making other improvements, to reauthorize the Children's Health Insurance Program, and for other purposes; as follows:

On page 261, strike line 21 and all that follows through page 262, line 4.

SA 1117. Mrs. MURRAY (for herself, Mr. WYDEN, Mr. BROWN, Ms. BALDWIN, Mr. BENNET, Mr. BLUMENTHAL, Mrs. BOXER, Ms. HIRONO, Ms. MIKULSKI, Mr. MENENDEZ, Mr. MURPHY, Mr. SANDERS, Ms. STABENOW, Mrs. SHAHEEN, Mr. FRANKEN, Mr. REID, Mr. WHITEHOUSE, Ms. CANTWELL, Ms. WARREN, and Mr. BOOKER) proposed an amendment to the bill H.R. 2, to amend title XVIII of the Social Security Act to repeal the Medicare sustainable growth rate and strengthen Medicare access by improving physician payments and making other improvements, to reauthorize the Children's Health Insurance Program, and for other purposes; as follows:

At the appropriate place, insert the following:

TITLE ____—WOMEN'S ACCESS TO QUALITY HEALTH CARE

SEC. _01. SHORT TITLE.

This title may be cited as the ''Women's Access to Quality Health Care Act''.

SEC. _02. RENEWAL OF APPLICATION OF MEDICARE PAYMENT RATE FLOOR TO PRIMARY CARE SERVICES FURNISHED UNDER MEDICAID AND INCLUSION OF ADDITIONAL PROVIDERS.

(a) RENEWAL OF PAYMENT FLOOR; ADDITIONAL PROVIDERS.—

(1) IN GENERAL.—Section 1902(a)(13) of the Social Security Act (42 U.S.C. 1396a(a)(13)) is amended by striking subparagraph (C) and inserting the following:

''(C) payment for primary care services (as defined in subsection (jj)) at a rate that is not less than 100 percent of the payment rate that applies to such services and physician under part B of title XVIII (or, if greater, the payment rate that would be applicable under such part if the conversion factor under section 1848(d) for the year involved were the conversion factor under such section for 2009), and that is not less than the rate that would otherwise apply to such services under this title if the rate were determined without regard to this subparagraph, and that are—

''(i) furnished on or after January 1, 2013, and before January 1, 2015, by a physician with a primary specialty designation of family medicine, general internal medicine, or pediatric medicine; or

''(ii) furnished on or after January 1, 2015, and before January 1, 2017—

''(I) by a physician with a primary specialty designation of family medicine, general internal medicine, or pediatric medicine, but only if the physician self-attests that the physician is Board certified in family medicine, general internal medicine, or pediatric medicine;

''(II) by a physician with a primary specialty designation of obstetrics and gynecology, but only if the physician self-attests that the physician is Board certified in obstetrics and gynecology;

''(III) by an advanced practice clinician, as defined by the Secretary, that works under the supervision of—

''(aa) a physician that satisfies the criteria specified in subclause (I) or (II); or

''(bb) a nurse practitioner or a physician assistant (as such terms are defined in section 1861(aa)(5)(A)) who is working in accordance with State law, or a certified nurse-midwife (as defined in section 1861(gg)) who is working in accordance with State law;

''(IV) by a rural health clinic, Federally-qualified health center, or other health clinic that receives reimbursement on a fee schedule applicable to a physician, a nurse practitioner or a physician assistant (as such terms are defined in section 1861(aa)(5)(A)) who is working in accordance with State law, or a certified nurse-midwife (as defined in section 1861(gg)) who is working in accordance with State law, for services furnished by a physician, nurse practitioner, physician assistant, or certified nurse-midwife, or services furnished by an advanced practice clinician supervised by a physician described in subclause (I)(aa) or (II)(aa), another advanced practice clinician, or a certified nurse-midwife; or

''(V) by a nurse practitioner or a physician assistant (as such terms are defined in section 1861(aa)(5)(A)) who is working in accordance with State law, or a certified nurse-midwife (as defined in section 1861(gg)) who is working in accordance with State law, in accordance with procedures that ensure that the portion of the payment for such services that the nurse practitioner, physician assistant, or certified nurse-midwife is paid is not less than the amount that the nurse practitioner, physician assistant, or certified nurse-midwife would be paid if the services were provided under part B of title XVIII;''.

(2) CONFORMING AMENDMENT.—Section 1905(dd) of the Social Security Act (42 U.S.C. 1396d(dd)) is amended by striking ''January 1, 2015'' and inserting ''January 1, 2017''.

(b) ENSURING PAYMENT BY MANAGED CARE ENTITIES.—

(1) IN GENERAL.—Section 1903(m)(2)(A) of the Social Security Act (42 U.S.C. 1396b(m)(2)(A)) is amended—

(A) in clause (xii), by striking ''and'' after the semicolon;

(B) by realigning the left margin of clause (xiii) so as to align with the left margin of clause (xii) and by striking the period at the end of clause (xiii) and inserting ''; and''; and

(C) by inserting after clause (xiii) the following:

''(xiv) such contract provides that (I) payments to providers specified in section 1902(a)(13)(C) for primary care services defined in section 1902(jj) that are furnished during a period specified in section 1902(a)(13)(C) and section 1905(dd) are at least equal to the amounts set forth and required by the Secretary by regulation, (II) the entity shall, upon request, provide documentation to the State, sufficient to enable the State and the Secretary to ensure compliance with subclause (I), and (III) the Secretary shall approve payments described in subclause (I) that are furnished through an agreed upon capitation, partial capitation, or other value-based payment arrangement if the capitation, partial capitation, or other value-based payment arrangement is based on a reasonable methodology and the entity provides documentation to the State sufficient to enable the State and the Secretary to ensure compliance with subclause (I).''.

(2) CONFORMING AMENDMENT.—Section 1932(f) of the Social Security Act (42 U.S.C. 1396u–2(f)) is amended by inserting ''and clause (xiv) of section 1903(m)(2)(A)'' before the period.

SEC. __03. INCREASING ACCESS TO SAFETY-NET PROVIDERS.

Title X of the Public Health Service Act (42 U.S.C. 300 et seq.) is amended by inserting after section 1003 the following:

''SEC. 1003A. GRANTS FOR FACILITIES IMPROVEMENTS.

''(a) IN GENERAL.—The Secretary is authorized to award grants to, and enter into contracts with, public or nonprofit private entities to plan, develop, or make improvements to facilities carrying out family planning service projects, and to expand preventive health services, under section 1001.

''(b) FUNDING.—There is authorized to be appropriated, and there is appropriated, out of any monies in the Treasury not otherwise appropriated, $500,000,000 for each of fiscal years 2016 through 2019, to enable the Secretary to expand access to family planning services and to provide enhanced funding for the family planning program under section 1001.''.

SEC. __04. STRENGTHENING AND IMPROVING COMMUNITY HEALTH CENTERS, THE NATIONAL HEALTH SERVICE CORPS, AND TEACHING HEALTH CENTERS.

(a) IN GENERAL.—The Medicare Access and CHIP Reauthorization Act of 2015 is amended by striking section 221.

(b) FUNDING FOR COMMUNITY HEALTH CENTERS AND THE NATIONAL HEALTH SERVICE CORPS.—

(1) COMMUNITY HEALTH CENTERS.—Section 10503(b)(1)(E) of the Patient Protection and Affordable Care Act (42 U.S.C. 254b-2(b)(1)(E)) is amended by striking ''for fiscal year 2015'' and inserting ''for each of fiscal years 2015 through 2019''.

(2) NATIONAL HEALTH SERVICE CORPS.—Section 10503(b)(2)(E) of the Patient Protection and Affordable Care Act (42 U.S.C. 254b-2(b)(2)(E)) is amended by striking ''for fiscal year 2015'' and inserting ''for each of fiscal years 2015 through 2019''.

(c) EXTENSION OF TEACHING HEALTH CENTERS PROGRAM.—Section 340H(g) of the Public Health Service Act (42 U.S.C. 256h(g)) is amended by inserting '', and $100,000,000 for each of fiscal years 2016 through 2019'' before the period.

SEC. __05. INVESTING IN PRIMARY CARE, NURSE PRACTITIONERS.

Part B of title VIII of the Public Health Service Act (42 U.S.C. 296j et seq.) is amended by adding at the end the following:

''SEC. 812. DEMONSTRATION GRANTS FOR NURSE PRACTITIONER TRAINING PROGRAM.

''(a) ESTABLISHMENT OF PROGRAM.—The Secretary shall establish a demonstration program (referred to in this section as the 'program') to award grants to eligible entities for the training of nurse practitioners specializing in women's health care for careers as providers in health centers that receive assistance under title X (referred to in this section as 'health centers').

''(b) PURPOSE.—The purpose of the program is to enable each grant recipient to—

''(1) provide new nurse practitioners with clinical training to enable such practitioners to serve as providers in health centers;

''(2) train new nurse practitioners to work under a model of care that is consistent with the principles set forth by the Report Providing Quality Family Planning Services of the Centers for Disease Control and Prevention; and

''(3) establish a model of training for nurse practitioners that specialize in women's health care that may be replicated nationwide.

''(c) GRANTS.—Under the program, the Secretary shall award 3-year grants to eligible entities that meet the requirements established by the Secretary, for the purpose of operating the nurse practitioner programs described in subsection (a) at such entities.

''(d) ELIGIBLE ENTITIES.—To be eligible to receive a grant under this section, an entity shall be—

''(1) a health center that receives funding under section 1001; and

''(2) submit to the Secretary an application at such time, in such manner, and containing such information as the Secretary may require.

''(e) ELIGIBILITY OF NURSE PRACTITIONERS.—

''(1) IN GENERAL.—To be eligible for acceptance into a training program carried out by an eligible entity under a grant under this section, an individual shall—

''(A) be licensed, or eligible for licensure, in the State in which the program is being carried out as an advanced practice registered nurse or advanced practice nurse and be eligible or board-certified as a nurse practitioner; and

''(B) demonstrate commitment to a career as a provider in a health center.

''(2) PREFERENCE.—In accepting individuals into a training program under this section, a grant recipient shall give preference to bilingual applicants that meet the requirements described in paragraph (1).

''(f) GRANT AMOUNT.—Each grant awarded under this section shall be in an amount not to exceed $600,000 per year. A grant recipient may carry over funds from 1 fiscal year to another without obtaining approval from the Secretary.

''(g) TECHNICAL ASSISTANCE GRANTS.—The Secretary may award technical assistance grants to 1 or more health centers that have demonstrated expertise in establishing a nurse practitioner residency training program. Such technical assistance grants shall be for the purpose of providing technical assistance to other recipients of grants under subsection (c).

''(h) AUTHORIZATION OF APPROPRIATIONS.—To carry out this section, there is authorized to be appropriated $10,000,000 for each of fiscal years 2016 through 2019.''.

SA 1118. Mr. COTTON proposed an amendment to the bill H.R. 2, to amend title XVIII of the Social Security Act to repeal the Medicare sustainable growth rate and strengthen Medicare access by improving physician payments and making other improvements, to reauthorize the Children's Health Insurance Program, and for other purposes; as follows:

Beginning on page 5, strike line 22 and all that follows through page 127, line 6, and insert the following:

(2) UPDATE OF RATES FOR 2015 AND SUBSEQUENT YEARS.—Subsection (d) of section 1848 of the Social Security Act (42 U.S.C. 1395w–4) is amended by striking paragraph (16) and inserting the following new paragraphs:

''(16) UPDATE FOR JANUARY THROUGH JUNE OF 2015.—Subject to paragraphs (7)(B), (8)(B), (9)(B), (10)(B), (11)(B), (12)(B), (13)(B), (14)(B), and (15)(B), in lieu of the update to the single conversion factor established in paragraph (1)(C) that would otherwise apply for 2015 for the period beginning on January 1, 2015, and ending on June 30, 2015, the update to the single conversion factor shall be 0.0 percent.

''(17) UPDATE FOR JULY THROUGH DECEMBER OF 2015.—The update to the single conversion factor established in paragraph (1)(C) for the period beginning on July 1, 2015, and ending on December 31, 2015, shall be 0.5 percent.

''(18) UPDATE FOR 2016 AND SUBSEQUENT YEARS.—The update to the single conversion factor established in paragraph (1)(C) for 2016 and each subsequent year shall be 0.5 percent.''.

SA 1119. Mr. CARDIN (for himself, Mr. VITTER, Mr. REID, Mr. WHITEHOUSE, Ms. HIRONO, Mr. CASEY, Mrs. SHAHEEN, Mr. MENENDEZ, Ms. MIKULSKI, Mr. BROWN, Ms. STABENOW, Mr. REED, Mr.

LEAHY, Ms. CANTWELL, Mr. BENNET, Mr. BOOKER, Ms. WARREN, and Ms. KLOBUCHAR) proposed an amendment to the bill H.R. 2, to amend title XVIII of the Social Security Act to repeal the Medicare sustainable growth rate and strengthen Medicare access by improving physician payments and making other improvements, to reauthorize the Children's Health Insurance Program, and for other purposes; as follows:

Strike section 202 and insert the following:

SEC. ___. MEDICARE PAYMENT FOR THERAPY SERVICES.

(a) REPEAL OF THERAPY CAP AND 1-YEAR EXTENSION OF THRESHOLD FOR MANUAL MEDICAL REVIEW.—Section 1833(g) of the Social Security Act (42 U.S.C. 1395l(g)) is amended—

(1) in paragraph (4)—

(A) by striking ''This subsection'' and inserting ''Except as provided in paragraph (5)(C)(iii), this subsection''; and

(B) by inserting the following before the period at the end: ''or with respect to services furnished on or after the date of enactment of subsection (aa)''; and

(2) in paragraph (5)—

(A) in subparagraph (A), in the first sentence, by striking ''March 31, 2015'' and inserting ''the date of enactment of the Medicare Access and CHIP Reauthorization Act of 2015''; and

(B) in subparagraph (C), by adding at the end the following new clause:

''(iii) Beginning on the date of enactment of subsection (aa) and ending on the day before the date of the implementation of such subsection, the manual medical review process described in clause (i), subject to subparagraph (E), shall apply with respect to expenses incurred in a year for services described in paragraphs (1) and (3) (including services described in subsection (a)(8)(B)) that exceed the threshold described in clause (ii) for the year.''; and

(3) in paragraph (6)(A)—

(A) by striking ''March 31, 2015'' and inserting ''the date of enactment of the Medicare Access and CHIP Reauthorization Act of 2015''; and

(B) by striking ''the first three months of 2015'' and inserting ''the period beginning on January 1, 2015, and ending on such date of enactment''.

(b) TARGETED REVIEWS UNDER MANUAL MEDICAL REVIEW PROCESS FOR OUTPATIENT THERAPY SERVICES.—

(1) IN GENERAL.—Section 1833(g)(5) of the Social Security Act (42 U.S.C. 1395l(g)(5)) is amended—

(A) in subparagraph (C)(i), by inserting '', subject to subparagraph (E),'' after ''manual medical review process that''; and

(B) by adding at the end the following new subparagraph:

''(E)(i) In place of the manual medical review process under subparagraph (C)(i), the Secretary shall implement a process for medical review under this subparagraph under which the Secretary shall identify and conduct medical review for services described in subparagraph (C)(i) furnished by a provider of services or supplier (in this subparagraph referred to as a 'therapy provider') using such factors as the Secretary determines to be appropriate.

''(ii) Such factors may include the following:

''(I) The therapy provider has had a high claims denial percentage for therapy services under this part or is less compliant with applicable requirements under this title.

''(II) The therapy provider has a pattern of billing for therapy services under this part that is aberrant compared to peers or otherwise has questionable billing practices for such services, such as billing medically unlikely units of services in a day.

''(III) The therapy provider is newly enrolled under this title or has not previously furnished therapy services under this part.

''(IV) The services are furnished to treat a type of medical condition.

''(V) The therapy provider is part of a group that includes another therapy provider identified using the factors determined under this subparagraph.

''(iii) For purposes of carrying out this subparagraph, the Secretary shall provide for the transfer, from the Federal Supplementary Medical Insurance Trust Fund under section 1841, of $5,000,000 to the Centers for Medicare & Medicaid Services Program Management Account for fiscal years 2015 and 2016, to remain available until expended. Such funds may not be used by a contractor under section 1893(h) for medical reviews under this subparagraph.''.

(2) EFFECTIVE DATE.—The amendments made by this subsection shall apply with respect to requests described in section 1833(g)(5)(C)(i) of the Social Security Act (42 U.S.C. 1395l(g)(5)(C)(i)) with respect to which the Secretary of Health and Human Services has not conducted medical review under such section by a date (not later than 90 days after the date of the enactment of this Act) specified by the Secretary.

(c) MEDICAL REVIEW OF OUTPATIENT THERAPY SERVICES.—

(1) MEDICAL REVIEW OF OUTPATIENT THERAPY SERVICES.—Section 1833 of the Social Security Act (42 U.S.C. 1395l) is amended by adding at the end the following new subsection:

''(aa) MEDICAL REVIEW OF OUTPATIENT THERAPY SERVICES.—

''(1) IN GENERAL.—

''(A) PROCESS FOR MEDICAL REVIEW.—The Secretary shall implement a process for the medical review (as described in paragraph (2)) of outpatient therapy services (as defined in paragraph (10)) and, subject to paragraph (12), apply such process to such services furnished on or after the date that is 12 months after the date of enactment of this subsection, focusing on services identified under subparagraph (B).

''(B) IDENTIFICATION OF SERVICES FOR REVIEW.—Under the process, the Secretary shall identify services for medical review, using such factors as the Secretary determines appropriate, which may include the following:

''(i) Services furnished by a therapy provider (as defined in paragraph (10)) who, in a prior period, has had a high claims denial percentage or is less compliant with other applicable requirements under this title.

''(ii) Services furnished by a therapy provider whose pattern of billing is aberrant compared to peers or otherwise has questionable billing practices, such as billing medically unlikely units of services in a day.

''(iii) Services furnished by a therapy provider that is newly enrolled under this title or has not previously furnished therapy services under this part.

''(iv) Services furnished to treat a type of medical condition.

''(v) Services identified by use of the standardized data elements required to be reported under section 1834(r).

''(vi) Services furnished by a therapy provider who is part of a group that includes a therapy provider identified by factors described in this subparagraph.

''(vii) Other services as determined appropriate by the Secretary.

''(2) MEDICAL REVIEW.—

''(A) PRIOR AUTHORIZATION MEDICAL REVIEW.—

''(i) IN GENERAL.—Subject to the succeeding provisions of this subparagraph, the Secretary shall use prior authorization medical review for outpatient therapy services furnished to an individual above one or more thresholds established by the Secretary, such as a dollar threshold or a threshold based on other factors.

''(ii) ENDING APPLICATION OF PRIOR AUTHORIZATION FOR A THERAPY PROVIDER.—The Secretary shall end the application of prior authorization medical review to outpatient therapy services furnished by a therapy provider if the Secretary determines that the provider has a low denial rate under such prior authorization. The Secretary may subsequently reapply prior authorization medical review to such therapy provider if the Secretary determines it to be appropriate.

''(iii) PRIOR AUTHORIZATION OF MULTIPLE SERVICES.—The Secretary shall, where practicable, provide for prior authorization medical review for multiple services at a single time, such as services in a therapy plan of care described in section 1861(p)(2).

''(B) OTHER TYPES OF MEDICAL REVIEW.—The Secretary may use pre-payment review or post-payment review for services identified under paragraph (1)(B) that are not subject to prior authorization medical review under subparagraph (A).

''(C) RELATIONSHIP TO LAW ENFORCEMENT ACTIVITIES.—The Secretary may determine that medical review under this subsection does not apply in the case where potential fraud may be involved.

''(3) REVIEW CONTRACTORS.—The Secretary shall conduct prior authorization medical review of outpatient therapy services under this subsection using medicare administrative contractors (as described in section 1874A) or other review contractors (other than contractors under section 1893(h) or other contractors paid on a contingent basis).

''(4) NO PAYMENT WITHOUT PRIOR AUTHORIZATION.—With respect to an outpatient therapy service for which prior authorization medical review under this subsection applies, the following shall apply:

''(A) PRIOR AUTHORIZATION DETERMINATION.—The Secretary shall make a determination, prior to the service being furnished, of whether the service would or would not meet the applicable requirements of section 1862(a)(1)(A).

''(B) DENIAL OF PAYMENT.—Subject to paragraph (6), no payment shall be made under this part for the service unless the Secretary determines pursuant to subparagraph (A) that the service would meet the applicable requirements of such section.

''(5) SUBMISSION OF INFORMATION.—A therapy provider may submit the information necessary for medical review by fax, by mail, or by electronic means. The Secretary shall make available the electronic means described in the preceding sentence as soon as practicable, but not later than 24 months after the date of enactment of this subsection.

''(6) TIMELINESS.—If the Secretary does not make a prior authorization determination under paragraph (4)(A) within 10 business days of the date of the Secretary's receipt of medical documentation needed to make such determination, paragraph (4)(B) shall not apply.

''(7) CONSTRUCTION.—With respect to an outpatient therapy service that has been affirmed by medical review under this subsection, nothing in this subsection shall be construed to preclude the subsequent denial of a claim for such service that does not meet other applicable requirements under this Act or any other provision of law.

''(8) BENEFICIARY PROTECTIONS.—In the case where payment may not be made as a result of application of medical review under this subsection, section 1879 shall apply in the

same manner as such section applies to a denial that is made by reason of section 1862(a)(1).

''(9) IMPLEMENTATION.—

''(A) AUTHORITY.—The Secretary may implement the provisions of this subsection by interim final rule with comment period.

''(B) ADMINISTRATION.—Chapter 35 of title 44, United States Code, shall not apply to medical review under this subsection.

''(C) LIMITATION.—There shall be no administrative or judicial review under section 1869, section 1878, or otherwise of the identification of services for medical review or the process for medical review under this subsection.

''(10) DEFINITIONS.—For purposes of this subsection:

''(A) OUTPATIENT THERAPY SERVICES.—The term 'outpatient therapy services' means the following services for which payment is made under section 1848, 1834(g), or 1834(k):

''(i) Physical therapy services of the type described in section 1861(p).

''(ii) Speech-language pathology services of the type described in such section though the application of section 1861(ll)(2).

''(iii) Occupational therapy services of the type described in section 1861(p) through the operation of section 1861(g).

''(B) THERAPY PROVIDER.—The term 'therapy provider' means a provider of services (as defined in section 1861(u)) or a supplier (as defined in section 1861(d)) who submits a claim for outpatient therapy services.

''(11) FUNDING.—For purposes of implementing this subsection, the Secretary shall provide for the transfer, from the Federal Supplementary Medical Insurance Trust Fund under section 1841, of $35,000,000 to the Centers for Medicare & Medicaid Services Program Management Account for each fiscal year (beginning with fiscal year 2015). Amounts transferred under this paragraph shall remain available until expended.

''(12) SCALING BACK.—

''(A) PERIODIC DETERMINATIONS.—Beginning with 2019, and every two years thereafter, the Secretary shall—

''(i) make a determination of the improper payment rate for outpatient therapy services for a 12-month period; and

''(ii) make such determination publicly available.

''(B) SCALING BACK.—If the improper payment rate for outpatient therapy services determined for a 12-month period under subparagraph (A) is 50 percent or less of the Medicare fee-for-service improper payment rate for such period, the Secretary shall—

''(i) reduce the amount and extent of medical review conducted for a prospective year under the process established in this subsection; and

''(ii) return an appropriate portion of the funding provided for such year under paragraph (11).''.

(2) GAO STUDY AND REPORT.—

(A) STUDY.—The Comptroller General of the United States shall conduct a study on the effectiveness of medical review of outpatient therapy services under section 1833(aa) of the Social Security Act, as added by paragraph (1). Such study shall include an analysis of—

(i) aggregate data on—

(I) the number of individuals, therapy providers, and claims subject to such review; and

(II) the number of reviews conducted under such section; and

(ii) the outcomes of such reviews.

(B) REPORT.—Not later than 3 years after the date of enactment of this Act, the Comptroller General shall submit to Congress a report containing the results of the study under subparagraph (A), together with recommendations for such legislation and administrative action as the Comptroller General determines appropriate.

(d) COLLECTION OF STANDARDIZED DATA ELEMENTS FOR OUTPATIENT THERAPY SERVICES.—

(1) COLLECTION OF STANDARDIZED DATA ELEMENTS FOR OUTPATIENT THERAPY SERVICES.—Section 1834 of the Social Security Act (42 U.S.C. 1395m) is amended by adding at the end the following new subsection:

''(r) COLLECTION OF STANDARDIZED DATA ELEMENTS FOR OUTPATIENT THERAPY SERVICES.—

''(1) STANDARDIZED DATA ELEMENTS.—

''(A) IN GENERAL.—Not later than 6 months after the date of enactment of this subsection, the Secretary shall post on the Internet website of the Centers for Medicare & Medicaid Services a draft list of standardized data elements for individuals receiving outpatient therapy services.

''(B) CATEGORIES.—

''(i) IN GENERAL.—Such standardized data elements shall include information with respect to the following categories, as determined appropriate by the Secretary:

''(I) Functional status.

''(II) Demographic information.

''(III) Diagnosis.

''(IV) Severity.

''(V) Affected body structures and functions.

''(VI) Limitations with activities of daily living and participation.

''(VII) Other categories determined to be appropriate by the Secretary.

''(ii) ALIGNMENT WITH CATEGORIES FOR REPORTING OF ASSESSMENT DATA UNDER IMPACT.—The Secretary shall, as appropriate, align the functional status category under subclause (I) of clause (i) and the other categories under subclauses (II) through (VII) of such clause with the categories described in clauses (i) through (vi) of section 1899B(b)(1)(B).

''(C) SOLICITATION OF INPUT.—The Secretary shall accept input from stakeholders through the date that is 60 days after the date the Secretary posts the draft list of standardized data elements pursuant to subparagraph (A). In seeking such input, the Secretary shall use one or more mechanisms to solicit input from stakeholders that may include use of open door forums, town hall meetings, requests for information, or other mechanisms determined appropriate by the Secretary.

''(D) OPERATIONAL LIST OF STANDARDIZED DATA ELEMENTS.—Not later than 120 days after the end of the period for accepting input described in subparagraph (C), the Secretary, taking into account such input, shall post on the Internet website of the Centers for Medicare & Medicaid Services an operational list of standardized data elements.

''(E) SUBSEQUENT REVISIONS.—Subsequent revisions to the operational list of standardized data elements shall be made through rulemaking. Such revisions may be based on experience and input from stakeholders.

''(2) SYSTEM TO REPORT STANDARDIZED DATA ELEMENTS.—

''(A) IN GENERAL.—Not later than 18 months after the date the Secretary posts the operational list of standardized data elements pursuant to paragraph (1)(D), the Secretary shall develop and implement an electronic system (which may be a web portal) for therapy providers to report the standardized data elements for individuals with respect to outpatient therapy services.

''(B) STAKEHOLDER INPUT.—The Secretary shall seek input from stakeholders regarding the best way to report the standardized data elements under this subsection.

''(3) REPORTING.—

''(A) FREQUENCY OF REPORTING.—

''(i) IN GENERAL.—Subject to clauses (ii) and (iii), the Secretary shall specify the frequency of reporting standardized data elements under this subsection.

''(ii) STAKEHOLDER INPUT.—The Secretary shall seek input from stakeholders regarding the frequency of the reporting of such data elements.

''(iii) ALIGNMENT WITH FREQUENCY FOR REPORTING OF ASSESSMENT DATA UNDER IMPACT.—The Secretary shall, as appropriate, align the frequency of the reporting of such data elements with respect to an individual under this subsection with the frequency in which data is required to be submitted with respect to an individual under the second sentence of section 1899B(b)(1)(A).

''(B) REPORTING REQUIREMENT.—Beginning on the date the system to report standardized data elements under this subsection is operational, no payment shall be made under this part for outpatient therapy services furnished to an individual unless a therapy provider reports the standardized data elements for such individual.

''(4) REPORT ON NEW PAYMENT SYSTEM FOR OUTPATIENT THERAPY SERVICES.—

''(A) IN GENERAL.—Not later than 24 months after the date described in paragraph (3)(B), the Secretary shall submit to Congress a report on the design of a new payment system for outpatient therapy services. The report shall include an analysis of the standardized data elements collected and other appropriate data and information.

''(B) FEATURES.—Such report shall consider—

''(i) appropriate adjustments to payment (such as case mix and outliers);

''(ii) payments on an episode of care basis; and

''(iii) reduced payment for multiple episodes.

''(C) CONSULTATION.—The Secretary shall consult with stakeholders regarding the design of such a new payment system.

''(5) IMPLEMENTATION.—

''(A) FUNDING.—For purposes of implementing this subsection, the Secretary shall provide for the transfer, from the Federal Supplementary Medical Insurance Trust Fund under section 1841, of $7,000,000 to the Centers for Medicare & Medicaid Services Program Management Account for each of fiscal years 2015 through 2019. Amounts transferred under this subparagraph shall remain available until expended.

''(B) ADMINISTRATION.—Chapter 35 of title 44, United States Code, shall not apply to specification of the standardized data elements and implementation of the system to report such standardized data elements under this subsection.

''(C) LIMITATION.—There shall be no administrative or judicial review under section 1869, section 1878, or otherwise of the specification of standardized data elements required under this subsection or the system to report such standardized data elements.

''(D) DEFINITION OF OUTPATIENT THERAPY SERVICES AND THERAPY PROVIDER.—In this subsection, the terms 'outpatient therapy services' and 'therapy provider' have the meaning given those term in section 1833(aa).''.

(2) SUNSET OF CURRENT CLAIMS-BASED COLLECTION OF THERAPY DATA.—Section 3005(g)(1) of the Middle Class Tax Extension and Job Creation Act of 2012 (42 U.S.C. 1395l note) is amended, in the first sentence, by inserting ''and ending on the date the system to report standardized data elements under section 1834(r) of the Social Security Act (42 U.S.C. 1395m(r)) is implemented,'' after ''January 1, 2013,''.

(e) REPORTING OF CERTAIN INFORMATION.—Section 1842(t) of the Social Security Act (42

U.S.C. 1395u(t)) is amended by adding at the end the following new paragraph:

''(3) Each request for payment, or bill submitted, by a therapy provider (as defined in section 1833(aa)(10)) for an outpatient therapy service (as defined in such section) furnished by a therapy assistant on or after January 1, 2017, shall include (in a form and manner specified by the Secretary) an indication that the service was furnished by a therapy assistant.''.

SA 1120. Mr. MCCONNELL (for Mr. CORNYN) proposed an amendment to the bill S. 178, to provide justice for the victims of trafficking; as follows:

Strike section 101 and insert the following:

SEC. 101. DOMESTIC TRAFFICKING VICTIMS' FUND.

(a) IN GENERAL.—Chapter 201 of title 18, United States Code, is amended by adding at the end the following:

''§ 3014. Additional special assessment

''(a) IN GENERAL.—Beginning on the date of enactment of the Justice for Victims of Trafficking Act of 2015 and ending on September, 30 2019, in addition to the assessment imposed under section 3013, the court shall assess an amount of $5,000 on any non-indigent person or entity convicted of an offense under—

''(1) chapter 77 (relating to peonage, slavery, and trafficking in persons);

''(2) chapter 109A (relating to sexual abuse);

''(3) chapter 110 (relating to sexual exploitation and other abuse of children);

''(4) chapter 117 (relating to transportation for illegal sexual activity and related crimes); or

''(5) section 274 of the Immigration and Nationality Act (8 U.S.C. 1324) (relating to human smuggling), unless the person induced, assisted, abetted, or aided only an individual who at the time of such action was the alien's spouse, parent, son, or daughter (and no other individual) to enter the United States in violation of law.

''(b) SATISFACTION OF OTHER COURT-ORDERED OBLIGATIONS.—An assessment under subsection (a) shall not be payable until the person subject to the assessment has satisfied all outstanding court-ordered fines and orders of restitution arising from the criminal convictions on which the special assessment is based.

''(c) ESTABLISHMENT OF DOMESTIC TRAFFICKING VICTIMS' FUND.—There is established in the Treasury of the United States a fund, to be known as the 'Domestic Trafficking Victims' Fund' (referred to in this section as the 'Fund'), to be administered by the Attorney General, in consultation with the Secretary of Homeland Security and the Secretary of Health and Human Services.

''(d) TRANSFERS.—In a manner consistent with section 3302(b) of title 31, there shall be transferred to the Fund from the General Fund of the Treasury an amount equal to the amount of the assessments collected under this section, which shall remain available until expended.

''(e) USE OF FUNDS.—

''(1) IN GENERAL.—From amounts in the Fund, in addition to any other amounts available, and without further appropriation, the Attorney General, in coordination with the Secretary of Health and Human Services shall, for each of fiscal years 2016 through 2019, use amounts available in the Fund to award grants or enhance victims' programming under—

''(A) sections 202, 203, and 204 of the Trafficking Victims Protection Reauthorization Act of 2005 (42 U.S.C. 14044a, 14044b, and 14044c);

''(B) subsections (b)(2) and (f) of section 107 of the Trafficking Victims Protection Act of 2000 (22 U.S.C. 7105); and

''(C) section 214(b) of the Victims of Child Abuse Act of 1990 (42 U.S.C. 13002(b)).

''(2) GRANTS.—Of the amounts in the Fund used under paragraph (1), not less than $2,000,000, if such amounts are available in the Fund during the relevant fiscal year, shall be used for grants to provide services for child pornography victims under section 214(b) of the Victims of Child Abuse Act of 1990 (42 U.S.C. 13002(b)).

''(3) APPLICATION.—Amounts transferred from the Fund pursuant to this section for each of fiscal years 2016 through 2019 are subject to the requirements contained in Public Law 113–235 for funds for programs authorized under sections 330 through 340 of the Public Health Service Act (42 U.S.C. 254b–256).

''(f) TRANSFERS.—

''(1) IN GENERAL.—Effective on the day after the date of enactment of the Justice for Victims of Trafficking Act of 2015, on September 30 of each fiscal year, all unobligated balances in the Fund shall be transferred to the Crime Victims Fund established under section 1402 of the Victims of Crime Act of 1984 (42 U.S.C. 10601).

''(2) AVAILABILITY.—Amounts transferred under paragraph (1)—

''(A) shall be available for any authorized purpose of the Crime Victims Fund; and

''(B) shall remain available until expended.

''(g) COLLECTION METHOD.—The amount assessed under subsection (a) shall, subject to subsection (b), be collected in the manner that fines are collected in criminal cases.

''(h) DURATION OF OBLIGATION.—Subject to section 3613(b), the obligation to pay an assessment imposed on or after the date of enactment of the Justice for Victims of Trafficking Act of 2015 shall not cease until the assessment is paid in full.

''(i) AUTHORIZATION OF APPROPRIATIONS.—

''(1) WRITTEN CERTIFICATION.—Not later than September 30, 2016, and each September 30 thereafter, the Attorney General shall submit to Congress a written certification as to the total amount in the Fund.

''(2) AUTHORIZATION OF APPROPRIATIONS.—In any fiscal year for which a written certification submitted under paragraph (1) indicates the total amount in the Fund is less than $30,000,000, there is authorized to be appropriated to the Fund an amount equal to $30,000,000 minus the total amount indicated in the certification.''.

(b) TECHNICAL AND CONFORMING AMENDMENT.—The table of sections for chapter 201 of title 18, United States Code, is amended by inserting after the item relating to section 3013 the following:

''3014. Additional special assessment.''.

AUTHORITY FOR COMMITTEES TO MEET

COMMITTEE ON ARMED SERVICES

Mr. THUNE. Mr. President, I ask unanimous consent that the Committee on Armed Services are authorized to meet during the session of the Senate on April 14, 2015, at 9 a.m.

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON COMMERCE, SCIENCE, AND TRANSPORTATION

Mr. THUNE. Mr. President, I ask unanimous consent that the Committee on Commerce, Science, and Transportation be authorized to meet during the session of the Senate on April 14, 2015, at 9:30 a.m., in room 253 of the Russell Senate Office Building to conduct a hearing entitled ''Federal Aviation Administration Reauthorization.''

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON FINANCE

Mr. THUNE. Mr. President, I ask unanimous consent that the Committee on Finance be authorized to meet during the session of the Senate on April 14, 2015, at 10 a.m., in room SR–215 of the Dirksen Senate Office Building to conduct a hearing entitled ''Creating a More Efficient and Level Playing Field: Audit and Appeals Issues in Medicare.''

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON FOREIGN RELATIONS

Mr. THUNE. Mr. President, I ask unanimous consent that the Committee on Foreign Relations be authorized to meet during the session of the Senate on April 14, 2015, at 2:15 p.m.

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON HEALTH, EDUCATION, LABOR, AND PENSIONS

Mr. THUNE. Mr. President, I ask unanimous consent that the Committee on Health, Education, Labor, and Pensions be authorized to meet during the session of the Senate on April 14, 2015, at 2:30 p.m., in room SH–216 of the Hart Senate Office Building.

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON HOMELAND SECURITY AND GOVERNMENTAL AFFAIRS

Mr. THUNE. Mr. President, I ask unanimous consent that the Committee on Homeland Security and Governmental Affairs be authorized to meet during the session of the Senate on April 14, 2015, at 9:30 a.m., to conduct a hearing entitled ''Reducing Unnecessary Duplication in Federal Programs: Billions More Could Be Saved.''

The PRESIDING OFFICER. Without objection, it is so ordered.

SELECT COMMITTEE ON INTELLIGENCE

Mr. THUNE. Mr. President, I ask unanimous consent that the Select Committee on Intelligence be authorized to meet during the session of the Senate on April 14, 2015, at 2:30 p.m.

The PRESIDING OFFICER. Without objection, it is so ordered.

SUBCOMMITTEE ON AIRLAND

Mr. THUNE. Mr. President, I ask unanimous consent that the Subcommittee on Airland of the Committee on Armed Services be authorized to meet during the session of the Senate on April 14, 2015, at 2:30 p.m.

The PRESIDING OFFICER. Without objection, it is so ordered.

SUBCOMMITTEE ON EMERGENCY THREATS AND CAPABILITIES

Mr. THUNE. Mr. President, I ask unanimous consent that the Subcommittee on Emergency Threats and Capabilities of the Committee on Armed Services be authorized to meet during the session of the Senate on April 14, 2015, at 2:30 p.m.

The PRESIDING OFFICER. Without objection, it is so ordered.

AUTHORIZING USE OF EMANCIPATION HALL

Mr. CORNYN. Mr. President, I ask unanimous consent that the Senate proceed to the consideration of H. Con. Res. 9, which is at the desk.

The PRESIDING OFFICER. The clerk will report the concurrent resolution by title.

The senior assistant legislative clerk read as follows:

A concurrent resolution (H. Con. Res. 9) authorizing the use of Emancipation Hall in the Capitol Visitor Center for a ceremony as part of the commemoration of the days of remembrance of victims of the Holocaust.

There being no objection, the Senate proceeded to consider the concurrent resolution.

Mr. CORNYN. Mr. President, I ask unanimous consent that the concurrent resolution be agreed to and the motion to reconsider be laid upon the table with no intervening action or debate.

The PRESIDING OFFICER. Without objection, it is so ordered.

The concurrent resolution (H. Con. Res. 9) was agreed to.

MAKING MINORITY PARTY APPOINTMENTS FOR THE 114TH CONGRESS

Mr. CORNYN. Mr. President, I ask unanimous consent that the Senate proceed to the immediate consideration of S. Res. 135, submitted earlier today.

The PRESIDING OFFICER. The clerk will report the resolution by title.

The senior assistant legislative clerk read as follows:

A resolution (S. Res. 135) making minority party appointments for the 114th Congress.

There being no objection, the Senate proceeded to consider the resolution.

Mr. CORNYN. Mr. President, I ask unanimous consent that the resolution be agreed to and the motion to reconsider be made and laid upon the table with no intervening action or debate.

The PRESIDING OFFICER. Without objection, it is so ordered.

The resolution (S. Res. 135) was agreed to.

(The resolution is printed in today's RECORD under ''Submitted Resolutions.'')

DISCHARGE AND REFERRAL—S. 95

Mr. CORNYN. Mr. President, I ask unanimous consent that S. 95 be discharged from the Committee on Homeland Security and Governmental Affairs and be referred to the Committee on Banking, Housing, and Urban Affairs.

The PRESIDING OFFICER. Without objection, it is so ordered.

ORDERS FOR WEDNESDAY, APRIL 15, 2015

Mr. CORNYN. Mr. President, I ask unanimous consent that when the Senate completes its business today, it adjourn until 9:30 a.m., Wednesday, April 15; that following the prayer and pledge, the morning hour be deemed expired, the Journal of proceedings be approved to date, and the time for the two leaders be reserved for their use later in the day; that following leader remarks, the Senate be in a period of morning business for 1 hour, with Senators permitted to speak therein for up to 10 minutes each, and that the time be equally divided, with the Democrats controlling the first half and the majority controlling the second half. I further ask that the Senate recess from 12:30 p.m. until 2 p.m. for the bipartisan luncheon; finally, that the Senate observe a moment of silence at 2:49 p.m. in honor of the victims of the Boston Marathon bombings.

The PRESIDING OFFICER. Without objection, it is so ordered.

ADJOURNMENT UNTIL 9:30 A.M. TOMORROW

Mr. CORNYN. Mr. President, if there is no further business to come before the Senate, I ask unanimous consent that it stand adjourned under the previous order.

There being no objection, the Senate, at 10:11 p.m., adjourned until Wednesday, April 15, 2015, at 9:30 a.m.

NOMINATIONS

Executive nominations received by the Senate:

DEPARTMENT OF STATE

GLYN TOWNSEND DAVIES, OF THE DISTRICT OF COLUMBIA, A CAREER MEMBER OF THE SENIOR FOREIGN SERVICE, CLASS OF MINISTER–COUNSELOR, TO BE AMBASSADOR EXTRAORDINARY AND PLENIPOTENTIARY OF THE UNITED STATES OF AMERICA TO THE KINGDOM OF THAILAND.

FEDERAL LABOR RELATIONS AUTHORITY

CAROL WALLER POPE, OF THE DISTRICT OF COLUMBIA, TO BE A MEMBER OF THE FEDERAL LABOR RELATIONS AUTHORITY FOR A TERM OF FIVE YEARS EXPIRING JULY 1, 2019. (REAPPOINTMENT)

EXTENSIONS OF REMARKS

HONORING DR. LARRY MEREDITH

HON. JARED HUFFMAN

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 14, 2015

Mr. HUFFMAN. Mr. Speaker, I rise today to recognize Dr. Larry Meredith, who retired on March 31, 2015 following a long and successful career in health and human services that culminated as director of the Marin County Health and Human Services Department for the past 13 years.

After earning a degree in business administration from the University of Western Ontario and his master's and doctorate degrees in psychology from Penn State University, Dr. Meredith worked for the San Francisco Department of Public Health for 30 years before coming to Marin.

Dr. Meredith led the department of Health and Human Services during challenging and exciting times. From his first day of work in Marin, Dr. Meredith has navigated the Department with distinction through restructuring and a severe economic downturn while maintaining a focus on promoting wellness and preventative health care to achieve improved, comprehensive community health.

With a bold vision for the future and an unwavering dedication to strengthening partnerships, Dr. Meredith proved time and again his merits as a devoted leader. He successfully directed Marin County's Team HHS—a staff of more than 700 employees across 10 sites—and managed a $160M budget with multiple grants and funding streams. Those feats would be remarkable by themselves, but it's his dedication to building community relationships and inspiring collaboration among stakeholders that truly sets his service apart.

In his work and life, he has supported and strengthened commitments to many pressing community issues, including access to services for those facing mental health issues, homelessness, disabilities, and socio-economic disadvantages. His work will have a long-lasting and positive impact on Marin County for many years to come.

Mr. Speaker, it is fitting that we honor and thank Dr. Larry Meredith for his years of dedicated service to the people of Marin County and extended Bay Area community, and for guiding Marin to its ranking as the Healthiest County in California for six consecutive years by the Robert Wood Johnson Foundation and the University of Wisconsin. On behalf of the many individuals and organizations he served, I am honored to express our deep appreciation to Dr. Meredith for his exemplary public service, and convey our best wishes as he pursues new endeavors.

NATIONAL LINEMAN APPRECIATION DAY

HON. TOM PRICE

OF GEORGIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 14, 2015

Mr. TOM PRICE of Georgia. Mr. Speaker, today I would like to speak in honor of the wonderful work that linemen do across this great nation. It is a privilege that my office was able to introduce a resolution supporting the designation of April 18, 2015 as National Lineman Appreciation Day. These brave men and women toil every day on behalf of public safety, and for that every American is rightfully thankful for all that they do.

Linemen have a long and storied history in this nation. It is a profession that is often passed down from one generation to the next. The danger of working atop power lines channeling thousands of volts of electricity requires courageous and dedicated individuals up to the challenge. When storms and other catastrophic events occur in our communities, linemen are often there as first responders, working hand in hand with other public safety heroes to secure the scene.

Mr. Speaker, since these men and women often go unrecognized, and because of the unique danger they often find themselves in by tirelessly working to maintain our nation's energy infrastructure, it is entirely fitting and proper to set aside a day of national recognition, April 18, 2015, as National Lineman Appreciation Day.

IN RECOGNITION OF EQUAL PAY DAY

HON. SAM FARR

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 14, 2015

Mr. FARR. Mr. Speaker, I am so tired of coming down here to the floor each and every year and marking the day that women's pay finally catches up to that of a man's! Equal Pay Day is not a bittersweet occasion—it is simply a bitter reminder of the worth that this country places on the work of women. It is quite simply unfathomable! Today is a glaring reminder of the hard work that still needs to be done in order to achieve gender parity in pay.

Women are half the population! How has this inequity been allowed to stand for so long? When President Kennedy signed the Equal Pay Act into law in 1963, women on average made 59 cents for every dollar earned by men. It has been 51 years since the Equal Pay Act was signed into law, and yet women still earn on average only 77 cents for every dollar earned by men, amounting to a yearly gap of $11,607 between full-time working men and women. We've made some progress—but it's not even close to being enough.

Equal pay is not simply a women's issue—it is a family issue. Families increasingly rely on women's wages to make ends meet, and with less take-home pay women have less money for the everyday needs of their families.

According to the National Partnership for Women and Families, in California, women in are paid 84 cents for every dollar paid to men, amounting to an annual wage gap of $8,183 between men and women who work full time in the state. In addition, Californian women who are employed full time lose a combined total of approximately $37,658,902,470 every year due to the wage gap. Let me say that again: That's almost $38 BILLION each year!

The sad reality is that the pay gap is not simply an education issue either. Nationally, women with master's degrees that work full time are paid just 70 cents for every dollar paid to men with master's degrees. Further, women with doctoral degrees are paid less than men with master's degrees, and women with master's degrees are paid less than men with bachelor's degrees.

Mr. Speaker, that is why the Paycheck Fairness Act is so critical. I am so proud to be an original cosponsor of this bill. It will close loopholes and strengthen the Equal Pay Act, which hasn't been updated in 52 years. The bill has 189 cosponsors so far. And once again this year NOT ONE is a Republican! What possible reasons are there to be against equal pay for equal work? This issue does not only affect Democrats. It affects all hard-working American women and families—regardless of their political party. Does the Majority simply not care about this problem, or is it yet another continuation of the War on Women that they continue to deny year after year?

IN HONOR OF NATIONAL SERVICE RECOGNITION DAY

HON. BEN RAY LUJÁN

OF NEW MEXICO

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 14, 2015

Mr. BEN RAY LUJÁN of New Mexico. Mr. Speaker, I rise today to honor National Service Recognition Day, which was held on April, 7th. Service to our community and our country is an enduring feature of the American spirit, and today we recognize those who have made a commitment to volunteerism.

America's cities and communities are at their best when citizens are engaged and take an active role in developing solutions. The Corporation for National and Community Service operates programs that activate and empower communities to tackle some of their most pressing issues such as education, health care, national disaster recovery, and the environment.

AmeriCorps and Senior Corps operate in more than 60,000 locations across the country, bolstering both private and non-profit organizations that do vital work in their communities. These programs mobilize millions of volunteers, building skills and educating leaders nationwide. In New Mexico alone,

● This "bullet" symbol identifies statements or insertions which are not spoken by a Member of the Senate on the floor.

Matter set in this typeface indicates words inserted or appended, rather than spoken, by a Member of the House on the floor.

AmeriCorps and Senior Corps involve over 5,000 individuals at more than 640 locations.

In honor of National Service Recognition Day I encourage citizens to join me in recognizing the positive impact of national service, to thank those that serve, and to find ways to become involved in their cities and communities.

CONGRATULATING JIM THOME ON INDUCTION INTO GREATER PEORIA SPORTS HALL OF FAME

HON. CHERI BUSTOS

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 14, 2015

Mrs. BUSTOS. Mr. Speaker, I rise today to honor the achievements of baseball player and Peoria native, Jim Thome, who will be inducted into the Greater Peoria Sports Hall of Fame on April 11, 2015.

Mr. Thome's roots in America's pastime run deep in the Illinois community, having played at Limestone High School in Bartonville and at Illinois Central College in East Peoria. He will be joining his father, grandfather, uncle, and aunt in the Greater Peoria Sports Hall of Fame, all of whom are recognized for their contributions to baseball and softball.

His professional achievements on the baseball diamond are highlighted by his 2,328 career hits, 5 time selection to the Major League Baseball All-Star game, and 612 homeruns, placing him as seventh on the all-time home-run list.

As someone who my late brother, Dan Callahan, considered a personal friend, Mr. Thome is as exemplary off the field as his feats are on the field. Jim and his wife, Andrea, are actively involved in a number of causes, which include helping underserved children find adoptive and foster families, improving the quality of care at Illinois Children's Hospital, and aiding tornado victims in Washington, Illinois.

Jim has been recognized twice for his dedication to community service by being awarded Major League Baseball's Marvin Miller Man of the Year Award, which is given to the athlete who best exemplifies success in their community, as well as on the field.

TRIBUTE TO HONOR THE LIFE OF THE HONORABLE KEITH C. SORENSON

HON. ANNA G. ESHOO

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 14, 2015

Ms. ESHOO. Mr. Speaker, I rise to honor the life and extraordinary work of Keith C. Sorenson. Born on September 4, 1921, in Elsinore, Utah, he died in Redwood City, California, on March 20, 2015, at the age of 93.

Keith Sorenson was born and raised on a farm in Utah, the youngest of four children. He said ''There's nothing better than living on a farm. If you ever really work on a farm, anything else you ever do seems easy.'' He earned his undergraduate and law degrees from the University of Utah, where he met his wife, Maxine Swinson. The family moved to Redwood City, California, and Keith joined a local law firm.

Keith Sorenson joined the San Mateo County District Attorney's office in 1949, and became District Attorney in 1953. He held the post and that of County Counsel for three decades until his retirement in 1982. During his tenure he hired Sandra Day O'Connor, a Stanford Law School graduate who was unable to obtain employment as an attorney because she was a woman. He helped found the One Hundred Club, an organization that supports the families of slain police officers.

Keith Sorenson was widely known and respected for his integrity and strong work ethic. Current District Attorney Stave Wagstaffe praised him, saying ''He instilled in all of us the standard that justice and doing the right thing was the only choice for a prosecutor and that other considerations such as politics were irrelevant.''

I am deeply saddened by Keith Sorenson's passing. He was a highly regarded public official, a man of enormous integrity, a trusted friend and mentor, and a source of great inspiration to me and countless others.

Mr. Speaker, I ask the entire House to join me in honoring the extraordinary life and contributions of Keith Sorenson, a great and good man, and in extending our most sincere condolences to his son, Thomas. Keith Sorenson made San Mateo County, the state of California and our country stronger and better, and he will be missed by all who had the good fortune to know him.

MATTEO ALOIA'S ESSAY

HON. PETE OLSON

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 14, 2015

Mr. OLSON. Mr. Speaker, I am privileged to interact with some of the brightest students in the 22nd Congressional District who serve on my Congressional Youth Advisory Council. I have gained much by listening to the high school students who are the future of this great nation. They provide important insight into the concerns of our younger constituents and hopefully get a better sense of the importance of being an active participant in the political process. Many of the students have written short essays on a variety of topics and I am pleased to share them with my House colleagues.

Matteo Aloia attends Dawson High School in Pearland, Texas. The essay topic is: in your opinion, what role should government play in our lives?

UAV Drones can be defined as any unmanned aerial vehicle controlled from the ground. While drones are often associated with American military use, commercial drones have recently become quite popular. As UAV drones have risen to the forefront of the consumer market, they have began to pose real threats to both security and privacy.

The Washington Post claims that ''The Federal Aviation Administration recently released a report detailing more than 190 safety incidents involving drones and commercial aircraft.'' The Washington Post also claims that ''The US. military is rightfully worried that drones will be weaponized as killing machines and become autonomous flying IEDs (improvised explosive devices)''. An example that could have turned to tragedy when, last year, a UAV drone landed on the White House Lawn, unbeknownst to the President's security detail. There was no malicious intent from the drone or it's operator, However, if this drone had been intending to do damage, it obviously had the means to do so.

Many UAV drones are also equipped with audio and video capabilities. This begs the question of privacy on American soil. If anyone can fly a drone outside your house and see what you're doing, how can anything be truly private? According to Brookings, an online news source, ''unlike some state houses, the U.S. Congress hasn't seriously considered or passed a bill to set general privacy standards or to regulate drones and privacy specifically''. While certain state governments have ruled on the nature of privacy in relation to drones, the federal government has yet to reach a decision, and perhaps has not even seriously considered the issue. This could pose a major risk to American's individual freedoms through the invasion of privacy.

In summary, UAV Drones pose several major risks to the American lifestyle. The first risk is one of security, in that drones are difficult to detect and can be easily equipped with IED's The second risk is one of morality, in that drones can be used to pry into the personal lives of American citizens. Without action from the government, the problem of drones will go unsolved.

HONORING DAVID PLANK

HON. JASON SMITH

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 14, 2015

Mr. SMITH of Missouri. Mr. Speaker, I rise today to honor the outstanding achievements and successful career of David Plank from Salem, Missouri. For over fifty years, David Plank has created beautiful watercolor paintings of birds that have been recognized and admired all over the country.

David Plank's talented skills derive from a dedication and passion for the arts, rather than from formal training. All of his drawings are completed in the open air and near the natural habitats of his subjects. David Plank never uses photographs, he captures the posture and attitude of his subjects in his drawings, and then he goes inside and paints. This unique process is what has worked for David for so many years; he estimates he has painted more than 1,400 birds throughout his career.

Among his accomplishments, he has painted eleven covers for Bird Watcher's Digest and been featured in exhibits at the Springfield Art Museum and Leigh Yawkey Woodson Art Museum. David hopes his paintings will continue to reflect the good feelings and thoughts he has for birds to future generations of onlookers.

For his many contributions to the arts and his many successes, it is my pleasure to recognize David Plank before the United States House of Representatives.

OUR UNCONSCIONABLE NATIONAL DEBT

HON. MIKE COFFMAN

OF COLORADO

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 14, 2015

Mr. COFFMAN. Mr. Speaker, on January 20, 2009, the day President Obama took office, the national debt was $10,626,877,048,913.08.

Today, it is $18,152,054,202,954.52. We've added $7,525,177,154,041.44 to our debt in 6 years. This is over $7.5 trillion in debt our nation, our economy, and our children could have avoided with a balanced budget amendment.

HONORING TUNICA TEENS IN ACTION, INC.

HON. BENNIE G. THOMPSON

OF MISSISSIPPI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 14, 2015

Mr. THOMPSON of Mississippi. Mr. Speaker, I rise today to honor Tunica Teens In Action, Inc. Tunica Teens In Action, Inc. (Concerned Citizens for a Better Tunica County) is an African-American, grassroots, community based, and community lead, leadership development organization that is rooted in empowering the African-American low-income communities in Tunica County, MS and the Mississippi Delta since 1993.

Tunica Teens In Action, Inc. was formed in July 1999 when the young members of Concerned Citizens For A Better Tunica County decided that they wanted more individualized training to help them do better community organizing work with their adult allies. Tunica Teens In Action started out with 17 young people ranging between the ages of 11–20 who were led by Ashley N. McKay. These bright young people realized that they needed to develop their skills to help the community and themselves to succeed in a school system that had been on academic probation for over ten years.

Tunica Teens In Action was formally incorporated in 2011 and fully transitioned from Concerned Citizens FABTC, Inc. as a youth and female led youth of color organization. Tunica Teens In Action, Inc. is a non-profit 501(c)(3) community leadership development organization.

Concerned Citizens For A Better Tunica County was formed in 1993 when African-American grassroots low-income moms, dads, students, and other community activists came together to fight for education reform and fairness in Tunica County, MS. At that time, Tunica County was one of the poorest counties in the United States and when Rev. Jessie Jackson visited Tunica in 1985 he labeled it ''America's Ethiopia'' because of the devastating housing, economy, and community needs. Since 1993, Concerned Citizens For A Better Tunica County had been a leadership development and empowering organization for Education Reform, Youth Leadership Development, Housing and Job Reform, Democracy Organizing, and Environmental Justice. Concerned Citizens For A Better Tunica County, Inc. formally incorporated in 1997 and was a 501(c)(3) tax-exempt nonprofit organization.

Concerned Citizens For A Better Tunica County, Inc. (Concerned Citizens) is a rural broad based grassroots community leadership development, education, and training organization working to empower the community by developing new grassroots leaders and organizers in Tunica County, Mississippi. Concerned Citizens For A Better Tunica County, Inc.'s mission is to empower the disadvantaged and low income community (families) of color by building leadership and organization, involving students and parents using the intergenerational model, (young people and old people working together), in the community of Tunica County, MS.

''Empower'' is defined as the effective participation of the community to impact the formation of public policy and effective participation in the decision making process in the educational, economic, political, environmental, and social change systems with a special emphasis on education policy in the Tunica School District that will help to create a first-rate quality public educational opportunity for all families in Tunica County and the country. With roots in the struggle for education justice, Concerned Citizens has evolved into a multi-issue community based organization that is led by low-income people of color.

The TRANSITION to TUNICA TEENS IN ACTION: Tunica Teens In Action, Inc. mission is to develop young leaders, especially those from disadvantaged circumstances, who will be able to effectively participate in their community by developing the educational skills, technical skills, and understanding thru community organizing using the intergeneration model since 1993.

Tunica Teens In Action's program of work is rooted in leadership development and local community organizing that uses an intergeneration model to empower the low income communities of color. Most of Tunica Teens In Action work occurs at community trainings/workshops, at public actions to demonstrate community power, through collaborations and coalitions, social media, and in small one-on-one meetings to help educate ourselves and community.

Major Accomplishments: Prevented the white farmers from re-segregating the Robinsonville and Casino Community (1995).

Prevented the Tunica County Board of Supervisors from Abolishing the County Voter Rolls (1996).

Helped to get the Robinsonville Elementary School built for/near the Black Community (1998).

Helped to get the Tunica County School District to a ''Successful'' academic rating (2011).

Provided youth leadership and education training to over 25,000 persons (1993–2015).

Non-partisan Democracy Organizing—Accountable Governance trainings that helped to create over 30 new African-American accountable elected officials (2005–2015).

Provided private education college scholarships to over 200 high school graduates (1999–2014).

Provided redistricting training to community to help re-shape policy and power in Tunica County, Tate County, Panola County, Sunflower County, Tallahatchie County, Marshall County, Desoto County, Coahoma County, Lee County, Pontotoc County, and Green County (2002 and 2012).

Established P–16 Community Engagement Councils to help parents and students to have a voice in the creation of education policies for their children (2011–2015).

The staff includes Ashley N. McKay—Executive Director, Mildred P. Conley—Assistant Director, Marilyn L. Young—Education Director, Melvin Young—Resource Director, 4—Youth Interns, and a host of community and volunteers. TTIA has a 9 member Board of Directors that govern the organization.

Mr. Speaker, I ask my colleagues to join me in recognizing Tunica Teens In Action, Inc. for their dedication to serving their community and this great state and country.

CONGRATULATING IOWA'S BASKETBALL TEAMS

HON. ROD BLUM

OF IOWA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 14, 2015

Mr. BLUM. Mr. Speaker, I rise today to congratulate the collegiate basketball teams from the great state of Iowa on their seasons and their 2015 NCAA Tournament success.

The University of Iowa Hawkeyes Women's team finished the regular season 26–8, earning a #3 seed in the NCAA Tournament's Oklahoma City region. The Hawkeyes reached the ''Sweet Sixteen'' after wins over American University 75–67 and the University of Miami (FL) 88–70.

The Hawkeyes Men's team finished the regular season 22–12, earning a #7 seed in the NCAA Tournament's South region. The Hawkeyes defeated the Davidson Wildcats 83–52 in the second round.

The Iowa State University Cyclones Men's team finished the regular season 25–9. The Cyclones won the Big 12 tournament with a 70–66 victory over the Kansas Jayhawks in the championship game and earned a #3 seed in the NCAA Tournament's South region.

Finally, I am proud to congratulate the University of Northern Iowa Panthers Men's team, from my district, finished the regular season an astonishing 31–4. The Panthers won 16 straight games down the stretch and eventually won the Missouri Valley Tournament Championship, defeating Illinois State University by a score of 69–60 in the championship game. UNI earned a #5 seed in the East region and defeated the University of Wyoming Cowboys 71–54 in the second round.

In week 11 of the regular season, all three Iowan Men's programs were nationally ranked in the AP Top 25 poll with the Hawkeyes at #25, the Panthers at #20, and the Cyclones at #9. As a proud Iowan and devout college basketball fan, I extend my congratulations to coaches, Lisa Bluder and Fran McCaffery from Iowa, Fred Hoiberg from Iowa State, and Ben Jacobson from UNI, and their student athletes on successful seasons and I look forward to cheering them on again next year.

TRIBUTE IN HONOR OF WILLIAM A. NACK

HON. ANNA G. ESHOO

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 14, 2015

Ms. ESHOO. Mr. Speaker, I rise today to honor an extraordinary leader and a valued

friend of many years, William A. Nack. He was born in St. Louis, Missouri, raised in San Francisco and has been a resident of San Mateo County, California for more than half a century. For the past 16 years he has been the able and highly regarded Business Manager and Executive Officer of the Building and Construction Trades Council of San Mateo County, AFL–CIO, and retired on March 1, 2015.

Bill Nack demonstrated his leadership qualities at a young age when he attained the rank of Eagle Scout in 1962. He earned an Associate Degree in Aeronautics, served in the U.S. Naval Reserves, and served as a Journeyman Mechanic with United Airlines where he began his close association with the union movement. He served as a union shop steward for 15 years, challenging management and championing workers. He served on union boards and committees and was a founding member of a coalition between the unions of machinists, pilots and flight attendants. Bill Nack was also a delegate to the San Mateo County Central Labor Council and chaired its Legislative Committee.

From 1987 to 1989, Bill Nack was the Assistant Business Manager for the Central Labor Council of Santa Clara and San Benito Counties, and from 1989 to 1999 served as the Deputy Executive Officer of the Santa Clara and San Benito Building and Trades Council. In 1999, Bill became the Business Manager and Executive Officer of the San Mateo Building and Trades Council, leading 14,000 union construction crafts men and women. During his time as Executive Officer he negotiated 45 Project Labor Agreements and Letters of Commitment, representing more than $16 billion in projects that employed union members. He ensured that all of the projects were environmentally responsible and respectful of union members, their wages and working conditions. Bill has served with great distinction on many state and local boards and commissions, and is the devoted husband of Rayna Lehman and the proud father of their twin sons, Patrick and Benjamin.

Mr. Speaker, I ask the entire House to join me in honoring the extraordinary work of Bill Nack, a great and good man, and a person of enormous integrity, and wish him every blessing in the years to come. He has strengthened and bettered our community and our country with the work of his life and I will always be grateful to have worked with him and to call him my friend.

IN HONOR OF THE 57TH WEDDING ANNIVERSARY OF MR. MELVIN AND MRS. FRIEDA DOW

HON. AL GREEN

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 14, 2015

Mr. AL GREEN of Texas. Mr. Speaker, I would like to congratulate Mr. Melvin and Mrs. Frieda Dow on their 57th Wedding Anniversary, which occurred on March 23, 2015.

Marriage is one of the most sacred and intimate covenants that two people may enter into, and the Dows' attainment of 57 years of matrimony is worthy of commendation. May their union continue to be richly blessed as they work collectively to nurture each other, their lovely family, and their community. I am certain that the love and care that they have for one another will continue to grow and flourish in years to come.

As we celebrate the matrimony of the Dows, we also honor their large family which currently includes five sons and twelve grandchildren. I salute the Dows on their wedding anniversary, and I know that their love will continue to be an inspiration to us all.

TAYLOR NGUYEN'S ESSAY

HON. PETE OLSON

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 14, 2015

Mr. OLSON. Mr. Speaker, I am privileged to interact with some of the brightest students in the 22nd Congressional District who serve on my Congressional Youth Advisory Council. I have gained much by listening to the high school students who are the future of this great nation. They provide important insight into the concerns of our younger constituents and hopefully get a better sense of the importance of being an active participant in the political process. Many of the students have written short essays on a variety of topics and I am pleased to share them with my House colleagues.

Taylor Nguyen attends Pearland High School in Pearland, Texas. The essay topic is: select an important event that has occurred in the past 15 years and explain how that event has changed our country.

During the past 15 years, America has experienced dramatic occurrences such as Hurricane Katrina and the Columbia Space Shuttle disaster. Technology such as the iPhone, has immensely improved our means of communication. However, the greatest impact on the United States was the terrorist attacks on September 11th, 2001. On this day the deaths of over 3,400 people, including police officers and firefighters, transformed the United States forever. Since 9/11, airports have been reconstructed to operate with thorough security measures, amidst the oversight of the government instituted Department of Homeland Security. Advanced searches on people and luggage have successfully prevented another hijacking on American soil. Unfortunately, the terrorists claimed devotion to Islam have ram shackled some American's views of the Muslim community.

This tragic affair became a catalyst for protection from future catastrophes. On November 25th, 2002, Homeland security was established. Not only do they inhibit terrorist strikes, but they also monitor cyberspace and oversee our borders. The department's border security techniques have been scrutinized. Yet terrorists have been detained, and eradicated (i.e. Osama Bin Laden) as a result of the department's hard work and commitment to the American people.

The sector of Homeland Security that Americans encounter most often in the Transportation Security Administration, or TSA. This department was designed to take further precautionary measures prior to boarding an aircraft. The American people have complained that TSA is time consuming, and violates an individual's civil liberties. There have even been claims of racial profiling. TSA has received negative commentary; however the overall actions are necessary for the safety of the American people.

The Muslim Community has been dramatically affected. A poll taken one month after the 9/11 attacks by ABC news, announced that 47 percent of Americans appreciated the lives of Muslim Americans. On the most recent anniversary of the disaster, the poll was recalculated and the response was a devastating 27 percent.

Due to the terrorists claiming to be devout Islamists and Al Qaeda participants, a negative stigmatism has spread rampantly throughout the United States in the reflection of the Islamic community. Hopefully through education and understanding, Americans can welcome our Islamic community with open arms.

September 11th was a great loss for the victims' families, whose lives were forever broken, and a travesty for all of America. In the years following the attacks, America has taken a no tolerance stance against terrorism within our country and all over the world. With pride and justice, the lives lost will not have been taken in vain. They have paved a road of stronger security, and saved lives in the process. Although we have a long road ahead, we will remember, and we will build from the rubble a stronger, more valorous United States of America.

PAYING TRIBUTE TO ISMAIL KADARE, ALBANIAN POLITICAL EXILE FROM FRANCE AND WINNER OF THE JERUSALEM PRIZE FOR 2015

HON. ELIOT L. ENGEL

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 14, 2015

Mr. ENGEL. Mr. Speaker, I rise today to pay tribute to Ismail Kadare, the Albanian political exile from France, distinguished Albanian author and winner of the Jerusalem Prize for 2015. Kadare is a novelist and poet who has written about Albanian history people and while delving deeply into the universal themes of freedom and human rights. He is one of Albania's most highly-regarded authors, having written about its previous totalitarian regime and Albanian culture and society. According to the panel that selected him as the Jerusalem Prize winner, Mr. Kadare "is a teller of fascinating stories who uses implied, indirect writing. He writes about collective guilt, and especially about the truth's failure to penetrate. He seeks to expose, while hiding his tracks in layers of myth and metaphor, questions for which there are no answers and crimes for which there is no atonement. Even though his subject matter and his protagonists are generally local, their significance and importance are beyond doubt universal."

Mr. Kadare's literary career is marked by several laudable achievements, such as the Academy of Moral and Political Sciences of France lifetime membership, Prix mondial Cino Del Duca award in 1992, the United Kingdom's Man Booker International award in 2005, and both the Prince Asturias Award for Literature and the Honorary Degree of Science in Social and Institutional Communication by the University of Palermo in Sicily in 2009. As a testament to the universal acceptance of his literature, Mr. Kadare's novels have also been translated into many different languages which now reach broad audiences across the globe. Such accolades and recognition only scratch the surface of Mr. Kadare's admirable commitment to exercising the sacred values of democracy regardless of the circumstances he faces.

Throughout his literary novels, Mr. Kadare carefully selects figurative protagonists and narratives as a vehicle for communicating and inspiring others similarly bounded by the pressures of oppressive regimes. In doing so, Mr. Kadare's commitment to transcending governmental pressure and inspiring harmonious expression of individual freedoms is admirable. Again, I would like to extend my heartfelt congratulations to Ismail Kadare for I am pleased to pay tribute to such an individual today.

CONGRATULATING CISTERCIAN PREPARATORY SCHOOL AND THE HOCKADAY SCHOOL FOR BEING RECOGNIZED AS TWO OF THE TOP 50 BEST PRIVATE HIGH SCHOOLS

HON. KENNY MARCHANT

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 14, 2015

Mr. MARCHANT. Mr. Speaker, I rise today in recognition of Cistercian Preparatory School and The Hockaday School's recent honor as two of the best 50 private high schools for academics in the United States by Niche, as recently reported by Business Insider. I have the distinct privilege of representing these two schools, which are located within my Congressional District. Having these two schools within a small geographic area speaks volumes about the dedication to academics exhibited by the 24th District of Texas as well as the surrounding area.

Cistercian Preparatory School, an all-boys school in Irving, was founded in 1962, graduating its first class in 1970. Today, the student body consists of 355 students ranging from 5th–12th grade. Cistercian has a 100% matriculation rate, and 50% of Cistercian graduates in the last 5 years were either National Merit Semi-finalists or Commendees. I've also personally taken note of Cistercian students and their strong civic engagement, which should be emulated by all schools across the country. Cistercian Preparatory School's commitment to academics is a tribute to its students, teachers, and parents, with this nationwide recognition an acknowledgement of their hard work.

The Hockaday School was founded in 1913, which began with 10 female students. Located in Northwest Dallas, Hockaday now teaches over 1,000 pre-K–12 students from 10 countries. 53% of Hockaday's class of 2014 were either National Merit Finalists, Semi-finalists, or Commendees, and all 120 graduates attended college. Having recently celebrated its centennial, Hockaday continues to serve as an important part of Dallas' educational landscape. Hockaday's impressive history seems destined to be eclipsed by its incredibly bright future.

Mr. Speaker, on behalf of the 24th Congressional District of Texas, I ask all my distinguished colleagues to join me in honoring this great achievement by Cistercian Preparatory School and The Hockaday School. I am confident of the continual success of both schools and the young leaders they produce.

HONORING JEWELL C. LOCKHART

HON. BENNIE G. THOMPSON

OF MISSISSIPPI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 14, 2015

Mr. THOMPSON of Mississippi. Mr. Speaker, I rise today to honor a remarkable public servant, Mr. Jewell C. Lockhart.

Mr. Lockhart was born Feb. 7, 1934, in Taylor, Mississippi. He was one of nine children born to Odeal and Ruby Smith Lockhart. He grew up on a farm seven miles south of Oxford in the Taylor community. He always loved the outdoors and the open country sides. He attended Taylor Vocational High School and graduated top of his class. His love for agriculture and rural America encouraged him to pursue and obtain a Bachelor of Science in agricultural economics from Alcorn A&M College (now Alcorn State University), where he graduated with honors in 1956. He later received a master's degree in public financial management from American University in Washington, D.C.

Mr. Lockhart served two years in the U.S. Army, which included a 16-month tour in Korea. He was honorably discharged in 1962. He went on to teach science, biology, chemistry and physics for one and a half years, and served as assistant principal in Raleigh. He worked for the United States Government and the United States Department of Agriculture for 43 years as: assistant county supervisor; county supervisor (becoming the first black county supervisor in Mississippi); assistant district director; rural estate loan specialist in Washington, D.C.; and District Director in Mississippi.

While at Alcorn, Mr. Lockhart met who would become the love of his life, Ruth Earlene Singleton. They were married in 1957, and to this union were born two sons, Anthony Virdell Lockhart and Jewell C. Lockhart Jr. Mr. Lockhart was involved with many different organizations. He served as: a member of the board of directors and president of the United Way; the board of directors and president of the Boys & Girls Club of Washington County; and was a former board member of The Salvation Army. He also served on the board of directors of Habitat for Humanity; the Greater Greenville Housing Committee; the board of directors of Mission Mississippi Delta; the board of directors of Ability to Work; and vice president of TRIAD. He was also a member of National Association of Retired Federal Employees.

Mr. Lockhart was also the recipient of numerous awards and citations. Among them are: the Alcornite of the Year in 1982; the Silver Beaver Award from the Delta Area Council Boy Scouts of America; Community Service Award; 100 Black Men of Mississippi Delta, Inc. Distinguished Service Award; Delta Point of Pride Award from Greenville Area Chamber of Commerce; and Outstanding Service Award from National Council of SHADS. He was a member of Phi Beta Sigma Fraternity, where he received the Membership Award.

Led to Christ at an early age, Mr. Lockhart joined New Hope First MB Church and was a constant presence and faithful servant in a number of capacities there. He served on the deacon board and as church treasurer. He was Deputy Superintendent of young adults. He was Scout Master of Troop No. 4412 at New Hope for many years and also a youth advisor. He also served as a Sunday School teacher.

Mr. Speaker, I ask my colleagues to join me in recognizing Mr. Jewell C. Lockhart for his dedication to serving others and giving back to the African American community.

TRIBUTE TO HONOR THE LIFE OF THOMAS D. SEGE

HON. ANNA G. ESHOO

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 14, 2015

Ms. ESHOO. Mr. Speaker, I rise to honor the life and work of an extraordinary American, Thomas D. Sege. Thomas Sege was born on May 17, 1926, in Novi Sad, in the former Yugoslavia. He died on March 3, 2015, at his home in Woodside, California.

At the age of 12, Thomas Sege fled Yugoslavia with his parents and brother. He spent his youth in New York City and earned his Bachelor's and Master's degrees from Columbia University. He first worked at Sperry Gyroscope in New York, and then in 1963 became General Manager of EIMAC in Silicon Valley. EIMAC merged with Varian Associates and Thomas Sege became its CEO, serving in that position from 1981 to 1990. He was a pioneer in radio transmitting tube technology and in klystron tube technology.

Thomas Sege was devoted to his family and friends, and was an avid reader, a passionate gardener and traveler. He loved to play chess, bridge and Scrabble, and spoke multiple languages. He was also a poet and a philosopher. He suffered from Alzheimer's disease for the last 12 years of his life but never lost his spirit and humor.

Mr. Speaker, I ask the entire House to join me in extending our heartfelt condolences to Thomas Sege's son Ronald, his daughter-in-law Gina Sege, his daughter Kathleen McNamara, and his grandchildren Scott McNamara, and Christopher, Jonathan, Georgia, and Alexi Sege. I ask my colleagues to honor the life of this exceptional man who made enormous contributions to our country, making us a better people and a stronger nation.

45TH ANNIVERSARY OF THE ROLLA AREA SHELTERED WORKSHOP

HON. JASON SMITH

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 14, 2015

Mr. SMITH of Missouri. Mr. Speaker, I rise today to honor the 45th anniversary of the Rolla Area Sheltered Workshop in Rolla, Missouri. It is a place that empowers individuals to use their skills working in a sheltered environment with caring staff Since its establishment in 1970, the workshop has provided quality employment for individuals with disabilities of all kinds.

Beginning in January 1969, the mother of a disabled son saw a need for a sheltered work environment for those who were too old for a State Training School. Together, the mother and two women who were involved with the

Jaycettes, developed the idea for a sheltered workshop in Rolla. With the help and support of the entire community, the Rolla Area Sheltered Workshop opened its doors a little over a year later. Today, the workshop has 75 disabled employees who have found an environment where they can work productively and independently. Alongside a supportive staff of eight, the employees work on printed material, collating, sorting the different kinds, packing and labeling bags, among other projects.

For the many years of service and commitment to helping others, it is my pleasure to recognize the Rolla Area Sheltered Workshop before the United States House of Representatives.

CELEBRATING THE 100TH BIRTHDAY OF MRS. ESTHER TINT

HON. ZOE LOFGREN

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 14, 2015

Ms. LOFGREN. Mr. Speaker, I rise today to honor a real life Rosie the Riveter, Mrs. Esther Tint, on her 100th birthday.

Five years before women gained the right to vote, Mrs. Tint was born in Scranton, Pennsylvania on April 23, 1915 to immigrants Rosa Misefera Gaetano and Frank Gaetano. The Gaetanos were a hardworking family, raising their children in modest circumstances amidst the coal mines in Northeastern Pennsylvania. Mrs. Tint recalls her father carrying home large sacks of flour, from which her mother would craft the bread that largely sustained the family.

Following a brief early marriage that produced daughter Phyllis Aisenstein, Mrs. Tint began working at International Resistance in Philadelphia; soldering and riveting parts for electric boxes that were used by the Navy as part of the war effort. Mrs. Tint eventually became an inspector at the plant. While there, she met the man who would become her second husband, Irving Nydick.

Married in 1942, Mrs. Tint and Mr. Nydick had three children, Andrea Lutz, Lynne Cohen and Jeffrey Nydick. Through her four children, Mrs. Tint is the beloved grandmother of Susan Waldman, Josh Aisenstein and Jill Karkella, as well as the adored great-grandmother of Emma Waldman, Daniel Waldman, AvaGrace Tuft, Arden Rose Tuft and Adrienne Elizabeth Tuft.

After raising her children, Mrs. Tint began working at the Federation of Jewish Agencies Thrift Shop in Center City. She was a treasured and tireless worker there for 17 years. During her tenure at the thrift shop, following the death of Mr. Nydick, she met her final husband, widower Bernard Tint. The Tints married in 1977. Their marriage lasted until Bernie's death in 2004 at age 94. Through their marriage, Mrs. Tint is the cherished stepmother of Frankee Greenberg and step-grandmother of Sherry and Gayle Greenberg.

Still sharp as a tack and always elegantly turned out, Mrs. Tint eagerly follows politics and current events. She hopes to live long enough to see a female President of the United States.

Mr. Speaker, I ask my colleagues to join me today in paying tribute to an outstanding citizen and patriotic daughter of immigrants, Mrs. Esther Tint, as she celebrates her 100th birthday.

INTRODUCTION OF THE FAIR PAY ACT OF 2015

HON. ELEANOR HOLMES NORTON

OF THE DISTRICT OF COLUMBIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 14, 2015

Ms. NORTON. Mr. Speaker, today is Equal Pay Day, which marks the number of additional days a woman must work to earn what a man earned by the end of last year. The 1963 Equal Pay Act (EPA), the first of the great civil rights statutes of the 1960s, has grown creaky with age and needs updating to reflect the new workforce, in which women work almost as much as men. Every Congress, Representative ROSA DELAURO and I, along with scores of other members of Congress, introduce the Paycheck Fairness Act, to amend the EPA to make its basic procedures equal to those of other anti-discrimination statutes. As an original cosponsor, I attended the signing of the 2009 Lilly Ledbetter Fair Pay Act, which restored the original interpretation following a Supreme Court decision that limited lawsuits on pay disparity by tightening the time frame to file such cases.

The best case for a stronger and updated EPA, with at least the Paycheck Fairness Act, occurred here in the Congress in 2003, when female custodians in the House and Senate won an EPA case after showing that female workers were paid a dollar less for doing the same or similar work as men. Had these women not been represented by their union, they would have had an almost impossible task in using the rules for bringing and sustaining an EPA class action suit.

Based on my own experience as the first woman to chair the Equal Employment Opportunity Commission, I again introduce the Fair Pay Act (FPA) on behalf of the average female worker, who is often first steered to, and then locked into, jobs with wages that are deeply influenced by the gender of those who have traditionally held such jobs. Much of the wage inequality women experience today is because of employer-steering and because of deeply rooted wage stereotypes, which result in wages being paid according to gender and not according to the skills and efforts necessary to do the job. I introduce the FPA because pay disparity most women face today stems mainly from the segregation of women and men in different jobs and paying women in female-dominated jobs systematically less. Two-thirds of white women and three quarters of African-American women work in just three areas: sales/clerical, service and factories. We need more aggressive strategies to break through the societal barriers present throughout history the world over, as well as employer-steering based on gender, which is as old as paid employment itself.

The FPA requires that if men and women are doing comparable work, they are to be paid comparable wages. If a woman, for example, is an emergency services operator, a female-dominated profession, she should not be paid less than a fire dispatcher, a male-dominated profession, simply because each of these jobs has been dominated by one sex. If a woman is a social worker, a traditionally female occupation, she should not earn less than a probation officer, a traditionally male job, simply because of the gender associated with each of these jobs.

The FPA, like the EPA, will not tamper with the legal burden. Under the FPA, as under the EPA, the burden will be on the plaintiff to prove discrimination. The plaintiff must show that the reason for the disparate treatment is gender discrimination, not legitimate market factors.

Remedies to achieve comparable pay for men and women are not radical or unprecedented. State governments, in red and blue states alike, have demonstrated with their own employees that they can eliminate the part of the pay gap that is due to discrimination. Twenty states have adjusted wages for female-dominated professions, raising pay for teachers, nurses, clerical workers, librarians, and other female-dominated-jobs that paid less than comparable male-dominated jobs. Minnesota, for example, implemented a pay equity plan when it found that traditionally female jobs paid 20 percent less than comparable traditionally male jobs. There may well be some portion of a gender wage gap that is traceable to market factors, but twenty states have shown that you can tackle the gender discrimination-based wage gap without interfering in the market system. States generally have closed the wage gap over a period of four to five years at a one-time cost of no more than three to four percent of payroll.

In addition, many female workers routinely achieve pay equity through collective bargaining, and countless employers provide it on their own as they see women shifting out of vital female-dominated occupations as a result of the shortage of skilled workers, as well as because of the unfairness to women. Unequal pay has been built into the way women have been treated since Adam and Eve. To dislodge such deep-seated and pervasive treatment, we must go to the source, the traditionally female occupations, where pay is linked with gender and always has been.

ZACH JANDA'S ESSAY

HON. PETE OLSON

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 14, 2015

Mr. OLSON. Mr. Speaker, I am privileged to interact with some of the brightest students in the 22nd Congressional District who serve on my Congressional Youth Advisory Council. I have gained much by listening to the high school students who are the future of this great nation. They provide important insight into the concerns of our younger constituents and hopefully get a better sense of the importance of being an active participant in the political process. Many of the students have written short essays on a variety of topics and I am pleased to share them with my House colleagues.

Zach Janda attends Seven Lakes High School in Katy, Texas. The essay topic is: select an important event that has occurred in the past 15 years and explain how that event has changed our country.

In the past fifteen years many events have occurred that have shaped, molded, and changed the United States of America.

Among the several elections that have transpired, the wars we have taken a part in, and the initiatives that have been taken one stands out: The infamous 9/11.

Now being only five years old when this event occurred, I was oblivious to what happened and what would happen next. In the days and weeks following the travesty, America and its citizens as a whole rose up and defeated the immediate challenge to just give up. We came together as a whole when the rest of the world thought we could fall into confusion and anarchy. The rise in patriotism that came after 9/11 created a increase in the military enrollments and many people dropped their jobs and went to fight for their country. This can be seen through Pat Tillman: the man who left the glory and multi-million dollar NFL football career to achieve a new glory while fighting overseas.

This rise in military numbers helped to bolster the US Army, which in turn helped intimidate and suppress their enemies. With all of this great leadership and national pride that came from this travesty there were also minor mishaps that came into play and still affect our nation today. Due to the necessity to act fast to appease the American population, President Bush rushed the USA PATRIOT Act which is becoming more and more controversial today because of the increases in technology and the ease at which the government has the ability to watch over the citizens.

Now, at the time it may have seemed alright in the public's eyes for the government to be able to watch over every move, but there were not enough provisions (because of the rush) that would provide safety nets for the citizens. I'm not going to delve into my view on the topic but the reason the citizens of America dislike the Act is because they feel as though they are being spied on. The government on the other hand only employs this act to attempt to catch, halt, and deter terrorism in the act, so saying that the government spends their money only to spy on the citizens is false.

The United States has been resilient and has continued to change for the past fifteen years due to many events. However, the travesty of September 11, 2001 stands out among the rest because of the outcomes, both good and bad, that transpired after the event.

EQUALITY MEANS BUSINESS' REPORT ON THE LINK BETWEEN ECONOMIC COMPETITIVENESS & WORKPLACE EQUAL OPPORTUNITY IN FLORIDA

HON. ALCEE L. HASTINGS

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 14, 2015

Mr. HASTINGS. Mr. Speaker, I would like to submit the executive summary of a report conducted by Equality Means Business, a project of Equality Florida and the Equality Florida Institute, organizations dedicated to ending discrimination based on sexual orientation and gender identity. The report demonstrates what we already know to be true—that LGBT discrimination in the workplace is corrosive to both the domestic and global marketplace. We must continue to work diligently to ensure that all citizens are guaranteed equal rights and equal protection under the law.

The full report is available online at http://www.eqfl.org/emb/economic_impact_study.

Florida State laws are negatively impacting business operations and profits to a much higher level than previously suspected. A groundbreaking study, released by Thinkspot Inc. in March 2015, demonstrates the costly negative impact on Florida's employers from lesbian, gay, bisexual and transgender (LGBT) discrimination.

Equality Means Business, formed to spotlight major employers in Florida that have adopted comprehensive nondiscrimination policies, commissioned Thinkspot to conduct research addressing the economic case for ending discrimination against LGBT people in the Sunshine State.

The study details extensive analysis of published research and findings from in-depth interviews with C-level business leaders. It reveals negative costs realized by individual employees, employers, and Florida's business community. Study findings also illuminate areas of erosion for Florida's competitive position in the global marketplace. This summary provides highlights of the study's findings.

THE COSTS

The costs resulting from lost productivity and employee turnover alone are estimated conservatively to exceed $362 million annually. Other costs recognized by the state's business community include forgone new business opportunities, product quality degradation, customer loyalty erosion, safety incidents, corporate reputation damage, and lost opportunities to attract talent—particularly among the Millennial generation.

The cost of LGBT discrimination is not isolated to the individual. Discrimination in the workplace negatively impacts the host company, its customers, its industry (e.g., supply chain), and the geo-political areas (i.e., city, county, state) those employers call home. Research demonstrates that the link from employee engagement to profits and competitiveness is direct.

DIMINISHED COMPETITIVENESS

For many companies, a culture of non-discrimination fostered and maintained through policies is a prerequisite for daily operations. Global corporate peers demand their vendors demonstrate ''cultural intelligence.'' Global business opportunities (i.e., revenues) are lost in the absence of workforce discrimination protection.

Responses from business executives reveal that representative companies have interests far beyond the ability to attract and retain the best talent, as well as responding to global customers' demands for inclusion policies as a prerequisite for doing business.

The currently unrealized effort to pass federal legislation providing non-discrimination intensifies the competition between states in realizing the benefits of protection in the workplace. Florida ranks in the middle of the national pack at 25. Florida businesses are at a competitive disadvantage created by the collective perception as being hostile to the LGBT community.

The lack of protections available to LGBT people in a state like Florida stands in stark contrast to the protections available in high-equality states, where state law eliminates these differential costs.

INCONSISTENT POLICIES WITHIN THE STATE

In researching for the report, the authors discovered employers that made significant effort to implement internal policies that protect members of the LGBT community within the office, but felt those efforts were ''undercut'' by inaction or regressive action of government at the local and state levels. The interviews also revealed a perception that some governments appear to be actively working against companies' ability to create a ''safe'' and ''inclusive'' environment and fail to demonstrate critical ''cultural intelligence'' to industry peers and global partners.

An employer pointed out that the workplace is only one part of the factor—an employee would also need to go home and may have a partner working at a different location without protections and could face any number of other discriminations. One CEO noted where a highly-sought after C-level candidate turned down a very attractive job offer because, although the company was a great fit and provided partner benefits and other protections, the candidate did not feel he would be welcomed in the state and in the community. Potential employees considering work in Florida carefully examine the environment created by the host communities and state.

INTERVIEWS WITH FLORIDA BUSINESS LEADERS

In-depth interviews were conducted with participants representing organizations of varying sizes and sectors, from manufacturing and medical services to Florida's emerging tech sector. They spanned in size of workforce from 18 to 400,000. The interview findings document an overall theme that broad and consistent discrimination protection is a matter of state competitiveness. This is especially evident for critical industries such as technology, tourism, and medical services, and for companies operating or headquartered out of the state while competing within a global market.

For many companies, a culture of non-discrimination fostered and maintained through formal policies is a prerequisite consideration for daily operations and for promoting their own relevancy among global corporate peers who demand their supply chain partners and vendors demonstrate ''cultural intelligence''.

DAMAGED STATE REPUTATION

Leaders provided continual reference to concerns over Florida's negative reputation, especially related to diversity, inclusion, and discrimination at the state-level. Executives link this reputation issue to the loss of highly sought-after candidates, the direct loss of high-potential incumbent talent, and hesitancy of large global partners considering acquisitions or including Florida companies as supply chain partners, often in a global arena.

Executives noted that when identifying their companies as operating within or headquartered in Florida, responses of industry peers, potential partners, or clients will often be negative and even express doubt about the value and validity of the company itself. Executives linked these responses directly to negative perceptions of Florida's brand as ''backwards'' and not promoting diversity of ideas and cultures.

Participants repeatedly noted that they had to exert deliberate effort to ''overcome'' negative reputational issues related with being headquartered or having major operations within Florida. On one account, a company headquartered in a major metropolitan area in Florida noted that their largest competitor (based out of California) had raised questions about how ''good your talent could actually be'' because they are living and working in Florida ''where basic human protections are either not provided or fought against.''

AN ECONOMIC DEVELOPMENT IMPERATIVE

Seventy-five percent (75%) of the participants noted plans to expand in the coming 36 months. Several reported that relocation or expansion decisions were made in favor of a location with a public policy climate that promoted diversity and non-discrimination for the LGBT community.

MILLENNIAL EXPECTATIONS

The executives suggest that Millennials are flocking to workplaces where they believe their values are reflected, and suggest

they want a company culture that ''treats all people fairly.'' Meanwhile, leaders report hearing frequent expressions of frustration and confusion by highly-sought younger workers at why ''some older people'' make a ''big deal'' out of non-discrimination (in and outside of the workplace) or speak actively about LGBT issues in negative, cautionary, or bigoted tones. Competing for talent, particularly for members of the Millennial generation now entering the workforce, makes inclusion and diversity a requisite.

SUPPORTING DISCRIMINATION PROTECTION IS STATUS QUO

Executives suggest that the ''battle is over'' in corporate America and the boardroom. Supporting discrimination protection is status quo for large companies and for most medium-sized firms, and a requirement for competition in many cases. Business leaders felt their competitive positioning efforts were ''undercut'' by negative or absent external public policies in local markets and inaction at the state level to support business needs. Some suggested the need for state action to address these issues and eradicate both the negative perceptions of the state and cultural landscape.

COMPLIANCE THROUGHOUT SUPPLY CHAINS

Failing to represent the presence and authentic implementation of a non-discrimination policy can result in real, hard loss of revenue from global clients and partners as well as significant damage to brand reputation.

A PREREQUISITE FOR BUSINESS

For companies to compete for business, they must both have and evidence non-discrimination policies and culture. Another element relates to softer aspects of brand reputation and acceptance among industry peer groups. Leaders express ''reputation'' as extremely delicate and important, especially in the early stages of competitive opportunities.

PUBLIC SUPPORT AND LEGISLATIVE EFFECTIVENESS

Public opinion in Florida supports the passage of legal protections from workplace discrimination for LGBT people. Survey results found that 73% of respondents supported passage of this legislation that would have added protections from sexual orientation and gender identity discrimination to existing state law. Three sources of public opinion data indicate that 80% of Florida residents think that LGBT people experience a moderate amount to a lot of discrimination in the state.

The study also shows evidence of the effectiveness of state legislation. Evidence from states with sexual orientation non-discrimination laws indicates that the likelihood of a gay or lesbian employee in those areas even filing a legal complaint is estimated at only 0.01 to 0.08 percent annually.

TRIBUTE TO SIMON PETER WORDEN, BRIG.GEN., USAF, RET.

HON. ANNA G. ESHOO

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 14, 2015

Ms. ESHOO. Mr. Speaker, I rise today to honor Simon Peter ''Pete'' Worden as he retires from NASA Ames Research Center at Moffett Field, California as Director.

Pete Worden was born in 1949 in Michigan. He earned his BS degree from the University of Michigan and his Ph.D. in astronomy from the University of Arizona. He was commissioned a Second Lieutenant in the United States Air Force on May 1, 1971, and rose through the ranks to become Brigadier General in September, 2000. He retired from active duty in May, 2004. While on active duty he served in many critical positions, including serving as an advisor in the Executive Office of the President. At the time of his retirement he was Director of Development and Transformation, Space and Missile Systems Center, Air Force Space Command, Los Angeles Air Force Base, California.

After retirement from the Air Force, Pete Worden was a Research Professor of Astronomy, Optical Sciences and Planetary Sciences at the University of Arizona and was a consultant to the Defense Advanced Research Projects Agency.

In May, 2006, Pete Worden became Director of NASA Ames, where he served with great distinction. During his tenure at NASA Ames many small, low-cost satellites were launched and new thrusts in quantum computing were made. Pete can be rightly proud of the revitalization of space biology and the development of synthetic biology, and of Ames' work on the International Space Station.

I had the opportunity and privilege to work closely with Pete Worden and I know him to be a gracious man of brilliance and integrity. He worked with me and GSA on a competitive bid process that resulted in the selection of Planetary Ventures, LLC as the lessee to restore historic Hangar One and the management of Moffett Federal Airfield. Because of this work, Moffett Federal Airfield will remain a federal facility, managed under a public-private partnership. This Silicon Valley hub for disaster preparedness will be maintained and available as needed for federal purposes and significant taxpayer dollars will be saved.

Mr. Speaker, I ask the entire House to join me in honoring Pete Worden for his extraordinary service to our country which has made us a stronger, better nation.

REMEMBERING WAYNE PROUSE

HON. BRIAN BABIN

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 14, 2015

Mr. BABIN. Mr. Speaker, I rise today to honor a great man and a friend, Wayne Prouse. Wayne passed away on Friday, April 3, 2015 at the age of 69.

Wayne was an amazing man who shared his love of history and our country with thousands of students over a period of thirty-five years as a teacher in Orange County, Texas. Wayne's passion for history left a lasting impression on all of those he taught and he is remembered by many for his integrity and honor, qualities he strived to instill into his own students as well. He is fondly remembered by many former students whom he sponsored on trips to our nation's capital where he introduced them to the memorials celebrating the lives and achievements of our founding fathers. Wayne always taught with two goals in mind—to promote the ideals of American democracy and civic responsibility among all of his students.

Wayne's service to his community didn't end in the classroom. He proudly shared his love of history by serving on the Orange County Historical Association and as an active member of the Sons of Confederate Veterans, traveling around the country reenacting famous battles. Wayne also served passionately on the board of directors for the Salvation Army, Orange County Retired Teachers Association, Texas Horseshoe Pitchers Association, and as parliamentarian for the Orange County Republican Party.

I had the pleasure of getting to know Wayne as an important member of my staff who served the constituents of our district faithfully. Most notably, Wayne was responsible for our Veteran's Video program where he interviewed combat veterans and later filed DVDs of those interviews with the Library of Congress, where they will remain as important reminders of the service and sacrifices of these brave men and women for generations to come.

My prayers and deepest condolences go out to Wayne's wife, Andrea, his son, Brandon and his grandson, Landon. Wayne will be sorely missed by my staff, our community, and his former students, but his passion for history and the valuable lessons he taught will certainly live on.

HONORING THE PASSING OF MR. KENDALL FRANKLIN ROWE SR.

HON. ROBERT J. WITTMAN

OF VIRGINIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 14, 2015

Mr. WITTMAN. Mr. Speaker, I would like to recognize the passing of Mr. Kendall Franklin Rowe Sr., of Montross and Richmond. Mr. Rowe passed away peacefully on March 3, 2015. He is survived by his wife; Phyllis G. Rowe, and his children; Kendall F. Rowe Jr., Brenda Rowe Murray, Rebecca R. Graf and his grandchildren, as well as his sister Eleanor R. West. Mr. Rowe was a loving father, grandfather, and family man. Mr. Rowe was also a loyal patriot who served in the U.S. Army as well as the U.S. Coast Guard Auxiliary. Mr. Rowe will be dearly missed by his family and friends.

CONGRATULATING SARA McDONALD

HON. ADAM KINZINGER

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 14, 2015

Mr. KINZINGER of Illinois. Mr. Speaker, I rise today to honor Sara McDonald, who was named Elementary School Principal of the Year by the Illinois Principals Association on March 5, 2015.

Elementary school represents a vital moment in a child's education, and hardworking, dedicated educators, like Sara McDonald, are crucial to molding curious students into lifelong learners. As principal of Northview Elementary School, in Peru, Illinois, Mrs. McDonald has continually demonstrated her passion for education and her commitment to serving students. She serves not only as a leader of

her team of teachers, administrators, and support staff, but also an example of the importance of continual education and self-improvement. Mrs. McDonald has continued her education with additional training on the Kindergarten Development Survey (KIDS), Comprehensive Literacy Model (CLM), and the Danielson Model on Teacher Evaluations, in addition to serving as the Bi-lingual Coordinator and primary grant writer for her school.

As the son of a public school teacher, I know the importance of having passionate and creative teachers in the classroom who are able to educate the next generation of Americans. For that reason, I am honored to join with the nearly 5,000 principals and education leaders of the Illinois Principals Association and the students and staff of Northview Elementary to honor Mrs. McDonald's many accomplishments, and to congratulate her on being named Elementary School Principal of the Year.

Mr. Speaker, on behalf of the 16th District of Illinois, I wish to express our sincere thanks for all of the hard work Mrs. McDonald has done for our students and the Peru community. I congratulate her on this well-deserved recognition.

IN REMEMBRANCE OF DARREN E. RUSSELL

HON. BRAD SHERMAN

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 14, 2015

Mr. SHERMAN. Mr. Speaker, I rise today to recognize the tenth anniversary of the death of Mr. Darren E. Russell, the son of my constituent, Ms. Maxine Russell.

In 2005, at the time of Mr. Russell's untimely death, many young U.S. citizens were employed as language instructors in China, due to increased demand for English language skills in connection with the upcoming 2008 Beijing Olympics. Like many Americans, Darren sought out this opportunity to work in a different culture, and to improve ties between the United States and the people of China.

Darren was loved by his students, who gave him a Chinese nickname that translates to ''White Rabbit.'' While he enjoyed teaching his students, his relationship with his employer was not good. He was reportedly required to work seven days a week, and was subjected to substandard working conditions by his employing school, the Decai English Language Institute. His employers seized and held his travel documents, including his passport.

Further, his employing school had failed to obtain the proper work documentation for Mr. Russell, making him essentially an illegal alien in the eyes of Chinese authorities. When Mr. Russell expressed concern about his working conditions, he was removed from his employer-provided apartment and placed in virtual detention by his employers at the Cathay Hotel in Guangzhou. While there, Mr. Russell was robbed, and he therefore lacked the financial means to arrange for his departure.

In a recorded message on his father's cell phone a few hours before his death, which was deemed a hit-and-run accident by local authorities, Mr. Russell expressed grave concern for his personal safety. He sought urgent assistance from his family and the U.S. Consulate in order to return to the United States.

These circumstances raised suspicion that foul play was involved in his death. A subsequent autopsy was conducted by a board-certified pathologist in Los Angeles, California, in March of 2007. The pathologist concluded that Mr. Russell was murdered by blunt force trauma to the head; his injuries were found inconsistent with a motor vehicle accident by the pathologist.

Darren's mother has spent the ten years since April 14, 2005 seeking justice for Darren and the truth about what happened that day. She continues to seek information about the circumstances leading up to his death, and the inability of U.S. officials to render effective assistance to Darren after his pleas for help.

Darren is remembered by those who knew him as a caring and effective teacher, someone who tried to build bridges between the American and the Chinese people. I hope that both the U.S. and Chinese governments will assist his mother's efforts to determine what happened to her son ten years ago this week.

EQUAL PAY DAY 2015

HON. MICHAEL M. HONDA

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 14, 2015

Mr. HONDA. Mr. Speaker, I rise today to recognize April 14th as Equal Pay Day 2015.

April 14th is not a random date of the calendar; today marks how far into the year 2015 a woman must work until her earnings for 2014 and these additional months match what a man earned in 2014 alone.

In my home state of California, for every dollar a man makes, women still make just 84 cents. The gender wage gap is even greater for women of color. It is unconscionable that 52 years after President John F. Kennedy signed the Equal Pay Act, which established the principle of equal pay for equal work for women in the workforce, we still have such great gender-based pay disparities. This is harmful to our families and America's global competitiveness.

That is why I strongly support the Paycheck Fairness Act, legislation which would strengthen the 1963 Equal Pay Act and provide effective remedies to women who are not being paid equal wages for doing equal work. It is time for Congress to pass the Paycheck Fairness Act. I am also proud to support the Equal Pay Resolution, which recognizes the significance of Equal Pay Day to illustrate the disparity between wages paid to men and women, and its impact on women, families, and the nation.

Equal pay is not simply a women's issue—it is an economic issue. When women are paid fairly, families and businesses prosper. When families and businesses prosper, America prospers.

HONORING MAYOR CLINT COBBINS

HON. BENNIE G. THOMPSON

OF MISSISSIPPI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 14, 2015

Mr. THOMPSON of Mississippi. Mr. Speaker, I rise today to honor a remarkable public servant, Mayor Clint Cobbins.

The Honorable Mayor Clint Cobbins is the first African-American mayor of Lexington, Mississippi, the county seat for Holmes County.

A Holmes County native, Mayor Cobbins is the seventh of eight children born to Mr. Lee Henry Cobbins and Mrs. Willie Lee Cobbins. Mayor Cobbins grew up in the Ebenezer Community. He is a 1974 graduate of the former Lexington Attendance Center (LAC). He also attended Holmes Community College in Goodman, Mississippi, where he received training as an Emergency Medical Technician (EMT).

In 1983, he became a certified firefighter from the Mississippi State Fire Academy. In 1987, he completed his Law Enforcement Training through the Law Enforcement Academy in Pearl, Mississippi. He served in Law Enforcement for twenty-four and a half years. He retired as Police Chief of Tchula, Mississippi. Mr. Cobbins also held a dual career as an Assistant Fire Chief for the City of Canton, Mississippi where he served for twenty-eight and a half years. In 2004, he became an ordained Elder with the Guiding Light Church of God in Christ, Lexington, Mississippi.

Since becoming Lexington's first African-American Mayor in 2012, he has been instrumental in the renovation facelift of the downtown Lexington area—completing the sidewalk project. He worked with the North Central Planning Board to restart the feeding program for senior citizens, which serves over 50 hot meals per day at the Multi-purpose Building. He also continued the Mayor's Health Council program for senior citizens.

During the summer of 2014, Mayor Cobbins held, in collaboration with Madison County Sheriff's Explorers Program, a Fire and Police Academy Safety camp for Holmes County youth ages 6 to 14, in which 102 graduated from the camp. He plans to do another camp during the summer of 2015. ''We have to keep our young people busy doing something constructive during the summer months. It will help them to stay out of trouble,'' the Mayor said.

Also during 2014, he and the Aldermen of the City of Lexington, along with the Board of Supervisors of Leflore County collaborated with the Community Students Learning Center (CSLC) in securing a recent $495,000.00 grant from the Federal Home Loan Bank (FHLB) of Dallas and BankPlus of Mississippi to do housing repairs in the City of Lexington and in Greenwood.

Mayor Cobbins and the City Board of Aldermen have also voted to work toward making Lexington a Smoke-Free City. That work is currently in progress.

Mayor Cobbins and his wife are also local business owners of Kay's Sugar Shack—a short order food business.

Mayor Cobbins is married to Karen J. Cobbins, a native of Pickens, Mississippi, and they are the parents of three adult children.

Mr. Speaker, I ask my colleagues to join me in recognizing Mayor Clint Cobbins for his outstanding services in his community.

INTRODUCTION OF THE INNOVATIVE STORMWATER INFRASTRUCTURE ACT (ISIA) OF 2015

HON. DONNA F. EDWARDS

OF MARYLAND

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 14, 2015

Ms. EDWARDS. Mr. Speaker, a growing threat to water quality throughout the United States (U.S.) is polluted stormwater runoff, flooding, and sewer overflow from highly urbanized areas flowing into surface waters without being treated. This is especially true for Maryland with the Chesapeake Bay and several of its tributaries, including the Anacostia, Patuxent, Potomac, and Severn Rivers that flow through the Fourth Congressional District.

Innovative stormwater solutions, such as permeable pavement, natural drainage swales, and green roofs offer an effective alternative to conventional stormwater infrastructure that has both the flexibility and economic viability to address the challenges of polluted runoff, flooding, and sewer overflows. Unlike traditional stormwater infrastructure, this approach protects, restores, and replicates the natural hydrology of the landscape. Many of these innovative infrastructure practices are more economical, increase property values, and promote jobs to design and implement them.

This week Senator TOM UDALL (D–NM) and I are proud to reintroduce the Innovative Stormwater Infrastructure Act (ISIA) of 2015 to help stem this growing crisis in clean water management issues. The bill would:

Promote the use of innovative stormwater solutions within the Environmental Protection Agency's Office of Water and related programs and provide technical assistance to states, local governments, and the private sector;

Invest in planning, development, and implementation grants for community-based stormwater control projects;

Establish up to five Centers of Excellence in various regions of the U.S. that would conduct research, develop recommendations, and provide training and technical assistance for implementing management practices for stormwater control and management; and

Promote public-private partnerships to create jobs in the design and construction of innovative stormwater control infrastructure.

Our legislation provides an innovative, environmental, and economically cost-effective approach to water management strategies that improve water quality throughout the nation while creating good-paying jobs for the future. The goals are to:

Improve our nation's ability to manage clean water resources, including drinking water;

Increase research and development of innovative green infrastructure techniques;

Create jobs across diverse sectors, such as plumbing, landscaping and engineering;

Save taxpayer money by reducing the amount of water entering treatment plants, keeping energy costs low and prolonging the life of existing conventional water infrastructure; and

Provide environmental and economic benefits to communities, including reduced flooding and energy use, as well as increased community greenspace and property values.

The Innovative Stormwater Infrastructure Act has received broad support from water and environmental organizations, including the National Association of Clean Water Agencies, American Rivers, the American Society of Landscape Architects, Natural Resources Defense Council and the Water Environment Federation.

HONORING THE LIFE AND CONTRIBUTIONS OF CONGRESSMAN BOB KASTENMEIER

HON. JOHN CONYERS, JR.

OF MICHIGAN

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 14, 2015

Mr. CONYERS. Mr. Speaker, I rise today to acknowledge and celebrate the accomplishments of our friend and former colleague, Congressman Bob Kastenmeier, who passed away last week at the age of 91. Congressman Kastenmeier came to Congress in 1959 and was a loyal public servant, honorably representing Wisconsin's 2nd Congressional District for 32 years.

His contribution to the House of Representatives, specifically the House Judiciary Committee, left a huge mark on the State of Wisconsin and the nation.

Congressman Kastenmeier was a lifelong public servant. Prior to being elected to Congress, he served the state of Wisconsin as a Justice of the Peace for Jefferson and Dodge Counties. He was also a member of the United States Army during World War II where he rose to the rank of first lieutenant. However, even though he was willing to fight for the freedom and security of our country, Congressman Kastenmeier understood the horrors of war and courageously took a firm stance against the Vietnam War and the invasion of U.S. military troops in Iraq.

During one of the country's darkest periods, Congressman Kastenmeier was a vocal supporter of the Civil Rights Acts of 1964 and 1968 and the Voting Rights Act of 1965. He fought tirelessly to ensure the equality of all Americans and he led by example through his ability to successfully work with elected officials of all races, genders and political persuasions.

For twenty years, he was the lead Democrat of the Judiciary Committee's Subcommittee on Courts, Intellectual Property, and the Administration of Justice. He authored many important copyright law reforms during that time and was a key sponsor of the Copyright Act of 1976, which remains the foundation of the nation's copyright law. He also led the United States into the community of nations through adherence to the Berne Convention. While a Member of the Judiciary Committee he was also involved in the impeachment hearings for Harry E. Claiborne, a judge for the United States District Court for Nevada, and President Nixon.

Congressman Kastenmeier was a principled and progressive legislator who did not seek attention and was known to vote his conscience. However, his contributions have been recognized nationwide. The United States District Court for the Western District of Wisconsin honored our great colleague by naming the courthouse the ''Robert W. Kastenmeier United States Courthouse.''

Congressman Kastenmeier will be greatly missed, but he has left a legacy that will live forever. I am proud to have served with him and we are eternally grateful for his dedication, knowledge, and integrity. I am also proud that he was my friend.

Our condolences go out to his family and friends around the world.

HONORING PASTOR KENNY FOREMAN

HON. ZOE LOFGREN

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 14, 2015

Ms. LOFGREN. Mr. Speaker, I rise today to honor the life and accomplishments of a distinguished member of my community, and my friend, Pastor Kenny Foreman, upon his 85th birthday, as well as in celebration of the 50th anniversary of his church, Cathedral of Faith. I have had the privilege of knowing Pastor Foreman for many years, and I can personally attest to his lasting legacy of achievement through selfless ministry. His is the epitome of a life dedicated to serving others.

Pastor Kenny Foreman and his beloved wife, Shirley, are leaders and founders of the Cathedral of Faith, one of the most prominent Churches in Santa Clara County. Pastor Foreman's life story is truly one of faith and commitment to his beliefs and his community. Pastor Foreman has been in ministry for over 60 years and has served as pastor of the Cathedral of Faith in San Jose, California for over 35 years.

Born the youngest of three children to Hansel and Mabel Foreman in Crowley, Louisiana, he began traveling the United States full time as an evangelist minister by the age of seventeen. In 1953, Kenny met Shirley, the daughter of Dr. & Mrs. Lowry of Trinity Church in Oakland, California. Pastor Foreman and Shirley Lowry wed in 1957, and ever since have committed their lives to ministry. As newlyweds, Kenny and Shirley Foreman traveled to Kansas City, Missouri in response to their calling and vision to establish a church. Kenny and Shirley spent their honeymoon converting an old theater into a place of worship. Pastor Kenny preached and played the guitar while Shirley played the organ, accordion, and piano. Later, they would be joined by their two sons, Ken and Kurt, who would also become active members of the Cathedral of Faith.

Their work with the Calvary Temple in Louisiana grew to serve a congregation of more than 2,000 persons, becoming one of the largest charismatic churches in the nation.

In 1965, Kenny, Shirley and their two sons, Ken and Kurt, were invited to San Jose, California to conduct a crusade and eventually lead the Friendly Bible Church. Immediately after becoming Pastor of Friendly Bible Church, Pastor Kenny began producing a weekly, half-hour television program entitled, ''Kenny Foreman Presents Abundant Living.'' It was one of the first religious programs in the San Francisco Bay Area and was eventually nationally syndicated. Today, Kenny Foreman is the only local minister and programmer who has remained on the air for over 40 years. Throughout these years, Pastor Foreman has never received any income for his television ministry, and all financial support that his congregation had received was funneled back into the operations of the ministry.

It soon became evident from the growth of the congregation that a church would have to be built. Thus, in 1976, fourteen acres of property were purchased in San Jose, California to house what is now the Cathedral of Faith. It would be a sanctuary that would seat nearly 3,000 people and was conceived in Pastor Foreman's spirit. Eventually, the grand opening of the Cathedral of Faith was celebrated on March 15, 1981. On January 1, 1982, the Cathedral of Faith became the home of The Religious Channel: 24 hours of Christian programming on Gill Cable, the largest cable company in the nation at that time.

The Church has never stopped growing. Even after all these years, Outreach Magazine has named Cathedral of Faith as one of the fastest growing and largest churches in America.

Pastor Foreman and Cathedral of Faith have had an amazing record of community involvement. The work of the church has exploded into over seventy active ministries, including, among many other community outreach programs, ''Reaching Out,'' a food assistance program that operates from a 16,000 foot distribution complex serving 50,000 families annually and providing food for over 200,000 people. The California Department of Agriculture has recognized Reaching Out as one of the most efficient food programs in the state.

The church has also created a program called ''California Youth Outreach'' in order to meet the needs of young men and women that had fallen prey to gangs and drugs; it also serves on the Mayor's gang task force. I recall fondly working with Kenny in the early 1980s as their successful efforts were underway to grow these important services. The Cathedral of Faith also provides child care, early childhood education services, a family life center, a sponsorship program for children in Mozambique, an addiction recovery program, and even a university preparatory academy to prepare a diverse population of 7th–12th grade students in the central San Jose areas and surrounding neighborhoods to enter and excel in the best colleges and universities in the nation.

Kenny has never forgotten his own humble roots, and his life has been filled with joyful, generous, forgiving, and loving service. It is an honor to call Pastor Kenny Foreman a friend, and it is my privilege to honor him and his wife, Shirley, as significant persons in the 19th Congressional District. I would like to take the occasion of Pastor Foreman's 85th birthday and the 50th anniversary of Cathedral of Faith to thank him and his family for their many gifts and contributions to the community of San Jose, and I wish him many more healthy, happy and blessed years.

TRIBUTE TO THE LATE U.S. HOUSE STAFFER, ALYSON ROSE SINGFIELD

JANUARY 24, 1958–APRIL 7, 2015

BELOVED MOTHER, STEPMOTHER, DAUGHTER, GRANDMOTHER, SISTER, AUNT, COUSIN, FRIEND, DEDICATED PUBLIC SERVANT

HON. WM. LACY CLAY

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 14, 2015

Mr. CLAY. Mr. Speaker, I rise today to pay tribute to a remarkable woman, a dedicated public servant who touched the lives of thousands of my constituents, and my life-long friend, the late Alyson Rose Singfield, who died on April 7, 2015 after a courageous battle with breast cancer at the much too young age of 57-years old.

Alyson was the beloved mother of Hope Lynn Stevenson, Tommy Stevenson and Earl Johnson.

She was a caring stepmother.

She was the loving daughter of Rose and the late Waldorf Singfield.

She was a proud grandmother, sister, aunt, cousin and friend to many.

Her death was a huge loss for me, my staff, and for the St. Louis community that Alyson loved and served so well for many years.

As my Community Outreach Director, Alyson brought her immense talent, creativity and dedication to work every day.

She helped create and coordinate outstanding programs like my Congressional Youth Cabinet, the Congressional Art Competition, my Congressional Internship Program and many others.

She was also my personal representative on the Regional Health Commission.

Alyson also served on the Board of Directors of the Betty Jean Kerr People's Health Centers, one of our nation's most outstanding Federally Qualified Health Centers.

My thoughts and prayers are with Alyson's wonderful family and her many friends at this painful hour.

Alyson's legacy of love, service, and her courageous spirit will always remain in our hearts.

She will never be forgotten.

May God bless her with perfect peace and eternal rest, and may he bless all who mourn her with strength, faith and renewed determination to continue the good works that she established.

Mr. Speaker, I urge Members of Congress to join me in honoring the memory of Alyson Rose Singfield for her legacy of duty, honor, integrity, compassion, faith and dedicated service to the citizens of Missouri's 1st Congressional District, the U.S. House of Representatives and the United States of America.

BRIAN RERICH'S ESSAY

HON. PETE OLSON

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 14, 2015

Mr. OLSON. Mr. Speaker, I am privileged to interact with some of the brightest students in the 22nd Congressional District who serve on my Congressional Youth Advisory Council. I have gained much by listening to the high school students who are the future of this great nation. They provide important insight into the concerns of our younger constituents and hopefully get a better sense of the importance of being an active participant in the political process. Many of the students have written short essays on a variety of topics and I am pleased to share them with my House colleagues.

Brian Rerich attends Alvin High School in Alvin, Texas. The essay topic is: in your opinion, what role should government play in our lives?

Government holds a power constitutionally given to those who represent the people, for the people, in order to make decisions on the people's behalf to protect rights of life, liberty, and property as stated by the Founding Fathers. The foundation of all governments are based around the concept of united groups banning together to protect each other or their own property from other groups of the uncivilized, leading to formations of countries with ideologies reflecting the ideas or aggressions on which they were founded regardless of governmental nature.

Philosophically a government's role in everyday life should be to fulfil its duty of creating, and enforcing laws which protect the people and their rights while having their best interests at heart. Government's should also terminate those that violate those rights and laws or cause aggression to the people, given that the punishment is just and fair from prison to military action, even if it is members of the regime that must be terminated. However the government should remain checked and balanced to ensure that it is constantly protecting and representing the people. It is not the government's job to regulate or judge every aspect of a person's life, but to safeguard it, even if it means defending a person from themselves in some cases. As stated in The Declaration of Independence, ''Governments are instituted among Men, deriving their just powers from the consent of the governed, That whenever any Form of Government becomes destructive of these ends, it is the Right of the People to alter or to abolish it, and to institute new Government, laying its foundation on such principles and organizing its powers in such form, as to them shall seem most likely to affect their Safety and Happiness'', the only thing the government is required to do is help the people it governs. The Government has a responsibility just as the people who give it power do. They must protect and serve with integrity and distinction for the betterment of society and humanity. This ensures progression, protection, unity, and equality for all, preserving that which is the fabric of America, as well as what was sewed into it during its founding.

HONORING CHARLES TILLMAN

HON. BENNIE G. THOMPSON

OF MISSISSIPPI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 14, 2015

Mr. THOMPSON of Mississippi. Mr. Speaker, I rise today to honor a remarkable public servant, Mr. Charles Tillman a native of Brookhaven, Mississippi. Mr. Charles Tillman earned his Bachelor's degree in Business Education from Alcorn State University and his Master's degree in Guidance and Counseling from the University of Southern California.

He has more than thirty years of experience in education through his service as the former counselor at Lanier High School, as a former Assistant Principal at Hardy Junior High School and as a former Principal at Rowan Junior High and Brinkley Junior High School.

His contributions to the local community include: the Town Creek Project, Midtown Federal Housing Rehabilitation Program, Midtown Community Service Centers, and a Community Economic Development Grant. He has also served as: President of the Rolling Hills Neighborhood Association, a Habitat for Humanity board member and a 2004 Mississippi Delegate to the Democratic National Convention.

He has served on various committees in the City Council and among the community such as the Mayor's Advisory Committee, Superintendent's Advisory Committee, Keep Jackson Beautiful, and Jackson School Board President. He was formerly the Chairman of the Council's Budget Committee.

Councilman Tillman has been awarded: a pedestrian crosswalk on North Mill Street in his honor, the Boy Scouts of America Seminole District's Principal-of-the-Year Award, Governor's Distinguished Service Award for Outstanding Voluntary Community Service and National Council of Negro Women's Appreciation Award for Outstanding and Dedicated Service.

He was married to the late Issie Patterson and has two children, Vanessa and Randy.

Mr. Speaker, I ask my colleagues to join me in recognizing Councilman Charles Tillman for his dedication in serving.

INTRODUCTION OF THE JAMES ZADROGA 9/11 HEALTH AND COMPENSATION ACT

HON. CAROLYN B. MALONEY

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 14, 2015

Mrs. CAROLYN B. MALONEY of New York. Mr. Speaker, today I'm proud to announce the beginning of our effort to reauthorize and extend the James Zadroga 9/11 Health and Compensation Act, which is providing health care and financial assistance to over 70,000 first-responders and survivors all across the country. These are the 9/11 heroes—the firefighters, the police officers, the EMTs, the volunteers—who came to Ground Zero, the Pentagon, and Shanksville, to sift through the rubble and help their fellow men and women. The clock is ticking for the heroes and survivors of 9/11. In just over 500 days, the programs that help them cope with 9/11 related illnesses will expire.

After 9/11 we made a promise not only to pursue justice against those who attacked us and to rebuild but also to take care of those who were injured in those attacks and the heroes who risked life and limb in the recovery efforts.

Our commitment to ''never forget'' knew no bounds and no party lines when joined in unison on the steps of the Capitol back in 2001. This Congress we must make sure we keep that promise by permanently extending this vital legislation.

The health of those who were there in the aftermath of 9/11 was forever changed. More than 70,000 people in all 50 states and in 429 of the 435 congressional districts have benefited from the World Trade Center and National Health Programs. The September 11th Victim Compensation Fund is helping more than 10,000 people who were made ill by 9/11 and has determined they are eligible for more than $1 billion in economic assistance because of the hardships and the losses they suffered.

So far medical research has identified more than 60 types of cancer caused by 9/11 toxins. Thousands suffer from diseases that don't go away in a year and sometimes don't present themselves for decades. Diseases and injuries that can make it impossible to find and keep work.

Making these programs permanent is the least that we as a grateful nation can do for our heroes and heroines of 9/11. I thank my colleagues Reps. JERROLD NADLER, PETER KING, and the entire New York delegation, as well as other Members from across the country who have committed to working together in this fight for reauthorization.

RECOGNIZING CORPORAL RICHARD VANA FOR ACTIONS DURING WORLD WAR II

HON. ROBERT J. DOLD

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 14, 2015

Mr. DOLD. Mr. Speaker, I am honored to recognize Corporal Richard Vana of the United States Marine Corps. Corporal Vana served during World War II and fought valiantly during the Battle of Okinawa. As a member of the Marine Raiders, Corporal Vana was just one of a small group who survived all 99 days of this bloody campaign.

On June 1, 1945 Corporal Vana was rejoining his company after filling in a defensive position when he came under mortar fire from the Japanese. During this mortar attack, Vana took shelter in a foxhole with another marine. Within moments, a neighboring foxhole was struck by mortar fire, and one of Corporal Vana's comrades was severely wounded. Under constant enemy fire, Corporal Vana and another marine, PFC Stuart Upchurch, helped to rescue the wounded marine and take him to shelter from the enemy. Corporal Vana and PFC Upchurch performed emergency lifesaving medical procedures until a Navy corpsman could provide assistance.

Without the heroic actions of Corporal Vana and PFC Upchurch the wounded marine surely would have died from his wounds. Their lifesaving action upheld the motto of the Marine Corps. The unwavering courage and gallantry Corporal Vana deserves the utmost respect and gratitude. These actions reflect great credit upon Corporal Vana, his unit, the U.S Marine Corps, the U.S. Navy, and the United States of America.

CELEBRATING THE 30TH ANNIVERSARY OF COMMUNITY HOPE

HON. RODNEY P. FRELINGHUYSEN

OF NEW JERSEY

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 14, 2015

Mr. FRELINGHUYSEN. Mr. Speaker, I rise today to honor Community Hope, Inc., located in Parsippany, New Jersey as it celebrates its 30th Anniversary.

Community Hope, a non-profit organization created in 1985, was created by families and mental health professionals who sought to provide a safe haven for young adults who were recovering from debilitating mental illnesses. Today, Community Hope offers housing and essential services to young adults and individuals recovering from mental illness. This non-profit strives to be a model for organizations seeking to assist people suffering from mental illness by implementing a comprehensive housing and support program for these individuals. Community Hope's mission is to support people and their families, including veterans, in combating mental illness, addiction, poverty, and homelessness.

For thirty years Community Hope has offered housing and care for those suffering from mental illness. Community Hope's first therapeutic residence included professional counselors who assisted individuals in successfully transitioning back to communal and familial life after years of psychiatric hospitalization. In 2004, Community Hope proudly opened the largest transitional housing program in New Jersey for homeless veterans.

Over the past fifteen years, Community Hope has vastly expanded its operations. During the course of these fifteen years, Community Hope has increased the number of individuals it assists from 57 to over 400. The nonprofit has also increased its budget by almost $10 million since the year 2000. Originally operating under the name Project Hope, the organization currently inspires hope through its several housing facilities, including the Valley Brook Village at Lyons Veterans Hospital, which assists veterans and individuals at risk of becoming homeless.

Community Hope continues to expand its presence in New Jersey with the goal of assisting as many people recovering from mental illness as possible. In particular, this non-profit launched its multi-year 450 Campaign in 2011. Through this campaign, Community Hope seeks to serve as many as 450 individuals a day who require assistance. The 450 Campaign was so successful that it has transformed into the 1,250 Campaign, with the goal of assisting 1,250 individuals in one calendar year. Community Hope has also expanded its role in helping veterans and their families through the Supportive Services for Veteran Families Program. Community Hope was one of the first organizations to be awarded an SSVF grant to establish this program, and now is the largest SSVF Program in New Jersey.

Community Hope also hosts events to raise awareness about mental health issues and fund its operations. Community Hope's upcoming events include its Flag Day 5k Run and Fun Walk, the 19th Annual Sparkle of Hope Gala, and its Annual Learning Forum and Wellness Fair, which is focused on contemporary living and spirituality.

To celebrate 30 successful years of providing housing and care for individuals with mental illness, Community Hope is hosting its Thirtieth Anniversary Reception on Thursday, April 30th. The reception will be held at the Lowenstein Sandler Reception Center, located at 75 Livingston Avenue in Roseland, New Jersey.

I commend the members of Community Hope, its Board of Trustees and Board of Directors, especially its chief executive officer, J. Michael Armstrong, for their dedication to providing for the welfare of individuals battling mental illness. Community Hope serves as the perfect model for other non-profits seeking to administer these critical services.

Mr. Speaker, I ask you and my colleagues to join me in congratulating Community Hope as it celebrates its 30th Anniversary.

LAUREN HILL—PROFILE IN COURAGE

HON. TED POE

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 14, 2015

Mr. POE of Texas. Mr. Speaker, athlete, student, daughter, friend, fighter and hero—this was Lauren Hill. At just 19 years old, Lauren fought the beast of cancer on the basketball court as the world watched. As everyone scrambled and stressed filling out their March Madness brackets, hoping to have the perfect bracket, Lauren was battling a brain tumor.

Lauren was a freshman basketball player at Mount St. Joseph University in Cincinnati, Ohio. She was a high school student when she was diagnosed with an inoperable brain tumor. But Lauren wasn't going to let a tumor stop her.

She set off to college to achieve her dream: to play on a college court. And of course, she did it.

The NCAA allowed Mount St. Joseph move up its opening game so that Lauren could play.

Xavier University even offered their arena so more people could come watch her shoot some hoops. Tickets to the game sold out in less than an hour. 10,000 people came to watch Lauren doing what she loves—play basketball. Among the 10,000 was legendary Tennessee Women's Basketball Coach Pat Summitt and some notable WNBA players.

Because the tumor had so aggressively attacked the right side of her body, her dominant side, Lauren shot a left-handed layup just 17 seconds into the game. And by no surprise, she made it. But she was not quite done.

She made the last basket of the game. This time, she shot the layup with her right hand. One can only imagine what it was like in the arena that day. The spectators were able to watch such a strong soul and example be able to live her dream in spite of her illness. Tears and smiles filled the arena.

When she wasn't on the court, Lauren worked to raise awareness and money for cancer research through her nonprofit foundation.

She never let the disease define her, because she was Lauren, a college basketball player, who was just doing what she loved. In watching her strength, she has given so many hope—hope that even in the midst of a battle for life, there is faith.

As a father of four kids (three of them being girls), and a grandfather of 11 kids (7 of them being girls), I know how special our girls are. Lauren Hill definitely left an impression not only on her team and school community, but the rest of us as well.

Thank you Lauren, for so selflessly sharing your story with the world. Thank you for inspiring and encouraging all of us.

President Kennedy would have referred to Lauren Hill as a ''profile in courage.''

And that's just the way it is.

PHILLIP PRATER'S ESSAY

HON. PETE OLSON

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 14, 2015

Mr. OLSON. Mr. Speaker, I am privileged to interact with some of the brightest students in the 22nd Congressional District who serve on my Congressional Youth Advisory Council. I have gained much by listening to the high school students who are the future of this great nation. They provide important insight into the concerns of our younger constituents and hopefully get a better sense of the importance of being an active participant in the political process. Many of the students have written short essays on a variety of topics and I am pleased to share them with my House colleagues.

Phillip Prater attends Dawson High School in Pearland, Texas. The essay topic is: in your opinion, why is it important to be involved in the political process?

''OBAMACARE'' . . . one of the most important changes in the history of healthcare reform. Millions of Americans desperately in need of some form of health insurance are going to benefit mainly because individuals got involved in the political process.

The political process reaches far back to when our founding fathers created this great democracy. They instilled during that time that a democratic society is effective only if individuals are given the opportunity to express their concerns and actively participate in the political process.

Laws in government are made that affect our lives each and every day. Some of these laws are positive, yet some are negative. But we have to live by them. However, apathy is contagious. Our democracy could be a stake if we chose to ignore hearing about and participating in the political process. If you don't participate, then you can't and should not complain about an outcome that greatly affects you. Some individuals believe that government has no bearing on our daily lives. But this is farthest from the truth. Government affects every single aspect of our lives.

For example, the Civil Rights Act of 1964 outlawed discrimination based on race, color, religion, sex, or national origin. It also ended unequal application of voter registration requirements and racial segregation in schools. Many thanks to Dr. Martin L. King, Jr. and countless individuals, who marched thru city streets, participated in freedom rides, and some ultimately paying the ultimate sacrifice so that future generations could live and VOTE in a land of opportunity. It also paved the way for other civil rights legislation such as the Americans with Disabilities Act of 1990.

If you're eligible to vote, then vote!!!!!! This is by far the easiest way to get involved in the political process. But pulling the lever also means understanding the issues that candidates are for or against, so that you can make the right vote.

Another way is to write your representative and present your opposing views or disapproval on a topic that you firmly agree on.

Other ways to get and staying involved in the political process are as follows:

Volunteer to help with voter registration drives

Educate voters by developing voter guides

Volunteer to work on a political campaign

Participate in protest rallies and marches

Attend a debate or a town hall meeting

Getting involved in the political process by every individual is critical if our democracy is to continue as the greatest country in the world!!!!

RIEMANN FAMILY FUNERAL HOMES

HON. STEVEN M. PALAZZO

OF MISSISSIPPI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 14, 2015

Mr. PALAZZO. Mr. Speaker, I rise today to honor the Riemann Family Funeral Homes on the occasion of the opening of their Jackson County location. This facility will continue the legacy of service the Riemann family has provided the citizens of the Mississippi Gulf Coast for nearly a century.

In 1920, Ernest and Ruth Riemann moved from Michigan to South Mississippi and purchased Wilder Funeral Homes. They would be proud of the success and growth of their family business.

Today, with locations all along the Mississippi Gulf Coast this new Jackson County location provides the Riemann family another opportunity to compassionately serve their neighbors, friends, and family during life's most difficult times.

The Riemann family is blessed with a dedicated and professional staff that combined has hundreds of years of experience. Like the Riemann family, they are committed to faithfully serving their community.

Once again, I would like to thank the Riemann Family for their four generations of dedicated service to the citizens of the Mississippi Gulf Coast.

BUSINESS ROUNDTABLE 2015 SUSTAINABILITY REPORT ''CREATE, GROW, SUSTAIN: LEADING BY EXAMPLE''

HON. FRED UPTON

OF MICHIGAN

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 14, 2015

Mr. UPTON. Mr. Speaker, it is wholly fitting that I rise today, Earth Day, to call attention to a report that attests to all of the wonderful strides our nation's largest companies are taking in the interest of sustainability—strides taken not in response to government mandates, but because they are good for customers, good for employees, good for the bottom line, and good for the communities in which these companies do business.

Mr. Speaker, for several years Business Roundtable, a fine organization that represents CEOs of more than 200 of the country's largest companies, has released a comprehensive Sustainability Report in conjunction with Earth Day. The companies participating in the report—most of the Roundtable's members—submit considerable information about the many ways in which they are striving to take sustainability to an even higher level.

Some companies have focused on drastically reducing the energy they use or increasing their use of renewable energy. Others have cut their waste production while increasing their commitment to reuse and recycle in ever more innovative ways. Still others have built sustainability into their products and workforce policies. Many have made progress on several fronts at once.

The 2015 edition of the Business Roundtable's Sustainability Report, ''Create, Grow, Sustain: Leading by Example,'' is hot off the presses, and it is a pleasure for me to introduce it into the RECORD today. What is most notable—and impressive—to me is that the CEOs themselves contributed to this report through signed letters. These leaders personally attest to the steps taken by their companies and are justifiably proud of them. What a perfect way to mark this Earth Day.

Beyond that, what is most striking about the long list of accomplishments in the area of sustainability by our nation's largest firms is that for the most part, their actions have been taken not because they were forced to by regulations and legislation but because they were good for the bottom line. We see this happening more and more. Companies are using their ingenuity to reduce their impact on the environment, not because they are threatened with government action, but because they consider solid corporate citizenship, including lessening their environmental footprint, to be a major company value.

Mr. Speaker, I hope our colleagues will take the time to review ''Create, Grow, Sustain: Leading by Example'' so that we all can share with our constituent companies the many lessons that Business Roundtable companies have to offer.

EQUAL PAY DAY

HON. CAROLYN B. MALONEY

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 14, 2015

Mrs. CAROLYN B. MALONEY of New York. Mr. Speaker, today, roughly three months into the New Year, we commemorate Equal Pay Day—the typical time into the year where a woman's wage catches up to what men were paid the previous year. This day symbolizes the blatant and persistent wage gap between men and women. Even in 2015, women earn only 78 cents to every dollar made by a man. It's time to make equal pay not just a nice slogan but a reality for women and families.

Unequal pay is not just a women's issue—it's a family issue. Our country is evolving and more than ever before families rely on income from two parents. In fact, two out of three families now depend on the wages of working moms. Additionally, women are the primary breadwinners in 40 percent of U.S. households. It is a very real consequence that when women are discriminated against in the workplace the entire family struggles. This serves as an urgent reminder why we need to work together to ensure equal pay for equal work.

Women have made remarkable strides in workforce participation and higher education. Today women make up nearly half of all workers as compared to 37 percent in 1970 and receive nearly 60 percent of all bachelor degrees granted in the U.S. Yet, regardless of the level of academic achievement, women's median earnings are still less than men's earnings. Sadly, a recent study by the American Association of University Women found that regardless of a woman's college major, occupation, age, geographic region, hours worked and more there is still an unexplainable seven percent wage gap a year after college graduation.

The gap in wages only grows from there, leaving a disproportionate impact on women and their families throughout the rest of their lives. The Joint Economic Committee found that lower earnings ''can result in smaller private savings to draw upon in retirement, smaller contributions to employer-sponsored retirement plans, smaller Social Security benefits, and smaller paychecks for those women who continue to work later in life.'' The disparity is even more devastating when calculated over a course of a women's career. By the time a woman retires it's estimated that she's lost over $430,000 to the pay gap.

It is important to recognize that women make tremendous contributions to our nation's economy with potential to make even more. It's estimated that greater pay equity between men and women would produce nearly half a trillion dollars of additional income, stimulating our economy by close to three percent of 2012 Gross Domestic Product. Also, by closing the wage gap between men and women we could cut the poverty rate in half, raising an entire nation to a better standard of living.

Paying women their equal share has many implications. It means that we are a nation that stands for equality. That we are choosing to uplift women and families, reduce poverty and boost our economy. That is why I support the Paycheck Fairness Act, which strengthens the Equal Pay Act by closing loopholes and providing effective remedies to women who are not being paid equal wages for doing equal work. I urge my colleagues to pass this important legislation that confronts discrimination in the workplace. It is time for us to prioritize the long-term well-being of our nation's hardworking women and families.

GIRLS OF STEEL

HON. MICHAEL F. DOYLE

OF PENNSYLVANIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 14, 2015

Mr. DOYLE of Pennsylvania. Mr. Speaker, I rise today to commend the Girls of Steel robotics team on winning the Chairman's Award at the 2015 Buckeye Regional FIRST® Robotics Competition in Cleveland, Ohio.

This is the most prestigious award at FIRST and it honors the team that best represents a model for other teams to emulate and best embodies the purpose and goals of FIRST. The Chairman's Award is presented to the team judged to have the most significant measurable impact of its partnerships among its participants and community over a sustained period, not just a single build season. The winner is able to demonstrate progress towards FIRST's mission of transforming our culture. I think that winning this award is a remarkable accomplishment that speaks volumes about the dedication these young women have in pursuing Science, Technology, Engineering, and Math or ''STEM'' careers, along with the hundreds of hours they have spent conducting outreach in the community. They even served to inspire the two female tech characters in the recently released Pixar film, ''Big Hero 6''.

FIRST, which stands for ''For Inspiration and Recognition of Science and Technology,'' is an organization dedicated to engaging students in STEM fields. Hundreds of thousands of students gain practical, team-based engineering experiences through FIRST every year.

As a founder and co-chair of the Congressional Robotics Caucus, I believe competitions like these are valuable tools for helping our young people explore potential careers in STEM. I've witnessed firsthand the incredible economic growth and development that these fields can produce in my district, and I strongly believe that these fields are crucial to our nation's future prosperity. I want to commend organizations like FIRST for their important work in encouraging young people in these pursuits. The FIRST Robotics Competition allows students to apply creativity and critical thinking in the demanding and competitive field of robotics, all while instilling a strong sense of pride in participants.

Fifty young women from 8th through 12th grades associated with schools located in and around the Pittsburgh area are members of this year's Girls of Steel, and in recognition of their hard work, intelligence, and teamwork, I would like to mention each of these aspiring STEM professionals by name. They are Vishi Agrawal, Sonia Appasamy, Isabella Arnone, Arushi Bandi, Emilia Bianchini, Madeline Butch, Tristan Close-Abuyen, Samantha Eppinger, Adelle Fernando, Mackenzie Ferris, Payton Ferris, Marie Gerges, Kyra Halbert-Elliott, Corinne Hartman, Kristina Hilko, Sydney Hnat, Anna Jablonowski, Alaina Kotchey, Greta Lazzara, Jisue Lee, Sophia Lee, Sylvie Lee, Gayathri Manchella, Clara McCormick, Sree Mekala, Cheyenne Meyers, AJ Molder, Hera Mukhtar, Gigi Nieson, Anne Kailin Northam, Maddie Oppelt, Sanam Parwani, Helen Paulini, Sofia Porter Bacon, Priya Ray, Rachel Sadeh, Isabella Salvi, Lauren Scheller-Wolf, Sarah Seay, Alexa Selwood, Kriti Shah, Makayla Shreve, Annika Urban, Molly Urbina, Becca Volk, Mhairi Webster, Ziya Xu, Alayna Yates, Julia Young, and Natalie Young.

In addition, I want to commend the staff of Carnegie Mellon University's Field Robotics Center, who have mentored the Girls of Steel since 2010. As a result of their efforts, more young women can experience real-world technological challenges and learn from some of the nation's best at solving these problems. These experiences will certainly benefit these young women in the future.

I look forward to hearing about their progress as they advance to the FIRST Championship in St. Louis—the final and largest competition of its kind. This will be their fifth consecutive trip in five years and they will be competing against top teams from all over

the world. I congratulate the Girls of Steel and wish them all continued success in their academic and professional endeavors.

CONGRATULATING ZACH JOHNSON

HON. ROD BLUM

OF IOWA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 14, 2015

Mr. BLUM. Mr. Speaker, I rise today to congratulate Zach Johnson, a Cedar Rapids, Iowa native, on his 9th place tie the 2015 Masters Tournament held at Augusta National Golf Club in Augusta, Georgia.

Zach Johnson attended Regis High School, lettering on the varsity golf team. The 2007 Masters Champion made the cut at even par after the first two rounds. He followed up on Saturday and Sunday with back to back 68 stroke rounds to finish with a final score of −8, his lowest ever final score at Augusta.

I also wish to commend him for his community service and charity work. Founded in 2005 by Johnson and his wife Kim, The Zach Johnson Foundation through the ''Birdies that Care'' program has raised over $800,000 for organizations that serve at-need children in the Cedar Rapids area. In the golfer's own words: ''This Foundation will fulfill a dream of mine and Kim's to give back to Cedar Rapids in a long-lasting, meaningful way.''

I would like to extend my sincerest congratulations to Zach Johnson on his successful 2015 Masters and would like to recognize him for giving back to his community. I look forward to cheering on a fellow Iowan during the rest of the tournaments this summer.

HONORING ERIC HUBER

HON. JASON SMITH

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 14, 2015

Mr. SMITH of Missouri. Mr. Speaker, I rise today to honor Eric Huber of Fredericktown, Missouri, for his outstanding achievement of receiving his Eagle Scout Award. This award is not easily attained and cannot be achieved without a steadfast determination to succeed.

In order to receive this award, Eric completed several steps and a service project exemplifying patriotism and his commitment to serve others. He first worked as an assistant scout master with Troop 408 Scout Master Ken Braun. He also constructed and installed four benches along the hiking trail at Amidon Memorial Conservation Area for his service project. The Missouri Department of Conservation was grateful to Eric, his Scout troop and the volunteers for their contribution to the Amidon Memorial Conservation Area because it will benefit Missouri residents for years to come.

At a young age Eric has shown values such as honesty, loyalty, and civility that inspire others. He has shown commitment to good citizenship, physical fitness, and education and he has made himself an asset to our community, as well as the nation. Eric is a role model for young and old alike, and it is my pleasure to recognize his achievements before the House of Representatives.

HONORING ALPHA KAPPA ALPHA'S TWENTY PEARLS OF WISDOM

HON. BENNIE G. THOMPSON

OF MISSISSIPPI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 14, 2015

Mr. THOMPSON of Mississippi. Mr. Speaker, I rise today to honor a group of women who have shown what can be done through hard work, dedication and a desire to serve their community, Alpha Kappa Alpha's Twenty Pearls of Wisdom. The Alpha Kappa Alpha's Twenty Pearls of Wisdom has served the Yazoo County community and the State of Mississippi through informational meetings, social and civic engagement.

On October 26, 2013, Alpha Kappa Alpha's Twenty Pearls of Wisdom were approved as an official interest group under the leadership of the 24th Regional Director, Adrienne P.K. Washington. Under the leadership of the current Regional Director, Mary Conner, Alpha Kappa Alpha's Twenty Pearls of Wisdom chartering ceremony is slated for May 16, 2015. It is during this ceremony that they will learn of their Chapter's name.

Launching new dimensions of service throughout Yazoo County and its surrounding area, Mississippi's newest chapter of Alpha Kappa Alpha shall continue steadfastly in its aim to be of service to all mankind as they strive by culture and merit. Energizing Yazoo County and its surrounding areas with C4 power, enabling members to connect, communicate, collaborate, and celebrate.

Alpha Kappa Alpha's Twenty Pearls of Wisdom members actively participate in Yazoo and surrounding communities through annual: MLK Day of Service; Voter Registration Blitz; HIV/AIDs Abstinence Workshop; Lean & Serve Curb Appeal; Scholarship Award (Yazoo & Humphreys Counties; Warm Heart Warm Feet; Lunch & Learn; MCT2 Preparation; School Supply Drive; Easter with Elders; Reading Can Be Fun; Kids Network Toy; Empowering Teen Girls; College Adoption; Breast Cancer Awareness—Pink Matters 5 Mile Walk; Caring with Coats—Esther Stewart Buford Foundation; MLK Day of Service Can Food Drive; Yazoo City Manna House; Earth Day—Think Pink-Go-Green; A Day of Thanksgiving H.A. Scott Senior Citizen Home; and Pink Goes Red for Cardiovascular Disease.

Mr. Speaker, I ask my colleagues to join me in recognizing the Alpha Kappa Alpha's Twenty Pearls of Wisdom for its dedication to serving others, giving back to the community and perpetuating the rich heritage of Yazoo.

A TRIBUTE TO JEREMY WEISS

HON. DAVID YOUNG

OF IOWA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 14, 2015

Mr. YOUNG of Iowa. Mr. Speaker, I rise today to congratulate and recognize Jeremy Weiss for being named a 2015 Forty Under 40 honoree by the award-winning central Iowa publication, Business Record.

Since 2000, Business Record has undertaken an exhaustive annual review to identify a standout group of young leaders in the Greater Des Moines Area that are making an impact in their communities and their careers. Each year forty up-and-coming community and business leaders under 40 years of age are selected for this prestigious honor based on the combined criteria of community involvement and success in their chosen career field. The 2015 class of Forty Under 40 honorees will join an impressive roster of 560 business leaders and growing.

Jeremy has the determination and drive to be successful in all of his pursuits, which is highlighted by his exemplary work at Sogeti USA, LLC. As a management consultant, Jeremy focuses on transforming business operations to improve their overall effectiveness and efficiency. Jeremy spends his free time serving others by volunteering at the American Red Cross, Big Brothers Big Sisters of Central Iowa and Greater Des Moines Habitat for Humanity—just to name a few. Jeremy's outstanding work ethic and dedication to service, both professionally and personally, makes our state proud.

Mr. Speaker, it is a profound honor to represent leaders like Jeremy in the United States Congress and it is with great pride that I recognize and applaud him for utilizing his talents to better both his community and the great state of Iowa. I invite my colleagues in the House to join me in congratulating Jeremy on receiving this esteemed designation, thanking those at Business Record for their great work and wishing each member of the 2015 Forty Under 40 class a long and successful career.

CONGRATULATING HUMAN SERVICES ASSOCIATION ON THEIR 75TH ANNIVERSARY

HON. LUCILLE ROYBAL-ALLARD

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 14, 2015

Ms. ROYBAL-ALLARD. Mr. Speaker, I rise today to congratulate Human Services Association, a non-profit organization based in my 40th Congressional District, on the celebration of their 75th anniversary.

Human Services Association (HSA) was founded as an outreach effort of the Presbyterian Church in 1940, when floods in Southeast Los Angeles County highlighted pre-existing poverty in Bell Gardens and surrounding cities. While HSA remains affiliated with the Presbyterian Church today, all of HSA's services have been administered on a non-sectarian basis since 1975.

Over time, HSA's services have evolved to meet the needs of the community. In HSA's early years, it operated under the name Westminster Center, and focused on recreation programs and group work. It later changed its name to Bell Gardens Community Center, and became a multifunctional social service agency. Its staff and volunteers provided direct services, and it collaborated with other agencies to provide additional services on-site. In 1974–1975, the organization envisioned expanding its human services into the cities of Southeast Los Angeles by increasing its services and funding capacity. As a result, the organization incorporated, and it adopted the name Human Services Association. Today, HSA is the largest community-based nonprofit organization in Southeast Los Angeles, and

provides clients throughout Los Angeles County with an array of comprehensive services to support individuals throughout their lives.

HSA's programs and services for children and families include: Early Head Start; Head Start; State Preschool; Los Angeles Universal Preschool; Parenting Classes; Child Abuse Prevention & Intervention; Domestic Violence Support Services; Choose Health LA Kids, an early childhood obesity prevention initiative focusing on children ages 0–5 and their families; and a Family Preservation Program designed to protect children by strengthening and preserving families whose children are at risk of abuse, neglect, and exploitation.

HSA's services for seniors include: the Congregate Meals Program, which provides a hot, nutritionally balanced meal to seniors five days a week, as well as social activities at the meal sites; the Home Delivered Meals Program, which offers homebound seniors a daily hot meal and a friendly, reassuring visit; the Home Based Care & Registry Referral Program, which matches workers with senior citizens aged 60 and over who need assistance in the home; and the Alzheimer's Day Care Resource Center (ADCRC), which allows memory-impaired and/or socially isolated senior citizens to spend their days in a caring, supportive environment, and provides English and Spanish support groups to the family members of the participating seniors.

Mr. Speaker, it is with great pleasure and pride that I salute Human Services Association, its Board of Directors, and its supporters. They have played a vital role in providing critical services to Southeast Los Angeles families over the past seventy-five years. I wish HSA continued success as it continues its mission to provide families with compassionate and comprehensive care which promotes wellness and builds strong communities.

A TRIBUTE TO BRENT WILLETT

HON. DAVID YOUNG

OF IOWA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 14, 2015

Mr. YOUNG of Iowa. Mr. Speaker, I rise today to congratulate and recognize Brent Willett for being named a 2015 Forty Under 40 honoree by the award-winning central Iowa publication, Business Record.

Since 2000, Business Record has undertaken an exhaustive annual review to identify a standout group of young leaders in the Greater Des Moines Area that are making an impact in their communities and their careers. Each year, forty up-and-coming community and business leaders under 40 years of age are selected for this prestigious honor based on the combined criteria of community involvement and success in their chosen career field. The 2015 class of Forty Under 40 honorees will join an impressive roster of 560 business leaders and growing.

Brent has the determination and drive to be successful in all of his pursuits, which is highlighted by his exemplary work at Cultivation Corridor. As Executive Director, Brent utilizes his communication skills to attract business to Iowa and to help expand existing businesses. Brent spends his free time serving others by volunteering as a one-on-one mentor at Capitol View Elementary School and by helping an emergency food pantry organize its food drives. Brent's outstanding work ethic and dedication to service, both professionally and personally, makes our state proud.

Mr. Speaker, it is a profound honor to represent leaders like Brent in the United States Congress and it is with great pride that I recognize and applaud him for utilizing his talents to better both his community and the great state of Iowa. I invite my colleagues in the House to join me in congratulating Brent on receiving this esteemed designation, thanking those at Business Record for their great work and wishing each member of the 2015 Forty Under 40 class a long and successful career.

A TRIBUTE TO THE EARLHAM HIGH SCHOOL BOYS BASKETBALL TEAM

HON. DAVID YOUNG

OF IOWA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 14, 2015

Mr. YOUNG of Iowa. Mr. Speaker, I rise today to recognize and congratulate the Earlham High School Boys Basketball team for qualifying for the Iowa Boys State Basketball Tournament for the first time in their school's history. The Earlham team placed third in the tournament.

The roster was led by Canyon Hopkins, named to the Class 1A All-Tournament Team, but Earlham had many outstanding players. Congratulations to: Dan Schmidt, Alan Schmidt, Zach Schreck, Derek Hensley, Ben Williamson, Micah Bailey, Grant Detrick, Andy Algreen, Josh Smith, A.J. LePorte, Gable Johnson, Joey Harkins, Drew Williamson and Mason Madren on a great season. This team also had two dedicated managers. T. J. Harkins and Dominic Braet who also deserve recognition.

The team was led by Coach Kevin Williamson and Assistant Coaches James Severson and Tim Harskamp. Coach Williamson also received the Class 1A Coach of the Year Award.

Mr. Speaker, the example set by these students and coaches demonstrates that hard work, dedication, and perseverance deliver results. I am honored to represent them in the United States Congress. I know all of my colleagues in the House join me in congratulating the Earlham High School Boys Basketball team on their accomplishments this year. I wish continued success to this team and school in the future.

CONCURRENT RESOLUTION ON THE BUDGET FOR FISCAL YEAR 2016

SPEECH OF

HON. JOYCE BEATTY

OF OHIO

IN THE HOUSE OF REPRESENTATIVES

Wednesday, March 25, 2015

The House in Committee of the Whole House on the state of the Union had under consideration the concurrent resolution (H. Con. Res. 27) establishing the budget for the United States Government for fiscal year 2016 and setting forth appropriate budgetary levels for fiscal years 2017 through 2025:

Mrs. BEATTY. Mr. Chair, I support the CBC Alternative Budget for Fiscal Year 2016.

As has been highlighted during today's debate, the Federal budget is a blueprint for our nation. It is a statement of our national priorities and of our national values.

Our budget should lay the groundwork to secure a strong middle class, create more jobs, and grow paychecks.

We should be working to create a level playing field for all Americans.

We cannot continue with these short-term fixes which lately have become all too common in Congress.

For instance, in May, the Highway Trust Fund is set to expire—again.

Yet, more than sixty-five percent of America's roads are in need of repair and the American Society of Civil Engineers has given our nation's infrastructure a D in its most recent report card.

We could be creating thousands of jobs—from real estate to construction work—if we got serious about investing in infrastructure.

As the conscious of the Congress. The CBC budget focuses on creating jobs and giving hard-working Americans families a fair-share.

Our CBC budget would provide $230 billion for our nation's infrastructure—providing an immediate investment to help modernize our roads, bridges, and tunnels, as well as providing dollars to build new and improve existing commuter and public transportation systems.

We cannot delay or rely on short term funding patches that seem to become the norm in this Republican led Congress.

Mr. Chair, when we rebuild our roads and modernize our nation's transportation, we create and maintain good-paying jobs.

That's the best investment we can make of taxpayer dollars. Not only do we keep Americans safe, but we invest in our greatest resource—the American worker. That's what I call a bang for your buck.

A TRIBUTE TO VERA DAUGHTON

HON. DAVID YOUNG

OF IOWA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 14, 2015

Mr. YOUNG of Iowa. Mr. Speaker, I rise today to recognize and congratulate Vera Daughton on the celebration of her 100th birthday. Vera celebrated her 100th birthday on April 5th, 2015.

Our world has changed a great deal during the course of Vera's life. Since her birth, we have revolutionized air travel and walked on the moon. We have invented the television, cellular phones and the internet. We have fought in wars overseas, seen the rise and fall of Soviet communism and witnessed the birth of new democracies. Vera has lived through seventeen United States Presidents and twenty-four Governors of Iowa. In her lifetime, the population of the United States has more than tripled.

Mr. Speaker, it is an honor to represent Vera in the United States Congress and it is my pleasure to wish her a very happy 100th birthday. I invite my colleagues in the House

to join me in congratulating Vera on reaching this incredible milestone, and wishing her even more health and happiness in the years to come.

EQUAL PAY DAY: TIME TO CLOSE THE WAGE GAP

HON. CHRISTOPHER H. SMITH

OF NEW JERSEY

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 14, 2015

Mr. SMITH of New Jersey. Mr. Speaker, I rise today to recognize Equal Pay Day and call for long overdue passage of legislation to strengthen the Equal Pay Act.

According to the American Association of University Women, women in my state of New Jersey have a wage gap of 80 percent—for every dollar men in New Jersey make, women make only 80 cents. Nationally, it's 78 cents.

All told, over the lifetime of work, college educated women will lose an estimated $1.2 million as a result of the pay gap.

The wage gap is not just a women's issue, it's a family issue. Four in 10 American households with children now include a mother who is either the sole or primary earner for her family. Closing the wage gap would allow women to invest more in their children's health and wellbeing and help boost economic stability and security for American families.

As a remedy, I twice supported the Lilly Ledbetter Fair Pay Act, now Public Law 111–2. By overturning the United States Supreme Court decision in Ledbetter v. Goodyear Tire and Rubber, we restored and enhanced both the protections against pay discrimination in the workplace and the remedies available for women who have been discriminated against.

While the Ledbetter law was a clear step in the right direction, the numbers demonstrate how much more work we as a society have to do.

Today, I signed on as a cosponsor of the Paycheck Fairness Act—legislation I have previously supported twice when it was brought to the floor of the House for a vote.

The Paycheck Fairness Act would increase penalties for employers who pay different wages to men and women for equal work, create a grant program for negotiation skills training for women and girls, and increase training and outreach to ensure effective implementation.

This legislation would build on the Equal Pay Act and the Ledbetter law by disincentivizing pay discrimination and encouraging employers to enforce equal pay for equal work.

Mr. Speaker, based on data between 2003 and 2013, AAUW predicts that if current trends continue, the wage gap will not close for 124 years.

Over 50 years after the signing of the Equal Pay Act, we are still more than a century away from equal pay.

The Paycheck Fairness Act is necessary to reverse the current trajectory and help accelerate progress to our shared goal of equal work for equal pay.

A TRIBUTE TO CAMERON MICKAEL

HON. DAVID YOUNG

OF IOWA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 14, 2015

Mr. YOUNG of Iowa. Mr. Speaker, I rise today to recognize and honor the heroic actions of sixth-grader, Cameron Mickael of Mount Ayr, Iowa.

On a recent Sunday night, Cameron was eating dinner with his mother, Cindy, and Grandfather Charles, when a piece of food became lodged in his grandfather's throat. Charles was trying to apply the Heimlich to himself with no success. It was then that Cameron stepped in. Cameron jumped up, grabbed his grandfather and performed the Heimlich. Charles credits Cameron with saving his life.

Mr. Speaker, it is a great honor to represent future leaders like Cameron Mickael in the United States Congress and it is with great pride that I applaud his lifesaving effort today. I invite my colleagues in the House to join me in congratulating Cameron, thanking him for a job well done, and wishing him a bright future.

A TRIBUTE TO JAMES HARDY

HON. DAVID YOUNG

OF IOWA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 14, 2015

Mr. YOUNG of Iowa. Mr. Speaker, I rise today to honor James Hardy, history teacher at East Union School. Mr. Hardy received the Gilder Lehrman Iowa History Teacher of the Year award.

This award, sponsored by Gilder Lehrman Institute of American History, recognizes outstanding American history teachers who possess a strong commitment to teaching American history and who exhibit creativity and imagination in the classroom. Each year, the Institute enhances the education of more than a million students by offering support and resources to tens of thousands of teachers. The Institute's programs have been recognized by awards from the White House, the National Endowment for the Humanities, and the Organization of American Historians.

I applaud and congratulate James for providing the youth in Iowa's 3rd district the education that they will need to be successful in the future and for being recognized with this prestigious award. I am proud to represent him, his fellow teachers and students in the United States Congress. I know that my colleagues join me in congratulating James Hardy and wishing him well and continued success in the future.

Daily Digest

HIGHLIGHTS

Senate passed H.R. 2, Medicare Access and CHIP Reauthorization Act.

Senate

Chamber Action

Routine Proceedings, pages S2141–S2183

Measures Introduced: Thirty-seven bills and one resolution were introduced, as follows: S. 903–939, and S. Res. 135. **Pages S2172–73**

Measures Reported:

Special Report entitled ''Review of Legislative Activity During the 113th Congress''. (S. Rept. No. 114–31)

S. 903, to amend the Internal Revenue Code of 1986 to improve access and administration of the United States Tax Court. (S. Rept. No. 114–14)

S. 904, to amend the Internal Revenue Code of 1986 to remove bond requirements and extend filing periods for certain taxpayers with limited excise tax liability. (S. Rept. No. 114–15)

S. 905, to amend the Internal Revenue Code of 1986 to increase the limitation on eligibility for the alternative tax for certain small insurance companies. (S. Rept. No. 114–16)

S. 906, to amend the Internal Revenue Code of 1986 to modify the types of wines taxed as hard cider. (S. Rept. No. 114–17)

S. 907, to amend the Internal Revenue Code of 1986 to prevent the extension of the tax collection period merely because the taxpayer is a member of the Armed Forces who is hospitalized as a result of combat zone injuries. (S. Rept. No. 114–18)

S. 908, to amend the Internal Revenue Code of 1986 to provide for the deductibility of charitable contributions to agricultural research organizations. (S. Rept. No. 114–19)

S. 909, to amend the Internal Revenue Code of 1986 to exempt private foundations from the tax on excess business holdings in the case of certain philanthropic enterprises which are independently supervised. (S. Rept. No. 114–20)

S. 910, to amend the Internal Revenue Code of 1986 to clarify the special rules for accident and health plans of certain governmental entities. (S. Rept. No. 114–21)

S. 912, to amend the Internal Revenue Code of 1986 to exclude payments received under the Work Colleges Program from gross income, including payments made from institutional funds. (S. Rept. No. 114–22)

S. 913, to amend the Internal Revenue Code of 1986 to provide an investment tax credit for waste heat to power technology. (S. Rept. No. 114–23)

S. 914, to amend title 31, United States Code, to clarify the use of credentials by enrolled agents. (S. Rept. No. 114–24)

S. 915, to amend the Internal Revenue Code of 1986 to exempt certain stock of real estate investment trusts from the tax on foreign investments in United States real property interests. (S. Rept. No. 114–25)

S. 916, to amend the Internal Revenue Code of 1986 to exclude certain compensation received by public safety officers and their dependents from gross income. (S. Rept. No. 114–26)

S. 917, to amend the Internal Revenue Code of 1986 to equalize the excise tax on liquefied petroleum gas and liquefied natural gas. (S. Rept. No. 114–27)

S. 918, to amend the Internal Revenue Code of 1986 to provide notice to charities and other nonprofit organizations before their tax-exempt status is automatically revoked. (S. Rept. No. 114–28)

S. 919, to exclude from gross income certain clean coal power grants to non-corporate taxpayers. (S. Rept. No. 114–29)

S. 920, to amend the Internal Revenue Code of 1986 to allow a credit against income tax for amounts paid by a spouse of a member of the Armed Forces for a new State license or certification required by reason of a permanent change in the duty station of such member to another State. (S. Rept. No. 114–30)

S. 615, to provide for congressional review and oversight of agreements relating to Iran's nuclear

program, with an amendment in the nature of a substitute. **Pages S2171–72**

Measures Passed:

Medicare Access and CHIP Reauthorization Act: By 92 yeas to 8 nays (Vote No. 144), Senate passed H.R. 2, to amend title XVIII of the Social Security Act to repeal the Medicare sustainable growth rate and strengthen Medicare access by improving physician payments and making other improvements, to reauthorize the Children's Health Insurance Program, after taking action on the following amendments and motions proposed thereto: **Pages S2156–61**

Rejected:

By 54 yeas to 45 nays (Vote No. 137), Cornyn Amendment No. 1114, to repeal the individual mandate. (A unanimous-consent agreement was reached providing that the amendment, having failed to achieve 60 affirmative votes, was not agreed to.) **Pages S2156–57**

By 42 yeas to 58 nays (Vote No. 139), Lee Amendment No. 1116, to strike the provision excluding the budgetary effects of the Act from PAYGO requirements. **Page S2158**

By 11 yeas to 89 nays (Vote No. 141), Cotton Amendment No. 1118, to provide steady updates of payment rates under the Medicare physician fee schedule. **Page S2159**

During consideration of this measure today, Senate also took the following action:

By 50 yeas to 50 nays (Vote No. 138), three-fifths of those Senators duly chosen and sworn, not having voted in the affirmative, Senate rejected the motion to waive all applicable budgetary discipline pursuant to Section 904 of the Congressional Budget Act of 1974, with respect to Bennet Amendment No. 1115, to protect and retain our Children's Health Insurance Program for 4 years (PRO-CHIP). Subsequently, the point of order that the amendment was in violation of section 201(a) of S. Con. Res. 21, FY08 Congressional Budget Resolution, was sustained, and the amendment was ruled out of order. **Pages S2157–58**

By 43 yeas to 57 nays (Vote No. 140), three-fifths of those Senators duly chosen and sworn, not having voted in the affirmative, Senate rejected the motion to waive all applicable budgetary discipline pursuant to Section 904 of the Congressional Budget Act of 1974, with respect to Murray Amendment No. 1117, to improve women's access to quality health care. Subsequently, the point of order that the amendment was in violation of section 201(a) of S. Con. Res. 21, FY08 Congressional Budget Resolution, was sustained, and the amendment was ruled out of order. **Pages S2158–59**

By 58 yeas to 42 nays (Vote No. 142), three-fifths of those Senators duly chosen and sworn, not having voted in the affirmative, Senate rejected the motion to waive all applicable budgetary discipline pursuant to Section 904 of the Congressional Budget Act of 1974, with respect to Cardin Amendment No. 1119, to repeal the therapy cap and provide for medical review of outpatient therapy services. Subsequently, the point of order that the amendment was in violation of section 201(a) of S. Con. Res. 21, FY08 Congressional Budget Resolution, was sustained, and the amendment was ruled out of order. **Page S2160**

By 71 yeas to 29 nays (Vote No. 143), three-fifths of the Senators duly chosen and sworn having voted in the affirmative, Senate agreed to the motion to waive all applicable budgetary discipline pursuant to section 311(b) of S. Con Res. 70 with respect to the bill. Subsequently, the point of order that the bill was in violation of section 311(b) of S. Con Res. 70, was not sustained, and thus the point of order fell. **Page S2161**

Authorizing the Use of Emancipation Hall: Senate agreed to H. Con. Res. 9, authorizing the use of Emancipation Hall in the Capitol Visitor Center for a ceremony as part of the commemoration of the days of remembrance of victims of the Holocaust. **Page S2183**

Making Minority Party Appointments: Senate agreed to S. Res. 135, making minority party appointments for the 114th Congress. **Page S2183**

Measures Considered:

Justice for Victims of Trafficking Act—Cloture: Senate resumed consideration of S. 178, to provide justice for the victims of trafficking, taking action on the following amendments proposed thereto: **Pages S2161–64**

Withdrawn:

Portman Amendment No. 271, to amend the definition of ''homeless person'' under the McKinney-Vento Homeless Assistance Act to include certain homeless children and youth. **Page S2162**

Portman Amendment No. 270, to amend the Child Abuse Prevention and Treatment Act to enable State child protective services systems to improve the identification and assessment of child victims of sex trafficking. **Page S2162**

Pending:

McConnell (for Cornyn) Amendment No. 1120, to strengthen the Justice for Victims of Trafficking Act by incorporating additional bipartisan amendments. **Pages S2162–64**

A motion was entered to close further debate on the McConnell (for Cornyn) Amendment No. 1120 to the bill, and, in accordance with the provisions of rule XXII of the Standing Rules of the Senate, a

vote on cloture will occur on Thursday, April 16, 2015. **Pages S2162–64**

During consideration of this measure today, Senate also took the following action:

Vitter Amendment No. 284 (to Amendment No. 271), to amend section 301 of the Immigration and Nationality Act to clarify those classes of individuals born in the United States who are nationals and citizens of the United States at birth, fell when Portman Amendment No. 271 (listed above) was withdrawn. **Page S2162**

Presidential Coin Program Referral—Agreement: A unanimous-consent agreement was reached providing that S. 95, to terminate the $1 presidential coin program, be discharged from the Committee on Homeland Security and Governmental Affairs, and be referred to the Committee on Banking, Housing, and Urban Affairs. **Page S2183**

Message from the President: Senate received the following message from the President of the United States:

Transmitting, pursuant to law, a report to the United States Congress with respect to the proposed rescission of Cuba's designation as a state sponsor of terrorism; which was referred to the Committee on Foreign Relations. (PM–13) **Page S2167**

Nominations Received: Senate received the following nominations:

Glyn Townsend Davies, of the District of Columbia, to be Ambassador to the Kingdom of Thailand.

Carol Waller Pope, of the District of Columbia, to be a Member of the Federal Labor Relations Authority for a term of five years expiring July 1, 2019. **Page S2183**

Messages from the House: **Page S2167**

Measures Referred: **Page S2167**

Executive Communications: **Pages S2168–71**

Additional Cosponsors: **Pages S2173–74**

Statements on Introduced Bills/Resolutions: **Pages S2174–75**

Additional Statements: **Pages S2166–67**

Amendments Submitted: **Pages S2175–82**

Authorities for Committees to Meet: **Pages S2182–83**

Record Votes: Eight record votes were taken today. (Total—144) **Pages S2157–61**

Adjournment: Senate convened at 10 a.m. and adjourned at 10:11 p.m., until 9:30 a.m. on Wednesday, April 15, 2015. (For Senate's program, see the remarks of the Acting Majority Leader in today's Record on page S2183.)

Committee Meetings

(Committees not listed did not meet)

U.S. DEFENSE POLICY ISSUES

Committee on Armed Services: Committee concluded a hearing to examine U.S. defense policy issues pertaining to the Asia-Pacific theater, after receiving testimony from Graham T. Allison, John F. Kennedy School of Government Belfer Center for Science and International Affairs, Kurt M. Campbell, The Asia Group, Michael J. Green, Center for Strategic and International Studies, and Admiral Gary Roughead, USN (Ret.), Hoover Institution, all of Washington, D.C.

DEFENSE AUTHORIZATION REQUEST AND FUTURE YEARS DEFENSE PROGRAM

Committee on Armed Services: Subcommittee on Airland concluded a hearing to examine Army modernization in review of the Defense Authorization Request for fiscal year 2016 and the Future Years Defense Program, after receiving testimony from Lieutenant General Michael E. Williamson, USA, Military Deputy and Director, Army Acquisition Corps, Office of the Assistant Secretary of the Army, Acquisition, Logistics, and Technology, Lieutenant General Herbert R. McMaster, Jr., USA, Director, Army Capabilities Integration Center, and Deputy Commanding General, Futures, United States Army Training and Doctrine Command, Lieutenant General Anthony R. Ierardi, USA, Deputy Chief of Staff of the Army (G–8), and Major General Gary H. Cheek, USA, Assistant Deputy Chief of Staff of the Army (G–3/5/7), all of the Department of Defense.

DEFENSE AUTHORIZATION REQUEST AND FUTURE YEARS DEFENSE PROGRAM

Committee on Armed Services: Subcommittee on Emerging Threats and Capabilities concluded open and closed hearings to examine military cyber programs and posture in review of the Defense Authorization Request for fiscal year 2016 and the Future Years Defense Program, after receiving testimony from Eric Rosenbach, Principal Cyber Advisor to the Secretary, Lieutenant General James K. McLaughlin, USAF, Deputy Commander, U.S. Cyber Command, Lieutenant General Edward C. Cardon, USA, Commander, U.S. Army Cyber Command, Vice Admiral Jan E. Tighe, USN, Commander, U.S. Fleet Cyber Command, Commander, U.S. 10th Fleet, Major General Burke E. Wilson, USAF, Commander, 24th Air Force, Commander, Air Forces Cyber, and Major General Daniel J. O'Donohue, USMC, Commanding General, U.S. Marine Corps Forces Cyberspace, all of the Department of Defense.

FEDERAL AVIATION ADMINISTRATION REAUTHORIZATION

Committee on Commerce, Science, and Transportation: Committee concluded a hearing to examine Federal Aviation Administration reauthorization, after receiving testimony from Michael P. Huerta, Administrator, Federal Aviation Administration, Department of Transportation.

FEDERAL ENVIRONMENTAL PROTECTION, CHEMICAL SAFETY, AND FISH AND WILDLIFE AGENCIES OVERSIGHT

Committee on Environment and Public Works: Subcommittee on Superfund, Waste Management, and Regulatory Oversight concluded an oversight hearing to examine the management of Federal environmental protection, chemical safety, and fish and wildlife agencies, after receiving testimony from Arthur A. Elkins Jr., Inspector General, Environmental Protection Agency; and Mary L. Kendall, Deputy Inspector General, Department of the Interior.

BUSINESS MEETING

Committee on Foreign Relations: Committee ordered favorably reported S. 615, to provide for congressional review and oversight of agreements relating to Iran's nuclear program, with an amendment in the nature of a substitute.

REDUCING UNNECESSARY DUPLICATION IN FEDERAL PROGRAMS

Committee on Homeland Security and Governmental Affairs: Committee concluded a hearing to examine reducing unnecessary duplication in Federal programs, focusing on government efficiency and effectiveness, after receiving testimony from Gene L. Dodaro, Comptroller General of the United States, Cynthia Bascetta, Managing Director, Health Care, and Paul Francis, Managing Director, Acquisitions and Sourcing Management, all of the Government Accountability Office.

BUSINESS MEETING

Committee on Health, Education, Labor, and Pensions: Committee began consideration of an original bill entitled, "Every Child Achieves Act of 2015", an original bill entitled, "WIOA Technical Amendments Act", and the nominations of Ericka M. Miller, of Virginia, to be Assistant Secretary for Postsecondary Education, and Michael Keith Yudin, of the District of Columbia, to be Assistant Secretary for Special Education and Rehabilitative Services, both of the Department of Education, but did not complete action thereon, and will meet again on Wednesday, April 15, 2015.

INTELLIGENCE

Select Committee on Intelligence: Committee held closed hearings on intelligence matters, receiving testimony from officials of the intelligence community.

Committee recessed subject to the call.

House of Representatives

Chamber Action

Public Bills and Resolutions Introduced: 30 public bills, H.R. 1764–1793; 1 private bill, H.R. 1794; and 4 resolutions, H.J. Res. 44; H. Con. Res. 35–36; and H. Res. 199, were introduced.

Pages H2208–10

Additional Cosponsors: **Pages H2211–13**

Reports Filed: Reports were filed today as follows:

H.R. 1562, to prohibit the awarding of a contract or grant in excess of the simplified acquisition threshold unless the prospective contractor or grantee certifies in writing to the agency awarding the contract or grant that the contractor or grantee has no seriously delinquent tax debts, and for other purposes (H. Rept. 114–72);

H.R. 1563, to amend title 5, United States Code, to provide that individuals having seriously delinquent tax debts shall be ineligible for Federal employment, and for other purposes (H. Rept. 114–73, Part 1); and

H. Res. 200, providing for consideration of the bill (H.R. 622) to amend the Internal Revenue Code of 1986 to make permanent the deduction of State and local general sales taxes; providing for consideration of the bill (H.R. 1105) to amend the Internal Revenue Code of 1986 to repeal the estate and generation-skipping transfer taxes, and for other purposes; and providing for consideration of the bill (H.R. 1195) to amend the Consumer Financial Protection Act of 2010 to establish advisory boards, and for other purposes (H. Rept. 114–74). **Page H2208**

Speaker: Read a letter from the Speaker wherein he appointed Representative Newhouse to act as Speaker pro tempore for today. **Page H2157**

Recess: The House recessed at 10:45 a.m. and reconvened at 12 noon. **Page H2161**

Committee Elections: The House agreed to H. Res. 199, electing Members to certain standing committees of the House of Representatives. **Pages H2161–62**

Congressional Budget Resolution FY 2016: Pursuant to H. Res. 189, S. Con. Res. 11, setting forth the congressional budget for the United States Government for fiscal year 2016 and setting forth the appropriate budgetary levels for fiscal years 2017 through 2025, was taken from the Speaker's Table; the amendment in the nature of a substitute consisting of the text of H. Con. Res. 27, as agreed to in the House, was considered as agreed to; and S. Con. Res. 11, as amended, was agreed to. The House insisted on its amendment and requested a conference with the Senate thereon.

Pages H2171–78, H2197–98

Rejected the Van Hollen motion to instruct conferees on the concurrent resolution by a yea-and-nay vote of 187 yeas to 239 nays, Roll No. 153.

Pages H2171–78, H2197–98

Subsequently, the Chair appointed the following Members of the House to the conference committee on the concurrent resolution: Representatives Price (GA), Rokita, Diaz-Balart, Black, Moolenaar, Van Hollen, Yarmuth, and Moore. **Page H2198**

H. Res. 189, the rule providing for consideration of H.R. 650, H.R. 685, and the adoption of S. Con. Res. 11, was agreed to by a recorded vote of 237 ayes to 185 noes, Roll No. 149, after the previous question was ordered by a yea-and-nay vote of 239 yeas to 183 nays, Roll No. 148. **Pages H2165–71**

Preserving Access to Manufactured Housing Act of 2015: The House passed H.R. 650, to amend the Truth in Lending Act to modify the definitions of a mortgage originator and a high-cost mortgage, by a yea-and-nay vote of 263 yeas to 162 nays, Roll No. 151. **Pages H2178–88, H2194–97**

Rejected the Waters (CA) motion to recommit the bill to the Committee on Financial Services with instructions to report the same back to the House forthwith with an amendment, by a yea-and-nay vote of 184 yeas to 239 nays, Roll No. 150.

Pages H2194–96

H. Res. 189, the rule providing for consideration of H.R. 650, H.R. 685, and the adoption of S. Con. Res. 11, was agreed to by a recorded vote of 237 ayes to 185 noes, Roll No. 149, after the previous question was ordered by a yea-and-nay vote of 239 yeas to 183 nays, Roll No. 148. **Pages H2165–71**

Mortgage Choice Act of 2015: The House passed H.R. 685, to amend the Truth in Lending Act to improve upon the definitions provided for points and fees in connection with a mortgage transaction, by a yea-and-nay vote of 286 yeas to 140 nays, Roll No. 152. **Pages H2188–94, H2197**

H. Res. 189, the rule providing for consideration of H.R. 650, H.R. 685, and the adoption of S. Con. Res. 11, was agreed to by a recorded vote of 237 ayes to 185 noes, Roll No. 149, after the previous question was ordered by a yea-and-nay vote of 239 yeas to 183 nays, Roll No. 148. **Pages H2165–71**

Presidential Message: Read a message from the President wherein he transmitted the proposed rescission of Cuba's designation as a state sponsor of terrorism—referred to the Committee on Foreign Affairs and ordered to be printed (H. Doc. 114–26).

Page H2200

Quorum Calls—Votes: Five yea-and-nay votes and one recorded vote developed during the proceedings of today and appear on pages H2169–70, H2170–71, H2196, H2196–97, H2197, and H2198. There were no quorum calls.

Adjournment: The House met at 10 a.m. and adjourned at 7:39 p.m.

Committee Meetings

REAUTHORIZING THE CFTC: COMMISSIONERS' PERSPECTIVES

Committee on Agriculture: Subcommittee on Commodity Exchanges, Energy and Credit held a hearing entitled "Reauthorizing the CFTC: Commissioners' Perspectives". Testimony was heard from Sharon Y. Bowen, Commissioner, Commodity Futures Trading Commission; J. Christopher Giancarlo, Commissioner, Commodity Futures Trading Commission; and Mark P. Wetjen, Commissioner, Commodity Futures Trading Commission.

A PRESENTATION BY NATIONAL 4–H CONFERENCE PARTICIPANTS CONCERNING THE FUTURE OF AGRICULTURE IN THE UNITED STATES

Committee on Agriculture: Subcommittee on Biotechnology, Horticulture, and Research held a hearing entitled "A Presentation by National 4–H Conference Participants Concerning the Future of Agriculture in the United States". Testimony was heard from public witnesses.

APPROPRIATIONS—EARLY EDUCATION PANEL

Committee on Appropriations: Subcommittee on Labor, Health and Human Services, and Education held a

hearing on Early Education Panel budget. Testimony was heard from public witnesses.

APPROPRIATIONS—DEFENSE HEALTH PROGRAM

Committee on Appropriations: Subcommittee on Defense held a hearing on Defense Health Program budget. Testimony was heard from Lieutenant General Douglas J. Robb, Director, Defense Health Agency; Lieutenant General Patricia D. Horoho, Surgeon General, United States Army; Vice Admiral Matthew L. Nathan, Surgeon General, United States Navy; Lieutenant General Thomas W. Travis, Surgeon General, United States Air Force.

MEMBER DAY

Committee on Armed Services: Full Committee held a hearing entitled ''Member Day''. Testimony was heard from Chairman Chabot and Representatives Blackburn, Wagner, Hardy, Young of Alaska, Rothfus, Bost, Fitzpatrick, Curbelo of Florida, Lawrence, Ross, Blumenauer, Gohmert, Ellmers, and Hurd of Texas.

UPDATE ON THE F–35 JOINT STRIKE FIGHTER (JSF) PROGRAM AND THE FISCAL YEAR 2016 BUDGET REQUEST

Committee on Armed Services: Subcommittee on Tactical Air and Land Forces held a hearing entitled ''Update on the F–35 Joint Strike Fighter (JSF) Program and the Fiscal Year 2016 Budget Request''. Testimony was heard from Lieutenant General Christopher C. Bogdan, USAF, Program Executive Officer, F–35 Lightning II Joint Program Office; Sean J. Stackley, Assistant Secretary of the Navy for Research, Development and Acquisition; Michael Sullivan, Director, Acquisition and Sourcing Management Issues, Governmental Accountability Office; and Michael Gilmore, Director, Operational Test and Evaluation.

FIVE YEARS OF BROKEN PROMISES: HOW THE PRESIDENT'S HEALTH CARE LAW IS AFFECTING AMERICA'S WORKPLACES

Committee on Education and the Workforce: Subcommittee on Health, Employment, Labor, and Pensions held a hearing entitled ''Five Years of Broken Promises: How the President's Health Care Law is Affecting America's Workplaces''. Testimony was heard from public witnesses.

EPA'S PROPOSED 111(d) RULE FOR EXISTING POWER PLANTS, AND H.R. _____, RATEPAYER PROTECTION ACT

Committee on Energy and Commerce: Subcommittee on Energy and Power held a hearing entitled ''EPA's Proposed 111(d) Rule for Existing Power Plants, and H.R. _____, Ratepayer Protection Act''. Testimony was heard from Janet McCabe, Acting Assistant Administrator, Office of Air and Radiation, Environmental Protection Agency; Melissa A. Hoffer, Chief, Energy and Environment Bureau, Office of the Attorney General of Massachusetts; and public witnesses.

H.R. _____, THE TSCA MODERNIZATION ACT OF 2015

Committee on Energy and Commerce: Subcommittee on Environment and the Economy held a hearing entitled ''H.R. _____, the TSCA Modernization Act of 2015''. Testimony was heard from Jim Jones, Assistant Administrator, Office of Chemical Safety and Pollution Prevention, Environmental Protection Agency; and public witnesses.

MISCELLANEOUS MEASURES

Committee on Energy and Commerce: Full Committee began a markup on the ''Improving Coal Combustion Residuals Regulation Act of 2015''; H.R. 906, to modify the efficiency standards for grid-enabled water heaters; and the ''Data Security and Breach Notification Act of 2015''.

THE CRUDE OIL EXPORT BAN: HELPFUL OR HURTFUL?

Committee on Foreign Affairs: Subcommittee on Terrorism, Nonproliferation, and Trade held a hearing entitled ''The Crude Oil Export Ban: Helpful or Hurtful?''. Testimony was heard from Chairman McCaul, Representative Barton, and public witnesses.

YEMEN UNDER ATTACK BY IRANIAN-BACKED HOUTHIS

Committee on Foreign Affairs: Subcommittee on the Middle East and North Africa held a hearing entitled ''Yemen Under Attack by Iranian-Backed Houthis''. Testimony was heard from Gerald M. Feierstein, Principal Deputy Assistant Secretary, Bureau of Near Eastern Affairs, Department of State.

MISCELLANEOUS MEASURE

Committee on Homeland Security: Full Committee held a markup on H.R. 1731, the ''National Cybersecurity Protection Advancement Act of 2015''. The bill was ordered reported, as amended.

OVERSIGHT OF U.S. IMMIGRATION AND CUSTOMS ENFORCEMENT

Committee on the Judiciary: Full Committee held a hearing entitled ''Oversight of U.S. Immigration and Customs Enforcement''. Testimony was heard from Sarah R. Saldaña, Director, Immigration and Customs Enforcement.

LEGISLATIVE MEASURE

Committee on the Judiciary: Full Committee held a hearing on H.R. 9, the "Innovation Act". Testimony was heard from Michelle Lee, Under Secretary of Commerce for Intellectual Property and Director, United States Patent and Trademark Office; and public witnesses.

LEGISLATIVE MEASURES

Committee on Natural Resources: Subcommittee on Indian, Insular, and Alaska Native Affairs held a hearing on H.R. 329, the "Indian Employment, Training and Related Services Consolidation Act of 2015"; H.R. 521, to provide for the conveyance of certain property to the Yukon Kuskokwim Health Corporation located in Bethel, Alaska; and H.R. 812, the "Indian Trust Asset Reform Act". Testimony was heard from Nisha Patel, Director, Office of Family Assistance, Administration for Children and Families, Department of Health and Human Services; Robert McSwain, Acting Director, Indian Health Service, Department of Health and Human Services; and Vincent Logan, Special Trustee, Office of the Special Trustee for American Indians, Department of Interior; and public witnesses.

PROPOSED FEDERAL WATER GRABS AND THEIR POTENTIAL IMPACTS ON STATES, WATER AND POWER USERS, AND LANDOWNERS

Committee on Natural Resources: Subcommittee on Water, Power, and Oceans held a hearing entitled "Proposed Federal Water Grabs and Their Potential Impacts on States, Water and Power Users, and Landowners". Leslie Weldon, Deputy Chief, Forest Service; Timothy Mauck, Commissioner, District 1, Clear Creek County, Colorado; and public witnesses.

DOJ IG: HANDLING OF SEXUAL HARASSMENT AND MISCONDUCT ALLEGATIONS

Committee on Oversight and Government Reform: Full Committee held a hearing entitled "DOJ IG: Handling of Sexual Harassment and Misconduct Allegations". Testimony was heard from Michael Horowitz, Inspector General, Department of Justice; Kevin Perkins, Associate Deputy Director, Federal Bureau of Investigation; Michele Leonhart, Administrator, Drug Enforcement Administration.

GAO'S DUPLICATION REPORT AT FIVE YEARS: RECOMMENDATIONS REMAIN UNADDRESSED

Committee on Oversight and Government Reform: Full Committee held a hearing entitled "GAO's Duplication Report at Five Years: Recommendations Remain Unaddressed". Testimony was heard from Gene L. Dodaro, Comptroller General of the United States, Government Accountability Office; and Beth Cobert, Deputy Director for Management, Office of Management and Budget.

STATE AND LOCAL SALES TAX DEDUCTION FAIRNESS ACT OF 2015; DEATH TAX REPEAL ACT OF 2015; BUREAU OF CONSUMER FINANCIAL PROTECTION ADVISORY BOARDS ACT

Committee on Rules: Full Committee held a hearing on H.R. 622, the "State and Local Sales Tax Deduction Fairness Act of 2015"; H.R. 1105, the "Death Tax Repeal Act of 2015"; and H.R. 1195, the "Bureau of Consumer Financial Protection Advisory Boards Act". The committee granted, by record vote of 8–4, a closed rule for H.R. 622. The rule provides one hour of debate equally divided and controlled by the chair and ranking minority member of the Committee on Ways and Means. The rule waives all points of order against consideration of the bill. The rule provides that the amendment in the nature of a substitute recommended by the Committee on Ways and Means now printed in the bill, modified by the amendment printed in part A of the Rules Committee report, shall be considered as adopted. The bill, as amended, shall be considered as read. The rule waives all points of order against provisions in the bill, as amended. The rule provides one motion to recommit with or without instructions. Additionally, the rule grants a closed rule for H.R. 1105. The rule provides one hour of debate equally divided and controlled by the chair and ranking minority member of the Committee on Ways and Means. The rule waives all points of order against consideration of the bill. The rule provides that the amendment in the nature of a substitute recommended by the Committee on Ways and Means now printed in the bill, modified by the amendment printed in part B of the Rules Committee report, shall be considered as adopted. The bill, as amended, shall be considered as read. The rule waives all points of order against provisions in the bill, as amended. The rule provides one motion to recommit with or without instructions. Lastly, the rule grants a structured rule for H.R. 1195. The rule provides one hour of general debate equally divided and controlled by the chair and ranking minority member of the Committee on Financial Services. The rule waives all points of order against consideration of the bill. The rule provides that the amendment printed in part C of the Rules Committee report shall be considered as adopted and the bill, as amended, shall be considered as read. The rule waives all points of order against provisions in the bill, as amended. The rule makes in order only those further amendments

printed in part D of the Rules Committee report. Each such further amendment may be offered only in the order printed in the report, may be offered only by a Member designated in the report, shall be considered as read, shall be debatable for the time specified in the report equally divided and controlled by the proponent and an opponent, shall not be subject to amendment, and shall not be subject to a demand for division of the question. The rule waives all points of order against the amendments printed in part D of the report. The rule provides one motion to recommit with or without instructions. Testimony was heard from Chairman Hensarling, Chairman Ryan of Wisconsin, and Representatives Heck of Washington and Levin.

OVERSIGHT OF THE ONGOING RAIL, PIPELINE, AND HAZMAT RULEMAKINGS

Committee on Transportation and Infrastructure: Subcommittee on Railroads, Pipelines, and Hazardous Materials held a hearing entitled ''Oversight of the Ongoing Rail, Pipeline, and Hazmat Rulemakings''. Testimony was heard from Sarah Feinberg, Acting Administrator, Federal Railroad Administration; Timothy P. Butters, Acting Administrator, Pipeline and Hazardous Materials Safety Administration; and Christopher A. Hart, Chairman, National Transportation Safety Board.

LEGISLATIVE MEASURES

Committee on Veterans' Affairs: Subcommittee on Disability Assistance and Memorial Affairs held a hearing on H.R. 675, the ''Veterans' Compensation Cost-of-Living Adjustment Act of 2015''; H.R. 677, the ''American Heroes COLA Act of 2015''; H.R. 732, the ''Veterans Access to Speedy Review Act''; H.R. 800, the ''Express Appeals Act''; H.R. 1067, the ''U.S. Court of Appeals for Veterans Claims Reform Act''; H.R. 1331, the ''Quicker Veterans Benefits Delivery Act of 2015''; H.R. 1379, to amend title 38, United States Code, to authorize the Board of Veterans' Appeals to develop evidence in appeal cases, and for other purposes; H.R. 1414, the ''Pay As You Rate Act''; H.R. 1569, to amend title 38, United States Code, to clarify that the estate of a deceased veteran may receive certain accrued benefits upon the death of the veteran, and for other purposes; and H.R. 1607, the ''Ruth Moore Act of 2015''. Testimony was heard from Representative Pingree of Maine; David R. McLenachen, Acting Deputy Under Secretary for Disability Assistance, Veterans Benefits Administration, Department of Veterans Affairs; and public witnesses.

ORGANIZATIONAL MEETING FOR THE 114TH CONGRESS; INDIVIDUAL AND EMPLOYER MANDATES AND ASSOCIATED PENALTIES IN THE PRESIDENT'S HEALTH CARE LAW

Committee on Ways and Means: Subcommittee on Health held an organizational meeting for the 114th Congress and a hearing on the individual and employer mandates and associated penalties in the President's health care law. The subcommittee successfully organized. Testimony was heard from public witnesses.

CENTRAL INTELLIGENCE AGENCY BUDGET

Permanent Select Committee on Intelligence: Subcommittee on the Central Intelligence Agency held a hearing on Central Intelligence Agency budget. This hearing was closed.

Joint Meetings

No joint committee meetings were held.

COMMITTEE MEETINGS FOR WEDNESDAY, APRIL 15, 2015

(Committee meetings are open unless otherwise indicated)

Senate

Committee on Appropriations: Subcommittee on Department of Defense, to hold closed hearings to examine proposed budget estimates and justification for fiscal year 2016 for the national intelligence and military intelligence programs, 10:30 a.m., SVC–217.

Subcommittee on Military Construction and Veterans Affairs, and Related Agencies, to hold hearings to examine proposed budget estimates and justification for fiscal year 2016 for military construction and military family housing for select combatant commanders and select defense agencies, 10:30 a.m., SD–124.

Subcommittee on Department of Homeland Security, to hold hearings to examine funding the Department of Homeland Security role in cybersecurity, focusing on protection to partnership, 2 p.m., SD–138.

Committee on Armed Services: Subcommittee on SeaPower, to receive a closed briefing on the major threats facing Navy forces and the Navy's current and projected capabilities to meet those threats in review of the Defense Authorization Request for fiscal year 2016 and the Future Years Defense Program, 9:30 a.m., SVC–217.

Subcommittee on Strategic Forces, to hold hearings to examine the National Nuclear Security Administration plans and programs in review of the Defense Authorization Request for fiscal year 2016 and the Future Years Defense Program, 2:30 p.m., SR–222.

Committee on Environment and Public Works: to hold an oversight hearing to examine the President's proposed budget request for fiscal year 2016 for the Nuclear Regulatory Commission, 10 a.m., SD–406.

Committee on Foreign Relations: to hold hearings to examine American food aid, focusing on why reform matters, 9:30 a.m., SD–419.

Committee on Health, Education, Labor, and Pensions: business meeting to continue consideration of an original bill entitled, ''Every Child Achieves Act of 2015'', an original bill entitled, ''WIOA Technical Amendments Act'', and the nominations of Ericka M. Miller, of Virginia, to be Assistant Secretary for Postsecondary Education, and Michael Keith Yudin, of the District of Columbia, to be Assistant Secretary for Special Education and Rehabilitative Services, both of the Department of Education, 10 a.m., SD–106.

Committee on Homeland Security and Governmental Affairs: to hold hearings to examine IRS challenges in implementing the Affordable Care Act, 10 a.m., SD–342.

Committee on the Judiciary: to hold hearings to examine the need to reform asset forfeiture, 10 a.m., SD–226.

Select Committee on Intelligence: to receive a closed briefing on certain intelligence matters, 2:45 p.m., SH–219.

Special Committee on Aging: to hold hearings to examine the IRS impersonation scam and the government's response, 1:30 p.m., SD–562.

House

Committee on Agriculture, Full Committee, hearing entitled ''The Past, Present, and Future of SNAP: The World of Nutrition and the Role of the Charitable Sector'', 10 a.m., 1300 Longworth.

Committee on Appropriations, Subcommittee on Defense, hearing for Members of Congress, 8:50 a.m., H–140 Capitol.

Subcommittee on Financial Services and General Government, hearing on Securities and Exchange Commission budget, 10 a.m., 2359 Rayburn.

Subcommittee on Labor, Health and Human Services, and Education, hearing on Ebola budget, 10 a.m., 2358–C Rayburn.

Subcommittee on Energy and Water Development, markup on appropriations bill for fiscal year 2016, 10 a.m., 2362–B Rayburn.

Subcommittee on Homeland Security, hearing on Immigration and Customs Enforcement budget, 11 a.m., 2362–A Rayburn.

Subcommittee on Military Construction, Veterans Affairs, and Related Agencies, markup on appropriations bill for fiscal year 2016, 11:30 a.m., 2358–A Rayburn.

Subcommittee on State, Foreign Operations, and Related Programs, hearing on United Nations and International Organizations budget, 2 p.m., 2359 Rayburn.

Committee on Armed Services, Full Committee, hearing entitled ''The Risk of Losing Military Technology Superiority and its Implications for U.S. Policy, Strategy, and Posture in the Asia-Pacific'', 10 a.m., 2118 Rayburn.

Subcommittee on Seapower and Projection Forces, hearing entitled ''The Role of Surface Forces in Presence, Deterrence, and Warfighting'', 2 p.m., 2212 Rayburn.

Subcommittee on Strategic Forces, hearing entitled ''Fiscal Year 2016 Nuclear Forces Hearing'', 3:30 p.m., 2118 Rayburn.

Committee on Education and the Workforce, Full Committee, hearing entitled ''Serving Students and Families through Child Nutrition Programs'', 10 a.m., 2175 Rayburn.

Committee on Energy and Commerce, Full Committee, markup on the ''Improving Coal Combustion Residuals Regulation Act of 2015''; H.R. 906, to modify the efficiency standards for grid-enabled water heaters; and the ''Data Security and Breach Notification Act of 2015'' (continued), 10 a.m., 2123 Rayburn.

Committee on Financial Services, Subcommittee on Financial Institutions and Consumer Credit, hearing entitled ''Examining Regulatory Burdens on Non-Depository Financial Institutions'', 1 p.m., 2175 Rayburn.

Committee on Foreign Affairs, Full Committee, hearing entitled ''Confronting Russia's Weaponization of Information'', 10 a.m., 2172 Rayburn.

Subcommittee on Africa, Global Health, Global Human Rights, and International Organizations, markup on H.R. 1150, to amend the International Religious Freedom Act of 1998 to improve the ability of the United States to advance religious freedom globally through enhanced diplomacy, training, counterterrorism, and foreign assistance efforts, and through stronger and more flexible political responses to religious freedom violations and violent extremism worldwide, and for other purposes; and H. Res. 50, calling for the release of Ukrainian fighter pilot Nadiya Savchenko, who was captured by Russian forces in Eastern Ukraine and has been held illegally in a Russian prison since July 2014, 2 p.m., 2172 Rayburn.

Subcommittee on Africa, Global Health, Global Human Rights, and International Organizations, hearing entitled ''The Continuing Threat of Neglected Tropical Diseases'', 2:30 p.m., 2172 Rayburn.

Committee on the Judiciary, Full Committee, markup on H.R. 427, the ''Regulations From the Executive in Need of Scrutiny Act of 2015''; H.R. 1759, the ''All Economic Regulations are Transparent Act of 2015''; and H.R. 758, the ''Lawsuit Abuse Reduction Act of 2015'', 10 a.m., 2141 Rayburn.

Subcommittee on Crime, Terrorism, Homeland Security, and Investigations, hearing entitled ''Analyzing Misconduct in Federal Law Enforcement'', 2 p.m., 2141 Rayburn.

Committee on Natural Resources, Subcommittee on Federal Lands, hearing entitled ''Federal Land Acquisition and its Impacts on Communities and the Environment'', 9 a.m., 1324 Longworth.

Subcommittee on Energy and Mineral Resources, hearing entitled ''Examining the Future Impacts of President Obama's Offshore Energy Plan'', 10 a.m., 1334 Longworth.

Committee on Oversight and Government Reform, Subcommittee on Health Care, Benefits and Administrative Rules; and Subcommittee on Monetary Policy and Trade of the Committee on Financial Services, joint hearing entitled ''Oversight of Efforts to Reform the Export-Import Bank of the United States'', 10 a.m., 2154 Rayburn.

Subcommittee on Government Operations, hearing entitled ''The Taxpayer Advocate's Annual Report'', 1 p.m., 2154 Rayburn.

Committee on Science, Space, and Technology, Full Committee, hearing entitled ''The President's UN Climate Pledge: Scientifically Justified or a New Tax on Americans?'', 10 a.m., 2318 Rayburn.

Committee on Small Business, Full Committee, hearing entitled ''Tax Reform: Ensuring that Main Street Isn't Left Behind'', 11 a.m., 2360 Rayburn.

Committee on Transportation and Infrastructure, Full Committee, markup on H.R. 1732, the ''Regulatory Integrity Protection Act''; H.R. 1471, the ''FEMA Disaster Assistance Reform Act of 2015''; H.R. 1472, the ''Integrated Public Alert and Warning System Modernization Act of 2015''; H.R. 1473, the ''John F. Kennedy Center Reauthorization Act of 2015''; H.R. 944, to reauthorize the National Estuary Program, and for other purposes; H.R. 336, to direct the Administrator of General Services, on behalf of the Archivist of the United States, to convey certain Federal property located in the State of Alaska to the Municipality of Anchorage, Alaska; H.R. 172, to designate the United States courthouse located at 501 East Court Street in Jackson, Mississippi, as the ''R. Jess Brown United States Courthouse''; H. Con. Res. 21, authorizing the use of the Capitol Grounds for the Greater Washington Soap Box Derby; H. Con. Res. 25, authorizing the use of the Capitol Grounds for the National Peace Officers Memorial Service and the National Honor Guard and Pipe Band Exhibition; and H.R. 1690, to designate the United States courthouse located at 700 Grant Street in Pittsburgh, Pennsylvania, as the ''Joseph F. Weis Jr. United States Courthouse'', 10 a.m., 2167 Rayburn.

Subcommittee on Coast Guard and Maritime Transportation, hearing entitled ''An Overview of the U.S. Coast Guard's Missions'', 2 p.m., 2253 Rayburn.

Committee on Veterans' Affairs, Full Committee, hearing entitled ''Denver VA Medical Center: Constructing a Way Forward'', 10:30 a.m., 334 Cannon.

Permanent Select Committee on Intelligence, Subcommittee on the National Security Agency and Cybersecurity, hearing on special activities, 10 a.m., HVC–304. This hearing will be closed.

Joint Meetings

Joint Economic Committee: to hold hearings to examine if taxes are holding back small business growth, 2:30 p.m., SD–G50.

Next Meeting of the **SENATE**

9:30 a.m., Wednesday, April 15

Senate Chamber

Program for Wednesday: Senate will be in a period of morning business for one hour. At 2:49 p.m., Senate will observe a moment of silence in honor of the victims of the Boston Marathon bombings.

(Senate will recess from 12:30 p.m. until 2 p.m. for the bipartisan luncheon.)

Next Meeting of the **HOUSE OF REPRESENTATIVES**

10 a.m., Wednesday, April 15

House Chamber

Program for Wednesday: Consideration of H.R. 622—State and Local Sales Tax Deduction Fairness Act of 2015 (Subject to a Rule), H.R. 1105—Death Tax Repeal Act of 2015 (Subject to a Rule), and H.R. 1195—Bureau of Consumer Financial Protection Advisory Boards Act (Subject to a Rule).

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